Volume 1

Administrator-General v Bwanika and others (SCU)	[2005] 1 EA 1 (SCU)
Apondi v Canuald Metal Packaging (CAK)	[2005] 1 EA 12 (CAK)
Asea Brown Boveri Ltd v Bawazir Glass Works Ltd and another (CCK)	[2005] 1 EA 17 (CCK)
Attorney-General v Ssemogerere and another (2) (SCU)	[2005] 1 EA 23 (SCU)
Bukachi v Republic (CAK)	[2005] 1 EA 31 (CAK)
Chelashaw v Attorney-General and another (HCK)	[2005] 1 EA 33 (HCK)
Dainty v Haji and another (CAK)	[2005] 1 EA 43 (CAK)
Distelberger v Muindi and another (HCK)	[2005] 1 EA 48 (HCK)
Exclusive Estates Ltd v Kenya Posts and Telecommunications Corporation and another (CAK)	[2005] 1 EA 53 (CAK)
Gachuru v Republic (CAK)	[2005] 1 EA 56 (CAK)
Galgalo and another v Republic (CAK)	[2005] 1 EA 63 (CAK)
Gitahi and another v Maboko Distributors Ltd and another (CAK)	[2005] 1 EA 65 (CAK)
Kaimoi v Republic (CAK)	[2005] 1 EA 70 (CAK)
Kapoma v Tanga Cement Company Ltd (CAT)	[2005] 1 EA 76 (CAT)
Karanja v Republic (CAK)	[2005] 1 EA 78 (CAK)
Karia and another v Attorney-General and others (SCU)	[2005] 1 EA 83 (SCU)
Karimi v Khan and another (CAK)	[2005] 1 EA 105 (CAK)
Kariuki v Wang'ombe (CAK)	[2005] 1 EA 107 (CAK)
Kenya Bus Services Ltd and others v Attorney-General and others (HCK)	[2005] 1 EA 111 (HCK)
Kenya Commercial Bank Ltd v Kaven (CAK)	[2005] 1 EA 124 (CAK)
Kibuthu and others v Republic (CAK)	[2005] 1 EA 127 (CAK)
Kigula and others v Attorney-General (CCU)	[2005] 1 EA 132 (CCU)
Kinoti v Republic (CAK)	[2005] 1 EA 209 (CAK)
Kolongei v Republic (CAK)	[2005] 1 EA 212 (CAK)
Kungu v Karu (HCK)	[2005] 1 EA 223 (HCK)
Liningushu and others v Republic (CAK)	[2005] 1 EA 229 (CAK)
Mabalanganya v Sanga (CAT)	[2005] 1 EA 236 (CAT)
Madison Insurance Co Ltd v Kinara and another (CAK)	[2005] 1 EA 240 (CAK)
Maier v Kersten (CAK)	[2005] 1 EA 245 (CAK)
Makorongo v Consigilio (CAT)	[2005] 1 EA 247 (CAT)
Matheka and another v Matheka (CAK)	[2005] 1 EA 251 (CAK)
Mbui v Mbui (CAK)	[2005] 1 EA 256 (CAK)
Messina and another v Stallion Insurance Co Ltd (CAK)	[2005] 1 EA 264 (CAK)
Minja v Tanzania Harbours Authority (CAT)	[2005] 1 EA 271 (CAT)
Misaki and another v Uganda (SCU)	[2005] 1 EA 274 (SCU)
M'Mairanyi and others v Blue Shield Insurance Co Ltd (CAK)	[2005] 1 EA 280 (CAK)
Mugambi and another v Gitiru (CAK)	[2005] 1 EA 289 (CAK)
Muiruri v Republic (CAK)	[2005] 1 EA 293 (CAK)
Mukulu v Republic (CAK)	[2005] 1 EA 297 (CAK)
Mulangwa v Osman (SCU)	[2005] 1 EA 299 (SCU)
Mumias Sugar Co Ltd v Freight Forwarders (K) Ltd (CAK)	[2005] 1 EA 305 (CAK)
Munga v Republic (HCK)	[2005] 1 EA 314 (HCK)
Musiara Ltd v Ntimama (CAK)	[2005] 1 EA 317 (CAK)
Mutunga v Republic (CAK)	[2005] 1 EA 325 (CAK)

National Cereal and Produce Board v Dubai Bank Kenya Ltd (CCK)	[2005] 1 EA 331 (CCK)
Ndiritu v Ropkoi and another (CAK)	[2005] 1 EA 334 (CAK)
Pattni v Ali and others (CAK)	[2005] 1 EA 339 (CAK)
Republic v Commissioner of Income Tax ex parte SDV Transami (K) Ltd (HCK)	[2005] 1 EA 346 (HCK)
Rono v Rono and another (CAK)	[2005] 1 EA 363 (CAK)
Standard Chartered Bank Ltd and another v Abok and another (CAK)	[2005] 1 EA 373 (CAK)
Standard Ltd v Gekonga and others (CAK)	[2005] 1 EA 376 (CAK)
Taro v Republic (CAK)	[2005] 1 EA 380 (CAK)
Wendy v IL Ngwesi Co Ltd and another (HCK)	[2005] 1 EA 382 (HCK)

Administrator-General v Bwanika and others

[2005] 1 EA 1 (SCU)

Division: Supreme Court of Uganda at Mengo

Date of judgment: 12 October 2004

Case Number: 7/03

Before: Odoki CJ, Oder, Tsekooko, Karokora and Kanyeihamba JJSC

Sourced by: LawAfrica

Summarised by: M Kibanga

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[1] Appeal – First appellate Court's duty to re-evalute evidence.

[2] Civil procedure – Third party to enter appearance – Effect of failure by third party to enter appearance.

Editor's Summary

The High Court granted to appellants letters of administration to administer the estate of Francis Drake Manyiga (deceased) in 1978. The respondents were then minor children of the deceased. The estate comprised mainly of a commercial building in Masala Municipality. The appellants instructed a firm of advocates to sell the property. The proceeds of sale were collected by a member of staff from the advocates by a cheque on 9 May 1996. The amount was Ushs83 995 560-00. Later a senior accountant of the appellant banked the cheque in the Bankruptcy Estate Account instead of general account. Both accounts were in the Kampala branch of the Uganda Commercial Bank Limited.

Two employees of the appellant withdrew all the money over a period of two years and disappeared. The respondents sued the appellants for the entire sum with interest and general damages for conversion. Three years after pleadings had closed the appellant applied to issue a third party notice against the bank for identity of the money which had been lost in the bank. No reply was filed by the bank. The Court of Appeal dismissed the appeal but varied the award and increased the amounts. The appellant appealed to the Supreme Court. The grounds of appeal were that the Court of Appeal erred in holding that there was no evidence of negligence on the part of the bank and not

holding the Bank should have indemnified the appellant.

The appellant also contested the enhancement of the award by the Court of Appeal. It was argued by the respondents that the bank was not made a party to the suit in the High Court or to the subsequent appeals and it would be inconsequential to make any orders against the bank.

Held – A second appellate Court will not interfere with the findings of fact by a first appellate Court except where the first appellate Court has erred in law by not treating the evidence as a whole; *Pandya v R* [1957] EA 336 approved.

The Court of Appeal had carefully evaluated the evidence in the High Court and the Supreme Court had no reason to interfere with its findings.

The bank having failed to enter appearance to the third party notice, the appellant should have proceeded to obtain the remedy of indemnity against it.

The award by the Court of Appeal was excessive and ought to be reduced.

Appeal was allowed in part.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Bogere Moses v Uganda criminal appeal number 1 of 1997 (SCU)(UR)

Kifamunte Henry v Uganda [1999] 2 EA

Pandya v Republic [1957] EA 336 – **APP**

Shantila Manaklal Ruwala v R [1957] EA 570

United Kingdom

Cassidy v Ministry of Health [1951] 2 KB 343

Coghland v Cumberland [1898] 1 Ch 704 (CA)

Commissions of Taxation v English, Scottish and Australian Bank Limited [1970] AC 683

House Property v London County and Westminister Bank [1951] 84 LJ KB 1846

Lloyd v Grace Smith [1912] HL 716

Re Londonderry Settlement [1964] 3 All ER 855

Judgment

Oder JSC: This is a second appeal. It is brought against the judgment of the Court of Appeal dismissing the appellant's appeal against a judgment of the High Court in a suit instituted by the respondents against the appellant.

The background to the appeal is as follows: The High Court granted the appellant letters of administration to administer the estate of the deceased, Francis Drake Mayiga, in administration cause number 851 of 1978. The estate consisted mainly of a commercial building in Masaka Municipality. The respondents were the children of Francis Drake Mayiga (deceased) and the beneficiaries of his estate. With the agreement of the respondents; the appellant authorised the law firm of Messrs Ntume Nyanzi and Company Advocates to sell the building and remit the proceeds of the sale therefrom to the appellant for distribution to, or management for, the respondents, most of whom were minors at the material time. On 9 May 1996, the law firm issued a cheque, the proceeds of sale, for Ushs83 995 560. The cheque was collected by one Katamba-Mukiibi, a member of staff and a state attorney in the appellant's department. The cheque was later banked by a senior accountant of the appellant, one Lawrence Lagara, on the appellant's Bankruptcy Estate Account number 3506, instead of in the appellant's general account number 3432. Both the accounts were in the Kampala main branch of the former Uganda Commercial Bank Limited (hereinafter referred to as "the Bank"). Lawrence Lagara and the appellant's account called JB Mukasa were the signatories to the Bankruptcy Estate Account. They withdrew all the money over a period of two years and disappeared. The beneficiaries of the estate, the respondents, never received a single cent from the proceeds of sale of the estate. In 1991, they jointly instituted the suit in this case against the appellant only. In view of the parties' respective cases as canvassed at the trial and on appeals in this Court and

the Court below it was necessary, in my view, to refer to what they stated in their pleadings. The respondents' amended plaint stated, *inter alia*:

"6. In the course of the administration of the said estate the defendant received on or about 9 May 1996, a sum of Ushs83 995 560 for and on behalf of and on account of the plaintiffs, the said sum being part of the proceeds out of the sale by the defendant as administrator of the estate of late Francis Drake Mayiga's property comprised in leasehold register Volume 643 folio 18, plot 31, Kampala road, Masaka municipality.

7. The defendant in breach of his duties and obligations to the plaintiffs as administrator and trustees has failed and/or ignored and/or refused to effect payment of the said sum to the plaintiffs, but has instead converted the same to his (defendant) use and has thus caused each and every plaintiff to suffer loss and damage and plaintiffs claim damages by reason thereof.

8. The plaintiffs demand from the defendant payment of Ushs83 995 560 as money had and received for and on behalf of and on account and in trust of the plaintiffs and which the defendant is not at all entitled to keep for himself.

9. The plaintiffs contend that whatever is complained of herein was carried out by the defendant's servants/agents/employees authorised agents acting in the course and within the scope of their employment with the defendant and as such the defendant is vicariously liable by reason thereof . . . Wherefor it is prayed that judgment be entered for the plaintiffs against the defendant for:

(*a*) Principal sum of Ushs83 995 560 and in the alternative the proportionate present monetary value of the plaintiffs' interests in the said property.

(*b*) General damages for conversion. Interest on the sums in (*a*) above at the rate of 50% per annum from 1 May 1996, till payment in full.

(*c*) Costs of the suit."

The gist of the appellant's defence to the suit was set out in the following paragraphs of the written statement of defence:

"5. The defendant states that this suit is misconceived and is bad in law so far as:

(i) The plaint discloses no cause of action.

(ii) The orders and declarations sought by the plaintiffs are the subject of criminal proceedings against the defendant's former employee Mr Lagara who acted fraudulently, illegally and out of the course of duties in converting and putting to his personal use money intended for the plaintiffs, see a copy of a report of the police investigation officer attached hereto and marked annexure "A".

(iii) The defendant has at all times material exercised due diligence and has never at anytime been negligent and/or been in breach of its duties and obligations.

7. Paragraph 5 is accepted insofar as it relates to the administration of the estate but the rest of the paragraph is denied and the plaintiffs will be put to strict proof thereof.

8. Paragraph 6 is denied and the plaintiffs will be put to strict proof thereof.

9. Paragraph 7 is denied and the defendant shall aver in reply that he has exercised due diligence and has never at any time been in breach of his duties and obligations and/or converted any money to his own use.

10. Paragraph 8 is denied and the plaintiffs will be put to strict proof thereof.

11. Paragraph 9 is denied and the defendant avers in reply that never has he authorised agents/servants/employees acting in the course of their employment performed any act or omission rendering him vicariously liable and the plaintiffs will be put to strict proof thereof."

About three years after the pleadings had closed the appellant applied for a third party notice to issue against the bank. The purpose of the third party notice was to join the bank as a party to the suit and to claim indemnity from it for the respondent's money, which had been lost in the bank. The trial Judge granted the application and the third party notice was served on the bank but it neither entered an appearance nor filed a defence. The suit was therefore tried with only the appellant and the respondents as parties to it. Three issues were agreed and framed at the commencement of the trial. They were:

"1. Whether the Administrator-General is responsible for the sale and distribution of the proceeds in respect of the property comprised in leasehold register 643 folio 18, plot 311, Kampala road, Masaka.

2. Whether the Administrator-General is liable to pay the proceeds therefrom and or the proportionate monetary value of the property to the plaintiffs.

3. Other remedies if any to the plaintiff."

The learned trial Judge heard evidence from both parties. In her judgment, she answered the first and second issues in the positive and ordered that the appellant should pay to the respondents:

(*a*) The current value of US dollars equivalent to Ushs83 995 560;

(*b*) Interest on the decretal sum at the rate of 6% per annum form 1 May 1986 till payment in full;

(*c*) The costs of the suit.

The appellant's subsequent appeal to the Court of Appeal was unsuccessful. That Court, however, varied the award of damages made by the learned trial Judge and ordered the appellant to pay to the respondents:

(*a*) Ushs424 891 540 being the amount of money the respondents would have received if the original sum of Ushs83 995 560 had been invested by the appellant in a fixed account at the interest rate of 10% per annum for 17 years.

(*b*) General damages of Ushs10 million for each of the ten respondents making a total of Ushs100 million.

(*c*) Interest of 6% per annum on the decretal amount of Ushs524 891 540.

(*d*) Cost of the suit in the High Court and of the appeal in the Court of Appeal.

This appeal is against that judgment.

There are three grounds of appeal, which are similar to those, which were argued for the appellant in the Court below.

The grounds are:

"1. The learned Justice of Appeal erred in law in upholding the trial Judge's finding that there was no evidence of negligence on the part of the Uganda Commercial Bank Limited when it accepted a cheque drawn and clearly marked 'pay the Administrator-General' to be banked on a bankruptcy account, which did not belong to the appellant.

2. The learned Justices of Appeal erred in law in not holding Uganda Commercial Bank Limited liable to indemnify the appellant for the loss he incurred.

3. The learned Justices of Appeal misdirected themselves by applying a wrong formular in awarding damages of Ushs524 891 540 which in the circumstances is excessive."

The memorandum of appeal then prayed for orders that:

(*a*) The judgments of the High Court and of the Court of Appeal be set aside.

(*b*) The appellant be indemnified by the Uganda Commercial Bank Limited, for the loss it incurred.

(*c*) The appellant be granted declarations that this Court deems fit under rule 1(3) of the Supreme Court Rules.

(*d*) The appellant be awarded the costs of this appeal and costs in the Courts below.

Both parties filed their respective arguments of the grounds of appeal. At the commencement of the hearing Mr *Francis Atoke*, Principal State Attorney, the counsel for the appellant filed a supplementary record of appeal with leave of the Court. It was a short one, containing only the trial Court's record granting the appellant's application for issue of a third party notice against the bank.

The appellant's written arguments in support of the appeal were filed by the Administrator-General's department. The appellant's submission regarding ground one reiterated the arguments on the ground one of the appeal in the lower Court. The arguments are that the evidence adduced at the trial by the appellant was sufficient to support a finding that the bank was negligent in allowing a cheque drawn in the appellant's name to be banked on a different account; evidence was provided by a report dated 24 February 1994, complied by deputy superintendent of police (DSP) JB Kaunda of Frauds CID headquarters, who was not called as a witness. The report was listed as one of the agreed documents at the trial.

The second paragraph of the report by JB Kaunda, DSP is the most relevant to the appellant's submission. It states:

> "Inquiries have shown that Mr Lagara banked the cheque on account number 3506 with UCB Kampala main branch (Bankruptcy Estate) on which he (Lagara) and Mr JB Mukasa were the only signatories. It should be noted that account number 3506 (Bankruptcy Estates) is for the Registrar-General of companies and has nothing to do with the Administrator-General's department. It should also be noted that the cheque in question had the payee clearly marked: 'credit Administrator-General' and the bank should not have accepted to credit this money on the account of a wrong payee that is bankruptcy estates."

It is contended in the appellant's submission that the CID report having been admitted in evidence by agreement of both parties; section 57 of the Evidence Act applied to it. There was therefore no requirement for the appellant to prove it by calling its author as a witness. Consequently, the CID report should have been relied on by the Honourable Justices of Appeal in determining whether the bank was negligent or not.

In view of the stated names of the payee of the cheque, the bank should have rejected payments of cash out of the cheque over the counter since the cheque was marked "credit Administrator-General." But instead the bank paid some cash over the counter out of the cheque to Lagara and Mukasa until the money was exhausted.

It is further contended in the appellant's submission that as Omara Obel (DW2) testified:

> "the cheque was fraudulently banked on a different account . . . if it had been banked in the Administrator-General's account, cash would not have been withdrawn."

The appellant relied on certain authorities in support of his case. These are: *Marrice Megrah and FK Ryder on Paget's Law of Banking*, Butterworths (9ed) at 89-90, regarding a banker's role in respect of trust accounts; *Commissions of Taxation v English, Scottish and Australian Bank Limited* [1970] AC 683, regarding the test of negligence; *AL Under Wood Limited v Bank of Liverpool* [1924] AC 776, in which a sole director of a company banked cheques meant for the

company on his private account to defraud the company's bankers and the recipient bank did not query the transaction and *House Property v London County and Westminister Bank* [1951] 84 LJ KB 1846.

The respondent's written submission in opposition to the appellant's submission was filed by Messrs *Lwere, Lwanyaga and Company Advocates*. On ground one of the appeal the respondent reiterated and adopted their arguments in the High Court and the Court of Appeal, since it is contended that, the appellant's ground is similar to the equivalent grounds of appeal in the Court below. The respondents now contended that an answer to certain issues would effectively and completely dispose of all the arguments made in the appellant's submission under ground one of the appeal.

The first is whether or not the bank was a party to the suit at the trial to the appeal in the Court below, and to this appeal. The respondents contended that although the appellant applied for a third party notice to issue against the bank, he omitted to take important steps to join the bank as a party to the suit. Nor was the bank ever made a party to the first appeal. It would therefore be inconsequential for this Court to find negligence on the part of the bank when it was not a party to the suit, to the first appeal and to the present one. I shall comment more on this point later when considering ground two of the appeal, to which it is more relevant.

Secondly, it was not framed as an issue for determination of the trial Court whether or not the bank was negligent in processing the cheque through account number 3506. Nor did the appellant apply to the trial Court under Order XIII, rule 1 of the Civil Procedure Rules to amend the agreed issues; or the trial Court on its own motion amend the issues. The respondent's contention therefore is that liability for negligence cannot be found against the bank as it was not an issue at the trial.

Thirdly, whether or not the appellant adduced sufficient evidence or any evidence at all at the trial of the suit to prove that the Bank was negligent in the way it dealt with the suit cheque. According to the respondents, no such evidence was adduced by the appellant. On the contrary, evidence available proved the plaintiff's negligence. The suit cheque was paid on account number 3506, which also belonged to the appellant; exhibit D2, the Banks paying in slip, clearly stated "credit Administrator-General". Whether or not there was a mis-posting of the cheque, it is contended that this was not evidence of negligence on the part of the Bank. It was the appellant's principal accountant, Lagara who banked the suit cheque on account number 3506. Lagara had the authority as an officer of the appellant's department to bank the cheque and did so in the course of his employment. If it was the wrong account and Lagara acted for his own benefit or for the benefit of this employer in the course of his duty, his employer, the appellant was vicariously liable for his action. See *Lloyd v Grace Smith* [1912] HL 716; and *Cassidy v Ministry of Health* [1951] 2 KB 343.

Fourthly, since both accounts 3506 and 3432 belonged to the appellant, it was not proved by evidence whether cheques written "credit Administrator-General" could not be banked on the bankruptcy estate account.

Fifthly, the appellant did not make a written complaint to the bank about the cheque having been banked on account number 3506 if indeed it was the wrong account. The cheque was banked on 13 May 1986, and money was withdrawn by Lagara and Mukasa for a period of two years, up to

March/April 1988. The respondents continued to check on the appellant during this period but were not informed of what had happened to the suit cheque. This means that the appellant could not have been ignorant of what had happened to the cheque. The beneficiaries of a trust fund, like the respondents in the instant case, are entitled to information relating to documents concerning the trust account. See *Re Londonderry Settlement* [1964] 3 All ER 855.

Regarding the CID report written by Kaunda DSP number five on the list of agreed documents, it is contended for the respondents that the report did not prove negligence on the part of the Bank. Documents merely agreed upon during the scheduling conference of a trial are not by themselves admissions within the meaning of section 57 of the Evidence Act. They are documents, which the parties have agreed to rely on during the trial. It is still left to the parties to adduce evidence on such documents because they have been admitted in evidence as exhibits.

It is contended that the learned Justices of Appeal were correct in rejecting the CID report dated 24 February 1994.

Finally, on ground one the respondents submitted that as this is a second appeal from the judgment of the first appeal Court upholding the trial Court's finding of fact, it is contended that this Court, as the second appellate Court should not interfere with the finding of fact unless it is established that the first appellate Court failed, in effect, to consider and weigh the evidence and further that the failure of the first appellate Court to evaluate the evidence is clearly apparent from the wording of its judgment. The respondents contended that in the instant case, the Justices of the Court of Appeal clearly and carefully weighed the evidence on record before they came to their conclusions. The Honourable Justices neither erred nor misdirected themselves when re-evaluating the evidence on record. See *Shantila Manaklal Ruwala v R* [1957] EA 570.

The respondents then prayed that this Court should disallow ground one of appeal.

In the Court of Appeal, Twinomujuni JA wrote the lead judgment, with which the other two members of the Court agreed. He dealt with the appellant's contention that the bank should have been found to have been negligent this way:

> "The central issue in this ground of appeal is whether bankruptcy account number 3506 belonged to the appellant or not. The appellant relies on a documentary report, which appears on the record of appeal as an investigation report of DSP JB Kaunda. The document is dated 24 February 1994. It is not marked as a Court exhibit and DSP Kaunda did not give evidence in Court. The report suggest that the account number 3506 did not belong to the Administrator-General but to the Registrar-General: it does not explain, however, how Lawrence Lagara and JB Mukasa both of whom were accountants of the appellant could have been signatories of the account. In my view, the report has no evidential value and its contents which were not testified in Court cannot be relied upon.
>
> The learned trial Judge did not make a specific finding on the matter. However, there is the evidence of DW3. Deputy Assistant superintendent of police (DASSP) AP Omara which though contradictory on the issue states, under cross-examination that 'this account was called bankruptcy estate. It was not an account of the Administrator-General as earlier stated.' This version is corroborated by an earlier report he had made after investigation in 1988 (exhibit D1) where he stated: 'The same cheque

> was fraudulently banked by Lawrence Lagara on 12 May 1986, on account number 3506 bankruptcy estate instead of account number 3432 Administrator-General. Although both accounts belong to the Administrator-General, it would be in order if the cheque was deposited on account number 3432.'
>
> The version of DASSP Omara (DW3) is further corroborated by the undisputed fact that Lawrence Lagara and JB Mukasa were both accountants of the Administrator-General. An examination of the account 3506 (exhibit D4) shows that it was a busy account where huge sums of money were being transacted. It was being operated by Lagara and Mukasa. The appellant never called any evidence to prove that the account was not being operated on its behalf or that it belonged to the Registrar-General as it was being suggested. I agree with counsel for the respondents that the trial Judge did not hold that UCB was not negligent. It was not a framed issue. She held however, that she did not find evidence of negligence on its part. There is overwhelming evidence showing that account number 3506 belonged to the appellant. Although it is remotely possible that Lagara and Mukasa could have opened it without authority of the appellant, an examination of the account disproves the hypotheses. Moreover the appellant could have easily disowned the account by producing evidence to the contrary."

This passage of the judgment in my opinion clearly indicates that the learned Justice of Appeal, as the first appellate Court, re-evaluated the evidence on record, as they were bound to do, and reached their own conclusions to the effect that account number 3506 belonged to the appellant and that the respondents did not receive their money banked on the account number 3506, due to the action of the appellant's employees, Lagara and Mukasa. The appellant is vicariously liable for the conduct of his employees in this matter. Whether the appellant's employees in question acted negligently or fraudulently within the scope of their employment, the appellant was liable to the respondents for their action: *Lloyd v Grade Smith and Company* [1912] AC 716 (HL).

The Court of Appeal's conclusions, in my opinion, are justified. The conclusions also agreed with the points made by the appellants in its submissions on ground one of the appeal and are consistent with the arguments made in the respondent's submission in opposition to the same ground of appeal.

Like the learned trial Judge, the learned Justice of Appeal did not find, rightly in my view, that the bank was negligent, because the appellant did not prove such negligence on the part of the bank.

It is a well-settled legal principle, embodied in rule 29(1) of the Court of Appeal Rules, that on a first appeal, the parties are entitled to obtain from the appeal Court its own decision on issues of fact as well as of law. Although in a case of conflicting evidence the appeal Court has to make due allowance for the fact that it has neither seen nor heard the witnesses. It must weigh the conflicting evidence and draw its own inferences and conclusions: See *Coghland v Cumberland* [1898] 1 Ch 704 (CA); and *Pandya v Republic* [1957] EA 336. The authorities also state that a second appellate Court will not interfere with the findings of fact by the first appellate Court. It will do so only where the first appellate Court has erred in law in that it has not treated the evidence as a whole to that fresh and exhaustive scrutiny which the appellant was entitled to expect. See also *Shartilal Manaklal Ruwala v R* (*supra*); *Kifamunte Henry v Uganda* [1999] 2 EA and *Bogere Moses v Uganda* criminal appeal number 1 of 1997 (SCU)(UR).

In the instant case, I am unable to fault the Court of Appeal in what it did as a first appellate Court in its re-appraisal of the evidence.

The appellant relied on certain authorities in support of his arguments on ground one. Regarding Maurice Megrah and FK Ryder on *Paget's Law of Banking* (*supra*) the appellant contended that the bank ought to have known that the Administrator-General's account was a trust account. As these were trust funds the bank would be held liable for parting with the money to a third person, even on a cheque if circumstances were such that it could have known it constituted a misapplication of the funds, albeit without personal benefit to the Bank. In my view that statement of the law is not relevant to the instant case, because the cheque was paid in the appellant's account and withdrawn by the appellant's employees. The bank did not pay the monies to a third party.

I am unable to find all the decided cases in the law reports cited in the appellant's submission. Consequently, I am unable to comment on them.

In the circumstances ground one of the appeal should fail.

Ground two of the appeal, in my view, is really the same as ground one, except that it is worded slightly differently. For that reason the appellant's arguments in his submission in support thereof appear to be repetitions of the arguments it made in respect of ground one. The arguments were also well considered by the Court of Appeal. In the circumstances, I think that the reasons and conclusions I have made in this judgment regarding ground one equally apply to the second ground. I shall, however comment only briefly for the sake of clarification on the issue of the third party notice which the trial Court granted on the appellant's application.

The appellant contends that by virtue of the third party notice, the bank should have been held liable for loss of the respondent's money, which they did not receive.

The third party notice was issued under rule 14 of Order I of the Civil Procedure Rules. It was issued against Mr Lagara and the Bank. The grounds of the third party notice were that:

> "(*a*) The defendant claims to be indemnified by the third parties against liability because the Administrator-General has never either himself and/or through his authorised agents/servants received any money from anybody and converted the same to his use.
>
> (*b*) It was Mr Lagara and the Uganda Commercial Bank who received and converted to their use the money mentioned in the plaint."

According to the affidavit of service, only the Bank was served with the third party notice. Lagara was not. The Bank did not enter appearance, nor file a defence. In the result, under the provisions of rule 15 of Order I of the Civil Procedure Rules, the Bank was deemed to admit the validity of the decree obtained against the Administrator-General as the defendant and the Bank's own liability to contribute or indemnify, as the case may be, to the extent claimed in the third party notice.

The Bank having defaulted in entering appearance, it appears that the appellant could have proceeded under rules 16 and 17 of Order I of the Civil Procedure Rules to obtain the remedy of indemnity against the bank, but it has not. Maybe it is not yet too late for the appellant to consider doing so. This is only a suggestion for it to consider in its absolute discretion.

In the circumstances, the second ground of appeal should also fail.

On the third ground of appeal the appellant's submission is that the learned Justices of Appeal misdirected themselves by applying a wrong formula called Future Value Interest Factor (FVIF), and awarded damages which were excessive. The interest rate of 10% on which the formula was based was too high. Further the Currency Reform Statute should have applied to the principal sum payable to the respondents by a reduction of two zeros therefrom. It is also submitted for the appellant that the award of Ushs100 million to the respondents as general damages was too excessive. It is contended that award of damages should have been to put the aggrieved parties in the position in which they should have been, had it not been for the wrong they had suffered, but not to make profit out of their misfortune.

Under the third ground of appeal the respondents' advocates submitted that the award to the respondents of Ushs424 891 540 by the Court of Appeal was not excessive. The formula which the Court of Appeal relied on reaching that figure, namely "Future Value Interest Factor (FVIF)" is scientifically calculated and can be accessed on computer Processed Finance Tables. Since this is a matter which can be scientifically proved the respondent's advocates urged us to take judicial notice of it under sections 54 and 55(2) of the Evidence Act, and apply the formula and the rate of interest of 10% per annum as the Court of Appeal did. The respondent's advocates submitted that the provisions of the Currency Reform Statute 1987, do not apply to the instant case. Firstly, because it was a temporary legislation and not meant to have permanent status. That is why it was subsequently repealed in 2000. Secondly, because section 2 of the statute related to transactions after the statute came into force, not before that. In the instant case when the statute came into force, on 15 May 1987, the respondent's money had already been misappropriated. Thirdly an application of the Currency Reform Statute would have reduced the amount of Ushs83 995 560 which had been due to the respondents to Ushs839 956. This would have resulted in a travesty of justice and would have caused great injustice to the respondents, many of whom were minors at the time their interest was abused by the appellant.

The Court of Appeal held the view that the provisions of the Currency Reform Statute (repealed) did not apply to the instant case. I agree with that view.

It is trite law that an appellate Court should not interfere with an award of damages by a trial Court unless the award is based on an incorrect principle or is manifestly too low or too high. In the instant case, the learned Justice of Appeal interfered with the award of damages by the trial Court and awarded a lower figure. Be that as it may, my opinion is that the sum Ushs424 891 540, representing the purchase price of Ushs93 995 560 of the commercial building, which the appellant should have paid to the respondents is still excessive. This state of affairs arose because the honourable Justices of Appeal used the FVIF formula in assessing what should be awarded to the respondents. In my view, the respondents would be fairly compensated if the award to them was assessed by subjecting the sum of UShs93 995 560 to a factor of 10% per annum at simple interest for the period of 17 years. This is the period from 1986, when the suit cheque was paid to the appellant's account to May 2003, when the Court of Appeal varied the trial Court's award of damages to the respondents. This plus the principal would yield the amount payable under this item to Ushs226 788 012 (of which Ushs142 792 452 is accrued interest).

The award of general damages of Ushs10 million to each of the respondents, making a total of Ushs100 million, awarded by the Court of Appeal to all the respondents was, in my opinion fair in the circumstances of the case. It is not excessive. I would not interfere with that item of the award. In the result I would make a total award of Ushs326 788 012, payable to the respondents. This sum should carry interest at 6% (the Court rate) from 7 July 2003, the date of the Court of Appeal judgment till payment in full. The third ground of appeal should, therefore succeed.

In the result, this appeal should partially succeed. I would set aside the orders of the Court of Appeal and substitute them with the following:

(*a*) The appellant should pay to the respondents Ushs326 788 012, plus interest at 6% from 7 July 2003, until payment in full.

(*b*) The respondents should have three quarters of the cost of this appeal and of the costs in the trial Court and the Court of Appeal.

Tsekooko JSC: I have had the advantage of reading in draft the judgment prepared by my learned brother, the honourable Oder JSC, and I agree with the orders he has proposed in his judgment.

Because of the opinion of Justice Twinomujuni JA regarding the evidential value of a report compiled by DSP JB Kaunda, I would like to say something on the essence of the holding of a scheduling conference before trial in civil suits and the consequence of agreements or disagreements reached on certain matters by parties at such scheduling conference.

In the Court below, the honourable Mr Justice Twinomujuni JA wrote the lead judgment with which the other members of the Court concurred. While discussing submissions made on the first ground of appeal, the learned Justice of Appeal referred to a document dated 24 February 1994 compiled by DSP JB Kaunda, of CID, Frauds section, which was among the documents agreed upon on 4 November 1999 between the parties at the scheduling conference that was prescribed over by the learned trial Judge, Bbossa J. In his judgment, the learned Justice of Appeal referred to the document in the following words:

> "It is not marked as a Court exhibit and DSP Kaunda did not give evidence in Court. The report suggested that the account number 3506 did not belong to the Administrator-General but to the Registrar-General. It does not explain, however, Lawrence Lagara and JB Mukasa both of whom were accountants of the appellant could have been signatories of the account. In my view, the report has no evidential value and its contents which were not tested in Court cannot be relied upon."

With the greatest respect to the learned Justice of Appeal, I think that this was a misdirection on the evidence. As a matter of fact the document was admitted in evidence during the scheduling conference as part of "agreed documents" number five entitled:

> "A report from the criminal investigation department police headquarters reference CID/8/Fraud dated 7 March 1994."

The report was sent by the CID Headquarters to the Administrator-General, (the appellant) under cover of letter reference CID/8/FRAUD dated 7 March 1994 to which that report was attached as stated in the first paragraph of the said letter. The trial Court record shows that at the scheduling conference, five documents were admitted and the trial judge numbered them as exhibits "1 to 5". A scrutiny of the numbering of the "agreed documents" shows that the said covering letter together with the report constitute exhibit 5.

I would like to point out that the scheduling conference must have been held in accordance with the requirements of Order XB, rule 1 of the Civil Procedure Rules. As far as relevant, that rule states:

> "1 (1) (*a*) Within seven days after the order on delivery of interrogatories and discoveries has been made under rule 1 of Order X; or
>
> (*b*) Where no application for interrogatories and discoveries has been made under rule 1 of Order X, then within twenty-eight days from the date of the last reply or rejoinder referred to in subrule (5) of rule 18 of Order VIII,
>
> the Court shall hold a scheduling conference to sort out points of agreement and disagreement, the possibility of mediation, arbitration and any other form of settlement . . ."
>
> (2) Where the parties reached an agreement, orders shall immediately be made in accordance with rules 6 and 7 of Order XIII."

Rules 6 and 7 of Order XIII empower a Court to, *inter alia*, frame issues on agreed matters and enter judgment after due trial.

As I understand these provisions, their purpose is to enable parties to agree on non-contentious evidence such as facts and documents. The agreed facts and documents thereafter become part of the evidence on record so that they are evaluated along with the rest of the evidence before judgment is given.

Indeed in as much as they are admitted without contest, the contents of such admitted documents can be treated as truth, unless those contents intrinsically point to the contrary, and if they are relevant to any issue, their admission disposes of that issue because the need for its proof or disproof would have been disposed of by the fact of admission. Having perused the report of DSP Kaunda, I cannot say that that report had no evidential value. The trial Judge may have omitted to pronounce herself on the report but that cannot be a basis for an appellate Court to ignore such evidence.

Fortunately, in this appeal, even if the report was taken into account as evidence, it would not affect the result of our decision. The pity of it, of course, is that the Administrator-General's officers, for unclear reasons, chose to be lukewarm about the role of the Uganda Commercial Bank in the scam of the diversion of such colossal sums of money. I will not go beyond the opinion expressed in his judgment by Oder JSC, on the point of how the appellant can go about the matter.

Odoki CJ, Karokora and Kanyeihamba concurred in the judgment of Oder JSC.

For the appellant:
Mr F Atoke Principal State Attorney

For the respondent:
Lwere, Lwanyaga and Co

Apondi v Canuald Metal Packaging
[2005] 1 EA 12 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of ruling:	11 May 2005
Case Number:	288/04
Before:	Waki JA

Sourced by: LawAfrica

Summarised by: C Kanjama

[1] Appeal – Leave to appeal as pauper – Extension of time to file appeal – Principles in determining whether to allow pauper appeal – Rules 4 and 112 – Court of Appeal Rules.

[2] Civil procedure – Pauper litigation – Principles to consider.

Editor's Summary

The applicant sought extension of time to file his appeal and also leave to appeal as a pauper. He had been an employee of the respondent until he was summarily dismissed subsequent to suffering some grievous injury. He instituted a suit in a lower Court and was awarded a certain sum as damages. He made a further application for review after executing the initial decree, and succeeded in obtaining an enhanced decree to the limit of the pecuniary jurisdiction of the said Court, which he also eventually executed. Some years later, he filed an application seeking a further enhancement of the decree which was this time unsuccessful. He appealed to the High Court and subsequently filed a second appeal. The applicant claimed that he had used all his previous decrees to settle his medical bills and he was a pauper unable to afford the costs of litigation.

The Court considered the principles to apply in extending time to file an appeal and in granting leave for litigation as a pauper.

Held – It is settled that in general the matters which the Court takes into account in deciding whether to grant extension of time are first the length of the delay, secondly the reason given for the delay, thirdly the chances of the appeal succeeding and fourthly the degree of prejudice to the respondent if the application is granted. Whether the matter is of public importance is also a relevant consideration. *Mariaria and others v Matundura* [2004] 2 EA, *Mutiso v Mwangi* [1999] 2 EA and *Murai v Wainaina* (No. 1) [1982] KLR 38 followed.

For an application to appeal as a pauper to succeed, the appellant must satisfy the Court that he lacks the means to pay the required fees or deposit the security for costs and that the appeal is not without reasonable possibility of success. If the allegations do not show a cause of action, or even where they show a cause of action but the Court was satisfied that the appellant could not recover more than nominal damages, the Court will be justified in refusing permission because it would be unjust to the other party who would have to incur substantial costs which might not be recoverable. In this case, the applicant had not shown that his cause of action was likely to succeed.

Application dismissed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Mandevia v Rongwe African Co-operative Union Limited [1958] EA 524

Mariaria and others v Matundura [2004] 2 EA – **F**

Murai v Wainaina (No. 1) [1982] KLR 38 – **F**

Mutiso v Mwangi [1999] 2 EA – **F**

Ruling

Waki J: By his notice of motion dated 18 November 2004 Joseph Odhiambo Apondi (Apondi) seeks two substantive orders: firstly under rule 112(1) of the Court of Appeal Rules (the Rules) for leave to appeal as a pauper; secondly under rule 4 of the Rules, for extension of time to file an appeal against the judgment of the superior Court in High Court civil application number 291 of 1997.

What is the background to the application?

It emerges from the few annexures to the application, as supplemented by a comprehensive reply from the respondent, that some twenty years ago, Apondi was an employee (machine operator) of the respondent company which was formerly known as Metal Box Kenya Limited, changed its name to CMB Packaging Kenya Limited or Canuald Metal Packaging (K) Limited, and is now Nampok Kenya Limited. Nothing turns on the name of the company, which will henceforth be referred to as "the respondent." But on 2 August 1985, whilst Apondi was alighting from the respondent's vehicle, he fell on hard surface, a culvert block, and sustained blunt injuries to the lumber spine. He also sprained his wrist but that healed quickly. It would appear that as a result of the back injury, Apondi was not very effective in his work and it was recommended by doctors that he should be retired on medical grounds. He was aged 33 years at the time. Some four years thereafter on 10 October 1989, the respondent terminated Apondi's services summarily but he was aggrieved by that termination. In October 1990 he filed suit in Sheria House, being Senior Resident Magistrates Court case number 7599 of 1990 pleading that he was wrongly laid off and seeking a declaration that he was entitled to retirement on medical grounds with full benefits. He also sought payment of general damages and terminal benefits in accordance with his contract of service. That matter was heard and determined on 8 June 1993 when the learned Magistrate B Rashid (Mrs) Senior Resident Magistrate (as she then was) awarded some KShs30 910 as general damages for extreme mental anguish and torture over the summary dismissal plus one month's salary in lieu of notice, KShs3 091. The respondent was not happy with that award and was in the process of querying the basis and quantum of it when a decree was issued for execution in the sum of KShs50 302-75. Auctioneers pounced on them and the respondent had to pay the full decretal sum plus auctioneers' charges of KShs5 504-75. It appeared to the respondent that it would not be cost effective to pursue the matter further and so they let it lie. That was in August 1993.

Three months later Apondi was back in the same Court and in the same matter claiming that his full entitlement had not been calculated. He sought a further sum of KShs831 474. The subordinate Court had no jurisdiction to award such a sum and so Apondi attempted to have the matter translated to the High Court but the application was successfully resisted. However, the attempt by the respondent to resist the revisiting of the same matter in which a decree had been issued and executed on the ground that the trial Magistrate was *functus officio* was unsuccessful. The magistrate, despite protests by the respondent, proceeded to hear the matter again and in a second judgment made on 14 October 1994 awarded some KShs169 090 which together with the earlier award amounted to the upper limit of her civil jurisdiction of KShs200 000. Once again, the respondent protested and manifested the intention to appeal

against both decisions in High Court civil appeal number 256 of 1995. Before that process could be put underway, the second decree was issued and attachment was levied, forcing the respondent to deposit in Court the decretal sum KShs184 845-80 plus auctioneer's charges of KShs24 298. A stay order put in place pending the appeal was subsequently vacated on application by Apondi, and the money was released to him. That was in November 1995. Once again the respondent found little commercial sense in proceeding with the appeal and it was withdrawn hoping the matter would rest where it lay.

But not so. One year later in November 1996 Apondi applied before the same subordinate Court for review of the judgment relating to the computation of his retirement benefits. That application was however dismissed on 19 March 1997 by Okwengu Senior Principal Magistrate (as she then was).

Apondi was not satisfied with that ruling and so filed an appeal to the High Court, being High Court civil application 291 of 1997 on 29 October 1997. It is that appeal that was heard before Aganyanya J and was dismissed on 10 July 2002. A notice of appeal to this Court was filed on 22 July 2002 but no record of appeal was filed for the next two years or so until the application now before me was filed on 18 November 2004. Until the filing of the application by Apondi in person, he has always been represented in Court by different advocates since 1989.

The prayers sought herein call for exercise of the Court's discretion which is in terms unlettered. But as in all cases where the Court has to exercise its discretion, there must be some reasonable basis in fact or in law to warrant the orders made or as it is sometimes put, it has to be exercised judicially and not whimsically or capriciously. In considering the prayer for extension of time under rule 4, for one, the parameters are well set on authority.

> "it is also well settled that in general the matters which this Court takes into account in deciding whether to grant extension of time are first the length of the delay, secondly the reason given for delay, thirdly (possibly) the chances of the appeal succeeding, and fourthly the degree of prejudice to the respondent if the application is granted."

See *Mariaria and others v Matundura* [2004] 2 EA and *Mutiso v Mwangi* [1999] 2 EA. Whether the matter is of public importance is also a relevant consideration, see *Murai v Wainaina (No. 1)* [1982] KLR 38.

As for application for institution of the appeal as a pauper, rule 112 requires that the Court be:

> ". . . satisfied on the application of an appellant that he lacks the means to pay the required fees or to deposit the security for costs and that the appeal is not without reasonable possibility of success."

As was held by Spry Acting J (as he then was) in *Mandevia v Rongwe African Co-operative Union Limited* [1958] EA 524, a Tanzanian case considering a similar rule, the Court is entitled to reject such application where the allegations do not show a cause of action and, even if the applicant had a cause of action but the Court was satisfied that he could not recover more than nominal damages, the Court might well be justified in refusing permission because it would be unjust to the other party who would have to incur substantial costs which might not be recoverable.

The onus is thus on the applicant to satisfy me on the requirements of rule 112 as a basis exercise of my discretion.

With those principles in mind I now approach the application before me. Apondi cites three grounds for seeking the two prayers, namely:

> "(*a*) That since the applicant sustained the injuries which gave rise to the suit the subject matter of the proposed (*sic*), he has constantly been under medical care and all little money he had has been exhausted in medical hospital (*sic*) expenses.
>
> (*b*) That since the appeal was dismissed by the High Court; I became sick and should not afford to proceed with appeal.
>
> (*c*) That I believe I have sufficient grounds to warrant my appeal to succeed (*sic*)."

He expounds in his affidavit in support, and further affidavit filed with leave of the Court, that he fell sick soon after the ruling of Aganyanya J on 10 July 2002 and he could not follow up the matter until 27 May 2003 when he applied for copies of the proceedings and judgment. The uncertified proceedings and judgment were ready for collection on 8 July 2003 but he did not collect them. The certified copies of decree, judgment and proceedings were ready for collection by 7 April 2004 but again he did not collect them. The reason for not collecting them, he explains is because he had no income since he lost his job with the respondent and the amount he was paid was spent in medical treatment. He has tried to borrow money to no avail and has sought assistance from his member of parliament without success. Only the Thika Town Clerk assisted him in November 2004 when he paid for and collected the proceedings and judgment. In support of the delay he produced a medical report from one Dr Kirtee B Patel dated 12 April 2004 to confirm that the said doctor had seen him three times since 1985 and that he was advised to have bed rest. He also produced three other medical reports made in 1986 and 1989 to confirm his back injury.

As for his appeal being meritorious, Apondi annexed a draft memorandum which blames the learned Judge of the superior Court for failing, to consider judgment of B Rashid (Mrs) Senior Resident Magistrate (not Okwengu Senior Principal Magistrate) and for failure to consider some instructions purportedly given to the parties by Amin J (retired) on an application for leave to appeal out of time which instructions are nowhere exhibited on record.

With all those explanations however, learned counsel for the respondent Mr *Kiragu* did not think either the delay of two and a half years since the judgment of the superior Court was delivered on 10 July 2002 or the impecuniosity of the applicant, were sufficiently explained. The notice of the appeal filed on 22 July 2002 was deemed to have been withdrawn by dint of rule 82(*a*) of the Court of Appeal Rules, That meant the final disposal of the litigation which had persisted for about 15 years and it would be prejudicial to the respondent if the matter was to be reopened. As a matter of public policy, he submitted, there must be an end to litigation and in any event, the matter is purely personal to the applicant and raises no issues of public importance. Mr *Kiragu* further submitted that the applicant did not fall under the category of a pauper. He has already been paid a considerable amount of money in two decrees, and has lost several applications whose costs he has not settled. Finally, there were no prospects of the intended appeal succeeding.

I have carefully considered the application and the submissions put forth before me. I am sceptical about the manner in which the applicant expended the considerable amount of money paid to him in settlement of two decrees issued by the subordinate Court. He has nothing to show that all the money went

into medical expenses and nothing remained for pursuit of the appeal he intended to file. The medical reports produced were issued in 1986 and 1989 and only one was issued in April 2004 merely confirming the earlier injuries in 1985 and the advice on bed rest in the two years proceeding the report. Surely the applicant did not stay in bed for two-and-a-half years! It is not apparent that his disability curtailed his mobility. I am willing nevertheless to give him the benefit of doubt that he was financially unable to pay Court fees. Does the applicant show that the intended appeal is reasonably meritorious or that there will no prejudice to the respondent? On both counts he fails to persuade me.

Without expressing definite views on the intended appeal, which is the province of the full Court, I think the applicant is unduly optimistic about his success. From the records available, it would appear that indeed it is the respondent who has better reasons to complain about the evident irregularities committed by the subordinate Court than the applicant's quarrel with the High Court's dismissal of his matter. That the respondent's appeal was withdrawn in the interests of mitigating losses cannot be held against them. The subordinate Court could only award claims that were within its jurisdiction and it will be difficult, in my view, to reverse the finding of the superior Court in that respect. A party is at liberty to choose a forum which has the jurisdiction to adjudicate his claim, or choose to forgo part of his claim, and he cannot be heard to complain about that choice after the event. It would otherwise be oppressive and prejudicial to other parties and an abuse of Court process to allow litigation by instalments. The respondent here has settled two decrees emanating from the same Court. The matter has hovered around the Court for the last 15 years and in the interests of justice it must be brought to an end.

In the result I am not inclined to exercise my discretion in favour of the applicant. I dismiss the application with no order as to costs.

For the applicant:
Information not available

For the respondent:
Mr Kiragu

Asea Brown Boveri Ltd v Bawazir Glass Works Ltd and another
[2005] 1 EA 17 (CCK)

Division:	Milimani Commercial Courts of Kenya at Nairobi
Date of ruling:	7 April 2005
Case Number:	1619/00
Before:	Emukule J
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Advocate – Remuneration – Attendance fees in the High Court – Higher and lower scale – Principle regarding the scale upon which costs shall be taxed.

[2] Advocate – Remuneration – Instructions and getting-up fees – Whether they could be chargeable

more than once – Whether the time lapse between one hearing and another may justify an increase in instruction fee – Schedule VI – Advocate's Remuneration Order.

[3] Advocate – Remuneration – Taxation reference – Principles governing taxation of costs and reference to the High Court from the taxing officer's decision.

[4] Words and Phrases – "Hearing" – "Trial" – Though there may be several days of hearing there is but one trial commencing from the first date of hearing.

Editor's Summary

The applicant lodged a taxation reference objecting to the reduction of its bill of costs. The applicant contended that it was entitled to charge twice for getting-up fees because the hearing was adjourned and did not proceed on the first day it came up for hearing, and there was a long time interval between the first and next hearing date, thus necessitating fresh preparation for trial. Further, the applicant argued that attendance fees should have been allowed on the higher scale as the matter had been defended.

The respondent objected to an increase in the bill. It contended that instructions and getting-up fees are awardable only once in the trial, and that a further increase of instructions fees on account of subsequent hearings may be allowed but only upon an order of the trial Judge following an application to that effect. It was also contended that attendance fees were to be granted on the lower scale unless there was a special order of the trial Court.

Held – A taxation reference would be entertained either on a point of law or on the ground that the bill as taxed was manifestly excessive or inadequate. The instructions fee should cover the advocate's work, the taxing master should tax each bill on its merits, the taxing officer should exercise his discretion judiciously and in accordance with the applicable Schedule, and the taxing officer should also consider the public policy. *Kassim v Habre International Ltd* [2001] 1 EA 98 adopted.

Instructions fees are static, that is chargeable only once. In view of this, it is difficult to accept the argument that the getting-up fee, which is based on the instruction fee, is somewhat elastic and is chargeable on every day to which the case is adjourned, more so if there is a long period between two hearing dates. There is neither such rule in law or principle. *First American Bank of Kenya Ltd v Shah* [2002] 1 EA 64 considered.

High Court attendance fees, unlike those in the lower Court, are only chargeable on the higher scale where a judge has certified that the matter be taxed on the said scale because of the nature, importance, difficulty or urgency of the case or issues involved in the case. Where no such order is made under paragraph 50A of the Advocate's Remuneration Order, the costs shall be taxed in accordance with the lower scale.

Per curiam – Unless there is an order for a retrial of a matter, there is but one trial of a suit and many hearing days to which such trial may be adjourned. To say otherwise is complete heresy of the rules of procedure.

Application fails and is dismissed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

First American Bank of Kenya Ltd v Shah and others [2002] 1 EA 64 – **C**

Kassim v International Ltd [2001] 1 EA 98 – **A**

Raichand Limited v Quarry Services EA Limited [1972] EA 162

SRD Souza and others v CC Ferr and others [1960] EA 602

Steel Construction Petroleum Engineering (EA) Ltd v Uganda Sugar Factory [1970] EA 141

Thomas James Arthur v Nyeri Electricity Undertaking [1961] EA 492

Ruling

Emukule J: This ruling relates to an application by way of a chamber summons brought under paragraph 11 of the Advocates (Remuneration) Order, and all enabling provisions of the law and procedure. The application seeks three orders:

1. That the decision of the taxing officer (the Honourable Meoli Deputy Registrar) taxing the Bill in this case in the sum of KShs521 860-20 be reviewed and/or set aside;
2. That the Court be pleased to substitute its own decision therefore taxing the Bill in the sum of KShs747 080-70;
3. That costs of this application be provided for.

The application is supported by the affidavit of Anthony Thiongo *Njoroge* and the grounds following:

1. That the taxing officer erred in law and in fact to consider substantially and apply the provisions of Schedule VI paragraph 2 of the Advocates (Remuneration) (Amendment) Order 1997 when taxing items 101 and 116 of the plaintiff's Bill of Costs.
2. That the taxing officer erred in law and in fact in failing to find that the plaintiff's advocates perhaps had prepared for trial on 14 January 2003 and 10 June 2003 and is therefore entitled to the instructions fees claimed in items 101 and 116 of the Bill of Costs.
3. That the taxing officer erred in law and in fact in taxing items 103 and 104 of the Bill of Costs in the lower scale yet this is suit where a denial of liability. All costs are charged on the higher scale where there is a denial of liability.
4. And on other grounds that may be raised at the hearing of the application.

In the event there were no other grounds raised during the hearing of the application, Mr *Njoroge* learned counsel for the applicant told the Court that there are four items in dispute in the decision of the taxing officer. He grouped them into two clusters. The first cluster concerned items 101 and 116 of the Bill of Costs. These items related to the instruction fee and the fee for getting-up. The second cluster concerned items 103 and 104. These items related to charges for attendances before the judge.

On items 101 and 116, learned counsel for the applicant told the Court that there was a considerable lapse of time between the dates when the suit was first heard (item 90) and he had to get-up for trial, that is to say, the 30 May 2002 and the subsequent hearing dates on 14 January 2003 (item 101), and again on 10 June 2003 (item 116). Counsel accepted that getting-up fees were allowed as charged under item 90. He however claimed that by virtue of the considerable lapse of time, he was entitled to further getting-up fees under items 101 and 116 on the respective dates to which the hearing of the case had been adjourned.

In support of this proposition counsel referred to the proviso set out in paragraph 2 of Schedule VI to the Advocates (Remuneration) (Amendment) Order of 1997 which provided for an increase in fees. The applicant did not seek such an increase. He sought an additional getting-up fee. In his understanding the proviso for increase of fee in the event of an adjournment clearly means that there is a separate getting-up fee each time a matter is adjourned.

In disallowing these items (101 and 116) counsel submitted, the taxing officer erred in principle. In this counsel's view, getting-up fees are chargeable each time the matter is adjourned and heard on another date. Counsel relied upon the case of *Kassim v Habre International Ltd* [2001] 1 EA 98. I shall refer to both this case, and the proviso to Schedule VI(2) of the Advocates (Remuneration) (Amendment) Order in due course.

The second cluster of the applicant's reference concerned attendance fees on items 103 and 104 and charged for attendance before the Judge in the course of the hearing of the case. Counsel submitted that these costs be charged on the higher scale as provided under Schedule VI, rule 2(*d*) of the Remuneration Order.

In summary, counsel submitted, the Bill of Costs was taxed at KShs521 800-20 and asked the Court to review the Bill of Costs to KShs722 500-70 by awarding getting-up fees and attendance costs on those items. Counsel for the applicant accepted that the instruction fee was static and that for these matters under reference, the Court should not refer the matter back to the taxing officer, but should rather deal with the matter applying the case of *First American Bank of Kenya Ltd v Shah and others* [2002] 1 EA 64 at 66 and decide the matter conclusively.

Mr *Shah*, learned counsel for the defendant/respondent opposed the application. Counsel submitted that there was a substantial difference between the expression "trial" and "hearing". There is usually only one trial before the Court during which the parties' respective claims are tested in evidence and cross-examination. The trial of a case may be adjourned, and heard from day to day. Each of the days to which a case is adjourned is just but a day in the trial of the suit. It does not constitute a new trial. Counsel cited the Goldenberg Inquiry, and posited that if the advocates were to charge for every session, the fees would be both astronomical and incalculable.

In his submission Schedule VI paragraph 2, provides for a single fee. It is clearly so from the proviso (ii).

There were three days of trial. There was no request for 15% increase over the final fee. There was no error of principle of law. The taxing officer was absolutely correct in allowing one instruction fee. The Court could only interfere with the decisions of the taxing officer if there was an error of principle. So far as the instruction fee was concerned there was no error of principle. The applicant is in essence asking for doubling of the instruction fees and this is not allowable.

An advocate gets up for hearing only once. There is no authority for the proposition that getting-up fees are chargeable for each hearing.

On items 103 and 104, regarding attendances at the hearing Mr *Shah*, learned counsel for the respondent, submitted that an advocate is entitled to a fee on the higher scale where a judge has certified that matter to be taxed on the higher scale on the ground of complexity of the issues involved. No such orders were made

in the present case. The taxing officer took this point in her ruling, and there is no error on the face of the record as it relates to items 19-22 inclusive which both parties agreed to be taxed off.

In summary counsel reiterated his submissions that a suit proceeds to hearing only once, unless the Court orders a re-trial. In this case the suit proceeded to trial once, and hearing proceeded for several days. Submitting that there was pressure on the Courts, but to accept submissions by counsel for the applicant that there was trial for several days, and therefore entitling him to getting-up fees on each occasion, would not be in the interests of justice.

There was no error in principle by the learned taxing officer. In the event however that the Court finds an error of principle on the face of the record in the decision of the learned taxing officer, it should substitute its own decision for that of the taxing officer.

In support of his submission Mr *Shah*, referred the Court to the cases of (1) *SRD Souza and others v CC Ferr and others* [1960] EA 602 and (2) *Thomas James Arthur v Nyeri Electricity Undertaking* [1961] EA 492.

Having set out *in extenso* the rival parties' submissions, I shall now proceed to render my opinion and decision on the matter.

The applicant's contention is that the learned taxing officer erred in principle and in law by refusing:

(*a*) To allow the applicant getting-up fees on three separate occasions, and

(*b*) To allow the attendances costs on the higher scale.

The authorities are more or less settled that this Court will interfere with the discretion of the learned taxing officer on clear grounds, that the taxing officer has erred on principle. (*Steel Construction Petroleum Engineering (EA) Ltd v Uganda Sugar Factory* [1970] EA 141) or that the fee awarded was manifestly excessive as to justify an inference that it was based on an error of principle. In the case of *Kassim v Habre International Limited* (*supra*) the Supreme Court of Uganda restated the matter as follows:

"(*a*) A reference on tax action would be entertained either on a point of law or principle or on the ground that the bill of costs as taxed was in all the circumstances manifestly excessive or manifestly inadequate.

(*b*) The principles governing the taxation of costs by a taxing officer were that:

(i) The instruction fee should cover the advocate's work including taking instructions and preparing the case for trial and appeal.

(ii) The taxing master was expected to tax each bill on its merits.

(iii) The value of the subject matter had to be taken into account.

(iv) The taxing master's discretion had to be exercised judicially and not whimsically or capriciously.

(v) Though the successful litigant was entitled to a fair reimbursement, the taxing master had to consider the public policy such that costs were not to be allowed to a level that would confine access to the Courts to the wealthy while at the same time, the general level of remuneration of advocates had to be such as to attract recruits to the profession as per *Raichand Limited v Quarry Services EA Limited* [1972] EA 162.

(vi) The taxing officer had to tax the Bill of Costs in accordance with the applicable Schedule."

According to the matter at hand, the parties' counsel are agreed that the instruction fee at item 90 was properly allowed. Both counsel agreed and applied

the case of *First American Bank of Kenya Ltd v Shah and another* (*supra*) that the instruction fee was static, that it is chargeable only once.

Having agreed on or accepted this basic tenet, it is hard to find support for argument such as the one by the applicant's counsel, that notwithstanding this basic and accepted principle on taxation of advocate costs, that the getting-up fee which is based upon the instruction fee is somewhat elastic and is chargeable on every day to which the case is adjourned more so, if the periods between one hearing date to another are long. There is neither such rule in law or principle. Schedule VI(2) is in these terms:

> "2. Fees for getting-up or preparation for trial.
>
> In any case in which a denial of liability is filed or in which issues for trial are joined by pleadings a fee for getting up and preparing the case for trial shall be allowed in addition to the instruction and shall not be less than one third of the instruction fee allowed on taxation.
>
> Provided that:
>
> (i) This fee may be increased as the taxation officer considers reasonable but it does not include any work comprised in the instruction fee."

This rule clearly states that the getting-up fee shall not be less than one third of the instruction fee allowed on the taxation. The taxing officer having allowed instruction fee (on item 90) of the Bill of Costs and a getting-up fee thereon (on item 101), no other fee is allowed, consequently the taxing officer arrived at the correct decision, and did nor err either in law or principle.

A fee upon attendance before the judge either in Court or in chambers is governed by Schedule VI(1) paragraph 7(*d*). Unlike Schedule VIIA(1) Costs of proceedings in Subordinate Courts, which in a note thereto states that "Lower Scale" shall be applied in all cases where no defence or other denial of liability has been filed and "Higher Scale" shall be applied in all other cases, no such similar provision exists in Schedule VIA(7), explaining the application of the "Ordinary" and "Higher Scale." The terminology in the two Schedules VI and VII is not only different but different rules apply to their use or application. Schedule VII applies to fees in the lower or subordinate Courts. Schedule VI applies to fees in the High Court. It is a mistaken belief that because, the Higher Scale applies automatically to all defended suits in the subordinate Courts that the same rule or concept applies to defended suits in the High Court.

The application of the costs on "Higher Scale" to proceedings in the High Court is governed by paragraphs 50 and 50A of the Advocates (Remuneration) Order which provides as follows:

> "50. Subject to paragraphs 22 and 58 and to any order of the Court in the particular case, a bill of costs in proceedings in the High Court shall be taxable in accordance with Schedule VI and unless the Court has made an order under paragraph 50A, where Schedule VI provides a higher and lower scale the costs shall be taxed in accordance with the lower scale.
>
> 50A. The Court may make an order that costs are to be taxed on the higher scale in Schedule VI on special grounds arising out of the nature and importance or difficulty or urgency of the case; the higher scale may be allowed either generally in any cause, or matter or in respect of any particular application made or business done."

The effect of these paragraphs 50 and 50A of the Advocates (Remuneration) Order is that an advocate is entitled to tax his bill on a higher scale only in cases

where a judge has certified that the matter be taxed on a higher scale because of the nature, importance, difficulty or urgency of the case or issues involved in the case. Where no such order is specifically made under paragraph 50A aforesaid, the costs shall be taxed in accordance with the lower scale.

Once again, the learned taxing officer arrived at the correct decision in her decision on items 103 and 104 of the Bill of Costs and taxed the same on the lower scale as is required by paragraph 50 of the Advocates (Remuneration) Order.

In the result therefore, the application herein has absolutely no merit at all. However before concluding my remarks, I would like to concur with Mr *Shah* learned counsel for the defendant/respondent that unless there is an order for a retrial of a matter, there is but one trial of a suit and many hearing days to which such trial may be adjourned. To say otherwise is complete heresy to the rules of procedure – Order XVI, rule 1:

> "that in any suit in which a hearing of evidence has once began, the hearing shall be continued from day to day until all the witnesses in attendance have been examined unless the Court finds the adjournment of the hearing beyond the following day to be necessary for reasons to be recorded."

So therefore although there may be several days of hearing, there is but one trial of case commencing from the first date of hearing and continuing for two or more days until all the number of witnesses called and/or recalled have been heard, and their evidence recorded pending the consideration thereof by the Court in the case of rendering its opinion or judgment.

In the result therefore the taxing officer made the correct decisions in respect of all the items 101, 116, 103 and 104 in contention and did not err either in principle or in law. The applicant's reference has therefore no merit at all, and the same is dismissed with costs on the higher scale.

For the applicant:
Mr Njoroge Thing'o instructed by *Nderitu & Partners*

For the defendant/respondent:
Mr CR Shah instructed by *AR Kapila*

Attorney-General v Ssemogerere and another (2)
[2005] 1 EA 23 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	2 September 2004
Case Number:	3/04
Before:	Odoki CJ, Oder, Tsekooko, Karokora, Mulenga, Kanyeihamba JJSC and Ogoola AJSC
Sourced by:	LawAfrica
Summarised by:	M Kibanga

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[1] Constitution – Constitution stating when Act to be enacted – Act enacted after period prescribed – Provision in Act constitutional – Whether such provision can cure defect.

[2] Parliament – Standing committee – Act pursued before being sensitised by standing committee – Whether Act invalid.

[3] Referendum – Referendum held on the basis of a void Act – State affairs run for few years order the results of referendum.

[4] Statute law – Act of Parliament accomplishing its purpose – Suit founded on the Act being spent – Whether suit bad because Act spent before suit is determined.

Editor's Summary

The respondents filed a petition in the Constitutional Court seeking several reliefs including a declaration that the Referendum (Political Systems) Act of 2000 was null and void for being inconsistent with articles 90(1), (3)(*a*), (*e*) and 271 of the Constitution of Uganda.

It was also contended in the petition that the Referendum (Political Systems) Act of 2000 was not discussed by a Parliamentary standing committee and was therefore unprocedurally passed and unconstitutional. The petition was opposed. The Constitutional Court granted the declaration sought.

The appellants appealed to the Supreme Court on several grounds and asked that the Constitutional Court decision be set aside.

Held – The Referendum (Political Systems) Act was in force when the petition was filed and although it was spent after the purpose was accomplished, the cause of action was not extinguished and its effects were not erased.

The passing of the Referendum (Political Systems) Act of 2000 on 7 June 2000 was in contravention of article 271(2) because, contrary to that article, the Act was passed long after it was due. The retroactive provision of the Act to validate the actions taken under it does not sure its invalidity for contravening the Constitution.

The whole house of Parliament could not be a standing committee under article 90(2)(*a*) of the Constitution. Parliament has the power to make laws without referring the bill to a standing committee. It is not a mandatory requirement under article 90 for Parliament to refer its bills to a standing committee before enacting laws. To declare a referendum a nullity when the affairs of the State have been run on its basis for four years would be unwise.

Appeal succeeded in part.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Ssemogerere and others v Attorney-General [2000] LLR 294 (SCU)

Judgment

Odoki CJ, Oder, Tsekooko, Karokora, Mulenga, Kanyeihamba JJSC and Ogoola AJSC: This is an appeal against the decision of the Constitutional Court of Uganda dated 25 June 2004, whereby the petition filed by the respondents challenging the validity of the Referendum (Political Systems) Act of 2000, was granted, and the Act was declared void.

The respondents alleged in the petition that they were affected and aggrieved by the following matters being inconsistent with the Constitution:

"(*a*) That the Referendum (Political Systems) Act of 2000 (the Act) declared passed by the Parliament of Uganda on 7 June 2000, was passed in contravention of article 90(1) and (3)(*a*) and (*e*) of the Constitution of Uganda and rules 99 and 100 of the Rules/Procedure of the Parliament of Uganda in that the Bill was of neither discussed by the relevant Committee of Parliament or were recommendations thereon duly made.

(*b*) That section 2 of the Act is calculated to confer power upon Parliament to make the Political Systems Referendum law outside the time prescribed under article 271(2) of the Constitution thus effecting an amendment of article 271(2) without following the Constitutional Procedures laid down in articles 259, 260 and 261 and as such the provisions of section 2 are in contravention of those articles of the Constitution.

(*c*) That the passing of the Act on 7 June 2000 being just about one year before the expiry of the term of the first Parliament elected under the 1995 Constitution, was in contravention of article 271(2) of the Constitution, and deprives the voters including the Petitioners of their right thereunder.

(*d*) That in contravention of article 75 of the Constitution, the Act promotes and establishes one political party, the Movement, to the extent that the Act failed to comply with article 73 of the Constitution but instead incorporated the Electoral Commission Act number 3 of 1997 and the Parliamentary Election (Interim Provisions) Statute number 4 of 1996 which deny political parties recognised under article 269 in the referendum, prescribed under article 271 of the Constitution and in consequence the Act is inconsistent with, and is in contravention of, articles 20, 21, 29(1)(*a*), (*b*), (*d*) and (*e*), 43(2)(*a*) and (*c*), 73 and 269, of the Constitution and clauses II(i), (iv), (v) and (vi) of the National Objectives and Directive Principles of State Policy.

(*e*) That the omission by Parliament to enact the Political Organisations Bill under article 269 allowing political party activities has so thoroughly corrupted the democratic process that the fundamental right to free and fair elections cannot be provided in the Referendum in contravention of article 69 of the Constitution.

(*f*) That section 27 and the whole Act is inconsistent with article 271 of the Constitution in that contrary to the provisions of article 271 the Act is parallel to the Referendum and Other Provisions Act of 1999 which by the 7 June 2000 was still on the statute books of Uganda unrepealed by Parliament.

(*g*) That to the extent that the Act has the intendment to nullify the decisions of the Supreme Court of Uganda in constitutional appeal number 1 of 2000 between the Petitioners and the Attorney-General and to interfere with the trial of constitutional petition number 3 of 1999 between the same parties, the Act was passed in contravention of articles 28, 92 and 128(2) of the Constitution.

(*h*) That the Act is further unconstitutional in that it violates the obligations of Uganda to respect the fundamental rights to free speech, free and fair elections, freedom of association and freedom of assembly embodied in various international human rights conventions to which Uganda is a party or with which Uganda is otherwise obligated to comply and in the premises the Act is in contravention of articles 20, 52(*h*) and 286 of the Constitution and clause XXVIII of the National Objectives and Directive Principles of State Policy of the Constitution."

The respondents stated further that by reason of the matters stated in paragraph 1(*a*), (*b*), (*c*), (*d*), (*e*), (*f*), (*g*) and (*h*) above, the Referendum (Political

Systems) Act of 2000 is unconstitutional and must be struck down as null and void.

The respondents prayed for the following declarations:

"(i) That the passing of the Referendum (Political Systems) Act of 2000 by Parliament in one day, 7 June 2000, without first referring it to the relevant standing committee in Parliament was inconsistent with article 90(1) and (3) of the Constitution.

(ii) That the enactment of a Political System Referendum law which denies political parties of the constitutional right to participate in the referendum to choose a political system under article 271 but instead institutes the Movement as the only recognised political system before the referendum is held and in contravention of articles 20, 21, 29, 73, 75 and 269 of the Constitution is null and void and ineffectual.

(iii) That Parliament was incompetent to enact the Referendum (Political Systems) Act of 2000 upon expiry of the time prescribed by the Constitution and thereby reduce the time allowed for canvassing, the law so enacted is null and void.

(iv) That the passing of the Referendum (Political Systems) Act of 2000 was outside the competence of Parliament to the extent it was calculated to alter the judgment or decisions of the Courts between the Petitioners and Government.

(v) That the Referendum (Political Systems) Act of 2000 is a colourable legislation whose objectives and effect is to outlaw political organisations permanently except the Movement political organisation and institute a one-party State and consequently the Act is in contravention of the Constitution."

The petition was accompanied by affidavits sworn by each of the respondents and one other affidavit sworn by Honourable Daniel Omara Atubo, in support of the petition.

The appellant filed an answer to the petition in which he stated that both the Referendum (Political Systems) Act of 2000 and the referendum which was held pursuant to the Act were enacted and organised in accordance with the Constitution. The answer to the petition was supported by the affidavits sworn by Mr Joseph *Matsiko*, Senior State Attorney and the Rt Honourable Edward K Ssekandi, Speaker of Parliament.

The petition, which was filed on 22 June 2000, was not heard until 28 April 2004, over three years after the referendum on political systems had been held on 29 June 2000. At the hearing of the petition, the following issues were framed for determination:

"1. Whether or not the Referendum (Political Systems) Act of 2000 is law and can be challenged.

2. Whether or not the procedures applied in enacting the Referendum (Political Systems) Act of 2000 were consistent with the procedures prescribed under the Constitution of Uganda.

3. Whether or not the Act was made in contravention of article 271 of the Constitution of Uganda.

4. Whether or not the absence of a law regulating the activities of political organisations as provided under article 269 of the Constitution contravened article 69 by perpetuating a political environment under which the people of Uganda could not make a free and fair choice of the political system as to how they should be governed.

5. Whether or not any relief should be granted."

After hearing the petition, the Constitutional Court, by a unanimous decision allowed the petition with costs to respondents and made the following declarations:

> "(*a*) The passing of the Referendum (Political Systems) Act of 2000 by Parliament on 7 June 2000 was in contravention of articles 89, 90(1) and (3) of the Constitution for failure to follow the voting procedure set out in article 89 and failure to refer the bill to the relevant standing committee of Parliament as prescribed in the Constitution.
>
> (*b*) Holding the referendum under the Referendum (Political Systems) Act of 2000 before passing a law under article 269 to set free political organisations contravened article 69.
>
> (*c*) Parliament had no authority to pass the Referendum (Political Systems) Act of 2000 after the expiry of the period stated in article 271(2), without first amending that provision of the Constitution."

The appellant being aggrieved by the above decision has appealed to this Court on fourteen grounds of appeal.

During the hearing of this appeal, the appellant was represented by Honourable Amama *Mbabazi*, Attorney-General, assisted by Mr Joseph *Matsiko*, Principal State Attorney. The respondents were represented by Mr GS *Lule*, assisted by Mr Joseph *Balikuddembe*.

At the commencement of the hearing Honourable Amama *Mbabazi* indicated to the Court that he would abandon the first ground of appeal which complains that the learned Judges of the Constitutional Court erred in law and in fact in not writing a judgment of the Court. At the conclusion of his submissions, Honourable *Mbabazi* informed the Court that he had already covered ground 12 and he would not argue ground 13.

These grounds are as follows:

> "12. The learned Judges of the Constitutional Court erred in law and fact in failing to evaluate the evidence on record and thereby came to wrong conclusions and decisions;
>
> 13. The learned Judges of the Constitutional Court erred in law and in fact being biased against the respondent and thereby came to wrong conclusions."

We think that the learned Attorney-General took the right course of action on these grounds.

The remaining grounds were argued by counsel for the appellant in five batches, as follows:

(*a*) Grounds two and three together;

(*b*) Grounds four, seven and eight together;

(*c*) Grounds nine, 10 and 11 together;

(*d*) Grounds five and six together; and

(*e*) The rest of grounds separately.

We heard this appeal from 9 to 11 August 2004 and we reserved our judgment to be given on notice. In view of the urgency and importance of the issues involved in the appeal, we have found it appropriate to announce our decision in the appeal and reserve the detailed reasons for our decision, to be given later on notice.

In rendering our decision we propose to adopt the same approach with regard to the consideration of the grounds of appeal in batches as adopted by the

learned Attorney-General, with slight variation. We shall also alter the order of considering the batches by considering grounds four, seven and eight after grounds five and six and grounds nine, 10 and 11 in that order. Finally we shall deal with the relief of declaration separately.

The second and third grounds of appeal state as follows:

> "2. The learned Judges of the Constitutional Court erred in law and in fact in holding that the expired Referendum (Political Systems) Act of 2000 can be challenged as being unconstitutional.
>
> 3. The learned Judges of the Constitutional Court erred in law and in fact in hearing and deciding on a petition challenging a non-existing dispute on the basis of a non-existing law."

The Referendum (Political Systems) Act number 9 of 2000 was enacted as an Act of Parliament and was in force on 22 June 2000 when the respondents filed a petition in the Constitutional Court, alleging that the Act was passed in contravention of diverse provisions of the Constitution. The subsequent expiry of the Act, after its purpose was accomplished, did not erase its effects, nor did it extinguish the cause of action to which the enactment gave rise. The Constitutional Court was seized of a live and existing dispute and did not err in holding that the Act can be challenged in Court under article 137 of the Constitution. We find no merit in grounds two and three, which must fail.

Grounds five and six are that:

> "5. The learned Judges of the Constitutional Court erred in law and in fact in holding that the Referendum (Political Systems) Act of 2000 was passed in contravention of article 271(2) of the Constitution.
>
> 6. The learned Judges of the Constitutional Court erred in law and in fact in holding that the Referendum (Political Systems) Act of 2000 amended article 271(2) of the Constitution."

Under its transitional provisions in Chapter 19, the Constitution commands Parliament under article 271, to enact laws to give effect to the provisions in that article. The laws to be enacted were to ensure *inter alia* that:

> (*a*) Two years before the expiry of the term of the first Parliament elected under the Constitution any person is free to canvass for public support for a political system of his or her choice for purposes of a referendum, as provided in clause 2 of that article.
>
> (*b*) During the last month of the fourth year of the term of the first Parliament, a referendum is held to determine the political system the people of Uganda wish to adopt.

The term of the first Parliament commenced on 2 July 1996 and expired on 1 July 2001. The time by which every person was to be free to canvass for a political system of his or her choice that is two years before expiry of that term, as provided in article 271(2), was 2 July 1999, and the last month of the fourth year of the said term was June 2000. According to its long title, the Referendum (Political Systems) Act 9 of 2000, was enacted "to make provision for the holding of the referendum required to be held under article 271". The passing of the Act on 7 June 2000, therefore, was in contravention of, and inconsistent with article 271(2) because, contrary to the time prescribed in that article, the Act was passed long after it was due, and it sought to abridge the period for canvassing for the purposes of the referendum. The provisions of the Act in section 2, to give the Act retrospective effect, and in section 29 to validate actions taken and statutory instruments made in good faith could not cure the

invalidity of the Act. We therefore hold that the Constitutional Court did not err in holding that the Act was passed in contravention of article 271(2) of the Constitution. Grounds five and six must also fail.

Grounds 9, 10 and 11 are framed as follows:

> "9. The learned Judges of the Constitutional Court erred in law and in fact in holding that a committee of the whole house is not a standing committee of Parliament;
>
> 10. The learned Judges of the Constitutional Court erred in law and in fact in holding that the passing of the Referendum (Political Systems) Act of 2000 contravened article 90 of the Constitution;
>
> 11. The learned Judges of the Constitutional Court erred in law and in fact in holding that the voting method adopted by Parliament in passing the Referendum (Political Systems) Act of 2000 contravened article 89 of the Constitution."

We find no merit in ground nine. The Constitutional Court was right in holding that the committee of the whole house is not a standing committee of Parliament. Though it may be permanent, it does not possess the characteristics of a standing committee as specified in article 90(2)(*a*) of the Constitution. Ground nine therefore fails.

However, there is merit in grounds 10 and 11. First, it is our considered opinion that the Constitutional Court erred in holding that the passing of the Referendum (Political Systems) Act of 2000 contravened article 90 by reason of the omission to refer the bill for that Act, for scrutiny and recommendations by any standing committee. Parliament has power under article 79(1) to make laws on any matter for the peace, order, development and good governance of Uganda. We find nothing in article 90 which makes it mandatory for Parliament to refer a bill to a standing committee before exercising that power. In our view, the provision in article 90(3) that makes it a function of standing committees to discuss and make recommendations on all bills laid before Parliament, only empowers a standing committee to do so in the course of assisting Parliament to discharge its functions efficiently. The provision cannot be construed as a restriction on, nor as providing a condition precedent for Parliament in the exercise of its legislative power.

Secondly, with regard to the method of voting in Parliament, we find that the Constitutional Court erred in holding that Parliament contravened article 89 in passing the said Act. It appears that the Constitutional Court misconstrued the decision of this Court in *Ssemogerere and others v Attorney-General* [2000] LLR 294 (SCU). We reiterate what the learned Chief Justice said herein:

> ". . . the procedure provided in article 257A does not apply to the amendment of the Constitution where a two-thirds majority of all members of Parliament with voting rights is required to pass such amendment. The procedure of voting by 'Ayes' and 'Noes' is incapable of providing accuracy and certainty that the necessary numbers of members of Parliament required to pass such important legislation have been obtained. *The procedure may be applicable in deciding questions where only simple majority of members of Parliament present and voting is required in non-contentious matters, as provided under article 89(1) of the Constitution.*" (emphasis supplied)

Accordingly, grounds 10 and 11 succeed.

Grounds four, seven and eight are as follows:

> "4. The learned Judges of the Constitutional Court erred in law and in fact in holding that the Referendum which was held on 29 June 2000 was invalid.
>
> 7. The learned Judges of the Constitutional Court erred in law and in fact in holding that the 2000 Referendum on choice of political systems was held in contravention of article 69 of the Constitution.
>
> 8. The learned Judges of the Constitutional Court erred in law and in fact in holding that the people of Uganda in a referendum held on 29 June 2000 never adopted a political system under article 69 of the Constitution."

On the face of it, the question whether the referendum held on 29 June 2000 was valid or invalid was not expressly raised in the petition, which was filed before the referendum was held, nor were the pleadings amended at anytime subsequently to expressly include it. Consequently, the question did not expressly feature among the framed issues. However, in our view, it was implicit in the pleading in paragraph 1(*e*) of the petition, wherein it was alleged that omission to enact a law allowing political party activity would inhibit the holding of a free and fair referendum and thereby contravene article 69. This led to framing of the fourth issue, which reads thus:

> "(*d*) Whether or not the absence of a law regulating the activities of political organisations as provided under article 269 of the Constitution contravened article 69 by perpetuating a political environment under which the people of Uganda could not make a free and fair choice of the political system as to how they should be governed."

Clearly, in answering this issue it was inevitable to consider if the referendum held on 29 June 2000 contravened article 69. Accordingly, we hold that although it was not expressly framed as an issue, the question was properly before the Constitutional Court, and that the Court was not in error to consider and make a decision on it.

We have considered if, in the absence of a valid law passed pursuant to article 271(4), the referendum can be construed as validly held on authority of articles 69 and 271(3). Article 69 generally entrenches the right of the people of Uganda to adopt a political system of their own choice, while article 271(3) fixed the period in mandatory terms, when they would for the first time exercise that right in a referendum. In our view, it could be so construed if the referendum was free and fair in compliance with the stipulation in article 69. The Constitutional Court found that because of the legal regime prevailing at the material time, political parties were not free to canvass for the multiparty political system to which they subscribed, and concluded that the referendum held on 29 June 2000 could not have been free and fair as required by article 69. While we would not fault that finding as a postulate, we hold that it was not proper basis for granting the relief of the declaration sought. Notwithstanding the uncontradicted affidavit evidence of Honourable Zachary Olum to the effect that he and other members of the Democratic Party were, on a number of occasions and in diverse places, prevented by the police from holding public meetings, the actual conduct of the referendum and the results thereof were not challenged nor inquired into to determine if it was, or was not free and fair. As a consequence of the referendum, the movement political system was retained in place, and the affairs of State have been conducted on that basis for over four years. To declare the referendum a nullity would have far reaching consequences. In our view, these were compelling circumstances in respect of which

the Constitutional Court ought to have exercised its discretion to decline granting the second declaration. To the extent that grounds four, seven and eight relate to the second declaration, they succeed.

Ground 14 states:

> "14. The learned Judges of the Constitutional Court erred in law and in fact in holding that the doctrine of prospective over-ruling could not apply to the petition."

In view of our decision on the foregoing grounds, we do not find it necessary to give a decision on this ground.

In the result, by unanimous decision, this appeal partially succeeds.

Declarations and orders

1. In view of our holding on grounds nine, 10 and 11, the first declaration made by the Constitutional Court, to the effect that the Referendum (Political Systems) Act of 2000 contravened articles 89 and 90, cannot stand. we set it aside.
2. In view of our holding on grounds five and six, the third declaration made by the Constitutional Court is upheld but we modify it to read thus:

   > "The enactment of the Referendum (Political Systems) Act of 2000 on 7 June 2000 was inconsistent with provisions of article 271(2) and rendered that Act null and void."
3. In view of our holding in respect of grounds four, seven and eight we set aside the second declaration made by the Constitutional Court to the effect that the holding of the referendum contravened article 69, and substitute it with an order declining to make a declaration in that regard.
4. We order that each party bears its costs of this appeal but the respondents get half of the costs in the Constitutional Court.

For the appellant:
Honourable A Mbabazi, Attorney-General and *Mr J Matsiko*, Principal State Attorney

For the respondents:
Mr GS Lule and *Mr JBM Balikuddembe* instructed by *Gandesha & Co* and *Balikuddembe & Co*

Bukachi v Republic
[2005] 1 EA 31 (CAK)

Division:	Court of Appeal of Kenya at Eldoret
Date of judgment:	18 February 2005
Case Number:	163/03
Before:	Tunoi, Waki and Onyango Otieno JJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

[1] Criminal procedure – Prosecution – Police prosecutor below the rank of assistant inspector – Whether trial a nullity – Appropriate orders to be made.

Editor's Summary

The appellant was convicted of the offence of assault causing actual bodily harm. The case was prosecuted by a police constable below the rank of assistant inspector. The question arose as to whether the said trial was a nullity, and if so, what would be the appropriate orders to be made.

Held – The police constable was neither a private prosecutor, nor a qualified public prosecutor. The trial was therefore a nullity and would be quashed. In view of the time which had elapsed since the trial, and the difficulty of obtaining the witnesses and exhibits for a retrial, the appropriate order would be to order an acquittal of the appellant. *Elirema v Republic* [2003] 1 EA 50 followed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Elirema v Republic [2003] 1 EA 50 – **F**

Judgment

Tunoi, Waki and Onyango Otieno JJA: Learned State counsel Ms *Oundo* concedes this appeal and rightly so, since the original trial was a nullity.

The matter commenced before Eldoret Court on 7 August 2001 when a plea was taken on a charge of assault causing actual bodily harm contrary to section 251 of the Penal Code. It was alleged in the particulars that the appellant did, on the 14 day of June 2000 at Mbacho village in Musembe Sublocation, Chakalini location in Lugari District within the Western Province, unlawfully assaulted Geoffrey Ateshora thereby occasioning him actual bodily harm. The appellant pleaded "not guilty" to the charge. Appearing for the prosecution on that date was a police prosecutor Inspector Musungu. After several mentions, the matter was placed before A Kariuki (DMII Professor) for hearing. The record shows that the person appearing for the prosecution that day was one police constable Simiyu who led four witnesses in presenting their evidence. On the resumed hearing on 31 May 2001, police constable Simiyu led another three witnesses in giving their evidence and also cross-examined defence witnesses. He finally made his submissions at the end at the trial and attended Court to receive the judgment on 28 November 2001.

All this police constable Simiyu did in purported exercise of his duties as a public prosecutor. There was no pretence that he was a private prosecutor since no order was sought or made to that effect under section 88(1) of the Criminal Procedure Code.

Since the decision of this Court in *Elirema v Republic* [2003] 1 EA 50 which was made on 5 August 2003, such trials have fallen by the wayside. As in this case, part of the trial there was conducted by the Court through two police corporals who purported to exercise the powers of public prosecutors presumably appointed under section 85 of the Criminal Procedure Code. This Court held:

> "In Kenya, we think, and we must hold that for a criminal trial to be validly conducted within the provision of the Constitution and the Code, there must be a prosecutor, either public or private, who must play the role of deciding what witnesses to call, the order in which those witnesses are to be called and whether to continue or discontinue the prosecution. . . . For one to be appointed as a public prosecutor by the Attorney-General one must be either an advocate of the High Court of Kenya or a person employed in the public service not being a police officer below the rank of an assistant inspector of police. We suspect the rank of assistant inspector must have been replaced by that of an acting inspector but the code has not been amended to conform to the Police Act. Kamotho and Gitau were not qualified to act as prosecutors and the trial of the appellants in which they purported to act as public prosecutors must be declared a nullity. We now do so with the result that all the convictions recorded against the two appellants must be and are hereby quashed and the sentences are set aside."

After conviction by the trial Court the appellant challenged the decision before the superior Court (Omondi Tunya J) but the issue of the legality of the trial was neither raised nor considered. The appeal was dismissed on other grounds. Before us however, it has arisen as a point of law which we cannot ignore since a valid decision can only emanate from a lawful tribunal which has jurisdiction to decide a matter before it. The trial Court clearly conducted an unlawful trial as stated above. We must therefore declare it a nullity with the result that the conviction recorded against the appellant is quashed and the sentence is set aside.

The natural consequence of such decision is to consider whether a retrial of the appellant is necessary. Mrs *Oundo* did not apply for one and indeed expressly stated that the State was not intending to proceed further in the matter. She was apprehensive, owing to the time which has elapsed since the original trial, that the witnesses and exhibits would be available for such retrial. We think in the circumstances of this case, such fears are reasonably held. In the event, we make no order for a retrial. If the fine imposed by the trial Court was paid then it should be refunded.

For the appellant:
Information not available

For the respondent:
Mrs Oundo, State counsel instructed by Attorney-General

Chelashaw v Attorney-General and another
[2005] 1 EA 33 (HCK)

Division:	High Court of Kenya at Nairobi
Date of ruling:	5 November 2004
Case Number:	898/03
Before:	Nyamu, Ibrahim JJA and Makhandia AGJ
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Constitution – Procedure – Constitutional reference – Criminal proceedings pending in subordinate Court – Requirement under rules for applicant to first make an informal application to presiding magistrate in criminal trial – Whether from the record of proceedings the applicant had

complied – Whether trial Magistrate had framed issues for determination – Effect of failure by trial Court to frame issues for determination – Whether the omission is a mere irregularity or a fatal defect – The Constitution of Kenya (Protection of Fundamental Rules and Freedoms of the Individual) Practice and Procedure Rules.

[2] Constitution – Procedure rules – Constitutional issues framed and three-judge bench empanelled by the Chief Justice prior to raising of a preliminary objection – Whether there can be estoppel against the rules of procedure enacted by the Chief Justice by virtue of the Constitution – Whether the empanelling of the bench by the Chief Justice precluded the said bench from dealing with preliminary issues.

Editor's Summary

The applicant was charged with an offence of abuse of office and arraigned before the newly-established anti-corruption Courts. He eventually sought to challenge the charges and prosecution by lodging the present constitutional application. Pursuant to the procedural rules contained in the Constitution of Kenya (Protection of Fundamental Rules and Freedoms of the Individual) Practice and Procedure Rules (the Chunga Rules), the applicant first gave notice of an intended informal application to the presiding trial Magistrate. However, the Court record showed that when the matter came up for hearing, the applicant sought leave to enjoin himself in other pending constitutional references rather than to lodge his own constitutional reference. The trial Magistrate gave the required leave and directed that the applicant file the necessary notices before the High Court.

As the Chief Justice had not given leave for the pending constitutional references dealing with the same question to be consolidated, the applicant then filed an independent constitutional reference in which he framed the issues for determination by the High Court. After appearing before the Chief Justice, a bench of three judges was appointed to deal with the matter. The respondents then made a preliminary objection contending that the application was bad in law and incurably defective as it did not comply with the procedure set out under the Chunga Rules, particularly rules 3 and 7. These rules provided that the trial Magistrate had discretion to grant leave for filing of a constitutional reference in the High Court, and that only questions framed pursuant to that grant of leave could be considered by the Court, unless further leave of Court be granted. It was further argued that non-compliance with the Chunga Rules was an incurable defect.

The applicant in response filed an affidavit giving a different version of the events that transpired before the trial Magistrate. He further argued that the trial Magistrate had effectively granted leave, that the said decision was unappealable, that the respondent was estopped from raising the objection as he had participated in framing the issues for determination, that the Chief Justice had already exercised his discretion to set up a Constitutional Court and therefore the said objection could not be considered, and finally that any procedural defects could not be the fault of the applicant and were in any case not fatal.

The Court considered the rival submissions.

Held – It was evident from the Court record that the applicant did not informally or otherwise apply to the trial Magistrate for leave to file a reference to the High Court to determine any constitutional question. The Court record did not show that the applicant referred to his notice of intention to make an informal application for a constitutional reference, nor that any leave to file a constitutional reference was given. This was a Court of record and hence the applicant's failure to request or obtain leave was indisputable.

The framing of questions for determination by the Constitutional Court could only be done by the applicant once the leave of the trial Court had been obtained. As this had not been done, the purported "questions" had not been regularly framed. As rule 7 of the Chunga Rules provided that the Court could only deal with properly framed issues, the applicant's constitutional reference was not in compliance with the Rules.

Rules made under constitutional powers are superior and stand above those made under say a statute. These rules should be given more regard and force. The rules did not contain a provision allowing departure or variation nor granting the High Court discretion to waive their application. For the Court to exercise its inherent jurisdiction to waive the rules, it must be moved by a formal application, or it must be shown that the procedural rules were in violation of the Constitution. Hence, non-compliance with the said rules rendered the application defective, invalid and a nullity *ab initio*. *Ngare v Attorney-General* [2004] 2 EA followed; *Speaker of the National Assembly v Karume* [1992] LLR 3070 (CAK) followed.

Per curiam: The preliminary objection could properly be entertained even after the Chief Justice had considered the matter and empanelled a Constitutional bench. The Chief Justice was acting administratively, and he did not deal with the issues of merit in the application.

The fact that the respondent herein was aware of the issues framed did not estop him from raising the preliminary objection. There can be no estoppel against the application of a statute. This principle applies to rules or by-laws enacted under the Constitution or under statute.

Constitutional application dismissed with costs.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Ngare v Attorney-General and another [2004] 2 EA – **F**

Speaker of the National Assembly v Karume [1992] LLR 3070 (CAK) – **F**

Ruling

Nyamu, Ibrahim JJA and Makhandia AGJ: The applicant William Birir Arap Chelashaw was on 11 April 2003 charged with two counts of abuse of office under the provision of section 101(1) of the Penal Code (Chapter 63) Laws of Kenya. He was arraigned before the newly established anti-corruption Courts in anti-corruption criminal magistrate case number 27 of 2003.

In an endeavour to challenge the said charges and prosecution the applicant filed a previous application in the High Court being High Court miscellaneous application number 693 of 2003 in which he intended to contest the constitutionality of the criminal charges in the aforesaid criminal case. The respondent, the Republic of Kenya through the Attorney-General took up a preliminary objection in the said application which was heard by Justice Kubo who upon consideration dismissed the application for non-compliance with the provisions

of the Constitution of Kenya (Protection of Fundamental Rights and Freedoms of the Individual) Practice and Procedure Rules of 2001 which came into force *vide* Legal Notice number 133 of 2001. The ruling was delivered on 13 October 2003.

It is against this background that the applicant on 21 November 2003 lodged the present application, being miscellaneous criminal application number 898 of 2003. Perusal of the supporting affidavit demonstrates that this application was filed with the same purpose as that in High Court miscellaneous application number 693 of 2003 but now according to the applicant in compliance with all the applicable laws and procedures and in particular the Constitutional Practice and Procedure Rules referred to herein above.

The said applications is by way of originating summons and is made, *inter alia*, under section 84 of the Constitution and the Constitution of Kenya (Protection of Fundamental rights and Freedoms of the Individual) Practice and Procedure Rules of 2001 which for convenience we may refer to as the Chunga Rules as they were made by the Chief Justice at the time, retired Chief Justice Bernard Chunga in exercise of the powers upon his office by section 84(6) of the Constitution of Kenya. In the said application the applicant claims that his fundamental rights and freedoms have been and are being breached and are likely to continue being breached and seeks the interpretation of the Constitution and the law, the consideration of substantial questions of law which have arisen and for the determination of 14 listed questions of alleged violation of his fundamental rights and freedoms and alleged contravention of certain provisions of Chapter V of the Constitution as more specifically set out in the application.

For the purposes of this stage of the proceedings and in particular the issue before the Court which we will come to shortly, it is not necessary to replicate the said listed questions. But to give a picture of the nature of the application, we hereby refer to a sample of the said questions.

1. That the Anti-Corruption Court, presiding over Nairobi Chief Magistrate criminal case number ACC 270 of 2003 at the time of plea taking on 25 April 2003 together with all subsequent proceedings herein was not in a Court established by the Constitution, statute or Parliament in exercise of powers under section 65 of the Constitution and therefore not a Court established by law or a Court of competent jurisdiction as provided or envisaged by section 77 in the Constitution and that the said Court does not have the requisite legal attributes to try the accused under the Constitution, the Magistrates Court Act Chapter 10, the Anti-Corruption and Economic Crimes Act 2003 or under any other law.
2. That the offences the applicant is charged with as stated in the charge sheets on their own or together with the particulars or together with the statements are not sufficiently and lawfully defined so as to disclose any offence under the Anti-Corruption and Economic Crimes Act 2003 or under the Kenya Tourist Development Corporation Act Chapter 382 or under Permanent Secretary to the Treasury (Incorporation) Act Chapter 101 or under the Exchequer and Audit Act Chapter 412 or any other such law or statute.
3. That the accused person’s constitutional rights and freedoms have been, are being and are likely to be contravened under the doctrine of retrospective effect of the law as the act or the omission he is charged with in

> the present criminal proceedings does not, and did not, at the time it took place (if they can be construed to have taken place at all) constitute any offence under any law.

These should be able to give an idea of the nature of constitutional challenges intended by the application.

The hearing of the originating summons herein dated 21 November 2003 was set down for hearing before us sitting as a Constitutional Court on 5, 6 and 7 October 2004. After disposal of other preliminary applications, the Attorney-General through the Director of Public Prosecutions, Mr Phillip *Murgor* indicated that he intended to raise a preliminary objection to the application. The Attorney-General formally filed grounds of objection/opposition on 6 October 2004 and presented it at the hearing on 7 October 2004. The said objection reads as follows:

> "Take notice that the Attorney-General/respondent shall raise grounds of objection/opposition on points of law at the hearing of the originating summons dated 21 November 2003 on the following grounds:
>
> 1. That the application is bad in law as it does not comply with the procedure set out by the Rules under section 84(6) of the Constitution, the Constitution of Kenya (Protection of fundamental rights and freedoms of the Individual) Practice and Procedure Rules of 2001, Legal Notice number 133.
> 2. That the application is incurably defective for lack of such compliance and a similar application *vide* miscellaneous criminal application number 693 of 2003 had been dismissed for the same reasons.
> 3. That the application is frivolous and an abuse of the Court process as it is only tailored to delay the proceedings in the Lower Court."

Mr *Murgor* assisted by Ms *Kamau* argued these objections contending that the application does not comply with rules 3 and 7 of the Chunga Rules to the extent that no questions were framed for the determination of the High Court. Mr *Murgor* referred the Court to the ruling of the presiding magistrate, Mrs Maureen Odero in ACC number 27 of 2003. The magistrate's court file was placed before us and was available during the hearing of the preliminary objection. He contended that no issues were framed by either the Court or the applicant for determination by this Court. That in fact, Mr *Katwa*, advocate who represented the applicant in the magistrate's court, did not ask for leave to file a reference to the High Court for determination of the questions of the alleged violations of the applicant's fundamental rights or freedoms. That in the absence of framed issues there were no issues before the Court for determination. That under rule 7 of the Chunga Rules the existence of the said questions were mandatory and the application was incurably defective and it should be dismissed or struck out with costs. The respondent suggested that the applicant must revert to the subordinate Court to obtain leave to file his constitutional reference and to frame the questions for determination.

Mr *Murgor* relied on the ruling of Justice Kubo in the earlier application miscellaneous criminal application number 693 of 2003, *William KB Chelashaw v Republic* and the decision of a full Constitutional Bench in *Ngare v Attorney-General and another* [2004] 2 EA and Chief Magistrate, Anti-Corruption Court, Nairobi.

In response to this preliminary objection, Mr *Mwenesi* assisted by Mr *Katwa* for the applicant submitted *inter alia*:

1. That in compliance with the ruling of Justice Kubo referred to earlier the applicant went back to the subordinate Court to obtain leave to bring this applicant to the High Court.
2. That on the 5 November 2003 the applicant did file a notice of his intention to file a constitutional reference in which he framed and set out the question for determination by High Court.
3. That the accused applied to be enjoined in reference to proceedings pending in the High Court and which were due for an application for consolidation. That the Director of Public Prosecutions himself had applied to the Chief Justice for consolidation of all the cases including the applicants.
4. That in his application for consolidation the DPP had himself framed questions for determination of the High Court.
5. That it was the duty of the magistrate's court to have gone through the record meticulously and if there were any omissions or mistakes then it was the Court's and not the applicant's duty to rectify.
6. That the Magistrate did entertain the application for leave, exercised her discretion and granted leave to which there is no appeal.
7. That the respondent is estopped from raising these objections as he is aware of the framed questions.
8. That the Chief Justice has exercised his discretion and set up the Constitutional Court and, therefore, the objection cannot be considered.
9. That if there are any defects they are not fatal as there is substantial compliance.

From the foregoing facts and positions taken by the parties, we are of the opinion that the questions which arise from the preliminary objection and have to be determined by the Court are:

"1. Does the application herein comply with the provisions of rules 2, 3 and 7 of the Constitution of Kenya (Protection of Fundamental Rights and Freedoms of the Individual) Practice and Procedure Rules of 2001?

2. (i) In the event there is non-compliance of any of the said Rules or all of them, what is/are the effect of the said non-compliance or defects to the application?

(ii) Would such non-compliance or defects be curable or fatal to the application?"

In order to answer the said questions it is necessary and essential that this Court thoroughly studies the Court file in the magistrate's court and in particular the proceedings relevant to the application for leave to file the reference and the framing of the questions for the High Court's determination. It is our view that the first record relevant to this application is that of 5 November 2004. On that day, the accused in the criminal case and who is the applicant herein through his advocates *Katwa and Company Advocates* filed a notice which opened as follows:

> "Take notice that at the mention of this matter on 6 November 2003 the defence shall apply informally to the Honorable Magistrate for leave to file a constitutional reference in the High Court of Kenya on the application of Mr Willaim Kipruto Birir Arap Chelashaw the accused herein who claims that his fundamental rights and freedoms have been and are being breached."

The applicant proceeded to set out 14 questions which he intended the High Court to determine. From the wording and contents of the said notice, we have no doubt that the applicant intended to invoke rule 2 of the Chunga Rules. The said Rule stipulates as follows:

> "2. Where an accused person in a criminal case or a party to a civil suit in a subordinate Court alleges contravention of his fundamental rights or freedoms under section 70 to 83 inclusive of the Constitution in relation to himself, he shall apply informally to the presiding magistrate during the pendency of the proceeding before that Court to file a reference to the High Court to determine the question of the alleged violation."

The said rule provides that the application must be made "informally" meaning that the Court does not have to be moved by the filing of a formal application. To this Court the said "notice" was not an application and appears to have been intended to inform the Court in advance of the applicant's intention. While such a procedure is not expressly provided for, we are of the opinion that it was perfectly in order for the purpose it was intended to serve. At the very least it must be deemed to have been a matter of courtesy to the Court and the prosecution lest they are taken by surprise. This must be commended as a matter of practice.

From the record, nothing much happened. The applicant did not make the intended application and the only order made was that the matter was to be mentioned on 13 November 2003 before Mrs Odero, Senior Principal Magistrate. On 13 November 2003 again nothing happened and the matter was fixed for another mention on 14 November 2003. On 14 November 2003 the matter was before Mrs Odero. The State was represented by Ms *Kamau* while Mr *Katwa* appeared for the accused. We think that it is critical that we set out the transcript of the proceeding on the said day.

> The record shows as follows:
>
> "14 November 2003
>
> *Coram* as before
>
> Accused/Present
>
> Mr *Katwa* for accused
>
> Ms *Kamau* for the State.
>
> Ms *Kamau*
>
> We have asked for all the files relating to constitutional reference be dealt with all together.
>
> Mr *Katwa*
>
> We seek the leave of the Court to enjoin ourselves on the constitutional reference pending before the High Court.
>
> Court
>
> Leave is granted. Counsel is to file relevant notices before the High Court.
>
> M. 19 December 2003
>
> Signed."

At the next mention, Mr *Katwa* told the magistrate that "the constitutional reference comes up on 20 January 2004 before the Honorable Chief Justice for directions." The Court then fixed the matter for mention on 17 February 2004.

We have carefully scrutinised the proceedings before the magistrate and in particular the record on 14 November 2003 and 19 November 2003, and find it as a matter of fact that the applicant advocate did not informally or otherwise apply to the presiding magistrate to file a reference to the High Court to

determine any question. What he did is to ask for leave to be enjoined in the constitutional references pending before the High Court filed by other accused persons. It is a fact that by 14 November 2003 and even 19 November 2003 the applicant had not filed his constitutional reference which was filed on 21 November 2003. The applicant's counsel did not refer to the notice of intention to informally apply to file the reference and dated 5 November 2003 which he had filed. If he did, it is not discernible from the record. This is a Court of record and we have the Court file from the subordinate Court. We do not require an affidavit from anyone to tell us or clarify to us what took place. The applicant's further affidavit sworn on 7 October 2003 in this matter and the initial affidavit state that he had been granted leave to file the present application in the High Court. This deposition is at variance with the record. It does not change the record which to us prevails over and overrides the contents of the two affidavits. The applicant had not told the Court the truth and on oath attempts to mislead this Court or at the very least has misconsructed the leave he was granted.

The magistrate on his express application granted him "leave" to be enjoined in the constitutional references pending before the High Court. His reference was not one of them. It is common ground and undisputed that the Chief Justice did not allow or grant any orders for consolidation and it was everyone for himself in his own matter. We therefore hold as matter of fact that the applicant did not apply to the magistrate to file or for leave to file a reference to the High Court to determine any question of any alleged violation. His "notice" dated 5 November 2003 on record by itself does not amount to an application as envisaged by rule 2 and remains still-born intention. In conclusion, there was no application for a reference to be filed and therefore no leave granted by the magistrate under rule 2.

Rule 3 of the Chunga Rules provides as follows:

> "If the presiding magistrate is satisfied that there is merit in the allegation, and that it has not been made frivolously merely to delay the trial, he shall grant the application, whereupon the applicant shall frame the question to be determined by the High Court."

We are of the view that the magistrate presiding over the criminal case was not moved under rule 2 and, therefore, could not exercise his discretion and powers under rule 2 and she was denied the opportunity to consider the matter. Rule 3 was not invoked by the magistrate as there was no application under rule 2. It follows that the application could not frame any questions for determination by the High Court. No questions can be framed without an application and an order granting the said application or as commonly stated, granting leave.

In the circumstances, what is the effect of the filing of the constitutional references herein and the purported "questions" presented therein. Rule 7 provides:

> "At the hearing of the reference an application shall not raise any questions other than those framed under rule 3 except with leave of the Court."

As already held by us, there was no application before the magistrate, no leave granted and no questions framed. It follows that the purported questions contained or framed in the constitutional references cannot be raised. No questions were framed under rule 3 capable of constituting the questions in a constitutional reference by the applicant.

We are now able to answer the first question for the Court's determination and we do hereby hold that the application herein does not comply with any of the provisions of rules 2, 3 and 7 of the Constitution of Kenya (Protection of Fundamental Rights and Freedoms of the Individual) Practice and Procedure Rules 2001.

This brings us to the second question in the event there is non-compliance of any of the said rules or all of them, what is the effect of the said non-compliance or defects to the application? Would such non-compliance or defects be curable or fatal to the application?

The Chunga Rules were made under the provisions of section 84(6) of the Constitution. It reads as follows:

> "6. The Chief Justice may make rules with respect to the practice and procedures of the High Court in relation to the jurisdiction and powers conferred on it by or under this section (including rules with respect to the time within which application may be brought and reference shall be made to the High Court)."

The powers to make the said rules were conferred on the Chief Justice by our supreme law of the land, the Constitution of Kenya. In his wisdom and discretion he drafted and made the rules on 17 September 2001 and it became law on 21 September 2001 *vide* Legal Notice No. 133 of 2001. It is our view that rules made under constitutional powers are superior and stand above those made under say a statute. They should be given more regard and force. We have carefully perused the said rules and do not appear to give any discretion therefrom. The said rules also by themselves do not appear to give any discretion to the Court to vary its provisions or suspend or waive their application.

It may be true that the High Court as a Constitutional Court exercise inherent jurisdiction under section 60 of the Constitution and strictly has power to make orders to enforce constitutional rights and freedoms. However, it is our view that first the Court must formally be moved for declarations and remedies that require departure or non-application of Rules made under the Constitution or show on the spot that the said rules are themselves in violation of the constitutional provisions.

There is no application before us or any suggestion that the said Rules are unconstitutional. We think that the said Rules have a purpose and the way they were drafted have a rationale. For many years the absence of rules of practice and procedure under section 84 were was the subject of a litany of complaints and even litigation. It was contended that their absence, denied the citizen or party effectual enforcement of the fundamental rights and freedoms and that could be interpreted in different ways. Indeed there was a school of thought then that in the absence of the said Rules it was not possible to enforce rights and freedoms through section 84 of the Constitution. It is now possible for this Court to give life and enforce constitutional rights more effectively through the Rules.

It follows therefore that if a party invokes section 84 of the Constitution and comes to this Court for protection, then he/she surely must respect the rules of practice and procedure established by the very Constitution to achieve this. He/she should be the first one to comply unless he or she obtains an order from a Court of appropriate jurisdiction that the said Rules are unconstitutional themselves.

We do agree with our sisters and brothers in *Ngare v Attorney-General and another* [2004] 2 EA that access to the High Court under section 84(1) has to be by way of the procedure set out under section 84(6) and necessarily therefore the Rules should be applied. We also agree that all things being equal, that procedures laid down by law ought to be adhered to and complied with. In the case of the *Speaker of the National Assembly v Karume* [1992] LLR 3070 (CAK) which was referred to in the *Ngare* case, the Court of Appeal stated:

> "In our view there is considerable merit in the submission that where there is a clear procedure for the redress of any particular grievance prescribed by the Constitution or an Act of Parliament that procedure should be strictly followed."

We wholly agree with this principle of law. Without rules of practice and procedure the application and enforcement of the law and the administration of justice would be chaotic and impossible. Their absence or non-adherence would lead to uncertainty of the law and total confusion. Rules serve a purpose and they enhance the rule of law. They should not wholly control us but we disregard their use and application at our peril.

In the course of his submissions, the applicant submitted that the Chief Justice having exercised his discretion and empanelled a Constitutional Court, then the objection herein should not be entertained. The Chief Justice, in our understanding, was convinced and was of the opinion that the reference did raise constitutional issues and proceeded to set up a constitutional bench of more than one judge. This to us was done by the Chief Justice administratively as head of the Judiciary. No other person or office can empanel a bench of more than one judge. He did not discuss or deal with any issues of merit in the application.

The applicant also contended that it was the duty of the magistrate's court to have gone through the record meticulously and if there were any omissions or mistakes then it was the Court's and not the applicants' duty to rectify the same. We have already found and held that the applicant never made any application to the presiding magistrate under rule 2. It was incumbent upon him to move the Court. He did not do so. When he applied for leave to be enjoined in the pending constitutional references the Court gave him leave and told him to file the relevant notices. We wonder under what provisions of the law that application was made and leave granted and the legal efficacy of the said order. We should say no more as we are not sitting on any appeal against the said decision. In brief, the applicant cannot blame the magistrate's court but if the Court made any error, it is our view that it does not matter who is culpable for non-compliance of the Chunga Rules and the consequences are clear and certain.

Finally, the applicant submits that the respondent is estopped from raising any objections as it was aware of the framed issues. The Court is of the view that this argument is untenable and was backed by no law or authority. In any case, it is trite law, that estoppel as a defence cannot be set up against the application of a statute. In our view this applies to rules or by-laws enacted under the Constitution or legislation.

For all the aforesaid reasons and the construction of the Chunga Rules themselves, we do hereby hold that non-compliance of the said Rules renders the application herein defective, invalid and a nullity *ab initio*. Making all inquiries on the law and possible interpretation of the said Rules, we do not see how,

the said non-compliance and defects could be remedied or cured. We hold that the said non-compliance and defects are incapable of any cure in the circumstances.

We note some surprises that despite the ruling of Justice Kubo in the previous application and which was dismissed more or less on similar grounds, the applicant did not heed the advice given therein or appreciate the import of the said decision. The respondent's preliminary objection is therefore successful and upheld.

The application herein is struck out with costs to the respondent.

Orders accordingly.

For the applicant:
Mr Mwenesi and *Mr JK Katwa* instructed by *Katwa & Co*

For the first respondent:
Mr P Murgor, Director of Public Prosecutions instructed by Attorney-General

Dainty v Haji and another
[2005] 1 EA 43 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of ruling:	30 July 2004
Case Number:	59/02
Before:	Omolo, Githinji JJA and Onyango Otieno AGJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Damages – Lost years after fatal accident – Principles to be applied – Multiplier of lost working years – Multiplicand of estimated annual loss to the estate – Deceased was 27 year old management trainee at time of death – Law Reform Act (Chapter 26) – Fatal Accidents Act (Chapter 32).

[2] Tort – Damages – Fatal accident – Quantum of damages for lost years – Whether living expenses should be deducted from victim's salary at the time of death – Determination of multiplicand and multiplier for lost years.

Editor's Summary

The appellant was the personal representative of the estate of the deceased, who was killed in a road accident. The trial Judge assessed liability at 80%/20% in favour of the appellant. In a subsequent determination of the quantum of damages for lost years, the trial Judge used a multiplier of 10 years. The deceased was 27 years at the time of his death. The trial Judge made an estimate of the living expenses of the deceased, which estimate was deducted from his salary at the time of his death to arrive at the multiplicand of damages.

The appellant appealed against the determination of quantum. It was argued that a multiplier of 10

years was inordinately low in view of the age of the deceased at the time of his death. It was further argued that the multiplicand used was improperly arrived at by deducting living expenses, whereas the claim had been made under the Law Reform Act and not the Fatal Accidents Act.

Held – The appellate Court is only entitled to increase an award of damages by the High Court if it is so inordinately low that it represents an entirely erroneous estimate or where it is shown that the trial Judge proceeded on a wrong

principle or misapprehended the evidence in some material respect. Furthermore, the appellate Court would avoid inordinately high awards out of the public policy that they would lead to monstrously high insurance premiums and hurt the body politic. *Kitavi v Coastal Bottler Limited* [1984] LLR 213 (CAK), *Shaban v City Council of Nairobi* [1984] LLR 4077 (CAK), *Hassan v Nathan Mwangi Kamau Transporters* [1985] LLR 250 (CAK) followed.

In computing damages for lost years, the annual loss to the estate (the multiplicand) would be what the deceased would have been likely to have available to save, spend or distribute after meeting the cost of his living at a standard which his job and career prospects at the time of his death would suggest he was reasonably likely to achieve. *Gammel v Wilson* [1981] 1 All ER 578 adopted.

In determining the multiplier, ie the estimated number of lost working years accepted as reasonable in a particular case, the Courts have not established a general practice which is applied to different age groups of accident victims. What is a reasonable multiplier in our jurisdiction is a question of fact to be determined from the peculiar circumstances of each case. *Boru v Onduu* [1988-1992] 1 KAR 299 applied by analogy.

In this case, there was no justification for interfering with the determination of the trial Judge as to the 10 years multiplier. The deceased was on a contract of three years and the question of his working until 65 years did not really arise.

The trial Judge correctly deducted the deceased's living expenses from the monthly basis pay in order to arrive at the multiplicand. This is the rule to follow both under the Law Reform Act and under the Fatal Accidents Act. Only in the case of a living plaintiff whose working life has not been shortened by injury would it be wrong to deduct the plaintiff's living expenses. However, the Court would reduce the trial Judge's estimate of living expenses in view of the substantial additional allowances the deceased had been getting. *Mariga v Musila* [1982] LLR 69 (CAK) applied; *Pickett v British Rail Engineering Ltd* [1980] All ER 136, *Gamell v Wilson* (*supra*) adopted; *Hassan v Nathan Mwangi Transporters* (*supra*), *Muka v Halale and another* High Court civil case number 1870 of 1984 (UR) followed.

Appeal allowed in part. Assessment of living expenses reduced by KShs21 000 monthly. Increased multiplicand used in assessment of lost years.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Alulwa v Attorney-General and another Nairobi High Court civil case number 1597 of 2000 (UR)

Boru v Onduu [1988-1992] KAR 299 – **AP**

Hassan v Nathan Mwangi Kamau Transporters [1985] LLR 250 (CAK) – **F**

Kitavi v Coastal Bottler Limited [1984] LLR 213 (CAK) – **F**

Mariga v Musila [1982] LLR 69 (CAK) – **AP**

Muka v Halale and another High Court civil case number 1870 of 1984 (UR) – **F**

Shaban v City Council of Nairobi [1984] LLR 4077 (CAK) – **F**

United Kingdom

Gammel v Wilson [1981] 1 All ER 578 – **A**

Pickett v British Rail Engineering Limited [1980] All ER 136 – **A**

Judgment

Omolo, Githinji JJA and Otieno AGJA: This appeal is against the quantum of damages awarded by the superior Court (Khaminwa J) to the estate of James George William Campbell (deceased). The appellant is dissatisfied by the award of KShs3 756 000 as lost years under the Law Reform Act. He complains that the award is inordinately too low and by this appeal seeks the enhancement of the damages.

On 22 August 1998 the deceased was driving motor vehicle registration number KAJ 414W - Toyota Carina belonging to his employer (Spanfreight Shipping Limited) towards Mtwapa along Mombasa-Malindi road. When he reached Shanzu at about 5.00am, his vehicle had a head-on collision with an oncoming motor vehicle registration number KAB 342M Mitsubishi Canter which was being driven by Mwinyi Haji Faki (second respondent) from Kilifi towards Mombasa. The deceased died instantly. The deceased was survived by his parents, George Herbert Lorne Campbell and Elizabeth Ann Campbell who gave a power of attorney to the appellant to apply for a grant of letters of administration for the estate of their son.

The appellant duly applied for and was given a limited grant of letters of administration on 31 May 1999. Thereafter the appellant and Messrs Spanfreight Shipping Limited filed a joint suit. The latter claimed KShs390 000 for the loss of the vehicle which the Court awarded. On his part, the appellant claimed damages under the Law Reform Act for the loss sustained by the deceased's estate due to the negligence of the respondent. The respondents denied negligence. The superior Court after trial apportioned liability at 20% against the deceased and 80% against the respondents. There is no appeal or cross appeal against that apportionment of liability.

The deceased was 27 years old at the time of his death. He was not married. He was a BA (Hons) University graduate and was employed by Spanfreight Shipping Limited as a management trainee. He had worked for nine months before the accident. His total monthly earnings were KShs130 800 which included a basic pay of KShs81 300. The appellant was also employed by a company representing Spanfreight Shipping Limited. According to the appellant's assessment, the deceased was being sent for assignments to other parts of Africa and could have easily reached a very senior position in the company. He anticipated that the deceased's salary would have doubled or trebled within a very short time. The retirement age in his view was 65 years. Christopher Edward Alan Barnes who worked for Spanfreight Shipping Limited stated that deceased's work was satisfactory; that deceased was highly motivated that his health was good and his prospects were good.

The appellant's advocates suggested a multiplier of 25 at the trial while the respondents' advocates suggested a multiplier of 10. The learned Judge accepted a multiplier of 10 saying:

> "Regarding lost years there is no guarantee of life for any period of these days (*sic*) expectations of life is reduced by the many risks now to be encountered within modern living. The multiplier proposed is quite high then and it is my view that for a 27 year old person he could have been expected to continue in life for perhaps a further 15 years. Therefore I find the multiplier of 10 would be reasonable."

In assessing a suitable multiplicand, the learned Judge took into account that the deceased's monthly basic pay was KShs81 300 and that the deceased's living expenses and tax liability had to be deducted. After assessing the monthly tax liability at KShs9 000 and deceased's living expenses at KShs50 000 she found that KShs31 300 would be what the estate would be entitled to. The multiplicand and the multiplier selected yielded a sum of KShs3 756 million.

There are four grounds of appeal namely:

(*a*) The learned trial Judge erred in law in applying a multiplier of 10 years only in the case of the deceased who at the time of death was 27 years old.

(*b*) The learned trial Judge erred in law awarding damages for lost years in that such damages were to be awarded and calculated in accordance with the provisions of the Law Reform Act (as opposed to Fatal Accidents Act).

(*c*) In considering the general damages to be awarded for lost years the learned trial Judge erred in law and in fact in not taking into account the clear and uncontroverted evidence about the good and sanguine prospects concerning the deceased's career and the prospects of earning higher salary and benefits.

(*d*) The appellant will further submit that the amount of general damages awarded for the lost years is so inordinately low as to represent an entirely erroneous estimate and in reaching such a low figure the learned Judge must have acted on wrong principles of law.

The cases of *Kitavi v Coastal Bottler Limited* [1984] LLR 213 (CAK); *Shaban v City Council of Nairobi* [1984] LLR 4077 (CAK); *Hassan v Nathan Mwangi Kamau Transporters* [1985] LLR 250 (CAK), among others cited by the appellant's counsel correctly state the principles on which an appellate Court would disturb an award of damages made by a trial Court. In *Hassan*'s case (*supra*) in particular, the Court stated that the appellate Court is only entitled to increase an award of damages by the High Court if it is so inordinately low that it represents an entirely erroneous estimate or the party asking increase must show that it represents an entirely erroneous estimate or the party asking increase must show that in reaching that inordinately low figure, the Judge proceeded on a wrong principle or misapprehended the evidence in some material respect. Furthermore, this Court is aware that inordinately high awards should be avoided as they will lead to monstrously high premiums for insurances and hurt the body politic (*Hassan*'s case (*supra*)).

The principles on which damages for lost years under the Law Reform Act are assessed are admirably articulated by Lord Scarman in *Gammel v Wilson* [1981] 1 All ER 578 at 593 paragraphs g-j thus:

> "The problem in these cases which has troubled the Judges since the decision in *Pickett*'s case, has been the calculation of annual loss before applying the multiplier (ie the estimated number of lost working years accepted as reasonable in the case). My

> Lords, the principle has been settled by the speeches in the House in *Pickett*'s case. The loss to the estate is what the deceased would have been likely to have available to save, spend or distribute after meeting the cost of his living at a standard which his job and career prospects at the time of death would suggest was reasonably likely to achieve. Subtle mathematical calculations, based as they must on events or contingencies for a life which he will not live, are out of place, the Judge must make the best estimate based on the known facts and his prospects at time of death."

Mr *Satchu*, learned counsel for the appellant, submitted that the superior Court erred in principle in failing to take into account the multiplier applied in other cases which according to him show an established practice. He referred to several decisions of the High Court mainly dealing with loss of dependency under the Fatal Accidents Act where higher multipliers for similar age have been applied and urged us to apply a multiplier of 17-20 years.

The decision of the High Court referred to, includes the case of *Alulwa v Attorney-General and another* Nairobi High Court civil case number 1597 of 2000 (UR) where a multiplier of 20 was applied to a 26 year old man.

We do not, with respect, agree with Mr *Satchu* that Courts have established as a matter of practice the appropriate multiplier to be applied to different age groups of victims of accidents. What is a reasonable multiplier in our jurisdiction is a question of fact to be determined from the peculiar circumstances of each case. By way of analogy, in *Boru v Onduu* [1988-1992] KAR 299, the Court was asked to follow the pattern of Court decisions showing that in claims for loss of dependency under the Fatal Accidents Act, the Court had, as a rule, taken one-third of a deceased's net income as his living expenses and two-thirds of his net income as dependency rule. The Court rejected the rule and re-asserted that dependency is a question of fact. Hancox CJ said in part at 291:

> "The extent to which the family is being supported must depend on the circumstances of each case. To ascertain it the Judge will analyse the available evidence as to how much the deceased earned and how much he spent on his wife and family. There can be no rule or principle of law in such a situation."

To ascertain the reasonable multiplier in each case the Court would have to consider such relevant factors as the income of the deceased, the kind of work the deceased was doing, the prospects of promotion and his expectation of working life.

It has not been shown that in the circumstances of this case, the learned Judge either erred in law or proceeded on a wrong principle or that she misapprehended the evidence in some material respect. There is no justification for interfering with the Judge's discretion for determination of the reasonable multiplier. It is not to be forgotten that the deceased was on a contract of three years and the question of his working up to 65 years did not really arise.

In elaborating the second ground of appeal, Mr *Satchu* submitted that the learned Judge erred in law in applying a multiplicand of KShs31 300 instead of KShs81 300. He contended that the learned Judge confused the appellant's claim for damages for lost years on behalf of the estate with a claim for loss of dependency under the Fatal Accidents Act.

In essence, the appellant's case is that the learned Judge erred in deducting KShs50 000 as deceased's living expenses from the monthly basic pay of KShs81 300. The appellant's counsel did not however cite any law to support his contention that the deceased's living expenses should not have been

deducted. Where the working life of a living plaintiff has been shortened by injury he suffers loss of prospective earnings and is entitled to an award for the "lost years" being the period which he could have worked had he not suffered the injuries. In such a case, the plaintiff's living expenses are not deducted from his net salary in assessing the appropriate multiplier (see the case of *Mariga v Musila* [1982] LLR 69 (CAK)). Conversely, in computing a deceased's loss of earnings in the lost years both under the Fatal Accidents Act and under the Law Reform Act, the deceased's estimated living expenses in the lost years are deducted for the reason that they cannot constitute part of the deceased's estate. This is clear from the case of *Pickett v British Rail Engineering Limited* [1980] All ER 136 and *Gammel v Wilson* (*supra*). The local Courts have been invariably excluding the deceased's living expenses in the lost years for the reason that they cannot constitute part of deceased's estate – see *Hassan v Nathan Mwangi Kamau Transporters* [1985] LLR 250 (CAK) and *Muka v Halale and another* High Court civil case number 1870 of 1984 Nairobi (UR). So the living expenses were correctly excluded in this case as not forming part of the deceased's estate.

However, the learned Judge ascribed a considerable portion of deceased's basic income as part of the living expenses. The deceased was, in addition to the basic monthly pay of KShs81 300, getting a car benefit of KShs9 000, housing benefit of KShs36 000 and medical insurance. It seems that he had been given a company car. He was single. There was no evidence of his monthly expenditure. In the circumstances there was no material to justify the assessment of the deceased's monthly living expenses at KShs50 000. In our view, the learned Judge erred in principle in computing the deceased's living expenses at an inordinately high figure of KShs50 000 and thereby came to an erroneous estimate of the appropriate multiplicand. This justifies our interference.

In the circumstances, a reasonable monthly living expenses should have been KShs29 000 inclusive of tax giving a multiplicand of KShs52 300 and when a multiplier of 10 is applied to the sum, the loss of earning to the estate in the lost years would be KShs6 276 000.

For the above reason, we allow the appeal only to the extent that the award of KShs3 756 000 as damages for lost years is set aside and substituted with an award of KShs6 276 000. The appellant has had the damages almost doubled. We would give the appellant two-thirds costs of this appeal.

For the appellant:
Mr MAC Satchu instructed by *Atkinson Cleasby & Satchu Advocates*

For the respondent:
Information not available

Distelberger v Muindi and another
[2005] 1 EA 48 (HCK)

Division:	High Court of Kenya at Nairobi
Date of ruling:	4 March 2004
Case Number:	1587/03
Before:	Nyamu J
Sourced by:	LawAfrica
Summarised by:	C Kanjama

[1] Advocate – Unqualified advocate – Effect of legal document being drawn without endorsement of the drawer advocate – Whether affidavit filed in Court without endorsement by advocate would be struck out – Sections 34 and 35 – Advocates Act (Chapter 16).

[2] Civil procedure – Affidavit – Drawer of affidavit not indicated – Whether omission renders affidavit fatally defective and a nullity – Whether application unsupported by affidavit will be struck out – Order XVIII – Civil Procedure Rules – Sections 34 and 35 – Advocates Act (Chapter 16) – Sections 3 and 73 – Interpretations and General Provisions Act (Chapter 2).

Editor's Summary

The applicant filed an application supported by two affidavits which did not bear on their face the endorsement of the drawer. The respondent raised a preliminary objection, contending that the omission of the drawer's name violated the provisions of the Advocate's Act rendering the affidavits defective. The applicant responded that an affidavit was not a document for the purposes of the Advocate's Act. The Court was called upon to consider the effect of the failure to endorse the name of the drawer of an affidavit on its face.

Held – Under the Interpretation and General Provisions Act, a document is defined to include any publication and any matter written, expressed or described upon any substance by means of letters, figures or maths, which is intended to be used or may be used for the purpose of recording that matter. Under the Advocate's Act, unqualified persons are prohibited from preparing certain documents or instruments, including documents relating to "any other legal proceedings." The effect of the failure to endorse the name of the drawer advocate on the affidavit is that the affidavit is rendered void, and not merely irregular. The affidavit and the application would therefore be struck out with costs. *Miben (K) Limited v Muchemi* [2001] LLR 5659 (HCK), *Jovenna East Africa v Onyango and others* High Court civil case number 1086 of 2002 followed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Jovenna East Africa Limited v Onyango and others High Court civil case number 1086 of 2002 – **F**

Miben (K) Limited v Muchemi [2001] LLR 5659 (HCK) – **F**

Ruling

Nyamu J: When the notice of motion dated 11 December 2003 seeking leave for the applicant to file a memorandum of appeal out of time, came up for hearing before me on 9 February 2004, the learned counsel for the respondent drew the Court's attention to her grounds of opposition dated 2 February 2004 and filed on 3 February 2004. There was no opposition by the applicant's counsel to the Court hearing the preliminary point first. In answer to the

Court's question as to whether the preliminary point was likely if successful to dispose of the application the learned counsel for the applicant answered in the affirmative.

There are two grounds cited namely:

1. That the application is bad in law, incompetent and misconceived.
2. That the application is frivolous, vexatious and an abuse of the Court process.

The two grounds are patently very wide.

The learned counsel in her submissions focused on the validity of the two affidavits in support of the notice of motion, sworn by Janerose Gitonje on 11 December 2003 and William Kibet Kiptoo on 11 December 2003 respectively.

As regards the two affidavits the applicant's counsel contends that they do not bear the endorsement of who has drawn them and that this violates the provisions of section 35(1) of the Advocates Act and for this reason she urged the Court to strike them out or to expunge them from the record.

It is common ground that the affidavits have not disclosed who drew them. The big question to be determined by the Court is the effect of the failure to disclose the drawer of the two affidavits. The applicant while admitting that the person or firm responsible for having prepared the affidavits had not been endorsed on the affidavits contends that an affidavit is not a document, and therefore falls outside the provisions of section 35(1) of the Advocates Act and that a verifying affidavit is not an affidavit as such and forms part of the plaint it verifies, and since the plaint does disclose the firm which drew it and also the notice of motion does disclose the firm which drew it, the omission is a minor one and ought not be fatal. He submitted that the Court should not strike the affidavits.

In support of her contention the applicant's counsel relied on the decision of my brother Judge Tanui in *Miben (K) Limited v Muchemi* [2001] LLR 5659 (HCK) and my own ruling in Milimani *Jovenna East Africa Limited v Onyango and others* High Court civil case number 1086 of 2002.

In the *Miben* case Honourable Mr Justice Tanui struck out affidavits for failure to comply with section 35 of the Advocates Act. He held that the defect was fatal and not curable.

In the *Jovenna* case the respondent's counsel did remind me that I had concurred with my brother Tanui concerning the effect of not complying with a statutory provision.

I regret that the counsels did not shed any more light concerning the definition and interpretation of the words they used such as "document". It is therefore incumbent upon the Court to endeavour to ascertain the legal meaning.

In section 3 of Interpretation of General Provisions Act (Chapter 2) the word "document" is defined as:

> "any publication and any matter written, expressed or described upon any substance by means of letters, figures or maths or by more than one of those means, which is intended to be used or may be used for the purpose of recording that matter."

Now that this Court has had the fortune of having more time to reflect on this topic again it is important to consider the purpose the legislature intended to

achieve under section 35(1) of the Advocates Act. It seems to me that section 35(1) should not be read in isolation. It should be read together with section 34 which prevents unqualified persons from preparing certain documents or instruments. The purpose is to prevent preparation of certain documents by unqualified persons.

The documents which unqualified persons cannot draw include documents/instruments:

(*a*) relating to the conveyancing of property;

(*b*) formation of companies both private and public;

(*c*) partnership agreement and agreements on dissolution;

(*d*) for the purpose of filing or opposing a grant of probate or letters of administration; or

(*e*) for which a fee is prescribed by the Chief Justice under section 44;

(*f*) relating to any other legal proceedings.

From the above definition of the term document it is quite evident that an affidavit is a document under our law.

If it is drawn by an unqualified person for the purpose of legal proceedings it is prohibited by section 34(1) of the Advocates Act.

Under section 35(1) of the Advocates Act both advocates and unqualified persons commit offences under the section which attract fines of KShs5 000 in the case of an unqualified person and KShs500 in the case of advocates. The offence as defined in the section is failure to endorse thereon the drawer's name and address or the name and address of the firm in the case of the advocates as the drawers.

It is not in dispute that the two affidavits do not have an endorsement of the drawer and also that the affidavits have been filed in this legal proceedings.

Although the only sanctions provided by the Act are fines as stipulated above, in this case it is evident from the contents of the affidavits that they were drawn by advocates having been attached to the applications. The Act has not touched at all on the validity of the offending document or in this case, affidavits.

In view of the objective behind the relevant provision in the Advocates Act, is failure to endorse the affidavit a mere irregularity? Before the Court answers this question it is important to examine the procedural requirements concerning affidavits. Order XVIII, rule 4 demands that every affidavit shall state the description, true place of abode and postal address of the deponent. There is no requirement in this order for endorsement of name and address of the drawer.

Order XVIII, rule 7 provides:

> "The Court may receive any affidavit sworn for the purpose of being used in any suit notwithstanding any defect by misdescription of the parties or otherwise in the title or other irregularity in the form thereof."

The Oaths and Statutory Declaration Act (Chapter 15) only requires the Commissioner of Oaths to state in the jurat or attestation at what place and on what date the oath or affidavit is taken or made. The Act is not therefore helpful on this occasion.

Returning to the question posed above as to whether failure to endorse an affidavit with the name and address of the drawer is a mere irregularity in form

only and therefore excusable under Order XVIII, rule 7, it must be pointed out that the rules constitute subsidiary legislation and are therefore inferior to Acts of Parliament.

Is a contravention of a provision of an Act an irregularity in form only? The answer is clearly "no" because as outlined above, Parliament intended to prevent unqualified persons from drawing legal documents as specified in the Advocates Act and also to prevent them from charging fees in respect of such documents. The overall object is to ensure that legal documents are drawn by qualified persons.

The necessity to have the name and address endorsed is clearly aimed to stop or prevent the mischief of unqualified persons drawing documents. It is for this reason that I find and hold that a document which fails to comply is not deficient in form only but it is statutory deficient and incapable of being saved by the provisions of Order XVIII, rule 7. The objective intended by Parliament would be defeated by any other interpretation or the exercise of the Court's discretion as contemplated under Order XVIII, rule 7.

Having reached the conclusion that an affidavit is a document under our law it follows that it must meet or satisfy the requirements set out in sections 34 and section 35 of the Advocates Act. Failure to comply is not a mere irregularity but a statutory and a fundamental irregularity. This being the case the two affidavits cannot be saved under the Court's discretion conferred by Order XVIII, rule 7.

The Court has also considered the effect of section 72 of the Interpretation and General Provisions Act (Chapter 2) which reads:

> "72. Save as is otherwise expressly provided wherever a form is prescribed by a written law, an instrument or document which purports to be in that form shall not be void by reason of a deviation therefore which does not affect the substance of the instrument or document or which is not calculated to mislead."

Section 72 does not therefore save the offending affidavits because the objective of Parliament in requiring the endorsement of documents is as outlined above and therefore any deviation from what is stipulated by the Act is not a deviation in form only and makes such a document void. This is clearly implied under this section. An affidavit is not a form.

I hold and find that failure to comply makes the two affidavits unavailable for the purpose of legal proceedings such as this. The two affidavits are hereby struck out and expunged from the record and the ultimate consequence is that the application is also struck out with costs to the respondents.

It is so ordered.

For the applicant:
Information not available

For the respondent:
Information not available

Exclusive Estates Ltd v Kenya Posts and Telecommunications Corporation and another

[2005] 1 EA 53 (CAK)

Division: Court of Appeal of Kenya at Nairobi

Date of ruling: 29 April 2005

Case Number:	62/04
Before:	Githinji, Waki JJA and Deverell AGJA
Sourced by:	LawAfrica
Summarised by:	E Ongoya

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[1] Appeal – Stay of execution – Interlocutory injunction pending appeal – Purpose of interlocutory injunction – Factors to be considered in determining application for stay – Rule 5(2)(b) – Court of Appeal Rules.

[2] Stay of execution – Order dismissing suit – Whether Court can order stay of execution of order dismissing suit – Negative order – Whether negative order capable of execution.

Editor's Summary

The applicant came to Court under rule 5(2)(*b*) of the Court of Appeal Rules. It sought orders that a temporary injunction be issued to restrain the first respondent from applying or causing the removal of the caveat registered against land registration number 7656 until the hearing and final determination of the intended appeal, and, that there be a stay of execution of the order of the superior Court dismissing its suit until the hearing and determination of the intended appeal. The application followed the order of the superior Court dismissing the applicant's suit for failure to furnish security for costs.

Held – In exercising its unfettered discretion under rule 5(2)(*b*) of the Court of Appeal Rules, the Court considers, *inter alia*, whether the appeal or intended appeal is arguable and whether the appeal would be rendered nugatory if the order sought is not granted. *Butt v Rent Restriction Tribunal* [1982] KLR 417; *JK Industries v Kenya Commercial Bank Limited and another* [1987] KLR 506 followed.

A temporary interlocutory injunction is issued in a suit to preserve the property in dispute or the rights of parties under determination pending the disposal of the suit. Similarly, an injunction is issued in an appeal to preserve the subject matter of the appeal.

In the absence of evidence that the trial Judge ordered the removal of the caveat, it follows that the property which was encumbered by the caveat and the caveat itself were not the subject matter of the dismissed suit and further that the said property and caveat are not the subject matter of the appeal.

Application dismissed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Butt v Rent Restriction Tribunal [1982] KLR 417 – **F**

JK Industries v Kenya Commercial Bank Limited and another [1987] KLR 506 – **F**

Ruling

Githinji, Waki JJA and Deverell AGJA: This is an application under rule 5(2)(*b*) of the rules of this Court for the following orders:

> "1. That a temporary injunction do issue to restrain the first respondent whether by itself, its servants and/or agents or other whomsoever from applying or in any other manner whosoever causing the removal of the caveat registered against land registration number 7656 (IR 8498) until the hearing and final determination of the intended appeal.
>
> 2. That there be a stay of execution of the dismissal order of the superior Court given on 12 March 2004 until the hearing and determination of the intended appeal herein."

The application is supported by the affidavit of Mr Francis Mwanza *Mulwa*, the advocate on record for the applicant. The applicant was the plaintiff in High Court civil suit number 1158 of 2001 while the first respondent was the first defendant and the second respondent the second defendant. The applicant has not provided copies of the pleadings in the suit nor stated the nature of the dispute in the supporting affidavit. We are therefore not fully appraised of the precise nature of the suit. However, in the ruling of the superior Court dated 31 October 2003, Ombija J states:

> "For the applicant/first defendant, it was argued that the suit is for an injunction restraining the defendants from handing over the construction of Postal Garden Housing Project to any other developers, contractors, consultants; a declaration that the alleged agreement between plaintiff and defendant is irrevocable and binding on the plaintiff and the defendant, special damages allegedly owing to the plaintiff in respect of fees for services rendered to the defendants."

Sometime in July 2002, the first respondent filed an application in the superior Court under Order XXV(1) of Civil Procedure Rules praying that the plaintiff do furnish security for the payment of all costs incurred and likely to be incurred by the first respondent.

The application for security for first respondent's costs was allowed by the superior Court (Ombija J) on 31 December 2003 who ordered the plaintiff (applicant) to provide security for costs in the sum of KShs50 million within 60 days and in default the first respondent be at liberty to bring an application for dismissal of the suit. The applicant who was late in the filing of the notice of appeal, fixed civil applications number Nai 14 of 2004 in the Court of Appeal for extension of time to file and serve the notice of appeal and the record of appeal. That application was allowed on 20 February 2004. In the meantime by an application dated 10 January 2004 brought under Order XXV, rule 5(1) Civil Procedure Rules, the first respondent asked the superior Court to dismiss the suit on account of failure by the applicant to provide security for costs as ordered. It appears that that application was heard before the applicant's application in the Court of Appeal but the ruling dismissing the suit was delivered on 12 March 2005 after the ruling of the Court of Appeal.

The applicant filed civil appeal number 46 of 2004 against the order for provision of security for costs on 8 March 2004. In addition, the applicant filed a notice of appeal on 15 March 2004 indicating that it intends to appeal against the ruling of 12 March 2004 dismissing the suit.

The principles for granting a stay of execution, an order of injunction or an order of stay of further proceedings under rule 5(2)(*b*) of the Rules of this Court are well known. See for instance *Butt v Rent Restriction Tribunal* [1982] KLR 417, *JK Industries v Kenya Commercial Bank Limited and another* [1987] KLR 506. In exercising its unfettered discretion, the Court considers, *inter alia*, whether the appeal or intended appeal is arguable and whether the appeal would be rendered nugatory if the order sought is not granted.

The applicant has already filed an appeal against the order of the superior Court ordering the applicant to provide security for the first respondent's costs of the suit. The applicant has also filed a notice of appeal against the subsequent order of 12 March 2004 which dismissed the suit. It is the appeal against the order requiring the applicant to provide security for first respondent's costs which is important and decisive. The subsequent dismissal of the suit is an automatic and mandatory consequence of the failure to give security. This is clear from the words of Order XXV, rule 5(1) Civil Procedure Rules which provides:

> "If security for costs is not given within the time ordered and if the plaintiff is not permitted to withdraw the suit, the Court shall, upon application dismiss the suit."

We have perused the grounds of appeal in civil appeal number 46 of 2004 and we are satisfied that the appeal already filed is not frivolous.

The first relief sought in this application is a temporary injunction. A temporary interlocutory injunction is issued in a suit to preserve the property in dispute in the suit or the rights of parties under determination in a suit pending the disposal of the suit. (See Order XXXIX Civil Procedure Rules). Similarly, an injunction is issued in an appeal to preserve the subject matter of the appeal. In this application, a temporary injunction is sought to restrain the first respondent from applying or causing the removal of a caveat registered against land registration number 7656. That caveat was registered against the property in favour of one Francis Mburu sometime in 1994.

Firstly, the caveat registered is governed by section 57 of the Registration of Titles Act (Chapter 281) and the applicant has a statutory right under section 57(5) to institute legal proceedings for the removal of the caveat. Such proceedings as Order XXXVI, rule 3A Civil Procedure Rules provides are instituted through an originating summons or by an application in a pending suit. The first respondent also has a legal right under section 57(6) to apply to the land Registrar for the removal of the caveat. The application for injunction in as much as it seeks to restrain the first respondent from exercising its legal rights is grossly incompetent. In any case, should the first respondent take legal steps for the removal of the caveat, the applicant will be given an opportunity to be heard.

Secondly, although we do not know the precise nature of the suit which was dismissed, (applicant is to blame for failing to place all relevant material before the Court), it seems from the passage we have quoted above from the ruling of the superior Court that the dispute in the superior Court was about a building contract where the applicant sought to restrain the first respondent from engaging another contractor. It seems to us that the caveat lodged was not the subject matter of the suit.

Moreover, there is no evidence that in dismissing the suit, the superior Court ordered the caveat to be removed. It seems therefore, that the property which

is encumbered by the caveat and the caveat itself, were not the subject matter of the dismissed suit and that that property and the caveat are not the subject matter of the appeal. Further, it appears to us that this application relating to the caveat is a new and independent cause of action from the dismissed suit.

Lastly, although Mr Francis Mburu who lodged the caveat is shown in the ruling of 20 February 2004 in civil application number Nai 14 of 2004 (*supra*) as the managing director of the applicant, the applicant is a different legal entity from him. It follows that the caveat is lodged by a person who is not a party to the suit or the appeal.

The second prayer in the application seeks an order that the execution of the order given on 12 March 2004 dismissing the suit be stayed.

The stay of execution envisaged by rule 5(2)(*b*) of the rules of this Court is the execution of a decree or order capable of execution in any of the methods stipulated by section 38 of the Civil Procedure Act. A "decree holder" as defined in section 2 of the Civil Procedure Act:

> "means any person in whose favour a decree has been passed or an order capable of execution has been made and includes the assignee of such decree or order."

The order which dismissed the suit was a negative order which is not capable of execution. If the order sought is not granted, the appeal will not be rendered nugatory because if the appeal succeeds the dismissal order will be set aside and the suit will be restored on the register. The applicant has not sought an order for stay of execution of the decree on costs of the dismissed suit. It appears that there is no likelihood of the first respondent seeking to recover costs of the dismissed suit from the applicant because one of the grounds for applying for the security of costs in the superior Court was that the applicant is a dormant company without any assets.

For the above reasons, we do not find any merit in the entire application. It is dismissed with costs to the first respondent.

For the applicant:
Mr FM Mulwa instructed by *FM Mulwa Adv*

For the respondents:
Information not available

Gachuru v Republic
[2005] 1 EA 56 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of ruling:	20 May 2005
Case Number:	261/03
Before:	Omolo, Githinji and Waki JJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

[1] Crime – Robbery with violence – Possession of a firearm – Doctrine of recent possession – Whether possession needs to be physical possession – Sections 4 and 296(2) – Penal Code (Chapter 63) – Section 4(1) – Firearms Act (Chapter 114).

[2] Criminal procedure – Sentence – Accused sentenced to capital penalty and to a smaller term – Appropriate procedure where the accused is convicted of various crimes, some attracting a capital penalty.

Editor's Summary

The appellant was charged and convicted of four counts of robbery with violence and one count of illegal firearm possession. He was sentenced to death for the four capital counts of robbery with violence and to a five-year term for the count of illegal firearm possession. The case against the accused was that together with others not before the Court and while armed with dangerous weapons, he had robbed four persons in various circumstances.

Held – The conviction of the accused was based on the doctrine of recent possession, and hence an identification parade did not need to be conducted. Possession need not be physical but may be merely actual or even constructive possession. *Obonyo v R* [1962] EA 542 followed.

Per curiam: Where an accused person is convicted on more than one capital charge, the sensible thing to do is to sentence him to death on only one of the counts and leave the others in abeyance, including any sentence of imprisonment. There is no sense at all in a proposition or practice of multiple convictions where a capital penalty is involved. The other sentences should be left in abeyance once a capital penalty is imposed. If there is subsequently a successful penalty on the imposed capital penalty, the appellate Court could then consider the other counts and if necessary impose the appropriate sentence on the count on which the appeal is not allowed. *Boye v R* criminal appeal number 19 of 2001 (UR), *Kaimoi v R* [2005] 1 EA, *Muiruri v R* [1980] KLR 70 followed.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Boye and another v Republic civil appeal number 19 of 2001 (UR) – **F**

Kaimoi v Republic [2005] 1 EA – **F**

Karingo v Republic [1982] KLR 213

Muiruri v Republic [1980] KLR 70 – **F**

Njoroge v Republic [1982] KLR 388

Obonyo v Republic [1962] EA 542 – **F**

Judgment

Omolo, Githinji and Waki JJA: This is a second appeal from the judgment of the superior Court (Juma and Ombija JJ) sitting in Nyeri when they dismissed an appeal from the trial Court (Nyamweya Esq SRM), who convicted the appellant on the four counts he faced for the offence of robbery with violence contrary to section 269(2) of the Penal Code (Chapter 63) Law of Kenya, and one count of possession of a firearm without a valid firearm certificate contrary to section 4(1) of the Firearms Act (Chapter 114). The sentence of death for the four robbery counts and the jail term of five years for the unlawful firearm possession were confirmed. We think the non-capital offence ought not to have been charged at all pending the result of the trial for the capital offences, but there is no complaint, and we have not seen any reason for

raising one, that the appellant was prejudiced in the manner adopted by the prosecution in drawing up the charges.

The four counts of robbery were alleged to have taken place the same day, 15 November 2000, but involving two different complainants. The particulars of the four counts of robbery were, respectively, that the appellant, jointly with others not before the Court, while armed with dangerous weapons, namely a Browning pistol serial number 545NV51207 and pangas robbed:

1. Lydia Wangari Maina of cash KShs2 100, 10 packets of Sportsman cigarettes, 10 packets of SM cigarettes, 10 packets of Horseman cigarettes, two Whitecap beers, two Tusker beers, two Citizen beers, and one Guinness beer all valued at KShs3 671 at Corner Bar, in Karangia market.
2. Paul Mathenge Wachira cash KShs1 000 at Karangia market.
3. James Ngatia Ndungu cash KShs2 500 at Ndungamano Bar, in Ndungamano market.
4. John Waiganjo Itegi of a leather jacket valued at KShs800 at Ndungamano Bar in Ndugamano market.

The firearm used in the robberies was the subject matter of the fifth count.

Lydia Wangari Maina (Lydia) (PW1) was a barmaid at Corner Bar in Karandia Market. At about 10:15pm on 15 November 2000, she was on duty serving some three customers. One of them was Samuel Muita Gichohi (Muita) (PW3). The others were Paul Mathenge Wachira (Mathenge) (PW8) and one Waihenya. As Lydia was serving the customers, the appellant walked into the bar and was immediately recognised by Muita who had known him for 10 years. Muita called him “Waithaka” as he greeted him. The appellant then asked for two cigarettes, which Lydia sold to him and he went outside the bar with Muita who was also leaving. Two minutes later, the appellant returned to the bar but this time he was holding a knife and ordered everybody to lie down. He went towards Lydia and demanded all the money she had. He then produced a pistol and started beating her on the head with the barrel. She gave him all the money she had, KShs1 750. Another person, holding a panga also walked in and headed for the bar-counter where he took more money. Lydia was then ordered to lie down and was covered with a carton. From that position, she heard beer bottles and shelves been shaken and the robbers left. She confirmed later that the items listed in count one of the charge sheet were stolen. Mathenge (PW8) and the other customer were also lying down on the orders of the appellant who was demanding money as he beat them up. The appellant took KShs1 000 from Mathenge’s trouser pocket. During that commotion Magdalene Wangari Gitahi, (Magdalene) (PW2) who also worked in Corner Bar in the kitchen came up to the door of the kitchen and saw the appellant near the door holding “a black thing” later identified as a pistol. She looked at the appellant and saw him well because all security lights outside and the lights inside the bar were on. She then ran off screaming and whistling to attract members of the public. Lydia was also screaming and when members of the public came to their assistance the robbers had escaped. One of the members of the public who came was Joseph Ndonga Ngaru (Ndonga) (PW6). Muita, who heard the screams as he walked home also returned to the bar.

When Muita arrived, Lydia asked him about “Waithaka”, (the appellant) and Muita confirmed that he knew him, his home and where he worked. He was forced by the members of the public to lead them to the home of the appellant and to produce him because he (Waithaka) had carried out the robbery. Muita

further confirmed that he had earlier walked out of the bar with the appellant and had talked to him for a short while before leaving him alone and walking home.

Lydia (PW1), Magdalene (PW2), Muita (PW3), Ndonga (PW6), Mathenge (PW8) and other members of the public headed towards the Chief's camp at about 2:00am, where they were given two armed administration police officers (APs) to accompany them. One was APC James Mwangi (PW7). They split into three groups and armed themselves with pangas, sticks, torches and other items and they set off towards Gitwiga area, which Muita said was the appellant's home area. After walking for about three kilometres along the road up to a place called Gura or Matikimeri Bridge, the first group was confronted by two people who emerged from the side of the road flashing torches and ordering them to lie down. The group also had torches and they refused to obey the order to lie down instead flashing torches back on the two assailants. One assailant was holding a panga while the other held a pistol. Ndonga (PW6) who had a panga went for the person holding the gun and cut him twice on the face and he fell. The gun also fell down. The other robber escaped. Lydia (PW1), Magdalene (PW2) and Mathenge (PW8) were in that first group and they recognised the person who had been cut as the appellant who had earlier robbed them. Muita (PW3) who was in the group following the first group together with APC Mwangi (PW7) arrived at the scene and Muita recognised the appellant also. APC Mwangi collected the pistol. The group then went to the place where the two assailants had emerged from and found a leather jacket laid on the ground and some money on top of it. They also found a panga, three packets of cigarettes, and a receipt. APC Mwangi (PW7) took possession of all the items and arrested the appellant. He handed over the appellant and the items to Nyeri Police Station.

The jacket which was recovered at the scene of the appellant's arrest belonged to John Waiganjo Itegi (Itegi) (PW5). He was at Ndungamano Bar in Ndungamano Market with three other patrons at about midnight when the appellant came in. The bar salesman was James Ngaria Ndegwa (Ndegwa) (PW4) who was about to close the bar. But the appellant said he wanted one beer to drink. He also ordered one beer each for the other patrons. He then said he wanted to play pool but Ndegwa told him there was no pool table. The appellant asked Itegi (PW5) to escort him to the toilets but when they returned to the bar, the appellant pulled out a pistol and ordered everyone to lie down. He ordered Ndegwa to open the cash box and he took all the cash KShs2 500 together with a receipt which was in the cash box. He also took cigarettes and removed Itegi's leather jacket as another person who was with the appellant stood guard. The assailants then locked up Ndegwa, Itegi and the other patrons in the counter and disappeared. Later Itegi and Ndegwa were able to identify the recovered jacket and the receipt together with the appellant who had stayed with them for about 15-30 minutes in the well-lit bar.

The pistol that was used in the two robberies had been issued to one Senior Sergeant Joram Songok of CID on 1 December 1997 by IP Patrick *Kilonzo* (PW9) of CID Headquarters. It had been subsequently stolen from Senior Sergeant Songok. It was examined by a ballistic expert, William Lubanga (PW10) and he confirmed its make, caliber, general and mechanical condition. It was capable of being fired although its detachable magazine was missing.

The appellant in his defence did not deny that he was at Karangia Market at a late hour but he said he went into a shop there to buy cigarettes and met one person he knew. They were walking home when this person left him and as he walked alone along the road to his home, he decided to smoke after he saw some people near Gura Bridge smoking. He was scared of those people and decided to hide beside the road. Shortly, a group of people came along and he came out of his hiding to join them and cross the Gura Bridge together. Then one person in the group jumped on him and asked him what he was doing there. The appellant was slightly drunk and as he tried to explain, that person cut him and he fell down unconscious. He came to in hospital and was subsequently charged with the offences which he denied.

On the totality of that evidence the trial Court identified the issue of identification of the appellant as most critical and dealt with it as follows:

> "I find that from the time PW3 and accused left the bar and the accused's return to the bar was a few minutes, PW1 could not have therefore not (*sic*) forgotten that connection between accused and PW3. I also find that the very fact that PW1 told PW3 that the person who had robbed the bar was the person PW3 had talked to is testimony that PW1 was clear in her mind about the accused person and that this was not an afterthought. I find therefore that the identification of the accused in the first bar was quite positive; the conditions were quite favourable for such identification. This was direct evidence and I have no reason to doubt it.
>
> In the second bar, the accused went and stayed for about 30 minutes, he talked to the patrons and even bought them beers before he turned on them and robbed them. PW4, the bar attendant, stated that he saw the accused clearly as he is the one who was selling him beer. This witness also stated that the lights were on. His evidence was corroborated by that of Wanjohi (PW5) who was robbed of a jacket. This evidence was further corroborated by that of PW1 an AP who recovered the PW5's jacket. PW7 stated that he found the jacket beside the road where accused had emerged from to attack the group he was with.
>
> Wanjohi positively identified his jacket and I find that it is accused and his colleague who is at large who had it. Accused had admitted that he was in the bar at Karangia where he bought cigarettes, he stated that he hid himself at Gura Bridge in fear of people who he saw smoking and who disappeared on seeing the mob I find that this cannot be true. According to PW6 (Ndonga), accused had a pistol and was struggling with a member in his group where this witness cut accused and the pistol fell down.
>
> PW7 an AP confirmed that he recovered the pistol from where accused had fallen *(sic*) this witness was not far back in the group when accused was cut. I find that accused was positively identified in both incidents. I find the *modus operandi* similar in the first bar and the second bar."

The superior Court re-evaluated the entire evidence too as it was bound to on a first appeal and arrived at concurrent findings as follows:

> "The evidence of PW1 on the identification of the appellant was corroborated by PW2 and PW3. The appellant had bought cigarettes when he came into the bar and PW1 immediately recognised him as the person who had bought cigarettes and held a conversation with PW3. PW2 came from the kitchen and identified the appellant. It will be noted also that the appellant was recognised by PW1 and PW2 at the scene when he was arrested and this was before PW3 (Muita) came to the scene. When Muita arrived, Muita also confirmed that the appellant was the person who came into the bar. The evidence against the appellant was just overwhelming. As regards the other counts, the appellant was found in possession of the beer receipt and the jacket which had been stolen a short while back. The doctrine of recent possession therefore applies. The appellant was further identified by the owner of the jacket."

As this is a second appeal, only points of law may be raised since this Court will not disturb concurrent findings of facts made by the two Courts below unless those findings are shown to be based on no evidence – see *Njoroge v Republic* [1982] KLR 388; *Karingo v Republic* [1982] KLR 213.

The appellant raised six grounds in a memorandum of appeal drawn by him in person and argued basically as four grounds by learned counsel Mr *Gichimu*. In essence Mr *Gichimu* sought to establish that there was no re-evaluation of the evidence by the superior Court and that there was no acceptable identification of the appellant. The grounds and the submissions thereon may be paraphrased and summarised:

1. There was no basis for the conviction of the appellant on counts III and IV relating to robbery against Ndegwa (PW4) and Itegi (PW5) respectively. That is because the two witnesses did not know the appellant before but no identification parade was held. That the two identified some jacket and receipt which was allegedly found on a roadside was no probative of physical possession of those items by the appellant and therefore not corroborative of the offences charged.

Responding to that ground of appeal, learned Senior State counsel Mr *Orinda*, submitted that the holding of an identification parade would have been futile since the two witnesses had already been informed upon reporting to the police the following day about the events of the previous night leading to the recovery of the items. The appellant had an obvious injury on his face. As for possession, the items need not have been physically held by the appellant when he was arrested. They were, he admitted, within the vicinity of his abode or wherever he was found, which was sufficient.

It is indeed true that there was no identification parade held in respect of the two witnesses and their identification was at best dock identification, but we think it was for obvious reasons the right thing for the prosecution to do. Both Courts below relied more on the evidence of recent possession of the stolen items which the witnesses positively identified as theirs.

The fallacy in submissions of counsel, we think, is that there was no possession by the appellant because it was not physical. Possession is defined in the Penal Code in section 4, as follows:

"(*a*) Be 'in possession' of or 'have possession' includes not only having in one's own personal possession but also knowingly having anything in the actual possession or custody of any other person, or having anything in any place (whether belonging to or occupied by oneself or not) for the use, or benefit of oneself or of any other person.

(*b*) If there are two or more persons and any one or more of them with the knowledge and consent of the rest has or have anything in his or their custody or possession, it shall be deemed and taken to be in the custody and possession of each and all of them."

That definition, we think, is wide enough to cover the circumstances prevailing in this case. We are also satisfied that the two lower Courts correctly evaluated the evidence on possession of the recently stolen goods and applied the presumption of law arising therefrom correctly – see *Obonyo v Republic* [1962] EA 542.

1. The evidence of Muita (PW3) was erroneously relied on since it was hearsay and it lent no weight to the identification evidence of Lydia

(PW1) and Magdalene (PW2) who only had a fleeting sight of the robbers before either being covered in a carton (Lydia) or running away (Magdalene).

To this Mr *Orinda* submitted that Muita's (PW3) evidence was not evaluated for the robbery but, in addition to that of Lydia and Magdalene, for the identification of the appellant. Both Courts below found as a fact that the appellant was known to Muita and that there was sufficient lighting throughout and the opportunity for the two witnesses to have identified him.

For our part we see no reason to depart from those findings. The three witnesses supported each other credibly on material particulars of the identification of the appellant to leave no room for entertainment of reasonable doubts.

1. There was no reference to any evidence relating to count two where Mathenge (PW8) is alleged to have been robbed of KShs1 000. On the contrary the evidence from Lydia (PW1) was that the customers she was serving, (Mathenge among them) were drunk and it was not possible for him to have identified the appellant.

Mr *Orinda* submitted that the drunkenness of Mathenge, if indeed it was so, did not prevent him from being robbed. Lydia testified that her customers were robbed and Mathenge was in the group that went to the Chief's Camp, pursued the appellant, and assisted in his arrest.

We think once again the appellant is clutching at straws here. The robbery in Karangia Bar was considered as one transaction by the Courts below. Both Mathenge and Lydia were believed on the accounts they presented of the incident. We find no reason to fault them.

1. Finally the defence of the appellant, Mr *Gichimu* submitted, was totally ignored and, if it was considered, the two lower Courts would have come to the conclusion that the appellant was attacked and robbed by a different gang.

We do not think the appellant's defence was ignored. The trial Court considered and dismissed it. We can detect no mistake in the judgment of the superior Court, as far as the four convictions recorded against the appellant are concerned.

The only matter that invites our intervention is the sentences meted out by the two Courts below. The appellant was sentenced to death on all four counts of robbery and a jail sentence imposed for the non-capital offence. In that respect we need only repeat what we have said severally and more recently in *Boye and another v Republic* civil appeal number 19 of 2001 (UR), as follows:

> "We have repeatedly said that where an accused person is convicted on more than one capital charge as was the case here, the sensible thing to do is to sentence him to death on only one of the counts and leave the others in abeyance, including any sentence of imprisonment. The reason for this ought to be obvious to anyone who was minded to apply common sense to the issues at hand. In case of death, if the sentence is to be carried out, a convict cannot be hanged twice or thrice over; he can only be hanged once and hence the necessity for leaving sentence on the other counts in abeyance. And once a person has been sentenced to die, there can be no sense in imposing on him a prison term. The case of the first appellant provides a good illustration of this. If the appeal is heard and finalised before the sentence of seven years' imprisonment is served is he required to serve that sentence and complete it first before the sentence to death is carried out? We can find no sense at all in such a proposition and the long practice which we are aware of is that once a sentence of death is imposed once, the other counts are left in abeyance so that if there was a successful

> appeal on the count on which the death penalty has been imposed, the Court dealing with the appeal would consider all the counts and if necessary, impose the appropriate sentence on the count on which the appeal is not allowed. We hope that sentencing Courts will take heed of these simple requirements and act appropriately."

Also see *Kaimoi v Republic* [2005] 1 EA and *Muiruri v Republic* [1980] KLR 70.

In the result we dismiss this appeal against the convictions recorded against each of the five counts. We set aside the sentences of death imposed on count two, three and four and uphold the sentence imposed on count one. That sentence is sufficient. We also set aside the sentence of five years imposed on the appellant on count five.

These are our orders.

For the appellant:
Mr Gichimu

For the respondent:
Mr Orinda, Senior State counsel instructed by Attorney-General

Galgalo and another v Republic
[2005] 1 EA 63 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	7 May 2004
Case Number:	16/02
Before:	Tunoi, O'kubasu JJA and Onyango Otieno AGJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Crime – Robbery with violence – Accused arrested after search by police officers – Footprints followed for 40 kilometres into a thicket – Search in the thicket after exchange of fire revealed some stolen items – Whether there was proper identification of the accused – Whether defence presented may have been plausible.

[2] Criminal procedure – Appeal – Duty to reconsider evidence – Duty to consider defence.

Editor's Summary

After an armed robbery, the victims reported to the nearest police station. Police officers visited the scene of the crime and thereafter followed the footprints of the suspects for about 40 kilometres. The footprints led into a thicket wherein some armed persons were hiding, who opened fire on the police. After an exchange of fire, the accused person was injured and immediately arrested. Some of the stolen articles were recovered in the thicket after a search.

In defence, the appellants maintained that they were tending their farm and herding livestock near

the thicket when they were shot at. The trial Court and the superior Court on first appeal totally ignored this defence and did not refer to it at all. The question arising was whether failure to consider a defence would render the conviction unsound and liable to being quashed.

Held – The total failure by the trial Court and the superior Court on first appeal to consider the appellants' defences was a grave omission. The said failure was contrary to justice and unsettled the judgment. *Okale v Republic* [1965] EA 555 followed.

There had therefore not been proper identification of the appellants. It would be unsafe to allow the convictions to stand, and the appellants' convictions and sentences of death would be set aside.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Okale v Republice [1965] EA 555 – **F**

Judgment

Tunoi, O'kubasu JJA and Onyango Otieno AGJA: The two appellants, Mohamed Galgalo and Hussein Godana Wako, were on 7 July 2000, convicted by the Senior Resident Magistrate, Isiolo, on two counts of robbery with violence contrary to section 296(2) of the Penal Code and sentenced to suffer death. Their first appeal to the High Court of Kenya at Meru (Juma and Tuiyot JJ) was dismissed on 13 September 2001. Thus, this is the second appeal.

At the conclusion of the appeal, it became crystal clear to us that it would be unsafe to uphold the convictions. This was so because the prosecution evidence was beset by contradictions, and the identification appeared tainted, unreliable and mistaken.

Further, it is regrettable to note that the first appellate Court failed to realise that it is its duty to reconsider the evidence, evaluate it itself and draw its own conclusion in deciding whether the judgment of the trial Court should be upheld or not. In the particular circumstances of this case, we think that the omission by the first appellate Court to perform this duty has occasioned the appellants a failure of justice.

The prosecution allege that at about 3:30am on 1 November 1999, a gang of robbers attacked and robbed attendants of Millennium petrol station at Isiolo Town of money at gunpoint. The gang proceeded to beat them up and tied them with ropes before escaping. A report was made to a local police station at or about 5:00am. A team of police officers allegedly followed footprints, which led them into a thicket 40 kilometres away. Suddenly the police officers were shot at by a group of people hiding in the thicket. An exchange of fire ensued resulting in the injury of the appellant, Mohamed Galgalo, who was immediately arrested. A search within the bush ended in the recovery of some articles, which had been stolen from the petrol station.

In his defence before the trial Court the appellant, Galgalo said that he had been looking after his cattle near the thicket and was shot and injured by the police for no apparent reason. The other appellant maintained that he was tending his shamba near the thicket when he was arrested.

The trial Court did not consider the case for the appellants and no reference is made of it in the trial Magistrate's judgment. The first appellate Court, also, totally ignored it. This omission is indeed grave. The predecessor of this Court said this in *Okale v Republic* [1965] EA 555:

> "Failure to consider the defence is contrary to natural justice and unsettles the judgment."

The prosecution did not, in our view, disprove the fact that the appellants might have been innocent villagers pursuing their daily occupations.

A stretch of 40 kilometres is not a short journey. It is also possible that it covers a varied and rugged terrain, criss-crossing rivers, roads and cattle paths. It is impossible, in the circumstances, to envisage a continuous unbroken line of footprints running to such a great length. It is possible, therefore, that the foot prints leading to the thicket might not belong to the appellants at all.

None of the witnesses at the petrol station was able to identify the appellants as some of the gang of robbers that took part in the robbery. Again, the complaint was unable to clearly identify as his property, the articles recovered from the appellants when arrested at the thicket. Moreover, the said articles were of common usage without any identifiable distinctive marks.

We have evaluated the evidence ourselves and we find it unsafe to allow the conviction to stand. We allow the appeal, quash the convictions and set aside the sentences of death. We order the appellants to be released forthwith unless held for other lawful cause.

For the appellants:
Information not available

For the respondent:
Attorney-General

Gitahi and another v Maboko Distributors Ltd and another
[2005] 1 EA 65 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of ruling:	11 February 2005
Case Number:	65/04
Before:	Tunoi, O'kubasu and Onyango Otieno JJA
Sourced by:	LawAfrica
Summarised by:	E Ongoya

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[1] Civil procedure – Pleadings – Parties bound by their pleadings.

[2] Evidence – Proof – Standard of proof – In civil proceedings – On a balance of probabilities.

[3] Negligence – Proof of negligence – Res ipsa loquitor – *Party relying on the doctrine to prove facts – Circumstances under which doctrine may be applied.*

Editor's Summary

The appellant was plaintiff in High Court civil case number 599 of 1999. He sued both respondents seeking judgment against them jointly and severally for special damages, damages for loss of life, loss of earnings and dependency together with interest and costs. The appellant had filed the suit on behalf of the estate of his deceased son. It was his pleading that at all material times, the deceased was on

duty as a loader when the second respondent so negligently drove, managed and/or controlled the motor vehicle registration number KNF 647 owned by the first respondent.

Held – The Court has to decide a case before it on the ordinance before it and on the law.

Parties are generally confined to their pleadings unless pleadings were amended during the hearing of a case (*Galaxy Paints Company Limited v Falcon Guards Limited* [2000] EA 385 followed).

The respondent having denied ownership of the subject motor vehicle, and the appellant having not adduced any evidence to prove the ownership, it cannot be said that the learned trial Judge was wrong in dismissing the appellant's claim.

To rely on the doctrine of *res ipsa loquitor* the plaintiff must first prove the facts which give rise to what may be called the *res ipsa loquitor* situation. There is no assumption in favour of such facts (*Wanyama and others v Nairobi City Council* [1998] LLR 833 (CAK) adopted).

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Galaxy Paints Company Limited v Falcon Guards Limited [2000] EA 385 – **F**

Wanyama and others v Nairobi City Council [1998] LLR 833 (CAK) – **A**

United Kingdom

Moore v R Fox and Sons Limited [1956] 1 All ER 182

Judgment

Tunoi, O'kubasu and Onyango Otieno JJA: The appellant, Chege Gitahi, is the father of Peter Gikonyo Chege, who according to a certificate of death produced in evidence in the superior Court, died of haemothorax due to bruised lungs due to multiple fractured ribs, in a road traffic accident. In a plaint dated 23 March 1999, the appellant sued both respondents in the superior Court through his advocate seeking judgment against them jointly and severally for KShs33 800 being special damages; damages for loss of life, loss of earning and dependency; interest on the two claims at Court rates and costs of the suit. At paragraphs four and five of the same plaint, the appellant stated as follows:

> "4. At all material times relevant to this suit, the plaintiff had a son, one Peter Gikonyo Chege, hereinafter referred to as the deceased, while the first defendant herein owned a motor vehicle registration number KNF 647 a Fiat lorry (hereinafter referred to as Fiat) which was been (*sic*) driven, managed and/or controlled by its servant and/or agent, the second defendant. This suit is brought against the first defendant due to the negligent acts of the second defendant on the basis of the doctrine of vicarious liability.
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> 5. On or about 29 April 1998 the deceased was carefully on duty as a loader at Umoja Stores when the second defendant so negligently drove, managed and/or

controlled the said Fiat in that he reversed the same as a result of which it violently hit the deceased in consequence whereof he died and lost his happy and prosperous life.

Particulars of negligence

The second defendant was negligence (sic) in that:

(i) He drove without due care and attention.

(ii) He reversed the said Fiat where it was unsafe to do so and hit the deceased without cause at all.

(iii) He failed to hoot or to give any signal that he was about to reverse the said motor vehicle.

(iv) He failed to manage and control the said Fiat so as to avoid colliding with the deceased.

(v) He failed to have any or sufficient regard for the deceased knowing very well that he was on duty.

(vi) He failed to keep any proper look-out.

And as far as it shall be applicable, the plaintiff shall at the hearing of this suit, rely on the doctrine of *res ipsa loquitur*."

The respondents, who were also represented, filed a joint defence in which they challenged the legal capacity of the appellant to sue them under the Law Reform Act and/or the Fatal Accidents Act. They also, in the same statement of defence, stated at paragraphs 4 and 5 as follows:

"4. The defendants deny that motor vehicle registration number KNF 647 belonged to the first defendant or that it is vicariously liable for the second defendant's alleged negligent acts or at all and puts the plaintiff to strict proof thereof.

5. The defendants deny that on 29 April 1998, the deceased was lawfully on duty as a loader at Umoja Stores or that the second defendant negligently drove and/or managed motor vehicle registration number KNF 647 and caused an accident in the manner pleaded in paragraph 5 of the plaint. Accordingly, all the particulars of negligence set out thereunder as (i) – (vi) and attributed to the second defendant are specifically denied and the plaintiff put to strict proof thereof. The defendants further aver that the doctrine of *res ipsur (sic) loquitor* is not applicable in the present case."

It is clear from the parts of the pleadings we have reproduced hereinabove that the respondents denied ownership of the subject motor vehicle; that the first respondent denied being vicariously responsible for the negligent acts of the second respondent; that they denied the allegations of the second respondent having been liable for the accident; that they denied the particulars of negligence pleaded in the plaint and they also denied having in any way caused the death of the deceased. A statement of the agreed issues, which was signed by the learned advocates for both the appellant and the respondents witnesses all these. We do reproduce the first eight issues that were framed by the parties herein below for ease of reference. The issues were as follows:

"1. Does the plaintiff have capacity to bring the suit under the Law Reform Act and/or the Fatal Accidents Act?

2. At all material times did motor vehicle registration number KNF 647 belong to the first defendant?

3. Is the first defendant vicariously liable for the negligent acts of the second defendant?

4. On 29 April 1998, was the deceased Peter Gikonyo Chege lawfully on duty as a loader at Umoja Stores?

5. Was the second defendant negligent in the manner he drove, managed and/or controlled motor vehicle registration number KNF 647 so as to cause the occurrence of the said accident?

6. Is the doctrine of *res ipsa loquitur* application to the present suit (*sic*)?

7. Did the deceased contribute to the occurrences of the accident, and if so, what is the degree of contribution?

8. Is the plaintiff entitled to reliefs sought in the plaint?"

After all the procedural requirements were complied with, the suit came up for hearing before the superior Court (Ang'awa J) who, after full hearing and after considering each issue as is required by law, dismissed the suit stating at the end of her considered judgment as follows:

> "As this suit has not been proved upon a balance of probability the same be and is hereby dismissed with costs to the first and second defendants."

That decision is what prompted the appeal now before us. Five grounds were argued three of which were:

"2. That the learned Judge erred in law and fact by finding that a party could not call his opponent as a witness while there was no legal basis for finding so.

3. That the learned Judge erred in law and fact by finding that the appellant had not established the first respondent as the owner of the motor vehicle in issue while no evidence had been adduced to the contrary.

4. That the learned Judge erred in law and fact by finding that the deceased was not employed by the first respondent, wile (*sic*) there was no evidence to that effect."

The appellant testified before the superior Court. He called no other witness and the respondents did not offer any evidence. The appellant's evidence was in effect that on 4 April, while at home, he received information that his child (deceased) was run over where he was employed at Mavoko Distributors. He went to Mavoko Distributors, then to Buruburu and to the mortuary. He confirmed that the deceased who was 30 years old, was dead. He obtained a death certificate and a police abstract report, both of which he produced as exhibits. He also produced Form P and A85 which was referred to in the list of documents as "limited grant", and a letter from Pan Africa Insurance Company Limited which merely stated that the insurance company was obtaining further details on the matter from their insured and would therefore revert to the appellant's advocates on liability. His further evidence was that his son had been working and was earning a total of KShs6 000 per month but he had nothing to show for the same salary, and that both the appellant and his wife (deceased's mother) were being helped by the deceased. In cross-examination, he stated that he had no papers to show that the deceased worked with Mavoko Distributors and that, as to the accident, he was "told what occurred". In re-examination, he said he was told the deceased had died on 29 April, and he received that information on 5 May.

The above was, according to the record before us, the entire evidence upon which the superior Court had to decide the suit. It is trite law that a trial Court of law has to decide a case before it on the evidence before it and on the law. Further, the law, as we understand it, is that a Court of law would determine a case on the issues that flow from the pleadings and judgment would be pronounced on the issues arising from the pleadings or from issues framed for the Court's determination by the parties. It is also a principle of law that parties are generally confined to their pleadings unless pleadings were amended during the

hearing of a case. This principle was succinctly pronounced in the case of *Galaxy Paints Company Limited v Falcon Guards Limited* [2000] 2 EA 385 where this Court stated as follows:

> "It is trite law, and the provisions of Order XIV of the Civil Procedure Rules are clear, that issues for determination in a suit generally flow from the pleadings and unless pleadings are amended in accordance with provisions of the Civil Procedure Rules, the trial Court, by dint of the provisions or Order XX, rule 4 of the aforesaid Rules, may only pronounce judgment on the issues arising from the pleadings or such issues as the parties have framed for the Court's determination."

In order that the trial Court may decide on the same issues, the Court has to be bound by the evidence adduced before it and the law. We have reproduced the issues that were framed by the parties hereinabove. We have also reproduced the salient parts of the pleadings from which the same issues were framed. In our own independent consideration of the evidence afresh, as we are in law enjoined to do, and as the appellant is entitled to, as this is a first appeal, we are of the opinion that the main issue was as to whether, at the material time the motor vehicle registration number KNF 547 belonged to the first respondent. The appellant pleaded that the subject vehicle belonged to the first respondent. The respondents denied the same. That, in law, meant that the appellant had to prove the same allegation within the standard of probability. The appellant never alluded to that aspect in his evidence. Unfortunately, the police abstract report (Form P.10A (revised)) which he produced in Court did not throw any light on this important part of the appellant's case. The appellant availed no further evidence on the same. We have anxiously considered the entire evidence on record but we can find nothing to persuade us that the learned Judge was wrong in her conclusion.

It was not proved that the deceased, Peter Gikonyo Chege, was an employee of the first respondent. The appellant, in his evidence made it clear that he had no documents to prove this allegation. While on this ground of appeal, we note that the learned Judge did not make a specific finding that the deceased was not employed by the first respondent as is alleged in ground four of the memorandum of appeal. What the record shows is as follows on the Judge's findings on issue number four:

> "Was Peter Gikonyo Chege lawfully on duty as a loader at Umoja Stores? No evidence was adduced as to whether Peter actually was a loader and that he worked there. No eye witness or any witness who would come to confirm that Peter was actually employed as loader gave evidence. I find this issue was never proved."

That, in our view, is not a finding that the deceased was not employed by the first respondent. It is a finding that the allegation that the deceased was employed had not been proved. Those two aspects are different as the Court merely stated that whether Peter was employed by the first respondent or not, the appellant had not proved that he was indeed employed by the first respondent. Again, as there was no eye witness as to what actually happened and how the alleged accident took place, and further as there was no other witness to throw some light as to what could have happened, say like a police officer producing a sketch plan of the scene of the accident, and the appellant stated in his evidence that he relied on information only, all particulars of negligence were never proved and the record shows that no attempt was made to prove any particulars of negligence. As to the reliance on the doctrine of *res ipsa loquitor*, there was again no evidence of what actually happened and how the

accident (if any) occurred to enable the Court to adopt that principle in its decision, for the Court could only come to that conclusion upon evidence of a witness who stated what happened at the material time. In the case of *Wanyama and others v Nairobi City Council* [1998] LLR 833 (CAK), this Court stated as follows:

> "That the question of *res ipsa loquitor* has to be tested in an assessment of evidence is, we think, confirmed by a passage in the judgment of Lord Evershed MR in *Moore v R Fox and Sons Limited* [1956] 1 All ER 182 at 190. He said:
>
> > 'It must, as I venture to think, always be a question whether, on proof of happening of a particular event, it can with truth be said that the thing speaks for itself. The event or 'thing' may, or may not, produce that result. Not every accident has, without more, that effect. If, on a closer analysis of the happening and its circumstances, it does not in truth appear fairly to follow that the proper inference is one of negligence, then the case is not one of *res ipsa loquitor* at all.'
>
> The plaintiff must prove facts which give rise to what may be called the *res ipsa loquitor* situation. There is no assumption in favour of such facts."

In the instant case, there is nothing on the record to show how the accident happened. There is no evidence to show how the second respondent was involved and what he did that resulted in the accident. In short, there is no evidence upon which an inference can be drawn as one of negligence.

Lastly, the appellant states that he was denied a chance to call an eye witness. On our own reading of the record, we cannot see merit in this contention. This appellant was represented by a counsel. His counsel never sought an adjournment to call a witness, and no such application was rejected by the Court.

The foregoing will show, that having on our own, re-appraised the entire case that was before the superior Court and having in particular considered the pleadings, the agreed issues as framed, the evidence, the judgment and the law, we do agree with the learned Judge in her findings and judgment. In the result, we find that this appeal has no merit and it cannot succeed. It is dismissed.

On costs, we note that the appellant filed this appeal as a pauper although in the superior Court he was represented. We therefore make no order as to costs.

For the appellant:
Information not available

For the respondents:
Information not available

Kaimoi v Republic
[2005] 1 EA 70 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	13 May 2005
Case Number:	47/01
Before:	Omolo, Githinji JJA and Deverell AGJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

[1] Crime – Robbery with violence – Possession of a firearm – Whether particulars of the various offences had been proved – Whether possession implies actual carrying – Whether appropriate for accused to be convicted for more than one of the successive offences – Section 4 – Penal Code (Chapter 63).

[2] Criminal procedure – Sentence – Accused sentenced to one capital penalty and two smaller terms – Whether sentence appropriate – Proper procedure where accused concurrently charged with a capital offence and other minor offences.

[3] Evidence – Identification evidence – Accused traced by tracker dog – Exchange of fire and subsequent injury to the accused who was arrested – Whether there was sufficient evidence to sustain the conviction – Whether alibi evidence of the accused had been considered.

[4] Evidence – Presumption – Possession of stolen goods – Accused found in vicinity of stolen goods – Whether this satisfies requirement of possession – Whether there is a presumption that the accused is the thief or a receiver.

Editor's Summary

The evidence of the prosecution was that the victims were robbed at night by armed gangsters who applied violence during the incident. The police begun tracking the robbers using footprints and a tracker dog the following morning. They went down a valley and after about four hours they spotted the bandits. An exchange of fire ensued after which the bandits ran away despite being pursued. One of the bandits was hit during the exchange of fire and arrested thereafter. He was in possession of a firearm, some ammunition, and was found next to some of the stolen goods which were strewn around him. The accused gave an unsworn statement in which he stated that he was a herdsman who was grazing cows at the scene of the arrest when he was shot by the police.

The trial Court was convinced that the accused had been found in possession of the stolen goods and the firearm, and that there was sufficient circumstantial evidence to identify him as one of the robbers who had earlier robbed the victims. After conviction and upon second appeal, the question of identification was raised, as was the propriety of convicting an accused person of a capital penalty and a concurrent prison term for a lesser offence.

Held – A second appeal must as a general rule be confined to points of law and a second appellate Court will not interfere with concurrent findings of fact by two lower Courts unless they are shown not to have been based on evidence. *Karingo v Republic* [1982] KLR 213 followed. Possession is proved even where the stolen goods are not found actually being carried by the accused but within his control or in his vicinity. Where a person is found in possession of recently stolen goods and does not account for his possession, there is a presumption of fact that he is either the thief or a receiver. *Obonyo v R* [1962] EA 542 followed. The concurrent findings of fact by the lower Courts were properly based on the evidence adduced.

Per curiam – Where a person is charged with a number of capital offences, it is preferable for the prosecution to proceed with one capital charge only and leave the other charges in abeyance, even where they appear interlinked. If the prosecution fails to heed that advice, then it is a good practice for the trial Court to sentence the accused person to one capital charge and leave the other charges in abeyance.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Karingo v Republic [1982] KLR 213 – **F**

Muiruri v R [1980] KLR 70

Mwangi v Republic [1983] KLR 327

Obonyo v R [1962] EA 542 – **F**

Judgment

Omolo, Githinji JJA and Deverell AGJA: The appellant, Abdi Hussein Kaimoi, was jointly charged before the Senior Resident Magistrate, Nanyuki, with two others namely, Mahat Ugas (second accused) and Osman Bidu J Thuo (third accused) with five counts of robbery with violence contrary to section 296(2) of the Penal Code; and one count of attempted robbery with violence contrary to section 297 of the Penal Code.

The appellant was separately charged in count VII with the offence of being in possession of a firearm without firearm certificate contrary to section 4(1) of the Firearms Act (Chapter 114) and in count VIII with the offence of being in possession of 19 rounds of ammunition contrary to section 4(1) of the Firearms Act.

The charges against the third accused were withdrawn before trial. The second accused was acquitted on all counts after trial. The appellant was convicted of the offence of robbery on count IV and sentenced to death. He was also convicted of the offence of being in possession of a firearm – AK47 rifle and being in possession of 19 rounds of ammunition in counts VII and VIII respectively and sentenced to two years' imprisonment on each count. The appellant was however acquitted of offences in counts one, two, three, five and six. His appeal to the superior Court was dismissed. He now appeals to this Court on three grounds.

On 2 April 1998 at about 7:15pm a gang of many people who were armed with rifles raided the home of John Dyke Kenyon (Dyke) – complainant in count I – in Mugwooni farm which is about 30km from Nanyuki Town. Dyke lived in the farm with his wife Jane Berret Kenyon (Jane), complainant in count IV – his son John Wilfred George Kenyon (Wilfred) – complainant in count III; his daughter in-law Amanda Kenyon (Amanda); complainant in count II and his many workers including his watchman Akale Lokuol (Akale), complainant in count V and Abdi Gollo Boba, complainant in count VI. Wilfred, his wife Amanda and their two children had gone out of the farm to inoculate sheep. They returned home in a land rover at about 7:15pm. After the landrover passed the gate Akale saw two people who were dressed in military shirts running after the vehicle. He asked who they were and he was shot at three times. Many people emerged and started shooting at the vehicle and in the air. Wilfred stopped the vehicle at the farm's car park about 30 metres away. Upon stopping they were ordered out of the vehicle and beaten. The people wore jungle jackets and military boots and were speaking in Somali language. They stole some personal items from Wilfred and Amanda and then

demanded money. Wilfred told them that he would show them where the money was.

Thereafter, he led them to the door of his father's house. Dyke called him to open the door. Dyke took his revolver and peeped through the back glass door. A robber who was outside armed with an AK47 rifle spotted him and shot at him. Dyke fell down unconscious. The robbers broke the door of the house open and Wilfred and about four robbers entered the house leaving some outside. Upon entering the house one of them went to the dining room where Jane was. She was thrown on the floor and kicked with boots and hit with the butt of the gun several times. She was injured. Wilfred was pushed into his mother's bedroom where the safe was. He took about KShs70 000 which he gave to them but they beat him saying the money was not enough. Wilfred told them that there was more money in the office.

The robbers took a radio cassette, a portable digital radio, a load of clothes and Dyke's revolver from the house. They then proceeded to the office outside the house where Wilfred gave them a petty cash-box with about KShs4 000. The robbers also took KShs500 in coins after which they jumped over a fence and left.

Dyke and Akale sustained serious injuries. They and Jane were taken to Nanyuki Cottage hospital. The robbery was reported at Nanyuki police station. Chief Inspector William Okello and other police officers went to the farm. Wilfred handed over seven empty cartridges to him. On the following morning several police teams were formed who started tracing the robbers at 6:00am.

The police followed footprints from the scene led by a tracker dog. They followed the footsteps along a stream, crossed a stream and then descended down into a valley at Ilopolei area where they spotted the bandits at about 10:00am. An exchange of fire ensued. Somebody screamed during the shooting. The bandits ran away as they were shooting. They were pursued until they completely disappeared.

Police returned to the "hideout" where they had found the bandits and started searching the scene. They spotted a person not far from the stream and near a bush (appellant). He had been shot in the leg and hand and was seriously injured. Next to him was an AK47 rifle, and a magazine with 19 rounds of ammunition. There were many goods strewn around by the stream. Police called for a helicopter which airlifted the appellant to Nanyuki police station from where he was taken to hospital. Some of the recovered goods were identified by Jane as some of the goods stolen from the house during the robbery. William Lubanga, a firearms examiner, upon examination of the rifle and the live and spent cartridges recovered, concluded that three guns had been used to fire the cartridges and that the AK47 assault rifle recovered was used to fire only one of the spent cartridges.

The appellant in an unsworn statement at the trial stated that he was a herdsman and that he was at the material time at the river grazing cows when police appeared and shot him.

The learned acting Senior Resident Magistrate in a concise judgment concluded thus:

> "what is to be considered is whether first accused is one who had the recovered items; some are well identified as belonging to the complainants and ones stolen on the material night. I have no doubt that the same were well so identified. The

> circumstances under which first accused was arrested clearly indicate he was found by the stream where the items were recovered. He was also shot and injured in the shoot-out that ensued between police and the bandits, there was a rifle by his side. From the ballistic expert, it is clear that one of the cartridges recovered from the scene of the robbery had been fired from the rifle recovered from the first accused.
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> The explanation given by the accused in defence does not clear him from the fact that he was not innocently shot while grazing his cattle. There was no evidence to show he had any cattle or at all . . .”

It is apparent from that passage that the learned trial Magistrate was satisfied that the first accused had the recovered items; that the recovered items were identified as belonging to the complainants; that the appellant was found by the stream when the items were recovered; that the appellant was shot and injured in the shoot-out that ensued between the police and bandits; that the rifle was recovered from the appellant and that one of the cartridges recovered from the scene of robbery had been fired from the rifle recovered from the first accused.

In more precise terms, the learned trial Magistrate found that the appellant was in recent possession of the goods stolen during the robbery; that the appellant was found in possession of the gun used in the robbery; that he was a member of the gang which exchanged gunfire with the police and that he was injured during that shoot-out.

There are three grounds of appeal drafted by the appellant himself thus (in summary):

1. The testimonies tendered to establish appellant’s mode of arrest was riddled with doubts and was not enough to sustain a conviction.
2. That the connection between the appellant and the recovered exhibits was not sufficiently established.
3. The two Courts below erred in law in failing to give any weight to the appellant’s defence.

In support of the first ground of appeal, Mr *Kiage* for the appellant, referred to the evidence of the two police witnesses, Chief Inspector William Okello (PW8) and Police Constable Timothy Mutuma (PW10) who gave evidence regarding the circumstances of the arrest. He pointed out some discrepancies in the evidence of the two witnesses; that according to Chief Inspector William Okello, he saw two bandits before the shoot-out while PC Timothy Mutuma saw six bandits; that Chief Inspector William Okello said that it was not the appellant who was arrested while Police Constable Timothy Mutuma said that it was the appellant who was arrested after the shoot-out.

He submitted further that the appellant was found unconscious and that in that state he was incapable of being in possession of anything.

In support of the second ground, Mr *Kiage* referred to the discrepancy in the serial number of the gun shown in the charge sheet and in the evidence and the inconsistency and discrepancy in the evidence as to the number of spent cartridges recovered at the home of the Kenyons and submitted to the firearms examiner and doubted whether the single cartridge said to have been fired from the rifle in question was recovered from the home of Kenyons.

Lastly, in support of the third ground of appeal, Mr *Kiage* submitted that the appellant raised a defence which was probable and which was not negated by the prosecution.

All those complaints were raised by the appellant in his detailed written submissions in the superior Court.

The superior Court considered the evidence of Chief Inspector William Okello and Police Constable Timothy Mutuma and came to the conclusion that the appellant was in recent possession of the rifle with ammunition and some of the stolen goods. The superior Court also concluded that one of the spent cartridges recovered from the farm was fired from the rifle found in possession of the appellant. Thus there were concurrent findings on the material facts by the two Courts below. A second appeal must be confined to points of law and the second appellate Court will, as a general rule, not interfere with concurrent findings of fact of the two lower Courts unless they are shown not to have been based on evidence (see *Karingo v Republic* [1982] KLR 213).

Although the appellant was found injured in the bush and was not actually carrying the goods or the rifle and the ammunitions, the definition of "possession" in section 4 of the Penal Code is wide enough and covers the circumstances of this case.

The conviction of the appellant was based on circumstantial evidence – that is, recent possession of stolen goods, the appellant being in the group of bandits which exchanged gunfire with the police; the fact that the appellant was shot during the exchange of fire and that the appellant was found in possession of one of the guns used in the robbery.

If a person is found in possession of recently stolen goods and does not account for his possession there is a presumption of fact that he is either the thief or a receiver – (see *Obonyo v R* [1962] EA 542).

In order to draw an inference of guilt from such circumstances, the evidence must satisfy the well known standards stated in many decisions of the Court – see for instance *Mwangi v Republic* [1983] KLR 327.

The first and second grounds of appeal mainly raise questions of fact. We are satisfied that the concurrent findings of fact by the two Courts below were based on overwhelming evidence. We are further satisfied that the two Courts below drew the correct inference from the totality of the circumstantial evidence – that the appellant was one of the robbers. We see no merit in the appeal.

Before we conclude, we note that the appellant was charged with several capital offences but was convicted of one capital offence and sentenced to death. He was also convicted of two other offences and sentenced to two years' imprisonment respectively. We would respectfully repeat the previous observation of this Court in *Muiruri v R* [1980] KLR 70 – that where a person is charged with a number of capital offences it is preferable for the prosecution to proceed on one capital charge only and leave the other capital charges in abeyance, even though the charges appear to be interlinked.

In our view, if the prosecution fails to heed that advice then it is a good practice for the trial Court to sentence the accused on one capital charge and leave the sentence in the other charges in abeyance. The prevalent practice by subordinate Courts of sentencing an accused person to a prison term in addition to a sentence of death should be discouraged.

For that reason we would set aside the prison sentences in counts VII and VIII.

Subject to that correction the appeal against conviction for capital robbery in count IV is dismissed.

For the appellant:
Mr Kiage

For the respondent:
Attorney-General

Kapoma v Tanga Cement Company Ltd
[2005] 1 EA 76 (CAT)

Division:	Court of Appeal of Tanzania at Tanga
Date of ruling:	1 April 2004
Case Number:	96/03
Before:	Ramadhani, Nsekela and Msoffe JJA
Sourced by:	LawAfrica
Summarised by:	M Kibanga

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[1] Civil procedure – Appeal — Appellant filing appeal out of time – Whether notice of appeal constitutes application for proceedings – Rule 83(1) – Court of Appeal Rules.

Editor's Summary

When the appeal came up for hearing, the advocate for the respondent raised two preliminary objections. The first objection was that the appeal had been filed after 60 days since giving a notice of appeal, contrary to rule 83(1) of the Court of Appeal Rules.

The appellant argued that he was exempted by the provisions to subrule (1) because he had asked for a copy of proceedings in his notice of appeal which he lodged on 9 October 2001. The judgment of the High Court had been given on 28 September 2001.

Held – A notice of appeal is intended to notify the other party that there is an appeal which is contemplated on. A notice of appeal does not operate automatically to apply for proceedings. The appeal was filed out of time and was struck out without costs.

No cases referred to in ruling

Ruling

Ramadhani, Nsekela and Msoffe JJA: When the appeal came up for hearing Mr AJ *Akaro*, learned advocate for the respondent company, raised two preliminary objections for which he had given due notice under rule 100.

The learned advocate pointed out that the appeal has been instituted after the lapse of 60 days from the lodging of the notice of appeal as prescribed under rule 83(1). He said further that the applicant cannot claim to rely on the exception to subrule (1) of rule 83 because the letter asking to be supplied with a copy of the record of appeal was written on 11 September 2002 that is, beyond 30 days from the date of the decision sought to be challenged in the intended appeal. That decision was made on 28 September 2001.

To these objections the appellant, David Kapoma, who fended for himself, said that that letter of 11 September 2002 was a reminder and that he had asked for a copy of proceedings in his notice of appeal which he lodged on 9 October 2001, that is, within 30 days of the judgment of Mkwawa J. He also submitted that the notice of appeal, containing the application for the record of proceedings, was duly served on the respondent who, as a result, gave a notice of address for service.

To that submission, Mr *Akaro* said that it was improper to have the application for record of the proceedings contained in the notice of appeal. In any case, Mr *Akaro* went further to point out, what was asked for in the notice of appeal was a copy of judgment and not a copy of the proceedings which were applied for in the letter of 11 September 2002 which date is beyond 30 days.

The submission by the appellant that his letter applying for a copy of record proceedings is contained in the notice of appeal is a novel one. We agree with Mr *Akaro* that that is improper. A notice of appeal is intended to warn the would be respondents that there is an appeal which is contemplated on. One does not expect to find an application for record of proceedings in the notice of appeal. The rules could have provided that once a notice of appeal is lodged then that automatically operates to apply for a copy of proceedings. But that is not the case. There is another rule, albeit in the proviso, which specifically demands a letter to be written asking for a copy of the proceedings. This has to be deliberately done and is not a by-the-way affair.

In any case, as Mr *Akaro* pointed out, what was asked for in the notice of appeal, though we do not say that it was proper, was a copy of judgment. So, we are satisfied that the appeal was instituted outside 60 days provided for in rule 83(1).

The appellant made some lengthy submissions citing authorities, the Constitution of the United Republic of Tanzania of 1977 and the Employment Ordinance. Those were in relation to the second ground of preliminary objection that an order granting leave to appeal was not included in the record of appeal as required under rule 89(2)(*i*). The appellant conceded that omission and sought to rely on his submissions to play it down. But we do not think that we need to go into the second preliminary objection. Our finding on the first one is sufficient to strike out the notice of appeal.

Before we conclude, the appellant drew our attention to rule 106(*b*) which provides:

> "(*b*) a respondent shall not, without the leave of the Court, raise any objection to the competence of the appeal which might have been raised by application under rule 82."

However, the appellant overlooked that there is a provision for leave of the Court in that paragraph. Mr *Akaro* started by asking for that leave.

So, the notice of appeal is struck out with costs for having being instituted outside the prescribed time under rule 83(1).

For the appellant:
In person

For the respondent:
AJ Akaro

Karanja v Republic
[2005] 1 EA 78 (CAK)

Division: Court of Appeal of Kenya at Nyeri

Date of judgment: 13 May 2005

Case Number: 10/00

Before: Tunoi, O'kubasu JJA and Deverell AGJA

Sourced by: LawAfrica

Summarised by: C Kanjama

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[1] Crime – Robbery with violence – Accused person alleged to have robbed victims with other men after using violence – Subsequently found with stolen property and identified by the victim – Whether conviction would be sustained.

[2] Evidence – Identification – By single witness – Recent possession of stolen property – Whether identification evidence by single witness corroborated by possession of stolen property renders conviction safe.

Editor's Summary

The appellant was accused of robbery with violence. The evidence against the accused was that he had accosted the victim and his passenger when the victim attempted to drop off his passenger at her home. The incident took place at night. The victim and his passenger were robbed and their vehicle commandeered by the four robbers involved. The vehicle broke down and the victim was asked to assist the appellant, who was alleged to have been the driver, to repair the car using the vehicle's light. When the vehicle failed to start, the robbers abandoned the vehicle and the victims, who then reported the robbery to the police station.

The appellant was subsequently arrested in connection with a different offence. When he led police officers to his house, a pair of shoes was recovered which had been reported as stolen by one of the victims. The victim positively identified the pair of shoes as his, and also positively identified the accused in an identification parade. The accused raised a defence of alibi and argued that the evidence of identification was unsafe to sustain a conviction. He was convicted. The accused then appealed by way of a second and final appeal.

Held – Subject to certain exceptions, it is trite law that a fact may be proved by the testimony of a single witness but this rule does not lessen the need for testing with the greatest care the evidence of a single witness regarding identification, especially where it is known that the conditions favouring identification were difficult. In such case, what is needed is other corroborating evidence, whether direct or circumstantial. *Wendo and another v Republic* [1953] 20 EACA 166 followed.

In this case, there was evidence of identification coupled with evidence of recent possession of stolen property. This, together with evidence of a retracted confession which was accepted by the trial Court, was sufficient to convict the accused. *Okeno v R* [1972] EA 32, *Tuwamoi v Uganda* [1967] EA 84 followed.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Okeno v R [1972] EA 32 – **F**

Tuwamoi v Uganda [1967] EA 84 – **F**

Wendo and another v R [1953] 20 EACA 166 – **F**

Judgment

Tunoi, O'kubasu JJA and Deverell AGJA: John Munene, the appellant herein, was tried and convicted of robbery with violence contrary to section 296(2) of the Penal Code (Chapter 63) by the Principal Magistrate (JS Mushele Esq) at Nyeri and upon that conviction was sentenced to suffer death in the manner authorised by the law. He appealed to the High Court at Nyeri but by its judgment dated and delivered on 19 October 1999 the High Court (Juma and Mulwa JJ) dismissed his appeal. The appellant now appeals to this Court by way of a second and final appeal.

When the appeal came up for hearing before us on 9 May 2005, the learned counsel for the appellant, Mr *Gacheche wa Miano* submitted that the evidence of identification was not conclusive as the incident is alleged to have taken place at night after 9:30pm. He went on to submit that the learned Judges of the superior Court did not subject the issue of identification to fresh scrutiny. On the issue of a pair of shoes which the complainant identified to be his, Mr *Miano* was of the view that the pair of shoes was not properly identified. Finally it was submitted that the defence of alibi put forth by the appellant was not given due consideration.

On his part the learned Senior State counsel Mr *Orinda* supported the conviction of the appellant on the ground that identification was sufficient and reliable as there was enough light and the complainant was with the appellant for a long time. He further submitted that immediately after the robbery the appellant was found in possession of a pair of shoes which the complainant recognised as his which had been stolen during the robbery. It was Mr *Orinda*'s submission that the appellant had no explanation as to how he came to be in possession of the complainant's pair of shoes. There was then a confession which Mr *Orinda* submitted was admitted in evidence although retracted by the appellant.

The genesis of this appeal is a charge sheet in which the appellant was jointly charged with two other people with robbery with violence contrary to section 296(2) of the Penal Code. The particulars of the offence were that on the 18 June 1998 at about 9:45pm at Blue Valley Estate in Nyeri District of the Central Province jointly with others not before Court, being armed with dangerous weapons namely axes, *panga* and *rungus* robbed Charles Gichuhi Njine of cash KShs4 000, a pair of shoes, a cap and a motor vehicle registration number KAG 679U Nissan Matatu all valued at KShs605 000 and at or immediately before or immediately after the time of such robbery used actual violence on the said Charles Gichuhi Njine.

During the trial before the Principal Magistrate the complainant Charles Gichuhi Njine (PW1) testified how he was driving his motor vehicle registration number KAG 679U Nissan Matatu on the evening of 18 June 1998. Njine went to a nearby shop to watch World Cup and later at about 9:30pm passed a petrol station where he met Alice Wanjugu Muruathiga (PW2). Alice asked to be driven to her house at Blue Valley Estate and Njine obliged. On reaching Blue Valley Estate, Njine stopped the car for Alice to alight. Suddenly a group of four men appeared and held Alice. When Njine tried to intervene he was forced back into the vehicle where he and Alice were ordered to lie on the floor of the vehicle. These intruders then drove Njine and Alice to a place where the vehicle broke down. These people abandoned Njine and Alice at that place which Njine came to know was Kagumo Teachers' College. Njine was robbed of his pair of shoes, a cap and KShs4 000 while Alice was robbed of her wrist watch. The robbers forced Njine to assist them to repair the vehicle but when their efforts to repair the vehicle failed, they abandoned it there. Out of the four robbers, Njine and Alice were able to identify the appellant. The two witnesses testified that they were able to identify the appellant as the place was well lit by the vehicle lights and according to Njine he was standing next to the appellant most of the time.

From Kagumo Teachers' College where Njine and Alice had been abandoned Njine got a lift and reported the matter to the police. As a result of police investigations the appellant was arrested in connection with yet another offence. The appellant led the police to his house on 24 June 1998 where a pair of shoes was recovered. This pair of shoes was positively identified by the complainant Njine (PW1), which was stolen during the robbery.

After the arrest of the appellant, an identification parade was conducted and Njine and Alice were able to identify the appellant as one of the robbers during the incident of 18 June 1998.

There was then the evidence of Chief Inspector James Karanja Njue (PW6) to the effect that he recorded a charge and cautionary statement from the appellant in which the appellant admitted that he was one of those who had robbed the complainant on 18 June 1998. This statement was produced in evidence after the learned Principal Magistrate conducted a trial within a trial.

When put to his defence the appellant gave an unsworn statement in which he stated that on 23 June 1998 he left Nairobi arriving at Nyeri at about 3:00pm. He then went to a bar for drinks while watching World Cup on the television. At about 9:30pm he decided to look for a place to sleep, but on the way he was arrested together with other people. They were all taken to the police station. Later, an identification parade was held where a witness identified him.

The learned Principal Magistrate considered the evidence before him and came to the conclusion that the appellant was guilty of the offence and convicted him accordingly. He proceeded to sentence the appellant to death as mandatorily provided by the law. In the course of his judgment the learned Principal Magistrate stated *inter alia*:

> "No doubt this offence took place at night on the material date. The issue of proper and positive identification becomes of crucial importance. In the present case, it is clear that the complainant (PW1) and Alice Wanjugu (PW2) were forced to lie on the floor in the front cabin . . .

> An identification parade was conducted. The complainant picked the first accused from amongst the members of the parade.
>
> A pair of shoes was recovered from first accused. He had led the police to its recovery. The complainant identified the pair of shoes to be his.
>
> This (*sic*) is no challenge as regards to the recovery of those shoes."

The appellant's appeal to the superior Court was dismissed and in their judgment the learned Judges of that Court (Juma and Mulwa JJ) stated *inter alia*:

> "The complainant recognised the appellant because he was with the appellant in the front seat. The appellant was in command of the group and was driving the vehicle. When the vehicle stopped the appellant sought the help of the complainant repairing it. They even went under the vehicle together in an attempt to repair it. All this time they were using light of the vehicle (*sic*).
>
> An identification parade was conducted and the complainant picked out the appellant.
>
> Identification by PW2 Alice Wanjugu was criticised by the appellant as being dock identification. Assuming the identification by PW2 was disregarded is there other evidence pointing to the appellant as having been one of the robbers?
>
> Police Constable Stephen Wachira (PW4) testified that on 26 June 1998 the appellant led him to where a pair of shoes was. It had been hidden in a coffee plantation at Kangemi Estate. The pair of shoes was identified by this complainant as being his. The pair had been taken from him during the robbery. This took place barely a week after the robbery.
>
> We hold that even if one disregarded the evidence of PW2 Alice Wanjugu, the fact that the appellant led the police to the recovery of the complainant's shoes is in itself a corroborating factor."

Having so expressed themselves the learned Judges of the superior Court proceeded to dismiss the appellant's appeal.

At the commencement of this judgment we summarised the submissions made by Mr *Gacheche wa Miano* for the appellant and Mr *Orinda* for the State. The main issue in this appeal was identification of the appellant. This incident took place at about 9:45pm. The two witnesses Njine (PW1) and Alice (PW2) testified to the effect that out of the four robbers they were able to identify the appellant. The trial Court considered this issue and came to the conclusion that there was sufficient evidence on which the appellant could be convicted.

Mr *Miano*'s submission was to the effect that the identification of the appellant was not conclusive.

On this issue of identification we can do no more than refer to the well known case of *Wendo and another v R* [1953] 20 EACA 166 at 168 in which the predecessor of this Court said:

> "Subject to certain well known exceptions it is trite law that a fact may be proved by the testimony of a single witness but this rule does not lessen the need for testing with the greatest care the evidence of a single witness respecting identification, especially when it is known that the conditions favouring a correct identification were difficult. In such circumstances what is needed is other evidence, whether it be circumstantial or direct, pointing to guilt from which a judge or jury can reasonably conclude that the evidence of identification, although based on the testimony of a single witness can be accepted as free from the possibility of error."

In the present case there was the evidence of identification by the complainant (PW1) and his passenger, Alice (PW2). The evidence of Alice was criticised as being dock identification but even then there was the evidence of the

complainant (PW1). There was then the evidence of the recovery of the complainant's pair of shoes. It was the appellant who led the police to his house and to the coffee plantation where the pair of shoes was recovered. It is to be observed that the evidence of recovery of the complainant's shoes was never challenged. It was the appellant who led the police to where the pair of shoes was recovered. Mr *Miano*'s late attempt to show that these were ordinary shoes did not advance the appellant's case. Hence here we have evidence of identification whether by a single witness (PW1) or two witnesses (PW1 and PW2) coupled with evidence of recent possession of some of the property stolen during the robbery. Even assuming that this was a case of identification by a single witness there was other evidence of recent possession of some of the property stolen during the robbery.

The two Courts below were alive to the fact that the case against the appellant was based on identification and recent possession of stolen property. It is our view that relying on evidence of identification as corroborated by evidence of recent possession of stolen property the trial Court was entitled to convict the appellant. The superior Court considered the evidence and re-evaluated the evidence as per the decision in *Okeno v R* [1972] EA 32 and came to the same conclusion as did the trial Court that the appellant was guilty and hence his conviction was upheld.

On our part we would go further than merely considering the evidence of identification and recent possession of stolen property. There was the confession by the appellant. That is to be found in the charge and cautionary statement recorded by Chief Inspector Njue (PW6). The statement was retracted by the appellant but after a trial within a trial the statement was admitted in evidence. In *Tuwamoi v Uganda* [1967] EA 84 at 91 the predecessor of this Court said:

> "We would summarise the position thus – a trial Court should accept any confession which has been retracted or repudiated or both retracted and repudiated with caution and must before founding a conviction on such a confession be fully satisfied in all the circumstances of the case that the confession is true. The same standard of proof is required in all cases and usually a Court will only act on the confession if corroborated in some material particular by independent evidence accepted by the Court. But corroboration is not necessary in law and the Court may act on a confession alone if it is fully satisfied after considering all the material points and surrounding circumstances that the confession cannot but be true."

To conclude this judgment we wish to point out that the evidence against the appellant was based on identification of the appellant by the complainant, the recent possession by the appellant of some of the property stolen during the robbery and retracted confession by the appellant. In our view the evidence of identification taken together with evidence of recent possession by the appellant of the stolen shoes identified by the complainant coupled with retracted confession by the appellant makes the prosecution case watertight.

In view of the foregoing it is our considered opinion that the appellant's conviction was inevitable. Consequently, his appeal must be and is hereby dismissed. It is so ordered.

For the appellant:
Mr Gacheche wa Miano

For the respondent:
Mr Orinda, Senior State counsel instructed by Attorney-General

Karia and another v Attorney-General and others
[2005] 1 EA 83 (SCU)

Division: Supreme Court of Uganda at Mengo

Date of judgment:	16 December 2004
Case Number:	20/02
Before:	Odoki CJ, Oder, Tsekooko, Karokora and Kanyeihamba JJSC
Sourced by:	LawAfrica
Summarised by:	M Kibanga

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[1] Civil procedure – Appeal – Appeal to the Supreme Court – Whether appeal may be made to Supreme Court under section 14 – Section 15 – Expropriated Properties Act of 1982.

[2] Interpretation – Whether the word "appeal" in section 14 means suit – Section 14 – Expropriated Properties Act of 1982.

[3] Judgment – Judgment in rem *and judgment* inter partes *– Distinction between judgment* in rem *and judgment* inter partes*.*

[4] Res judicata *– Circumstances under which* res judicata *arises – Court deciding an issue is a suit where appellant not party – Whether* res judicata *applies.*

Editor's Summary

The appellants instituted appeal by way of a suit against the respondents in the High Court claiming various reliefs under section 15 of the Expropriated Properties Act of 1982. Preliminary objections, normally that the suit was *res judicator*, were raised and the suit was dismissed. A subsequent appeal to the Court of Appeal was rejected and the appellants moved to the Supreme Court.

After the appeal was heard, the Supreme Court *suo moto* raised a question as to whether an appeal in proceedings arising from section 15 could be properly made to the Supreme Court in view of the provisions of article 132(2) of the Constitution and section 6(1) of the Judicature Act.

The respondents argued that an appeal could be made to the Supreme Court under section 15 of the Act because the Act provided for "appeal" to the High Court. The appellants argued that the word "appeal" under section 15 were used in the sense of a suit.

On the question of *res judicata* the appellants' contention was that *res judicata* could not arise where the issues arose in a different suit not involving the present parties.

Held – Where a decision is made by the High Court in the exercise of its original jurisdiction, an appeal lies as of right from the decision of the Court of Appeal confirming, varying or reversing the High Court decision.

The word "appeal" as used in section 15 of the Expropriated Properties Act of 1982 has the same meaning as suit and is intended to originate a suit in the High Court.

The decision of the Minister from which an appeal may be brought under section 15 is not a judicial proceeding and the "appeal" cannot be as from one

Court to another; *Habre International Co Ltd v Kassim and others* [1999] 1 EA 125 explained.

Whether or not a legislation providing for exercise of a power provides for a judicial appeal, will depend on the wording of the particular legislation. Normally, the proper practice, where *res judicata* is pleaded as a defence, the trial Court should, where the issue is contested, try that issue and receive some evidence to establish that the subject matter has been litigated upon between the same parties, or parties through whom they claim.

The decision of the Court of Appeal in criminal appeal number 36 of 1996 was a judgment *in rem* and applied to the appellants in this appeal although they were not parties to it. The appeal was dismissed with costs.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Allibhai v Bukenya and DAPC Board civil appeal number 56 of 1995 (UR)

Departed Asians Property Custodian Board v Jaffer Brothers Limited [1999] 1 EA 55

Famous Cycle Agencies Limited and others v Karisa Supreme Court civil appeal number 16 of 1994 (UR)

Habre International Co Ltd v Kassim and others [1999] 1 EA 125 – **E**

Habre International Limited v Rutagarama Supreme Court civil appeal number 3 of 1999

Hussein v Kakiiza and others [1995] LLR 50 (SCU)

Jeraj Sharrif v Store [1960] EA 374

Karshe v Uganda Transport Limited High Court civil case number 553 of 1966

Kiriisa v Attorney-General [1994] LLR 399 (SCU)

Kiwanuka v Chand [2002] LLR 324 (SCU)

Makerere Properties Limited v Attorney-General civil appeal number 36 of 1996

Mityana Ginners Limited v Public Health Officer Kampala [1958] EA 339

Pirani v Karia and others High Court company cause number 2 of 1992

United Insurance Company Limited v Attorney-General Uganda Court of Appeal civil appeal number 1 of 1986

India

Secretary of State for India v Chelikan Rama Rao [1916] LR 43 Ind App 192

United Kingdom

Hem Singh v Mahant Basant [1936] 1 All ER 356

National Telephone Company v Post Master General [1913] AC 546

Judgment

Tsekooko JSC: The appellants instituted an appeal by way of "a suit" in the High Court against the respondents. In the suit the appellants claimed jointly and severally for diverse declarations. Mugamba J, dismissed the suit following

preliminary objections by the respondents' counsel concerning the competence of the suit. The appellants' appeal to the Court of Appeal was unsuccessful.

In this judgment I shall refer to the first appellant, Mansukhlal Ramji Karia, as "A1" and the second appellant, Crane Finance Company Limited, as "A2." Similarly I shall respectively refer to the first respondent, Attorney-General, as "R1", the second respondent, Makerere Properties Limited, as "R2" and the third respondent, Amin Mohamed Pirani, as "R3".

I will give the background to this appeal as reflected in pleadings and related documents. The case never reached fullfledged trial.

R2 was incorporated in 1959. R3 had brothers who were all Asians and directors of R2. The other brothers are Allibhai Abdulaziz Pirani, Sadrudin Abdulaziz Pirani and Badrundin Abdulaziz Pirani. On 23 March 1960, R2 was registered as the proprietor of a piece of land comprised in plot 13, Market Street, Kampala. The plot is the subject of these proceedings. I shall hereinafter refer to the plot as the "suit land". During the 1972 expulsion of Asians from this country by the military government of Idd Amin, the brothers (directors of R2) were expelled by Idd Amin's regime. The suit land vested in government by operation of law (the Departed Asians Property Decree of 1972) and was managed by the Departed Asians Property Custodian Board (DAPC Board). In 1981, Sadrudin Abdulaziz Pirani, (Sadrudin) returned to Uganda. He successfully claimed for repossession of his own properties. He also claimed for the suit land on behalf of R2. The DAPC Board purported to return the suit land to R2 under the provisions of the Departed Asians Property Decree of 1973, (Decree number 27 of 1973). When returning the suit land to R2, a Mr J Ssonko, on behalf of the acting Executive Secretary of DAPC Board, by his letter CB/CL/12/641 dated 30 September 1981 authorising R2 to repossess the suit land clarified that "the government will have to issue you with a final certificate of ownership after finalisation of the administrative machinery and policy of returning properties to their previous owners".

In 1981 Sadrudin manipulated shareholding in R2 and in the company registry whereby he became the shareholder of 90% of the total shareholding in R2. R3, remained with 10%. On 27 November 1981 Sadrudin sold the suit land to A1 who was subsequently registered as proprietor on 2 August 1982. Meantime Parliament passed the Expropriated Properties Act of 1982 (Act 9 of 1982) which came into force in early 1983. However after the purported sale of the suit land, in 1981, Sadrudin and R3 sold their shares in R2 to A1 and two other persons at a nominal value in 1982. Subsequently, on 2 April 1991, the Minister of Finance, Economic Planning and Development (MOFEPD) issued a Certificate of Repossession (number 0607), not to R2, as promised in 1981, but to A1 to whom, as earlier noted the suit land had been transferred. During 1992, R3 instituted High Court company cause number 2 of 1992 against A1 and two others. In the accompanying affidavit, R3 alleged that Sadrudin acted fraudulently in acquiring more shares in R2. The High Court upheld R3's allegations that the transfer of the shares by Sadrudin was fraudulent. The Court ordered for the company register to be rectified to reflect the 1992 position which was apparently done. There does not appear to have been any appeal against that High Court decision. A number of other suits were filed in respect of the suit land. There is no need to mention them here now.

On 10 April 1996, the Minister rejected an application by R2 for repossession of the suit land on the ground that R2 transferred the property (to A1) on 27 November 1981. Consequently R2 instituted a suit entitled miscellaneous appeal number 443 of 1996 against R1 (*Makerere Properties Limited v Attorney-General*) praying for a Court to order the Minister to issue to R2 a repossession certificate. The High Court dismissed the suit. R2 successfully appealed to the Court of Appeal in civil appeal number 36 of 1996. That Court directed the Minister to deal with the suit land under Act 9 of 1982.

Meantime during the same period, 1996, A1 sold the suit land to Nadims Limited which in May 1997 also sold and transferred the same suit land to Meera Investment Limited. (Paragraph 10(*a*) of the plaint avers that A1 has interest in this company). Within one and a half months the company also transferred the land to A2.

But as a result of the Court of Appeal order in civil appeal number 36 of 1996, the Minister himself cancelled the previous repossession certificate (number 0607) which has been issued to A1. On 3 August 1998 the MOFEPD issued a fresh certificate of repossession (number 3194) to R2. A1 and A2 felt aggrieved by the cancellation of the old certificate (0607) and the grant of repossession of suit land to R2, and so they promptly instituted High Court civil suit number 918 of 1998 against the three respondents claiming for certain declarations and an injunction against the respondents. One of the main claims by the appellants in their plaint is that the Minister has no powers to cancel certificate number 0607. In their respective written statements of defence, the respondents averred that both appellants had no cause of action and they also raised the defences of *res judicata* and of misjoinder of parties and of causes of action. Further R1 pleaded lack of notice under Act 20 of 1969. The respondents also pleaded that Act 9 of 1982 nullified all dealings in the suit land.

The manner in which the suit was filed originally appeared as if it was an ordinary suit but during the hearing of the "suit", and on appeal, counsel for the plaintiffs/appellants stated that it was an appeal under section 15 (former section) of Act 9 of 1982. This case and a few other cases instituted in Courts under that section shows confusion which has persisted about the nature of the proceeding filed in the High Court challenging the decision of the Minister refusing to grant or for granting repossession certificates to applicants for repossession or cancelling such certificates after issuing them.

When the suit first came up in the High Court before Mugamba J, for hearing, the respondents' counsel took three points of objection to the competence of the case. Counsel contended:

1. That the suit did not disclose a cause of action against any of the three respondents.
2. That the suit was incompetent against the Attorney-General (R1) because no statutory notice was served under section 1 of the Civil Procedure and Limitation (Miscellaneous Proceedings) Act of 1969 (Act 20 of 1969).
3. That the subject of the suit was *res judicata* because of the Court of Appeal decision in civil appeal number 36 of 1996 (*Makerere Properties Limited v Attorney-General*).

The trial Judge (Mugamba J) upheld all three points of objection and he dismissed the suit. (The pleadings on both sides in these proceedings raised serious

allegations of fraud and claims which could have been better investigated during a fuller hearing).

Be that as it may, the appellants unsuccessfully appealed to the Court of Appeal. They have now brought this appeal to this Court. The original memorandum of appeal contained nine grounds, most of which counsel for the respondents objected because of their form. This Court adjourned the hearing and granted the appellants leave to improve formulation of the memorandum. When the appeal was called up again, counsel for the appellants again objected to most of the grounds in the amended memorandum of appeal. This forced Mr *Lule*, counsel for the appellants, to abandon grounds two, three, four, seven, eight and nine of the amended memorandum of appeal. He argued the remaining ground one separately and grounds five and six together. These are the grounds the Court is to consider and determine in this appeal.

Before considering the grounds of appeal and submissions made thereon, however, it is convenient to consider and dispose of a fundamental question which the Court raised after hearing the appeal and while judgment was pending. The question is whether this appeal is properly before us. In my opinion this question is of fundamental importance. We asked counsel to address us on it.

Our invitation to the parties to address us on the competence of this appeal is contained in a letter of the Registrar of the Court dated 16 June 2004.

It reads in part as follows:

> "(*a*) On 28 July 1998 the Minister cancelled repossession certificate number 0607 dated 2 April 1991 which had been issued to the first appellant, MR Karia.
>
> (*b*) The Minister issued another repossession certificate to the second respondent.
>
> The appellants appealed first to the High Court against the said decision of the Minister under section 14(1) of the Expropriated Properties Act of 1982. Later the appellants unsuccessfully appealed to the Court of Appeal.
>
> This Court would like the parties to address it on the following question:
>
> If the matter in the High Court was an appeal, in view of the provisions of article 132(2) of the Constitution and of section 6(1) of the Judicature Act, do the appellants have an unrestricted right of appeal from the Court of Appeal to this Court?"

In response the parties filed written submissions. Mr *Lule* for the appellants gave detailed background to the dispute before making submissions on the question.

The summary submissions by Mr *Lule* on this point is that:

(*a*) An appeal under section 15 (former section 14) of Act 9 of 1982 is not an ordinary appeal but an ordinary suit. For this opinion he relied on article 139(2) of the Constitution, Regulation 15 of the Expropriated Properties (Repossession and Disposal) Regulations of 1983 (SI 1983 number 6) and section 39(1) of the Judicature Act and also on two recent cases decided by this Court. These cases are *Habre International Co Ltd v Kassim and others* [1999] 1 EA 125 and *Kiwanuka v Chand* [2002] LLR 324 (SCU).

(*b*) This Court is competent to hear and determine this appeal as a second appeal without leave. He relied on section 6(1) of the Judicature Act, and article 132(2) of the Constitution.

(*c*) The case in the High Court had the character of a judicial review upon deprivation of property without compensation and without the proprietors being given a chance to defend their interests in a Court. Reliance

by the High Court and by the Court of Appeal on civil appeal number 36 of 1996 (*Makerere Properties Limited v Attorney-General*) to which the appellants were not parties nor upon which they were heard, renders the trial in the High Court and the appeal in Court of Appeal a nullity under article 126(2)(*e*). He argued that this Court should prevent a nullity from defeating justice.

(*d*) In the event the Court finds that it has no jurisdiction, the matter should be referred to the Constitutional Court for interpretation under article 137(5)(*b*).

For the first respondent, Mr Joseph *Matsiko*, acting Head, civil litigation, did not make separate submissions. He agreed with and fully associated himself with the submissions of Mr *Nangwala*, counsel for the second and third respondents.

Mr *Nangwala* in summary contended:

(*a*) That the "appeal did not lie as of right to" this Court within the spirit of section 6(1) of the Judicature Act. In considering the matter under section 15 of Act 9 of 1982, the High Court exercised an appellate, and not an original, jurisdiction. He relied on *Hem Singh v Mahant Basant* [1936] 1 All ER 356 (PC), *Secretary of State for India v Chelikan Rama Rao* [1916] LR 43 Ind App 192 and *Mityana Ginners Limited v Public Health Officer, Kampala* [1958] EA 339.

(*b*) The fact that an aggrieved party has to appeal within 30 days under section 15 is a characteristic of appeals and not a suit.

(*c*) It is irrelevant that this Court has in the past entertained similar appeals since the issue now under consideration by the Court has never been canvassed in any of those other cases. Indeed counsel appears to suggest that *Kiwanuka*'s case (*supra*) was wrongly decided.

Act 9 of 1982 has been implemented for just over 20 years now. It would appear that a number of cases similar to this one have been brought to this Court under the provisions of that Act and were decided as normal second appeals. Therefore if we have to upset those decisions the matters raised by the question have to be given due consideration. With respect it is not correct to say as argued by Mr *Nangwala*, that this Court should ignore its past decisions of cases similar to the present. This indeed is the time to correct past errors if there are any at all.

General appellate jurisdiction of this Court is conferred by article 132(2) of the Constitution. Clause (2) therefore reads as follows:

"An appeal shall lie to the Supreme Court from such decisions of the Court of Appeal as may be prescribed by law."

In civil cases, appeals come to this Court via the Court of Appeal because of subsection (1) of section 6 of the Judicature Act.

The subsection reads this way:

"6(1) An appeal shall lie as of right to the Supreme Court where the Court of Appeal confirms, varies or reverses a judgment or order including interlocutory order given by the High Court in the exercise of its original jurisdiction and either confirmed, varied or reversed by the Court of Appeal."

Clearly this subsection gives to parties an unrestricted right of appeal to this Court in civil causes emanating from trials by the High Court. Appeals are not restricted or made conditional on any procedure.

Subsection (2) of section 6 regulates third appeals which emanate from Courts presided over by chief magistrates or by magistrates grade I. Such

appeals come to this Court only with leave of either the Court of Appeal or of this Court. I am satisfied that the present appeal is not governed by the provisions of subsection (2).

The question raised and that needs the Court's answer is whether the present appeal falls under the appeals envisaged by subsection (1) or any other law authorising appeals to this Court. Mr *Lule* contends that it does. Messrs *Nangwala* and *Matsiko*, on the other hand, hold contrary views.

Mr *Lule* argued strongly that the competence of this Court to entertain this appeal has to be determined by the basis of the character of the proceedings before the High Court from which this appeal arose, the nature of the proceeding as provided for under Act 9 of 1982, and the regulations in section 1 of 1983 number 6, the kind of powers the Minister exercises under the Act and also on the basis of other statutory provisions and laws relating to interest in and title to land within the context of this case. I find it unnecessary to consider the last part of this submission because Mr *Lule* himself conceded right from the High Court that the case was instituted under section 15 of Act 9 of 1982.

Let me start with section 15(1) of the Act. It reads:

> "15(1) Any person who is aggrieved by any decision made by the Minister under this Act, may, within 30 days from the date of communication of the decision to him or her appeal to the High Court against that decision."

It is argued that the word "appeal" as used in the subsection is not used in a technical sense of a "judicial proceeding" but rather it is used in the ordinary sense meaning "challenge". For that opinion Mr *Lule* relied on the words employed in framing regulation 15 which reads as follows:

> "15. The Rules of Civil Procedure governing institution of suits in the High Court shall apply to appeals made under section 15 of the Act."

In this connection note should be taken of the definition of a "suit" as "all proceedings commenced in any manner prescribed": see section 2 of the Civil Procedure Act.

I note that neither Act 9 of 1982 nor regulations in section 1 of 1983 number 6 define the word "appeal". Nor does the Civil Procedure Act.

According to Mr *Lule* if the decision of the Minister were considered a judicial decision appealable to the High Court in the same sense, for instance, as an appeal lies to the High Court from a Chief Magistrate's decision in a civil case or from a tribunal exercising judicial powers and subject to at least the basic judicial procedure, regulation 15 would have been worded differently. It would instead say "the rules of civil procedure governing institution of appeals in the High Court."

Learned counsel contended that in hearing an appeal against the Minister's decision made under section 15, the High Court is enjoined to exercise its jurisdiction to determine the matter by trying the "appeal" by applying the rules which apply to an ordinary civil suit instituted under the Civil Procedure Rules, but not those Civil Procedure Rules which govern ordinary civil appeals in the High Court. The trial of such a suit, contended learned counsel, would result in appeals ending in this Court. Therefore this Court is competent to determine this appeal as a second appeal.

Since it is not argued that the Minister is a Court lower than the High Court, I do not think that the provisions of clause (2) of article 139 relied on by Mr *Lule* are relevant to the question I am considering now.

The clause reads:

> "(2) Subject to the provisions of this Constitution and any other law, the decisions of any Court lower than the High Court shall be appealable to the High Court."

Now I have noted the use of the word "suit" in section 14 which immediately precedes section 15 in which the draftsman preferred to use the word "appeal" instead of "sue." I fail to appreciate any rational basis for the distinction created by the use of the two words in two separate but succeeding sections in the same Act. The provisions of section 14 appear under the heading legal proceedings and there the words "sue" and "suit" are used to signify the filing of an originating proceeding in the High Court. On the other hand, section 15 appears under the heading "appeal" and in its subsection (1) the words "appeal to the High Court" are employed. At first I thought that the two words were used deliberately in the subsection so that "to sue" and "to appeal" would respectively connote instituting a "civil suit" and a "civil appeal" in the ordinary way. However, in addition to suggested definition under English law authorities, (*infra*) some dictionaries provide clues to the use of the two words. The *Wordsworth Dictionary of Synonyms and Antonyms* gives the synonyms of the verb "appeal" as address, invoke, entreat, implore, supplicate, sue and petition. The same dictionary gives the synonyms of the verb "sue" as to prosecute, accuse, take to Court. It appears therefore that the two expressions that is "appeal to Court" and "to sue," mean taking to Court.

In Volume 37 of *Halsbury's Laws of England*, (4ed), a general definition of a judicial appeal (paragraph 677) is said to be an application to a superior Court or tribunal to reverse, vary or set aside the judgment, order, determination, decision or award of an inferior Court or tribunal in the hierarchy of Courts or tribunals on the ground that it was wrongly made or that as a matter of justice or law it requires to be corrected. Insofar as ordinary judicial appeals are concerned this definition is satisfactory as it is wide enough to cover all forms of appeal, whether on a point of law or of fact or of mixed fact and law or by way of case stated or by judicial review. The appellate provisions for example, in our Judicature Act and the Civil Procedure Act bear out this definition.

Another English authority is *Strouds Judicial Dictionary* (4ed) Volume 1. At 155, it gives the following two meanings of "appeal", in Court among others which meanings are similar to that given above in *Halsbury's Laws of England*.

First it states that "to appeal" is the right of entering a superior Court and invoking its aid and interposition to redress the error of the Court below. Secondly "an appeal" strictly so called is one in which the question is whether the order of the Court from which the appeal is brought was right on the materials which that Court had before it. These meanings tend to support the view that a judicial appeal is not the one intended in section 15 because of the use of the expression "appeal to the High Court". With respect I do not agree with Mr *Nangwala*'s contention that the 30-day limitation period implies that the appeal is an ordinary judicial appeal. I think it would be a misnomer to describe a suit instituted under section 15 to challenge the Minister's rejection of an application for repossession as an ordinary judicial appeal.

Mr *Lule* further relied on the two decisions of this Court (*Habre International* and *Kiwanuka*) (*supra*) to support his contention that the character of the appeal envisaged by section 15 is that of an ordinary suit.

In my opinion the *Habre International* decision is not quite helpful. There the appellant sued the former owner of an expropriated property for compensation in respect of improvements carried out on the building repossessed by that former owner. The High Court decision granting relief to the appellant was overturned by the Court of Appeal which held that the High Court had no original jurisdiction to try the suit. On appeal to this Court, it was held that the former owner's liability to pay compensation lay under section 11 of Act 9 of 1982 and not under section 15.

Indeed in his lead judgment, Karokora JSC, held that:

> ". . . there was no decision by the Minister made under the Act that aggrieved the appellants against which they could go to the High Court by way of appeal under section 15(1) of the Act."

It was in the concurring judgment of Mulenga JSC, where, in relation to section 15(1), the learned Justice of the Supreme Court doubted any judicial function of the Minister in making a decision under section 15(1). The learned Justice of the Supreme Court expressed himself, in that connection, in the following words:

> "The provisions of [section 15(1)] of the Expropriated Properties Act to the effect that a person aggrieved by the Minister's decision under the Act, may appeal to the High Court, cannot be construed as in any was affecting the original jurisdiction of the High Court . . .
>
> It seems to me that the Minister is not thereby given judicial appeal as from one Court of law to another."

The definitions I have just quoted appear to support this view.

As already noted, the claim in the suit was for compensation, a matter governed by section 11 of the Act. So this Court held that the Court of Appeal erred in holding that because section 15(1) confers "appellate" jurisdiction on the High Court, the High Court could not exercise its original jurisdiction to try the suit.

In any event the opinion of Mulenga JSC, in that appeal was that the appeal against the decision of the Minister was not a judicial appeal. He later reiterated that opinion in *Kiwanuka*'s case (*supra*). In his typed judgment, he said:

> "I would reiterate what I said in *Habre International Company Limited v Kassak and others* . . . that 'an appeal' under section 14 of the Act is not a judicial appeal. The Minister in the exercise of power vested in him by the Act, makes administrative decisions. Section 14 of the Act directs that a person aggrieved by such a decision may appeal to the High Court, within a period of 30 days. Apart from that time limit, the Act does not stipulate any special procedure for instituting the appeal or challenge against the Minister's decision. The challenge can be done in an ordinary civil suit."

It may be true to say, as implied in this passage, that sometimes a legislation providing for an appeal to a Court against a judicial decision, a quasi-judicial or an administrative decision also sets out a procedure on how such an appeal may be instituted. However the absence of procedure, or of a procedure for appealing, is itself not sufficient evidence that no judicial appeal was intended by the Legislature. Whether or not a legislation providing for exercise of a power

provides a "judicial appeal" will, in my opinion, depend on the wording of the particular legislation and these proceedings support this view.

The decision in *Hem Singh* (*supra*) on which Mr *Nangwala* relied appears to support the appellants. The case arose in India, from three appeals originating from decisions of an administrative tribunal. From the tribunal, the case went to the High Court which set aside the decisions of the tribunal. Eventually there was an appeal to the Privy Council where the respondents challenged the competence of the two appeals. The Privy Council reviewed a number of decided cases including *Secretary of State for India* (*supra*), before concluding that the jurisdiction conferred upon the High Court of India was intended to include the new subject matter as part of the ordinary appellate jurisdiction of the High Court, and the case was within the general principle laid down by Viscount Haldane in *National Telephone Company v Post Master General* [1913] AC 546 at 552 that:

> "when a question is stated to be referred to an established Court without more, it . . . imports that the ordinary incidents of the procedure of that Court are to attach and also that any right of appeal from its decisions likewise attaches."

In *Mityana Ginners* case (*supra*) a case originating from this country and which is of some interest, the Privy Council held that since the appeal to the District Court (against a notice under the Public Health Ordinance by the Medical Officer of Health) was not commenced in any manner prescribed by Rules to regulate the Civil Procedure of the Courts, that appeal was not a suit.

That holding distinguishes *Mityana* case from the present one. In the present case, rule 15 (*supra*) stipulates that Civil Procedure Rules apply in instituting an "appeal" under section 15.

I fail to see any sound reason why a party seeking compensation under section 12 of the Act for improvement made on a expropriated property can proceed by way of an ordinary suit whilst a party seeking to challenge a pure ministerial decision under section 15(1) has to file an appeal. It seems to me that in the light of rule 15, and the definition of "suit" (*supra*) challenging a ministerial decision is by way of suit even if the Act describes the challenge as an appeal. It is probably the better procedure because it enables parties to call witnesses, or adduce evidence, to support their claims.

Furthermore, neither section 15 nor any other provision in the Act indicates how far an appeal instituted under section 15(1) can progress in the Court hierarchy. In other words the section neither prohibits nor expressly allows an aggrieved party to take or refrain from taking an appeal up to this Court. In the circumstances, I think that we have jurisdiction to hear and determine the appeal. It is now not necessary to deal with the last of Mr *Lule*'s arguments on the question.

I will now turn to the grounds of appeal and I start with ground one, which is formulated in these words:

> "The Court of Appeal erred in law to hold that civil appeal number 36 of 1996, to which the appellants were not parties applied to the instant case and operated as *res judicata* against the appellants."

On this ground, Mr *Lule*'s submissions are a reflection of the averments in the plaint namely that one of the ingredients of *res judicata* are present because:

(*a*) Neither of the appellants was a party to the proceedings in civil appeal number 36 of 1996 nor did any of them claim through a party to that

appeal. He cited several authorities in support of his arguments. Later in rejoinder to Mr *Nangwala*'s counter arguments, Mr *Lule* contended that in this appeal the issue is not on the status of, but on interest in, the suit land. So no question of a decision *in rem* arises to bar the appellants.

(*b*) The subject matter must be directly or substantially in issue in the dispute.

(*c*) Parties must have litigated under the same title.

(*d*) The Court of Appeal decided appeal number 36 of 1996 contrary to law and to the facts of the case. The case cannot, therefore, operate as *res judicata*. learned counsel argued that the MOFEPD originally returned the suit land to R2, a company, and not to Sadrudin, an individual, yet the Court of Appeal found to the contrary. He relied on *United Insurance Company Limited v Attorney-General* (Uganda Court of Appeal civil appeal number 1 of 1986) for the view, which, as a general principle, is correct, that a director can act for and bind a company.

For the second and third respondents, Mr *Nangwala* contended that:

(*a*) The Court of Appeal properly found that its previous decision in civil appeal number 36 of 1996 bound the appellants even though the appellants were not parties thereto.

(*b*) This Court cannot set aside civil appeal number 36 of 1996 when that appeal is not a subject of appeal here. He relied on *Jeraj Sharrif v Store* [1960] EA 374 and *Halsbury's Laws of England*, (3ed) Volume 15 paragraphs 351, 366 and 367 where a distinction is made between a judgment *in rem* and a judgment *inter partes* and contended that a decision *in rem* is conclusive against strangers.

(*c*) The decision of the Court of Appeal that the suit land vested in Government, bound A1 and A2.

(*d*) *Res judicata* has the same effect as a judgment *in rem*.

Mr *Matisko*, Principal State Attorney, representing R1, adopted the submissions of counsel for R2 and R3.

I will first discuss the meaning, operation and effect of the plea of *res judicata*. The respondents pleaded this defence on the basis of the decision of the Court of Appeal in civil appeal number 36 of 1996 (*supra*).

The doctrine of *res judicata* is set out in section 7 of the Civil Procedure Act in the following words:

> "No Court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigation under the same title, in a Court competent to try such subsequent suit or the suit in which such issue has been subsequently raised, and has been heard and finally decided by such Court."

The provision indicates that the following broad minimum conditions have to be satisfied:

1. There have to be a former suit or issue decided by a competent Court.
2. The matter in dispute in the former suit between parties must also be directly or substantially in dispute between the parties in the suit where the doctrine is pleaded as a bar.
3. The parties in the former suit should be the same parties, or parties under whom they or any of them claim, litigating under the same title.

In High Court civil case number 553 of 1966 (*Karshe v Uganda Transport Limited*) cases on Civil Procedures and Evidence Volume 3 page 1, Sir Udo Udoma, former Chief Justice of Uganda, put it this way:

> "Once a decision has been given by a Court of competent jurisdiction between two persons over the same subject matter, neither of the parties would be allowed to relitigate the issue again or to deny that a decision had in fact been given, subject to certain conditions."

In my opinion this is a correct summary of section 7.

There is no doubt that neither appellant was a party to civil appeal number 36 of 1996.

As already noted, in 1982 the DAPC Board through a Mr J Ssonko, its acting Executive Secretary, purported to return the suit land to R2. The application for repossession had been lodged by Sadrudin, admittedly one of the directors of R2. Sadrudin sold the suit land to A1 who on 2 August 1982 was registered as proprietor. The suit land was again transferred twice before it was sold to A2, it being the fourth transferee.

As summarised earlier, in 1991, R3, one of the Pirani brothers and a shareholder in R2, came to Uganda and discovered the sale and transfer of suit land. He obtained powers of attorney from his other brothers who were then still in Canada, and themselves also directors of R2. He successfully challenged Sadrudin's manipulation of shareholding in R2, by instituting High Court company cause number 2 of 1992 (*Pirani v Karia (A1) and others*).

The High Court (Kalanda J) concluded that the transfer of shares carried out by Sadrudin was fraudulent. The Court ordered the Registrar of Companies to rectify the company records to reflect the position as it was in 1972, meaning thereby that all the Pirani brothers remained shareholders in R2. After the Court order, R2 filed an application to the MOFEPD claiming for a repossession certificate. The former Minister, Mayanja Nkangi, rejected the application on grounds that: "Government had through the board already returned the property to R2".

R2 appealed to the High Court against the decision of the Minister, (see *Makerere Properties Limited v Attorney-General*), under section 15 of Act 9 of 1982. One of the pleadings filed in the appeal in the High Court was an affidavit sworn by R3 setting out certain facts one of which was that no repossession certificate under Act 9 of 1982 had been issued to R2. There was apparently no evidence by way of affidavit or otherwise to challenge that assertion, but the High Court upheld the decision of the Minister. R2 appealed to the Court of Appeal under civil appeal number 36 of 1996. The parties in the High Court and in the Court of Appeal were *Makerere Properties Limited v Attorney-General*, (that is R2 v R1).

The Court of Appeal upheld the appeal and reversed the High Court decision. The former Court found that:

(*a*) The suit land had never been returned to R2 but was instead wrongfully returned to one Sadrudin who, though he was one of R2's directors, was not R2 itself.

(*b*) That Sadrudin had fraudulently repossessed the suit land before he fraudulently sold and transferred it to A1. So the fraud affected A1's registration as a proprietor.

(*c*) That even if there had been no fraud, under section 1(1) of Act 9 of 1982, repossession by Sadrudin and the transfer of A1 was nullified, since the transactions were both effected between 1973 and 21 February 1983, the latter date is when Act 9 of 1982 came into force.

(*d*) When in 1996, R2 applied for repossession of the suit land, the suit land had not been dealt with under Act 9 of 1982 and it was still vested in Government. So the Minister erred in rejecting R2's application for repossession.

(*e*) That the decision of the Supreme Court in *Famous Cycles Agencies Limited and others v Mansukhlal Raniji Karia and others* civil appeal number 16 of 1994 did not decide the ownership of the suit land but rather it decided the issue of who was entitled to receive rent from tenants in the suit land.

Mr *Lule* has attacked grounds (*a*) to (*d*).

With respect I must point out that the holding or references by the Court of Appeal in civil appeal number 36 of 1996 that property was returned to Sadrudin appears incorrect. It appears that the Departed Asians Property Custodian Board, through a Mr J Ssonko, the then acting Executive Secretary, returned the suit land to R2 by a letter dated 30 September 1981 to which I have already referred. It may be Sadrudin was the moving spirit behind the process of repossession and eventual sale of the suit land.

However it is clear that neither of the two appellants was a party to the suit in the High Court challenging the Minister's refusal to grant a repossession certificate to R2 nor were they parties to the appeal from that decision to the Court of Appeal in civil appeal number 36 of 1996. It is possible to argue that as A1 had already sold the suit land his interests could not be affected and that on the face of it the interests of A2 were affected even though he was not a party. These are matters which could have been properly investigated during a full trial.

There is no doubt that R2 was a party to those proceedings up to the Court of Appeal, where civil appeal number 36 of 1996 ended. It is not evident from the resultant judgment of the Court of Appeal whether either appellant was aware of the proceedings of which the appeal is the last.

The question that needs to be answered, therefore, is whether or not both the High Court and/or the Court of Appeal erred in holding in their respective decisions giving rise to the present proceedings that the decision in civil appeal number 36 of 1996 constitute *res judicata* and is applicable in these proceedings.

If it applies, it bars the appellants from prosecuting the suit which Magamba J, dismissed. At the end of his ruling Magamba J, stated that:

> "The decision in civil appeal number 36 of 1996 as I have observed earlier, dealt with the status of the property and the matter should be regarded as *res judicata*."

Here the learned trial Judge relied on only the pleadings and submissions of counsel for both sides and the judgment of the Court of Appeal in civil appeal number 36 of 1996 for his view that the suit land is *res judicata*. There was no evidence to show any relationship between the appellants and the parties in that appeal. In my opinion the proper practice normally is that where *res judicata* is pleaded as a defence, a trial Court should, where the issue is contested, try that issue and receive some evidence to establish that the subject matter of the

dispute between the parties has been litigated upon between the same parties, or parties through whom they claim.

Be that as it may, in the Court of Appeal, ground two of the memorandum of appeal contained the complaint against the ruling of Magamba J that the suit was *res judicata*. The other two points were on misjoinder of parties and lack of a cause of action against R2 and R3.

In the Court of Appeal, the lead judgment with which the other members concurred was given by Mukasa-Kikonyogo DCJ.

Mr *Lule*, who represented the two appellants in the Court of Appeal had argued apparently forcefully, as he did before us, that neither of the appellants was affected by the doctrine of *res judicata* because none of them was a party to the original High Court civil suit number 443 of 1996, the offspring of which is civil appeal number 36 of 1996. He further argued that even if A1 was affected by fraud, as alleged in the defence of R2, A2 was not tainted by the alleged fraud as the latter was a *bona fide* purchaser for value and without notice of any defect in his predecessor in title.

> The learned Deputy Chief Justice discussed the issue of *res judicata* this way:
>
> "It is true that the parties in civil appeal number 36 of 1996 and this appeal may not be the same but the subject of the dispute. Counsel for the respondents raised the issue of *res judicata* in relation to the status of the suit property. This Court in civil appeal number 36 of 1996 ruled on the status of the suit property which decision was binding on all the persons who had interest in the suit property even if they were not parties.
>
> Most important of all the learned trial Judge was bound by the decision of the Court of Appeal in civil appeal number 36 of 1996 which was a superior Court. The Court of Appeal having ruled that the suit property has been vested in the Government under EPA, there was no way the High Court could have reversed it since the suit property was the same in both cases. Even if the Court of Appeal had reached a wrong decision the only course open to the appellant would have been to apply for a review or appeal to the Supreme Court but not to institute proceedings under section 14 of the Expropriated Properties Act."

With greatest respect, assuming that by "appellant" the learned Deputy Chief Justice refers to the present appellants, the learned Deputy Chief Justice was in error to suggest that the appellants could appeal. They had not participated in the appeal, so they had no right of further appeal. Probably the option would have been for the appellants to seek to set the judgment aside by a suit or they could have applied at the trial stage to be joined in the suit.

Later the learned Deputy Chief Justice further referred to the ruling of High Court where Magamba J, had relied on the said civil appeal number 36 of 1996, and opined that the Court of Appeal laid all points in the matter concerning ownership of property to rest when it stated that:

> "any purported return of the suit property to SA Pirani in 1981 and the subsequent registration of the property into the names of Mr Karia were both nullified by Act 9 of 1982 as they were both effected between 1973 and 21 February 1983."

The learned Deputy Chief Justice then concluded:

> "Clearly as the Court of Appeal dealt with the status of the suit property although the parties were not exactly the same the issue of ownership of the suit property was settled and operated as *res judicata* against the appellant's interest in it . . . the appellant's appeal would fail on that ground alone."

Although this appeal is not from civil appeal number 36 of 1996 there are two points in the decision of the Court of Appeal about which I should make observation.

First, the Court held that the property was returned to Sadrudin and not to R2. That appears to be incorrect. The letter of J Ssonko dated 30 September 1981 (*supra*) whose presence in the record of proceedings was deprecated by Twinomujuni JA, and to which I have already referred was addressed to R2. If, as it is stated in the said judgment, opposing counsel in the High Court submitted that, "my learned friend tendered a letter dated 30 September 1981", it seems to me that the appellate Court should have acted on that evidence unless there is clear evidence that in fact the letter was not tendered or unless the tendering was successfully opposed. I am aware that I am not considering an appeal against the decision of civil appeal number 36 of 1996. So I won't go any further than that. What I can say about the letter, which was annexure "KC2" to the plaint in these proceedings, however, is that the authority given in the letter to R2 to repossess the suit land was "provisional" pending finalisation in future. This provisional authority was supposed to be validated by an actual transfer. Annexure "KC1" dated 2 April 1991 appears to have been intended to validate the provisional transfer but in fact it purported to authorise not R2 but A1 to repossess the suit land. Even then, A1 had already sold and transferred the suit land. That of course is where the problem is. Whatever the case, the effect of the decision of the Court of Appeal in civil appeal number 36 of 1996 is that it nullified the said certificate dated 2 April 1991 when the Court directed the MOFEPD to deal with the suit land under Act 9 of 1982.

Perhaps I ought to point out that the certificate was nullified twice. Besides that Court's nullification in 1998 of the certificate (number 0607), earlier on 9 July 1991, barely three months after the certificate was issued, a Mr Kabagambe, on behalf of the verification committee in the Ministry of Finance by letter, reference VC7/COU/963/9PIR, advised Messrs Mulira and Company Advocates, that the same certificate had been cancelled because it was obtained fraudulently and that the property would be returned to R2, the rightful owner. The fact of the cancellation was indeed advertised in the Uganda *Gazette* of 8 November 1991 (Volume LXXXIV number 49).

The said letter and a copy of the *Gazette* were annexed to R2's written statement of defence. In spite of the two nullifications of the certificate, A1 appears surprisingly to have retained the nullified certificate which he caused to be entered on the certificate of title on 10 July 1996! A full trial would have thrown more light on these matters.

Be that as it may, in her judgment, the learned Deputy Chief Justice correctly found that the parties to civil appeal number 36 of 1996 are different from parties in this case. This is so because in appeal number 36 of 1996, R2 was the appellant whereas the respondent there was the present R1. This time round those two parties are on the same side. So does the doctrine apply to bar the two appellants from prosecuting these proceedings? The trial Judge and the Court of Appeal found that the doctrine applies because civil appeal number 36 of 1996 decided the status of the suit land even though neither of the appellants was a party. So the two Courts did not in reality decide the issue of *res judicata*.

I have said already that in order to establish *res judicata*, this issue should have been tried. As neither appellant was a party to the suit and the ensuing appeal

number 36 of 1996, in my opinion the Court below erred in holding that A1 and A2 were barred by *res judicata*. I would uphold ground one. I shall consider the effect of civil appeal number 36 of 1996 on the status of the suit land later.

Grounds five and six state as follows:

5. The Court of Appeal erred in law when they held that the appeal suit disclosed no cause of action against the second and third respondents as none of them had made the decision under section 14 of the Expropriated Properties Act.

6. The Court of Appeal erred in law and fact to hold that the appellants were not aggrieved parties because at the date of the Minister's decision they had no interest in the suit property.

In addition to his arguments before us, Mr *Lule* adopted the written submissions he had filed in the Court of Appeal. In that Court the corresponding grounds were number four and number five although there, these were argued together with ground seven.

The two grounds were worded as follows:

4. That the learned Judge misdirected himself to the facts of the case when he held that there was no cause of action whereas the issue of the appeal was whether the first appellant was a former owner and could pass title to the second appellant plus other identified issues which warranted a full trial on evidence and merits of the case.

5. The learned trial Judge erred in law and misinterpreted the facts and pleadings to opine that the appellants were not aggrieved by the Minister's decision and that both appellants had no interests and rights exercisable under section 14 of Act 9 of 1982.

In his written arguments on these grounds in the Court of Appeal, Mr *Lule* contended that section 15 of Act 9 of 1982 is wide enough to confer the right of appeal to any person whose rights are affected by the Minister's decision. Learned counsel relied on *Allibhai v Bukenya and DAPC Board* civil appeal number 56 of 1995 (UR) for the view that a person suffered a legal grievance if the decision of the Minister affects his interest even if he or she is not a party to the application to the Minister for repossession of expropriated property or is not the former owner of the expropriated property. So such a person has a cause of action. Counsel argued that civil appeal number 36 of 1996 affected the appellants' interests yet they were not parties to the case. Further the decision of the Minister to cancel the first appellant's certificate (0607) of repossession and the issuance of a new certificate to R2 as a consequence of which A2's title in the lands register was cancelled, were decisions which aggrieved both appellants. Both were therefore entitled to appeal under section 14 of Act 9 of 1982.

Mr Cheborion, Acting Commissioner of Civil Litigation, who made written submissions on behalf of the first respondent in the Court of Appeal, supported the decision of the trial Judge and argued that the two appellants had no cause of action. For the second and third respondents, Messrs *Nangwala, Resida and Company Advocates*, in their written submissions in the Court of Appeal, supported the decision of the trial Judge that the two appellants had no causes of action primarily because neither R2 nor R3 made any decision under Act 9 of 1982 and so there could be no appeal under section 15 against the two respondents and neither could any of them be held responsible for the decision of the

Minister. Counsel further argued that on the facts of the case the two appellants had no right of statutory appeal under section 15.

In the trial Court objection had been made on behalf of R2 and R3 that the plaint did not disclose a cause of action against either of them. The reasons raised then were the same reasons raised in the Court of Appeal. In upholding that objection, Mugamba J, referred to the averments in paragraph 7(*a*) to 7(*e*), 7(*g*) to (*m*) of the plaint, the former being complaints under Act 9 of 1982 against the MOFEPD before the Judge held that nothing averred in the plaint showed that the two appellants enjoyed a right which was violated by either R2 and R3 or both. He, therefore, held that there was no cause of action against these two. The learned Judge also found that the appellants had no justification in joining R2 and R3 in an appeal under section 15 because there was no allegation in the plaint showing that either R2 or R3 caused grief to the (plaintiffs) appellants. Further, the learned Judge found that even R1 was wrongly joined and that the action against him was misconceived.

On ground four, the learned Deputy Chief Justice accepted the contentions of counsel for the respondents and held that there was no cause of action against R2 and R3 because neither of these two made a decision under Act 9 of 1982.

It was the Minister who did. On the complaint in ground five, the learned Deputy Chief Justice held that in the appeal, "the appellants" interest in the suit land when the act of the Minister complained of was made, did not exist. The two appellants were not aggrieved parties because they had no interest in the suit land at the time the Minister made his decision. The learned Deputy Chief Justice stated:

> "Both appellants . . . had no interest *in rem* to qualify as 'aggrieved persons.' The reasons for so holding are that at the time the Minister's decision (*sic*) cancellation allocation certificate number 0607 to A1, A1 had already sold the suit property. Further civil appeal number 36 of 1996 decided that A1 did not acquire a valid title. Furthermore A2 did not acquire a valid title from those other persons to whom A1 had sold and transferred the suit property."

Clearly these findings were made on the basis of a submission based on civil appeal number 36 of 1996 where the appellants were not parties.

Mr *Lule* criticised these conclusions when he argued the appeal before us. According to him it was necessary to join R2 and R3, in the proceedings by virtue of Order 1, rule 10(2) of the Civil Procedure Rules. He relied on *Departed Asians Property Custodian Board v Jaffer Brothers Limited* [1999] 1 EA 55, *Hussein v Kakiiza and others* [1995] LLR 50 (SCU) and *Kiwanuka v Chand* [2002] LLR 324 (SCU).

Again counsel criticised the Court of Appeal for holding that in civil appeal number 36 of 1996 the title to land of the two appellants was nullified. He contended that in 1998, MOFEPD had no power to grant repossession under Act 9 of 1982. If MOFEPD wanted to cancel repossession certificate of A1, MOFEPD should have gone to Court under Registration of Titles Act. Learned counsel therefore submitted that repossession certificate of A1 is still valid, while that given to R2 is invalid and that A2 acquired good title to the property after purchasing it. Counsel again relied on *Kiwanuka* (*supra*) and *Habre International Limited v Rutagarama* Supreme Court civil appeal number 3 of 1999.

Mr *Nangwala* for R2 and R3 supported the decision of the Court of Appeal holding that neither of the two appellants had a cause of action. Learned counsel reiterated the arguments he had made in the Court below. He contended that neither appellant was an aggrieved party under section 15 of Act 9 of 1982. He relied on *Kiriisa v Attorney-General* [1994] LLR 399 and *Famous Cycle Agencies Limited and others v Karisa* Supreme Court civil appeal number 16 of 1994 (UR). Mr *Matsiko* for R1 adopted the arguments of Mr *Nangwala*.

In rejoinder, Mr *Lule* sought to draw a distinction between a judgment *in rem* which determines the status of the property. He argued that in this appeal the issue is interest in, and not status of, the suit property. He relied on *Halsbury's Laws of England* paragraphs 351 and 352 and *Famous Cycle Agency Limited* (*supra*).

These grounds raise the following three material points:

(*a*) The effect of the decision of civil appeal number 36 of 1996. Did it decide the status of the suit property or did it decide interest in the suit property? Since neither of the two appellants were parties in civil appeal number 36 of 1996 is either of them affected by that decision?

(*b*) Did either A1 or A2 or both of them have a cause of action against either R2 or R3 or both. In other words was it proper or not proper to join R2 and or R3 in the suit?

(*c*) Did either A1 or A2 or both of them have interest in the suit property at the time the Minister cancelled certificate number 0607 in 1998 before he issued a fresh repossession certificate to R2? In that case is either A1 or A2 or are both of them aggrieved parties under section 15 of Act 9 of 1982?

In view of the provisions of section 9(1)(*d*) it is possible to argue that the Minister has powers to cancel a repossession certificate.

Mr *Lule* cited a number of authorities to show that the appellants suffered a legal grievance.

I shall briefly refer to some of the cases cited to us and which were decided by this Court in reference to who is an aggrieved person within the meaning of section 83 of the Civil Procedure Act and Order 42, rule 1 of the Civil Procedure Rules. Of the cases cited *Mohamed Allibhai* (*supra*) and *Ladak A Mohamed Hussein* (*supra*) both arose out of expropriated properties. In either case, a suit was filed and a consent judgment was given.

In the case of *Mohamed Allibhai*, originally he was not a party to the suit. He however applied to the High Court under section 83 of the Civil Procedure Act and Order 42, rule 1(1)(*b*) of the Civil Procedure Rules praying for the Court to review a consent judgment to which he was not a party.

The High Court dismissed his application. He appealed to this Court. It transpired that the appellant's, (Mohamed Allibhai's) interest in the suit property arose out of a grant to him on 28 June 1994 of letters of administration to the estate of a former owner. Repossession certificate of the suit property had been issued on 8 November 1994 yet the consent judgment had been given on 24 February 1994, about four months before Mohamed obtained letters of administration to enable him to have a say in the affairs of the deceased and about seven months before the certificate of repossession was issued to enable Mohamed Allibhai to have any interest in the suit property. This Court held that in those circumstances Mohamed could not have been an aggrieved party

under Order 42, rule 1 since the consent judgment was not passed against him. So he could not have the judgment reviewed. He was a stranger to it. The decision is therefore not helpful.

On the other hand, in *Hussein*'s case, there was a consent judgment in the suit between Hussein and the Attorney-General. The suit involved expropriated property which had been purchased at a public auction by the respondents on 2 May 1980 and the respondents were in physical occupation of the suit property when Hussein filed the suit in 1991. Hussein did not join the respondents in the suit. On 16 December 1991 a Minister of State authorised Hussein to repossess the property.

On 29 January 1992 parties caused a consent judgment to be entered. But on 11 February 1992, the Minister of State for Finance wrote to Hussein another letter revoking the repossession after which the respondents who had not been parties to the suit filed in the High Court an application under section 83 of Civil Procedure Act and Order 9, rule 9 of Civil Procedure Rules asking for the consent judgment to be set aside and for the respondents to be joined in the suit as defendants. The High Court allowed the application although Hussein opposed the application stating that the respondents, Kakiizas had no interest in the property because Act 9 of 1982 had nullified their purchases. Hussein appealed to this Court.

Odoki JSC, as he then was, wrote the lead judgment, with which other members of the Court agreed. He referred to both section 83 of Order 42, rule 1 and held that a person considering himself aggrieved means a person who has suffered a legal grievance. He doubted whether a third party to a suit can cause a review of a judgment under section 83 or under Order 42, rule 1.

He expressed the opinion that in a suitable case a third party may apply for review under inherent powers of the Court. However he held that under Order IX, rule 9, the respondents had *locus standi* to apply for setting aside the consent judgment and for them to be joined in the suit "so that issues relating to the merits of the claims of the parties could be determined in a fuller hearing". The holding in that case is therefore that strictly speaking Kakiizas were not aggrieved parties within the meaning of section 83 or Order XVII, rule 1.

Halsbury's Laws of England (3ed) Volume 25 at 251 states that a person claiming to be aggrieved must be a person whose legal rights are directly affected by the Court's decision. In the present case, as the expression "aggrieved person" is not defined anywhere in Act 9 of 1982, I think that the expression must be construed by reference to the context of the Act itself and all the circumstances of the present case. Here the plaint shows that A1 sold and transferred suit land long before the second repossession certificate was issued to R2. In company cause case, A1 had been a party where transfer to him was said to be improper.

It is clear from the record in this appeal, that the appellants did not seek to be joined in the proceedings giving rise to civil appeal number 36 of 1996 nor are they doing so in these proceedings. The thrust of their attack is to have civil appeal number 36 of 1996 declared null. The two cases I have discussed do not help the case of the appellants in the approach adopted.

I turn to the effect of *Makerere Properties Limited v Attorney-General* civil appeal number 36 of 1996.

As has been pointed out earlier in this judgment, Sadrudin, one of the three brothers and a shareholder in R2 applied for and had suit land returned to R2.

He manipulated the shareholding in R2. As a result he was able to sell the suit land to A1 in 1981. A1 became a registered proprietor on 2 August 1982. In 1992, R3 instituted in the High Court company cause number 2 of 1992 against A1 (*Pirani v Karia*). The High Court held that the change in shareholding was fraudulently done and so it ordered the Registrar of Companies to rectify the company register so as to reflect the position in shareholding as it was in 1972. After that High Court order, R2 applied to MOFEPD for repossession of the suit property. On 10 April 1996 the Minister rejected the application because "Government had, through the Departed Asians Property Custodian Board, already returned the property to you in 1981".

On 3 May 1996, R2 challenged the Minister's decision in the High Court by instituting miscellaneous appeal number 443 of 1996 against the Attorney-General. In that case, R2 prayed that it be granted certificate of repossession. To the miscellaneous application was annexed an affidavit sworn on 10 May 1996 by R3 explaining what Sadrudin did in order to transfer the suit land to A1 in 1981 and how the latter became registered owner in 1982, and how in company cause number 2 of 1992 the High Court had declared the transfers to be fraudulent. According to the judgment in civil appeal number 36 of 1996 those contents of the affidavit were apparently not challenged by any counter-affidavit. The Attorney-General as defendant to the matter filed only a general defence.

According to the same judgment of the Court of Appeal in civil appeal number 36 of 1996, during the hearing many facts deponed to by R3 in his said affidavit and some claims in pleadings were admitted. Admitted fact 3 stated that:

> "No certificate authorising repossession as provided for in the Expropriated Properties Act, 1982 has ever been issued to Makerere Properties Limited."

Again in admitted fact 4, it was agreed that the verification committee in the Ministry of Finance on 9 July 1991 intimated that a certificate authorising repossession by R2 was being prepared for issue to R2.

As pointed out earlier the same verification committee had at that time "purported" to cancel certificate number 0607. The cancellation was advertised in the *Gazette* in November 1991.

On 10 April 1996 the Minister rejected the application by R2 for repossession of the suit land. Inspite of those admissions, Byamugisha J, heard and dismissed miscellaneous appeal number 443 of 1996. Thereafter R2 appealed to the Court of Appeal by lodging civil appeal number 36 of 1996. On 1 June 1998 the Court of Appeal allowed the appeal, set aside the decision and orders of Byamugisha J, and entered judgment for R2 and directed the Minister to deal with the matter under the provisions of Act 9 of 1982. In the appeal the lead judgment, with which the other members of the Court concurred, was written by Twinomujuni JA. His main findings were that:

(*a*) The suit property which belonged to R2 in 1972 had never been returned to R2 but was instead wrongfully returned to Sadrudin, one of the directors of the appellant.

(*b*) The return of the property to Sadrudin was wrong because Sadrudin had no authority to claim the property on behalf of the company.

(*c*) The High Court in company cause number 2 of 1992 found that Sadrudin had fraudulently repossessed the suit property and transferred it to A1.

(*d*) That transfer of property to A1 was affected by fraud so passed no valid to A1.

(*e*) Alternatively on the basis of the principles set out in *Gokaldas Laximides Tanna v Sr Rosemary Muyinza and Departed Asian Property Custodian Board* (S Ct civil appeal number 12 of 1992), the purported return of the suit property, to Sadrudin in 1981 and the subsequent registration of the property in the names of A1 were both nullified by Act 9 of 1982 as they were both effected between 1973 and 21 February 1983.

(*f*) By the time the judgment was delivered in civil appeal number 36 of 1996 the suit property was still vested in the Government.

There was no appeal against that judgment.

Earlier in this judgment I said that the Court of Appeal was wrong to say that the suit land was returned to Sadrudin. It was returned to R2. But that does not affect the conclusions I have reached.

Mr *Lule* has argued that the decision in that appeal did not affect the status of the suit land insofar as the appellants are concerned because they were not parties to the litigation. *Nangwala* for R2 and R3 argues that the decision was about the status of the suit property. According to *Halsbury's Laws of England*, Volume 15 (3ed) at 178, the meaning of a judgment *in rem* is defined in paragraph 351 as the "judgment of the Court of competent jurisdiction determining the status of . . . a thing, or the disposition of a thing as distinct from the particular interest in it of a party to the litigation". Further in paragraph 366, the most important distinction between judgments *in rem* and judgements *inter partes* is given as "judgments *inter partes* are only binding as between the parties thereto and those who are privy to them. The judgment *in rem* of a Court of competent jurisdiction is as regards . . . property situate within the jurisdiction of the Court pronouncing the judgment, conclusive against all the world in whatever it settles as to the status of the property, or as to the right or title to property, as to whatever disposition it makes of the property itself."

These two principles are not contested in this appeal.

I think that on the facts already outlined, the status of the suit land was determined by the Court of Appeal in criminal appeal number 36 of 1996.

It therefore follows that both appellants are bound by it even if they are strangers to the decision. I am not persuaded by Mr *Lule'*s arguments that because the present appellants were not parties in civil appeal number 36 of 1996 the decision is a nullity and does not affect them insofar as the status of the property is concerned. The best which the appellants could have done if they had sufficient reasons was to apply during the trial to be joined as parties. They did not.

Further, A1 was a party in High Court company cause number 2 of 1992 wherein the High Court found that Sadrudin acted fraudulently in selling the suit property to him (A1). In my view, this affects not only A1's title but also the title of whoever purchased the property subsequently. That means that A2 did not acquire a valid title. There are other matters which are instructive in this dispute.

A2 instituted in the High Court, civil suit number 759 of 1998 against R2 apparently after the Court of Appeal had disposed of civil appeal number 36 of 1996. At the time the appeal was disposed of, A2 had just acquired the suit land. When the case came up for hearing on 31 May 1999, counsel for R2 objected to the competence of the suit on the grounds that the property is vested in Government. Lugayizi J upheld the objection and held that civil appeal number 36 of 1996 established the status of the property to the effect that the property was vested in Government so A2 had no cause of action. The learned Judge also found that because of civil appeal number 36 of 1996, the suit was frivolous and vexatious and so he dismissed the suit.

The point here is that along, the proprietary rights of A1 in R2 were being challenged yet he purported to sell the property to a third party. I am aware that the High Court decided the case the subject of this appeal without hearing evidence. So neither this Court nor the Court below had evidence to assess the credibility of the witnesses or parties. But certain matters are clear from the pleadings.

According to the certificate of title to the suit land, A1 became registered proprietor on 2 August 1982. On 10 July 1996, R2's caveat was removed. Nullified repossession certificate number 0608, in A1's names, was noted on the title. This is perplexing because the pleadings for R2 show that that repossession certificate was cancelled in 1991 and that fact was advertised in the Uganda *Gazette* on 7 November 1991. Further, one wonders how A1's name was entered on the title on 2 August 1982 before a repossession certificate was given. But that is not all. The certificate of title shows that this is reflected in the plaint that immediately repossession certificate number 0608 was noted on the title, A1 transferred the land to Nadims Limited, who was entered on the title as the new proprietor. On 5 May 1997 proprietorship was changed from Nadims to Meera Investment Limited. Hardly two months later, on 25 June 1997, A2 appears on the title as the new proprietor. All these changes in proprietorship took place during the period which various Court battles, some of which have been mentioned in this judgment, were raging in Courts. More light could have been shed on all these matters in a full trial. But a full trial would not change the status of the suit land which is that because section 2 of Act 9 of 1982 nullified the transactions of 1981 and 1982, by 1998 at the time repossession was granted to A2, the suit land remained vested in Government by law. That was the status.

Section 2 insofar as relevant states:

> "2 (1) Any property or business which was:
>
> (*a*) Vested in the Government and transferred to the Departed Asians' Property Custodian Board under the Assets of Departed Asians Act,
>
> shall, from the commencement of this Act, remain vested in the Government and be managed by the Ministry responsible for finance."
>
> (2) For the avoidance of doubt, and notwithstanding the provisions of any written law governing the conferring of title to land, property or business and the passing or transfer of the title, it is declared that:
>
> (*a*) any purchases, transfers and grants of or any dealings of whatever kind in such property or business are nullified."

In view of the foregoing discussions, I think that grounds five and six ought to fail. In the result, I think that his appeal has no merit. I would dismiss it and

would award two thirds of the costs to the respondents here and in the two Courts below.

Odoki CJ, Oder, Karokora and Kanyeihamba JJSC concurred in the judgment of Tsekooko JSC.

For the appellants:
Mr GS Lule and *Segawa* instructed by *Gandesha & Co*

For the first respondent:
Mr Matisko, Principal State Attorney

For the second and third respondents:
Mr J Nangwala instructed by *Nangwala, Resida and Co*

Karimi v Khan and another
[2005] 1 EA 105 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of ruling:	13 May 2005
Case Number:	163/00
Before:	Tunoi, O'kubasu and Githinji JJA
Sourced by:	HA Ongicho
Summarised by:	C Kanjama

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[1] Appeal – Record of appeal – Second page of amended defence missing – Application to strike out record of appeal filed four years out of time – Proper orders to be made – Rule 80 – Court of Appeal Rules.

Editor's Summary

The applicant's new advocates noted that the record of appeal contained an amended defence with the second page missing. They filed an application to strike out the entire record of appeal on the ground of failure to contain a primary document, as required by the Court of Appeal Rules. The appellant/respondent argued that the application was filed out of time by more than four years and could not be granted.

Held – Without the second page of the amended defence, which was required to be signed by the appellant's advocate, the first page cannot be considered as a pleading. The effect of the omission of the second page is that the appellant has failed to include a pleading which is a primary document in breach of the Court of Appeal Rules. This document cannot be included in a supplementary record of appeal, thus rendering the entire appeal incompetent.

The application to strike out the appeal was incompetent for having been filed more than four years out of time. The Court would however in the circumstances of this case strike out both the application and the appeal with no order as to costs.

No cases referred to in ruling

Ruling

Tunoi, O'kubasu and Githinji JJA: The applicant who is the respondent in the appeal seeks an order under rule 80 of the Court of Appeal Rules that the appeal be struck out on the ground that the record of appeal does not comply with rule 85(1)(*c*) as the written statement of defence and parts of amended defence are omitted. The application is supported by the affidavit of Mr Harmesh Kumar *Mahan* – advocate for the applicant.

Mr Charles *Kariuki*, learned counsel for the respondents, has filed a replying affidavit. The application is opposed mainly on the ground that it was filed four and a half years since the service of the record of appeal.

By proviso to rule 80 of the Court of Appeal Rules, an application to strike out the notice of appeal or the appeal should not be brought after the expiry of 30 days from the date of service of the record of appeal on the respondent.

We are satisfied that the record of appeal was served on Messrs Mbae Mwarania and Company Advocates who were then on record for the applicant on 13 June 2000.

By virtue of Order III, rule 6 of the Civil Procedure Rules, Messrs Mbae Mwarania and Company Advocates were the applicant's advocates on record in the appeal because there has not been any change of advocates. They ceased, however, to be the advocates for the applicant on 20 October 2004 when the firm of *Bali Sharma and Bali Sharma Advocates* filed a notice of change of advocates in the appeal.

Time for filing an application to strike out the appeal started running on 13 June 2000 when the firm of Messrs Mbae Mwarania and Company Advocates was served with the record of appeal. The application should have been filed on or about 13 June 2000. The application having been filed grossly out of time is incompetent.

However the respondents' counsel concedes that page 2 of the two-page amended defence is not included in the record of appeal. Without the second page which is required to be signed by the appellant or his advocates, the first page cannot be considered as a pleading. The effect of the omission of the second page of the amended defence is that the appellant has failed to include the applicants' pleading (amended defence) which is a primary document in breach of rule 85(1)(*c*) of the Court of Appeal Rules. Rule 85(2A) does not allow the filing of a supplementary record to include such a primary document. It follows that an essential pleading necessary for proper determination of the appeal is missing from the record of appeal thereby rendering the entire appeal incompetent.

Although the application to strike out the appeal is incompetent we would nevertheless in the circumstance of this case strike out the incompetent appeal.

Accordingly, both the application and the appeal are struck out with no order as to costs.

For the applicant:
Mr HK Mahan instructed by *Bali-Sharma & Bali-Sharma Adv*

For the respondents:
Mr C Kariuki instructed by *Charles Kariuki & Co*

Kariuki v Wang'ombe

[2005] 1 EA 107 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	10 December 2004
Case Number:	260/00
Before:	O'kubasu, Githinji and Waki JJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Damages – Wrongful distress – Value of distrained goods – Whether Court should consider replacement value or actual value in assessing damages – Whether general damages are awardable.

[2] Tort – Wrongful distress – Failure to give 10-day notice – Consequences of wrongful distress – Principles for determining quantum of damages for wrongful distress.

Editor's Summary

The appellant was the proprietor of the subject property which he had leased to the respondent through an oral lease. Sometime after closure of the hotel by the Public Health Officer, the appellant instructed auctioneers to distrain for rent. The auctioneer broke into the premises and carried away various goods of the respondent. The respondent subsequently lodged a complaint and gave an inventory of the affected goods. The auctioneer sold the goods but failed to give an account of the proceeds.

Subsequently, the respondent filed suit seeking damages for conversion and for wrongful distress. The trial Court concluded that distress was wrongful as notice had not been given prior to sale or removal of distrained goods. The Court assessed special damages at the original acquisition value of the distrained goods, and made a further award of KShs10 000 as general damages.

On appeal, the issues arose again for fresh determination.

Held – Under the Distress for Rent Act, the distrained goods should be left in the premises and the tenant must be given a notice stating the cause for making the distress and the goods can only be sold on the premises or removed after 10 days if the tenant has not paid the rent together with the costs of the distress. The distrained goods should be sold for the best price and the surplus value handed over to the tenant.

It was not disputed that arrears of rent were outstanding and that the landlord was entitled to distrain for rent. The distress was therefore not illegal (there was no conversion) but was wrongful. The landlord would be liable for the action of the auctioneer, since the said distress was not illegal but only irregular. For an illegal distress, the landlord would only be liable if he ratified the auctioneer's illegal act. *Halsbury's Laws of England* (3ed) Volume 12 paragraph 224 cited with approval. *Patel v Essa* [1965] EA 484 followed.

Damages recoverable for illegal distress, ie when no rent is in arrears or due, is double the value of the goods and chattels so distrained and sold together with costs. However, for an irregular distress, the tenant is only entitled to recover full satisfaction for the special damages he has sustained and no more. The value of the goods lost, and not their replacement value, would be considered in assessing the special damages. As only the acquisition values were

available, and taking into account depreciation, a fair estimate of the respondent's goods would be half their acquisition value. No general damages were awardable.

Appeal succeeds in part. Quantum of damages halved.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Butt v Khan [1981] KLR 345

Patel v Essa [1965] EA 484 – **F**

Judgment

O'kubasu, Githinji and Waki JJA: This is an appeal from the judgment and decree of the superior Court (Juma J) dated 15 March 2004 in which the superior Court found the appellant liable for unlawful distress and entered judgment against him for KShs238 000 being the value of the respondent's distrained goods plus KShs10 000 as general damages.

The appellant is the proprietor of land reference number Nyeri/Municipality/Block 3/44 which he leased to the respondent in 1977 at a monthly rent of KShs2 000. The lease was oral. By closure notice dated 29 July 1991, the Public Health Officer, Nyeri Municipality declared the premises closed with effect from 30 July 1991 for the reason that the respondent was operating the hotel in the premises under unsanitary conditions. The hotel was closed until the specified repairs were done. Neither the appellant nor the respondent repaired the premises as required. According to the appellant the premises were closed for three months and by a letter dated 29 October 1991 his lawyer, Mr K *Ndirangu* instructed Messrs JK Gitonga and Company, Court Brokers, Nyeri to levy distress on the respondent's goods which were in the premises under Distress for Rent Act (Chapter 293) the Act to recover the arrears of rent of KShs6 000 for the months of August and September 1991. According to the respondent, the appellant broke into the premises on 7 October 1991 and the respondent's goods were removed from the premises. The respondent reported the matter to the police on 12 November 1991 and gave the police an inventory of the goods which were in the premises. Those goods included a deep freezer, Singer refrigerator, chip frier, office table, two big counter tables, four long dining tables, stools and other assorted items. Some of those goods were apparently sold by JK Gitonga, the Court bailiff but the respondent was not given the account of the proceeds of sale. On 7 September 1993 the respondent filed a suit in the superior Court against the appellant claiming general damages and special damages of KShs795 797 for conversion of the goods, or alternatively for illegal distress. The respondent filed a defence in which he admitted that JK Gitonga Auctioneers restrained the plaintiff's goods on 30 October 1991 but averred that the distress was lawful. The superior Court made a finding that the respondent was in arrears of rent and that the appellant was entitled to levy distress for rent but that the distress was carried out in un-lawful manner. The superior Court assessed the value of the deep freezer at KShs82 000, the value of the Singer refrigerator at

KShs17 000 and the value of the chip frier at KShs89 000 and KShs50 000 for office table, two big counter tables, four long dining tables, stools and other assorted items.

There are nine grounds of appeal. Those grounds in essence challenge the finding of the learned Judge that the distress was unlawfully carried out, and the liability of the appellant for the acts of the Court bailiff and the quantum of the special damages.

The learned Judge found the distress to be unlawful for several reasons, namely, that the respondent broke into the premises and carried the goods away without leaving the goods in the premises for at least 10 days; the respondent levied distress and gave the premises to somebody else thereby terminating the respondent's tenancy and the failure by the appellant to give account of what was realised from the sale of the respondent's goods. It has been contended by the appellant's counsel that the predominant reason for breaking into the premises by the landlord was to remove the respondent's goods which the respondent had refused to remove from the premises to pave the way for carrying out the repairs ordered by the Public Health Officer. It was further contended that it is the instructor and not the appellant who was liable for the acts which were the basis of the respondent's claim.

By section 4(1) of the Act, the distrained goods should be left in the premises and the tenant must be given a notice stating the cause for making the distress and the goods can only be sold on the premises or removed for sale off the premises only if the tenant has not within the 10 days after distress, paid the rent together with the costs of the distress. That section also provides that distrained goods should be sold for the best price which can be obtained for them and that any surplus of the proceeds of sale after the satisfaction of the rent and charges of the distress, removal and sale should be handed over to the owner (tenant).

Although the respondent claimed at the trial that there was no arrears of rent due at the time of the distress, the learned Judge found as a fact that there was rent due which had been demanded. The respondent has not cross-appealed against that finding. Indeed, the respondent's counsel told us that the right to distress for rent was not disputed and that the question was whether the distress was rendered unlawful by the landlord's conduct of breaking into the premises and carrying away the goods. The appellant admitted in his evidence that the respondent's lock was on the door and that the auctioneer broke into the premises in his presence and removed the respondent's goods, but stated that he does not know what the auctioneer did with the goods. The appellant however, relied on a letter dated 2 June 1992 from the auctioneer to the respondent's advocates which refers to a civil suit, Principal Magistrate's civil case number 132 of 1991 between the Barclays Bank and appellant which states:

> "We have to inform you that the goods belonging to the Judgment debtor was first distrained by the landlord Messrs Homage Service Store for KShs7 000 and your warrant of attachment came later.
>
> Total amount fetched after:
>
> | | |
> |---|---|
> | Sale | KShs22 815-00 |
> | Less landlord's rent | KShs7 000-00 |
> | | KShs15 815-00 |
> | Less our charges | KShs11 171-00 |
> | | KShs4 644-00 |

> There were unsold goods which did not attract any bidders, we will re-advertise the same.
>
> We enclose our cheque number R148067 for KShs4 644-00."

The auctioneer died before the suit was heard. There was ample evidence which established that the appellant was entitled to levy distress. The distress was not therefore illegal. However, it is clear that the distress was wrongful owing to the fact that the tenant was not given a notice to pay within 10 days of the distress, the premises were broken into and the goods removed from the premises before the expiry of the 10 days and that the surplus of the proceeds of sale was not given to the respondent. The appellant's counsel submitted that the premises were broken into to remove the respondent's goods to give way for compliance with the Public Health Officer's order. That submission is a departure from the appellant's case as pleaded in the defence wherein the appellant admitted that distress was in fact levied for arrears of rent.

The appellant's contention that the landlord is not liable for the action of the auctioneer is not correct in law. The law is as stated in paragraph 224 of the *Halsbury's Laws of England* (3ed) Volume 12 at 129 cited by the respondent's counsel at the trial. The landlord is liable to the tenant for any irregularities and misconduct and even for negligence committed by the bailiff in the course of his employment, so far as he is acting within the scope of his employment. However, for illegal distress, which is not the case here, it is the bailiff who is primarily liable and the landlord is only liable if it can be shown that he ratified the bailiff's illegal act (see *Patel v Essa* [1965] EA 484). In the circumstances, the findings of the learned Judge that the appellant was liable to the tenant for the irregular distress cannot be faulted.

As provided by section 8 of the Act, the damages recoverable for illegal distress, that is when no rent is in arrears or due, is double the value of the goods and chattels so distrained and sold together with full costs which can be recovered as a civil debt summarily. However, we are not here dealing with damages for illegal distress. Similarly, the damages recoverable for any irregularity or unlawful conduct in the course of a lawful distraint are prescribed by section 15 of the Act. By that section, the tenant is entitled to recover full satisfaction for the special damages he has sustained and full costs and no more.

According to *McGregor on Damages* (17ed) paragraph 1462 at 960, the normal measure for irregular distress is the value of the goods less the rent due and if plaintiff fails to show actual damages, he is not entitled to nominal damages but loses the action.

In this case, the learned Judge awarded what he considered to be the value of the distrained goods which were sold. The appellate Court will not interfere with the amount awarded as damages by the trial Court unless it is satisfied that the trial Court acted on the wrong principle of law or that he has misapprehended the evidence in some material respect and so arrived at a figure which was either inordinarily high or low as to represent an entirely erroneous estimate – see *Butt v Khan* [1981] KLR 345.

The deep freezer for which KShs82 000 was awarded was bought and installed in 1978 for KShs82 000. The chips frier for which KShs89 000 was awarded was bought in 1979 at KShs89 000. The singer refrigerator for which KShs17 000 was awarded was bought at KShs17 000 some time ago. There was no evidence as to how much each of those three items was sold for. The

receipts for the purchase of the goods were not produced. The learned Judge quite correctly stated that the Court had to award the value of the items lost and not their replacement value, but it is clear from the judgment that the learned Judge nevertheless took into account that the respondent would have to pay more to purchase the same machines. That was misdirection as to what the respondent was entitled to the fair value of his goods which were sold. The value of the goods has to be assessed as at the time the goods were distrained and not at the time the goods were bought. The three things were bought many years ago. They had obviously depreciated in value. In our view, the learned Judge erred in principle when he assessed the value of these items at the price that they were bought instead of assessing their fair value at the time that they were impounded and so made an erroneous estimate of the respondent's loss. There was also no evidence to show when the other items for which KShs50 000 was awarded were bought or for how much they were sold. We reckon that the fair value of the respondent's goods which were old was about half of their purchase price and would therefore reduce the award of KShs238 000 by half. The rent due was recovered from the sale of the goods and should not be deducted as the statute does not provide for recovery of general damages. The appellant has succeeded in at least having the damages reduced by about half and is therefore entitled to half the costs of this appeal.

For those reasons, we dismiss the appeal on liability but allow the appeal against the award of damages to the extent that the award of KShs238 000-00 is reduced by half, that is to KShs119 000-00 and the award of KShs10 000 as general damages is set aside. We would also give half the costs of this appeal to the appellant.

For the appellant:
Mr HK Ndirangu instructed by *HK Ndirangu & Co*

For the respondent:
Information not available

Kenya Bus Services Ltd and others v Attorney-General and others
[2005] 1 EA 111 (HCK)

Division:	High Court of Kenya at Nairobi
Date of ruling:	10 June 2005
Case Number:	413/05
Before:	Nyamu J
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Constitution – Fundamental rights – Right to property – Whether State policy resulting in difficult business environment amounts to violation of applicant's right to property – Whether Court entitled to stay third party creditor's proceedings to preserve applicant's constitutional rights.

[2] Constitution – Procedure – Interim relief and ex parte *orders – Setting aside – Whether conservatory orders may be granted in a constitutional application –* Ex parte *orders granted in excess of jurisdiction – Whether such orders may be set aside – Sections 70 and 84 – Constitution of*

Kenya – Constitution of Kenya (Protection of fundamental rights and freedoms of the Individual) Practice and Procedure Rules of 2001.

Editor's Summary

The plaintiffs were holders of a bus transport licence in Nairobi city. The Government introduced a policy requiring that all seats be fitted with seatbelts and that all buses cease carriage of standing passengers. As a result of the said policy directives the plaintiffs underwent a substantial unexpected capital outlay and were unable to continue trading profitably. They therefore brought a constitutional application alleging that their rights to property and due process had been violated and sought orders staying all proceedings by their creditors and a preservation of their assets. The plaintiffs obtained *ex parte* orders against all their creditors, prompting an application by the three big creditors for setting aside of the said orders.

The Court considered the question of whether the interim and *ex parte* orders had been properly made and whether they could be set aside. The Court also considered whether the plaintiff's constitutional application instituted by way of originating summons had been properly brought.

Held – Automatic stay of proceedings under the Constitution's procedure rules cannot be available where the Court lacks jurisdiction. Even in other cases where the bringing of a constitutional application offends the fundamental principles of law, any interim stay orders can be set aside by the Court in the exercise of its inherent powers upon application. It would be unreasonable, unfair and oppressive for an aggrieved party to be burdened with an automatic stay until the determination of the originating summons upon which the order was obtained. *Kimotho and others v Attorney-General* High Court miscellaneous case number 833 of 2004 followed.

Going by the nature of the interim relief sought, it was improper not to provide for an interim hearing on merit. The *ex parte* orders ought to have been limited with a reasonable life span unless the Court was satisfied that the originating summons was going to be rendered nugatory. Such *ex parte* orders can be set aside. *WEA Records Ltd v Visions Channel 4 Ltd and others* [1983] 2 All ER 589 adopted; *R v Land Registrar Kajiado and others ex parte Kigunda* High Court miscellaneous case number 1183 of 2004 followed.

A constitutional application should be brought with due regard to fundamental principles of law, such as estoppel, waiver, laches, *res judicata* and utmost good faith. *Booth Irrigation v Mombasa Water Products Ltd* High Court civil case number 1052 of 2004 followed; *Labhsons Ltd v Manula Hauliers* High Court civil case number 204 of 2003 applied.

Under the procedural rules, automatic stay only applies where the constitutional application is brought within a pending suit. As the plaintiffs' application was not brought within a pending suit, it was incompetent and the *ex parte* orders had no basis in law. As the Court had exercised a jurisdiction it did not possess, the order would amount to nothing. *Motor Vessel 'Lilians S' v Caltex Limited* [1989] LLR 1653 (CAK) applied; *Omega Enterprises Ltd v KTDC* [1993] LLR 1685 (CAK) followed.

The constitutional application seeking stay of execution was itself an attempted violation of the rights of the creditors to due process and to property. There is no legal nexus between any alleged violation of the Constitution by the State and the creditors joined in as interested parties. Any claim against

another private individual must be dealt with under private law. *Teitwinnang v Ariong and others* [1987] LRC (Const) 517 adopted. The Constitution is not a general substitute for judicial control of administrative action. *Re Application by Bahadur* [1986] LRC 297, *Harrikisson v Attorney-General of Trinidad and Tobago* [1979] 3 WLR 62 adopted.

The constitutional application had not even shown a *prima facie* cause of action against the creditors. *Matiba v Attorney-General* High Court miscellaneous case number 666 of 1990, *Njeru v R (No. 1)* [1979] KLR 154, *Kubai v Mwenda* High Court miscellaneous case number 612 of 2002 applied.

Ex parte orders set aside, creditors expunged from the record.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Booth Irrigation v Mombasa Water Products Limited 1052 of 2004 (UR) – **F**

Kenya Bus Limited v General Motors EA Limited High Court case number 163 of 2005 (UR)

Kimotho and others v Attorney-General High Court miscellaneous case number 833 of 2004 (UR) – **F**

Kubai v Mwenda Nairobi High Court miscellaneous case number 612 of 2002 (UR) – **AP**

Labhsons Limited v Manula Haulers High Court civil case number 204 of 2003 (UR) – **AP**

Matiba v Attorney-General High Court miscellaneous application 666 of 1990 (UR) – **AP**

Njeru v Republic (No. 1) [1979] KLR 154 – **AP**

Omega Enterprises Ltd v KTDC [1993] LLR 1685 (CAK) – **F**

Owners of Motor Vessel 'Lilian S' v Caltex Limited [1989] LLR 1653 (CAK) – **AP**

Republic v Land Registrar Kajiado and others ex parte Kigunda High Court miscellaneous case number 1183 of 2004 (UR) – **F**

United Kingdom

Harrikisson v Attorney-General of Trinidad and Tobago [1979] 3 WLR 62 – **A**

Re Application by Bahadur [1986] LRC – **A**

Teitiwnnang v Ariong and others [1987] LRC (Const) 517 – **A**

WEA Records Limited v Visions Channel 4 Limited and others [1983] 2 All ER 589 – **A**

Ruling

Nyamu J: By an application dated 24 March 2005 brought by way of a notice of motion expressed to be grounded on section 84(1) and (2) of the Constitution of Kenya and rule 10(*a*) of the Constitution of Kenya (Protection of Fundamental Rights and Freedoms of the Individual) Practice and Procedure Rules of 2001, the three plaintiffs namely, Kenya Bus Services Limited,

BusTrack Limited and Msafiri Passenger Services Limited claim that their constitutional rights have been violated by the two defendants namely the Attorney-General and the Minister for Transport. The main ground relied on is that the plaintiff/applicants in the notice of motion have expended unbudgeted funds to comply with an unlawful law and hence the applicant has been denied the fundamental right to protection of law guaranteed by section 70(*c*) of the Constitution and the further fundamental right not to have their properties guaranteed under section 76 of the Constitution, entered into. The applicants in the motion further contend that as a result of the enforced compliance with the Traffic Regulations, the applicants' cash flows have been severely curtailed and they have been unable to service accounts with their creditors – hence their joining the 221 creditors including the first, second, and third interested parties (now applicants in the applications, to set aside, dated 7 April 2005, 18 April 2005 and 29 May 2005 respectively).

They further contend that compliance with the illegal road transport Rules and Regulations introduced by the defendants, the applicants stand real danger of being wound up and hence losing the protection of their property as guaranteed under section 70(*a*) of the Constitution. They have also claimed that the winding-up proceedings and/or attachment of their assets and other property a result of circumstances set out above will breach their fundamental rights:

(i) The due protection of their property under section 70(*c*).

(ii) Not to be subjected to the entry to their properties granted under section 76(1) of the Constitution.

(iii) Right to due process under section 77(9) of the Constitution.

The Court considers it important to set out the challenged order. On 24 March 2005 His Lordship Mr Justice Osiemo made the following order:

> "Application by way of notice of motion dated 24 March 2005 under certificate certified urgent prayers 2 and 3 granted."

Prayers two and three read as under:

> "(2) An order that the matter be placed before the Honourable Chief Justice for directions as to composition of the Court and other directions including the hearing date.
>
> (3) Pursuant to section 84(1) and (2) of the Constitution of Kenya and rule 10(6) of the Constitution of Kenya (Protection of Fundamental Rights and Freedoms of the Individual) Practice and Procedure Rules 2001 further proceeding and procedures set out in paragraph 14(*a*) to 14(*o*) of the affidavit of Edwin Musimba Mukabanah be stayed pending the determination of the originating summons filed herewith."

Thus without any battle what appears to be final orders were granted *ex parte* until the determination of the originating summons against 221 interested parties many of whom I understand have not yet been served to date, special interest being taken on the interested parties which had obtained judgments as creditors or those who were poised to execute the decrees or those about to petition for winding-up.

The respondent has contended that the two applications are not properly brought under Order XXXVI of the Civil Procedure Rules but as will be apparent hereinafter when there is no specific provision such application can be brought under the inherent powers of the Court and indeed that power has been cited in the applications. Rules under section 84(6) do not provide for the setting aside but it must be appreciated that they also do not provide for interim relief but the

power to grant conservatory orders is in section 84(2). I find that the applications are properly brought, the originating summons being a pending proceeding.

The respondent has also contended that the Court has no jurisdiction to set aside an order made pursuant to an application brought under section 84 of the Constitution but where there are final orders in the proceedings at the Milimani Court, the general policy of the law would support successful pleas of *res judicata*, abuse of Court process, oppressive proceedings, non-disclosure of material facts and the giving final orders at the *ex parte* stage without any reasons and without any time limitation all these categories of irregularities bring the matter within the Court's inherent power to set aside any *ex parte* orders falling in those categories.

Contrary to what the respondents contend the applicants seek neither a review nor an appeal against the *ex parte* order. I find that the automatic stay cannot be available where the Court lacks jurisdiction and even in other cases where the bringing of the application offends the fundamental principles of law any such stay can be set aside by the Court upon application and it would be unreasonable, unfair and oppressive for an aggrieved party to be burdened with an automatic stay until the determination of the originating summons upon which the order was obtained. It would be unreasonable and unjust to paralyse proceedings where the application is patently untenable or lacks substance.

I find no misapprehension of law on the part of the applicants. On the contrary I endorse fully the skeleton arguments by the interested parties on each point.

Going by the nature of the interim relief sought it was improper not to provide for an interim hearing on merit. An interim and *ex parte* order was prejudicial and continues to be prejudicial to the interests of the applicants and a reasonable life span for the *ex parte* order ought to have been given as is the practice under the Civil Procedure Rules and the intended interested parties allowed to contest it *inter partes* before the hearing of the originating summons unless the Court was satisfied that the originating summons was going to be rendered nugatory. There is nothing provided for under Order XXXVI which requires direction to be taken before an application for conservatory orders is heard *inter partes*. The basis upon which conservatory orders/or interim relief are granted are requirements of balancing the interests of the parties and the need to preserve the subject matter of the claim.

On the whole I find the contentions of the respondents, a serious violation of section 70 of the Constitution and the irony of it is that the justification for the claim against the interested parties is based on the same section. What a contradiction. Fundamental rights cannot be enjoyed in isolation and by a selected few while they trample on others or tread upon their rights. The enjoyment of fundamental rights and freedoms contemplates mutuality and an atmosphere of respect for law and order including the rights of others and the upholding of the public interest. Rights and freedoms can only thrive alongside those of others and the society at large because the alternative would be anarchy. The function of the Court when faced with the task of establishing or determining the rights on the one hand and determining the limitation and restrictions on the other hand is to do a balancing act. In this balancing act are principle values, objectives to be attained, a sense of proportionality and public

interest and public policy considerations just to mention a few. All these must be put on the scales with the fundamental rights on the left and the limitations on the right.

In High Court miscellaneous case number 1052 of 2004 *Booth Irrigation v Mombasa Water Products Limited* this Court held *inter alia*:

(i) *Res judicata* does apply to constitutional matters.

(ii) An unchallenged Court order cannot be the basis of a constitutional application (to prevent execution).

(iii) Non-disclosure of material facts is sufficient to warrant the dismissal of a constitutional application.

(iv) A constitutional Court has inherent powers to prevent abuse of its process.

(v) A constitutional application brought in violation of fundamental principles of law is incompetent and should be dismissed.

In the earlier ruling of *Booth Irrigation I* the Court held *inter alia*:

(i) Fundamental principles of law such as estoppels, *res judicata*, laches, waiver, compromise etc apply because the Constitution assumes their existence on grounds of public policy – justice, freedom and fair play.

(ii) Violation of a fundamental principle of law can defeat the articulation of applications under section 84 of the Constitution.

(iii) Objection to the challenge of an application under section 84 dismissed for possible breach of a fundamental principle.

(iv) Application under section 84 subsequently dismissed in *Booth Irrigation II*.

In *Labhsons Limited v Manula Haulers* Milimani High Court civil case number 204 of 2003 this Court held *inter alia* that the right to apply to the High Court under section 84 is itself a fundamental right and it cannot be stifled, clogged or fettered except where the application violates fundamental principles of law.

It is therefore abundantly clear that the local jurisprudence on this has so far manifested itself to the effect that violations of fundamental principles of law is a major consideration by the Court firstly to prevent the abuse of the process under section 84 and also to filter out applications that are patently frivolous vexatious, or legally oppressive and untenable. The Constitution is a serious one. The Courts cannot countenance the process being trivialised or abused and applications falling under this category can in my view be challenged and dismissed or struck out. Judgments of competent Courts cannot be challenged in a Constitutional Court except on grounds of lack of due process or anything that borders on unconstitutionality.

Automatic stay

Concerning the point as to whether there is an automatic stay once a constitutional application is filed it is clear to the Court that the notice of motion which resulted in the granting of the ex parte order by Honourable Mr Justice Osiemo was brought under rule 10(a) of the Constitution of Kenya (Protection of Fundamental Rights and Freedoms of the Individual) Practice and Procedure Rules 2001 yet there are no pending proceedings the originating summons having been brought under section 84(1) and (2) of the Constitution.

There was no pending proceeding in that the only pending proceedings are the one suit brought against the plaintiffs by the third interested party and the notice of motion was not brought under those proceedings namely High Court

civil case number 684 of 2004 where the third interested party has a judgment of approximately KShs7 million which is alleged to be owed and High Court case number 163 of 2005 *Kenya Bus Limited v General Motors EA Limited* where the first plaintiff had filed suit against the first interested party seeking injunctive relief. The second interested party claims to be owed over KShs177 million and the respondents apprehend the bringing of winding-up proceedings under the Companies Act.

The notice of motion upon which the *ex parte* order was granted was not based on any proceedings and rule 10(*b*) does not apply. Rule 11(*a*) should have been invoked and not 10(*a*). It follows that a chamber summons under Order XXXVI, rule 12 should have been filed seeking interim orders. Order XXXVI, rule 12 is mandatory and I find that the notice of motion upon which the interim order was granted is incompetent.

There was therefore no automatic stay and the *ex parte* orders had no basis in law.

There cannot therefore be an automatic stay under rule 10(*b*). What is stayed under rule 10(*b*) are further proceedings where a constitutional question has arisen in the proceedings being stayed. On the contrary, a direct application does not attract an automatic stay. The *ex parte* order was therefore literally based on thin air and without the backing of the rules made under section 84(6) of the Constitution.

By and large Chapter 5 fundamental rights and freedoms are not absolute. What is granted are rights subject to permissible restrictions such as the rights of others and of society and the public interest. Thus section 70 clearly provides that restrictions or limitations are contained in section 71 to section 83. In particular the enjoyment of those rights and freedoms by any individual should not prejudice the rights and freedoms of others or the public interest.

Section 70 reads:

> "70 Whereas every person in Kenya is entitled to the fundamental rights and freedoms of the individual, that is to say, the right, whatever his race, tribe, place of origin or residence or other local connection, political opinions, colour, creed or sex but *subject to respect for the rights and freedoms of others and for the public interest*, to each and all of the following, namely:
>
> (*a*) Life, liberty, security of the person and the protection of the law;
>
> (*b*) Freedom of conscience, of expression and of assembly and association; and
>
> (*c*) Protection for the privacy of his home and other property and from deprivation of property without compensation the provisions of this chapter shall have effect for the purpose of affording protection to those rights and freedoms subject to such limitations of that protection as are contained in those provisions being limitations designed to ensure that the enjoyment of those rights and freedoms *by an individual does not prejudice the rights and freedoms of others or the public interest*." (emphasis added)

They are not absolute as is clear from the provisions of section 70 of the Constitution. They can only be enjoyed in an orderly society. Where they infringe on the rights of others they cannot be enforced by a Constitutional Court because the rights of others, the society and the public interest are in the terms of the Constitution also rights and freedoms to be secured and enforced by the Court hence the need for a balancing act as illustrated earlier. The Constitution does not say that these other rights and freedoms are lesser rights etc. Where

they are likely to prejudice the rights of others the Courts cannot enforce them unless the Court has a way of securing and enforcing them without disregarding the rights of others.

In this case it is quite evident that the grant of the *ex parte* orders paralysed or stopped completely both accrued rights such as the rights to execute decrees of competent Courts and the order was so wide as to purport to stop any future right of the interested parties to enforce their rights by instituting any future litigation against the applicants. The creditors are entitled to have he Courts adjudicate on the civil obligations under section 77(9) of the Constitution.

Stopping interested parties from using the due process of law to enforce their rights is itself a clear violation of the provisions to secure protection of law under section 77 of the Constitution. Decisions or determinations by way of judgments, decrees or orders are clearly recognised by section 77(9) of the Constitution and failure to recognise Court judgments of competent Courts is both unconstitutional and an improper invocation of jurisdiction. The Courts must exercise jurisdiction in conformity with the Constitution – see section 3 of the Judicature Act. In addition, execution of decrees is provided for as a permissible limitation or restriction on the right not to be deprived of property under section 75 of the Constitution. Thus section 75(6) reads:

> "Nothing contained in or done under the authority of any law shall be held to be inconsistent with or in contravention of subsection (1) or (2) to the extent that the law in question makes provision for the taking of possession or acquisition of property
>
> (ii) in the execution of judgments or orders of a Court in proceedings for determination of civil rights or obligations."

There cannot therefore be a cause of action based on a lawful exercise of the right of execution by interested parties. It is unthinkable to imagine how the plaintiffs can allege and prove any contravention under section 84 in the circumstances.

Moreover fundamental rights and freedoms are contained in the Constitution and are principally available against the State because the Constitution's function is to define what constitutes government and it regulates the relationship between the government and the governed. On the other hand the rights of individual interests are taken care of in the province of private law and are invariably redressed as such.

It is a serious contradiction to suggest that creditors who are enforcing their rights under the private law should be stopped from so doing because there are allegations of violations of the Constitution by the State or Government. There is no legal nexus between the applicant interested parties and the respondent in terms of any contravention of the Constitution or ordinary law and none has been pleaded under section 84 is clearly inapplicable.

I therefore entirely accept as good Constitutional law the holding by Maxwell CJ in the Kiribati case of *Teitiwnnang v Ariong and others* [1987] LRC (Const) 517 at 599 where he held as follows:

> "Dealing now with the question can a private individual maintain an action for declaration against another private individual on individuals for breach of the fundamental rights provisions of the Constitution. The rights and duties of individuals and between individuals are regulated by private law. The Constitution on the other hand is an instrument of Government. It contains rules about the government of the country. It is my view therefore that the duties imposed by the Constitution under the fundamental rights provisions are owed by the government of the day to be governed. I am

> of the opinion that an individual or a group of individuals as in this case, cannot owe a duty under the fundamental rights provisions to another individual so as to give rise to an action against the individual or a group of individuals since no duty can be owed by an individual or group of individuals to another or individual under the fundamental rights provisions of the Constitution, no action for a declaration that there has been a breach of duty under the provision can be or be maintained in the case before me, and I so hold."

In India where almost similar fundamental rights and freedoms provisions are in existence (except the right to property is no longer a fundamental right) the Courts have held the same as per the above quotation. The definition of a "person" under section 123 of the Constitution includes a body of persons corporate or incorporate.

Turning to the instant case there is even an additional reason for holding that no valid order can be made under the Chapter 5 provisions and which is – no allegations of violations by the so called interested parties have been made against them but the allegations of violations are directed against the Attorney-General and the Minister for Transport and therefore no such order can be made against the interested parties pursuant to section 84(1) and (2) of the Constitution or at all. Without threatened or real violation or contraventions alleged proof thereof there cannot be any constitutional redress against the interested parties even on the basis of the originating summons and without a hearing because there will be nothing to hear under section 84.

In addition, although there is no direct local authority on the point, the holding number three in the Trinidad and Tobago Constitution in the case of *Re Application by Bahadur* [1986] LRC (Const) 297 at 298 represents our position as well:

> "The Constitution is not a general substitute for the normal procedures for invoking judicial control of administrative action. Where infringements of rights can found a claim under substantive law, the proper course is to bring the claim under that law and not under the Constitution." (See *Harrikisson v Attorney-General of Trinidad and Tobago* [1979] 3 WLR 62 applied).

I am of the view that the only exception to the rule or principle stated above is where companies or corporations principally created under a statute can constitutionally be said to be State agents or under the instrumentality of the State, and which is not the case here. The origin of the principle of the instrumentality of the State can perhaps be traced to be the imperial days of *Solomon v Solomon* and the modern political reality of the State delegating by statute its functions to large corporations perform what would in yester years have been the function of the State eg managing railways, telecommunications and energy based corporations.

Applying this principle none of the interested parties or indeed the others is associated with the State under this principle. The *Solomon v Solomon* days chartered companies were directly given charters by the Queen or King and were State agents. It is not the case here.

It follows therefore if the plaintiffs had any claim whatsoever against the first and second interested parties or any of the other parties they should have rightly been brought under the private law eg under Company law provisions or Bankruptcy Act provisions.

Invoking section 84 of the Constitution in my view is an abuse of the Court process and the claim against the interested parties has no substance.

A Constitutional Court cannot interfere with High Court civil case number 163 of 2005 *Kenya Bus Limited v General Motors EA* or any orders in the suit, the Court in Milimani being a competent Court. Moreover any final orders, judgments or decrees in the suit would clearly give rise to a plea of *res judicata* in the constitutional application herein.

Jurisdiction

Although it has been argued that this Court has no jurisdiction in my opinion there are several reasons for finding that this Court has jurisdiction:

1. As regards the order given by Justice Osiemo on 24 March 2005 during the High Court vacation it is trite law an *ex parte* order can be set aside by the judge who gave it or by any other judge. The Civil Procedure Rules provide for this and this has been the position for many years now. In this case Honourable Mr Justice Osiemo did personally order that the application to set aside be referred to the Constitutional Division when he was requested to deal with the application himself. In the recent case of *Kimotho and others v Attorney-General* High Court miscellaneous case number 833 of 2004 this Court held that our Constitution does assume the existence of a supportive civil procedure regime insofar as the same is not inconsistent with the Constitution. I find nothing inconsistent with the Constitution in the act or principle of setting aside of *ex parte* orders for good reasons. If an order obtained in a constitution application is incompetent or improperly obtained there cannot be any valid reason why the Court would not have jurisdiction to set it aside. Setting aside would be properly justified on grounds of doing justice and fair play and good administration of justice and therefore in furtherance of public policy.

2. Where there is no specific provision to set aside the Court's power or jurisdiction would spring from the inherent powers of the Court. Whereas ordinary jurisdiction stems from the Acts of Parliament or statutes, the inherent powers stem from the character or the nature of the Court itself – it is regarded as sufficiently empowered to do justice in all situations.

   Sir Isaac JH Jacob writing in his work entitled *The Reform of Civil Procedure Law and Other Essays in Civil Procedure* (1982) version has described the inherent powers in clear terms at 224:

   "The answer is that the jurisdiction to exercise these powers was derived, not from statute or rule of law, but from the very nature of the Court as a superior Court of law, and for this reason such jurisdiction has been called 'inherent'. This description has been criticised as being 'metaphysical' but I think nevertheless that it is apt to describe the quality of this jurisdiction. For the essential character of a superior Court of law necessarily involves that it should be invested with a power to maintain its authority and to prevent its process being obstructed and abused. Such a power is intrinsic in a superior Court of law is that which enables it to fulfill itself as a Court of law. The judicial basis of this jurisdiction is therefore the authority of the Judiciary to uphold, to protect and to fulfill the judicial function of administering justice according to law in a regular, orderly and effective manner."

3. The need to administer justice in accordance with the Constitution occupies an even higher level due to the supremacy of the Constitution and the need to prevent the abuse of the constitutional provisions and procedure does occupy the apex of the judicial hierarchy of values. I therefore hold that the Court does have inherent powers to prevent abuse of its process in declaring, securing and enforcing constitutional rights and freedoms. It has the same power to set aside *ex parte* orders which by their very nature are

provisional; see *WEA Records Limited v Visions Channel 4 Limited and others* [1983] 2 All ER 589 cited by the second interested party's counsel Mr Nani Njoroge *Mungai* and which this Court applied in *Republic v Land Registrar Kajiado and others ex parte John Kigunda* High Court miscellaneous number 1183 of 2004 (UR).

As indicated in the citations of authorities elsewhere in this ruling this Court has invoked this power to deal with non-disclosure of material facts such as the existence of Court cases which have a bearing on the case at hand or where the process is used not to advance the cause of justice but to subvert it or use for an ulterior purpose.

4. Under sections 70 to 84 of the Constitution the Court cannot exercise jurisdiction to deny other persons or the rest of the society their rights and freedoms in order to secure instead those of an individual. Any such exercise would be a nullity and without jurisdiction. Chapter 5 rights and freedoms are subject to the right of others in society and public interest.

   Under section 84 the Court had with great respect no jurisdiction to give the order of 25 March 2002 against the applicants and the other interested parties which the respondents purported to enjoin. A Court would not have jurisdiction to give an order which violates the Constitution.

I agree with the learned counsel for the first interested party Mr Ochieng *Oduol* in his citation of *Owners of Motor Vessel 'Lilian S' v Caltex Limited* [1989] LLR 1653 (CAK) where the Court observed:

> "Where a Court takes it upon itself to exercise a jurisdiction which it does not possess its decision amounts to nothing."

Abuses of court process

I find that the seeking and obtaining of an ex parte order against parties (interested parties) that have nothing to do with the alleged violation and/or imminent violation of the respondent's constitutional right is an abuse of the Court process. Similarly failure to give reasons for such a novel order which I must confess I have not come across in living memory constitutes extreme arbitrariness and which this Court, even with extreme deference to the Court which granted it finds it quite agonising to deal with. An order without reason must be a nullity to say the least – see the case of Omega Enterprises Ltd v KTDC [1993] LLR 1685 (CAK). The application similarly lacks good faith in what it has principally been brought in total disregard of the relevant commercial laws such as company laws which could have been beneficially invoked to obtain relief deserved. To illustrate this point the Court understands that one of the respondents had obtained an ex parte injunction in the pending Milimani matter and as a result of the ex parte order in constitutional application the interested party is completely paralysed and cannot make any move or take any step to enforce its rights in law in that suit. This state of affairs fly in the face of section 70 and any such order is in my view void for contravening section 70 of the Constitution and the Court did not have jurisdiction to give it in the first place since the jurisdiction of the Court ought to be exercised firstly in conformity with the Constitution – see section 3 of the Judicature Act.

As aptly put by Nani *Mungai*, the *ex parte* order has stayed not illegal actions by the creditors but legal proceedings before competent Courts that the creditors of the respondents are in law entitled to take and were taking including the execution of lawfully obtained decrees – which as observed above, clearly constitute acceptable restrictions or permissible limitations on the rights claimed.

In our judicial history unless I am seriously mistaken the order given has no precedence and no equal. The closest example as so skillfully argued by Nani *Mungai* is the United States of America Bankruptcy Code (popularly known as Chapter 11 Protection (nothing to do with (Nine Eleven of Court) and even in America such protection has been specifically provided for by an Act of Congress. Across the Atlantic the other example is the English Insolvency Act of 1986 whose provisions include *inter alia* a provision not allowing the directors of the company seeking protection to continue in full control of the company and which makes provision for an administrator to be appointed to oversee the company seeking protection and assist in putting together the rescue package and where there is strict supervision by the administrator, creditors and the Court.

In our context it is the rights of the general body of creditors which are dormant in the winding-up process. There is no proof that the redress against creditors as provided for in the Companies Act is less beneficial to any protection under the Constitution if any such protection exists under Chapter 5. As a result I find that the respondents have no cause of action against the interested parties and further find that if there is any relief due to the respondent in law it is as against the defendants.

No cause of action against interested parties

The respondents have no cause of action against the interested parties at all because there is no contravention shown even on prima facie basis under section 84 of the Constitution. For a contravention to exist the requirements set out in the following cases must be met and have not been met:

(i) In *Matiba v Attorney-General* High Court miscellaneous application number 666 of 1990 it was held:

"An applicant in an application under section 84(1) of the Constitution is obliged to state in his complaint the provision of the Constitution he considers has been infringed in relation to him and the manner in which he believes they have been infringed. Those allegations are the ones which if pleaded with particularity invoke the jurisdiction of this Court under the section. It is not enough to allege infringement without particularising the details and the manner of infringement."

(ii) In *American Constitutional Law* (2ed) by Lawrence Tribe at 67 the author puts the same position this way:

"A litigant must now demonstrate regardless of the actual existence of claimed injury or its subjective importance an individualised harm imparting specifically upon him and of a tangible concrete nature."

(iii) In *Anarita Karimi Njeru v Republic (No. 1)* [1979 KLR] 154 Trevelyan and Hancox JJ) held:

"We would however again stress that if a person is seeking redress from the High Court on a matter which involves a reference to the Constitution, it is important (if only to ensure that justice is done to his case) that he should set out with reasonable degree of precision that of which he complains the provision said to be infringed and the manner in which they are alleged to be infringed."

(iv) Finally in *Cyprian Kubai v Stanley Kangonga Mwenda* Nairobi High Court miscellaneous number 612 of 2002 (UR) Khamoni J struck out an application and went on to make a finding as follows:

> "An applicant moving the Court by virtue of sections 60, 65 and 84 of the Constitution must be, precise and to the point not only in relation to the section, but also to the subsection and where applicable the paragraph or subparagraph of the section out of 71 to 83, allegedly contravened plus relevant act of that contravention so that the respondent knows the nature and extent of the case to respond to enable the respondent to prepare accordingly and also to know the exact extent and nature of the case it is handling . . ."

Conclusion

Before reaching the final verdict it is significant to point out that this Court is not oblivious of the strategic role which the respondents have in the public transport sector especially in the capital city. However any rescue measures are in the field of policy – by the executive arm of the Government and/or in the Legislature should a change in the law be required. As a Court of law our role is confined to interpreting and applying the law.

For all the above reasons either singly or collectively I hereby set aside the order dated 24 March 2005 as against interested parties number 1, 2 and 3 with costs to them. However as regards the other interested parties it is the view of the Court that extraordinary wrongs or irregularities call for extraordinary remedies and for this reason I hereby forthwith expunge the interested parties from the record pursuant to Order I, rule 10(2) of the Civil Procedure Rules for having been improperly joined and for lack of a cause of action or contravention. The Court further invokes section 84(2) of the Constitution in setting aside the *ex parte* order against them as of right with no order as to costs. The reason for this is that it is this Court's view that the Chapter 5 fundamental rights and freedoms have to be contrasted with the rights and freedoms of the interested parties and which constitute and are described as limitations or restrictions and which are in my view constitutionally fundamental and of equal importance.

The only differences between the rights and the restrictions are that the restrictions can be challenged on grounds of reasonableness, democratic practices, proportionality and the society's values and morals including economic and social conditions etc whereas rights are to the spiritual, God given, and inalienable and to the non-believers changeless and the eighth wonder of the world!

I must conclude by saying the *ex parte* order could not have been spared in any event for the reason that if I may borrow one expression from Lord Denning on his famous streams of justice and put it in my own words, the order would have hindered the smooth flow of the streams of justice for all by blocking the 221 persons while the rivers of constitutional justice or any justice at all should flow pure for all to drink from them.

While the rights and freedoms of the interested parties are quite evident or apparent in the circumstances of this case the rights and freedoms of the respondents are not there and nothing tilts in their favour. The notice of motion is also struck out as incompetent.

In the alternative and in the event that I am wrong in my view of the law and the powers of this Court I do invoke the inherent jurisdiction of the Court in order to prevent abuse of its process and to preserve its authority and dignity by setting aside the *ex parte* order as against this category of interested parties and in abundant caution the *ex parte* order is hereby set aside on this ground as well with no order as to costs.

It is so ordered.

For the first interested party:
Mr Ochieng Oduol instructed by *Ochieng' Onyango Kibet & Co*

For the second interested party:
Mr NN Mungai instructed by *Muriu Mungai & Co*

Kenya Commercial Bank Ltd v Kaven
[2005] 1 EA 124 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of ruling:	10 December 2004
Case Number:	296/04
Before:	Omolo, Tunoi JJA and Deverell AGJA
Sourced by:	HA Ongicho
Summarised by:	C Kanjama

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[1] Appeal – Stay of interlocutory default orders pending appeal – Whether such orders would be granted – Rule 5(2)(b) – Court of Appeal Rules.

[2] Civil procedure – Interlocutory injunction – Default enforcement orders effectively granting the final remedies sought in the suit – Whether it was proper to grant such orders.

[3] Land – Charge – Interlocutory injunction – Whether default orders of discharge of charge could be granted upon an interlocutory application without consideration of the merits of the charge.

Editor's Summary

The plaintiff/respondent had been granted a loan by the defendant/appellant and had offered his property as security for the loan and for additional overdraft facilities. A dispute arose between the parties after which the respondent moved the superior Court seeking a declaration that the charges herein were void, that the accounts had been illegally interfered with and for an order for accounts. The respondent subsequently moved the Court by chamber summons seeking proper and detailed accounts from the appellant. The trial Judge made orders for an account. Subsequently, a different judge made orders seeking to enforce the said order for account, whereby upon failure to supply accounts the charges would be automatically discharged.

The appellant appealed against the said enforcement order, and sought a stay of execution of the order pending the hearing and determination of the appeal. The Court considered whether there was an arguable appeal and whether such appeal would be rendered nugatory if a stay was not granted.

Held – The appellate Court was satisfied that there was an arguable appeal against the orders of the trial Judge. By giving a default order for discharge of the charge, the judge had effectively given summary judgment in favour of the respondent, without having tried the issues in dispute. This was an arguable point on appeal, as also the question of whether proper accounts had in fact already been supplied.

The intended appeal herein would be rendered nugatory if orders of stay were not granted. The title documents were encumbered by charges as security for the loan given by the appellant. If the said securities were discharged, the

appellant would have no remedy should it eventually be shown that the loan was still owing. There would however be no reason to stay any further proceedings of the superior Court.

Orders of stay of execution pending appeal granted.

No cases referred to in ruling

Ruling

Omolo, Tunoi JJA and Deverell AGJA: Kenya Commercial Bank Limited, the applicant before us, is aggrieved by the decision of Mary Kasango Acting J made on 22 November 2004. By that decision, the learned Judge ordered as follows:

> "1. The defendant (ie the applicant herein) shall within seven days from this date hereof forward to the plaintiff's counsel the title document and discharge of charge in relation to property land registration number 14431 Ngong Township which shall be held by the said counsel until further orders of this Court.
>
> 2. If the defendant fails to supply account (*sic*) in accordance with the order of 29 January 2004 of Justice Emukule within two weeks from today the plaintiff may move this Court for leave to register the discharge of charge.
>
> 3. The defendant shall bear the plaintiff's cost of the application of the notice of motion dated 16 April 2004 which costs shall be agreed within 14 days if no agreement the same shall be subjected to taxation."

The plaintiff referred to in these orders is Alloys Kayihura Kaven t/a Alloys Kaven and Company Bakery, who is now the respondent to the motion before us. The motion before us is one under rule 5(2)(*b*) of the Court's rules seeking to stay the learned Judge's orders. As is apparent from the orders of the Judge, they were made so as to compel the applicant into complying with certain earlier orders, which had been made by Emukule Acting J on 29 January 2004. The orders of 29 January 2004 had basically directed the applicant to supply to the respondent the accounts of all the transactions upon the respondent's bank accounts, which the respondent kept with the applicant. The respondent, as a customer of the applicant, had been granted a loan/or loans and had been allowed to operate an overdraft account and the respondent had offered his property known as land registration number 14431/Ngong Township as security for the loan(s) and the overdraft. As is usual in such situations, a dispute arose between the parties and by his plaint dated 23 April 2003 the respondent had sought various orders against the applicant, among which orders were:

> "(*a*) …
>
> (*b*) A declaration that the first, further and second further charge are null and void on the ground of fraud/or for want of consideration;
>
> (*c*) A declaration that the defendant made illegal and unauthorised debits on the plaintiff's accounts;
>
> (*d*) An order discharging land registration number 14431 of all charges in favour of the defendant;
>
> (*e*) An order for accounts."

Before these claims could be gone into by way of a hearing, the respondent moved the superior Court by way of summons in chambers under Order XIX, rules 1 and 2 of the Civil Procedure Rules, and the orders sought in the summons were:

"1. That the defendant do within 14 days of the order, render to the plaintiff a proper account including the exact monies advanced by way of loan, interest and the rates of interest imposed specific deductions or charges levied on the plaintiff's accounts for which the following securities were taken:

(*a*) Charge over land registration number 14431 Ngong Township;

(*b*) Further charge over land registration number 14431 Ngong Township;

(*c*) Second further charge over land registration number 14431 Ngong Township.

2. That the defendant do, within 14 days of the order, provide to the plaintiff proper accounts including bank statements that may arise from overdraft facilities, if any.

3. That the Court do make further inquiries and issue directions in this matter."

It is this summons which formed the basis of Emukule Acting J's orders of 29 January 2004 and as we have said, it is the orders of Emukule Acting J which Kasango Acting J was enforcing when she gave her orders against which it is proposed to appeal. The applicant filed its notice of appeal on 23 November 2004. In the meantime, the applicant asks us to stay the order.

That being the position, the applicant was bound to satisfy us on two well known points, namely that its intended appeal is arguable and is not a frivolous one, and secondly that if we do not grant the stay orders sought the intended appeal, if it were to succeed, would have been rendered nugatory.

Having listened to both Mr *Mwangi* for the applicant and Mr *Ojiambo* for the respondent, we are satisfied that the applicant's intended appeal is arguable. We have already set out the main orders sought by the respondent in his plaint. The respondent seeks a declaration that the three charges created over his property were null and void because the charges were either fraudulent or they were made without any consideration for their making. It is only if and when the respondent would have proved these claims that he might be entitled to have the charges registered against his property discharged. Mr *Mwangi* told us that in ordering that the title document and a signed discharge of the charges be handed over to the respondent, the Judge in effect gave to the respondent summary judgment. Mr *Ojiambo* in fact conceded that the effect of the orders they have obtained is to give to the respondent summary judgment. The applicant shall argue in the intended appeal that it was not legally justifiable for the learned Judge to proceed in that fashion. The applicant shall also argue that they had supplied to the respondent all the accounts in its custody and there was no more to be supplied. We think these points are arguable and that the applicant's intended appeal is not a frivolous one. The applicant has satisfied us on that aspect of the matter.

Will the intended appeal be rendered nugatory if we do not grant the stay orders sought? The title documents which have been released to the custody of the respondent's advocates were given to the applicant as security for loans and overdraft. There is still a dispute as to whether all the loans for which the title documents were used as security have been paid. There is the very real possibility that the superior Court might in the end release the title documents to the respondent and order the discharge of the charges – even before the issues raised in the plaint have been determined. If that were to happen the applicant would have lost its security and even if its intended appeal were to succeed, success may well be rendered nugatory. Once the charges are discharged and the respondent is given possession of his title documents, no one can tell what

he might do or not do with the property. Once again, we are satisfied that the applicant has discharged the burden placed on it by the Court's second requirement ie that its intended appeal would be rendered nugatory if we do not grant to it the stay orders it seeks.

Accordingly, we allow the notice of motion dated 25 November and lodged in the Court on 26 November 2004 and order a stay of the execution of Kasango Acting J's orders made on 22 November 2004 until the hearing and determination of the intended appeal or until further orders of the Court. The title documents to land registration number 14431 Ngong Township and the signed discharge of the charges which were handed over to counsel for the respondents pursuant to the superior Court orders are to be forthwith handed back to the applicant. We, however see no reason to order a stay of any further proceedings in the High Court. The costs of the motion shall be costs in the intended appeal. Those shall be our orders on the matter.

For the applicant:
Mr Mwangi

For the respondent:
Mr Ojiambo

Kibuthu and others v Republic
[2005] 1 EA 127 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of ruling:	20 May 2005
Case Number:	7, 8 and 9/99
Before:	Tunoi, O'kubasu and Deverell JJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Crime – Robbery with violence – Suspects tracked by tracker dogs – Whether conviction would be sustained.

[2] Evidence – Circumstantial – Tracker dog scents and traces accused – Whether evidence of tracker dog can be relied on to sustain conviction – Fingerprint evidence – Whether tracker dog and fingerprint evidence sufficient to sustain conviction.

Editor's Summary

The appellants were accused of having committed an offence of robbery with violence upon the complainant and his family. The prosecution evidence was that the accused persons violently injured the watchman of the complainant, then forcibly gained access to his house and stole his money and other assorted valuables as they caused violence upon him. Neighbours, who had been alerted about the robbery, responded to the alarm and the robbers fled off. Shortly thereafter, the police arrived at the scene with a tracker dog. After identifying the place from which the robbers had fled, they used

the tracker dog which picked up a scent. Following the scent, they encountered the first accused in a bush. The first accused explained that he was coming from a disco, and then later changed his story and stated that he was from a different town. He was arrested.

The tracker dog was once again applied to the scent from the scene of the crime. This time, it led the police handlers to a house where the second and third accused were staying, whereupon they were arrested. There was also fingerprint evidence which matched some of the prints of the second and third accused with prints lifted from the scene of the robbery. All three accused were convicted and appealed, arguing that the identification evidence was tenuous.

Held – The first accused was not recognised by any of the complainants. None of the stolen property was traced back to him. His fingerprints were not found at the house at which the robbery took place. It would be unsafe to rely solely on the fact that the police tracker dog led the police to where the accused was that night, especially in the absence of any expert evidence on what the tracker dog could do and not do.

In the case of the second and third accused, the evidence of the tracker dog was supplemented by fingerprint evidence which connected the accused persons with the robbery. The fingerprint evidence was sufficient to sustain the conviction of these accused.

Conviction against first accused quashed; conviction against second and third accused sustained.

No cases referred to in judgment

Judgment

Tunoi, O'kubasu and Deverell JJA: This is an appeal by David Njeru Mwendwa who is the third appellant and was the second accused in criminal case number 49 of 1994 in the Principal Magistrate's Court at Embu, David Njeru Kibuthu who is the first appellant and was the first accused and Joseph Mbogo Kinyua who is the second appellant and was the third accused. The appeal is from the judgment of the superior Court (Mwera and Juma JJ) sitting in Nyeri dated 26 November 1998 in criminal appeal number 299 of 1998.

There were also two other accused persons but they were acquitted by the trial Magistrate and they were not parties to either the first appeal before the superior Court or the second appeal to this Court.

The particulars of the offence as set out in the charge sheet, after the names of the five accused persons, were as follows:

> "On the 1 January 1994 at 1:30am at Kangaru village in Embu District within the Eastern Province, jointly with others not before the Court robbed Dr Mohammed Mushtaq of cash KShs32 000, one rado wrist watch, one roma wrist watch, one gold jewellery and one blood pressure machine all valued at KShs210 000 and immediately before the time of such robbery used actual violence to the said Dr Mohammed Mushtaq."

The facts relating to the robbery itself were well summarised by the Principal Magistrate Mr Kaburu Bauni in his judgment as follows:

> "On the fateful night the complainant (PW1), his wife (PW2) and children were asleep in their house in Kangaru village while in or the outskirts of Embu town. At about 1:00am they were woken by a commotion outside and screams of his watchman. When PW1 looked out through the window he saw some people beating the watchman. He also realised that electricity lights had been disconnected. The robbers broke the metal grill of one window in the sitting room and got into the house. They were armed with pangas, rungus and iron bars. The complainant pleaded with them

> not to beat them and to take whatever they wanted. They were beating them. Before getting into the house the robbers had cut the watchman Gichovi Karani (PW3) with a panga and he fainted. They also had cut and whipped Richard Njue Njoka (PW4) who was the complainant's shamba boy. He too fell unconscious. Once in the house they attacked and injured the complainant and his wife. Some of the robbers ransacked the house as others were demanding money from the complainant. He gave them over KShs30 000 he had but they went on beating him. They also threatened to kill one of his children. Some of the robbers took three wrist watches, pressure blood (*sic*) machine, jewellery and other items from various rooms. Meanwhile the complainant's neighbours had rang (*sic*) the police. As neighbours gathered the thieves who were outside shouted to those inside warning them. They ran out and disappeared. The complainant, his wife, watchmen and shamba boy were badly injured. They were taken to hospital for treatment."

Richard Njeru Njoka, (PW4) the complainant's shamba boy testified that he was the one who alerted the neighbours and was told by them that they had already informed the police and Securicor. As he was returning to the complainant's house he met more than five people one of whom cut him on the head and then as he ran away he was cut again on the head and the hands.

Neither the complainant nor his wife nor Njoka (PW4) were able to identify any of the appellants at any stage.

None of these facts were disputed by the appellants who denied that they had anything to do with the robbery.

The prosecution case for linking the appellants to the offence committed that night was based on two categories of evidence: the first being the evidence relating to the activities of the police tracker dog called "Omas" which was relevant to all three appellants and the second being fingerprint evidence which was relevant only to the second and third appellants and did not affect the first appellant David Njeru Kibuthu (hereinafter "Kibuthu").

The evidence relating to the dog Omas was that given by Police Constable Eliphas Bitok (PW5) who was the dog handler and that of Police Constable Amos Marimba (PW7) who accompanied him. As their evidence is critical to the case against all three appellants we will set it out in full.

> "PW5 sworn and states:
>
> I am number 51388 Police Constable Eliphas Bitok attached to Muranga police division. I am a dog handler. Last year I was attached to Embu police station still as a dog handler. On 1 January 1994 I was on duty at Embu police station. We got a report of robbery within Kangaru area. I got a dog called Omas. We went with other officers up to scene. It was a house of Dr Mustaq. We found he had been beaten and his watchman and shamba boy had already been rushed to hospital. We were shown the window which was broken to gain access. I also saw where they left the compound through. The dog picked the scent and we started tracking. Before reaching Kangaru trading centre the dog took me past a church. It became agitated showing that it had noticed someone. I put on my torch. I saw a man with a hat. When he saw us he started running. I told him to stop or I will release the dog. He did not stop. I released the dog. It chased and caught him. I took him back to Dr Mustaq house. He is that one (identifies accused 1). I handed him to OCS. I went back to the scene where I arrested him. The dog started tracking again. The dog took us to one house. We knocked the house but it was not opened. We broke the door. Inside we found two men. They are those (identifies accused 2 and 3). Accused 3 was in one room locked from outside. Accused 2 said there was nobody but the dog stuck there. When we broke the door we found accused 3 inside. We arrested the two of them.

XXD by accused 1

You were hiding in a keapple fence. The dog tracked you. It was around 3:00am. You said you are from a disco. The dog would not have just picked anybody else. Once it got your scent it would not confuse another person.

You said you were with others. You did not say where your house was. You said you are from Meru. You had no identification card.

XXD by accused 2

The dog led me to your house. There was a panga under your bed.

XXD by accused 3

We did not get anything stolen in the house. You refused to open the house. We broke (*sic*).

PW7 Police Constable sworn and states:

I am number 65530 Police Constable Amos Marimba attached to Embu CID Office.

On the night of 31 December 1993 and 1 January 1994 I was on crime standby at Embu police station. At about 1:30am I received a telephone report from Dr Mohammed Mustaq of Kangaru village that he had been attacked at his house. He had been injured together with his watchman and shamba boy. I and OCS, dog handler Police Constable Bitok and Duty Officer sergeant Musau proceeded to the scene. We found that the robbers had broken into the house by breaking glass windows after breaking window bars. We left OCS at scene. I and the dog handler started tracking the robbers. The dog led us around the Kangaru road. We went near a church. There we spotted one man trying to hide in a maize plantation beside the road. The dog handler informed him we were police officers and ordered him to stop. Instead he started to ran (*sic*). The dog handler released the dog which ran after him. He was arrested and took him back to the scene. He is that one (identifies accused 1). We went to track the other robbers with the dog. It led us towards Kangaru market. Beside the market there was a village. The dog led us to one house. We knocked the door and informed the occupants we were police officers and that we wanted to search the house. That man (identifies accused 2) opened the door. We arrested him. We searched the house but did not recover anything. There was another house which was adjacent. We knocked. Accused 2 said there was nobody inside. We suspected there was someone inside. He was not responding. The door was locked with a padlock. We broke the door. Inside we found that man (identifies accused 3).

Accused 4 in dock was arrested on 25/1/1994 and accused 5 arrested on 14 February 1994.

XXD by accused 1

You were found near a fence. There was a maize farm. We searched you but did not find any of the stolen items. You said you were from Meru. You first had said you were from a disco. You did not have any money. The dog led us to you. You wanted to injure the dog. You were violent.

XXD by accused 2

We did not get any of the stolen items in your house. The dog led us to your house. You could have hidden the things elsewhere.

XXD by accused 3

You had locked yourself in the house. We found you hiding under a bed. We did not get any of the stolen items."

We will consider the position of Kibuthu first. We do not consider that there were, as suggested by learned counsel for the appellants Mr Patrick *Kiage*, sufficient inconsistencies between the evidence of PW5 and PW7 as to the "arrest" of Kibuthu by Omas to raise doubts as to the truth of their evidence. However, we are concerned at the lack of evidence as to both the experience of Omas as a tracker dog and as to the ability of tracker dogs to distinguish

between the scents of a number of persons at a scene of a robbery such as this. It is probably the case that a competent experienced dog can do so but there should be evidence adduced from a tracker dog expert as to these sort of issues. The learned Principal Magistrate did describe Omas in his judgment as being "well trained in tracking" and yet there was no evidence tendered by any witness to this effect. His handler, PW5 did not claim this.

Kibuthu was not recognised by any of the complainants. None of the stolen property was traced back to him. His fingerprints were not found at the house at which the robbery took place.

For all these reasons we do not consider that Kibuthu's guilt of the offence charged has been proved beyond reasonable doubt. We are fortified in making this decision by the fact that Mr *Orinda*, Senior State counsel representing the State did not support the conviction of Kibuthu.

Turning now to the third appellant (hereinafter "Mwendwa") and the second appellant ("hereinafter Kinyua"), we consider that it would be unsafe to rely solely on the fact that the dog Omas led the police to the places where they were found that night. The fact that the dog was able to pick up and follow the scent of two different people starting at the same place where the dog selected the scent of Kibuthu seems unlikely in the absence of any evidence as to what a tracker dog can or cannot do.

However, in the case of Mwendwa and Kinyua there is the additional evidence of the fingerprints provided by Chief Inspector Wilson Karani (PW9) and Samson Mwangi Maraka (PW6) who described himself as a fingerprint expert attached to CID headquarters Nairobi. PW9 examined the house of the complainant for fingerprints at about 10:30am on the day of the robbery and was able to lift prints from the following places in the house:

Lift number 1	Palm print found on a table in the sitting room.
Lift number 2	Palm print found on a table in the sitting room.
Lift number 3	Palm print found on a door to the sitting room.
Lift number 4	Fingerprint found on the telephone hand (*sic*).
Lift number 5	Fingerprint found on the toilet cover.
Lift number 6	Fingerprint found on the toilet cistern.
Lift number 7	Fingerprint found on wardrobe door.
Lift number 8	Palm print found on a table in the same bedroom.
Lift number 9	Palm print found on a shelf in the children's bedroom.
Lift number 10	Palm print found on a table in the children's room.

PW9 went on to say that he submitted these prints to the Criminal Records Office (CRO) together with elimination fingerprints from some suspects arrested namely Kibuthu, Mwenda and Kinyua which prints had been brought to him by the OCS CIP Kamiti who was with him at the scene.

Later, on the 25 April 1994, PW9 received a report from the CRO which showed that lift number 2 was identical with the fingerprints of Kinyua. Lift numbers 4 and 8 were identical to those of Mwendwa. Lift number 7 was that of Dr Mustaq, the complainant.

This evidence was accepted by both the trial Court and the superior Court as showing without any doubt that Mwendwa and Kinyua had been in the house of the complainant and there was no evidence that either of them had ever been in or near the house on any previous occasion. We are satisfied by the

fingerprint evidence that they were both in the house on the night of the robbery and were indeed part of the gang which robbed the complainant.

For the reasons set out above we accordingly hereby allow the appeal of the first appellant David Njeru Kibuthu and hereby quash his conviction and set aside the sentence of death imposed upon him. We order that he be released forthwith unless he is otherwise lawfully held.

The appeals of the third appellant David Njeru Mwendwa and the second appellant Joseph Mbogo Kinyua are hereby dismissed.

For the appellants:
Mr P Kiage instructed by *Kiage & Co*

For the respondent:
Mr Orinda, Senior State counsel instructed by Attorney-General

Kigula and others v Attorney-General
[2005] 1 EA 132 (CCU)

Division:	Constitutional Court of Uganda at Kampala
Date of judgment:	2005
Case Number:	6/03
Before:	Okello, Mpagi-Bahigeine, Twinomujuni, Byamugisha and Kavuma JJA
Sourced by:	LawAfrica
Summarised by:	E Ongoya

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[1] Civil procedure – Scheduling conference – Purpose of – Whether party can renege on matters agreed at scheduling conference – Order XB – Civil Procedure Rules.

[2] Constitutional – Fundamental rights and freedoms – Death sentence – Execution by hanging – Whether method of execution constitutes cruel, inhuman or degrading treatment – Whether long delay in execution of death sentence constitutes cruel, inhuman or degrading treatment – Section 99(1) – Trial on Indictments Act (Chapter 23) Laws of Uganda.

[3] Constitutional law – Fundamental rights and freedoms – Death sentence – Whether death sentence constitutes inhuman or degrading treatment or punishment – Whether the death sentence violates the right to life – Articles 24 and 44 – Constitution of Uganda.

[4] Constitutional law – Fundamental rights and freedoms – Mandatory death sentence – Whether mandatory death sentence infringes on the right to a fair trial – Whether right to fair trial includes opportunity to mitigate against sentence – Whether prescription of mandatory sentences constitutes legislative intrusion by legislature into the domain of the Judiciary – Whether Act prohibiting appeal against mandatory sentences violates the rights to equality before the law and fair hearing – Articles 20, 21, 22, 24, 28 and 44 – Constitution of Uganda.

Editor's Summary

The 417 petitioners were on death row, having been convicted of offences under various Laws of Uganda. They had been sentenced to death which was at all material times provided for under the Laws of Uganda. In their petition the petitioners sought declarations that; the imposition of the death sentence was unconstitutional and inconsistent with articles 24 and 44 of the Constitution of

Uganda which prohibited cruel, inhuman or degrading punishment or treatment; the various provisions of the Laws of Uganda which prescribe death penalty were themselves inconsistent with the said articles 24 and 44 of the Constitution; in the alternative, the various provisions of the Laws of Uganda which provide for mandatory death sentence were inconsistent with articles 20, 21, 22, 24, 28 and 44 of the Constitution of Uganda; further in the alternative, the long delay between the pronouncement of the sentence of death and the carrying out of the sentence constitutes cruel, inhuman and degrading treatment prohibited by articles 24 and 44 of the Constitution of Uganda; and finally, that the Trial on Indictments Act (Chapter 23) Laws of Uganda which provides for hanging as the legal mode of carrying out death sentence was cruel, inhuman and degrading. At a scheduling conference held by counsel for all parties before the Registrar of the Constitutional Court, the parties agreed on some facts and the issues to be determined by the Court. The respondent, however, expressed his intention to renege on some of the agreed facts. At the hearing, the applicants contended that the respondent could not renege on facts agreed on during the scheduling conference since that would be prejudicial to the petitioner's case and it would set a very dangerous precedent to the lower Courts.

The respondent argued that having given the applicant adequate notice of the intention to renege on the facts, they could be permitted to do so.

On the merits, the applicants emphasised and expounded on the remedies sought in the petition. The respondent opposed the petition on grounds that; there is ample evidence that the people of Uganda still favoured the death penalty; that the death penalty was neither a torture nor a cruel, inhuman or degrading punishment or treatment within the context of articles 24 and 44 of the Constitution of Uganda; that the mandatory death sentence was just like any other sentence under the Laws of Uganda and the fact that they are mandatory did not render them unconstitutional; that since the death penalty was served under the Constitution, it was necessary to provide for a mode of implementing it and the legislature must have, in its wisdom, found hanging to be the best method and that there was nothing under the Constitution that outlawed delay on the death row for a long time since no time limit had been prescribed either in the Constitution or in any statute within which a death sentence has to be executed.

Held – The purpose of a scheduling conference is to save time of the Court by sorting out points of agreement and disagreement so as to expedite disposal of cases. Like any other rules of procedure, it is a handmaiden of justice not intended to be an obstacle in the path of justice.

The principles applicable in the interpretation of the Constitution include; the widest construction possible in its context, should be given according to the ordinary meaning of the words used, the entire Constitution has to be read as an integrated whole and no one particular provision destroying the other, all provisions bearing on a particular issue should be considered together to give effect to the purpose of the instrument, the Constitution should be given a generous and purposive interpretation to realise the full benefit of the guaranteed rights, the Constitution of Uganda enjoins Courts in the country to exercise judicial power in conformity with law and with the values, norms and

aspirations of the people. *Republic v EL Manu* [1969] EA 357; *Ssemogerere and others v Attorney-General* [2004] 2 EA; *South Dakota v North Carolina* 192 US 268 [1940] LED 448; *Attorney-General v Abuki* constitutional appeal number 1 of 1998 approved.

The Ugandan Constitution recognises the death penalty as an exception to the right to life and, therefore, prescribing such sentence is not inconsistent with the Constitution and does not constitute cruel, inhuman or degrading punishment. *Mbushu and another v Republic* [1995] 1 LRC 216; *State v Makwanyane* [1995] 1 LRC 269 distinguished; *Catholic Commission for Justice and Peace v Attorney-General* [1993] 2 LRC 279; *Kalu v The State (Nigeria)* [1998] 13 NWLR 531; *Noel Riley and others v Attorney-General for Jamaica and another* [1983] 1 AC 719 (PC); *Earl Pratt and another v Attorney-General for Jamaica and another* [1994] 2 ACI (PC) followed.

(Mpagi-Bahigeine and Kavuma JJA – Dissenting). Mandatory death sentences and the prohibition of the right of appeal against the mandatory sentence are unconstitutional as they curtail the right to a fair hearing and violate the principle of separation of powers. *Soering v UK* [1989] EHRR 439; *Mithu v State of Punjab* [1983] SOL case number 26 followed.

The implementing or carrying out of the death penalty by hanging is not cruel, inhuman or degrading. *Mbushu and another v Republic* [1995] 1 LRC 216; *State v Makwanyane* [1995] 1 LRC 269 distinguished. *Earl Pratt and another v Attorney-General for Jamaica and another* [1994] 2 ACI (PC) adopted.

(Mpagi-Bahigeine and Kavuma JJA – Dissenting). The lengthy periods between conviction and execution renders the death sentence as exceedingly cruel and as degrading treatment. *Catholic Commission for Justice and Peace v Attorney-General* (*supra*) and *Earl Pratt and another v Attorney-General for Jamaica and another* (*supra*) adopted.

(Mpagi-Bahigeine and Kavuma JJA – Dissenting). In the interpretation of the Constitution of Uganda, the views of the people, wherever they can be reasonably accurately ascertained, must be taken into account.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Abuki v Attorney-General constitutional case number 2 of 1997

Attorney-General v Abuki [2001] 1 LRC 63

Attorney-General v Abuki constitutional appeal number 1 of 1998– **APP**

Attorney-General v Tinyefuza, constitutional appeal number 1 of 1997

Mbushu and another v Republic [1995] 1 LRC 216 – **D**

Republic v El Manu [1969] EA 357 – **APP**

Republic v Mbushu and another [1994] 2 LRC 335

Ssemogerere and another v Attorney-General constitutional petition number 3 of 2000

Ssemogerere and others v Attorney-General constitutional appeal number 1 of [2004] 2 EA– **APP**

Tinyefuza v Attorney-General constitutional petition number 1 of 1996

India

Bacan Singh v State of Punjab [1983] (2) SCR 583

Mithu v State of Punjab [1983] SOL case number 26 – **F**

Trivenben v State of Gujerat [1992] LRC 425

Jamaica

Earl Pratt and another v Attorney-General for Jamaica and another [1994] 2 ACI (PC) – **A** and **F**

Noel Riley and others v Attorney-General for Jamaica and another [1983] 1 AC 719 (PC) – **F**

Nigeria

Kalu v The State (Nigeria) [1998] 13 NWLR 531 – **F**

South Africa

State v Makwanyane [1995] 1 LRC 269 – **D**

United Kingdom

Downer Tracey v Jamaican case number 15 Volume 2

Lockie v State of Ohio case number 21 Volume 2

R v Hugh case number 17 Volume 2

Robert v Luciano case number 20 Volume 2

Soering v UK [1989] EHRR 439 – **F**

United States of America

Campbell v Wood (18 F 3 662-US 9 Circuit Court of Appeals)

Jaga v Donges 1950 USA 653

South Dakota v North Carolina 192 US 268; [1940] LED 448 – **APP**

Zimbabwe

Catholic Commission for Justice and Peace v Attorney-General [1993] 2 LRC 279 – **A** and **F**

Ncube v State [1988] LRC 442

Zimbabwe v Attorney-General and others [1993] 2 LRC 279

Judgment

Okello JA: This petition was brought under article 137(3) of the Constitution of the Republic of Uganda challenging the constitutional validity of the death sentence. The 417 petitioners were, at the time of filing the petition, on death row, having been convicted of offences under the laws of Uganda and were sentenced to death, the sentence provided for under the laws of Uganda.

Briefly, the petitioners contend that the imposition of the death sentence on them was unconstitutional because it is inconsistent with articles 24 and 44 of the Constitution which prohibit cruel, inhuman or degrading punishment or treatment. According to them, the various provisions of the laws of Uganda which prescribe death penalty are themselves inconsistent with the said articles 24 and 44 of the Constitution. The petitioners contend in the first alternative that the various provisions of the laws of Uganda which provided for mandatory death sentence are inconsistent with articles 20, 21, 22, 24, 28 and 44 of the Constitution. According to them, though the constitution guarantees protection of the rights and freedoms such as, equal treatment before the law, right to a fair hearing etc, the provisions which provide for mandatory death sentence contravene those constitutional provisions: a convict who is sentenced under such a mandatory provision is denied the right to appeal against sentence only.

In the second alternative, the petitioners contend that a long delay between the pronouncement of the death sentence and the carrying out of the sentence allows for a death row syndrome to set in. Carrying out of the death sentence after such a long delay constitutes cruel, inhuman and degrading treatment prohibited by articles 24 and 44 of the Constitution.

In the third alternative, the petitioners contend that section 99(1) of the Trial on Indictments Act (Chapter 23) Laws of Uganda which provides for hanging as the legal mode of carrying out death sentence, was cruel, inhuman and degrading as it contravenes articles 24 and 44 of the Constitution. They accordingly sought the following reliefs:

(*a*) Declaratory Orders

(i) That the death penalty in its nature, and in the manner, process and mode in which it is or can be implemented is a torture, a cruel, inhuman or degrading form of punishment prohibited under articles 24 and 44(*a*) of the Constitution;

(ii) The imposition of the death penalty is a violation of the right to life protected under articles 22(1), 20 and 45 of the Constitution;

(iii) Sections 23(1), 23(2), 23(3), 23(4), 124, 129(1), 134(5), 189, 286(2), 319(2) and 243(1) of the Penal Code Act (Chapter 120 of Laws of Uganda) and sections 7(1)(*a*), 7(1)(*b*), 8, 9(1), and 9(2) of the Anti-Terrorism Act (Act 14 of 2002) and any other laws that prescribe a death penalty in Uganda are inconsistent with and in contravention of articles 20, 21, 22(1), 24, 28, 44(*a*) 44(*c*) and 45 of the Constitution to the extent that they permit or prescribe the imposition of death sentences;

(iv) Section 99(1) of the Trial on Indictments Act (Chapter 23) and the relevant sections of and provisions made under the Prisons Act and referred to therein, are inconsistent with articles 24 and 44(*a*) of the Constitution;

(v) That section 9 of the Magistrates Court (Amendment) Statute (6 of 1990) insofar as it repeals Part XV of the Magistrates Court Act of 1970, is inconsistent with articles 28 and 44(*c*) of the Constitution;

(vi) That the carrying out of a death sentence is inconsistent with articles 20, 21, 22(1), 24, 28, 44(*a*), 44(*c*) and 45 of the Constitution;

(vii) That the time limitation of 30 days introduced under rule 4(1) of the fundamental rights and freedoms (Enforcement Procedure) Rules 1992, Directions 1996 is in contravention of article 137 of the Constitution;

(viii) That in the alternative, sections 23(1), 23(2), 189, 286(2), 319(2) of the Penal Code Act (Chapter 120) of the Laws of Uganda and section 7(1)(*a*) of the Anti-Terrorism Act (Act 14 of 2002) and any other laws that prescribe mandatory death sentences are inconsistent with articles 20, 21, 22(1), 24, 28, 44(*a*), 44(*c*) and 45 of the Constitution to the extent that they provide for the imposition of a mandatory death sentence;

(ix) That section 132 of the Trial on Indictment Act to the extent that it restricts the right of appeal against the sentencing component where mandatory death sentences are imposed is inconsistent with articles 20, 21, 22(1), 24, 28, 44(*a*), 44(*c*) and 45 of the Constitution.

(*b*) The following redresses

(i) That the death sentences imposed on your humble petitioners be set aside;

(ii) That your humble petitioners' cases be remitted to the High Court to investigate and determine appropriate sentences under article 137(4) of the Constitution;

(iii) That your humble petitioners be granted such other reliefs as the Court may feel appropriate.

The petition was supported by a number of affidavits sworn by some of the petitioners and a diverse categories of other deponents.

The respondent filed in his answers in which he denied all the allegations contained in the petition. He also supported his answers by some affidavits.

After the pleadings were concluded, counsel for both parties held a scheduling conference before the Registrar of this Court on 5 May 2004. At the conference, the parties agreed on some facts and the issues to be determined by this Court. Some of the facts they agreed on were:

1. That death penalty is a cruel form of punishment or treatment.
2. That the petitioners who are convicted of offences which carry mandatory death sentences did not have a right to appeal against their sentences.

However, on 11 November 2004 counsel for the respondent in writing notified his learned friends for the petitioners that he intended to renege on the above agreed facts. When we met counsel for both parties in chambers on the morning of 19 January 2005 before we entered Court to start the hearing of this petition, learned counsel for the respondent reiterated their decision to renege on those facts. In their submission, they in fact treated the above two facts as being in issue and needed to be proved by the petitioners.

In their reply, counsel for the petitioners strongly opposed that conduct and urged Court not to allow counsel for the respondent to renege on the facts which they had agreed on during the scheduling conference. That would be prejudicial to the petitioners' case and would set a very dangerous precedent to the lower Courts.

Scheduling conference is not provided for in the Modifications to the Fundamental Rights and Freedoms (Enforcement Procedure) Rules 1992 Directions,

1996. (Legal notice number 4 of 1996). It is invoked in the proceedings before this Court by virtue of rule 13 of legal notice number 4 of 1996. This rule empowers this Court to apply with the necessary modifications, the practice and procedure in accordance with the Civil Procedure Act and the Rules made under the Act relating to the trial of a suit in the High Court. Scheduling conference is provided for in Order XB of the Civil Procedure Rules as amended by Statutory Instrument number 26 of 1998. The purpose of scheduling conference is to save time of the Court by sorting out points of agreement and disagreement so as to expedite disposal of cases. Like any other rules of procedures, this is an handmaid of justice. It is not intended to be an obstacle in the path of justice.

Counsel for the respondent informed us from the bar that when they admitted those facts during the scheduling conference, they had not yet fully studied the case and the relevant authorities. They did not, therefore, appreciate the implications of their admission. When they later studied the case and the relevant authorities more fully, they decided to renege on their admission. That was why they wrote the letter to counsel for the petitioners indicating their intention to renege on their admission.

Article 126(2)(*e*) of the Constitution of this country enjoins Courts to administer substantive justice without undue regard to technicalities. I think that counsel for the respondent gave to counsel for the petitioners reasonable notice of their intention to renege on their admission. This is the spirit of fair play. That notice gave counsel for the petitioners ample time to assemble the necessary evidence to prove the facts whose admission the respondent wanted to renege on. I am satisfied in the circumstances of this case, that the change of mind by counsel for the respondent on the admission of the facts did not occasion a miscarriage of justice to the petitioners. On the contrary, to insist that the respondent sticks to the admission, would be contrary to the spirit of articles 126(2)(*e*) above.

The issues that were agreed upon by the parties at the scheduling conference for determination of the Court were as follows:

> "1. whether the death penalty prescribed by various laws of Uganda constitutes inhuman or degrading treatment or punishment, contrary to article 24 of the Constitution;
>
> 2. whether the various laws of Uganda that prescribe the death penalty upon conviction are inconsistent with or in contravention of articles 24 and 44(*a*) or any other provisions of the Constitution;
>
> 3. whether the various laws of Uganda that prescribe mandatory sentences of death upon conviction are inconsistent with or in contravention of articles 21, 22, 24, 44 or any other provisions of the Constitution;
>
> 4. whether section 99(1) of the Trial on Indictments Act which prescribes hanging as the legal method of implementing the death penalty is inconsistent with and in contravention of articles 24 and 44 and any other provisions of the Constitution;
>
> 5. whether the execution of the petitioners who have been on death row for a long period of time is inconsistent with and in contravention of articles 24 and 44, or any other provisions of the Constitution;
>
> 6. whether your petitioners are entitled to the remedies prayed for."

The task which this Court is faced with in this petition is, therefore, to interpret the relevant provisions of the Constitution to answer the questions posed

above. It is, I think, appropriate at this stage, to point out briefly, the principles of constitutional interpretation that will guide me in the task at hand.

These are:

1. It is now widely accepted that the principles which govern the construction of statutes also apply to the interpretation of constitutional provisions. The widest construction possible, in its context, should be given according to the ordinary meaning of the words used (*The Republic v EL Manu* [1969] EA 357).
2. The entire Constitution has to be read as an integrated whole and no one particular provision destroying the other but each sustaining the other (*Ssemogerere and others v Attorney-General* constitutional appeal number 1 of [2004]).
3. All provisions bearing on a particular issue should be considered together to give effect to the purpose of the instrument (*South Dakota v North Carolina* 192 US 268 [1940] LED 448).
4. A Constitution and in particular that part of it which protects and entrenches fundamental rights and freedoms are to be given a generous and purposive interpretation to realise the full benefit of the right guaranteed.
5. In determining constitutionality both purpose and effect are relevant (*Attorney-General v Salvatori Abuki* constitutional appeal number 1 of 1998).
6. Article 126(1) of the Constitution of the Republic of Uganda enjoins Courts in this country to exercise judicial power in conformity with law and *with the values, norms and aspirations of the people*. (emphasis added)

It is not surprising that article 126(1) of the Constitution of this country enjoins Courts to have regard to the values, norms and aspirations of the people when exercising judicial powers. The reason can be discerned from the preamble of the Constitution. The preamble laments the history of this country that was characterised by political and constitutional instability. Through their Constitution, the people resolved to break from their past in order to build a better future based on the principles of unity, peace, equality, democracy, freedom, social justice and progress. With the above principles in mind, I shall now proceed to consider the above issues.

Issues numbers one and two

I shall consider these two issues together for convenience. The gist of the petitioners' case in these issues is that death penalty is inconsistent with articles 24 and 44(*a*) of the Constitution. They contend that these two articles read together, show that death penalty cannot be imposed on any person under the Constitution of this country because it is cruel, inhuman and or degrading. The laws which prescribe death penalty are therefore, they submitted, unconstitutional and should be struck down for being inconsistent with those two articles.

Mr John W *Katende* argued these issues for the petitioners. He contended that the words in article 24 were to be read disjunctively and given their ordinary plain meaning. He cited the judgment of Oder JSC in *Attorney-General v Salvatori Abuki* constitutional appeal number 1 of 1998. He stated that the disjunctive approach meant that the petitioners would need to prove only one of the mutations stated in article 24 to succeed. Further, that once the Court adopted that ordinary plain meaning approach, it would come to an irresistible

finding that death penalty is a cruel, inhuman and degrading form of punishment. He pointed out that in the Tanzanian case of *Mbushu and another v Republic* [1995] 1 LRC 216 and in the South African case of *State v Makwanyane* [1995] 1 LRC 269, the respective Courts have held that death penalty is inherently cruel without any evidence.

In the instant case, however, learned counsel submitted, that the petitioners have adduced affidavits evidence for example, that of Attorney Okwanga (affidavit number 2 Volume 1), Ben Ogwang (affidavit number 3 Volume 1) etc to show that death penalty is inherently a very cruel, inhuman and degrading punishment.

He pointed out that the Supreme Court had found in *Abuki*'s case (*supra*) that banishment was a cruel, inhuman and degrading punishment. Further, that this Court had also found in *Simon Kyamanywa v Uganda c*onstitutional reference number 10 of 2000 that corporal punishment was a cruel, inhuman and degrading punishment. He argued that since banishment and corporal punishment were found to be cruel, inhuman or a degrading form of punishment or treatment, this Court should find no difficulty to find that death penalty is a cruel, inhuman and degrading punishment.

Learned counsel contended that death penalty is not only cruel but it is also inhuman. He cited cases to show that deliberate putting to death of a human being, that human being ceases to be a human. His humanity is taken away.

That death is degrading in that it strips the convicted person of all dignity and treats him or her as an object to be eliminated by the State.

In counsel's view, article 22(1) did not save death penalty, nor did it qualify or provide exception to article 24. If the legislature wanted that to be the position, it would have stated so expressly. There is however, he argued, an apparent conflict between articles 22(1) and 24, which this Court has jurisdiction to harmonise. Once it is held that death penalty is cruel, inhuman and degrading and that article 24 outlaws such a punishment, then article 22(1) must give way. He pointed out that in the Tanzanian case of *Mbushu* (*supra*), despite the fact that death penalty was found to be inherently cruel, inhuman and degrading, it was not declared unconstitutional. This was because it was saved by article 30(2) of their Constitution.

He stated that, that scenario was not applicable to Uganda because of article 44(*a*). Article 44(*a*) was a Uganda unique innovation in the 1995 Constitution. It was not present in the 1967 Constitution. The purpose was in view of our chequered history, to protect at any cost, those important and sacred fundamental pillars contained therein. The language of the article is clear. He stated that the Supreme Court had held in *Abuki*'s case (*supra*) that there was no conceivable circumstances or grave facts by which the rights protected in article 44 can ever be altered to the disadvantage of anyone even if he or she was charged or convicted of a serious offence. He referred us to *Zachery Olum v Attorney-General* (case number 7) where this Court (Twinomujuni JA) had held that the language of article 44(*a*) admits of no other construction. It prohibits any derogation from the enjoyment of the rights set out therein regardless of anything else in the Constitution.

Mr John W *Katende* pointed out that though article 126(1) enjoins Courts to exercise judicial power in conformity with law and aspirations of the people,

that article does not override article 44. Clear language of the Constitution must prevail over the opinion of the people.

On resolving the apparent conflict between articles 22(1) and 24, Mr *Katende* contended that the holding in the Nigerian case of *Kalu v State* should not be followed because its approach conflicts which the plain ordinary meaning approach adopted by our Supreme Court in *Abuki*'s case (*supra*). He finally submitted that once it is held that death penalty is a cruel, inhuman and degrading punishment, contrary to article 24, then on the authorities of the Supreme Court and this Constitutional Court cited above, death penalty is outlawed by article 44 and should be declared unconstitutional. The provisions of the various legislations specified in paragraph 1(*a*) of the petition which prescribe death penalty should also be declared unconstitutional.

Mr Benjamin *Wamambe* submitted for the respondent on these issues. He contended that death penalty and the various provisions of the laws of Uganda which prescribe death penalty are not unconstitutional. Article 24 must be construed in the context of the Uganda Constitution, applying a dynamic and progressive principle of constitutional interpretation, keeping in mind the historical background of this country and the aspirations of the Ugandan people. He stated that once that approach is adopted, death penalty will not be found to be cruel, inhuman and degrading. He rejected the "plain ordinary meaning" approach stated in *Abuki*'s case (*supra*). According to him, both *Abuki*'s case and *Kyamanywa Simon* (*supra*) were distinguishable from the instant case. In *Abuki* and *Kyamanywa*, Courts were interpreting statutory provisions against a constitutional provision. In the instant case, the Court is faced with the task of interpreting one constitutional provision against another. In *Abuki* and *Kyamanywa*, banishment and corporal punishment respectively were not provided for in the Constitution. Death penalty on the other hand, is provided for in article 22(1), which came before article 24. It is his contention that the framers of the Constitution could not have intended articles 24 and 44 to apply to death penalty. There is a well known rule of interpretation that to take away a right given by a statute, the legislature must do so in clear terms devoid of any ambiguity. He submitted that if the framers of the Constitution had intended to take away, by article 24, the right recognised in article 22(1), they would have done so in clear terms and not by implication. Article 24 was enacted when article 22(1) was still fresh in the minds of the framers.

He submitted that death penalty is neither a torture, nor a cruel, inhuman or degrading punishment or treatment within the context of articles 24 and 44. Articles 24 and 44 were intended to address the bad history of this country, which was characterised by torture and arbitrary extra judicial killings. Now under article 22(1), death penalty is limited to specific situation. It follows a conviction in a fair trial by a Court of competent jurisdiction in respect of a crime in Uganda, where both the conviction and sentence have been confirmed by the highest appellate Court in Uganda. This provision satisfies all the essential requirements for a law derogating from basic rights because it provides:

(*a*) adequate safeguard against arbitrary decision;

(*b*) effective control against abuse by those in authority when using the law; and

(*c*) complies with the principle of proportionality. The limitation imposed on the fundamental right to life is no more than reasonably necessary to achieve the legitimate object of the various laws of Uganda, which

prescribe death penalty. The laws only net the targeted members of the society. He relied on *Mbushu and another v Republic* case number 9 Volume 1 of petitioner's list of authorities.

According to Mr *Wamambe*, when interpreting article 24, the Court should bear in mind article 126(1) which lays emphasis on the norms and aspirations of the people of Uganda. He pointed out that Justice Odoki's Constitutional Commission Report of 1992 and Professor *Sempebwa*'s Constitutional Review Commission Report of 2003 both show that the majority of Ugandans still favour retention of death penalty. Because of this, death penalty is not yet viewed in Uganda as a cruel, inhuman and degrading punishment. He relied on the second limb of the decision in *Mbushu*'s case (*supra*) where the Tanzania Court of Appeal observed that it was necessary to influence public opinion to abolish death penalty.

He contends that the various provisions of the laws of Uganda, which prescribe death penalty are not inconsistent with articles 24 and 44(*a*) of the Constitution. They are constitutional under articles 22(1), 28, 43 and 273 of the Constitution. He rejected the argument that article 44 was a super article. In his view, this article is only super in respect of the rights mentioned therein. The right to life is not included in that article. The reason is that the framers did not view the right to life as non-derogable.

He stated that the South African case of *State v Makwanyane and another* [1995] 1 LRC 269 was not relevant to the instant case because under the South African Constitution, the right to life is unqualified. Under the Ugandan Constitution, the right to life is qualified. Death penalty is, therefore, validated as an exception to article 24. He also rejected the decision in the Tanzanian case of *Mbushu and another* (*supra*) that death penalty is inherently cruel, inhuman and degrading punishment as not applicable to Uganda because the Tanzania Constitution does not have the equivalent of our article 22(1).

According to him, the relevant authority is the Nigerian decision in *Kalu v The State (Nigeria)* [1998] 13 NWLR 531 because the constitutional provisions it considered are in *pari materia* with our articles 22(1) and 24 of the Constitution. He also relied on *Bacan Singh v State of Punjab* [1983] (2) SCR 583 where article 21 of the Indian Constitution which is similar to our article 22(1) was considered and the Supreme Court of India held that the right to life under the Indian Constitution was qualified. In those circumstances, the death penalty was constitutionally valid.

He invited us to hold that death penalty under Uganda Constitution does not constitute cruel, inhuman or degrading punishment within the context of article 24 and that the various laws of Uganda that prescribe the death penalty are not inconsistent with and do not contravene articles 24 and 44 or any other provisions of the Constitution.

I must emphasise that from the submissions of counsel on both sides on these issues the point for determination by this Court is the constitutionality of death penalty in Uganda and the constitutionality of the various provisions of the laws of Uganda which prescribe death penalty. Determination of these questions hinges on the interpretation to be given to article 24. To better appreciate the arguments in this regard, it is necessary to reproduce the text of articles 22(1), 24 and 44 of the Constitution because they relate to the same issue.

They are:

"22(1) No person shall be deprived of life intentionally, except in execution of a sentence passed in a fair trial by a Court of competent jurisdiction in respect of a criminal offence under the laws of Uganda and the conviction and sentence have been confirmed by the highest appellate Court.

24. No person shall be subjected to any form of torture, cruel, inhuman or degradeing treatment or punishment.

44. Notwithstanding anything in this Constitution, there shall be no derogation from the enjoyment of the following rights and freedoms:

(*a*) freedom from torture, cruel, inhuman or degrading treatment or punishment;

(*b*) freedom from slavery or servitude;

(*c*) the right to fair hearing;

(*d*) the right to an order of *habeas corpus*."

Mr John *Katende* urged us to apply the "ordinary plain meaning" principle of interpretation when interpreting article 24 because this was decided so by the Supreme Court of this country in *Abuki*'s case (*supra*). In that case, the passage cited was from the judgment of Oder JSC. They were considering article 24 of the Constitution and he said:

> "It seems clear that the word italicised have to be read disjunctively . . . The treatment or punishment prescribed by article 24 of the Constitution are not defined therein. They must, therefore, be given their ordinary and plain meaning."

Clearly, according to the above passage from the decision of the Supreme Court, which is binding on this Court, the words in article 24 are to be read disjunctively and given their ordinary and plain meaning. What did the learned Justice of the Supreme Court mean when he said "given their ordinary and plain meaning?"

It was stated in *Jaga v Donges* 1950 USA 653, a case cited in *Makwanyanes*' case (*supra*) thus:

> "The often repeated statement that words and expressions used in a statute must be interpreted according to their *ordinary meaning* is the statement that they must be interpreted in the light of their context." (emphasis added)

It is clear from the above passage that what the learned Justice of the Supreme Court meant when he said that the words in article 24 be given their ordinary and plain meaning is that those words must be interpreted in the context of the Constitution in which they are used, but not in abstract. In this regard, I agree, with respect, to Mr *Wamambe*, that article 24 must be construed in the context of the Constitution.

Article 22(1) recognises death penalty in execution of a sentence passed in a fair trial by a Court of competent jurisdiction in respect of a criminal offence under the laws of Uganda and the conviction and sentence have been confirmed by the highest appellate Court in Uganda. This is an exception to the enjoyment of the right to life. To that extent, death penalty is constitutional. Article 24 outlaws any form of torture, cruel, inhuman or degrading treatment or punishment. The imposing question to answer is whether the framers of our Constitution intended to take away, by article 24, the right they recognised in article 22(1)?

A similar question had earlier been considered in other jurisdictions. Their approach to the question, though only persuasive, may offer us some guidance,

more so, when these decisions are from the common law jurisdictions, like us. In *Makwanyane*'s case (*supra*) to which counsel for the petitioners referred us, the Constitutional Court of South Africa found death penalty to be inherently cruel, inhuman or degrading and, therefore, unconstitutional. Under the Constitution of South Africa, the right to life is unqualified.

In *Mbushu*'s case (*supra*), which was also cited to us by counsel for the petitioners, the Court of Appeal of Tanzania, though it found that death penalty is inherently cruel, inhuman or degrading, declined to declare it unconstitutional. Their reason was that it was saved by article 30(2) of their Constitution. The right to life under the Tanzanian Constitution is, therefore, like under our Constitution, qualified.

In the *Catholic Commission for Justice and Peace v Attorney-General* [1993] 2 LRC 279, the Supreme Court of Zimbabwe held death penalty as well as the mode of carrying it out by hanging to be constitutional. The right to life under the Zimbawean Constitution is also qualified.

The Nigerian case of *Kalu v The State (Nigeria)* [1998] 13 NWLR 531 is of particular interest to me here because the provisions of the Nigerian Constitution considered therein by their Supreme Court are in *pari materia* with our articles 22(1) and 24 now in question. Section 30(1) of the Nigerian Constitution provides:

> "Every person has a right to life and no one shall be deprived intentionally of his life save in execution of a sentence of a Court in respect of a criminal offence of which he has been found guilty in Nigeria."

That provision is in *pari materia* with our article 22(1) which provides that:

> "No person shall be deprived of life intentionally, except in execution of a sentence passed in a fair trial by a Court of competent jurisdiction in respect of a criminal offence under the laws of Uganda and the conviction and sentence have been confirmed by the highest appellate Court."

Section 31(1) of the Nigerian Constitution provides thus:

> "Every individual is entitled to respect for dignity of his person and accordingly:
>
> (*a*) no person shall be subjected to torture or to inhuman or degrading treatment."

Section 31(1)(*a*) of the Nigerian Constitution is in *pari materia* with our article 24 which provides thus:

> "No person shall be subjected to any form of torture, cruel, inhuman or degrading treatment or punishment."

It is clear from the above provisions that the right to life under the Nigerian Constitution, like under our own Constitution, is qualified. The Supreme Court of Nigeria had no difficulty finding that death penalty which is expressly recognised in section 30(1) of their Constitution is constitutional. If the legislature had intended to take away by section 31(1)(*a*) the right it recognised in section 30(1) of the Constitution, it would have done so by clear terms and not by implication. The Supreme Court of Nigeria followed the Jamaican decisions in *Noel Riley and others v Attorney-General for Jamaica and another* [1983] 1 AC 719 (PC), *Earl Pratt and another v Attorney-General for Jamaica and another* [1994] 2 ACI (PC).

In those cases, the death penalty was held to be constitutional because the right to life under the Jamaican Constitution is qualified.

I endorse the approach adopted in *Kalu*'s case. I am, of course, aware of the strong criticism made by Mr John *Katende* of the manner that case was handled.

His reasons were that in *Kalu*:

1. the judgment was carelessly written;
2. decided when the Judiciary in Nigeria was not independent;
3. it did not apply ordinary and plain meaning principle of interpretation;
4. Nigerian Constitution does not have the equivalent of our article 44; and
5. it cited and discussed an American case as a Hungarian case.

With respect, I am not persuaded by those reasons. It was not shown how the manner of writing the judgment affected the *ratio decidendi* of the case. No iota of evidence was led to show that when the case was decided, the Judiciary in Nigeria was not independent. It is not shown that the decision is wrong in law. The case was decided on the basis that under Nigerian Constitution, the right to life is qualified.

In our case, article 22(1) recognises the death penalty as an exception to the enjoyment of the right to life. There is a well known rule of interpretation that to take away a right given by common law or statute, the legislature should do that in clear terms devoid of any ambiguity. It is important to note that the right to life is not included in article 44 on the list of the non-derogable rights. Accordingly, articles 24 and 44 could not have been intended to apply to death penalty permitted in article 22(1). When articles 24 and 44 were being enacted article 22 was still fresh in the mind of the framers. If they (framers of our Constitution) had wanted to take away, by article 24, the rights they recognised in article 22(1), they would have done so in clear terms, not by implication. Imposition of death penalty therefore, constitutes no cruel, inhuman or degrading punishment. The various provisions of the laws of Uganda which prescribe death sentence are, therefore, not inconsistent with or in contravention of articles 24 and 44 or any provisions of the Constitution.

In the result, I answer issues number one and two above in the negative.

This now leads me to issue number three which is couched as follows:

> "Whether the various laws of Uganda that prescribe mandatory sentences of death upon conviction are inconsistent with or in contravention of articles 21, 22, 24, 44(*c*) or any other provisions of the Constitution."

This issue is argued in alternative to issues numbers one and two above. Professor *Sempebwa* who argued this issue for the petitioners contended that if the Court found issues number one and two in the negative, it should find issue number three in the affirmative. In his view, the various laws of Uganda which prescribe mandatory sentence are inconsistent with or contravene articles 21, 22(1), 24, 28, 44(*c*) and 126(1) of the Constitution. His reasons are that:

1. Mandatory sentence gives different treatment to a convict under that section from that given to a convict under a non-mandatory section in contravention of article 21 which guarantees equality before and under the law.
2. It denies a convict under mandatory sentence a fair hearing on sentence in contravention of articles 22(1), 28(1) and 44(*c*).
3. It violates the principle of separation of powers provided in article 126(1).

He pointed out that the right to a fair hearing contained in articles 22(1) and 28(1) and entrenched in article 44(*c*) would require that:

(*a*) a convict be accorded opportunity to present to Court any mitigating circumstances and any special facts relating to the offence when it was committed, to distinguish it from the other offences in the same category in order to persuade the Court in those circumstances that death penalty is not the appropriate sentence in his case;

(*b*) the convict would exercise a right of appeal against sentence only;

(*c*) the trial Court would exercise discretion to determine the appropriate sentence in each case;

(*d*) the appellate Court would also exercise discretion to confirm or not to confirm the sentence.

He submitted that all the above are denied the petitioners convicted under a mandatory sentence. They are not given opportunity to show cause why death sentence is not the appropriate sentence in their individual cases. These denials render the hearing on sentence unfair and unconstitutional as it contravenes articles 22(1), 28(1) and 44(*c*). To emphasise this point, Professor *Sempabwa* cited the Indian case of *Mithu v State of Punjab* [1983] SOL case number 26.

He further submitted that the trial Court is also not given the chance under a mandatory death sentence provision, to exercise its discretion to determine an exact appropriate sentence based on the circumstances of each case and each offender. Even the highest appellate Court, in case of those petitioners who have exhausted their right of appeal, did not have the chance to exercise its discretion whether or not to confirm the sentence. It will not also have that chance in the case of those petitioners who are yet to exhaust their right of appeal. In effect, there is no rational decision on sentence under a mandatory sentence provision. He submitted that failure to give the Court opportunity to consider the circumstances of each case and offender to determine the appropriate sentence, but merely to impose a sentence on a class of crime, renders the hearing on sentence unfair and the imposition of sentence arbitrary. He cited the case of *Mithu v State of Punjab* (*supra*); *Reyes v The Queen* [2002] 2 AC 235 (case number 15 Volume 2).

He stated that the principle of separation of power allocates to the legislature the duty to define offences and prescribe possible sentences for each offence. The determination of the exact appropriate sentence and imposition thereof is the duty of the Judiciary under article 126(1) of our Constitution.

He submitted that a statute which prescribes a mandatory sentence is an intrusion into the realm of the Judiciary and a violation of the principle of separation of power. It is thus unconstitutional. To emphasis this point, learned counsel cited a number of decisions from other jurisdictions:

1. *Mithu v State of Punjab* (*supra*).
2. *R v Hugh* case number 17 Volume 2.
3. *Downer Tracey v Jamaican* case number 15 Volume 2.
4. *Robert v Luciano* case number 20 Volume 2.
5. *Lockie v State of Ohio* case number 21 Volume 2.

He stated that the sum effect of these cases is that mandatory sentence of death constitutes cruel, inhuman and degrading punishment. It does not allow consideration by the Court of the circumstances of the offenders and of the offence. It denies the convict a fair hearing on sentence, and that such a sentence

is not confirmed by the highest appellate Court as required by article 22(1). It also intrudes into the realm of the Judiciary. He urged us to declare all those statutory provisions which prescribe mandatory death sentence as unconstitutional.

For the respondent, Mr *Wamambe* did not agree with the above submissions. He contended that mandatory death sentence is just like any other sentence under the laws of Uganda. The fact that they are mandatory does not make them unconstitutional. They are not inconsistent with articles 21, 22(1), 24, 28, 44(*c*) as submitted by counsel for the petitioners.

He pointed out that clause 5 of article 21 is very clear on this point. It provides that nothing shall be taken to be inconsistent with article 21 which is allowed to be done under any provision of this Constitution. Since death penalty is allowed under article 22(1), the various laws of Uganda that prescribe mandatory death penalty upon conviction are not inconsistent with article 21. He also referred us to clause 4(*b*) and (*c*) of article 21 which empowers Parliament to make laws that are necessary for providing for things required or authorised to be made under this Constitution, or to provide for any matter acceptable and demonstrably justified in a free and democratic society.

He submitted that mandatory death sentence provision is authorised under article 22(1). Therefore, the various laws of Uganda that prescribe mandatory death sentence upon conviction are not inconsistent with article 21 or any other provisions of the Constitution.

He contended in the alternative that mandatory death sentence is acceptable and demonstrably justified in Uganda within the context of articles 21(4)(*c*) and 43 because the majority of Ugandans approve of it. They view it as a fair penalty for heinous crimes. They accept it as a way of demonstrating their disapproval of such crimes. If the majority of Ugandans want violent crimes to be punished by death without any excuse so be it. It is consistent with article 21(4)(*c*). Therefore, prescribing mandatory death sentence is not inconsistent with article 21.

Fair hearing

Mr Wamambe contended that the elements of a fair hearing in Uganda are exhaustively listed in article 28. Once these are compiled with, then a fair hearing requirement will have been observed. Our criminal system observed them. Article 28(12) empowers Parliament to define offences and prescribe sentences for them. It does not prohibit Parliament from prescribing mandatory death sentence.

The requirement of confirmation of conviction and sentence under article 22(1) shows that both conviction and sentence are opened to automatic review on appeal. The conviction and sentence are inseparable. It is unfortunate to argue that mandatory sentences deprive Courts of their discretion to determine appropriate sentences and that appellate Courts merely rubber stamp the decision of the trial Courts on sentences. Courts in Uganda have absolute and unqualified discretion to decide on:

1. whether or not a case has been proved to the required standard;
2. to take into account all available defences whether raised or not by the accused;
3. to acquit or convict on lesser offence where the evidence so proves; and

4. to call upon a person found guilty to show cause why the sentence should not be passed on him or her according to law. (Section 98 of the Trial on Indictments Act (Chapter 23)).

He likened the criminal system in Uganda to a pyramid. Many are charged, but few are convicted and sentenced. Still further, very few sentences imposed are confirmed by the highest appellate Court. All these, he submitted, are a result of a fair hearing as stated in Olubu's affidavit.

I have already found on issues numbers one and two above that death penalty is recognised under our Constitution in article 22(1) as an exception to the enjoyment of the right to life and as an exception to article 24. It is permissible in execution of a sentence passed in a fair trial by a Court of competent jurisdiction in respect of a criminal offence under the laws of Uganda and the conviction and sentence have been confirmed by the highest appellate Court. The criteria for death sentence to be constitutionally permissible under this Constitution are therefore, that:

(*a*) the sentence must be passed in a fair trial;

(*b*) in respect of an offence under the laws of Uganda; and

(*c*) the conviction and sentence have been confirmed by the highest appellate Court.

The term "fair trial or hearing" has not been defined in our Constitution. Mr *Wamambe* submitted that the elements of a fair hearing have been exhaustively listed in article 28 of the Constitution and that once those elements are complied with, then for Uganda's purpose, the requirement of a fair hearing will have been observed.

Article 28 provides thus:

"1. In the determination of civil rights and obligations or any criminal charge, a person shall be entitled a fair, speedy and public hearing before an independent and impartial Court or tribunal established by law.

2. Nothing in clause (1) of this article shall prevent the Court or tribunal from excluding the press or the public from all or any proceedings before it for reasons of morality, public order or national security, as may be necessary in a free and democratic society.

3. Every person who is charged with a criminal offence shall:

(*a*) be presumed to be innocent until proved guilty or until that person has pleaded guilty;

(*b*) be informed immediately, in a language that the person understands of the nature of the offence;

(*c*) be given adequate time and facilities for the preparation of his or her defence;

(*d*) be permitted to appear before the Court in person or, at that person's own expense, by a lawyer of his or her choice;

(*e*) in the case of any offence which carries a sentence of death or imprisonment for life, be entitled to legal representation at the expense of the State;

(*f*) be afforded, without payment by that person, the assistance of an interpreter if that person cannot understand the language used at the trial;

(*g*) be afforded facilities to examine witnesses and to obtain the attendance of other witnesses before the Court.

4. Nothing done under the authority of any law shall be held to be inconsistent with:

(*a*) paragraph (*a*) of clause 3 of this article, to the extent that the law in question imposes upon any person charged with a criminal offence, the burden of proving particular facts;

(*b*) paragraph (*g*) of clause 3 of this article, to the extent that the law imposes conditions that must be satisfied in witnesses called to testify on behalf of an accused are to be paid their expenses out of public funds.

5. Except with his or her consent, the trial of any persons shall not take place in the absence of that person, unless that person so conducts himself or herself as to render the continuance of the proceedings in the presence of that person impracticable and the Court makes an order for the person to be removed and the trial to proceed in the absence of that person.

6. A person tried for any criminal offence, or any person authorised by him or her, shall, after the judgment in respect of that offence, be entitled to a copy of the proceedings upon payment of a fee prescribed by law.

7. No person shall be charged with or convicted of a criminal offence which is founded on an act or omission that did not at the time it took place constitute a criminal offence.

8. No penalty shall be imposed for a criminal offence that is severer in degree or description than the maximum penalty that could have been imposed for that offence at the time when it was committed.

9. A person who shows that he or she has been tried by a competent Court for a criminal offence and convicted or acquitted of that offence, shall not again be tried for the offence or for any other criminal offence of which he or she could have been convicted at the trial for that offence, except upon the order of a superior Court in the course of appeal or review proceedings relating to the conviction or acquittal.

10. No person shall be tried for a criminal offence if the person shows that he or she has been pardoned in respect of that offence.

11. Where a person is being tried for a criminal offence, neither that person, nor the spouse of that person shall be compelled to give evidence against that person.

12. Except for contempt of Court, no person shall be convicted of a criminal offence, unless the offence is defined and the penalty for it prescribed by law."

It is clear from the above that article 28 has not exhaustively listed the elements of a fair hearing. Notably absent from that list is the right of the convict to be heard in mitigation before sentence is passed on him or her. Conspicuously absent from that article is also the right of the Court to make inquiries to inform itself before passing the sentence, to determine the appropriateness of the sentence to pass.

In other jurisdictions, mandatory death sentence has been held to be unconstitutional because:

1. It does not provide a fair hearing because it does not permit a convict to be heard in mitigation before sentence.

2. It violates the principle of separation of power, as it does not give the Court opportunity to exercise its discretion to determine the appropriateness of the sentence to pass. The Court passes the sentence because the law compels it to do so.

Mithu v State of Punjab (*supra*) is a case in point. In that case, the constitutionality of section 303 of the Penal Code of India was challenged. It was alleged that the section was inconsistent with article 21 of the Constitution of India which provides:

> "No person shall be deprived of his life or personal liberty, except according to fair, just and reasonable procedure established by valid law."

The said section 303 prescribed mandatory death penalty for murder committed by a person serving a life sentence. It was argued for the challenger that section 303 was wholly unreasonable and arbitrary and thereby it violates article 21. The procedure by which section 303 authorises the deprivation of life was unfair, unjust and accordingly, the section was unconstitutional.

Accepting the above argument, the Supreme Court of India observed thus:

> "It is a travesty of justice not only to sentence a person to death, but to tell him that he shall not be heard why he should not be sentenced to death."

The Supreme Court further said:

> "If the Court has no option save to impose the sentence of death, it is meaningless to hear the accused on the question and it becomes superfluous to state the reasons for imposing the sentence of death. The blatant reason for imposing the sentence of death in such a case is that the law compels Court to impose that sentence."

The Supreme Court struck down the said section 303 of the Indian Penal Code as being unconstitutional for being unfair and unjust because:

1. It did not permit the life-convict to be heard in mitigation before sentence was passed on him.
2. It also did not give the Court opportunity to exercise its discretion to determine the appropriateness of the sentence it passed. The Court passed the sentence of death because the law compels it to impose it.
3. Denying the Court to exercise its judicial discretion to determine the appropriateness of the sentence was an intrusion into the realm of the Judiciary and thus, a violation of the principle of separation of power.

In *Soering v UK* [1989] EHRR 439, the board was asked to consider the constitutionality of mandatory sentence of death for murder by shooting. The board was satisfied that the provision requiring sentence of death to be passed on the defendant on his conviction for murder by shooting without affording him opportunity before sentence, to seek to persuade the Court that in all the circumstances to condemn him to death would be disproportionate and inappropriate, was to treat the defendant as no human being would be treated. It was unconstitutional.

In Uganda, section 98 of the Trial on Indictments Act provides the procedure to be followed by Court after entering a conviction and before sentence. The procedure permits the Court to make inquiries before passing sentence to inform itself on the appropriateness of the sentence to pass. The section provides, as far as is relevant, as follows:

> "The Court, before passing any sentence *other than a sentence of death*, may make such inquiries as it thinks fit in order to inform itself as to the proper sentence to be passed and may inquire into the character and antecedents of the accused person . . ." (emphasis added)

That provision makes a distinction between a person convicted under a mandatory sentence of death provision and those convicted under other provisions. It denies the Court the chance to inform itself as to the appropriateness of the death sentence. In other words, a convict of an offence under a mandatory sentence of death provision is told that he or she cannot be heard on why in all the circumstances of his or her case, death sentence should not be imposed on

him or her. I can think of no possible rationale at all for that distinction yet, a person facing death sentence should be the most deserving to be heard in mitigation.

Mr *Wamambe* submitted that in view of article 126, if the majority of the people of Uganda want violent crimes to be punished by death without any excuse so be it. While I agree with Mr *Wamambe* that the norms and aspirations of the people must be taken into consideration when interpreting this Constitution, the language and spirit of the Constitution must not thereby be compromised. Article 22(1) permits death sentence in execution of a sentence passed in a fair trial. That is clear. A fair hearing must basically mean hearing both sides. Refusing or denying a convict facing death sentence, to be heard in mitigation when those facing lesser sentences are allowed to be heard in mitigation is clearly unjustifiable discrimination and unfair. It is neither consistent with the principle of equality before and under the law guaranteed in article 21, nor with the right to a fair hearing guaranteed in articles 22(1), 28 and entrenched in article 44(*c*).

That procedure which denies the Court opportunity to inform itself on any mitigation factors regarding sentence of death, deprives the Court of the chance to exercise its discretion to determine the appropriateness of the sentence. It compels the Court to impose the sentence of death merely because the law directs it to do so. This is an intrusion by the legislature into the realm of the Judiciary. Our Constitution has spelt out the powers of the three organs of the State: namely, the Executive, the legislature and the Judiciary. It gives the Judiciary the power to adjudicate. Therefore, for the legislature to define the offence and prescribe the only sentence which the Court must impose on conviction without affording the Court opportunity to exercise its discretion to determine the appropriateness of the sentence, is clearly a violation of the principle of separation of power. A similar conclusion was arrived at by the Supreme Court of India in *Mithu v State of Punjab* (*supra*).

Article 22(1) requires that both conviction and sentence of death be confirmed by the highest appellate Court. Mr *Wamambe* submitted that conviction and sentence under a mandatory sentence of death provision are inseparable. Once the conviction is confirmed, the confirmation of sentence follows automatically. With respect, I am not persuaded by that argument. A generous purposive interpretation of article 22(1) does not bring out that meaning. Instead, it conveys the meaning that conviction and sentence be confirmed by the highest appellate Court. I am inclined to agree with Professor *Sempebwa* that this confirmation would require exercise of discretion by the appellate Court on whether or not to confirm the sentence. This would be done upon consideration of the circumstances of the offence and of the offender, since the circumstances of murder or aggravated robbery and of their offenders are not exactly the same. Those differences determine the appropriateness of the sentence to be imposed in each case.

As pointed out above, this problem is caused by the procedure provided in section 98. It does not permit the convict under a mandatory sentence of death provision to be heard in mitigation before he or she is sentenced. The Court is also not permitted to inform itself on the appropriateness of the sentence to pass in the case of mandatory death sentence. The sentence is not strictly confirmed within the spirit of article 22(1).

Section 132(1)(*b*) of the Trial on Indictments Act (Chapter 23) provides:

> "Subject to this section:
>
> (*a*) . . .
>
> (*b*) an accused person may, with leave of the Court of Appeal, appeal to the Court of Appeal against the sentence alone imposed by the High Court, other than a sentence fixed by law . . ."

The above provision denies a person who is convicted and sentenced under a provision where sentence is fixed by law to appeal against sentence only. Yet article 21(1) of the Constitution guarantees equal protection before and under the law. There is no justifiable reason for denying a convict who is sentenced to a sentence fixed by law to appeal against sentence only, for example, death sentence for murder or aggravated robbery to appeal against sentence only but allow others whose sentences are not fixed by law. This, in my view, is repugnant to the principle of equality before the law and fair trial.

In the result, I find that the various provisions of the laws of Uganda which prescribe mandatory death sentence are unconstitutional. They are inconsistent with articles 21, 22(1), 24, 28, 44(*a*) and 44(*c*) of the Constitution.

I now turn to issue number four which reads thus:

> "Whether section 99(1) of the Trial on Indictments Act which prescribes hanging as the legal method of implementing the death penalty is inconsistent with and in contravention of articles 24, 44 and any other provisions of the Constitution."

Mr Sim *Katende* argued this issue for the petitioners. He stated that this issue too was being argued in alternative to issues one and two. He contended that the manner of carrying out death penalty by hanging was inconsistent with the Constitution. The law that prescribes the mode of carrying out death sentence by hanging was inconsistent with articles 24 and 44(*a*). The method of execution by hanging is cruel, inhuman and degrading and, therefore, inconsistent with articles 24 and 44(*a*). These two articles, he stated, read together, bar cruel, inhuman and degrading punishment or treatment. He adopted the argument made for the petitioners on issues one and two about the definition of the terms cruel, inhuman and degrading and approach to their interpretation. That the words in article 24 be read distinctively and given their ordinary plain meaning as was decided in *Abuki*'s case (*supra*). He cited *Republic v Mbushu and another* [1994] 2 LRC 335; *Mbushu and another v Republic* [1995] 1 LRC 216; *State v Makwanyane* [1995] 1 LRC 269; *Campbell v Wood* (18 F 3 662-US Ninth Circuit Court of Appeals) to show that execution by hanging had been held in other jurisdictions to be inherently cruel, inhuman and degrading. No evidence had been adduced to prove the same.

Learned counsel pointed out that in the instant case, the petitioners have adduced several affidavits evidence to show that hanging is cruel, He cited the affidavits of Anthony Okwanga, affidavit number 2 (Volume 2); of Ben Ogwang, affidavit number 4 (Volume 2) paragraph 7; of Mugerwa Nyansio, affidavit number 6 (Volume 2); of Edward Mary Mpagi, affidavit number 5 (Volume 2); of Tom Balimbya, affidavit number 14 (Volume 3); of Vincent Oluka, affidavit number 5 (Volume 2) and of David Nsalasata, affidavit number 9 (Volume 2) to support the cruelty of death by hanging.

He also cited the affidavits of Dr Albert Hunt, affidavit number 5 (Volume 10) and of Dr Herold Hilman, affidavit number 4 (Volume 10) to emphasise that execution by hanging is cruel, inhuman and degrading. These last two

deponents are medical doctors. Dr Hillman had been a Director of Unity Laboratory of Applied Neurobiology USA, while Dr Hunt had practised as a Forensic Pathologist in the UK for 45 years. Their opinion is that death by hanging is cruel, inhuman and degrading as by that method death was not always instantaneous. It was long, unnecessarily torturous and painful. In the process of execution by hanging, the victim often defecates on himself and his eyes pops out of the sockets. At times, the condemned is decapitated in the process when the machine goes bad.

Learned counsel prayed that in view of the cases cited above and the evidence adduced, Court should find that section 99(1) of the Trial on Indictments Act is inconsistent with articles 24 and 44(*c*) and should, therefore, be declared unconstitutional.

Mr *Chibita* submitted for the respondent on this issue. He contended that since death penalty was saved by article 22(1) and is, therefore, constitutional, it was necessary to provide for the mode of implementing it. Section 99(1), therefore, provided the needed mode. It is also constitutional. The legislature must have, in its wisdom, found this method to be the best. He denied that hanging was done in public as suggested in Anthony Okwanga's affidavit, nor was it opened to other prisoners. He stated that if Okwanga ever witnessed any hanging, it was when he was a prison officer, not when he is now on the death row.

He discarded *Abuki*'s case (*supra*) as well as *Kyamanywa*'s case (*supra*) both as not relevant because they materially differ from the instant case. In both cases, the Court was not interpreting one provision of the Constitution against another as it is in the instant case, nor was it interpreting it in light of the Trial on Indictments Act.

He also discarded the decisions from foreign jurisdiction cited to us as being irrelevant. For *Mushu*'s case (*supra*) he stated that the Tanzanian Constitution does not contain an equivalent of our article 126(1). He discarded the *ratio decidendi* in *Makwanyane*'s case because the right to life under the Constitution of South Africa where the case was decided, is different from the one under our own Constitution. In South Africa, the right to life is unqualified, but in Uganda, the right to life is qualified. He prayed that this issue be answered in the negative.

The issue raised here is whether the method of execution by hanging as prescribed by section 99(1) of the Trial on Indictments Act constitutes a cruel, inhuman or degrading punishment and, therefore, violates our Constitution. The starting point is that I have already found on issues one and two above that the death penalty is recognised under article 22(1) of our Constitution as an exception to the right to life. I also found that on a proper interpretation, articles 24 and 44(*a*) were not intended to apply to the death penalty permitted under article 22(1).

In other jurisdictions, like Nigeria and Jamaica, where the right to life under their Constitutions was, like ours, qualified, hanging as a method of execution was held to be constitutional.

A close study of the Jamaican case of *Earl Pratt and another v Attorney-General for Jamaica and another* (*supra*) shows that sections 14(1) and 17(1) of the Constitution of Jamaica which the Court considered in the above case are in

pari materia with our articles 22(1) and 24 respectively. That made the right to life under the two Constitutions the same – both qualified.

Our Constitution, however, does not contain the equivalent of section 17(2) of the Jamaican Constitution which provides thus:

> "Nothing contained in or done under the authority of any law shall be liable to be inconsistent with or in contravention of this section to the extent that the law in question authorises the infliction of any description of punishment which was lawful in Jamaica immediately before the appointed day."

Lord Griffith, who delivered the judgment of the Privy Council held in the above case that hanging which was a lawful method of execution in Jamaica before independence was saved by section 17(2). It could not, therefore, be held to be an inhuman mode of punishment for murder.

Notwithstanding the absence in our Constitution of an article equivalent to section 17(2) of the Jamaica Constitution, the right to life under the Constitutions of both countries is qualified. Execution by hanging may be cruel, but I have found that articles 24 and 44(*a*) were not intended to apply to death sentence permitted in article 22(1). Therefore, implementing or carrying out death penalty by hanging cannot be held to be cruel, inhuman and degrading. Articles 24 and 44(*a*) do not apply to it. Punishment by its nature must inflict some pain and unpleasantness, physically or mentally to achieve its objective. Section 99(1) of the Trial on Indictments Act is therefore, constitutional as it operationalises article 22(1). It is not inconsistent with articles 24 and 44(*a*).

In the result, issue number four would be answered in the negative.

The next to consider is issue number five which is couched as follows:

> "Whether the execution of the petitioners who have been on death row for a long period of time is inconsistent with articles 24, 44 or any other provisions of the Constitution."

Professor *Sempebwa* who argued this issue on behalf of the petitioners stated that the issue was argued in a further alternative to issues one and two. He contended that the petitioners' long delay on the death row rendered carrying out of the otherwise lawful sentence a cruel, inhuman and degrading punishment. He pointed out that the evidence on record, affidavit of Sam Serwanga Volume 4, annexure B, shows that the longest on the death row, Ben Ogwang, at the time of filing this petition on 4 September 2003, had been on there for 20 years since sentencing. The average length on the death row in Uganda is between five and six years.

He stated that the aspect of evidence adduced paints a grim picture of the conditions in the death row. They are characterised by anguished expectation of death at any time at the hand of the State. That reduces the petitioners into "living dead" suffering from death row syndrome. They go through a very harrowing experience whenever they see their mates separated from them and later they received chits from their separated mates as their will.

Executions are carried out early morning and within the hearing of the other condemned inmates. This adds to the anguish. For these factual situations, Professor *Sempebwa* relied on the evidence of Ben Ogwang, affidavit number 3 Volume 2 and of Mpagi, affidavit number 4 Volume 2.

Learned counsel submitted that even if the Court were to find that death sentence was recognised under article 22(1) and therefore, lawful, the petitioners still had a right not to be subjected to cruel, inhuman or degrading treatment resulting from death row syndrome. He pointed out that death row henomenon was

recognised world-wide. Even our own Supreme Court had recognised it in *Abuki*'s case (*supra*). He relied on the case of the *Catholic Commission for Justice and Peace in Zimbabwe v Attorney-General and others* [1993] 2 LRC 279 where the Supreme Court of Zimbabwe agreed that the petitioners' five years delay on the death row, in demeaning physical conditions, since the pronouncement of their sentences, went beyond what was constitutionally permissible. The delay caused prolonged mental suffering and was inordinate when compared with the average length of delay in carrying out execution in Zimbabwe. The Supreme Court accordingly, set aside the petitioners' death sentences and substituted them with a sentence of life imprisonment.

Learned counsel also cited *Earl Pratt and Morgan v Attorney-General of Jamaica and others* (case number 27 Volume 3) number 210 of 1986 and 225 of 1987. In that case, the Privy Council stated that for Jamaica where there is only one appeal step, a protracted appeal process beyond two years was tending towards unreasonable delay. If there was inordinate delay in executing the sentence of death, the condemned prisoners, had the right to come to Court to examine whether, owing to the delay, the sentence of death should be carried out.

The Privy Council decided that the death sentence of the appellants should not be carried out because they had delayed on the death row for a long time suffering from death row syndrome.

Relying on the above cases, learned counsel urged us to find that those petitioners who have been on the death row for five years and above since the pronouncement of their respective sentences of death have waited too long. The long delay coupled with the anguish had rendered the execution of those petitioners a cruel, inhuman and degrading punishment.

Mr *Wamambe* did not see anything in articles 24 and 44(*a*) of our Constitution which outlaws delay on the death row for a long time. He submitted that no time limit had been prescribed either in the Constitution or in any statute within which a death sentence has to be executed. The term "a very long time" is subjective.

According to him, article 121 sets out an advisory committee on prerogative of mercy to advise the President on when to grant a pardon etc or to remit part of the sentence imposed. This article also does not prescribe or set a time frame within which to exercise those powers. Had the framers of the Constitution wanted, they would have expressly set the time frame within which a sentence of death should be executed. Courts have no powers to legislate on time limit. The President must be given a chance to exercise his discretion unhinded.

On the anguished expectation of death by the petitioners all the time, Mr *Wamambe* submitted that all of us must think about death, not only the petitioners. Just because the petitioners think about death every day should not lead us to think that death is cruel, inhuman or degrading. The death sentence imposed on the petitioners was after a fair trial and it is lawful. The petitioners should be thankful to live a few days longer.

He pointed out that there are a number of affidavits on record which show that those on the death row make peace with their creators. That is the aspiration of many, the world over. Yet this opportunity is never availed to most victims of murders.

He stated that the *Catholic Commission for Justice and Peace in Zimbabwe* (*supra*) and *Pratt and Morgan* (*supra*) were not relevant authorities. They are distinguishable from the instant case on their facts. In those cases warrants for the petitioners' execution had already been issued, but in the instant case, no such warrant has been issued yet. The petition is, therefore, premature. He stated that the petitioners should have waited until their warrants for execution were signed to petition. According to him, the affidavit of Anthony Okwanga shows that once death warrant was signed, the condemned prisoner was given one week within which to prepare himself and contact his relatives. Mr *Wamambe* submitted that, that one week's period, would give the condemned prisoner ample time to petition the Court.

He invited us to decline to rule on this issue as the Supreme Court of Nigeria did in *Kalu*'s case (*supra*).

The imposing question that arises from the arguments of counsel of both parties is – Do condemned prisoners have any fundamental rights and freedoms left to be protected before they are executed? This question was answered in the *Catholic Commission for Justice and Peace in Zimbabwe* (*supra*) in this way:

> "Prisoners did not lose all their constitutional rights upon conviction, only those rights inevitably removed from them by law either expressly or by implication. Accordingly a prisoner who was sentenced to death still enjoyed the protection of section 15(1) of the Constitution of Zimbabwe in respect of his treatment during confinement."

I respectfully agree with the above. Section 15(1) of the Zimbabwean Constitution is in *pari materia* with our article 24. Condemned prisoners, therefore, did not lose all their constitutional rights and freedoms, except those rights and freedoms that have inevitably been removed from them by law, either expressly or by necessary implication. I have stated earlier in this judgment that death sentence is recognised under article 22(1) of the Constitution of Uganda and, therefore, constitutional. Nevertheless, the condemned prisoners are still entitled to the protection of articles 24 and 44(*a*) of the Constitution in respect of their treatment while they are in confinement before execution. They are not to be subjected to cruel, inhuman or degrading treatment.

The burden is of course, on the petitioners to prove that their fundamental rights and freedoms have been violated. The principle of interpretation of constitutional provisions relating to fundamental rights and freedoms would apply. Such provisions are interpreted liberally.

It was submitted for the petitioners that the intervening long delay on the death row, coupled with the harsh and difficult conditions in the death row, sets in what is known as "death row phenomenon" which renders the carrying out of the otherwise lawful sentence of death a cruel, inhuman or degrading punishment prohibited by articles 24 and 44(*a*). The question raised here is, what is the effect of delay on the death row on the condemned prisoners?

In other jurisdictions, for example, Zimbabwe in the *Catholic Commissioner for Justice and Peace in Zimbabwe* (*supra*), and in Jamaica in *Earl Pratt and Morgan* (*supra*), that question was answered that prolonged delay on the death row had an adverse effect on the condemned prisoner's physical and mental state as a result of what is known as "death row syndrome". Death row syndrome amounts to a cruel, inhuman or degrading treatment. Death row syndrome

arises from the harsh conditions and anguish in the death row. It is recognised world-wide. Uganda as a member of the global village cannot shut its eyes to the fact of death row phenomenon.

Ben Ogwang, the third petitioner herein, deponed that he had lived in the condemned section of Luzira Prison since 1983. He had been transferred to Kirinya prison – Jinja in April 2003. He still remains the longest surviving prisoner on the death row having lived there for 20 years. He deponed of the conditions in the condemned section (death row) of Luzira prison, as follows:

> "The living conditions are extremely depressing. When I was first brought to the condemned section, I and my fellow death row inmates were only allowed 48 (forty eight) minutes a day out of our cells; 24 (twenty four) minutes of this in the morning and the remainder in the evening. This time was normally used for us to empty and clean our chamber pots/buckets. I and my fellow death row inmates spent over 23 hours a day in our cells. In 1991, after Mr Joseph Etima became Commissioner of Prisons, the period we were allowed out of our cells was increased and inmates in Luzira are now confined for approximately only 16-18 hours each day in our cells. Inmates in Kirinya Jinja Prison are only allowed two hours of exercise each day, one hour in the morning and one hour in the evening.
>
> The lights in the cells are left on all nights, making it difficult for us to sleep properly. This normally leaves us in a permanent state of tiredness, lethargy leading to lack of concentration, insomnia and virtually makes us walking zombies.
>
> The cells are very cold at night. There are no provisions to keep out mosquitoes and I and my fellow death row inmates very often suffer from malaria, from which some die.
>
> I and my fellow death row inmates do not have night clothes. Since in most cases I and my fellow death row inmates only have one set of sometimes threadbare and tattered uniform, most of us are forced to sleep naked. This compounds our degradation and humiliation.
>
> When I and my fellow death row inmates lie in our overcrowded cells, there is barely enough room to move around. This makes it easy for contagious diseases like tuberculosis, common cough, colds and other infections in prison to become chronic epidemics.
>
> Sometimes, when prisoners on death row get sick, the hospital staff are reluctant to give us proper medicines and medical attention. The medical staff sometimes tell us that since I and my fellow death row inmates are going to be hanged anyway, they do not need to waste the scarce drugs on us. This increases the depression among prisoners on death row.
>
> The cells in Luzira have no toilet facilities. Because I and my fellow death row inmates spend most of the day inside these cells our urination and defecation happen in open chamber pots. It is very degrading to human dignity for a human being to be forced to defecate or urinate in the presence of others. This is even more humiliating when one is suffering from diarrhoea and has to use the chamber pots frequently.
>
> The resentment of our cellmates when they see us urinating and defecating in the chamber pots, frequently makes our living conditions intolerable, especially if the pots accidentally spill or fill up. There is no toilet paper provided by the prison authorities.
>
> In addition to the indignity of using the chamber pots with others watching, is the additional indignity of having to watch others defecate or urinate in your presence. This is extremely revolting and shocking to one's senses, and difficult to explain to people who do not live with it every day of their lives. Sometimes, this takes place when I and my fellow death row inmates are eating. Then I and my fellow death row inmates have to sleep with an open bucket full of faeces and urine next to us. This is extremely inhuman and degrading treatment. Human beings were not meant to be confined in such circumstances.

The meals are often inadequate and poorly prepared. Many prisoners' stomachs cannot cope with them. The timing of meals is extremely erratic. Sometimes the last meal of the day is served in the morning hours and I and my fellow death row inmates have to cope until the next morning. The quality of the meals is extremely bad. I and my fellow death row inmates normally have one lump or posho and a few beans a day, sometimes served together, and at other times served separately in an erratic, random order.

Life in the condemned section revolves around talking about our impending fate. The gallows are never far from our minds, and horrific stories around in both the prison community and from the guards about previous executions. This adds to the terror I and my fellow death row inmates are forced to confront on a daily basis.

I and my fellow death row inmates are under surveillance at all times and I and my fellow death row inmates are subject to impromptu spot checks.

While I have been in the condemned section, very many inmates have died of diseases related to physical and mental anguish, physical hardship, poor feeding, depression and many other causes. Very many death row prisoners have died within the condemned section in such circumstances, before their executions were carried out. A list of some of those inmates who died is hereto attached and marked as annexure "A".

The presence of the gallows in the condemned section serves as a constant reminder that I and my fellow death row inmates are in prison to be executed.

I have been an inmate of the condemned section of Luzira prison for the past 20 years and hence, I was present when the 1989, 1991, 1993, 1996 and 1999 executions were respectively carried out."

He deponed to the conditions in the condemned prison a week before and immediately after the execution process as follows:

"When there is going to be an execution, I and my fellow death row inmates suffer a living hell on earth. I can describe the circumstances as best as I can below:

While I and my fellow death row inmates are on death row, I and my fellow death row inmates are never informed of when an execution is due to take place or who is going to be executed. At all times, I and my fellow death row inmates, therefore, do not know when they are coming for us. This practice of being left in suspense adds to our constant daily fear, mental anguish and torture.

In the past 20 years, every time an execution was going to take place, I and my death row inmates were left guessing and worried. The signs that indicate to us that an execution is going to take place are an unusual activity. For example, if I and my fellow death row inmates are locked in our cells beyond the usual time, or every time new guards or strange faces emerge, I and my fellow death row inmates immediately break into a panic thinking that an execution is going to take place. There is no other way I and my fellow death row inmates can know when an execution is going to take place or who is to be executed. So I and my fellow death row inmates live in constant fear to any unusual activity. This means that the slightest thing that is different from our normal routine causes us all to become sick and scared. I and my fellow death row inmates face this for several years. This state of fear is based on the condemned prisoners experience just before each previous executions.

Sometimes, while I and my fellow death row inmates are outside exercising, the guards suddenly call for lock-up before the usual time. After I and my fellow death row inmates have been locked up in our cells, the guards come and call out names at random. This is an extremely terrifying event, and a person needs to live it to believe it. At times, I and my fellow death row inmates are all very scared and are praying hard that they do not call our names. If a guard comes and stops outside a condemned prisoner's cell door, the said prisoner usually immediately feels his bowels opening up and ends up soiling himself. In such circumstance, the prisoner is so scared that they

have come to arrest him for execution. This experience is like going through death yourself. I have endured this excruciating experience many times and I still have recurring nightmares about it.

Those who are marked for death and called out of their cells in the above circumstances are literally dragged out of their cells. Many are taken while they are wailing, kicking and screaming and this adds to our total fear, shock and horror. They are handcuffed and leg irons are put on their legs. At that time I and my fellow death row inmates see them for the last time and I and my fellow death row inmates know that they are being led to their death. This is very tormenting on our souls as I and my death row inmates watch in horrific specter. They are then led upstairs to the death chambers. I and my fellow death row inmates then hear them crying, wailing and singing hymns. Immediately, a funeral atmosphere engulfs in the entire condemned section. Because these are the only people who I and my fellow death row inmates live with and interact with in our lives for several years, when they are called to their death, it is as though they are going to kill our nearest and dearest relatives and their death inevitably reminds us of our impending fate. While I and my fellow death row inmates are going through the pain and suffering of our colleagues, I and my fellow death row inmates are also contemplating our own death in this cruel, inhuman and degrading fashion and I and my fellow death row inmates feel as though I and my fellow death row inmates are the ones being hanged from the neck until I and my fellow death row inmates die. This is made particularly worse in that while most death occur in sudden and unexpected fashion, I and my fellow death row inmates know that the condemned prisoner is going to be executed and the said prisoner is going to suffer a very painful and deliberately cruel death. This experience reminds the rest of us that our days of execution is not far at hand and can come at anytime. One cannot describe adequately the horror that goes on in our minds at this time.

The execution process normally takes up to 3 (three) days and during these days I and my fellow death row inmates are not allowed out of our cells. I and my fellow death row inmates are only allowed out of our cells when all the prisoners due to be executed have actually been executed and certified dead.

During this period of forced confinement, I and my fellow death row inmates can hardly move. I and my fellow death row inmates are forced to live, sleep and eat in the same confined conditions, with human excrement overflowing, and there is virtually no appetite for food. One cannot sleep or even converse with cellmates. There is normally a dead silence and each of us is forced to silently contemplate our impending death and grapple with our upcoming fate privately. This is cruelty beyond description."

The above evidence has not been controverted. It portrays a very grim picture of the conditions in the condemned section of Luzira Prison. They are demeaning physical conditions. Such conditions coupled with the treatment meted out to the condemned prisoners during their confinement, as depicted by the above evidence, are not acceptable by Ugandan standards and also by the civilised international communities. Inordinate delays in such conditions indeed constitute cruel, inhuman or degrading treatment prohibited by articles 24 and 44(*a*) of the Constitution of Uganda.

To determine whether there has been an inordinate delay, the period when the condemned prisoner has spent on the death row, in my view, should start from when his/her sentence has been confirmed by the highest appellate Court. Appeal process for a prisoner convicted of a capital offence is mandatory. In Uganda, there is a two step appeal system. An appellant has no control over the time the appeal process should take. While the appeal process is on, a condemned prisoner has hope of his conviction and sentence being reversed. It is

the time taken between the confirmation of his/her sentence and execution, when the condemned prisoner has virtually lost all hopes of surviving execution, that should determine whether or not there has been an inordinate delay.

In Uganda, article 121 of the Constitution sets up an advisory committee to advise the President on the exercise of his discretion on prerogative of mercy. The committee is under the chairmanship of the Attorney-General. That article is operationalised by section 102 of the Trial on Indictments Act and section 34 of the Prisons Act. They provide procedure to be followed to seek prerogative of mercy. Neither the Constitution, nor those statutory provisions have set up a time frame within which the prerogative of mercy process should be completed. The prerogative of mercy is an executive process that comes after the judicial process is concluded.

The evidence available shows that the average delays on death row among the petitioners who have exhausted their appeal process is between five and six years. The uncontroverted evidence of Ben Ogwang above shows that from 1989 to 1999, there had been executions in Luzira Prison after every three years. A good number of the petitioners had already been on death row after their sentences had been confirmed by the highest appellate Court, but the advisory committee did not consider their cases. It is important that the procedure for seeking pardon or commutation of the sentence should guarantee transparency and safeguard against delay.

The spirit of our Constitution is that whatever is to be done under it affecting the fundamental rights and freedoms must be done without unreasonable delay. Section 34(2) of the Interpretation Act (Chapter 3) Laws of Uganda, provides that "where no time is prescribed or allowed within which anything shall be done, that thing shall be done without unreasonable delay." A delay beyond three years after a condemned prisoner's sentence has been confirmed by the highest appellate Court would tend towards unreasonable delay. I, would therefore, agree with Professor *Sempebwa* that those condemned prisoners who have been on death row for five years and above after their sentences had been confirmed by the highest appellate Court have waited longer than constitutionally permissible.

In the result, I would answer issue number five in the affirmative. Consequently, I would allow the petition in part.

Finally, I now turn to the issue number six, namely, whether the petitioners are entitled to the remedies sought. The remedies sought are spelled out at the beginning of this judgment. I shall, therefore, not repeat them here.

Clause 4 of article 137 of the Constitution of Uganda provides as follows:

> "Where upon determination of the petition under clause 3 of this article, the Constitutional Court considers that there is need for redress in addition to the declaration sought, the Constitutional Court may:
>
> (*a*) grant an order of redress; or
>
> (*b*) refer the matter to the High Court to investigate and determine the appropriate redress."

That provision clearly gives this Court wide discretion on the matter of redress in addition to the declarations sought.

In the instant case, having regard to my findings on issues number one, two and four above, I would decline to grant the declarations sought in paragraph 3(*a*)(i), (ii), (iii) and (iv) namely:

3 (*a*) (i) that the death penalty in its nature, and in the manner, process and mode in which it is or can be implemented is a torture, a cruel, inhuman or degrading form of punishment prohibited under articles 24 and 44(*a*) of the Constitution;

(ii) that the imposition of the death penalty is a violation of the right to life protected under article 22(1) of the Constitution;

(iii) that the various provisions of the Laws of Uganda that prescribed death penalty are inconsistent with and in contravention of articles 21, 22(1), 24, 28, 44(c) of the Constitution;

(iv) that section 99(1) of the Trial on Indictments Act (Chapter 23 of Laws of Uganda) and the relevant sections of and provisions made under the Prisons Act, that prescribe hanging as the legal method of carrying out the death sentences are inconsistent with articles 24 and 44(*a*) of the Constitution.

However, in view of my findings on issue numbers three and five above, the following declarations would be made:

(*a*) the various provisions of the Laws of Uganda that prescribe *mandatory* death sentences are inconsistent with articles 21, 22(1), 24, 28, 44(*a*) and 44(*c*) of the Constitution. The affected provisions are sections 23(1), 23(2), 189, 286(2), 319(2) of the Penal Code Act (Chapter 120 of Laws of Uganda) and section 7(1)(*a*) of the Anti-Terrorism Act 14 of 2002 and any other laws that prescribe *mandatory* death sentences.

(*b*) Section 132 of the Trial on Indictments Act (Chapter 23) that restricts the right of appeal against sentence where mandatory sentences are imposed is inconsistent with articles 21, 22(1), 24, 28, 44(*a*) and 44(*c*) of the Constitution.

(*c*) That inordinate delay in carrying out the death sentence after it has been confirmed by the highest appellate Court is inconsistent with articles 24 and 44(*a*) of the Constitution. A delay beyond three years after the appellate Court has confirmed the sentence is considered inordinate.

Orders

1. For the petitioners whose appeal process is completed and their sentence of death has been confirmed by the Supreme Court, the highest appellate Court, their redress will be put on halt for two years to enable the executive to exercise its discretion under article 121 of the Constitution. They may return to Court for redress after the expiration of that period.

2. For the petitioners whose appeals are still pending before an appellate Court:

(*a*) shall be afforded a hearing in mitigation on sentence;

(*b*) the Court shall exercise its discretion whether or not to confirm the sentence;

(*c*) thereafter, in respect of those whose sentence of death will be confirmed, the discretion under article 121 should be exercised within three years;

(*d*) each party would bear his own costs as this petition was taken as a matter of public interest.

As Twinomujuni and Byamugisha JJA both agree, the petition stands allowed in part by a majority of 3 to 2 on the terms stated hereabove.

Twinomujuni JA

1. Introduction

This petition has been brought on behalf of 417 prison inmates all of whom have been sentenced to death by the Courts of Judicature in Uganda. It seeks to challenge the constitutionality of the death penalty, to which they have been condemned, after conviction under various provisions of the Penal Code Act. In particular, the petition makes the following averments:

(*a*) That the imposition of the death penalty is inconsistent and contravenes articles 24 and 44(*a*) of the Constitution of Uganda which prohibit punishment or treatment which is cruel, inhuman and degrading.

(*b*) That in the alternative but without prejudice to the foregoing:

(i) A mandatory death sentence which was imposed on 99% of the petitioners is unconstitutional to the extent that it denies them the right to appeal against and to have their sentence confirmed by the highest appellate Court which is contrary to articles 21, 22, 24, 28 and 44 of the Constitution.

(ii) Death by hanging which is the legally prescribed method of implementing the death sentence is inconsistent and contravenes articles 24 and 44(*a*) of the Constitution.

(iii) The lengthy intervening period between conviction and execution which has been endured by most of the petitioners makes what might have previously and otherwise been a lawful punishment, now exceedingly cruel, degrading and inhuman contrary to articles 24 and 44(*a*) of the Constitution.

The petitioners are seeking the following declarations:

(*a*) That the death sentences which were imposed on the petitioners are unconstitutional and should be set aside and replaced with appropriate sentences.

(*b*) That all the named provisions of the law which prescribe a death sentence and for the method of hanging should be declared unconstitutional as they contravene articles 24 and 44(*a*) of the Constitution.

The petition is supported by numerous affidavits sworn by and on behalf of the 417 petitioners. They consist of affidavits of five petitioners, those sworn by past and present prison officers, various experts in law, medicine, psychiatry, and human rights activists, etc, altogether amounting to 35 affidavits. The respondent filed an answer to the petition supported by a number of affidavits of the respondent's employees and some relatives of victims of various crimes. At the trial, there was no much controversy on the affidavits and virtually all of them were admitted in evidence by the consent of both parties reached at a scheduling conference held before the trial. This petition hinges on constitutional interpretation of article 22(1) against articles 24 and 44(*a*) of the Constitution on one hand and various sections of the Penal Code Act against articles 21, 22, 24, 28 and 44(*a*) of the Constitution on the other hand.

At the hearing of the petition, the petitioners were represented by the following: John W *Katende*, Professor Frederick E *Ssempebwa* assisted by Soogi *Katende*, Kakembo *Katende*, Frederick *Sentomero*, Sim *Katende*, Christopher *Madrama*, Fred *Businge*, Jane *Akiteng*, Nsubuga *Ssempebwa*, Arthur *Ssempebwa*, David *Sempala*, Sandra *Kibenge*. The respondent was represented by Mike *Chibita*, Principle State Attorney; Samuel *Sewanga*, Senior State Attorney; Benjamin *Wamembe*, State Attorney; Godfrey *Atwine*, State Attorney; Freda *Kabatsi*, State Attorney.

2. The scope of the petition

(*a*) There is no dispute that this Court has the power to adjudicate on this petition by virtue of article 13(3) of the Constitution.

(*b*) It was common ground that this Court was not being called upon decide whether a death penalty is desirable in Uganda or not. That is accepted to be the preserve of the people of Uganda through their legislature. The main issue is whether the death penalty is a lawful sentence under our Constitution. This is what this Court is being called upon to decide.

(*c*) It was also common ground that the petitioners were not in this Court to challenge their convictions. They are only challenging the constitutionality of the death sentence.

(*d*) The petitioners were anxious to stress that this petition was not brought with a view of setting convicted criminals free. It only seeks to declare a death penalty unconstitutional and to have it replaced with alternative severe but lawful sentences.

(*e*) The following provisions of the Laws of Uganda which provide for a death sentence or prescribe the method of carrying it out are impugned as being inconsistent with or in contravention of various articles of the Constitution.

(i) Murder contrary to section 189 of the Penal Code Act.

(ii) Robbery with aggravation contrary to section 286(2) of the Penal Code Act.

(iii) Treason contrary to section 23(1) and (2) of the Penal Code Act.

(iv) Terrorism contrary to section 7(1)(*a*) of the Anti-Terrorism Act 14 of 2002.

(v) Kidnapping with intent to murder contrary to section 243 of the Penal Code Act.

(vi) Rape contrary to section 124 of the Penal Code Act.

(vii) Defilement contrary to section 129 of the Penal Code Act.

(viii) Treason contrary to section 23(3) of the Penal Code Act.

(ix) Terrorism contrary to section 7(*b*) of the Anti-Terrorism Act 14 of 2002.

(x) Aiding and abetting Terrorism contrary to section 8 of the Anti-Terrorism Act, number 14 of 2002.

(xi) Establishment of terrorism Institutions contrary to section 9(1) and (2) of the Anti-Terrorism Act 14 of 2002.

(xii) Section 99(1) of the Trial on Indictments Act.

3. The issues

Consideration and determination of this petition will be limited to the following six issues which were agreed upon by both parties at the beginning of the trial:

1. Whether the death penalty prescribed by various laws of Uganda constitutes cruel, inhuman or degrading treatment or punishment contrary to article 24 of the Constitution.

2. Whether the various laws of Uganda that prescribe death upon conviction are inconsistent with or in contravention of articles 24 and 44 or any other provision of the Constitution.

3. Whether the various laws of Uganda that prescribe mandatory sentences of death upon conviction are inconsistent with or in contravention of articles 21, 22, 24, 28, 44 or any other provision of the Constitution.

4. Whether section 99(1) of the Trial on Indictments Act, which prescribes hanging as the legal method of implementing the death penalty is inconsistent with and in contravention of articles 24, 44 or any other provision of the Constitution.

5. Whether execution of the petitioners who have been on death row for a long period of time is inconsistent with and in contravention of articles 24, 44 or any other provision of the Constitution.

6. Are the petitioners entitled to any remedies?

The main issues are one and two above. The rest are only in the alternative if the main issues are answered in the negative.

4. General principles of constitutional interpretation

In Uganda, the principles of constitutional interpretation are well settled. They have been expounded upon by the Supreme Court and the Constitutional Court and at great length in the following cases:

(i) *Tinyefuza v Attorney-General*, constitutional petition number 1 of 1996.

(ii) *Attorney-General v Tinyefuza*, constitutional appeal number 1 of 1997.

(iiii) *Abuki v Attorney-General*, constitutional case number 2 of 1997.

(iv) *Attorney-General v Abuki* [2001] 1 LRC 63

(v) *Ssemogerere and another v Attorney-General*, constitutional petition number 3 of 2000.

And many other decisions of the two Constitutional Courts.

Here I shall only summarise those principles which are relevant for determination of this particular petition:

(*a*) The principles which govern the construction of status also apply to the construction of constitutional provisions. The widest construction possible in its context should be given according to the ordinary meaning of the words used, and each general word should be held to extend to all ancillary and subsidiary matters. In certain contexts, a liberal interpretation of the constitutional provisions may be called for.

(*b*) A constitutional provision containing a fundamental right is a permanent provision intended to cater for all time to come and, therefore, while interpreting such a provision, the approach of the Court should be dynamic, progressive and liberal or flexible keeping in view ideals of the people, socio-economic and political-cultural values so as to extend the benefit of the same to the maximum possible.

(*c*) The entire Constitution has to be read as an integrated whole, and no one particular provision destroying the other but each sustaining the other. This is the rule of harmony, rule of completeness and exhaustiveness and the rule of paramountcy of the written Constitution.

(*d*) The words of the written Constitution prevail over all written conventions, precedents and practices.

(*e*) No one provision of the Constitution is to be segregated from the others and be considered alone, but all the provisions bearing upon a particular subject are to be brought into view and be interpreted as to effectuate the greater purpose of the instrument.

(*f*) Article 126(1) - Judicial power is derived from the people and shall be exercised by the Courts established under the Constitution in the name of the people and in conformity with the law and with the values, norms and aspirations of the people.

(*g*) The Constitution is the supreme law of the land and forms the standard upon which all other laws are judged. Any law which is inconsistent with or in contravention of the Constitution is null and void to the extent of the inconsistency.

(*h*) Fundamental rights and freedoms guaranteed under the Constitution are to be interpreted having general regard to evolving standards of human dignity.

(*i*) Decisions from foreign jurisdictions with similar constitutions as ours are useful in helping in the interpretation of our Constitution.

(*j*) The decisions of international Courts and international bodies interpreting the inherent meaning of fundamental rights are relevant to the interpretation of the fundamental rights and freedoms of the individual in our Constitution.

(*k*) Both purpose and effect are relevant to the determination of the constitutional validity of a legislative or constitutional provision.

This summary is not exhaustive but contains the most important principles of constitutional interpretation that must guide this Court in the task at hand.

5. Determination of issues

(A) Issues number one and two

I find it very convenient to deal with these two issues together because they are interrelated, they are:

1. Whether the death penalty prescribed by various laws of Uganda constitutes cruel, inhuman or degrading treatment or punishment contrary to article 24 of the Constitution.

2. Whether the various laws of Uganda that prescribe death upon conviction are consistent with or in contravention of articles 24, 44 or any other provision of the Constitution.

Mr John *Katende*, lead counsel for the petitioners explained that these two issues really posed two questions, namely:

(*a*) Does the death penalty prescribed in Uganda Penal Laws contravene article 24 of the Constitution?

(*b*) If so, does our Constitution permit it?

We are being called upon to interpret the validity of a death sentence in light of articles 22(1), 24 and 44(*a*) of the Constitution. The three articles provide:

"22. Protection of right to life

(1) No person shall be deprived of life intentionally except in execution of a sentence passed in a fair trial by a Court of competent jurisdiction in respect of a criminal offence under the laws of Uganda and the conviction and sentence have been confirmed by the highest appellate Court.

24. No person shall be subjected to any form of torture, cruel, inhuman or degrading treatment or punishment.

44. Notwithstanding anything in this Constitution, there shall be no derogation from the enjoyment of the following rights and freedoms:

(*a*) freedom from torture, cruel, inhuman or degrading treatment or punishment."

Mr John *Katende*, learned counsel for the petitioners submitted that a death penalty was cruel, inhuman and degrading punishment. He submitted that since article 24 of the Constitution did not provide a definition of those words, the Court had to interpret the words in their natural English dictionary meaning. He referred us to the Supreme Court decision of *Attorney-General v Abuki*

(*supra*) especially the judgment of Honourable Justice Oder JSC in which he stated that the words had to be interpreted in accordance with their dictionary meaning. In the *Abuki* case, the Supreme Court held that banishing a person from his home area for an offence of practicing witchcraft was cruel, inhuman and degrading punishment within the meaning of article 24 of the Constitution. Mr *Katende* also relied on the case of *Kyamanywa v Attorney-General* constitutional reference number 10 of 2000, in which this Court held that corporal punishment was cruel, inhuman and degrading punishment within the meaning of article 24 of the Constitution. In his view, if banishment and corporal punishment could be declared unconstitutional, then the death sentence which is more sordid and barbaric should be declared to contravene article 24 of the Constitution and to be null and void. He relied on two other authorities, one from the Republic of Tanzania and another from the Republic of South Africa. In the Tanzanian cases of *Republic v Mbushuu and another* [1994] 2 LRC 335 and *Mbushuu and another v Republic* [1995] 1 LRC 217, both the High Court of Tanzania and the Court of Appeal of that country held that a death sentence was inherently cruel, inhuman and degrading punishment. In the case of *State v Makwanyane and another* [1995] 1 LRC 279, the Constitutional Court of the Republic of South Africa also held, after reviewing several common law jurisdiction decisions on the matter, that a death sentence was cruel, inhuman and degrading punishment. Mr *Katende* submitted that since these foreign decisions had been followed with approval by the Supreme Court of Uganda in the case of *The Attorney-General v Abuki* (*supra*), then the cases together with the *Kyamanya* case were binding on us. He invited us to hold that a death sentence in Uganda was inconsistent with article 24 of the Constitution because it is cruel, inhuman and degrading.

On whether the Constitution of Uganda permitted such a punishment, Mr *Katende* invited us to answer the question in the negative. He submitted that on reading article 22(1) of the Constitution, one first gets the impression that a death penalty is permitted by the Constitution. He argued, however, that article 44(*a*) of the Constitution left no doubt whatsoever that no derogation could be permitted on the provisions of article 24 of the Constitution. He especially invited us to note that article 44 began with the underlined words as follows:

> "*Notwithstanding anything in this Constitution*, there shall be no derogation from the enjoyment of the following rights and freedom:
>
> (*a*) freedom from torture, cruel, inhuman or degrading treatment or punishment." (emphasis added)

In his view, this meant that the freedom from torture, cruel, inhuman or degrading treatment or punishment was absolute, no matter what anything else in the Constitution, including article 22(1) of the Constitution, provided. He again cited the *Abuki* case (*supra*) and other decisions of this Court in which it was categorically held that the right to freedom from cruel, inhuman and degrading treatment or punishment is absolute. He invited us to hold that the Constitution of Uganda does not permit any cruel, inhuman and degrading punishment or treatment.

Finally on this issue, Mr *Katende* invited us not to rely on public opinion when deciding whether a death penalty is cruel, inhuman or degrading punishment. He submitted that up to date, there are no accurate figures as to where the people of Uganda stand with regard to the issue of death sentence. There is

no reliable poll that has been taken on the matter. Even the two reports of the Constitutional Review Commissions by Chief Justice Odoki and Professor F *Sempebwa* do not present an accurate picture on the matter because the sample of the population which was interviewed on the matter is too small to reflect an accurate picture of what the population wants.

Mr *Katende* submitted that the legal position with regard to the role of public opinion on the issue of the death sentence was that public opinion is irrelevant. According to him, the duty of the Court was to decide in accordance with the Constitution and the Court should not be reduced to that of an election returning officer. It would set a very dangerous precedent if every time a Constitutional Court had to decide on a constitutional provision it had to canvass and seek public opinion so that it decides in accordance with it. That would make the role of the Constitution and the Constitutional Court useless and meaningless. Mr *Katende* relied heavily on the South African case of *State v Makwanyane* (*supra*) in which the Constitutional Court of South Africa held that public opinion was irrelevant to the issue of the death penalty and in any case, he quoted,

> "No where was the death penalty ever abolished with the public cheering."

He invited us to be bold and to interpret the Constitution according to the law and not according to public opinion. In his view, no matter what the people of Uganda thought, a death penalty is inherently cruel, inhuman and degrading punishment. He invited us to so hold.

In reply, Mr Benjamin *Wamambe*, the learned State Attorney who argued the two issues on behalf of the respondent, submitted that a death penalty in Uganda was not cruel, inhuman or degrading punishment within the meaning of articles 24 and 44(*a*) of the Constitution. He contended that article 22(1) of the Constitution which provided for the right to life specifically excepted a death sentence from the application of article 24 if it is imposed in the following circumstances:

(i) In execution of a death sentence.

(ii) Passed in a fair trial by a Court of competent jurisdiction.

(iii) In respect of a criminal offence under the laws of Uganda.

(iv) The conviction and sentence have been confirmed by the highest appellate Court.

In his view, the question for this Court to decide was not whether the death penalty was cruel, inhuman or degrading punishment in the ordinary sense of those words but whether the death penalty is torture, cruel, inhuman or degrading within the meaning of article 24 of the Constitution. He submitted that article 24 was never intended to apply to a death sentence. He contended that articles 22 and 23 are exceptions to article 24. The framers of the Constitution could not have forgotten those provisions when they drafted article 24. If they had intended to take away the right recognised by article 22(1), they would have stated so in very clear terms without ambiguity. In his view, the combined effect of articles 22, 23 and 24 was to redress the bad history of our country which was characterised by extra judicial killings, unlawful detentions and torture of detained people. Article 24 was intended to apply to torture, cruel, inhuman or degrading treatment or punishment outside the judicial process, like the heinous crimes which were committed by the petitioners.

Addressing his mind to the cases of *Abuki* and *Kyamanywa* (*supra*) learned State Attorney submitted that the cases did not apply to this case and were distinguishable. First, the two cases did not concern a death sentence at all. They dealt with banishment and corporal punishment respectively.

Secondly, the constitutional interpretation involved a statute as against the Constitution, whereas in the instant case, the Court is interpreting one article of the Constitution against another article of the same Constitution.

Thirdly, in both *Abuki* and *Kyamanywa* the Court was dealing with additional punishment. The petitioners had already been sentenced to periods of imprisonment when Abuki was banished and Kyamanywa was ordered to receive additional corporal punishment. In the instant case, we are dealing with a situation where the petitioners have received only one sentence, the death sentence.

Mr *Wamambe* also submitted that the South African case of *Makwanyane* (*supra*) was not applicable to the Ugandan situation because in the South African Constitution, the right to life was absolute whereas in Uganda it is qualified under article 22(1) of the Constitution. Also in South Africa, a death penalty was found to be applied in a discriminatory manner and was not applicable to all citizens of that country. It did not satisfy the proportionality test and had to be abolished. In Uganda, a death penalty applies to everyone equally and satisfies the proportionality test.

On the implications of article 44(*a*) which began with the words “notwithstanding anything in this Constitution” and whether it meant that the exception to the right to life in article 22(1) of the Constitution was wiped out by the combined effect of articles 24 and 44, the learned State Attorney submitted that article 44(*a*) only applied to torture, cruel, inhuman and degrading treatment or punishment outside due process of the law. He contended that the right to life in Uganda is not absolute and indeed, if the Constitutional Assembly had intended to make it absolute, it would have made it non-derogable in article 44 as it did in respect of articles 24, 25 and 28 of the Constitution.

On the role of public opinion in the determination of whether a death penalty was cruel, inhuman or degrading treatment or punishment, Mr *Wamambe* submitted that in Uganda public opinion was a relevant factor because of our unique article 126 of the Constitution which requires Courts to exercise judicial power in the name of the people and in conformity with law and with the values, norms and aspirations of the people. He submitted that the holding in the *Makwanyane* case that public opinion was irrelevant could not apply to Uganda because in South Africa, they did not have the equivalent of our article 126 of the Constitution. Mr *Wamambe* invited us to hold that there was no merit in the first and second framed issues of this petition and to dismiss them accordingly.

I now turn to the determination of the merits of questions posed by the first two issues of this petition, namely:

(*a*) is a death sentence prescribed by Uganda penal laws cruel, inhuman or degrading treatment or punishment within the meaning of article 24 of the Constitution?

(*b*) If so, is it authorised by the Constitution?

I have read all affidavits filed on behalf of both parties to this petition. They portray the death sentence as sordid, barbaric and an extremely harrowing

experience. I have also carefully studied all the authorities, local and foreign, together with the relevant legislative and constitutional provisions. I have also studied all the international conventions on the death penalty. I have no hesitation whatsoever in stating categorically that a death sentence is cruel, inhuman and degrading punishment within the meaning attributed to those words in *Attorney-General v Abuki*, *Kyamanywa v Uganda*, *Republic v Mbushuu*, *State v Makwanyane*, (all *supra*), *Kalu v The State (Nigeria)* [1998] 13 NWLR 531 and several others cited from the USA, the Caribbean countries, India and Bangladesh. However, that is not the issue which falls for determination now. The issue is: is the death penalty in Uganda cruel, inhuman or degrading punishment or treatment within the meaning of article 24 of the Constitution of Uganda?

Article 22(1) of our Constitution provides:

> "No person shall be deprived of life intentionally *except in execution of a sentence passed in a fair trial by a Court of competent jurisdiction in respect of a criminal offence under the laws of Uganda and the conviction and sentence have been confirmed by the highest appellate Court*." (emphasis added)

In short, the right to life is guaranteed *except* where deprivation of life is done in execution of a death sentence passed by the Courts in accordance with the Constitution and the laws of Uganda. My simple understanding of this provision is that though the right to life is guaranteed, the right is not absolute because there is one exception where life can be lawfully extinguished. That is when carrying out a death penalty lawfully imposed by Courts. The next article of the Constitution is article 23, which grants to liberty of the exceptions stated in the article.

Next, is article 24. It states:

> "No person shall be subjected to *any form* of torture, cruel, inhuman or degrading treatment or punishment." (emphasis added)

This article makes no reference to article 22(1). Did the framers of the Constitution forget that they had just authorised a death sentence in article 22(1)? Is a death sentence something they could have forgotten so easily and so quickly? Personally, I think not. The framers of the Constitution could not have one breath authorised a death sentence and in another outlawed it. They must have meant that all forms of torture, cruel, inhuman or degrading treatment or punishment are prohibited except as authorised in article 22(1) of the Constitution.

We must remember that unlike in *Abuki* and *Kyamanywa* cases where the Court was interpreting a statute against a provision of the Constitution, in this petition we are dealing with the interpretation of article 22(1) against article 24, both provisions of the Constitution. Where a Constitution creates derogation in clear language to a right or freedom guaranteed under the Constitution, then derogation will stand despite the provisions of articles 43 and 44 of the Constitution. They only exception is where the derogation purports to take away a fundamental human right or freedom guaranteed under Chapter IV of this Constitution. In the instant case, article 22(1) provides for derogation to the right to life. The derogation is an exception to acts of torture, or cruel inhuman or degrading treatment or punishment under article 24 of the Constitution. The language used is very clear and unambiguous. Therefore, it is clear to me that a death sentence in Uganda cannot be one of the acts prohibited under

article 24 of the Constitution. It is an exception to the article. I would hold that it is not cruel, inhuman or degrading treatment or punishment within the meaning of article 24 of the Constitution. I would answer the first issue in the negative.

This holding indirectly answers the second question, namely whether the death sentence is authorised by the Constitution. I have found that article 22(1) authorises a death sentence carried out in execution of a lawful Court order. It is an exception to and is not affected by article 24. It is also not affected by article 44(*a*) of the Constitution which states:

> "Notwithstanding anything in this Constitution, there shall be no derogation from the enjoyment of the following rights and freedoms:
>
> (*a*) freedom from torture, cruel, inhuman or degrading treatment or punishment (article 24),
>
> (*b*) freedom from slavery or servitude (article 25(*a*)),
>
> (*c*) the right to a fair hearing (article 28),
>
> (*d*) the right to an order of *habeas corpus*."

Article 44(*a*) only covers those acts which have not been specifically excepted as in article 22(1) of the Constitution. The right to life is not absolute. It is qualified. I agree with counsel for the respondent that if the framers of the Constitution had intended to make it absolute, the right to life would have been one of the items spelt out in article 44 of the Constitution.

In Uganda, the death penalty is so clearly spelt out and authorised by the Constitution that it is not necessary to resort to public opinion in order to determine whether it is cruel, inhuman or degrading treatment or punishment or whether it is authorised by the Constitution. However, I do not agree that public opinion is an irrelevant factor. It is a very relevant factor because of article 126(1) of the Constitution which states:

> "Judicial power is derived from the people and shall be exercised by the Courts established under this Constitution in the name of the people and in conformity with the law and with the values, norms and aspirations of the people."

In the interpretation of this Constitution and indeed any other law, the views of the people, wherever they can be reasonably accurately ascertained, must be taken into account. This is a command which no Court can ignore. There is no equivalent provision in the Constitutions of Tanzania or the Republic of South Africa. Their authorities on this matter are not very helpful to Uganda.

(B) Issue number three.

The issue here is whether various laws of Uganda that prescribe mandatory death sentences upon conviction, and bar appeals from these sentences, are inconsistent with or in contravention of articles 20, 21, 22, 24, 28, 44 or any other provision of the Constitution.

The following four provisions of our laws provide for mandatory sentences:

(*a*) section 189 of the Penal Code Act (Punishment for Murder).

(*b*) section 286(2) of the Penal Code Act (Punishment for Aggravated Robbery).

(*c*) section 23(1) and (2) of the Penal Code (Punishment for Treason).

(*d*) section 7(1)(*a*) of the Anti-Terrorism Act 14 of 2002, (Punishment for Acts of Terrorism Leading to the Death of a Person).

It was submitted by Professor *Sempebwa* on behalf of the petitioners that the above mandatory death penalty provisions infringe on the rights of the petitioners guaranteed under the following articles of the Constitution:

(i) Article 22(1) and 44(*c*) by denying them the right to a fair trial on the question of sentencing, a non-derogable right;

(ii) Article 22(1) by denying them the right to have their sentences confirmed by the highest appellate Court.

(iii) Article 22(1) by infringing on the separation of powers between Judiciary and the legislature.

(iv) Articles 28 and 44(*c*) by denying them a right to a fair hearing on the question of sentence.

(v) Articles 24 and 44(*a*) by providing a mandatory sentence which is cruel, inhuman and degrading in that the individual circumstances of each petitioner and each case are not taken into account during sentencing, a non-derogable right.

(vi) Article 21(1) by denying them the right to equality before the law.

Articles: 22(1), 28 and 44(c)

On the infringements to the right to a fair hearing and a fair trial, Professor Sempebwa submitted that no trial for a serious crime attracting a death penalty could be said to be a fair trial when the accused person is denied the right to be heard on the question of sentencing in the trial Court and appellate Courts up to the highest Court. He argued that each individual case has got special circumstances that should be heard by the Court after conviction but before sentencing. No two offences are committed in exactly the same way or under similar circumstances. In his view, a law which provides that all persons convicted of similar crimes under the law must automatically suffer death, violates the right to a fair trial and a fair hearing guaranteed under articles 22(1), 28 and made non-derogable by article 44(c) of the Constitution. All such provisions of the law which denied an accused person of a right to a fair trial or fair hearing should be declared unconstitutional, and therefore null and void. He relied on the case of Rayes v The Queen [2002] 2 AC 235 and Mithu v State of Punjab [1983] SOL case number 26.

Article 22(1): Confirmation of Sentence

Professor Sempebwa argued that in order for a sentence passed under article 22(1) to be lawful, it had to be confirmed by the highest appellate Court. According to him, this meant that the Court had a discretion to confirm or not to confirm the sentence. Where the death penalty is mandatory, that discretion is removed from the highest appellate Court in violation of article 22 of the Constitution. This reduces the highest appellate Court into a rubber stamp of sentences pre-ordained by the legislature which is unconstitutional. He cited the case of Spencer v The Queen and Hughes v The Queen both cited with approval in Rayes v The Queen (supra) in which it was held that a Court must have the discretion to take into account circumstances of an individual offender and offence in determination whether death penalty should be imposed.

Infringement of article 126: Separation of Powers

Professor Sempebwa also argued that the mandatory death sentence offended the basic separation of powers between the legislature and the Judiciary. According to counsel, the role of the legislature was to prescribe sentences but it was the duty of the Judiciary to decide on the appropriate sentence for each individual

accused persons within the parameters set by the legislature. When the legislature prescribes a mandatory death sentence on all persons committing a given offence, irrespective of individual mitigating factors, it usurps the rule of Judiciary. For this proposition he relied on the case of Mithu v State of Punjab (supra).

Violation of article 24

Professor Sempebwa submitted that on the first two issues of this petition, the petitioners had shown that a death penalty was cruel, inhuman and degrading treatment or punishment. He contended that provisions of the law prescribing a death penalty offended article 24 of the Constitution.

In conclusion, Professor *Sempebwa* cited numerous decisions of:

(*a*) The Privy Council.

(*b*) The Supreme Court of United States of America.

(*c*) The Supreme Court of India.

(*d*) The United Nations Human Rights Committee.

In support of his submissions that mandatory death sentence violated the constitutional rights of the petitioners guaranteed by our Constitution in articles 21, 22(1), 24, 28 and 44(*c*), he asked us to declare that all provisions in our law which prescribed a mandatory death penalty were unconstitutional and therefore null and void.

In reply, Mr Benjamin *Wamambe* advanced the following arguments on behalf of the respondent:

(*a*) Criminal trial procedure in Uganda is conducted subject to article 28 of the Constitution and in accordance with well established rules which emphasise the right to a fair trial. In case of cases which attract a death sentence, the accused are accorded a fair trial in accordance with the Trial on Indictments Act. From the beginning of the trial in the High Court up to the highest appellate Court, the Courts retain the discretion to evaluate the evidence and to impose a suitable sentence after conviction. It is not true to say that the Courts only rubber stamp the mandatory death sentence pre-ordained by the legislature. The Courts have the power to confirm or not to confirm any sentence passed by a lower Court. Therefore, a mandatory death sentence does not deny an accused person the right to a fair trial as required by article 22(1) of the Constitution or the right to a fair hearing as guaranteed by articles 28 and 44(*e*) of the Constitution.

(*b*) A mandatory death penalty does not contravene article 21 of the Constitution. This article guarantees equal treatment before the law. Article 21(5), however, provides that:

"Nothing shall be taken to be inconsistent with this article which is allowed to be done under any provision of this Constitution."

This means that what is authorised under the Constitution cannot be said to contravene article 21 of the Constitution. Since the death penalty is expressly authorised by article 22(1) of the Constitution, it cannot be said to contravene article 21 of the Constitution.

(*c*) A mandatory death sentence is simply a sentence like any other sentence. It has already been shown by argument when dealing with issues one and two of this petition, that a death sentence is not cruel, inhuman or degrading or punishment within the meaning or article 24 of the Constitution. Therefore, a law prescribing a mandatory death sentence does not contravene article 24 of the Constitution.

(*d*) Under article 79 of the Constitution, it is the duty of Parliament to make laws for protection of society. It therefore, has the duty to respect public opinion and to translate their wishes into law. Parliament therefore, has the power to pass a law prescribing a mandatory death sentence in response to the wishes of the people. The Courts are also enjoined by article 126 of the Constitution to respect the law, the norms, values and aspirations of the people. The Courts have a duty to enforce a mandatory death sentence authorised by law.

(*e*) All the authorities cited in support of this issue are distinguishable:

(i) They are all from countries where a death sentence has been held to be cruel, inhuman or degrading treatment or punishment. This is not the case in Uganda.

(ii) They all state that a mandatory death penalty deprives the accused of the right to present to Court his individual mitigating factors before an appropriate sentence is passed on him. However, in Uganda, all those factors are exhaustively gone into before conviction and it would not be necessary to go into them again after conviction.

(iii) They all originated from countries which have *laissez faire* culture, especially in Europe and USA whereas in Uganda, we accept our rights and freedoms to be controlled by law and we approve of it.

(iv) The authorities came from countries which do not have the equivalent of our article 126 which requires our Courts of law to administer justice in conformity with law and the values, norms and aspirations of the people of Uganda and not of USA, India, South Africa, Namibia or any other country.

(v) In Uganda, all that is required is a strict observance of article 28 of the Constitution. Once that is done, you cannot talk of unfair hearing in criminal proceedings.

Finally, the learned State Attorney invited us to hold that various laws of Uganda which prescribe mandatory death sentences do not contravene articles 21, 22, 24, 28 and 44(*c*) of the Constitution and are not inconsistent with those articles or any other article of the Constitution. He asked us to answer issue number three in the negative.

I now turn to the merits of the third issue of this petition. I have held on the first and second issues that the death sentence prescribed by article 22(1) of the Constitution is an exception to the prohibitions contained in article 24 and therefore the sentence is not cruel, inhuman or degrading treatment or punishment. I have also held that the death sentence is authorised by the Constitution. It is now time to examine whether the Constitution gives Parliament the power to prescribe a mandatory death sentence or to prescribe a death sentence for any criminal offence as it wishes. Article 22(1) of the Constitution provides:

> "No person shall be deprived of life intentionally except in execution of a sentence passed in *a fair* trial by a Court of competent jurisdiction in respect of a criminal offence under the laws of Uganda and the *conviction* and *sentence* have been *confirmed* by the highest appellate Court." (emphasis added)

Under this article, a person can only be deprived of life lawfully:

(*a*) In execution of a sentence passed in *a fair trial* by a Court of competent jurisdiction.

(*b*) In respect of a criminal offence under the laws of Uganda.

(*c*) The conviction and sentence have been *confirmed* by the *highest appellate Court*.

The case for the petitioners is that a mandatory death penalty deprives the person convicted of a capital offence of his inherent right to be heard in mitigation before the sentence is imposed. To refuse to hear an accused person on any aspect of his/her trial affecting his conviction or sentence would be a denial of his right to a fair hearing guaranteed under article 28 of the Constitution. Article 22 also requires that any conviction and sentence passed upon the conviction must be confirmed by the highest appellate Court. If an accused person is not accorded a fair trial within the meaning of article 28 of the Constitution and the conviction and the sentence passed on him are not confirmed by the highest appellate Court, then if the sentence is a death sentence, it will be unconstitutional as contravening article 22(1) of the Constitution.

I think there is no doubt that in Uganda, once a person is convicted of an offence on which the law prescribes a mandatory death sentence, he is not given an opportunity to say anything in mitigation before a death sentence is pronounced against him. Section 98 of the Trial on Indictments Act provides:

> "The Court, *before passing any sentence other than a sentence of death*, may make such inquiries as it thinks fit in order to inform itself as to the proper sentence to be passed, and may inquire into the character and antecedents of the accused person either at the request of the prosecution or the accused person and may take into consideration in assessing the proper sentence to be passed such character and antecedents including any other offences committed by the accused person whether or not he or she has been convicted of those offences." (emphasis added)

I would have thought that if anyone deserved to be heard after conviction, it should be that person on whom a death sentence is about to be pronounced. Yet the above quoted provision of the Trial on Indictments Act gives that opportunity to everyone else convicted of any crime except the one liable to be sentenced to death. From the minute the conviction is pronounced in the High Court up to the confirmation of conviction in the Court of Appeal and the Supreme Court, the sentence remains automatically the same, death. That is the sentence pre-ordained by Parliament.

This is the first time that this type of case has come up in Uganda. However, a mandatory death sentence has been a subject of constitutional battles in Courts of law in the countries of the common law jurisdiction and in international human rights Courts.

In 1983 the case *of Mithu v State of Punjab* (*supra*) posed such a challenge to the Supreme Court of India. Section 303 of the Indian Penal Code provided:

> "Punishment for murder by life convict-whoever (*sic*), being under a sentence of imprisonment for life, commits murder, shall be punished with death."

The issue before the Court was whether this section infringed article 21 of the Indian Constitution which provided:

> "No person shall be deprived of his life or personal liberty except according to procedure established by law."

It was argued for the petitioner that section 303 was wholly unreasonable and arbitrary and violated article 21 of the Constitution to the extent that it authorised deprivation of life unjustly and unfairly and is therefore unconstitutional. The Supreme Court of India concurred. The Court found that:

> "If the Court has no option save to impose the sentence of death it is meaningless to hear the accused on the question of sentence and it becomes superfluous to state the reasons for

> imposing the sentence of death. The *blatant reason for imposing the sentence of death in such a case is that the law compels the Court to impose that sentence*." (emphasis added)

Indeed this is what the Courts in Uganda are compelled to do. Every so often, like King Herod when he was passing a death sentence on Jesus, you hear judges confess in Court that they have no choice but to arbitrarily pass a death sentence since they have no power to consider whether it is appropriate or not.

The Supreme Court of India asked some pertinent questions in the *Mithu* case:

> "Is a law which provides for the sentence of death for the offence of murder, without affording to the accused an opportunity to show cause why that sentence should not be imposed, just and fair?
>
> Secondly, is such a law just and fair if, in the very nature of things, it does not require the Court to state the reasons why the Supreme penalty of law is called for? It is not arbitrary to provide that whatever may be the circumstances in which the offence of murder was committed, the sentence of death shall be imposed upon the accused?"

It should not be noted that in Uganda, mandatory death sentences are not only imposed on murder convicts but also those convicted of treason, terrorism and aggravated robbery.

The Supreme Court of India went on to discuss the folly of the mandatory sentence in these terms:

> ". . . a provision of law which deprives the Court of the use of its wise and beneficent discretion in a matter of life and death, without regard to the circumstances in which the offence was committed and, therefore, without regard to the gravity of the offence, cannot but be regarded as harsh, unjust and unfair. It has to be remembered that the measure of punishment for an offence is not afforded by the label which that offence bears, as for example 'theft,' 'breach of trust' or 'murder.' The gravity of the offence furnishes the guideline for punishment and one cannot determine how grave the offence is without having regard to the circumstances in which it was committed, its motivation and its repercussions. *The legislature cannot make relevant circumstances irrelevant, deprive the Courts of their legitimate jurisdiction to exercise their discretion not to impose the death sentence in appropriate cases, compel them to shut their eyes to mitigating circumstances and inflict upon them the dubious and unconscionable duty of imposing a preordained sentence of death*. Equity and good conscience are the hallmarks of justice. The mandatory sentence of death prescribed by section 303, with no discretion left to the Court to have regard to the circumstances which led to the commission of the crime, is a relic of ancient history. In the time in which we live, that is the lawless law of military regimes. We, the people of India, are pledged to a different set of values. *For us, law ceases to have respect and relevance when it compels the dispensers of justice to deliver blind verdicts by decreeing that no matter what the circumstances of the crime, the criminal shall be hanged by the neck until he is dead*." (emphasis added)

The Indian Court concluded:

> "A standardised mandatory sentence, and that too in the form of a sentence of death, fails to take into account the facts and circumstances of each particular case. It is those facts and circumstances which constitute a safe guideline for determining the question of sentence in each individual case . . . section 303 excludes judicial discretion. *The scales of justice are removed from the hands of the judge as soon as he pronounces the accused guilty of the offence. So final, so irrevocable and so irresistible is the sentence of death that no law which provides for it without involvement of the judicial mind can be said to be fair, just and reasonable*. Such a law must be stigmatised as arbitrary and oppressive. Section 303 is such a law and it must go the way all-bad laws go. Section 303 of the Indian Penal Code must be struck down as unconstitutional." (emphasis added)

Section 303 has got its equivalent in Uganda which I have pointed out earlier in this judgment. The above consideration of section 303 would equally apply to our equivalent provisions. Can a person tried and sentenced to death under such arbitrary, unfair and unjust laws be said to have received a fair trial within the meaning of article 22(1) or a fair hearing within the meaning of article 28 of the Constitution?

The decision of the Indian Supreme Court in *Mithu* is not an isolated decision. It was cited with approval in the recent decision of the Privy Council in *Reyes v Queen* [2002] UK PC II. In this case, the Privy Council was considering an appeal from the Court of Appeal of Belize in which the defendant Reyes was given a mandatory sentence of death for murder. The Privy Council reviewed most of the cases decided in the Commonwealth and the United States on the subject for mandatory death sentence including the *Mithu* case (*supra*). The summary of the issue which lay for determination and the Court's conclusion are to be found at 255 of the report as follows:

> "8(2) Counsel has claimed that the mandatory nature of the death sentence and its application in the author's case, constitute a violation of articles 6(1), 7 and 26 of the Covenant. The state party has replied that the death sentence is only mandatory for murder, which is the most serious crime under the law, and that this in itself means that it is a proportionate sentence. The committee notes that the mandatory imposition of the death penalty under the laws of the State is based solely upon the category of crime for which the offender is found guilty, without regard to the defendant's personal circumstances or the circumstances of the particular offence. The death penalty is mandatory in all cases of 'murder' (*intentional* acts of violence resulting in the death of a person). *The committee considers that such a system of mandatory capital punishment would deprive the author of the most fundamental of rights, the rights of life, without considering whether this exceptional form of punishment is appropriate in the circumstances of his or her case*. The existence of a right to seek pardon or commutation as required by article 6, paragraph 4, of the covenant, does not secure adequate protection to the right of life, as these discretionary measures by the executive are subject to a wide range of other considerations compared to appropriate judicial review of all aspects of a criminal case. *The committee finds that the carrying out of the death penalty in the author's case would constitute an arbitrary deprivation of his life in violation of article 6, paragraph 1, of the covenant*." (emphasis added)

I am not persuaded by the argument of the respondent that in Uganda, the right to a fair trial and a fair hearing are always guaranteed when it is clear that in the most serious of crimes, the accused is sentenced to death without affording him/her a simple opportunity to show cause why such an irrevocable penalty should not be imposed on him or her.

To conclude on this matter, these cases are authority for the general proposition that mandatory capital punishment deprives the accused person the most fundamental right to life, without considering whether this exceptional form of punishment is appropriate in the circumstances or his/her case. It is arbitrary, unfair and unjust.

In the case of Uganda, the laws which authorise such mandatory sentence violate articles 22(1), 28 and 44(*c*), the non-derogable right to a fair trial and a fair hearing. Such laws cannot be justifiable under article 43 of the Constitution or any other law since article 44(*c*) of the Constitution is supreme and non-derogable on the right to a fair hearing. The laws must be declared unconstitutional and null and void. This is irrespective of the right of an accused to seek

pardon or commutation under article 121 of the Constitution. The Privy Council in *Reyes v The Queen* (*supra*) observed that:

> "The existence of a right to seek pardon or commutation as required by article 6, paragraph 4 of the covenant, does not secure adequate protection to the right to life, as these discretionary measures by the executive are subject to a wide range of other considerations compared to the appropriate judicial review of all aspects of a criminal case."

If such laws were enacted before the Constitution came into force in 1995, then they must be modified in accordance with article 273 to be in conformity with the Constitution.

There is also another aspect of this issue as to whether a mandatory death sentence permits the death sentence to be confirmed by the highest appellate Court as required by article 22(1) of the Constitution. There is no dispute that the highest appellate Court in Uganda is the Supreme Court. It is a very well known fact that when it confirms conviction of a person charged with an offence punishable by a mandatory death sentence, its role ends there. It has no opportunity to confirm whether the death sentence is the most appropriate in all the circumstances of the offence and the offender. For that reason, the mandatory death sentence is inconsistent and in contravention of the clear requirement of article 22(1) that a sentence depriving a person of the right to life must be confirmed by the highest appellate Court.

It should be obvious from my findings in the first and second issues of this petition, that for a death sentence authorised under article 22(1) to qualify as an exception to the prohibitions in article 24 of the Constitution, it must have been passed in a fair trial and confirmed by the highest appellate Court. I have also held that a mandatory death penalty neither permits a fair trial nor confirmation of the sentence by the highest appellate Court. Therefore a mandatory death sentence is cruel, inhuman or a degrading treatment or punishment within the meaning of articles 24 and 44(*a*) of the Constitution. The mandatoriness aspect makes what would have otherwise been a lawful sentence unlawful. It is not permitted by the Constitution. It is null and void.

Does a mandatory death sentence contravene article 21(1) of the Constitution? The article states:

> "All persons are equal before and under the law in all spheres of political, economic, social and cultural life and in every other respect and shall enjoy equal protection of the law."

The petitioners submitted that the death penalty and section 98 of the Trial on Indictments Act (cited *supra*) contravene article 21 to the extent that whereas all other persons sentenced of a crime are heard on the question of sentence, those sentenced to mandatory death sentence cannot be heard on sentence.

The respondent's defence is that article 21(5) provides:

> "Nothing shall be taken to be inconsistent with this article which is allowed to be done under any provision of the Constitution."

The respondent argued that since article 22(1) permits a death sentence, the sentence is lawful even if it is made mandatory. With respect, I do not agree. Article 22(1) only authorises a death sentence passed in a fair trial and confirmed by the highest appellate Court. I have held that a mandatory sentence does not permit the fair trial or the confirmation of the sentence by the highest

appellate Court. A mandatory death sentence is not allowed by the Constitution, it offends articles 22, 24, 28 and 44 of the Constitution. Therefore it also offends article 21(1) of the Constitution.

Finally, on the third issue of this petition, Professor *Sempebwa* submitted on behalf of the petitioners that a mandatory death sentence offends the basic principles of separation of powers between the legislature and the Judiciary. It is the role of the legislature to prescribe sentences but the duty and right of sentencing rest with the Judiciary who must decide on an appropriate sentence of each individual accused within parameters set by the legislature. The respondent's reply was that under article 79 of the Constitution, Parliament had power to make laws for good governance of Uganda. In exercise of that power it can prescribe mandatory sentences in response to the wishes of the people. The Courts had the duty, imposed on them by article 126 of the Constitution, to enforce the mandatory sentences.

This argument raises a very important matter of principle that needs to be settled in the interest of the administration of justice in this country. Whose duty is it to pass an appropriate sentence on a person convicted of crime? Is sentencing an exercise of legislative function or is it an exercise of the judicial function? Does Parliament have the power under the 1995 Constitution to compel judges and justices of the Courts of Judicature to blindly impose mandatory death sentences on citizens of this country who are rendered statutory mutes shortly before the death sentence is pronounced on them? Does our Constitution provide any guidance on this matter?

In the words of Chandracund CJ in *Mithu v State of Punjab* (*supra*):

> "The gravity of offences furnishes the guidelines for punishment and one cannot determine how grave the offence is without having regard to the circumstances in which it was committed, its motivation and its repercussions. *The Legislature cannot make relevant circumstances, irrelevant, deprive the Courts of their legitimate jurisdiction to exercise their discretion not to impose the death sentence in appropriate cases, compel them to shut their eyes to mitigating circumstances and inflict upon them the dubious and unconscionable duty to impose a preordained sentence of death. Equity and good conscience are the hallmarks of justice*." (emphasis added)

Is Uganda any different from India in this regard? Does the Parliament of Uganda have the power to order Courts to blindly hand out death sentences pre-ordained by itself when it never had the opportunity of seeing or hearing the circumstances of each offence and each offender? Where in the Constitution does it derive that power? The respondent has categorically submitted that such power is conferred on the legislature by article 79(1) of the Constitution. That article states:

> "*Subject to the provisions of this Constitution*, Parliament shall have power to make laws on any matter for peace, order, development and *good governance of Uganda*." (emphasis added)

Does this provision, which is subject to the Constitution, authorise Parliament to enact laws which have the effect of taking away a fundamental human right guaranteed in Chapter IV of the Constitution.

Can Parliament pass a law which derogates on the rights and freedoms guaranteed by articles 22, 24, 28 and 44 of the Constitution?

My answer is definitely no. The power of Parliament to make laws for good governance is subject to the Constitution. It cannot enact a law that takes away

from a citizen a right or freedom guaranteed under Chapter IV of the Constitution. Yet, that is the effect of section 98 of the Trial on Indictments Act. It deprives the Courts of their legitimate jurisdiction to give a fair hearing to a convict on the question of his sentence just as section 303 of the Indian Penal Code does.

The Constitution itself does not direct Courts to pass blind sentences on convicted persons. The Courts' mandate to exercise judicial power are contained in article 126 of the Constitution. It states:

> "Judicial power is derived from the people and shall be exercised by the Courts established under this Constitution in the name of the people and in accordance with the *law* and with the values, norms and the aspirations of the people." (emphasis added)

The first requirement of this article is that the exercise of judicial power must be in conformity with the law. Is a "law" which provides for arbitrary, discriminating, unfair and unjust treatment of citizens a law within the meaning of this article? Can a "law" which derogates on the rights of citizen's guaranteed under articles 22, 24, 28 and 44 be called a law within the meaning of article 126 of the Constitution? A law must always be right, just, fair, not arbitrary, fanciful or oppressive. If a law is not all these, it is no law at all and our Courts are not called upon to exercise judicial power in conformity with such a "law".

It should be clear from the above discussion that sentencing is a judicial function and not a legislative function. The legislature has all the powers to make laws including prescribing sentences. But it is the duty of the Courts to ensure that the sentences so prescribed are imposed in accordance with the Constitution. Most of the laws which prescribe a mandatory death sentence were enacted before the promulgation of the 1995 Constitution. They are now inconsistent with it and to the extent of the inconsistency, they are null and void. If the 1967 Constitution did not define judicial power and led the legislature not to trust the judges' sense of responsibility to pass death sentences in deserving cases, the 1995 Constitution in article 126 prescribes the only limits to the exercise of judicial power and the legislature must now learn to trust that judges have enough sense of responsibility to bear in mind article 126 when considering whether to impose a death sentence or not. In other common law jurisdictions, judges do impose the death sentence in deserving cases even when it is not specifically made mandatory, as long as the legislature indicates that it is desirable. The legislature should be free to legislate but the Judiciary should also be left free to adjudicate.

I wish to conclude by saying that Parliament has no power to enact a law which is arbitrary, unfair, unjust, fanciful or oppressive. The provisions of sections 189, 286(2) and 23(1) and (2) of the Penal Code Act, section 7(1)(*a*) of the Anti-Terrorism Act and section 98 of the Trial on Indictments Act are unjust, unfair, arbitrary and contrary to articles 21, 22, 24, 28, 44 and 126 of the Constitution. I would answer issue number three of this petition in the affirmative.

(C) Issue number four

The issue is whether section 99 of the Trial on Indictments Act, which prescribes hanging as a legal method of implementing the death penalty, is inconsistent with and in contravention of articles 24, 44 and any other article of the Constitution. I have just held in issue number three that the various Uganda laws which prescribe a mandatory death sentence and section 98 of the Trial on

Indictments Act (TIA) contravene articles 21, 22, 24, and 44 of the Constitution. This is because in the imposition and execution of such sentence, article 22(1) of the Constitution is not complied with. I also held that a death sentence (as opposed to a mandatory death sentence) imposed strictly in accordance with article 22(1) is an exception to articles 24 and 44(*a*) of the Constitution and is therefore permitted by our Constitution. What then is the status of section 99 of the Trial on Indictments Act when applied to this latter category? Is the method of hanging prescribed by section 99 of the Trial on Indictments Act unconstitutional when applied to convicts sentenced to death strictly in accordance with article 22(1) of the Constitution? Does it constitute cruel, inhuman, or degrading treatment or punishment within the meaning of articles 24 and 44 of the Constitution? This is the question at stake in this issue.

I will paraphrase this issue in a different way. The Constitution of Uganda authorises a death penalty as long as it is carried out in execution of a sentence imposed in a fair trial by a Court of competent jurisdiction in respect of criminal offence under the laws of Uganda and the conviction and the sentence have been confirmed by the highest appellate Court. Suppose Uganda laws were streamlined, as they should be, and mandatory death sentences were removed and the Supreme Court regained its rightful jurisdiction to confirm death sentences, would carrying out of the sentence by hanging as in section 99 be unconstitutional because of the way it is carried out in Uganda?

Section 99 provides:

> "99(1) Sentence of death shall be carried out by hanging in accordance with the provisions of the Prisons Act.
>
> (2) When a person is sentenced to death, the sentence shall direct that he or she shall suffer death in the manner authorised by *law*." (emphasis mine)

The learned counsel for the petitioners who argued this ground submitted that a death sentence, even if it was found to be constitutional in Uganda, offends articles 24 and 44(*a*) of the Constitution by virtue of the hanging method of implementation of the sentence. Counsel read affidavit evidence of Anthony Okwanga, former prisons officer now on death row, Ben Ogwang, who has attended several executions by hanging at Luzira Prisons, and the expert evidence of Dr Hunt and Dr Hillman. Some of the affidavits contain graphic descriptions of barbaric, horrific and bizarre scenes that take place immediately before, during and after execution by hanging in Uganda and elsewhere. Counsel invited us to interpret the words "torture, cruel, inhuman" and to give them their ordinary English language meaning which was attributed to them in famous authorities such as:

(*a*) *Abuki v Uganda* (*supra*)

(*b*) *Uganda v Abuki* (*supra*)

(*c*) *Republic v Mbushu* (*supra*)

(*d*) *State v Makwanyane* (*supra*)

Learned counsel cited these cases and several others in support of his submission that death sentence by hanging turns an otherwise lawful sentence into an unconstitutional one because the method used is cruel, inhuman and degrading within the meaning of articles 24 and 44(*a*) of the Constitution. His prayer was that section 99 of Trial on Indictments Act which prescribes the method should be declared null and void for being inconsistent with and contravening articles 24 and 44(*a*) of the Constitution.

Mr Mike *Chibita*, the learned Principle State Attorney who argued this ground on behalf of the respondent did not agree. His argument in reply was short but precise. He submitted that the respondent had proved that the Constitution of Uganda saved the death sentence in article 22(1). Therefore, if the death penalty is permitted by the Constitution as it has been and continues to be, it was incumbent upon the legislators to prescribe a method of carrying it out. They prescribed hanging. It they had not, it would have been upon the prison authorities to originate a method of their choice, firing squad, poisoning, lethal injection, and electric chair etc. There are diverse methods used in various jurisdictions. The hanging method was not arrived at randomly. A lot of research must have been carried out first before it was prescribed. It has been in use in Uganda since 1938. It has worked well and no major problems have been reported regarding its execution here.

Learned counsel submitted further that in Uganda, hanging is carried out in private, it is not open to the general public or the prisoners. Okwanga who witnessed it did so as a prisons staff member before he became a prison inmate. There is nothing degrading about it because unauthorised people do not witness it. Punishments by their very nature inflict a degree of pain and are intrinsically painful and unpleasant.

On the interpretation of the words “cruel, inhuman or degrading” Mr *Chibita* invited us not to give them their ordinary English interpretation as was done in cases like *Abuki* and *Kyamanywa* (*supra*). Those cases were distinguishable because they were not dealing with a death sentence. The words should only be given a meaning that is justified by the context in which they were used in articles 22(1) and 24 looked at together. The natural interpretation from the context is that a death sentence authorised by the Constitution in article 22(1) can lawfully be carried out by any method prescribed by Parliament. The fact that the method inflicts pain and suffering does not render it cruel, inhuman and degrading treatment or punishment within the meaning of article 24 of the Constitution. It is a logical and a natural consequence of the death penalty.

Learned counsel also invited us to ignore cases decided outside Uganda on this issue because those countries did not have the equivalent of articles 22(1), 24 and 126 of the Constitution. By article 126, the Courts of Law in Uganda are enjoined to exercise judicial power according to law and the values, norms and aspirations of the people. Since the people of Uganda do not regard the death penalty as cruel, inhuman or degrading, then any method prescribed by Parliament to carry it out cannot be said to be cruel, inhuman or degrading within the meaning of articles 24 and 44(*a*) of our Constitution. He invited us to determine this issue in the negative.

I must now determine whether death by hanging is authorised by the Constitution of Uganda. We must remember here that the issue is not whether inflicting a death sentence by hanging is a good thing or not. The issue is not whether hanging is a desirable or an appropriate sentence in Uganda at this point in time. The only issue is whether it is authorised by our Constitution or not. If the answer is that it is authorised, then so be it. It is not the duty of this Court to stop it. Those who find it offensive must go to the people or their elected representatives and convince them to drop that method of carrying out

a death sentence. If the answer is that it is not authorised by our Constitution, then, it must stop at once.

I have held in this judgment that a death sentence in Uganda is lawful and constitutional only if it is carried out in a manner which is consistent with article 22(1) of the Constitution. Any death sentence which is passed in a manner not consistent with article 22(1) is unlawful and unconstitutional. In this part of this judgment, reference to a "death sentence" only refers to such a sentence passed strictly in accordance with article 22(1) of the Constitution. The term "death sentence" in this section does not include a mandatory sentence which I held under issue number three above to be unlawful and unconstitutional.

I have already quoted the provisions of section 99 of the Trial on Indictments Act earlier in this judgment. It authorises execution of the death sentence by hanging. The constitutionality of hanging authorised by section 99 of the Trial on Indictments Act has not been challenged in our Courts of law. It has, however, been a subject of challenges in United States of America, South Africa and other common law jurisdictions. In the United States Supreme Court case of *Campbell v Wood* [1994] 18F 3a 662 the Court described hanging in the following terms:

> "Hanging is savage and barbaric method of terminating human life . . . Hanging is a crude, rough and wanton procedure, the purpose of which is to tear apart the spine. *It is needlessly violent and intrusive, deliberately degrading and dehumanising, it causes grievous fear beyond that of death itself and the attendant consequences are often humiliating and disgusting. In a number of cases, one of these consequences is decapitation*." (emphasis added)

Further on the Court stated:

> "*There is absolutely no doubt that every hanging involves a risk that the prisoner will not die immediately, but will instead struggle or asphyxiate to death. This process, which may take several minutes, is extremely painful. Not only does the prisoner experience the pain felt by any strangulation victim, but he does so while dangling at the end of a rope, after a severe trauma has been inflicted on his neck and spine. Although such a slow and painful death will occur in only a comparatively small percentage of cases, every single hanging involves a significant risk that it will occur . . . This conclusion is not surprising, because every jurisdiction that has ever used hanging as a method of execution has understood that the risk of painful and torturous death exists*." (emphasis added)

The Court then concluded:

> "*Hanging is a violent mutilative barbaric procedure that has been resoundingly rejected . . . Even aside from the risks of decapitation and lingering painful death, hanging is simply inconsistent with 'the dignity of man' which is the basic concept underlying the English amendment . . . Hanging is without the slightest doubt 'cruel and unusual' – in layman's terms and in the constitutional sense*." (emphasis added)

Though these quotes are from the minority decision of the United States Supreme Court, they were cited with approval in *State v Makwanyane* (*supra*) unanimous decision of the Constitutional Court of the Republic of South Africa. In the Tanzanian case of *Mbushuu* (*supra*) hanging was described as follows:

> ". . . the process of hanging is particularly gruesome. One leading doctor described the process as '*slow, dirty, horrible, brutal, uncivilised and unspeakably barbaric*.' The prisoner is dropped through a trap door eight to eight and a half feet with a rope around his neck. The intention is to break his neck so that he dies quickly. The length of the drop is determined on the basis of such factors as body weight and muscularity or fatness of the prisoner's neck. If the hangman gets it wrong and the prisoner is

> dropped too far, the prisoner's head can be decapitated or his face can be torn away. If the drop is too short, then the neck will not be broken but instead the prisoner will die of strangulation. There are many documented cases of botched hanging in various countries including Tanzania. There are a few cases in which hanging have been messed up and the prison guards have had to pull on the prisoner's legs to speed up his death or use a hammer to hit his head. The shock of system causes the prisoner to lose control over his bowels and he will soil himself." (emphasis added)

There is no doubt that the strongest language available in the English vocabulary is used in the above decisions to describe the effect of hanging on the victim and the observers. However, this alone cannot mean that in Uganda, hanging is cruel, inhuman or degrading treatment or punishment within the meaning of article 24 of the Constitution. For example, if this sort of punishment is in clear terms authorised by our Constitution, then it means that the people of Uganda do not view it as being cruel, inhuman or degrading. It would mean that they regard it as a suitable punishment in certain cases authorised within the meaning of article 22(1) of the Constitution.

Hanging has been in use in Uganda since 1938. It is a very well known sentence as the treatment one gets for very serious offences, especially as a sentence for murder. In Runyankole/Rukiga language it is called *Akabaaho* and in Luganda, *Akalabba*. The Luo people call it *Dec* meaning putting a rope around the neck and then pulling it. These words describe a situation where one stands on a piece of wood hosted on top of a pit with a rope tied around the neck. When the piece of wood is removed, the person falls in the pit and is strangled to death by the rope.

When the people of Uganda were consulted in the constitutional making process for the 1995 Constitution and the 2005 amendments to it, the majority of those consulted demanded that a death sentence stays. They knew very well that it would be carried out by hanging. This country has never known any other method. When the Constituent Assembly enacted article 22(1) authorising a death sentence, they were very much aware that it would be carried out by hanging because section 99 of Trial on Indictments Act was already in place. In authorising a death sentence in article 22(1), and remaining silent on the method of carrying it out, they knew that unless section 99 of Trial on Indictments Act was repealed, hanging would be the method to execute the death sentence. It is therefore, inconceivable that shortly after the enaction of article 22(1) authorising both the death sentence and hanging, the assembly would have enacted article 24 outlawing hanging without specifically stating so.

It should also be noted that the case of *Campbell v Wood* (*supra*) represents a minority decision at the time of the decision and has very little persuasive value on this Court beyond the useful description of the hanging method. The decision in *Makwanyane* is also distinguishable because the right to life is absolute under the Constitution of South Africa. The decision in *Mbushuu* is also distinguishable because the death sentence was not authorised by the Constitution of Tanzania itself but by an Act of Parliament. In Uganda the death penalty is expressly authorised by the Constitution clearly in the knowledge that it would be carried out by hanging. Long before articles 22(1) and 24 were enacted, the practice of hanging criminals in serious crimes had been in practice for almost 60 years. The Ugandan cases of *Abuki v Uganda* and *Kyamanywa v Uganda* are not useful in this regard. They were neither on the subject of death sentence nor hanging. They also concerned interpretation of Acts of Parliament

against the Constitution, unlike the instant case which concerns interpretation of provisions of the Constitution against other provisions of the same Constitution.

Finally, I have stated in this judgment, that unlike in South Africa where people's opinion may not be a relevant consideration in constitutional interpretation, in Uganda, the people's views are very relevant because of article 126 of our Constitution. Whether you call hanging cruel, inhuman, degrading, sadistic, barbaric, primitive, outmoded etc, as long as the people of Uganda still think that it is the only suitable treatment or punishment to carry out a death sentence, their values, norms and aspirations must be respected by the Courts. I also think that it is trite that every sentence must involve pain and suffering if it is to achieve its purpose as a punishment. A death sentence is not merely designed to remove from this earth, blissfully and peacefully, those people who have committed heinous crimes like murder, genocide and crimes against humanity etc. It is intended to punish them here on earth before they go. It is not a one way ticket to Sugar Candy Mountains of George Orwell's Animal Farm. Once it is accepted that the death sentence is authorised by the Constitution, it is an exception to article 24 and all Parliament has to do is to provide a balanced method of carrying it out, between blissful and peaceful methods of dispatch, like the lethal injection and the more barbaric methods like stoning or public beheading. In that context, hanging is a modest method of carrying out the death sentence and therefore, section 99 of Trial on Indictments Act does not offend articles 24 and 44(*a*) of the Constitution. I would answer this issue in the negative.

(D) Issue number five

This is whether execution of petitioners who been on death row for a long period of time is inconsistent with and in contravention of articles 24, 44 or any other provision of the Constitution. Professor *Sempebwa*, the learned counsel who argued this issue on behalf of the petitioners submitted that should the Constitutional Court be inclined to find that the death penalty is a lawful form of punishment, then the length intervening between conviction and execution that has been endured by the majority of the petitioners on death row makes what might otherwise be a lawful punishment, cruel, degrading and inhuman, and consequently unconstitutional to implement.

Counsel was anxious to point out that the petitioners were not seeking for a quick execution, but merely pointing out that to carry out the execution now would amount to cruel, inhuman and degrading form of treatment. For the rationale of this issue, he cited the case of *Catholic Commission of Justice and Peace of Zimbabwe v Attorney-General* [1993] 2 LRC 277 which was cited with approval in *Republic v Mbushuu* (*supra*) where the Court in Tanzania stated:

> "When a prisoner who has been on death row for several years approaches the Courts for relief, *he is not seeking to be put to death expeditiously, but rather, he is saying that the long period he has spent on death row, coupled with the agony and anguish of death row endured for several years, plus the horrible conditions under which he is kept, is such as to render his execution at that particular time cruel and inhuman as to offend the constitutional prohibition against cruel and inhuman punishments* . . . he would not be challenging the legality or appropriateness of the original sentence of death. He would be accepting the validity of that original sentence but merely arguing that the juxtaposition of the intervening delay, and prolonged anguish of death row, which has been appropriately described as the (*sic*) a 'living hell' is such as to render it particularly inhuman to execute him at that stage." (emphasis added)

He submitted that because of what has come to be known as the "death row phenomenon" which sets in from the day an accused is sentenced to death up to the day he is executed, delay in executing the death penalty makes the sentence cruel, inhuman and degrading treatment or punishment within the meaning of articles 24 and 44(*a*) of the Constitution. In support of his arguments, learned counsel cited the following authorities:

(i) *Catholic Commission for Justice and Peace in Zimbabwe v Attorney-General and others* (*supra*)

(ii) *Attorney-General v Abuki* (*supra*)

(iii) *Republic v Mbushuu* (*supra*)

(iv) *Mbushuu v Republic* (*supra*)

(v) *Platt and Morgan v Attorney-General of Jamaica* [1994] 2 AC 36

(vi) *Sovereign v UK* (1989) EHRR 439.

He invited us to answer this issue in the affirmative.

The respondent's arguments in reply can be summarised as follows:

(i) There is nothing in articles 24, 44(*a*) or any other provision of the Constitution that implies or sets a time limit within which a death penalty must be carried out after due process in the Courts is completed. If the framers of the Constitution wanted to set a time limit, they would have done so unambiguously. It is not the function of the Courts to do so and the Courts should not do so now.

(ii) Under article 121 of the Constitution, the President has the power to exercise the prerogative of mercy in which he can grant pardon, respite, substitution or remission of any sentence or punishment imposed on any person. The exercise of this discretion cannot and should not be fettered by time limits.

(iii) The petitioners were very ungrateful people. They should greet each day they are allowed to stay alive with glee and thankfulness. The more they stay on death row, the more chances they have of being pardoned. One Abudallah Nasuru, who was recently pardoned by the President after almost 20 years on death row was cited as an example. It was pointed out, partly in jest, that the man has recently married a brand new wife! The State was however, prepared to put the long suffering of the petitioners to end, if that is what they really want.

(iv) Given that the majority of the petitioners have committed murder, the alleged cruelty suffered by them while waiting for execution be compared to the cruelty they inflicted on their victims and their relatives who continue to suffer.

(v) All the cases relied upon by the petitioners on this issue are not applicable to this case. First, in the *Catholic Commission for Justice and Peace* and *Platt and Morgan*, the petitions were originated after a real threat of execution. The petitioners' death warrants in both cases had already been signed. In this case there is no such threat. The president has not signed any warrant for execution of anyone. The petitioners still have a chance to be pardoned. The President's hands should not be tied by time limits. Second, in both cases, their respective countries had set very high standards whereby executions were always carried out speedily within a short time, but in Uganda, executions take a very long time to occur. Third, in *Platt and Morgan* the State was found to have failed to perform some obligations hence contributing to the delay. In Uganda the State has been diligent throughout. Finally, counsel for the respondent

> invited us to find that long delay on death row was not only prohibited but was actually justified under our Constitution. In his view, this issue should be answered in the negative.

I now turn to the determination of the merits of issue number five. I will endeavour to answer the following questions:

(*a*) What is the meaning of death row phenomenon?

(*b*) Does it exist in Uganda?

(*c*) Is it capable of turning an otherwise lawful death sentence into cruel, inhuman, degrading treatment or punishment within the meaning of article 24 of the Constitution?

I must state again that this issue has not been a subject of adjudication in our Courts in Uganda. There are, therefore, no local precedents on the matter. However, it has been a subject of adjudication in the United Kingdom, the United States of America, Jamaica, Zimbabwe, South Africa, Tanzania and India, to mention but a few countries. For the purpose of this judgment I shall mainly refer to the cases from Zimbabwe and Tanzania both of which are much nearer home, with similar legal systems like ours and where prison conditions prevailing there are remarkably similar to our own.

The meaning of death row phenomenon

The issue at hand was extensively discussed in the Supreme Court of Zimbabwe in *Catholic Commission for Justice and Peace in Zimbabwe v The Attorney-General and others* (*supra*). The brief facts of that case appear at 284 of the report as follows:

> "The applicant, the Catholic Commission for Justice and Peace in Zimbabwe, was a human rights organisation. In March 1993 it was reported in a national newspaper that four men, all of whom had previously been convicted of murder and sentence to death, were soon to be hanged. At this time the four condemned prisoners had already spent between four and six years in the condemned section of Harare Central Prison that is on death row. The applicant immediately sought and obtained from the Supreme Court a provisional order interdicting the Attorney-General, the Sheriff of Zimbabwe and the Director of Prisons, the respondents, from carrying out the death sentences. The matter was referred to the Supreme Court to determine whether the delay in carrying out the death sentences breached section 15(1) of the Constitution of Zimbabwe and if so, whether the sentences should be permanently stayed."

It should be noted that section 15(1) of the Constitution of Zimbabwe is similar to article 24 of our Constitution. The Supreme Court investigated the physical condition endured daily by the four condemned persons and found the following:

> "Since the passing of sentence of death upon them, the four prisoners have been incarcerated in the condemned section of Harare Central Prison. Pursuant to section 110 of the Prison Act (Chapter 21) a condemned prisoner is confined in a cell separately, under constant supervision both by day and night. The cell is approximately three and a half metres long by two metres wide. By holding his arms outstretched a person is able to touch the opposite walls. There is a single window very high up from which only the sky is visible. The door of the cell has a small aperture through which prison officers are able to view the inmate. An electric light burns in each cell and is never extinguished. It supplies the sole source of illumination. There is no inbuilt toilet, the prisoner being obliged to utilise a chamber pot. A thin mattress is provided as well as two sets of clothing – the one to be worn inside the cell, the other when outside – in order to facilitate routine security checks and searches.

> The cell is opened every morning at 06:00 hours. The condemned prisoner is allowed out in a group for washing of the chamber pot and bathing. He is returned for breakfast. Lunch is served in the cell at 10:00 hours and supper at 14:00 hours. The food is of poor quality. 10 cigarettes a day are provided. The condemned prisoner is allowed two periods of exercise time of 30 minutes each in one of two exercise yards, between 09:00 and 11:00 hours and 13:00 and 15:00 hours, in a group of about 10 other condemned prisoners. No apparatus to exercise is supplied and the playing of games is forbidden. Communication with other condemned prisoners is permitted but not with any other grade of prisoner. In all he is confined in a cell for a minimum period of 21 hours and 40 minutes per day during which he has no contact at all with any other prisoner. He is given a Bible and other religious books but no other reading material.
>
> At 15:00 hours the condemned prisoner is required to leave all clothing outside his cell. Thereupon he is incarcerated, naked until the following morning. The cell is very cold in the winter months.
>
> Visitations from family members of about 10 minutes' duration, in the presence of prison officers, are permitted periodically."

The Court also investigated the mental conditions, the anguish the condemned persons had to endure while waiting for execution. They were deponed to by a condemned prisoner called Admire Mthombeki as follows:

> "Because you spend so much time in your cell alone, you endlessly brood over your fate and it becomes very difficult, and for some people impossible, to cope with it all. The treatment meted out to you by the warders is very harsh. They are continuously hassling you and chasing you up. If you make any complaint about anything to do with the conditions, you run the risk of receiving a beating. One of the warders blows a whistle. Other warders come running and without further ado they start beating you with their baton sticks. The warders are also continuously reminding you of the hanging which awaits you. They continually taunt and torment you about it. For instance, they would ask you why you are bothering to read when you are going to hang. They would also say that you are now fat enough to hang.
>
> The gallows themselves are situated within the condemned section itself. Whilst I was there, people were hanged in 1987 and 1988. Although apparently five people can be hanged at the same time, the hangings used to take place in stages. This means that for the rest of us the agony was prolonged.
>
> In 1987 a total of 11 people were hanged. However, the process went on for about two weeks. Two people were hanged one day. The next day nobody was hanged. The following day another two people were hanged and so it went on. During this period, the warders rattled our doors at 4:00am which is the time they remove people from their cells for hanging. The effect was, of course, that I woke up suddenly terrified that I was about to be hanged. This was just another way in which they tormented us. When a person was to be taken out for hanging the wardens came into his cell in a group. They leg-ironed him and handcuffed him. Often, the person to be hanged resisted and the warders then used electric prodders to subdue him. I saw this through the peephole in my cell. The screaming of those about to be hanged from the time they are removed from their cells at 4:00am up to the time they were hanged at about 9:00am. We also heard the sounds of the gallows themselves . . .
>
> The warders often told us detailed and lurid stories about the hangings themselves which they had witnessed. The aim of this was to torture us. For instance, after one lot of hangings, they told us that the machine did not work properly. As a result one of those to be hanged called Chitongo did not die. Instead, he somehow managed to get hold of the hangman and would not let go. We were told that the warders eventually had to get a hammer and then they hammered him to death. On another occasion one of the warders showed one condemned man called Vundla a newspaper showing that he

was about to be executed. We were not allowed access to any news-papers. The warder therefore deliberately showed this condemned person the newspaper to torture him. As a result, Vundla managed to climb up to the window at the top of his small cell and from there he dived on to the floor and killed himself.

Many people could not cope with all this and become mentally disturbed. The warders treated these kind of people even worse than us. For instance, if a mentally disturbed prisoner soiled his cell the warders refused for days to have it cleaned up."

The Supreme Court of Zimbabwe discussed the judicial and academic acceptance of the death row phenomenon. It reviewed various decisions from other jurisdictions and writings of jurists, penologists and psychiatrists and accepted the physical and mental conditions expressed in the above extracts and in the following extracts from the same case as the true meaning of the death row phenomenon:

"(*a*) When a prisoner *sentenced* by a Court to death is confined in the penitentiary awaiting the execution of the sentence, one of the most horrible feelings to which *he can be subjected during that time is the uncertainty during the whole of it . . . as to the precise time when his execution shall take place*.

(*b*) Punishments are cruel when they involve . . . a lingering death . . . something more than the mere extinguishment of life.

(*c*) It may validly be argued, so it seems to me, that death is as lingering if a person spends several years (*sic*) cell awaiting execution, as if the mode of execution takes an unacceptably long time to kill him. The pain of mental lingering can be as intense as the agony of physical lingering.

(*d*) Death row is barren and uninviting. The death row inmate must contend with a segregated environment marked by immobility, reduced stimulation, and the prospect of harassment by staff. There is also the risk that visits from loved ones will become increasingly rare, for the man who is 'civilly dead' is often abandoned by the living. The condemned prisoner's ordeal is usually a lonely one and must be met largely through his own resources. The uncertainties of his case – pending appeals, unanswered bids for problems. A continuing and pressing concern whether one will join the substantial minority who obtain a reprieve and will be counted among the to-be-dead. Uncertainty may make the dilemma of the death row inmate more complicated than simply choosing between maintaining hope or surrendering to despair. The condemned can afford neither alternative, but must nurture both a desire to live and an acceptance of imminent death. As revealed in the suffering of terminally ill patients, this is an extremely difficult task, one in which resources afforded by family or those within the institutional context may prove critical to the person's adjustment. The death row inmate must achieve equilibrium with few coping supports. In the process, he must somehow maintain his dignity and integrity.

(*e*) Some death row inmates, attuned to the bitter irony of their predicament, characterised their existence as a living death and themselves as the living dead. They are speaking symbolically, of course, but their imagery is an appropriate description of the human experience in a world where life is so obviously ruled by death. It takes into account the condemned prisoners' massive deprivation of personal autonomy and command over resources critical to psychological survival; tomblike setting, marked by indifference to basic human needs and desires; and their enforced isolation from the living, with the resulting emotional emptiness and death."

These extracts depict the internationally accepted meaning of death row phenomenon.

Does it exist in Uganda?

I have read about the physical conditions existing in our prisons from the affidavit of former inmates: Edward Mary Mpagi and Tom Balimbya and current inmates: Ben Ogwang, Susan Kigula, Andrew Walusimbi and prisons officials: Tom Ochan and Moses Kakungulu Wagabaza.

I have also read about the mental state of the prisoner on death row from the affidavits of Moses Kakungulu Wagabaze, David Nsalasatta, medical officers Dr Magret Mungherera and Robert Okuyait. It is neither possible nor desirable to reproduce them in this judgment for lack of space. I can, however, definitely say that the physical and mental conditions endured by death row inmates in Uganda are much more horrible and harsher than those endured by death row inmates in Zimbabwe as described a while ago in this judgment. The evidence on the Ugandan conditions is neither rebutted nor contested by the respondent. I have no doubt in my mind whatsoever that death row phenomenon exists and is very much well and alive in Ugandan prisons.

Does its existence violate article 24 of the Constitution?

Article 24 of the Constitution of Uganda states:

> "No person shall be subjected to any form of torture, cruel, inhuman or degrading treatment or punishment."

Section 15(1) of the Zimbabwe Constitution states:

> "No person shall be subjected to torture or to inhuman or degrading punishment or other such treatment."

Commenting on the construction of the Zimbabwe provision in the case of *Ncube v State* [1988] LRC 442 at 460, Gubbay CJ (as he then was) stated:

> "I express the view that section 15(1) is nothing less than the dignity of man. It is a provision that embodies broad and idealistic notions of dignity, humanity and decency. It guarantees that punishment or treatment of the individual be exercised within the ambit of civilised standards. Any punishment or treatment incompatible with the evolving standards of decency that mark the progress of maturing society, or which involve the infliction of unnecessary suffering, is repulsive."

In this petition, 417 petitioners are complaining that since they were sentenced to death, they have been subjected to death row phenomenon for so long that it would be cruel, inhuman and degrading to subject them to execution after so much suffering. There is evidence that they have been on death row for between four to 20 years at the time of filing this petition. The average period of waiting is reckoned to be about 10 years. Have they ceased to have the protection accorded by article 24 of the Constitution? It was stated in the *Catholic Commission for Justice and Peace of Zimbabwe* (*supra*) that:

> "It cannot be doubted that prison walls do not keep out fundamental rights and protections. Prisoners are not, by mere reason of a conviction, denuded of all the rights they otherwise possess. No matter the magnitude of the crime, they are not reduced to non-persons. They retain all basic rights, save those inevitably removed from them by law, expressly or by implication. Thus, a prisoner who has been sentenced to death does not forfeit the protection afforded by section 15(1) of the Constitution in respect of his treatment while under confinement."

In *Riley v Attorney-General of Jamaica* [1982] 3 All ER 469 at 479 the Court stated:

> "It is, of course, true that a period of anguish and suffering is an inevitable consequence of sentence of death. But a prolongation of it beyond the time necessary for

> appeal and consideration of reprieve is not. And it is no answer to say that the man will struggle to stay alive. In truth, it is this ineradicable human desire which makes prolongation inhuman and degrading. The anguish of alternating hope and despair, the agony of uncertainty, the consequences of such suffering on the mental, emotional and physical integrity and health of the individual are vividly described in the evidence of the effect of the delay in the circumstances of these five cases."

Finally, the conclusion of all the authorities reviewed in the *Catholic Commission* case can be summarised by the holding in the Indian case of *Trivenben v State of Gujerat* [1992] LRC 425 as follows:

> "It has been universally recognised that a condemned person has to suffer a degree of mental torture even though there is no physical mistreatment and no primitive torture . . . As between funeral fire and mental worry, it is the latter which is more devastating, for, funeral fire burns only the dead body while the mental worry burns the living one. This mental torment may become acute when the judicial verdict is finally set against the accused. Earlier to it, there was every reason for him to hope for acquittal. That hope is extinguished after the final verdict is finally set against the accused. If, therefore, there is inordinate delay in execution, the condemned prisoner is entitled to come to Court requesting it to examine whether, it is just and fair to allow the sentence of death to be executed."

The respondent has contended that this form of pain and suffering is inevitable because it occurs when the President is still considering what to do with convicts in accordance with article 121 of the Constitution. I agree that from the time the petitioners' cases are finalised in the Supreme Court, reasonable time is required for the exercise of prerogative of mercy. After the Supreme Court, compliance with article 121 is the only action remaining before the sentence decreed by the Courts is carried out. Reasonable time must be that time necessary to carry out that procedure. The evidence on the record shows that some prisoners stay on death row for as many as 20 years! Very many of them stay on death row for between seven years and 20 years. Does the exercise of prerogative of mercy require so much time? The Attorney-General argued that the people of Uganda demand that the death sentence must be carried out. Is it lawful for anyone to unreasonably delay the execution of the sentence against the will of the people? Our law requires that the President must consent to all execution for the death sentence. Does he have the discretion to withhold such consent indefinitely?

I think not. He can only withhold his consent for as long as is reasonably necessary to give him the information to enable him take a decision under article 121 of the Constitution. When he withholds the consent beyond that time, the death sentence begins to become cruel, inhuman and degrading within the meaning of article 24 of the Constitution. Once that happens, then execution of the death sentence becomes unconstitutional within the meaning of article 44(*a*) of the Constitution. The question then is: What is reasonable time in those circumstances?

Before I return to the question, let me first deal with two other concerns of the respondent. The first was that foreign authorities including *Catholic Commission for Justice and Peace* and *Mbushuu*, are irrelevant to the instant situation in Uganda because their laws and Constitutions contain different provisions from those in our Constitution. The above analysis of the *Catholic* case have clearly shown that the relevant laws and provisions of the Constitution of Zimbabwe are very similar to their equivalents in Uganda. The second was that those countries did not have the equivalent of article 126 of our Constitution which

enjoins the Judiciary to exercise judicial power in conformity with the law, norms, values and aspirations of the people. It is true that those other countries do not have a similar provision but any judicial officer need no reminders that the power he exercises is on behalf of the people.

In Uganda, the existence of article 126 means that the wishes of the people must be granted. We have been told that the people of Uganda want the death sentence, and I agree. Anyone who unreasonably delays the execution of the death sentence passed in accordance with article 22(1) contravenes the Constitution. It is for this reason that I would hold that anyone, even the one exercising functions under article 121 of the Constitution, who unreasonably delays execution of the death sentence lawfully imposed under the Constitution contravenes the Constitution.

Now, I turn to the question: How long is reasonable time? According to the cases which were cited to us by both sides, it was held that prolonging execution of the death sentence for periods between two to five years makes the punishment when it finally comes, cruel, inhuman and degrading treatment or punishment. See:

(*a*) *Catholic Commission for Justice and Peace of Zimbabwe. The Attorney-General*

(*b*) *Platt and Morgan v The Attorney-General of Jamaica*

(*c*) *Soering v United Kingdom* (*supra*)

All these Courts have held that the period starts to run from the date when the accused is first sentenced to death because that is when the death row phenomenon sets in. I do not agree with the Courts in that aspect. In Uganda, the right of an accused to have his death sentence confirmed by the Supreme Court is guaranteed. The period the accused stays on death row after the sentence has been passed is lawful and cannot be blamed on the State or the accused. Here a case takes about three years to go through the appeal process. In my judgment, a period of three years from the day the Supreme Court disposes of the appeal should be reasonable time within which to complete whatever is necessary to do under article 121 of the Constitution. It would be unconstitutional and in contravention of articles 24 and 44(*a*) to carry out the death sentence on a prisoner who has been subjected to the death row phenomenon for more than three years from the date his appeal was disposed of in the Supreme Court of Uganda. I would answer this issue in the affirmative.

(E) Issue number six

This is whether the petitioners are entitled to remedies prayed for in the petition.

The background

The criminal justice system in Uganda, especially where capital punishment is concerned, is now in an acute crisis. We have in our prisons more than 400 death row inmates. Many of them have been waiting for execution for more than 10 years, a good number of them for more than 15 years. There are a few who have already spent 20 years waiting for the punishment which the law and the Courts pronounced on them death. Looking at the statistics of death row inmates supplied by the petitioners and attached to Mr Samuel Serwanga Ssengendo’s affidavit, it is safe to state that the majority of them have had the appeal process completed in the highest Court of the land and what

separates them from death is the legal requirement that every execution must be accompanied with a death warrant personally signed by the President of this Republic. We did not receive any direct evidence from the petitioners or the respondent as to why the warrants take so long to process. All we know is that under article 121 of the Constitution, the President is given power to pardon, commute, substitute, or grant remission to any person convicted of an offence. An unfortunate situation has now developed whereby the sentencing process in capital offences has been totally removed from the hands of the Courts and has been transferred into the hands of one office of the President. It is no longer a judicial process but it has entirely become an executive and legislative function. The Constitution does not give the President a time limit within which to exercise this function. Given the numerous constitutional functions of his office, it is difficult to imagine that dealing with criminals on death row would be any of his priorities.

For as long as these people are still alive, they have the protection of the Constitution and the Constitution demands that justice should be done to all speedily in order to be meaningful. Justice delayed is justice denied. There is great need to reform the criminal justice system so that in capital offences, justice is done speedily for the convict, the victims and society as a whole.

Outdated laws

The problem of delayed justice has been aggravated by the following factors which arise because of outdated laws:

(*a*) The laws impose mandatory death penalties. This means that the sentencing Court and the appellate Courts do not inquire into the individual circumstances of the offence and the offender. This means that at the time the Supreme Court disposes of the appeal, there is no piece of information on the record that could assist the President to make a decision under article 121 of the Constitution.

(*b*) When the condemned person petitions the President for mercy, the Attorney-General, who chairs the committee on the prerogative of mercy calls for the Court file. The trial Judge is then called upon to write a report five years after the trial whose main features he no longer remembers except the dry facts on the file. The trial Judge could be dead, retired, transferred or infirm. Delay is inevitable. All these would not have been necessary if the trial Judge had the liberty to inquire into the circumstances at the time of passing the sentence of death. Right now, the information is not necessary because he has to impose a mandatory sentence pre-ordained by the legislature.

(*c*) Meanwhile, even those who have not petitioned for pardon or commutation have to wait indefinitely for the warrant of the President to have their sentences executed. Those who have petitioned will have to wait for a busy Attorney-General and a busy head of state to process their petitions which could take years.

(*d*) All the laws which prescribe a mandatory death sentence and the provisions of sections 98 and 102 of the Trial on Indictments Act and any other similar laws are not in conformity with articles 22(1), 24, 28 and 44(*a*) of the Constitution. The Uganda Law Reform Commission and the legislature should deal with them in accordance with article 273 of the Constitution.

Remedies

(*a*) I have held on issues one, two and four that:

(i) The death penalty in Uganda is authorised by article 22(1) of the Constitution.

(ii) It is an exception to actions prohibited under article 24 of the Constitution.

(iii) The hanging method prescribed for carrying the death penalty out is lawful.

(*b*) I have held on issues three and five as follows:

(i) A mandatory death sentence is inconsistent with and contravenes articles 21, 22(1), 24, 28 and 44(*a*) and (*c*) of the Constitution.

(ii) Delay in executing a death sentence contravenes and is inconsistent with articles 24 and 44(*a*) of the Constitution.

Following these holdings I would make the following declarations:

(i) I would declare that the death penalty and the hanging method of carrying it out are not cruel, inhuman, degrading treatment or punishment within the meaning of articles 24 and 44(*a*) of the Constitution.

(ii) The various laws of Uganda which prescribe for a mandatory death sentence are inconsistent with and contravene articles 21, 22(1), 24, 28, 44 of the Constitution and are null and void.

(iii) Delay in carrying out a death sentence for three or more years from the date the case was disposed of in the Supreme Court turns an otherwise lawful death sentence unconstitutional for being in contravention of articles 24 and 44(*a*) of the Constitution.

Redress

Under article 137(3) and (4) of the Constitution, this Court has the discretion to grant any redress that it considers appropriate in the circumstances of each case. See: The Supreme Court judgment in the Attorney-General v Paul K Ssemogerere and Zachary Olum, constitutional appeal number 3 of 2004. In the exercise of this discretion, the Court must keep in mind the provisions of article 126(1) of the Constitution which enjoins this Court to exercise judicial power:

> "In the name of the people and in conformity with law and with the values, norms and aspirations of the people."

In addition, the peculiar conditions of Uganda must be taken into account. In the instant case, I consider the following matters:

(i) Unlike in the cases of *Catholic Commission for Justice and Peace*, the *Makwanyane*, *Platt and Morgan and others* cited above where the Courts were dealing with a handful or one death row inmate, here we are dealing with more than 400 of them.

(ii) A death sentence in Uganda is constitutional and widely accepted.

(iii) The unlawfulness of the mandatory death sentence and the delays in executing the lawful death sentence has been caused by out of date laws enacted before the 1995 Constitution but which have never been brought in conformity with it.

(iv) The usurpation of the judicial discretion of sentencing by the executive and legislative organs of State, in the innocent but mistaken belief that the people demand it. Yet the people through the Constitution clearly subjected the exercise of judicial power only to the extent which article 126 of the Constitution stipulates.

With all these factors in mind, I would make the following orders:

1. For all petitioners whose cases have been disposed of by the Supreme Court at the date of this judgment, *redress* is postponed for a period of two years from the same date to enable the President to exercise his prerogative of mercy under article 121 of the Constitution. The petitioners will be at liberty at the expiry of the *two years* to return to this Court for an order of redress in accordance with this judgment.

2. For the petitioners whose cases have not yet reached or been disposed of by the Supreme Court, at the date of this judgment, the petitioners shall not be subjected to a mandatory death sentence and shall be entitled to be heard on the question of sentence before the death sentence or any other appropriate sentence is pronounced on them. This means that at whatever stage in the appellate Courts the cases are, the petitioners shall be entitled to be heard in mitigation of sentence and the appellate Courts will exercise their discretion to confirm both conviction and sentence. Thereafter, the exercise of the prerogation of mercy under article 121 should be completed within three years from the date the conviction and sentence are confirmed by the Supreme Court. It will be unconstitutional to execute them after that period.

6. Conclusion

In this judgment, I have held, among other things, that it is unconstitutional for Parliament to direct Courts by a law to pass mandatory pre-ordained sentences determined by itself. While it has all the powers under the Constitution to prescribe any sentences, it is the duty of the Judiciary to impose an appropriate sentence after due process. Mandatory sentences deny an accused the right to be heard on the question of sentence, which amounts to denial of a fair trial. That contravenes articles 22(1), 28 and 44(c). Sentencing is a judicial function. It is not a legislative function. It is also not an executive function. The exercise of the prerogative of mercy should only be done after the judicial process on both conviction and sentencing have been finalised.

In that regard, I hold the view that section 47(6) of the Prisons Act (Chapter 304 Laws of Uganda), should be brought into conformity with the Constitution. It states:

> "For the purpose of calculating remission of a sentence, imprisonment for life shall be deemed to be 20 years imprisonment."

To my understanding, this provision has the effect of fettering the discretion of Courts to pass a sentence of imprisonment which is greater than 20 years!

Suppose, during sentencing, the Court does not use the term "life imprisonment" and for example simply impose a sentence of 50 years, does this provision confer the discretion on the prison authorities to deem 20 years' imprisonment as the maximum sentence imposed? Is this not another attempt by the legislature to pre-determine sentences without hearing the parties in order to determine an appropriate sentence? If a "life imprisonment" sentence is pronounced, why can't the convict serve imprisonment for life?

I do appreciate that there will be cases where a person sentenced to serve imprisonment for life deserves remission for good behaviour while in prison or indeed for any other just cause. Couldn't such a case be taken care of under article 121(1) of the Constitution where the President has the power to grant remissions of sentences to deserving prisoners?

In my opinion, if the Supreme Court confirms a sentence of life imprisonment, it will only do so in conformity with article 126 of the Constitution. It will only do so to give effect to the peoples' wish that the convict is an undesirable character in society and should be removed and kept away forever.

It would be unconstitutional for Parliament to authorise prison authorities to alter the sentence in the guise of calculating remission. Such a person is not entitled to any remission at all. If, however, the prison authorities think such a person is entitled to remission, they should make a representation to the President to exercise his constitutional powers under article 121 of the Constitution. Other than the President and in accordance with the Constitution, nobody should be allowed to alter the order of the Supreme Court passed in accordance with the Constitution of Uganda.

In the circumstances, where the Courts must fully comply with articles 22(1), 28 and 44(*c*), life imprisonment is a realistic alternative to a death penalty and it can only be a viable alternative if it means imprisonment for life, and not a mere 20 years as it is currently understood to mean.

Finally, this judgment does not advocate for the abolition of a death sentence at all. That was not an issue in this petition. The only issue was whether it is constitutional or not. The answer is, yes, it is allowed by the Constitution. However, in all cases, it should only be imposed after due compliance with article 22(1) of the Constitution. After the Court has heard from the prosecution and the accused what they wish to say on the issue of conviction and sentence and both conviction and sentence have been confirmed by the highest Court in the land, there is no reason why the sentence should not be executed unless it is commuted by the President within three years after the confirmation by the Supreme Court.

I would dismiss issues number one and two and four of this petition. I would allow the petition on issues number three and five. Issue number six is partially successful as indicated.

I would make no orders as to costs.

Mpagi-Bahigeine JA: This petition was brought under article 137 of the 1995 Constitution, of the Republic of Uganda, the Fundamental Rights and Freedoms (Enforcement Procedure) Rules of 1992; and the Rules of the Constitutional Court (petitions for declarations under article 137 of the Constitution) Directions, 1996.

It is challenging the constitutionality of the death penalty.

The petitioners herein are 417 inmates who were duly convicted and are on death row at the time of the hearing of this petition.

They were represented by the firm of Messrs *Katende, Ssempebwa* and Company Advocates with Mr John *Katende* and Professor *Ssempebwa* as lead counsel.

Learned State Attorneys, Mr Mike *Chibita*, Mr Ben *Wamembe* and Mr Sam *Serwanga* appeared for the respondent, Attorney-General.

The petition was based on the following grounds, namely:

(*a*) That sections 23(1), 23(2), 23(3), 23(4), 124, 129(1), 134(5), 189, 286(2), 319(2) and 243(1) of Penal Code Act (Chapter 120 of the Laws of Uganda) and sections 7(1)(*a*), 7(1)(*b*), 8, 9(1) and 9(2) of the Anti-Terrorism Act (Act 14 of 2002) to the extent that they permit the imposition of death

sentences upon persons on conviction are inconsistent with articles 20, 21, 22(1), 24, 28, 44(*a*), 44(*c*) and 45 of the Constitution.

(*b*) That section 99(1) of the Trial on Indictments Act (Chapter 23) and relevant sections of and provisions made under the Prisons Act (Chapter 304 of the Laws of Uganda) and referred to therein, are inconsistent with articles 24 and 44(*a*) of the Constitution in respect to the mode, manner and process prescribed for carrying out a sentence of death and in respect of any other manner or mode that may be prescribed for carrying out a sentence of death.

(*c*) That the actual process, mode and manner of implementation of a sentence of death, from the time of conviction until the actual carrying of the sentence, in accordance with section 99(1) of the Trial on Indictments Act (Chapter 23) are inconsistent with articles 20, 21, 22(1), 24, 28, 44(*a*), 44(*c*) and 45 of the Constitution.

(*d*) That sections 23(1), 23(2), 23(3), 23(4), 124, 129(1), 134(5), 189, 286(2), 319(2) and 243(1) of the Penal Code Act (Chapter 120 of the Laws of Uganda) and sections 7(1)(*a*), 7(1)(*b*), 8, 9(1) and 9(2) of the Anti-Terrorism Act (Act 14 of 2002) are inconsistent with articles 21, 28 and 44(*c*) of the Constitution is so far as in practice, the police and criminal justice system, can lead to the conviction and execution of innocent persons and they do not provide equal protection of the law to disadvantaged people in our society.

(*e*) That in the alternative and without prejudice to the above

(i) Sections 23(1), 23(2), 189, 286(2) of the Penal Code Act (Chapter 120 of the Laws of Uganda) and section 7(1)(*a*) of the Anti-Terrorism Act (Act 14 of 2002) to the extent that they prescribed the imposition of mandatory death sentences upon persons on conviction are inconsistent with articles 20, 21, 22(1), 24, 28, 44(*a*), 44(*c*) and 45 of the Constitution.

(ii) Section 132 of the Trial on Indictments Act (Chapter 23) to the extent that it restricts the right of a person convicted of any offence under sections 23(1), 23(2), 189, 286(2), 319(2) of the Penal Code Act (Chapter 120 of the Laws of Uganda) and section 7(1)(*a*) of the Anti-Terrorism Act (Act 14 of 2002) to appeal to a higher Court to vary the mandatory sentence imposed is inconsistent with articles 20, 21, 22(1), 24, 28, 44(*a*) and 45 of the Constitution.

The following orders of redress were sought:

(i) That the death sentence imposed on the petitioners be set aside;

(ii) That the petitioners' cases be remitted to the High Court to investigate and determine appropriate sentences under article 137(4) of the Constitution;

(iii) That the petitioners be granted costs of the petition;

(iv) That the petitioners be granted such other relief as the Court may feel appropriate.

A number of affidavits sworn by some of the petitioners were filed in support of the petition, regarding the cruelty and dehumanising nature of the death penalty.

The respondent denied all the allegations in the petition. The answer was supported by the affidavits of one Deborah Kobusingye, a relative (sister to one of the victims of a violent crime (murder)) regarding the trauma the relatives of the victims suffer and that of Angella Kiryabwire Kanyima, Principal State

Attorney and former Commissioner on the Constitutional Review Commission, to the effect that the majority of Ugandans still favour retention of the death penalty.

The gist of the answer to the petition is that the death penalty is still relevant to Uganda's circumstances, considering Uganda's peculiar violent history. The fact that other countries including some European jurisdictions have abolished it is no ground for Uganda declaring it unconstitutional.

At the commencement of the hearing the petition was amended to exclude paragraphs 1(*e*), 2(*c*), (*e*), (*f*) and 3(*b*)(iii).

The following issues were by consent framed for determination by the Court:

1. Whether the death penalty prescribed by the various laws of Uganda constitute treatment or punishment contrary to article 24 of the Constitution.
2. Whether the various laws of Uganda that prescribe the death penalty upon conviction are inconsistent with or are in contravention of articles 24 and 44 or any other provisions of the Constitution.
3. Whether the various laws of Uganda that prescribe mandatory sentences of death upon conviction are inconsistent with or are in contravention of articles 21, 22, 24 or any other provision of the Constitution.
4. Whether section 99(1) of the Trial on Indictments Act, which prescribes hanging as the legal method of implementing the death penalty is inconsistent with and in of contravention of articles 24, 44 and any other provision of the Constitution.
5. Whether the execution of the petitioners who have been on death row for a long period of time is inconsistent with and in contravention of articles 24, 44 or any other provision of the Constitution.
6. Whether the petitioners are entitled to the remedies prayed for.

In interpreting the Constitution, the Court will accord due weight to the particular circumstances in the country, including the widely-held societal norms, values and aspirations, article 126(1). Although public opinion may have some relevance, it is in itself, no substitute for the duty vested in this Court to interpret the Constitution and to uphold its provisions without fear or favour. The Court will give due regard to international jurisprudence and seek guidance from decisions in other common law jurisdictions.

The Court must promote the spirit, purpose and objects of the Constitution. The language of the provisions construed must not be strained by the judge so as to accord with her/his own subjective moral values, otherwise the spirit of the Constitution will be lost. All provisions bearing upon a particular subject are to be considered together and construed as a whole. This is the rule of harmonisation.

Mr John *Katende* discussed both issues one and two together, submitting that the imposition of the death penalty is inconsistent with articles 24 and 44(*a*) of the Constitution.

He argued that article 24 prohibits any form of torture, cruel, inhuman or degrading treatment of punishment while article 44(*a*) forbids any derogation from the enjoyment of the freedom from torture, cruel, inhuman or degrading

treatment or punishment. He submitted that reading these two articles together leads to the conclusion that the death penalty cannot be legally imposed because it is a cruel, inhuman and degrading sentence.

Mr *Katende* asserted that various laws prescribing the death penalty for instance, the Penal Code Act (Chapter 120 of the Laws of Uganda), the Anti-Terrorism Act (Act 14 of 2002), the Trial on Indictments Act (Chapter 23 of the Laws of Uganda, the Prisons Act (Chapter 304 of the Laws of Uganda) all contravene article 24 by prescribing *inter alia* a cruel punishment. He prayed that they should be struck down, and cited *Republic v Mbushuu* [1994] 2 LRC 335; *State v Makwanyane* [1995] IRRC 269; *Attorney-General v Salvatori Abuki* [2001] 1 LRC 63 and *Kyamanywa Simon v Uganda*, constitutional reference number 10 of 2000, in support of his contention.

He submitted that the words in article 24 should be read disjunctively because it is not necessary for a punishment to be simultaneously a torture, as well as a cruel and degrading sentence in order to offend article 24. Once a punishment offends any one of those conditions then it qualifies to be unconstitutional. He pointed out that although the death penalty is envisaged by article 22(1), it is prohibited by articles 24, 44(*a*) and those prohibitions under articles 24 and 44(*a*) are absolute. He concluded that the death penalty is cruel *per se*.

He pointed out that since the 26 affidavits of the petitioners were not challenged by the respondents the Court should believe them and hold that the death penalty is cruel, inhuman and degrading punishment which contravenes article 24. It is not saved by article 22(1). He argued that there is a clear conflict between articles 22 and 24 which has troubled many jurisdictions for instance Tanzania in *Mbushuu*'s case (*supra*) where the Court of Appeal held that though the death penalty was inherently cruel and degrading, it was authorised by the Constitution and thus did not strike the death penalty down. Similarly other jurisdictions with provisions like article 22 did the same and refused to strike it down. He asserted that in our case article 44 is a new and unique provision; it is not found in other Constitutions. It has an overriding effect over other provisions. There is a duty to observe it, therefore, as it applies to everybody. This article preserves the right to human dignity as unqualified. Therefore the death penalty cannot be allowed to stand in view of article 44 notwithstanding its apparent authorisation by article 22.

Referring to article 126(1) Mr *Katende* pointed out that though judicial power should be exercised in conformity with the law and with the values, norms and aspirations of the people, the Court is not to base itself on public opinion. Articles 126(1) and 24 are all subject to the overriding effect of article 44(*a*). He distinguished *Mbushuu*'s case in that there was no equivalent of article 44(*a*), that is why the offending law was not struck down. Referring to *Kalu v The State (Nigeria)* [1998] 13 NWLR 531, Mr *Katende* argued that the Constitution did not provide an absolute right to life. It had exceptions similar to article 22 and the Court declined to strike down the death penalty. It was held that the word "cruel" should be given special legal meaning which excludes ordinary natural dictionary meaning, whereas in Uganda, Oder JSC held in *Abuki* (*supra*) that words in article 24 were to be given their ordinary dictionary meaning.

Mr *Katende* prayed the Court to harmonise article 44 which outlaws the inhuman, cruel and the degrading death penalty with article 22(1) which envisages the death penalty as a lawful penalty and hold that article 44 clearly overrides all other provisions. It is the only article in the Constitution which starts with the word "notwithstanding . . ." Therefore all laws prescribing the death penalty should be declared unconstitutional, and be struck down.

The respondent's reply to issues one and two

Mr Benjamin Wamembe, learned State Attorney responding to issues one and two stated that the proper approach relating to fundamental rights should be dynamic and liberal taking into account people's social norms. He submitted that when these norms are applied to article 24, the death penalty does not constitute a degrading punishment. He argued that the words in article 24 should not be taken in their natural meaning but should be considered within the context of article 24. Article 24 comes after article 22 which validates the death penalty and article 23 which lists cases when a person can be deprived of personal liberty. He pointed out that article 24 was debated and passed after articles 22 and 23. Therefore the framers never intended that the Court would take away what had been debated in articles 22 and 23. He referred to the rule of constitutional interpretation that to take away a right given by the Constitution the legislature should do so in the clearest of terms. If the Constituent Assembly had intended to take away the right it recognised under article 22(1) by article 24, it would have done this by clear terms and not by implication as learned counsel for the petitioners has suggested. Mr Wamembe submitted that the combined effect of articles 22, 23 and 24 was intended to redress our bad history characterised by extra judicial killings and wanton detentions as the preamble to the Constitution illustrates. He pointed out that article 24 does not apply to a death penalty passed after a fair trial under the Constitution, by a Court of competent jurisdiction. The article was intended to apply to cruel, inhuman and degrading deaths like what the victims had suffered at the hands of the petitioners, who are cynically arguing that no one should be subjected to cruel, inhuman and degrading deaths. A State governed by law which refuses to use capital punishments ignores the inviolable value of life of the victims of violent crimes, by not giving them full justice. A rightly imposed death penalty gives meaning to article 24. People should feel safe by realising that murderers should also lose their lives against their will, he submitted. The death penalty gives citizens such a sense of dignity and security. A country using capital offence sends a message to the world that it values human life. The death penalty is a penalty of Court like any other sentence. The other sentences also involve pain. If a sentence is not painful, then it is not effective. Suffering is necessary for justice and retribution. Abolition of the death penalty was not the intention of the framers of the Constitution. Any sentence in prison is cruel, inhuman and degrading. A death penalty is thus not always negative, Mr Wamembe argued.

He prayed Court to consider article 126(1) when interpreting article 24. The emphasis should be on people from whom judicial power is derived and is to be administered in their names. He submitted that the death penalty is authorised by the Constitution. It cannot therefore be said to be inhuman and degrading. When passing sentence the Court exercises a value judgment, having regard to contemporary norms, aspirations and sensitivities of the people as

expressed in the Constitution. Having regard to a merging consensus of values in the civilised international community of which Uganda is a part, this Court should uphold the death penalty.

In conclusion, he submitted that the death penalty is not yet inhuman, cruel and degrading because values, norms and aspirations of the majority of Ugandans still approve of it as a just penalty for the most heinous of crimes, leading to loss of life. The people of Uganda accept it as a way of demonstrating their disapproval of serious crimes. He pointed out that this factor is reflected in the two affidavits in support of the answer to the petition. Uganda has not yet reached a stage of reviewing the death penalty as inhuman. It will be a gradual process. He prayed Court to answer issue number one in the negative.

Regarding issue number two, Mr *Wamembe* acknowledged that it had been partly answered under issue number one and pointed out that article 22(1) clearly validates all laws of Uganda prescribing the death penalty on conviction, whether such laws were enacted before or after the 1995 Constitution. Parliament is given power under article 79 to make laws including defining offences and imposing penalties. Parliament prescribes the death penalties under its mandate. The framers of the 1995 Constitution did not intend articles 24 and 44 to apply to what was already authorised by article 22. He submitted that the death penalty is not a torture, a cruel or degrading punishment under articles 24 and 44. These two articles were intended to address our bad history characterised by wanton killing and torture as clearly brought out by the preamble to the Constitution, as indicated above.

He pointed out that article 44 is relevant in relation to derogation of the specific human rights mentioned therein. The right to life is the most fundamental of all human rights and that all other rights mentioned in article 44 can only be enjoyed by a living person. Article 22(1) is a derogation from the right to life but it is not listed as a non-derogable right under article 44. Therefore the framers of the 1995 Constitution did not view a derogation from a right to life as cruel, inhuman or degrading punishment, otherwise they would have mentioned it under article 44. The death penalty is a derogation of the right to life but the right to life was not listed as non-derogable because article 22(1) satisfied all essential requirements for a law derogating from basic rights. It provides adequate safeguards against arbitrary decisions and also provides effective controls against abuse by those in authority when using the law. It also satisfies the principle of proportionality in the sentence that the limitation imposed on fundamental right to life is no more than reasonably necessary to achieve the legitimate object of the various laws of Uganda prescribing the death penalty as a sentence for the targeted members of society. Article 22(1) therefore, satisfies all these requirements as it was under the 1967 Constitution.

He further pointed out that the various laws prescribing the death penalty are under articles 22(1), 273, 43 and 28. These laws are not arbitrary because the penalty is required to be imposed by a competent Court after due process of law that is after a full trial in which the burden of proof is on the prosecution to prove the case beyond reasonable doubt with an automatic right of appeal to the highest appellate Court, the Supreme Court. There are various defences recognised under our laws to mitigate the seriousness of the offences for example insanity, intoxication, provocation, self-defence, automatism, etc, which ensure that each case is decided on its peculiar facts and circumstances. This ensures that crimes committed

on the spur of the moment are excluded and only the premeditated, deliberately planned ones requiring *mens rea* are punished. Free legal counsel is accessible under article 28(3)(*e*) at the cost of the State, for any offence carrying the sentence of death or imprisonment for life. Under article 121, there is a provision for seeking a pardon from the President who can substitute a less severe punishment or remit the death penalty. Article 28 and parts 7 and 8 of the Trial on Indictments Act (Chapter 23) sets out elaborate provisions on proceedings at the trial, guaranteeing fair hearing and the right of appeal.

Mr *Wamembe* asserted that the death penalty therefore passes the proportionality test because it is in the public interest. It was debated and passed by over 200 Constituent Assembly delegates representing the entire population of Uganda as reflected in the preamble. It is saved by article 22. It is not unconstitutional. Issue number two should also be answered in the negative.

My findings on issues one and two

On these two issues I agree with the findings of the rest of the learned members of the panel. I will only make a few comments.

The relevant articles state:

> "22(1) No person shall be deprived of life intentionally except in execution of a sentence passed in a fair trial by a Court of competent jurisdiction in respect of a criminal offence under the laws of Uganda and the conviction and sentence have been confirmed by the highest appellate Court.
>
> 24. No person shall be subjected to any form of torture, cruel, inhuman or degrading treatment or punishment.
>
> 44. Notwithstanding anything in this Constitution, there shall be no derogation from the enjoyment of the following rights and freedoms:
>
> (*a*) freedom from torture, cruel, inhuman or degrading treatment or punishment;
>
> (*b*) freedom from slavery or servitude;
>
> (*c*) the right to fair hearing;
>
> (*d*) the right to an order of *habeas corpus*."

Chapter 4 of the Constitution which enshrines the fundamental and other human rights including the right to life commences with article 20 which commands that these rights are inherent in the human being and must be respected by everyone and all agencies without exception. However, be that as it may, the Court is on the other hand faced with the duty to punish a criminal for his forbidden acts while bearing in mind society's reasonable exception of the Court to administer justice and award an appropriate deterrent punishment commensurate or proportionate to the gravity of the offence and in line with the public abhorrence for the heinous crimes like those committed by the petitioners. The upshot of the foregoing is that the right to life is the basis for the enjoyment of all other human rights. However, the right to life is qualified under article 22(1) where a person charged with and found guilty of murder or any other violent crime cannot be said to be arbitrarily deprived of his life if he has gone through due process and the penalty is the sentence of death.

I draw support from *Kalu v The State (Nigeria)* [1998] 13 NWLR 531 where section 30(1) of the Nigerian Constitution is similar to article 22(1) of the Uganda 1995 Constitution, and where it was held that although section 30(1) guarantees and protects the right to life it also permits deprivation of life pursuant to the execution of the sentence of a Court of law in a criminal offence.

Therefore where a Constitution makes a qualified provision in respect of the right to life, as is case with section 30(1), the death penalty is permissible and valid. Where however, the constitutional right to life is unqualified, the death penalty is unconstitutional. *State v Makwanyane and another* [1995] 1 LRC 269, where under the South African Constitution, the right to life is unqualified.

As rightly pointed out by Mr *Wamembe*, article 24 which prescribes respect for human dignity and protection from inhuman treatment comes after article 22 making it only logical that inhuman and degrading treatment referred to in article 24 must be outside the death penalty duly imposed by a competent Court, after due process.

I agree that the framers of the 1995 Constitution having so deliberately worded article 22 could not have in the same vein intended articles 24 and 44 to apply to article 22 without saying so expressly. It is trite that a right given by the legislature can only be taken away expressly by the same legislature. Thus where a Constitution makes a qualified provision in respect of the right to life as in the case with article 22, the death penalty is clearly permissible and valid. Article 44 does not protect the right to life as non-derogable.

The cases cited by Mr *Katende* in support of the petition can be commented on as follows: *Mbushuu and another v Republic* [1995] 1 LRC 216, though the Tanzanian Court of Appeal having upheld the trial's Court's finding that the death penalty was inherently a cruel, degrading and inhuman form of punishment, went on to hold that the Tanzanian Constitution permitted derogation from the prohibition of the "cruel, degrading and inhuman forms of punishment".

In *State v Makwanyane and another* [1995] 1 LRC 269, the right to life was unqualified. Capital punishment was thus declared to be unconstitutional.

In *Attorney-General v Salvatore Abuki and another*, the Court was discussing the effect of a 10 year banishment order after a prison sentence under the Witchcraft Act. The context under which article 44 was being discussed was therefore different. Similarly in *Kyamanywa Simon v Uganda*, constitutional reference number 10 of 2000, the Court was discussing corporal punishment which it held to be a torture, cruel and degrading treatment within article 44(*a*).

I, therefore, do agree with the learned State Attorney that as regards this petition the relevance of article 44 should be confined to the freedoms and rights stipulated therein. I will be discussing the safeguards for the derogation under article 22(1) when analysing issue number three. It is however, clear that the death penalty as a derogation from the right to life was deliberately left out of article 44. It was thus saved by the Constitution.

Although some jurisdictions may regard the death penalty as barbaric as contended by the petitioners, it is for the people to influence Parliament to bring about change in the laws. For the moment, in a declared democratic society the laws must reflect the wishes of the people. There was abundant evidence from the Constituent Assembly and the Constitutional Review Commission that the majority of Ugandans still favour the retention of the death penalty.

However, be that as it may, the duty of this Court is to interpret the Constitution. It is not empowered to rewrite it to change its meaning. It is further important to note that the death penalty is still envisaged by international instruments with similar safeguards as under article 22. The International Covenant on Civil and Political Rights, article 6(1) and (2) provides:

> "Every human being has the right to life and none shall be arbitrarily deprived of his life . . .
>
> . . . any one sentenced to death shall have the right to seek pardon or commutation of the sentence."

The UN General Assembly Resolution 2857 (XXVI) of 20 December 1971 called for restriction of the number of offences for which capital punishment may be imposed. To date it has not called for its total abolition. However, resolution number 1984/50 of 25 May 1994 adopted similar safeguards guaranteeing the protection of the rights of those facing the death penalty. The European Union Covenant for the Protection of Human Rights and Fundamental Freedoms, article 2 provides *inter alia*, that "everyone has a right to life and that life can only be taken away in execution of a sentence of a Court".

These international instruments thus recognise the right of States to derogate from the right to life but only to the extent strictly required by the exigencies of the situation and provided such derogation is not inconsistent with the respective Constitutions and international law. Therefore, Uganda is not isolated or alone in retaining the death penalty. It can thus be stated with certainty that the abolition of the death penalty is not a mark or indication of civilisation as remarked by Mr *Katende*. In Uganda's case it is retained as a result of historical circumstances as the preamble to the Constitution proclaims:

> "Recalling our history which has been characterised by political and constitutional instability . . ."

I would thus answer issue number one and two in the negative.

I now turn to issue number three, whether the various laws that prescribe mandatory sentences of death upon conviction are inconsistent with or are in contravention of articles 21, 22, 24, 44 or any other provisions of the Constitution.

This issue was argued in the alternative depending on the outcome of issues one and two, in case the Court found that the death penalty was not cruel or is saved by Constitution.

Arguing this ground, Professor *Sempebwa* submitted that if the death penalty was not recognised by article 22 then the various criminal statutes prescribing mandatory death penalty contravene various provisions of the Constitution. These include the Penal Code Act imposing mandatory death sentences for the following offences: under section 189 for murder, section 286(2) for aggravated robbery and section 23(1) for treason. He pointed out that the Trial on Indictments Act, section 99 (Chapter 23) removes the discretion from the Court in the case of murder where it is not permitted to inquire into mitigating factors before sentencing.

He submitted that the above provisions of law contravene articles 22(1), 28, 44(*c*) and 126 conferring judicial power to Court of law. Article 22 requires a fair trial and the sentence should be subjected to a fair trial to be confirmed by the highest appellate Court. In his view this means that the petitioners should be accorded a chance to present to Court mitigating circumstances and the facts relating to the offence as it was committed, to show Court that the death penalty is not the correct sentence. Furthermore, a fair trial implies a right of appeal against sentence but this is not so with a mandatory death penalty as other convicts do in other cases under section 98(1) of the Trial on Indictments

Act. He submitted that this is prejudicial to the petitioners. He cited *Mithu v State of Punjab* [1983] SOL case number 26 where the death penalty was challenged as violating article 21 of the Indian Constitution and it was held that

> "if the Court has no option save to impose the sentence of death, it is meaningless to hear the accused on the question of sentence. It becomes superfluous to state the reasons for imposing the sentence of death. The blatant reason for imposing the sentence of death in such a case is that the law compels the Court to impose that sentence."

He submitted that confirmation of sentence does not mean "rubber stamping", rather it means that the petitioners should be entitled to be heard by the appellate Court on sentence. Confirmation implies a discretion. He prayed Court to strike down the mandatory aspect of sentencing which the petitioners are challenging. This right to fair hearing is doubly entrenched by article 44(*c*) which prohibits any derogation from Court. Any statute taking away this right should be struck down as a bad law.

Referring to article 126, he argued that prescribing a sentence is a legislative function in a statute while imposing or applying that process is judicial power. In his view a statute imposing a mandatory death penalty is an intrusion in the exercise of judicial power under article 126 and under the principle of separation of judicial power. It is for the Court to decide what sentence, under their discretionary power, to impose after weighing all circumstances of the commission of the offence. All cases carrying the same penalty are not of similar gravity. There should be a discretion. He relied on *Mithu v Punjab State* [1983] SOL case number 26 (*supra*).

He submitted that a mandatory death penalty does not allow for consideration of personal circumstances of the offender and the offence. This is thus cruel, inhuman and degrading. It violates article 22(1) prescribing a fair trial with no chance of having the sentence confirmed.

It also violates article 28 as to the right to a fair hearing which is doubly entrenched by article 44(*c*). He prayed Court to declare all the statutory provisions aforementioned imposing mandatory death penalty as unconstitutional.

For the respondent, learned State Attorney, Benjamin *Wamembe* submitted that the mandatory death penalty is just like any other mandatory sentence under the laws of Uganda. Being mandatory does not make the death penalty unconstitutional. He pointed out that since the death penalty is allowed under article 22(1) then the various laws of Uganda prescribing mandatory death penalty upon conviction are not inconsistent with article 21 of the Constitution. He referred to article 21(4) providing that nothing in article 21 shall prevent Parliament from enacting laws that are necessary for (*b*) making such provisions that are required or authorised to be made under this Constitution or (*c*) providing for any matter acceptable and demonstrably justified in a free and democratic society. He submitted that a mandatory death penalty is a provision authorised to be made under article 22(1) and thus the various laws prescribing mandatory death penalty upon conviction are not inconsistent with or in contravention of article 21 or any other provision of the Constitution.

In the alternative and without prejudice to their submissions, he submitted that the mandatory death penalty is justifiable and demonstrably necessary in Uganda within the context of articles 21(4)(*c*) and 43 because the majority of

Ugandans approve the death penalty and in their view it is a just penalty for the most heinous of crime leading to loss of life and they also accept it as a way of demonstrating their disapproval of serious crimes. He asserted that article 43 allows Parliament to derogate from various human rights and freedoms enshrined in the Constitution to protect lives of Ugandans. This duty is also imposed by article 12 of the Universal Declaration of Human Rights. Providing a mandatory death penalty falls squarely within article 21(1), (2) and (3). In prescribing a mandatory death penalty, the legislature ensures that they do not give different treatment to different persons convicted of the same offence as provided in article 21(1), (2) and (3). Our criminal justice system does not prescribe degrees in murder and other offences as is the case in other jurisdictions, nor do those jurisdictions have the equivalent of articles 21 and 126.

Article 79 vests Parliament with exclusive powers to make laws for the good governance of Uganda. Under article 28(12) Parliament under its legislative mandate prescribes and defines offences and penalties. This is not the function of the Judiciary. Under the same legislative power, Parliament does not prohibit imposition of the mandatory death penalty. Thus the various laws prescribing mandatory death penalty are not unconstitutional. Courts have absolute unqualified discretion to decide whether a case has been proved beyond reasonable doubt or not, taking into account all available defences even if they are not raised by the accused. Courts have power to acquit or discharge an accused, or to convict him or her for a minor cognate offence where facts proved reduce the offence or can even convict of an attempt. Courts have power to call upon the accused pleading guilty to say why the sentence should be passed on them according to law under section 87, 88, 94 of the Trial on Indictments Act (Chapter 23). This is all as a result of fair hearing by which Courts are able to determine that the evidence adduced by prosecution is not sufficient to prove the charges beyond reasonable doubt. The implication of article 22(1) is that the conviction and sentence must have been confirmed. This means that the conviction and sentence are open to automatic appeal to have it reviewed by the appellate Court. Both the conviction and sentence are separable otherwise framers of the Constitution should have used appropriate words like “or” used in articles 24, 25(1), 44 etc. Article 22(1) used the word “and”. This article is supported by section 11 of the Judicature Act (Chapter 13) which provides that for purposes of an appeal, the appellate Court has all the powers, authority and jurisdiction vested in the Court of original jurisdiction. It re-evaluates the evidence afresh and draws own findings and conclusions. Appellate Courts are thus not rubber stamps as alleged by the petitioners. Therefore the mandatory death penalty does not deprive the Court of its discretion. Thus the various laws prescribing mandatory death penalty are not inconsistent with articles 21, 22, 24, 28 and 44 or any other laws.

He submitted that all the American cases cited by the petitioners were inapplicable in that they hold the death penalty under all circumstances to be cruel, inhuman and degrading punishment under the eighth amendment, whereas in Uganda it is saved by the Constitution. He prayed Court to answer issue number three in the negative.

My findings on issue number three

On this issue, I do respectfully differ from the findings of the majority.

It is clear that our criminal justice system provides sufficient safeguards against any arbitrariness and abuse of authority for the proper application of the death penalty as follows. Under the impugned statutes that prescribe the death penalty these capital offences are triable and heard by the High Court. These are offences of exceptional gravity, involving a complexity of issues that render them unsuitable for summary trial. Under article 139 of the Constitution the High Court is vested with unlimited original jurisdiction in all matters including exclusive jurisdiction over capital offences. Most importantly the accused is presumed innocent under article 28(3)(*a*) of the Constitution at the commencement of the hearing and it is incumbent upon the prosecution to prove him guilty beyond any reasonable doubt. The accused is availed access to legal counsel either of his own or if he cannot afford, he is entitled to legal representation at the expense of the State. During the trial, the Trial on Indictments Act, sections 3 and 67, makes provisions for two assessors to assist the judge. There are judges of facts and not of laws. If more than one is absent the trial has to start afresh otherwise it is a nullity – *Mohamed and another v Republic* [1973] EA 197. Even though the assessors' opinion is not binding on the judge, nonetheless he must give reasons for rejecting it. *Washington S/O Odindo v Republic* [1954] 21 EACA 393. The assessors' role or knowledge regarding customs, and habits of people is significant, in determining the accused's guilt. Their opinion is likened to the opinion evidence of a person especially skilled in foreign law, science or art. They strengthen the administration of justice. The right of appeal to the Court of Appeal and the Supreme Court is automatic, so that the verdict can be tested to the minutest detail. Should the conviction be upheld, the convict can petition.

The Advisory Committee on the Presidential prerogative of mercy under article 121(1) of the Constitution. The board advises the President on the exercise of the prerogative of mercy to grant a pardon either free or subject to other conditions. The President is, however, not bound by the board's advice. Capital offences thus filter through the system to the highest appellate Court, so as to eliminate any arbitrariness and abuse of authority in the administration of justice.

Once Parliament is mandated by the Constitution to define and prescribe a penalty under article 28(12) such a penalty as the mandatory death penalty does not become arbitrary by lack of mitigation at the last stage. The Court's duty is to evaluate the constitutionality of the mandatory penalty regardless of Parliamentary opinion though it sets the sentencing policy.

It is thus clear from the above safeguards that where a person is charged and found guilty of a capital offence, the death penalty is only imposed where the circumstances of the offence do warrant it, after exhaustive scrutiny. The Court balances the mitigating circumstances by considering all available defences available to the accused, for example, insanity, intoxication, depending on the evidence and draws up a just balance between the aggravating and mitigating circumstances which might for instance reduce murder to manslaughter to aggravated robbery to simple robbery or sustain the original capital charge. His right to a fair hearing within the meaning of article 28 is thus complied with.

This therefore supports the contention and reflects the facts that the death penalty is qualitatively different from a sentence of imprisonment and must be and is subject to certain procedural requirements right from arraignment to conviction and sentence. It is thus not correct or logical to state that mitigating factors which

are part of the penal system are availed only for non-capital offences. Judicial discretion is thus exercised in a rational and non-arbitrary manner, throughout from arraignment to the last appellate Court.

I do consider that the petitioners' argument would be applicable where Parliament prescribed or classified types or degrees of capital offences and set the sentencing policy accordingly. For the moment the law prescribes the same penalty for similar offences. There is therefore no discrimination.

It is noteworthy that punishment is not retribution of the past which cannot be undone, but for the sake of the future for everybody to learn to detest crime. The guilty should be punished and punishment should be equal to the gravity of the offence, (the proportionality test) though this does not lead and is not expected to totally eliminate crime. However, in knowingly breaking the law, the criminal declares he has a licence to commit the crime and puts everyone who would respect the law at a disadvantage.

In *Surja Ran v State of Rajanshan* AIR 1997 SC 18, it was held:

> "Such murders and attempt to commit murder in a cool and calculated manner without provocation cannot but shock the conscience of society which must abhor such heinous crimes committed on hapless innocent persons. Punishment must also respond to society's cry for justice against the criminal. When considering the punishment to be given to the accused, *the Court should be alive not only to the right of the criminal to be awarded a just and fair punishment by administering justice tempered with such mercy as the criminal may justly deserve but also the rights of the victims of crime to have the assailant appropriately punished* and society's reasonable expectation from the Court for the appropriate deterrent punishment conforming to the gravity of the offence and consistent with public abhorrence for the heinous crime committed by the accused." (emphasis added).

I respectfully adopt the above reasoning. A mandatory and otherwise lawful and proportionate sentence is not rendered unlawful merely due to lack of mitigation. The primary object of the death penalty is that it should deter and there is nothing unusual in such a penalty being mandatory. *Ong Ah Chuan v Public Prosecutor* [1981] AC 648.

I would thus conclude that the laws that prescribe mandatory sentences of death upon conviction are not inconsistent nor do they contravene articles 21, 22, 24, 44 or any other provisions of the Constitution.

Issue number three would be answered in the negative too.

Issue number four, was as to whether section 99(1) of the Trial on Indictments Act, which prescribes hanging as the legal method of implementing the death penalty is inconsistent with and is in contravention of articles 24, 44 and any other provision of the Constitution. Mr Sim *Katende* addressing the Court pointed out that the manner of hanging as a mode of carrying out the death penalty which was an agreed fact, is unconstitutional and thus null and void. He argued that it is exceedingly inhuman, cruel, degrading and torturous and thus in contravention of articles 24 and 44(*a*). He submitted that the Supreme Court in *Abuki*'s case (*supra*) completely banned torture, and cruel punishments in Uganda. He prayed Court to consider that the convict is not supposed to lose his constitutional protection.

He cited many cases where the death penalty had been adjudged to be cruel, and inhuman and asserted that it affects everybody connected with the process. I mean no disrespect by not reproducing them. They are not strictly relevant to

my findings. He outlined the effects of the very act of hanging on the body/ person of the convict prior to the actual passing away, and lamented the fact that the convict suffers an extreme death prior to his death. The method of hanging therefore violates articles 24 and 44(*a*).

In reply Mr *Wamembe* pointed out that the Constitution having saved the death penalty under article 22(1), it was up to the legislature to prescribe a method of carrying it out if no method is prescribed, the prison authorities would devise their own method. Hanging has been in use since 1938. It is never carried out in public. It is only the hangman and the convict in the death chamber. Therefore, nobody can testify to its dehumanising effect. The purported affidavits in support of the petition are mere hearsay, he asserted. They should not be relied on, he submitted.

Mr *Wamembe* pointed out that punishments by their very nature are intrinsically painful and unpleasant. Even the simplest punishment inflicts pain. Therefore section 99(1) of Trial on Indictments Act prescribing hanging is a valid law and is not inconsistent with any article of the Constitution.

I agree with my learned colleagues on the issue.

Section 99 provides:

> "(1) Sentence of death shall be carried out by hanging in accordance with the provision of the Prisons Act.
>
> (2) When any person is sentenced to death, the sentence shall direct that he or she shall suffer death in the manner authorised by law."

Though the mode of execution by hanging is unpleasant, it can be justified insofar as it discourages harmful behaviour. Without painful punishment there would be more pain and less pleasure in the country. Pain is an essential element of punishment. As pointed out above under issue number three, the punishment must conform to the gravity of the offence. I would thus answer this issued in the negative.

As regards issue number five, whether execution of the petitioners who have been on death row for a long period of time is inconsistent with and in contravention of articles 24, 44 or any other provision of the Constitution, Professor *Sempebwa* submitted that though the petitioners are not seeking expeditious disposal, the intervening delay between sentencing and hanging turns a lawful penalty into one of a cruel and inhuman penalty. The other aspects to this matter are the conditions in prison, the anguish and the expectation of death any time which are cruel and amount to a torture. These conditions are agonising, he said. Referring to *Catholic Commission for Justice and Peace v Zimbabwe* [1993] LR 279 where the petitioners had been on death row for over five years when the government announced their pending execution and they petitioned on the ground that due to the long intervening period, the death penalty had resulted into one which was unconstitutional to implement. The death penalty was thus commuted to life imprisonment recognising the long agonising period they had endured. He prayed Court to follow the authority.

In reply Mr *Wamembe* pointed out that there was no law to limit the time within which execution is to take place. It would therefore be unconstitutional for the Court to impose a time limit. The framers would have prescribed it if they had so wished.

On this issue, I would with respect disagree with the majority once again. My view is that, since there is no prescribed time limit within which execution should be carried out, the inevitable delay on death row only gives rise to an enforceable right under the Constitution but does not make the death sentence passed after due process illegal and unconstitutional. Admittedly, natural justice requires that the State devises a more efficient and speedier system of carrying of the executions, but I would not go so far as to prescribe any time limit. I would add, however, that the State is under an obligation to observe and maintain minimum standards of decency in living conditions in prison despite budgetary constraints.

My answer to issue number five, would therefore be in the negative.

Regarding issue number six, as to whether the petitioners are entitled to any remedy, all the issues having been answered in the negative, I would say none.

I would therefore dismiss the petition in *toto* with each party bearing its own costs, and I would so order.

Kavuma JA concurred in the judgments of Okello, Mpagi-Bahigeine, Twinomujuni and Byamugisha JJA.

For the petitioners:
Mr JW Katende and *Professor FE Ssempebwa* instructed by *Katende Sempebwa & Co*

For the respondent:
Mr M Chibita, Principle State Attorney, *Mr S Sewanga*, Senior State Attorney, *Mr B Wamembe*, State Attorney, *Mr G Atwine*, State Attorney and *Mr F Kabatsi*, State Attorney

Kinoti v Republic
[2005] 1 EA 209 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	5 November 2004
Case Number:	54/04
Before:	O'kubasu, Githinji and Waki JJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Appeal – Criminal procedure – Dismissal for want of prosecution – Whether appellant or his advocate must address Court – Whether the Court has a duty to consider the appeal before dismissing it – Sections 352 and 354 – Criminal Procedure Code (Chapter 75).

[2] Criminal procedure – Appeal – Dismissed for non-prosecution by counsel – Whether appeal may be heard in the absence of the appellant and his counsel – Whether Court must consider the appeal prior to dismissing it – Sections 352 and 354 – Criminal Procedure Code (Chapter 75).

Editor's Summary

The appellant was convicted of two counts of assault. He filed an appeal to the superior Court. On the first hearing date, the appellant's advocate was ready to proceed with the case but the State counsel applied for an adjournment. On the second hearing date, the roles were reversed with the appellant's advocate

instructing someone to apply for an adjournment on her behalf. The Court declined the application and proceeded to dismiss the appeal for non-prosecution. The appellant appealed to the Court of Appeal.

Held – The proper course for the appellant was to appeal against the dismissal of his appeal for want of prosecution. Under the Criminal Procedure Code, there is no provision for determination of an appeal that has been admitted to hearing without consideration by the Court of the merits or demerits thereof. While there is no mandatory requirement that either the appellant or his advocate or the State must address the Court, it is nonetheless incumbent on the Court to consider the appeal and make a determination.

Appeal allowed and remitted for re-hearing of the appeal.

No cases referred to in judgment

Judgment

O'kubasu, Githinji and Waki JJA: Joseph Kinoti, a police officer under interdiction, was charged and tried before Nyeri Senior Resident Magistrate's Court for the offence of assault causing actual bodily harm contrary to section 251 of the Penal Code. It was alleged that he unlawfully assaulted three different persons and occasioned them bodily harm on 7 October 2000 at his bar in Maro Moru town. He had also been charged with one count of unlawful confinement contrary to section 259 of the Penal Code, the allegation being that he unlawfully confined two of the persons he supposedly assaulted, at Naro Moru Police Station.

The trial Court acquitted him of the charge of unlawful confinement and one on assault, but convicted him on two counts of assault and sentenced him to a fine of KShs5 000 on each count, in default 90 days' imprisonment.

Kinoti was not satisfied with the decision of the Senior Resident Magistrate although he paid the fine. So, on 18 February 2002, he filed a petition of appeal in the superior Court and a supplementary petition of appeal on 23 October 2002. The appeal was not frivolous and was admitted to hearing on 12 May 2003.

The first hearing date was fixed for 15 November 2003 but there was no appearance for the appellant or the State. It was adjourned to 12 November 2003. On that day only counsel for the appellant appeared but there was no appearance for the State. It was adjourned to 2 February 2004. This time round, it was the appellant who had a problem. His advocate Mr *Ntarangwi* instructed another advocate to apply for adjournment for the reason that she was unable to travel from Meru where she is based, to Nyeri in time for the hearing. State counsel did not oppose the application for adjournment.

But the learned Judge, Khamoni J refused to grant an adjournment and proceeded to dismiss the appeal for failure to prosecute it. That is the order that provoked the appeal to this Court.

Before us, learned counsel for the appellant Mrs *Ntarangwi* and Senior State counsel Mr *Orinda* submitted, and we think rightly so, that the course open to the appellant upon dismissal of his appeal for want of prosecution was to take out a memorandum of appeal to this Court: That is because there are no provisions in the Criminal Procedure Code (Chapter 75 Laws of Kenya) for

setting aside such dismissal before the same Court. Indeed, there is no provision for determination of an appeal that has been admitted to hearing without consideration by the Court of the merits or demerits thereof.

We think section 352(1) of the Criminal Procedure Code underscores the gravity of rejection of an appeal filed by a convicted person which is no grounds other than that the conviction is against the weight of the evidence, or that the sentence is excessive. In relevant part the section provides:

> "352 (1) When the High Court has received the petition and copy under section 350, a judge shall peruse them, and, if he considers that there is no sufficient grand for interfering, may, notwithstanding the provisions of section 59, reject the appeal summarily:
>
> *Provided that no appeal shall be rejected summarily unless the appellant or his advocate has had the opportunity of being heard in support of the appeal, except . . .*" (emphasis ours)

The appeal before the superior Court had gone beyond section 352, and was governed by sections 353 and 354. Section 353 which relates to "notice of time and place of hearings" had been complied with and is couched in mandatory terms. Not so section 354 which relates to the "powers of the High Court at the hearing of the appeal". It states:

> "354 (1) At the hearing of the appeal the appellant or his advocate *may* address the Court in support of the particulars set out in the petition of appeal and the respondent or his advocate *may* then address the Court.
>
> (2) The Court *may* invite the appellant or his advocate to reply upon any matters of law or fact raised by the respondent or his advocate in his address.
>
> (3) The Court *may* then, if it considers that there is no sufficient ground for interfering, dismiss the appeal or *may . . .*" (emphasis ours)

In our view, there is no mandatory requirement that either the appellant or his advocate, or the State should address the Court. It is nonetheless incumbent on the Court to consider the appeal and make a determination in accordance with section 354(3) of the Criminal Procedure Code.

With respect, the learned Judge of the superior Court was in error in dismissing the appeal summarily. We are of the further view that the grounds advanced by the appellant's advocate in seeking an adjournment were, in the circumstances of this case, reasonable. The appellant and the solitary absence of his counsel would not have caused any prejudice. The State, in addition, was not opposed to the adjournment.

For those reasons, we allow the appeal, quash the order dismissing the appeal and remit the record back to the superior Court for hearing and determination in accordance with the law.

For the appellant:
Mrs Ntarangwi

For the respondent:
Mr Orinda instructed by Attorney-General

Kolongei v Republic
[2005] 1 EA 212 (CAK)

Division: Court of Appeal of Kenya at Nairobi

Date of judgment: 14 January 2005

Case Number: 84/04

Before: Githinji, Waki and Onyango Otieno JJA

Sourced by: LawAfrica

Summarised by: C Kanjama

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[1] Appeal – Second appeal – Sentence of 18 years' imprisonment and additional fine of KShs83,4 million – Fine enhanced by first appellate Court from original fine of KShs10 million – Whether a second appeal may properly be taken against the legality of sentence.

[2] Criminal procedure – Sentence – Offence of trafficking in narcotic drugs – Sentence of 18 years imprisonment and fine of KShs10 million – Fine enhanced by first appellate Court to KShs83,4 million – Whether second appeal against sentence may be entertained – Section 361 – Criminal Procedure Code (Chapter 75).

[3] Evidence – Judicial notice – Illegal transactions are carried out in the black market – Expert evidence – Street value of narcotic drugs determined from intelligence obtained from addicts – Certificate of value given by authorised officer – Whether chief inspector of anti-narcotics unit at the airport was an expert for purposes of opinion on value of drugs – Whether certificate of value was sufficient evidence.

[4] Statute – Interpretation – Penal statute – Presumption in favour of strict construction – Purposive approach – Whether purposive approach of interpretation has modified the presumption in favour of strict construction – Whether under the purposive approach "street value" of drugs is synonymous with "market value" – Narcotic Drugs and Psychotropic Substances (Control) Act 4 of 1994.

[5] Words and phrases – "Street value" – "Market value" – Whether the words refer to the same thing – Interpretation to be given in a Penal statute – Narcotic Drugs and Psychotropic Substances (Control) Act 4 of 1994.

Editor's Summary

The appellant was a stewardess with the national carrier. While travelling as an ordinary passenger, her luggage was found to contain a large amount of an illegal drug, namely heroin. The appellant resisted the search of the luggage but eventually admitted possession of the drug after her luggage was investigated. She made a statement in which she explained that she was acting as a carrier for profit. She retracted the confession at trial, but the confession was admitted in evidence after a trial within a trial. The appellant was convicted on the basis of the evidence and appealed against both conviction and sentence. She abandoned her appeal against conviction. After consideration, the first appellate Court confirmed the sentence of imprisonment and enhanced the fine on the basis of its interpretation of the Penal statute.

The appellant then preferred a second appeal, in which it was argued that the sentence was illegal, that it was based on a defective charge and that the appellate Judge's assessment of the value of the offending drugs was erroneous.

Held – There was an age-old presumption in common-law jurisdictions against unclear charges in criminal law, and however unreasonable one of the meanings

would be, it would be applied favourably to the accused. The presumption in favour of strict construction of Penal statutes was however moulded and modified by the purposive approach. *Nothman v Barnet Council* [1978] 1 WLR 220 adopted. In the Penal statute herein, no definition had been given to the phrase "market value". In common parlance it would denote the price which an item would reasonably be expected to fetch in the open market. It is however a matter of notoriety, of which the Court would take judicial notice, that prohibited or illegal transactions would ordinarily be carried out in the "black market" or "street market". No prejudice was caused to the appellant by the adoption of the terminology "street value". *Bryne v Low* [1972] 3 All ER 526 considered.

The question of severity of sentence was a question of fact for which a second appeal could not be sustained. However, the second appellate Court could properly deal with the question of legality of the sentence.

The evidence on the value of the narcotic drugs herein was given by an officer who has obtained the information from intelligence experience of two and a half years. The said valuation was done by a competent officer *Gazetted* for that purpose under the relevant Act. His certificate of value was *prima facie* evidence. No expert evidence was tendered by the appellants to contradict the properly tendered evidence of value. *Khan v Republic* [2000] LLR 2849 (CAK), *Buelvas v Pierre and Anthony* [1985] LRC (Crim) 462, *Mutonyi v R* [1982] KLR 203 distinguished; *Rolex Watch Co Ltd v Commissioner of Customs and Excise* [1967] 2 All ER 589 adopted.

The sentencing guidelines in the Penal statute had not usurped the power of sentencing from the Judiciary and did not offend the principle of separation of powers. The valuation by the investigating officer did not oust the discretion of the trial Court to accept or reject the evidence. No constitutional violation had been committed. *Browne v R* [1999] 3 LRC 440, *Mohamed Ali v The Queen* [1992] 2 WLR distinguished.

Appeal dismissed.

Cases referred to in judgment:

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Khan v Republic [2000] LLR 2849 (CAK) – **D**

Mutonyi v Republic [1982] KLR 203 – **D**

United Kingdom

Browne v Republic [1999] 3 LRC 440 – **D**

Bryne v Low [1972] 3 All ER 526 – **C**

Buelvas v Pierre and Anthony [1985] LRC (Crim) 462 – **D**

Mohamed Muktar Ali v The Queen [1992] 2 WLR 357 – **D**

Nothman v Barnet Council [1978] 1 WLR 220 – **A**

Rolex Watch Company Limited v Commissioner of Customs and Excise [1967] 2 All ER 289 – **A**

Tuck and Sons v Priester [1887] 19 QBD 629

Judgment

Githinji, Waki and Onyango Otieno JJA: This appeal raises some novel issues on a relatively new Act of Parliament which came into operation in August 1994 – The Narcotic Drugs and Psychotropic Substances (Control) Act, Act 4 of 1994 as read with legal notice number 291 of 1994 (hereinafter "the Act"). Its import was to:

> "Make provision with respect to the control or the possession of, and trafficking in, narcotic drugs and psychotropic substances and cultivation of certain plants; to provide for the forfeiture of property derived from, or used in, illicit traffic in narcotic drugs and psychotropic substances and for connected purposes."

Priscilla Jemutai Kolongei (hereinafter "the appellant") is currently serving a term of imprisonment of 18 years at Langata Women's Prison. The term was imposed by Mrs Karanja, Senior Principal Magistrate (as she then was) in Kibera criminal case number 2545 of 2002 on 6 November 2002. Over and above the prison sentence a fine of KShs10 million was imposed and in default of payment of the fine the appellant was to serve another 12 months' imprisonment. The charge which attracted that sentence was this:

> "Trafficking in narcotic drugs contrary to section 4(*a*) of the Narcotic Drugs and Psychotropic Substances (Control) Act 4 of 1994."

And the particulars:

> "Priscilla Jemutai Kolongei: On the 25 March 2002, at Jomo Kenyatta International Airport in Nairobi within Nairobi Area, trafficked in 27,8 kilograms of narcotics drugs namely diacetylmorphine commonly known as heroin with a street value of KShs27 800 000 in contravention of the said Act."

The appellant pleaded not guilty to that charge and a full trial was carried out. It was proved beyond doubt through 12 prosecution witnesses that the appellant who was a stewardess with the national carrier, Kenya Airways, was on the morning of 25 March 2002 travelling from Mumbai, India, on flight KQ 201 as an ordinary passenger. The flight touched down at 7:15am at the Jomo Kenyatta International Airport, Nairobi and the appellant went to the baggage hall where she collected one suitcase and a travelling bag. She put them on a trolley and wheeled them to the customs desk for necessary checks. On being asked what she was carrying in the bags, the appellant responded that it was bed-sheets. The customs officer insisted on checking the bags as the appellant was reluctant to open them and when they were opened and searched some strange smell oozed out. The officer insisted on a more thorough check as the appellant tried to coax him not to. At the verification room it was confirmed that some brownish powder was wrapped in polythene paper and concealed in jeans trousers. The baggage tag was tallied with the appellant's air ticket and passport. The appellant also confirmed the luggage was hers and that she had packed them. An inventory of the items found, which included 33 packages and two sachets of the brownish substance, was taken and the appellant countersigned it. A seizure notice in respect of the drugs was also issued and countersigned by the appellant who was present when they were weighed and samples taken to the Government chemist. They weighed 27,8 kilograms.

At the Government chemist it was confirmed that all the sachets contained diacetylmorphine which is commonly known as heroin.

In her self-recorded statement to the police on the day of arrest, which was retracted but admitted in evidence after a trial-within-trial, the appellant admitted that the drugs were found with her but said she was carrying them for someone else on a promise of being paid some US$200 on delivery of the drugs. She denied in Court that she had known that she was carrying heroin. It was nevertheless found that she had been informed by persons who approached her in Mumbai that she was to carry "prohibited merchandise" even before it was packed into her baggage. It was not the first time she had been used for such assignment as she had previously been paid US$900 for a similar mission. Her conduct at the airport and all surrounding circumstances as carefully analysed by the trial Court corroborated her statement that she knew she was carrying the drugs and did not use reasonable care and precautions to ensure that she was not importing illegal drugs into this country. In the end the appellant was convicted and the sentence stated above was imposed.

At first the appellant was dissatisfied with the conviction and sentence and so preferred an appeal to the High Court against both. At the hearing of the appeal before Kubo J, however, the appellant, who was represented by counsel, abandoned the appeal against conviction and proceeded to urge the appeal against sentence only. In a considered judgment delivered on 15 December 2003 on that issue, Kubo J dismissed the appeal against the term of imprisonment of 18 years. However, on the issue of the fine, he made the following finding:

> "On the question of fine, the law provides for *a fine of one million shillings or three times the market value of the narcotic drug or psychotropic substance, whichever is the greater. In my respectful view, the law is clear and categorical: the convict is either fined* one million shillings if the street value of the drug or psychotropic substance is less than that amount or the convict is fined three times the street value of the drugs or psychotropic substance if its value is greater than one million shillings. The Court has no discretion in the matter and the learned trial Magistrate misdirected herself in law by holding that she had discretion in the matter. It follows that, in my respectful view, the sentence of KShs10 million awarded by the magistrate is unauthorised by law and I must interfere with it in order to bring it within the law.
>
> The fine of KShs10 million passed against the appellant for the offence of trafficking in narcotic drugs or psychotropic substances, contrary to section 4(*a*) of the Narcotic Drugs and Psychotropic Substances (Control) Act of 1994 is hereby set aside and substituted with a fine of KShs83,4 million, being three times the street value of the drugs or psychotropic substances in compliance with the law. The default sentence of 12 months' imprisonment is the maximum permissible in law by virtue of section 28(2) of the Penal Code and the same is hereby upheld."(emphasis added)

This is a second appeal whose parameters are set under section 361(1) of the Criminal Procedure Code as follows:

> "A party to an appeal from a subordinate Court may, subject to subsection (8), appeal against a decision of the High Court in its appellate jurisdiction on a matter of law, and the Court of Appeal shall not hear an appeal under this section:
>
> (*a*) on a matter of fact, and severity of sentence is a matter of fact; or
>
> (*b*) against sentence, except where a sentence has been enhanced by the High Court, unless the subordinate Court had no power under section 7 to pass that sentence."

Subsection (8) and section 7 are not relevant. So that, the severity of the term of imprisonment imposed and confirmed by the two lower Courts at 18 years is not appealable as such since it is a matter of fact. Learned counsel for the appellant Mr *Obuo* however stated that the appeal was not against severity of sentence but the legality of it. He also stated that the superior Court had enhanced one limb of the sentence that brought the appeal squarely under section 361(1)(*b*) above.

The memorandum of appeal filed by Mr *Obuo* contains the following 14 grounds:

"1. The learned Judge erred in not finding that the sentence was based on a fatally defective charge (*sic*) as the charge the street value and not the market value as required by section 4(*a*) of the Narcotic Drugs and Psychotropic Substances (Control) Act 4 of 1994.

2. The learned Judge erred in law failing to hold that a sentence based on a value not known to the law was patently illegal.

3. The learned Judge erred in law in failing to re-evaluate the evidence upon which the value of the drugs in question was arrived at.

4. The learned Judge erred in law in failing to find that what the prosecution allegedly proved was the street value and not the market value as required by the law.

5. Without prejudice to the foregoing, the learned Judge erred in law in failing to hold that the so called street value was never established satisfactorily as to be the basis of the staggering fine.

6. The learned Judge erred in law in failing to hold that PW12's evidence as to the value of the drugs could not be relied upon as he was the investigating officer and hence could not be impartial.

7. The learned Judge erred in law in failing to hold that the evidence of PW12 just like any other expert was not binding on the Court and the Court was bound to analyse that evidence and arrive at its own independent conclusion.

8. The learned Judge erred in law in not finding that the manner in which the prosecution arrived at the value of drugs was arbitrary, capricious, oppressive and utterly without any basis in law.

9. The learned Judge erred in law when he failed to find that the appellant's constitutional right to a fair trial before an independent and impartial tribunal established by law was violated when the lower Court accepted the evidence of PW12 as to the value of the drugs at face value and upon which the amount of fine was based.

10. The learned Judge erred in law when he failed to find that the charge having provided for street value rather than market value as by law required, violated the principle of legality.

11. The learned Judge erred in law in not finding that the evidence of PW9 was highly prejudicial to the appellant and had no probative value whatsoever.

12. The learned Judge erred in law in failing to hold that the entire proceedings in the lower Court was highly prejudicial and tainted with illegality.

13. The learned Judge erred in not finding that conviction and sentence were inextricably intertwined in this matter and one could not be dealt with without the other.

14. The learned Judge erred in law when he enhanced the original fine of KShs10 million to KShs83,4 million on his own motion and without any notice to the appellant."

Ground 13 was abandoned before the appeal was argued as it obviously referred to "conviction" when the appeal had nothing to do with conviction. It appears however that it was a tactical retreat, since in the end, in a dexterous move, Mr *Obuo* urged us to nullify the conviction anyway. We shall come to that shortly. He argued grounds one, two, four and 10 together, grounds three and five together and the rest of the grounds singularly. We may summarise his arguments:

The first set of grounds attacks the basis upon which the sentence of a fine was made. Mr *Obuo* referred to the relevant provisions of the law under which the appellant was convicted and sentenced that is section 4(*a*) which states:

> "Any person who trafficks in any narcotic drug or psychotropic substance or any substance represented or held out by him to be a narcotic drug or psychotropic substance shall be guilty of an offence and liable:
>
> (*a*) in respect of any narcotic drug or psychotropic substance to a fine of one million shillings *or three times the market value of the narcotic drug* or psychotropic substances, whichever is the greater, and, in addition, to imprisonment for life." (emphasis supplied)

He submitted that the only lawful sentence that may be imposed on an offender under that section was based on the market value of the drug if that is the option available to the trial Court. Market value underpins the penalty and it is defined in the Act. In this case however, there was nowhere "market value" was referred to. The charge sheet referred to "street value," the evidence referred to "street value" and both the trial and first appellate Courts referred to "street value." They were all references to non-existent provisions of the law and therefore it was illegal to pass sentence on the appellant on that basis. As criminal law is about clarity and precision and the law here uses one term and not the other, it is not possible that the two terms are interchangeable. The entire sentence should therefore be set aside.

In response to that issue, learned State counsel Mr *Kaigai* submitted that the two words mean one and the same thing. There was no complaint at any stage that the appellant did not understand the charge. On the contrary, she knew the case was about an illegal drug which has no legal market. Nothing therefore turns on the failure in the charge sheet, or in the evidence, or references by the two Courts below to "street value."

As we stated at the outset this is one of the novel arguments the Act has given birth to since its enactment. We perceive the argument advanced by Mr *Obuo* to be an exposition of the age-old presumption, in common law jurisdictions, against unclear charges, particularly in criminal law, that if they were capable of two meanings, however unreasonable one of those meanings be, it was applied favourably to the accused. So too the presumption in favour of strict construction of Penal statutes that, in the words of Lord Esher in *Tuck and Sons v Priester* [1887] 19 QBD 629:

> "If there is a reasonable interpretation which will avoid the penalty in any particular case, we must adopt that construction. If there are two reasonable constructions we must give the more lenient one. That is the settled rule for construction of penal sections."

Such presumptions have however been moulded and modified by changing times and circumstances and the approach now as stated by Cross on *Statutory Interpretation* (3ed) at 173 is that:

> "The Courts nowadays generally adopt a purposive approach even to the construction of Penal statutes. For the most part they seek the interpretation which makes sense of the statute and its purpose and the presumption of strict construction is merely an ancillary aid for resolving difficult cases."

Lord Denning was even more blunt in rebuking strict constructionists in *Nothman v Barnet Council* [1978] 1 WLR 220 when he said:

> "It is the voice of the strict constructionists. It is the voice of those who go by the letter. It is the voice of those who adopt the strict literal and grammatical construction of the words, heedless of the consequences. Faced with glaring injustice, the judges are, it is said, impotent, incapable and sterile. Not so with us in this Court. The literal method is now completely out of date. It has been replaced by the approach which Lord Diplock described as the 'purposive approach.' In all cases now in the interpretation of statutes we adopt such a construction as will 'promote the general legislative purpose' underlying the provision. It is no longer necessary for the judges to wring their hands and say: 'There is nothing we can do about it.' Whenever the strict interpretation of a statute gives rise to an absurd and unjust situation, the judges can and should use their good sense to remedy it – by reading words in, if necessary – so as to do what Parliament would have done, had they had the situation in mind."

See "Interpretation of Statutes" in *The Discipline of Law* at 16.

The voice rebuked was from an appeals tribunal lamenting thus:

> "Clearly someone has a duty to do something about this absurd and unjust situation. It may well be however that there is nothing we can do about it. We are bound to apply provisions of an Act of Parliament however absurd, out of date and unfair they may appear to be. The duty of making or altering the law is the function of Parliament."

We find no ambiguity which we have to resolve in the statute before us. On the other hand the sense and purpose of the statute is clear as reproduced in the preamble to the Act above. The gravity of the mischief intended to be prevented and punished, and the social conditions giving rise to the Act are also not lost to us and therefore the interpretation that commends itself to us is one that will not bring the law into disrepute and undermine public confidence in the administration of justice by setting the guilty free.

We do not find any definition of "market value" in the Act as contended by Mr *Obuo*, although those are the words used in the relevant section. In common parlance it connotes the price which an item ought reasonably to be expected to fetch on a sale in the open market, that is between a willing seller and a willing buyer. When the market is legal, formal, free and aboveboard, no questions would of course arise. It is however a matter of notoriety, and we take judicial notice of it, that prohibited or illegal transactions would normally be carried out in the "black market" or the "street market." There would still be a willing seller and a willing buyer there and it is no less a "market" in that sense. The illegal item would have its "market value" there.

The argument before us has a familiar ring to it in *Bryne v Low* [1972] 3 All ER 526. In that case, the prohibited goods imported into Britain were indecent magazines and cine films. The accused was convicted and sentenced to a fine by the trial Magistrate. On appeal to the quarter sessions, the fine was reduced on the ground that since the importation of the articles was prohibited, there would be no "open market" for them within the relevant section by which to fix the value of the goods. On a reference to the High Court on that issue, Lord Widgery CJ stated, and the other members of the Court agreed, that:

> "It is contended before us today, and I think clearly the contention is correct, that in deciding what is the open market value of goods of this kind, one is not restricted by the distinction between the so called black market and white market. What is being sought is the price which a willing seller would accept from a willing buyer for these goods as landed at the port or airport at which they were originally landed. If we can ascertain what is the price which would be paid by a willing buyer to a willing seller at the port of entry, then that is the open market value of the goods for present purposes, and the penalty accordingly can be put up to a maximum of three times the value."

In this case we see no fundamental difference in reference to "street value" instead of "market value." At all events, as correctly submitted by learned State counsel, there was no prejudice caused to the appellant in adopting such terminology during the trial. That ground of appeal fails.

The more difficult part is the second set of grounds of appeal taken by Mr *Obuo*. He submitted that even if "street value" could be understood to be "market value," such value was not proved and it could not therefore form the basis of the fine imposed. He referred to the decision of this Court in *Khan v Republic* [2000] LLR 2849 (CAK) where the appeal was allowed on grounds, *inter alia*, that:

> "There was no evidence at all at the trial as to the value of the heroin and upon which sentence of KShs39 million or in default, one year imprisonment could be based. The value of heroin as given in the charge sheet, is by itself, no evidence as to the value of the heroin."

The sentence was declared invalid. Reference was also made to a persuasive decision from *Trinidad and Tobago, Buelvas v Pierre and Anthony* [1985] LRC (Crim) 462. It was a case relating to the Customs Ordinance there which had a penal section on importation of prohibited goods and a punishment provision that the offender shall "incur a penalty of $500 or treble the value of the goods at the election of the comptroller of customs". The customs officer testifying in respect of the value of the goods, on which the sentence was based, did not indicate the basis upon which he valued the prohibited goods but merely said:

> "On 13 August 1983, the value of cannabis sativa for customs purposes we *(sic)* arrived at $400. From my knowledge of (*sic*) experience, I can value the cannabis sativa."

And in cross-examination:

> "Over a length of time one gathers the experience. I was not involved in the purchase on (*sic*) sale of marijuana."

The Court of Appeal in an opinion expressed *obiter*, said such evidence was unacceptable and they would have quashed the sentence even if the conviction would stand.

In the case before us the entire evidence on value came from Chief Inspector John Kemboi (PW12), the officer in-charge of the anti-narcotics unit at Jomo Kenyatta International Airport. He stated:

> "(1) The street value of 27,8 kilograms of heroin is 27 million 800 (27 800 000). I am the proper officer to give value of the heroin. I am *Gazetted vide* Kenya *Gazette* number 3669 dated 21 May 2001 (MF1 68).
>
> In accordance to that *Gazette*, I prepared and signed my certificate of valuation of the said narcotics - valuation certificate marked MF1-69. When I was taking over the exhibits from Mr Ndegwa, I signed the register."

In cross examination:

> "The heroin was worth 27,8 million. We get the street value from intelligence – from the addicts etc 1 gram of heroin on the street goes for KShs1 000. I am a *Gazetted* officer to value drugs."

And in re-examination:

> "I have experience having been in anti-narcotics for two and a half years. We interact with addicts and also have our intelligence network. That is how we know the value. The business is illegal and so that is why we call it 'street value'."

Apart from being attacked as insufficient, that evidence was branded as worthless because it should have come from an expert and Chief Inspector of Police (CIP) Kemboi was not one. Citing *Mutonyi v Republic* [1982] KLR 203, Mr *Obuo* submitted that:

> "Expert evidence is given by a person skilled and experienced in some profession or special sphere of knowledge from facts reported to him or discovered by him by tests, measurements and the like."

For his part Mr *Kaigai* for the State submitted that the valuation was proper as it was given by a competent officer *Gazetted* for that purpose. The officer's source of information was intelligence sources for there was no open market for illegal drugs. At all events there was no expert evidence tendered to rebut that *prima facie* value given by CIP Kemboi.

We have anxiously considered this ground of appeal and have come to the conclusion that it too has to fail.

In the first place the authorities cited in aid by the appellant are all distinguishable. What irked the Court in the *Hamayun Shah* case is that there was no attempt at all to provide any evidence on the value of the drug. Only the charge sheet mentioned it. That is not the case here as there was oral evidence which was available for evaluation by the Court. The *Trinidad and Tobago* case was an opinion expressed in *obiter dicta*. The statute under consideration there was the Customs Ordinance under which the penalty was provided and there was a specific provision on the basis for valuing the prohibited goods and therefore the punishment to be meted out. The witness in that case did not refer to that provision as the basis for his valuation nor was a certificate under the hand of the comptroller of customs of the value of such goods produced as provided for under the ordinance. In contrast, there is no express provision in the case before us on the basis to be used for calculation of the value of prohibited drugs under the Act. The only express provision is in section 86 of the Act which was complied with. It states:

> "Where in any prosecution under this Act any fine is to be determined by the market value of any narcotic drug, psychotropic substance or prohibited plant, a certificate under the hand of the proper officer of the market value of such narcotic drug or psychotropic substance shall be accepted by the Court as *prima facie* evidence of the value thereof.
>
> In this section 'proper officer' means the officer authorised by the minister by notification in the *Gazette* for the purposes of this section."

We think the enactment of that section was an obvious recognition of the difficulty in the availability of first hand knowledge of what a willing seller would accept from a willing buyer for goods such as narcotic drugs which are illegal. The certificate remains *prima facie* evidence which may be challenged by other evidence, in the absence of which it is the only evidence to be relied upon in addition to any other evidence on record.

The *Mutonyi* case is also distinguishable. It was on the Prevention of Corruption Act and the evidence in issue there clearly required an expert as it involved the use of "APQ" powder on the appellant's hands and shirt which was a matter of forensic science. In terms of section 48 of the Evidence Act, it was an opinion on a point of "science or art or as to identify (*sic*) or genuineness of handwriting or finger or other impressions." The superintendent of police who dusted the appellants in that case gave no details of his skill and experience in that forensic science. All he said was that he examined the appellant "with alleviated radiation in a dark non-contaminated room and found fluorescent specks on the hands." Swabs taken from the same hands however showed no presence of "APQ" powder, and it was not possible therefore to resolve the conflict. The Court was right to disregard such evidence as the opinion of the police officer was unreliable.

In this case the source of the opinion given by CIP Kemboi on the value of the drug was intelligence gathered by him from drug addicts he has interacted with in the two and a half years he headed the anti-narcotics squad and from other intelligence networks. He was a *Gazetted* officer for valuation of drugs and that was not challenged. Once again we must appreciate the difficulty in obtaining authenticated values in such circumstances but in the absence of any other evidence to challenge CIP Kemboi, the trial Court was right to believe him. In *Byrne v Low* (*supra*) which is relied on by Mr *Obuo*, the Court followed the common sense approach proposed by Birket LJ in *Rolex Watch Company Limited v Commioner of Customs and Excise* [1967] 2 All ER 289:

> "If there is a sole concessionary, *ipso facto* the free open market vanishes, and one must do the best one can, taking a notional open market, and considering all the factors bearing on the question of price."

The solution therefore in our view, where the trial Court is faced with scanty material on valuation, is not to throw up one's hands and dismiss the valuation, but to do their best to find the willing seller willing-buyer price, or simply the market value.

We think in this case the material on record was sufficient to support the valuation of the drug weighting 27,8 kilograms at KShs27,8 million. It follows therefore that the use of that valuation as a basis for determining the sentence was not enhancement of sentence as contended under ground 14 above but a legalisation of it.

The remaining grounds may be considered under the one ground which Mr *Obuo* argued with considerably ingenuity. It is thus:

The value of the drug and therefore the punishment meted out to the appellant was determined by the police which is part of the executive branch of Government. That therefore questions the constitutionality of the whole trial and calls for nullification of both the conviction and the sentence. That is because under the Constitution, there is a clear separation of powers and it is only the Judiciary that has the constitutional power to punish individual offenders. It is for the Court to call independent witnesses on severity of sentence. The Act here, however, surrenders the powers of punishment to the police officer who certifies the value of the drug which the Court accepts as the basis for punishment.

To buttress that argument, Mr *Obuo* referred to two Privy Council decisions: *Browne v Republic* [1999] 3 LRC 440 and *Mohamed Muktar Ali v The Queen* [1992] 2 WLR 357.

In the latter case, the Constitution of Mauritius gave the Director of Public Prosecutions the power to institute criminal proceedings in any Court. The Dangerous Drugs Act of 1982 created offences which were triable either before a Court with or without a jury. In one option the accused would on conviction be sentenced to a fine and a term of penal servitude. In the other, a mandatory sentence of death. It was the view of the Privy Council that the Director by his decision about the Court of trial was in effect selecting the death penalty and declared that provision of the Dangerous Drugs Act invalid since it infringed on the principle of separation of legislative, executive and judicial powers implied in the Constitution.

The *Browne* case involved a provision in the offences against the Persons Act of 1973 (the Act) of the Islands of St Christopher and Nevis, whose Constitution followed the Westminster model and was based on the principle of separation of legislative, executive and judicial powers. There was a governor general who was part of the executive but a proviso to the Act bound the Court to "detain a convicted young offender at the governor general's pleasure". A 15 year old boy was convicted of murder and was accordingly detained during the governor general's pleasure in accordance with the Act. The Privy Council held that the sentencing of individual offenders was an integral part of the administration of justice and could not validly be committed to the governor general who was an executive; not a judicial officer. It was therefore unlawful for Parliament to transfer from the Judiciary to the executive body a discretion to determine severity of the punishment to be inflicted upon an individual member of a particular class of offenders. The sentence was declared unlawful.

With respect, we think those persuasive authorities have been applied to the case before us out of context. The principle of separation of powers is venerated in all Commonwealth jurisdictions and there is every virtue in the Courts jealously protecting the checks and balances implicit in that governance philosophy. We do not challenge the conclusions reached by the Privy Council on the decisions cited before us as they are justified on the facts and law under consideration there. We do not however see the infringement of our Constitution by the provisions of section 4(*a*) or section 86 of our Act. Parliament has the powers to prescribe a fixed punishment or range of punishments applicable to all offenders found guilty of a specified offence. It has done so in section 4(*a*) of the Act by giving to the Court several options in sentencing for trafficking narcotic drugs. Section 86 is not a mandatory provision on sentencing but evidential aid, again for the benefit of the Court, in the valuation of goods for penalty. In an appropriate case, the Court is at liberty to reject the certificate from a *Gazetted* officer if there is cogent evidence in rebuttal thereof. In both sections, the executive does not usurp the powers of the Judiciary, and it is our view therefore that the objection taken on the constitutionality of those provisions is lacking in merit. That ground of appeal fails too.

On the whole, this appeal, which is wholly on the legality of sentence, is without merit. As Shakespeare would put it, it was full of sound and fury, signifying nothing. We dismiss it.

For the appellant:
Obuo

For the respondent:
Kaigai

Kungu v Karu
[2005] 1 EA 223 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	7 December 2004
Case Number:	1312/90
Before:	Nyamu J
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Customary law – Kikuyu customary law – Trust of land – Whether statutory period of limitation applies to land under customary law trust.

[2] Land – Trust – Kikuyu customary law – Whether limitation period applies to land under Kikuyu customary law – Section 29 – Limitations of Actions Act (Chapter 22).

[3] Limitation – Land under customary law trust – Whether statutory period of limitation applies.

Editor's Summary

The plaintiff's case was that the defendant was his step-brother and that his father died in 1952 when he was still a child but his brother was an adult. After declaration of state of emergency and subsequent process of adjudication and consolidation of land rights was effected and the defendant, being the elder brother of the plaintiff and an adult, was registered as proprietor of the subject property. The plaintiff was put in detention under the colonial emergency powers. Upon his release in 1958, the defendant refused to allow him to resettle on the suit land. Later in 1979 and in accordance with Kikuyu customs he took a goat to the defendant and requested for his half share of the land, which request the defendant again denied. The plaintiff asserted that the defendant was a *Muramati* trustee of his father's suit land under customary law.

The defence gave contrary evidence and alleged that the plaintiff's father had two houses, that he had divided his property between the two houses, that the plaintiff's house had got property in a different location and the subject property remained with the defendant's house, that this same issue had been determined by councils of elders during the process of adjudication and consolidation, and that finally the defendant was the beneficial owner of the suit property.

The Court resolved the contrary evidence of the parties and considered the issue of whether a customary law trust could be implied from the evidence, what would be the principle functions of the trustee and the statutory principles of limitation could apply to a customary trust.

Held – The plaintiff's evidence was more trustworthy and credible. It was more consistent and was also in conformity with Kikuyu customary laws. *Restatement* by Eugene Cotran applied.

A trustee under Kikuyu customary law, a *Muramati*, is the head of the family and represents the family for all legal purposes. He is the guardian of the widow and children of the deceased in certain cases and acts as administrator of the deceased's estate. Under customary law, the house of each wife gets an equal share irrespective of the number of children in each house.

None of the provisions of the Limitations of Actions Act apply to an action by a beneficiary under a trust which is an action in respect of a fraud or a fraudulent breach of trust to which the trustee was a party or privy. Further, the trustee gave promises to the plaintiff until 1979 when it became clear that he was not going to keep his promises. Hence the period of limitation could only begin to accrue from this time, and had not since elapsed.

Under Kikuyu customary law, the principle of limitation of actions did not apply. The historical events surrounding the state of emergency would also militate against the application of the concept of limitation of time. This principle is not inconsistent with the provision in the Limitations of Actions Act on fraud by trustee.

Judgment for the plaintiff on terms that the defendant is holding half of the subject property in trust for his benefit.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Ombajo v Okumu [1996] LLR 2477 (CAK)

Judgment

Nyamu J: The plaint was filed in March 1990 and the defence was filed on 4 November 1991.

By twists of fate the suit has been partly heard by two other judges who recorded the evidence which I must now give meaning and weight to following a consent to this by the counsels for the parties on 20 November 2003. The agreement arose as a result of the suspension last October of Mr Justice Kuloba who had taken defence witness DW2's evidence in November 2002. The cross examination and re-examination of DW2 had not been completed by Kuloba J and it fell on me to complete that part pursuant to the consent referred to earlier and by virtue of the provision of Order XVII, rule 10 which allows me to continue and write a judgment on the basis of the evidence taken by my predecessors. The earlier evidence had been recorded or taken by Honourable Mr Justice Bosire now Justice of Appeal.

No list of issues had been filed by the advocates and/or did not find any on the file at the point of taking over.

The points for determination derived from the pleadings are:

1. Was the defendant registered as proprietor of Gatamayu/Nyanduma/85 comprising of 2,46 hectares – 6,15 acres as a trustee of his father's two houses from his late father's marriage to two wives namely Nyaruii Karu and Njoki Karu?

2. Is the claim good in law and is it time barred?
3. Out of the suit land did the defendant beneficially own 2,1 acres?

It is not in dispute that the late Karu Wairugu who died in 1952 had married the two wives and the relationship between the two parties as step-brothers is also not in dispute.

The plaintiff's case as per the evidence given by himself and his two witnesses is that the defendant was his step-brother and that his father died in 1952 when he was very young but the defendant was then an adult. After the declaration of the state of emergency in 1952 and families were scattered as a result and some put in colonial villages, the process of adjudication and consolidation of land rights commenced in the area, and as a result the defendant being the elder brother and an adult was registered as proprietor. During the process of adjudication and consolidation the plaintiff claims to have been in detention but the younger brother Mbugua was left behind including his mother. He was released in 1958. After this in 1986 the plaintiff's mother died and was buried in the suit land. Following the plaintiff's release from detention the defendant refused to allow the plaintiff to resettle on the suit land and as a result he settled as a squatter at Kenyatta University grounds and he has been residing there ever since. His young brothers are also squatters in coffee estate at Ruiru. According to Kikuyu customs he took a goat to the defendant in 1979 to signify his request for his house's share of the inherited land but the defendant declined to give them their half share and to subdivide the land in two equal shares of 3,135 acres each. A report was made to the chief who directed that the land be shared between the two houses.

He said that his claim is based on Kikuyu customary law because the defendant was regarded as *Muramati* (trustee) since the suit land belonged to their father. Both the plaintiff and his deceased mother had houses on the suit land but the houses were demolished under the colonial policy of villagilisation, which followed the state of emergency especially in the Kikuyu land. Upon release he went to the suit land only to discover that his house had been demolished. He contended that the suit land was distinct or separate from the other portion of 2,1 acres which the defendant claims to have been allocated as a result of a local case with a Mr Wanjohi Maribe.

Concerning the apparent delay in bringing the suit the plaintiff says that apart from the period taken up by his confinement in detention the defendant kept giving promises to them that he would allocate three and a half acres to his house but when he finally ascertained that the defendant was not going to keep his promise, he filed suit.

The second witness Mr Joseph Karu a first cousin of the parties confirmed that the defendant was registered as proprietor because he was the only adult at the time and that the land belonged to the parties' late father. He said that his father's land adjoined the suit land and that the process of consolidation did not affect the suit land or that of his father. He maintained under cross-examination that the defendant was a M*uramati* trustee.

PW2, Mr Thande Wanjohi Joseph's evidence substantially confirms the plaintiff's evidence as set out above with the addition that the defendant had sold two acres out of the inherited land and that he was involved in the preparation of the sale agreement.

The defendant's case according to his own evidence is that he admits the relationship between him and the plaintiff. He says that the plaintiff's mother was married to their common deceased father in 1936. After this marriage the land was divided into two equal portions for each house but the plaintiff's house thereafter sold their share and went to live as squatters. This was done in the lifetime of their common father. The need to sell arose following the big famine of 1943 when his father found it difficult to feed the family.

His father followed the second house and lived with them in the Rift Valley for seven years. They chased him away when he came back he died in 1952. The plaintiff's mother and his step-mother came back to the land in 1953 after the declaration of emergency and he allowed her to settle on the suit land. When the emergency was lifted the step-mother returned to the Rift Valley.

The land demarcation in their area started in 1957. Rights over land were being determined by local adjudication boards.

His uncle, father of the plaintiff's first witness laid claim over the suit land before the elders. The case went up to the District Officer's level and the defendant won the case. The suit land measured four acres. His paternal uncle had given him 5,1 acres. The total land owned by him was nine acres. A third party Benson Wanjohi Muribi sued him for a share of the land and the matter was heard by village elders who had been appointed under the land adjudication procedure. The village elders divided the land (5,1 acres) into three portions. He was given one acre and the other two uncles were given two acres that is one acre each. The total share allocated to him was 2,1 acres out of 5,1 acres. This was exclusive of the inherited land of four acres. The total land owned by him was 6,1 acres.

The defendant had no share or right over it and he is not a trustee but a beneficial owner of the entire 6,1 acres. He concedes or admits that the plaintiff's mother was buried on the land following instructions left behind by his late father before he died. He further admits that he was given a goat by the plaintiff but he says that there was nothing unique because each of his father's children was supposed to give him a goat in order to avoid a family curse. The goat was meant for his late father. He admits that the plaintiff's mother did have a house on the suit land. However the houses were demolished in order to salvage material to build houses in the concentration villages, ie colonial villages.

The burial of the plaintiff's mother on the land was some kind of punishment to the plaintiff and other sons who had separated their mother from their father and went to the Rift Valley. Burial is no evidence of entitlement to land.

The plaintiff's only witness was PW2, Mr Francis Gacau Wagithiome. He claimed to have known the defendant since 1958 during the land demarcation. He testified that the defendant had a dispute with one Wanjohi Maribe and that he was the vice-chairman of the village elders during the demarcation. The dispute was for a piece of land measuring 4,1 acres. The land belonged to an elder brother of the father of the deceased defendant. The defendant won the case and was allocated 4,1 acres. The parcel was divided into three portions, one portion went to the defendant and the other two portions went to his two brothers. Out of this land the defendant had 2,1 acres.

The 2,1 acres did not form part of the suit land. Apart from 2,1 acres the defendant did not have any other land. He did not know if the father of the

defendant had any other piece of land. He did not know the plaintiff and only came to know him when the Court proceedings commenced. When he was cross-examined he repeated the same story and said he did not know if the 2,1 acres was part of the suit land.

The Court's assessment of the evidence is that the evidence given on behalf of the plaintiff was more consistent and very well supported by two witnesses close to the family and familiar with the family of the two parties. The witnesses testified that the 6,1 acres was inherited land and the defendant was registered as proprietor because he was the only adult during the death of his father in 1952. The other parcel of 2,1 acres was not known to them and was not part of the suit land.

The two witnesses for the plaintiff were subjected to severe cross-examination by the defendant's counsel according to the recorded evidence and in spite of this they stuck to their evidence that the defendant held the land in trust for the two houses.

The Court finds that the plaintiff's evidence is trustworthy and credible. In fact the evidence tally's or is in conformity with the Kikuyu customary laws as recorded in the *Restatement* by Eugene Cotran to which I will be referring later on in the judgment.

On the other hand the defendant claims to have been the beneficial owner of 6,1 acres but the evidence offered is not credible. His evidence that the second house sold their share of the inherited land during the lifetime of his father is not credible and is not supported by the subsequent happenings, for example the return of the plaintiff's mother to the land after the declaration of emergency, the building of her house on the land and her subsequent burial in the land in 1986. While burial on any particular land is no evidence of entitlement or claim to land, in the present case the other factors of occupation plus the father's survivors *intervivos* instructions that the step-mother be buried in the land together with the evidence of the two witnesses do constitute unchallenged evidence that he the defendant did hold suit land in trust for the two houses. The defendant does not offer any evidence on how his beneficial 2,1 acres were consolidated with the suit land and the Court finds that the 6,1 acres had nothing to do with the other parcel of 2,1 acres if it existed at all. If there was no consolidation there should have been two separate titles and no such titles were produced in Court.

It follows that the cumulative effect of the evidence does prove a Kikuyu customary law trust and that the plaintiff was registered as proprietor subject to the unregistered trust on behalf of the two houses.

Turning to the law, Cotran in his *Restatement of African Law* Volume 2 at 9-12 has examined the position of a *muramati* or trustee under the Kikuyu customary law as follows:

(*a*) He can be appointed by will.

(*b*) He can be appointed by the family and clan elders on intestacy.

From the evidence the elders who constituted the Land Adjudication Boards knew the clan elders and the rights of each family because they were appointed from the locality and they recognised the defendant as the elder son of the deceased owner, thereby paving way to his registration as proprietor. There was no provision for the registration of trust during the adjudication process. The

trust was implied in the fact of the registration of only one member in a particular family because ownership was communal before the demarcation adjudication and consolidation process.

At 10 Eugene Cotran describes the principal functions of a *muramati* (trustee) as follows:

(i) To be the head of the family and, as such to represent the family for all legal purposes;

(ii) To be the guardian of the widow and children of the deceased in certain cases; and

(iii) To act as administrator of the deceased's estate.

At 13 the learned author describes the principle of distribution among the Kikuyu people as follows

> "The general principle here is that the house (*Githaku*) of each wife gets an equal share of the property irrespective of the number of children in each house."

This is where the deceased father had more than one wife. The plaintiff's claim is consistent with the principle and has clear authority under customary law of the Kikuyu. I therefore find and hold that the plaintiff's claim has been fully proved on a balance of probabilities.

Turning to the issue of limitation it is regretted that although this was pleaded in the defence neither counsel expanded on it at all and it was left to the Court to handle. No arguments were presented to the Court on this at all. The onus was on the defendant to prove it.

The Limitations of Actions Act (Chapter 22) section 20 states that none of the provisions of Limitation Act prescribed by the Act apply to an action by a beneficiary under a trust which is an action in respect of a fraud or fraudulent breach of trust to which the trustees was a party or privy.

It is clear from the evidence that the defendant had acted in a fraudulent manner in denying the existence of the trust and was privy to the breach as against the second house. He cannot therefore hide behind this plea which in any event he has not offered any evidence on the accrual of the cause of action and why it would be time barred as stated in the defence. Moreover when he was registered as proprietor in 1958 the plaintiff was still a minor according to the evidence and presumably time could not start to run until he attained the age of majority which was at that time 21 years. After this he gave promises to the family up to 1979 when it became clear that he was not going to keep his promise concerning the half share. The plaintiff came to Court one year later. Even on the evidence the cause of action could only have risen in 1979 and one year could not have been a bar.

In the case of *Ombajo v Okumu* [1996] LLR 2477 (CAK) the Court of Appeal reaffirmed the provisions of section 8 of the Judicature Act (Chapter 8) concerning the application of customary law in civil cases by holding that customary law must be applied according to substantial justice and without regard to technicalities and procedures.

This raises the question as to whether under the Kikuyu customary law the principle of limitation is applicable.

Cotran has not touched on this and it is unlikely that any such concept was accepted by the Kikuyu people especially taking into account their proverb *Githiriini Gatibuthaga* – literally interpreted – "What is owed to you can

never rot" or in other words what is yours remain yours. The question is the principle repugnant to any written law or repugnant to morality or justice. The answer is a clear "no". The displacement, fragmentation, disruption of families which was the immediate effect of the emergency would militate against any such finality in law if justice was to be applied. The concept of limitation was therefore foreign and unknown to the Kikuyu people and a living litigant cannot be denied justice on the basis that he did not bring the action within a particular period. This principle is not inconsistent with section 20 of the Limitations of Actions Act. This is as well because such a trend could have resulted in the disinheriting of so many people who were otherwise denied of the means to assert their rights due to the disruption and scattering of families during the emergency and its aftermath and how it impacted on the Kikuyu people and its effect on the scattered families thereafter.

The leading novelist Ngugi Wa Thiong'o captured the prevailing situation as brought out in the facts of this case in his novels *Weep Not Child*, *The River Between* and *A Grain of Wheat*.

Chinua Achebe's *Things Fall Apart* depicts a similar situation. In one of his novels Ngugi recalls having come home on holiday from his high school only to find that his parents and others had been moved from the cultural land to a concentration village. He had to seek help to trace his new home and his parents. Ngugi's ideas as portrayed in the novels are not just abstract concepts. This case brings out that betrayal. Many freedom fighters turn in their graves over the broken trusts but this Court does bow to their spirit in holding that trustees must honour their duty, the breach of trust having been brought to the attention of the Court. Although justice delayed is justice denied at the end of the day justice is forever - it is everlasting.

In conclusion I find and hold that the plaintiff has proven his case and direct and order that the suit land namely Gatamayu/Nyanduma/85 be subdivided equally between the two houses and that each house be allocated 3,075 acres of the suit land and that the land register be rectified to reflect this holding and this judgment.

In view of the death of the defendant after he had given evidence and the fact that each house has equal entitlement I consider it just that each party bear their costs of this suit.

It is so ordered.

For the plaintiff:
Information not available

For the defendant:
Information not available

Liningushu and others v Republic
[2005] 1 EA 229 (CAK)

Division:	Court of Appeal of Kenya at Nakuru
Date of judgment:	26 February 2004
Case Number:	52/02
Before:	Shah, O'kubasu and Githinji JJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

[1] Crime – Robbery with violence – Convictions of accused persons on the basis of retracted confessions and some circumstantial evidence – Whether the retracted confessions could be relied upon – Whether retracted confessions of co-accused could be the basis for conviction.

[2] Crime – Victim killed in plot masterminded by second accused and facilitated by third accused – Whether accused persons were principal offenders.

[3] Criminal procedure – First appeal – Duty to reconsider evidence – Whether Court could rely on retracted confessions.

Editor's Summary

Three appellants were jointly charged with the offence of murder. The prosecution evidence was based primarily on retracted confessions by the three accused persons, and some corroborating circumstantial evidence. The confession of the first accused was not accepted in evidence. The second accused gave a detailed confession in which she described how she masterminded the killing of the victim (her husband) and obtained the assistance of her daughter (the third accused) as well as two strangers (the first accused and another person). The third accused made a statement in which she admitted that her mother had planned to kill the victim, but sought to place the blame solely on the second accused. In addition to the confessions, two prosecution witnesses testified to having visited the home of the victim some time before the murder and met the supposed murderers in the presence of the second and third accused. On the basis of this evidence, the High Court convicted all three appellants with murder.

The appellants appealed, challenging the admission/reliance on their retracted confessions. The first appellant also challenged his conviction on the basis of the retracted confession of a co-accused.

Held – It is the duty of the first appellate Court to submit the evidence as a whole to a fresh and exhaustive examination. *Okeno v Republic* [1972] EA 32, *Pandya v R* [1957] EA 336, *Ruwala v R* [1957] EA 570 followed.

The first appellant's statement to the police was rejected by the trial Court and hence the evidence implicating the first appellant is to be found in the retracted confessions of the second and third appellants. There was no other evidence on the record implicating the second appellant. The first appellant's conviction, which was based on unsupported confessions of his co-accused, cannot therefore be sustained. *Katana and another v Republic* criminal appeal number 6 of 2002 (UR), *Anyuma s/o Omolo v R* [1953] 20 EACA 218, *Gopa s/o Gidamebenya v R* [1953] 20 EACA 318 followed.

The second appellant's retracted confession was lengthy and detailed and after proper evaluation was properly admitted in evidence. It is generally advisable to corroborate evidence of a retracted confession, but this is not necessary in law. The second appellant's confession was in this case sufficient to convict her. *Tuwamoi v Uganda* [1967] EA 84 applied. As the second appellant was the mastermind of the killing plot, she would be convicted as a principal offender. *R v Kipkering arap Koske* [1949] 16 EACA 135 followed.

The third appellant's retracted confession attempted to place the blame on her mother. However, taken together with the second appellant's confession, and circumstantial evidence of third parties showing that she assisted her mother

in getting the hired killers and waylaying the victim, she would also be found guilty as a principal offender.

Conviction against first appellant quashed; convictions against second and third appellants sustained.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Anyuma s/o Omolo v Republic [1953] 20 EACA 218 – **F**

Gopa s/o Gidamebanya v Republic [1953] 20 EACA 318 – **F**

Katana and another v Republic [2002] LLR 3504 (CAK)

Okeno v Republic [1972] EA 32 – **F**

Pandya v Republic [1957] EA 336 – **F**

Republic v Kipkering arap Koske and another [1949] 16 EACA 135 – **F**

Ruwala v Republic [1957] EA 570 – **F**

Tuwamoi v Uganda [1967] EA 84 – **F**

Judgment

Shah, O'kubasu and Githinji JJA: The three appellants were jointly charged with the offence of murder contrary to section 203 as read with section 204 of the Penal Code. The particulars of the offence were that on 19 March 1998 at Eburu village in Nakuru District of the Rift Valley Province, jointly with others not before the Court they murdered Joseph Kamau Njachai.

This was a case involving members of the same family and a stranger. The first appellant, Peter Liningushu, the stranger was said to be either a Samburu or Maasai watchman. The second appellants, Esther Wanjeri Kamau was the wife of the deceased while the third appellants, Lucy Wanjiku Kamau was the daughter of the deceased and the second appellant.

The trial of the appellants opened before Rimita J with the aid of assessors on 29 May 2000, when eleven prosecution witnesses testified. Naomi Wangari Kamau (PW1) told the trial Judge that on 17 March 1988 she left school at about 5:00pm and went home with her younger sister Susan Wangari (PW2). At home Naomi saw the third appellant with two men. These two men were entertained in their home. The following day (18 March 1998) Naomi saw the third appellant and one Irene Wambui going towards Eburu Trading Centre. Then on 19 March 1998 Naomi went to Eburu Trading Centre at about 5:00pm and found her father's bar closed and when she asked her mother where her father was, she answered that he had gone to look for somebody to buy goats. The evidence of the young girl Susan (PW2) was similar to that of Naomi (PW1).

David Karimi Macharia (PW3) testified that on 20 March 1998 at about 8:30am he heard screams from a nearby house and when he went there he found a dead body on the road. The body had stab wounds near the right breast and another stab wound on the stomach below the left breast. The matter was reported to the police who removed the body to Naivasha Hospital mortuary. This incident was reported to Paul Njachai Kamau (PW4) a son of

the deceased who lived at Nakuru and as a result he went to his house at about 8:30pm only to find that his mother and sisters had already been taken to the police station. David Murimi Njachai (PW5) a brother of the deceased was called to that house where he found the body of the deceased with stab wounds. He saw policemen carrying pieces of a mattress and some bed sheets. Police Constable Bernard Karanja (PW6) was one of the police officers who visited the scene and carried out investigations. At the scene he found one mattress, one blanket, two bed sheets and a rope buried in the ground. He took all these items which were produced as exhibits. Police Constable Samwel Mwai Waithaka (PW7) arrested the first appellant at Mugoiri Bar and Restaurant at Gilgil.

Inspector Thomas Mucheru (PW8) recorded a statement under inquiry from first appellant which statement was not admitted in evidence. The same police inspector recorded a statement under inquiry from second appellant which statement was admitted in evidence after a trial within a trial had been conducted. Chief Inspector Claudia Ekasiba (PW9) recorded a charge and cautionary statement from the third appellant which statement was admitted in evidence after a trial within a trial had been conducted.

Doctor Kenneth Kahiga (PW11) conducted postmortem examination on the body of the deceased and in his opinion the cause of death was cardiopulmonary arrest due to massive stab wounds.

In the statement which the second and third appellants made to the police they (appellants) confessed to having been involved in the death of the deceased. They implicated the first appellant.

In defending himself the first appellant gave evidence on oath in which he stated that he lived at Maralal where he was a herdsman. He said that on 20 March 1998 he was sent to Naivasha to call his uncle and when he reached Gilgil the “matatu” he had travelled in broke down. He stayed at Gilgil up to 9:00pm. Then he met people who spoke Kiswahili, a language he did not understand. They took him to a room where he was locked up. Later he was made to thumb print some papers. He said that he had no association with the other accused persons and that he had never committed a crime since he was born.

The second appellant made a brief unsworn statement in her defence. She said that on 20 March 1998, she went to look for water in the morning and then came back home at about 10:00am when she met police officers. The police officers started beating her. She was then taken to Gilgil Police Station. She said that she was a stranger to the charge leveled against her.

The third appellant in equally short unsworn statement said that on 21 March 1998 the police found her at Naivasha at about 12:00pm. She was taken to Gilgil Police Station where she was charged with an offence she did not know. She concluded her unsworn statement by saying that she was not related to this offence.

After summing up to the assessors each of the assessors gave his verdict. The first assessor’s verdict was that the first appellant was guilty of murder while the second and third appellants were guilty of manslaughter. The second assessor’s verdict was that all the three appellants were guilty of murder. The third

assessor's verdict was not very clear but taking into account what was recorded this assessor's verdict was to the effect that all the three appellants were guilty of murder.

The learned trial Judge considered all the evidence before him and having evaluated the same came to the conclusion that the three appellants were guilty of murder and hence convicted them accordingly. Each appellant was sentenced to death as provided by the law.

It is from that conviction and sentence that the appellant came to this Court by way of appeal. As was stated by the predecessor of this Court in *Okeno v Republic* [1972] EA 32 at 36:

> "An appellant on a first appeal is entitled to expect the evidence as a whole to be submitted to a fresh and exhaustive examination (*Pandya v Republic* [1957] EA 336) and to the appellate Court's decision on the evidence. The first appellate Court must itself weigh conflicting evidence and draw its own conclusions (*Ruwala v Republic* [1957] EA 570). It is not the function of a first appellate Court merely to scrutinise the evidence to see if there was some evidence to support the lower Court's findings and conclusions; it must make its own findings and draw its own conclusions."

In the present appeal it is to be observed that the appellants' conviction was based on their own confessions and circumstantial evidence. We would wish to consider the first appellant's position first. We have already pointed out earlier in this judgment that the first appellant's statement to the police was rejected by the learned trial Judge and hence the evidence implicating the first appellant is to be found in the confession of second and third appellants. We have carefully considered the evidence on record and we find no other evidence pointing to the first appellant apart from what the second and third appellants said in their confessions. This then means that the first appellant's conviction which was based on unsupported confessions of his co-accused cannot be sustained. In *Katana and another v Republic* [2002] LLR 3504 (CAK) this Court stated *inter alia*:

> "It is trite that a confession by an accused person involving his co-accused when unsupported by other testimony, is evidence of the weakest kind against such co-accused. It is accomplice evidence needing corroboration, the need for corroboration being the greater when the maker of the statement has sought to retract it; see *Anyuma s/o Omolo v Republic* [1953] 20 EACA 218. Under section 32(1) of the Evidence Act the evidential value of a confession by an accused person is that it can only be used as lending assurance to other evidence against the co-accused, evidence which narrowly falls short of the standard of proof for a conviction. It cannot be used as the basis of the prosecution case, see *Gopa s/o Gidamebanya v Republic* [1953] 20 EACA 318.
>
> With respect, the learned Judge took into consideration Katana's confession making it the basis for Thoya's conviction in a background of non-existent prosecution evidence insofar as the deceased's actual murder by Thoya was concerned. It is right to exclude the evidence in the confession against this appellant. It must follow that the conviction of the appellant Thoya cannot be sustained. It is hereby quashed and the sentence set aside."

In this appeal it is to be observed that the first appellant's conviction was based on the confession of the second and third appellants. The second and third appellants sought to retract the confessions which means other cogent evidence would be required to corroborate the confessions. We have looked at the confessions and it is apparent that the first appellant was not sufficiently identified since in her confession the second appellant described the first appellant as

merely a watchman at Mugoiri bar while the third appellant in her confession described him (first appellant) as a Samburu watchman. The proprietor of Mugoiri bar was never called as a witness. Had he been called he might have explained whether the first appellant was indeed, a watchman at Mugoiri bar. As matters stand the first appellant's conviction was based on the confessions of his co-accused which confessions were retracted. Without any other independent evidence linking him with the offence we are of the view that it would be unsafe to rely on the confessions of his co-accused (the second and third appellants). It must, therefore follow that the conviction of the first appellant, Peter Liningushu, cannot be sustained. It is hereby quashed and the sentence of death set aside. He is to be set at liberty forthwith unless otherwise lawfully held.

We now proceed to consider the appeal as it relates to the second and third appellants. In her confession to the police the second appellant explained how her husband the deceased had troubled her for many years and that is why she decided he should be killed. She asked her daughter Lucy (third appellant) to look for people who would kill the deceased. It was the third appellant who secured two people who agreed to do the job at a price of KShs25 000. She went on to narrate how on 17 March at about 4:00pm the third appellant and the two men came to the home of the deceased where they slept. She explained how the two men complained that time was running out and how eventually the deceased was killed when he came home smelling of alcohol.

In her statement to the police the third appellant narrated how her mother (second appellant) told her that she was looking for killers to be hired to kill her father (the deceased). The third appellant went on to narrate how two Maasai men were locked in her brother's house until the day they killed her father using knives and other instruments and how the second appellant paid them KShs7 000 after they had killed the deceased.

The learned trial Judge correctly concluded that the evidence implicating the second and third appellants was to be found in their confessions and also circumstantial evidence. The learned trial Judge made reference to the well known case of *Republic v Kipkering arap Koske and another* [1949] 16 EACA 135. In convicting the second appellant, the learned Judge stated *inter alia*:

> "She was the mastermind of the operation to eliminate her husband. She procured the killers and agreed to pay for their services. At the scene she directed the operations although she did not strike the fatal blow. She paid part of the agreed price after the work was done. She was a principal offender and therefore guilty as charged."

As regards the conviction of the third appellant (who was the third accused during the trial in the superior Court) the learned trial Judge observed:

> "The third accused's conduct in the whole saga makes her a principal offender. She found the killers for the mother and brought them home. She went to waylay her father with killers."

Considering the statements that the second and third appellants made to the police it would appear that the second appellant described in great details how she had been troubled by the deceased and how she finally decided that her husband had to be killed. She discussed the matter with her daughter Lucy (third appellant) who in turn managed to make arrangements on how her mother (second appellant) would meet the would-be killers. The second appellant went on to explain how the plan to kill the deceased was carried out. The second appellant

made attempts to retract her statement but the learned Judge admitted the statement after a trial within a trial and relied on it in convicting the second appellant. We have on our own considered the statement and making our own evaluation of the matter came to the conclusion that the statement was properly admitted in evidence and that it was sufficient to convict the second appellant. In *Tuwamoi v Uganda* [1967] EA 84 at 91 the predecessor of this Court in dealing with the issue of retracted confession stated as follows:

> "We would summarise the position thus – a trial Court should accept any confession which has been retracted or repudiated or both retracted and repudiated with caution, and must before founding a conviction on such confession be fully satisfied in all the circumstances of the case that the confession is true. The same standard of proof is required in all cases and usually a Court will only act on the confession if corroborated in some material particular by independent evidence accepted by the Court. But corroboration is not necessary in law and the Court may act on a confession alone if it is fully satisfied after considering all the material points and surrounding circumstances that the confession cannot but be true."

In the present appeal it is to be noted that the second appellant's statement was so detailed that it was only the maker of the statement (second appellant) who was in possession of all these minute details that led to the death of the deceased. That long statement was by itself sufficient to sustain the second appellant's conviction on a murder charge.

As regards the third appellant, she made a very short statement in which she attempted to put all blame on her mother (second appellant). In her statement to the police the third appellant stated *inter alia*:

> "Earlier this year January, mother had arranged to kill my father on allegation that he mistreats her. In February 1998, she started frequenting Gilgil town and whenever she came to visited (*sic*) my place of work and spent nights there. She used to tell me that she was looking for Maasai tribesmen. On 10 March 1998 mother came and slept at my place of residence. On the same day she arrived to a Maasai (*sic*) whose name I do not know and they agreed that father will be killed . . ."

Apart from the confessions made by the second and third appellants we must consider what constitutes other independent evidence of the two young girls Naomi (PW1) and Susan (PW2). These two witnesses testified to the effect that on 17 March 1998 when they came back from school at about 5:00pm they saw the third appellant with two men. Indeed, the third appellant introduced one of the men as her husband. The two young girls testified further that the two men were entertained in that home. Naomi (PW1) went further to state on 18 May 1998, she met the third appellant and the same three men going towards Eburu Trading Centre.

Taking the confession of the second and third appellants together with the evidence of Naomi and Susan it becomes clear that the death of the deceased was planned by the second appellant with the assistance of her daughter, the third appellant. The death of the deceased was the result of his unhappy marriage with the second appellant. The learned trial Judge explained it thus:

> "The marriage between the deceased and the second accused person because (*sic*) unhappy at some stage. The second accused did not look for the usual solutions but decided to solve the marital problem by eliminating her husband, the deceased. She disclosed her plan to the second (*sic*) accused who was then working in Salama Bar in Gilgil town. The second (*sic*) accused did some homework and was able to secure two Samburu tribesmen to do the dirty job, one was working with the army and another watchman in Mugoiri Bar also within Gilgil town.

> The third accused arranged a meeting between the two Samburu tribesmen and the second accused. The second accused did not understand Kiswahili and as such the third accused did the interpretation to her mother in Kikuyu language.
>
> It is in this meeting that a plot was hatched to kill the deceased at a fee of KShs25 000. Some payment was to be made after the work had been accomplished.
>
> The two men came to the deceased's house of 17 March 1998 but could not kill the deceased as he did not come back home. The two were introduced as the second (*sic*) accused visitors and indeed was introduced as the husband.
>
> The two Samburu tribesmen were kept in a house belonging to the second accused's son as the son was away. They went out to some place where they could waylay and ambush the deceased. They went in company of third accused Lucy Wanjiku and Irene Wambui. They did not succeed and went back to the deceased's home on the morning of 19 March 1998.
>
> The deceased came home at around 11:00am. The deceased was apparently drunk and went into his house and slept. The Samburu men were shown by the second accused where the deceased was. They went in and killed him."

The above sets out the sequence of events which were to be proved by evidence. There was the evidence of the two young girls Naomi (PW1) and Susan (PW2) who saw the third appellant in the company of two men who were strangers on 17 March 1998. These men were seen again in the company of the third appellant on 18 March 1998, while on their way to Eburu Trading Centre. When Susan asked the second appellant where her father (the deceased) was, the second appellant's answer was that deceased had gone to look for someone to buy goats.

Taking into account what the second and third appellants said in their respective statements to the police and the evidence of Naomi and Susan there can be no other conclusion than that it was the second appellant who was the mastermind of the death of the deceased. She sought the assistance of her daughter Lucy (third appellant) who readily joined in the evil scheme of eliminating the deceased by arranging for hired killers who in turn executed the evil operation. We have carefully considered the evidence tendered during the trial in the superior Court and have come to the conclusion that the conviction of the second and third appellants was inevitable. Accordingly, their appeals to this Court are hereby dismissed.

For the appellants:
Information not available

For the respondent:
Attorney-General

Mabalanganya v Sanga
[2005] 1 EA 236 (CAT)

Division:	Court of Appeal of Tanzania at Mbeya
Date of ruling:	2 June 2004
Case Number:	1/02
Before:	Ramadhani, Nsekela and Msoffe JJA
Sourced by:	LawAfrica
Summarised by:	M Kibanga

[1] Civil procedure – Revision by Court of Appeal – Appeal to High Court rejected summarily – Matter originating in primary Court – Whether Court of Appeal has jurisdiction to entertain review application – Magistrates Courts Act of 1984 – Appellate Jurisdiction Act of 1979 – Civil Procedure Code Act of 1966.

[2] Revision – Court of Appeal – What entails revision – Record of proceedings in lower Courts – Whether it is the duty of the applicant to include lower Courts proceedings or revision – Section 4(2) – Appellate Jurisdiction Act of 1979.

Editor's Summary

The matter before the Court of Appeal started in a primary Court. Upon being unsuccessful, the applicant moved to Songea District Court on appeal. The appeal was unsuccessful and the High Court rejected a further appeal. The applicant went back to the High Court seeking a review, which too was dismissed. He then moved to the Court of Appeal on revision.

The record before the Court of Appeal only consisted of a notice of motion, affidavit and ruling for dismissing the review application in the High Court. Issues arose as to whether it was in order for the applicant to apply for review in the High Court and whether applying for review in the Court of Appeal was intended to avoid the requirement for a certificate of the High Court on a point of law.

Held – Revision under section 4(3) of the Appellate Jurisdiction Act of 1979 entails examination by the Court of Appeal of the record of any proceedings before the High Court for the purposes of satisfying itself as to the correctness, legality or any other decision and the regularity of any proceeding before the lower Courts, the Court of Appeal could not perform its revision function. The person who moves the Court on revision has the duty to provide the records.

There is no provision for review of a decision of the High Court dismissing an appeal in a matter originating from a primary Court under Part III(C) of the Magistrate's Courts Act of 1984 or sections 2 and 78 of the Civil Procedure Code Act of 1966. Application was dismissed with costs for being an abuse of the Court process.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Halais Pro-Chemie v Wella AG [1996] TLR 269

Idd Kondo v R criminal appeal number 46 of 1998

Ruling

Ramadhani, Nsekela and Msoffe JJA: This matter started as primary Court civil case number 15 of 2000. The applicant was unsuccessful and appealed to the Songea District Court (civil appeal number 2 of 2001). That, too, was barren of results, and, so, the applicant went to the High Court at Songea with civil appeal number 10 of 2001, which was summarily rejected by

Manento J on 29 September 2001. The applicant went back to the learned Judge for a review but it was dismissed on 26 July 2002. The applicant has come to this Court seeking revision.

We have found it a disturbing practice here in Mbeya of resort to the powers of revision of this Court after a review of an order of summary rejection of appeal emanating from the primary Court has been dismissed by the High Court. So, at the start of hearing the application we placed three questions to Mr Justinian *Mushokorwa*, learned counsel for the applicant, Benedict Mabalanganya.

First, we wondered whether the record before us was complete for revision purposes. Two, we wanted to know why the applicant did not appeal to this Court against the order of summary rejection but instead preferred a review by the High Court and we asked whether after that had been dismissed it was proper to come to this Court for revision. Lastly, we asked the learned advocate whether the application for revision does not circumvent the statutory requirement of a certificate of the High Court that there is a point of law to be considered by this Court in respect of a matter emanating from a primary Court.

Mr *Mushokorwa* conceded that the record before the Court contains only the notice of motion, his affidavit and the ruling of Manento J, dismissing the application for review. However, he pointed out that there is no rule providing for what a record for revision should contain. He said that the existing rules deal with appeals and applications. However, he asked for time to bring the record of proceedings of the lower Courts. Mr EO *Mbogoro*, learned counsel for the respondent, Romwald Sanga, objected to granting leave to rectify the records.

We may as well deal with this matter first. Admittedly, the Tanzania Court of Appeal Rules of 1979, are silent as to revision. But what does revision entail? Before we come to that and for the avoidance of doubt, we better say that section 4 of the Appellate Jurisdiction Act of 1979, (hereinafter referred to simply as AJA of 1979) confers upon this Court powers of revision. The Court can exercise those powers in one of two ways; one, under section 4(2) the Court can revise proceedings in the course of hearing an appeal. Two, under section 4(3) the Court may on its own motion call for and examine the record of any proceedings before the High Court. Through case law (*Halais Pro-Chemie v Wella AG* [1996] TLR 269) this Court has extended subsection (3) to cover instances where the Court is moved to exercise its jurisdiction of revision.

Here the applicant is moving the Court to exercise its powers of revision. So, subsection (3) applies which provides as follows:

> "(3) Without prejudice to subsection (2), the Court shall have the power, authority and jurisdiction to call for and examine the record of any proceedings before the High Court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, order or any other decision made thereon and as to the regularity of any proceedings of the High Court."

So, to answer the question we had posed earlier, revision entails examination by this Court the record of any proceedings before the High Court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, order or any other decision and the regularity of any proceedings before the High Court.

So the record of proceedings of the High Court, and in the case of the appellate jurisdiction of the High Court, then the record of proceedings of the lower Court or Courts, must be before this Court. This is glaringly certain from the very definition of what revision entails and if the Court is to perform that function. This does not depend on the existence of any rules to that effect. The rules, if any, will just state the obvious.

Now, when the Court acts on its own motion it will have to call for those records itself. But when the Court is moved, as in this case, then the one who moves it will have to supply those records. Mr *Mushokorwa* dutifully conceded that the records are missing in this case and we agree with Mr *Mbogoro* that we cannot at this stage give time to Mr *Mushokorwa* to do what he should have done years ago.

This is enough to dispose of the application but we are of the decided opinion that we better deal with the other issues in order to prevent the abuse of the process of the Court and as a directive to learned advocates.

As to our second question, why the applicant preferred review by the High Court instead of appealing to this Court against the summary rejection of appeal, Mr *Mushokorwa* simply said that both avenues were open to the applicant and that he chose the former and not the latter. However, when further quizzed, Mr *Mushokorwa* conceded that appeals from the primary Courts are dealt with under the Magistrate's Courts Act of 1984, (hereinafter referred to simply as MCA of 1984) and that there are no provisions for review under that Act but that they chose review under the provisions of the Civil Procedure Code Act of 1966, (hereinafter referred to simply as CPA of 1966) to suit their convenience.

Mr *Mbogoro* submitted that the proper avenue for the applicant was to appeal to this Court against the summary rejection of the appeal. He went further to say that even if there were no reasons given by the learned Judge for summarily rejecting the appeal, then that omission to give reasons should have been the ground of appeal.

Section 28 of the MCA of 1984, provides for power of the High Court to reject appeals summarily. Subsections (1) and (2) deal with criminal appeals and three conditions are imposed before summary rejection can be resorted to. Subsection (3) provides as follows:

> "(3) A judge may, if satisfied that an appeal in any other proceeding is without substance, summarily reject the appeal."

This subsection deals with appeals other than criminal appeals, and so, includes civil appeals. Unlike criminal appeals, no conditions have been imposed for the exercise of the powers under this subsection. However, we are of the firm view that it is imperative, in both criminal and civil appeals, for a judge to give reasons for rejecting an appeal summarily. This Court has said so in no uncertain terms in *Idd Kondo v R* criminal appeal number 46 of 1998 (UR). But even if no reasons have been assigned, then that is a ground of appeal, as Mr *Mbogoro* submitted.

Now, when an appeal is summarily rejected, what is the remedy available to the appellant? The applicant here used review by the High Court. In our opinion review is not a remedy for the aggrieved party. There is no provision for review in the MCA of 1984. Part III(*c*) of the MCA of 1984 deals with

"appellate and Revisional Jurisdiction of the High Court in relation to matters originating in primary Courts". There is no mention of review. The decision of the High Court in a matter emanating from a primary Court under Part III(*c*) is subject to appeal to this Court under section 5(2)(*c*) of the AJA of 1979. The decision does not go back to the High Court for a review.

Admittedly, the High Court has the power of review under section 78 of the CPA of 1966, but the CPA of 1966, does not apply to primary Courts. That is very clear from the provisions of section 2 of the CPA of 1966, that:

> "2. Subject to the express provisions of any written law, the provisions of this code shall apply to all proceedings in the High Court of the United Republic, Courts of resident magistrates and the district Courts."

Thus primary Courts are not mentioned in this section defining the scope of application of the CPA of 1966.

Moreover, section 3 of the CPA of 1966, defines "Court" to mean those three Courts mentioned in section 2. Thus the law which provides the High Court with the power of review does not apply to the primary Courts and, therefore, the High Court does not have power of review on matters emanating from the primary Courts. So, the application of the applicant for review by the High Court in this case was misconceived. The High Court had no jurisdiction of review and in the purported exercise of review it did not affect in any way the summary rejection of appeal, there is nothing for this Court to revise. The application ought to be struck out.

Lastly, we come to the issue of the requirement of a certificate on point of law to be dealt with by this Court. As already said, this Court is empowered to hear appeals on matters emanating from primary Courts by section 5(2)(*c*) of the AJA of 1979. That paragraph requires such appeal to have a certificate of the High Court that there is a point of law that has to be considered by this Court. Now, an application seeking this Court to revise a decision of the High Court on a matter emanating from a primary Court is not accompanied by a certificate. That contravenes the AJA of 1979. Therefore, this Court cannot entertain such an application for revision. This Court can only deal with an appeal on certificate of point of law. This application is misconceived and must be struck out.

For the reasons given above, the application is struck out with costs under rule 3(2)(*c*) for preventing an abuse of the process of the Court.

It is so ordered.

For the applicant:
Mr J Mushokorwa

For the respondent:
Mr EO Mbogoro

Madison Insurance Co Ltd v Kinara and another
[2005] 1 EA 240 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	9 July 2004
Case Number:	263/03
Before:	Omolo, Tunoi JJA and Ringera AGJA

Sourced by: LawAfrica

Summarised by: C Kanjama

[1] Civil procedure – Interest – Interest to be awarded to an indemnity claim – Whether the interest should be awarded as per the indemnity contract, at Court rates or at the rate of repayment suffered by the insured on a financing agreement.

[2] Insurance – Indemnity – Consequential loss arising from loss of business – Loss of profits caused by failure of insurer to compensate for burglary – No express cover for consequential loss in policy document – Whether policy holder entitled to claim for loss of profits.

Editor's Summary

The respondent herein held a burglary policy with the appellant. His premises was burgled and he lost property of certain value. The appellant failed to compensate him and he instituted a suit for indemnity. He sought the value of the stolen items and a further sum as special damages for lost income for a period of 41 months. The trial Court held that the respondent held a valid policy of insurance and awarded him the value of indemnity for the stolen items. The trial Court held that the respondent ought to have mitigated his damages and restarted his business within one year. The Court therefore granted an additional sum for lost profit for 12 months.

The appellant was dissatisfied with the award of lost profit, amounting to consequential loss. It appealed, claiming that the insurance policy did not include a cover for consequential loss. The respondent argued that neither did the policy exclude such a loss, and that the loss was a direct result of the failure by the insurer to give prompt compensation.

Held – There is no support in law for the contention that what is not expressly excluded by a contract of insurance is included. The insured in theory is not entitled to make a profit of his loss. While there is nothing to stop the parties agreeing in their contract of insurance that consequential loss will be compensated, an ordinary policy of insurance would not cover such loss unless the parties specifically contract that such loss would be covered. *Corporate Insurance Co Ltd v Wachira* [1995-1998] 1 EA 20 considered.

There was no provision in the contract of insurance for payment of interest at 30%, that rate being merely a loan repayment rate on an agreement between the insured and a third party financier. Interest would therefore be payable at Court rates from the date of filing suit until payment in full.

Appeal allowed. Cross-appeal dismissed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Corporate Insurance Co Ltd v Wachira [1995-1998] 1 EA 20 – **C**

Judgment

Omolo, Tunoi JJA and Ringera AGJA: The appeal before us raises a straightforward question: can a party to a contract of insurance be given special damages arising from loss of profits or loss of income?

The question arises in this way. Solomon Kinara who does business in the name of Kisii Physiotherapy Clinic, the respondent herein, held a "burglary policy" with Madison Insurance Company Limited, the appellant. The respondent described himself in his plaint dated 16 March 2001 and filed in the High Court of Kenya at Kisii on 20 March 2001 as a duly qualified physiotherapist and that he practised his art at New Sansora Complex in Kisii town. He had in his clinic certain articles of his trade which he listed as:

Traction Machine	KShs540 000
Ultrasonic Machine	KShs300 000
Rehabilitator	KShs10 000
Radio Cassette	KShs9 000
Pulley System	KShs10 000
Universal Adaptor	KShs2 000
Total	KShs871 000

His contention was that he had insured those items, together with others, against burglary and that the applicant had issued him with an insurance policy covering the period 29 April 1997 to 28 April 1998 and that he had paid to the appellant KShs15 599 as premiums in respect of the said policy.

On 7 September 1997 while that policy was in force, thieves broke into his premises and stole the listed items. He asked the appellant to indemnify him in respect of the loss; the appellant refused to indemnify him and in his plaint the respondent claimed not only the KShs871 000 as the value of his stolen items but also a further sum of KShs2 211 704 as special damages at the rate of KShs53 944 per month as lost income from 7 September 1997 for a period of 41 months.

The appellant denied liability for the claim of the respondent but after the trial a Commissioner of Assize (Mr Birech) found the appellant liable. He held that the respondent had insured his goods against burglary and he awarded to him KShs871 000 as the value of those goods. He also held that the respondent's loss of income was KShs45 705 per month but that the respondent was bound to mitigate his damages and that the respondent should have been able to restart his business within one year. He accordingly awarded to the respondent a further sum of KShs548 460 as constituting the respondent's "losses", arising from the appellant's failure to indemnify the respondent within a reasonable time.

The appellant appealed against liability (grounds one and two) and against the award of KShs548 460 (grounds three and four). The respondent also cross-appealed on four grounds complaining that he ought to have been given damages for the full 41 months claimed by him, that interest should have been awarded to him at the rate of 30% per annum, that the Commissioner, in assessing loss of income had failed to take into account the loans he had been repaying to some bank(s) and that the Commissioner erred in law in holding that he (respondent) should have mitigated his loss.

When the hearing of the appeal opened before us, Mr *Tuiyot* for the appellant, abandoned grounds one and two in the memorandum of appeal. That being so, the issue of the appellant's liability to indemnify the respondent in respect of the lost items is no longer a live one. The appellant must accordingly pay to the respondent the sum of KShs871 000 representing the value of the

goods which the respondent had insured with the appellant and which were stolen from the respondent's clinic.

That leaves us only with the issue of whether the appellant was under a duty to pay to the respondent special damages in the form of lost earnings. The answer which we give to this issue will largely determine the outcome of the cross-appeal by the respondent.

The starting point in answering that issue must be the contract of insurance itself. A copy of the policy was produced before the Commissioner as defence exhibit 5. We have meticulously gone through that document and none of its provisions state that the respondent would be entitled to any other payment apart from the value of the insured goods. In the document, the appellant agreed to indemnify the respondent against:

> "1. Loss of or damage to property insured or any part thereof whilst within the premises by theft following upon actual forcible and violent entry into or exit from the premises.
>
> 2. Damage to the premises falling to be borne by the insured (respondent) arising out of such entry or exit or any attempt thereat . . .
>
> and the company (appellant) will pay the value of the loss or damage to the property so lost or damaged including the value of damage to the premises to an amount not exceeding in total the sum insured in the schedule."

That was the extent of the appellant's undertaking to the respondent and there was no question of any sort of damages being provided for in the contract.

But Mr *Ombachi* for the respondent told us that since the policy did not exclude payment of any damages as was the case in *Corporate Insurance Co Ltd v Wachira* [1995-1998] 1 EA 20 where consequential loss was expressly excluded under the terms of the policy, there was nothing in law to prevent them from claiming damages which naturally followed from the breach of the terms of the policy of the appellant. That argument looks attractive, but in our view it ignores the basic principles underlying a contract of insurance. The argument comes very close to saying that what is not excluded by the terms of the policy is claimable under the ordinary principles governing the breach of any contract. We do not think there is any support for that contention. In their book T*he Law of Insurance*, (2ed), under the heading *The Contract of Insurance* and sub-heading *Indemnity* at 4, Preston and Colinvaux state as follows:

> "Indemnity, it has been said, is the controlling principle in insurance law, and by reference to that principle a great many difficulties arising on insurance contracts can be settled. Except in insurance on life and against accident the insurer contracts to indemnify the assured for what he may actually lose by the happening of the events upon which the insurer's liability is to arise, and in no circumstances, is the assured in theory entitled to make a profit of his loss. That role might be inferred as being the intention of the parties, having regard to the aim of a contract of insurance, but there are further powerful reasons for its application. Were it not so, the two parties to the contract would not have a common interest in the preservation of the thing insured and the contract would create a desire for the happening of the event insured against. Where in fact the assured has a prospect of profit, there and there only can arise the temptation to crime, fraud or such carelessness as may bring about the destruction of the thing insured."

That is very powerful language, but the passage nevertheless brings out the basic concept underlying a contract of insurance, namely that the party whose property is being insured pays premium not with the intention of making any

profit out of the transaction but rather with the intention that were the item assured to be destroyed, stolen or damaged, the other party offering the policy would replace the stolen or destroyed item or pay the reasonable charges for its repair.

Of course, there is nothing to stop the parties agreeing in their contract of insurance that consequential loss would be compensated. Macgilvary and Parkington on *Insurance Law* (8ed) put it thus under the heading "Insurance Against Pecuniary Loss" at 961:

> "1. *Consequential Loss Insurance:*
>
> 2140: Loss of profits: Many businesses wish to insure against the possibility of a fire or other catastrophe giving rise to a loss of profits or additional expense during the period after the occurrence of the peril insured against. It is accepted law that an ordinary insurance policy against for example, fire does not cover loss of profit and it has even been held that a loss of market caused by delay arising from a peril insured against is not covered by a standard form policy. Any type of consequential loss can be insured, but loss of profits or additional expenditure are the most usual subjects of insurance and for this reason the insurance discussed in this chapter is often referred to as loss of profits insurance . . .
>
> It follows that loss of profits and other forms of consequential loss must be described in the policy and insured as such. The purpose of the insurance it to put the insured into the position he would be in if the profits had been earned . . ."

On thing is clear from this text; ordinary or standard form policies or contracts of insurance do not cover consequential loss unless the parties specifically contract that such loss would be covered. The (4ed) of Denis Riley's book *Consequential Loss Insurances and Claims* specifically deals with such policies, namely consequential loss policies.

The policy of insurance between the appellant and respondent was an ordinary or standard form contract and as such there was nothing to import into that policy the element of consequential loss. The respondent's claim was that the loss was occasioned by the appellant's wrongful repudiation or refusal to pay for the loss of the items the policy covered, but we do not think this takes the matter any further. The parties could have covered such an eventuality in their policy of insurance and in the absence of such a provision, the respondent was not entitled to claim consequential loss of profits. That was what this Court rejected in the case of *Corporate Insurance* to which we have already referred.

It follows that the appellant's appeal must succeed on grounds three and four in the memorandum of appeal. Grounds one and two, as we have said, were abandoned. Accordingly we allow the appellant's appeal to the extent that the Commissioner of Assize's order awarding to the respondent KShs548 460 as loss of income for one year is set aside and the total sum of KShs1 419 460 awarded to the respondent by the Commissioner is reduced by the said KShs548 460 leaving a balance of KShs871 000. It follows that the respondent's cross-appeal must fail since we have held that the respondent was not entitled to loss of income under the policy. The claim for interest at the rate of 30% was on the basis that the respondent was repaying some loans to a bank or banks which has financed the purchase of the lost items and that the rate of interest on those loans was at 30%. There was no provision for such rate of interest in the policy of insurance. Accordingly, we order that interest at Court rates shall be paid by the appellant to the respondent on the sum of KShs871 000 with effect from the date of filing of the suit until payment in full. Our final orders shall be

that the appeal of the appellant is allowed to the extent already indicated herein. The cross-appeal is dismissed in its entirety. On costs, the appellant shall have the costs of its appeal since it has succeeded on two grounds and abandoned the other two grounds. We, however, make no order as to the costs of the cross-appeal.

For the appellant:
Tuiyot

For the respondent:
Ombachi

Maier v Kersten
[2005] 1 EA 245 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	23 July 2004
Case Number:	251/03
Before:	Tunoi, Githinji JJA and Onyango Otieno AGJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Evidence – Burden of proof – Sale of goods contract – Allegation by buyer that seller lacked right to sell and/or had breached implied warranty of quiet possession – Where did the burden of proof lie.

[2] Sale of goods – Right to sell – Warranty of quiet possession – Motor vehicle impounded by police after purchase on the ground that vehicle was stolen and had a fake logbook – Whether it was purchaser's duty to prove he was the lawful owner to the police – Section 4 – Sale of Goods Act (Chapter 31).

Editor's Summary

The appellant sold a motor vehicle to the respondent and transferred possession to him after he received the purchase price. The vehicle was later impounded by police on the ground that the motor vehicle was stolen and had a fake log book. The respondent filed suit and obtain damages amounting to the purchase price. The appellant appealed, and argued that the respondent had failed to discharge the burden of proof to show that the vehicle was stolen.

Held – The essence of the contract of sale is transfer of the property in goods sold. Where the seller has no right to sell the goods sold, a fundamental condition has been broken and the buyer can recover the price from the seller because consideration for its payment has totally failed. This would be the case where the vehicle turned out to be stolen. *Rawland v Dival* [1923] 2 KB 500 adopted.

It was the duty of the appellant to prove that he was the lawful owner at the time of the sale by providing a genuine logbook. He failed to do this and therefore breached the contract of sale.

Appeal dismissed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Rawland v Dival [1923] 2 KB 500 – **A**

Judgment

Tunoi, Githinji and Onyango Otieno AGJA: This is an appeal against the judgment of the High Court of Kenya at Mombasa (Khaminwa, Commissioner of Assize, as she then was), delivered on 20 December 2002 whereby the Court ordered the appellant, the defendant in the suit, to refund a total of KShs505 000-00 to the respondent, the plaintiff in the suit, being in respect of the refund of the purchase price and the value of added accessories for a motor vehicle which the appellant had sold to the respondent pursuant to an inconclusive contract of sale.

The facts giving rise to the matter now before us are largely not in dispute and may be briefly stated as follows. On or about 3 March 2002 the appellant agreed to sell to the respondent motor vehicle Mitsubishi Pajero registration number KAD 754C at a consideration of KShs450 000-00. The full purchase price was paid over to the appellant and the motor vehicle was handed over to the respondent. However, five weeks after the execution of the agreement of sale the motor vehicle was seized from the respondent by Kilifi Police Station on the ground that the motor vehicle had been stolen and had a fake logbook. We are informed that up to now the motor vehicle is still being detained at the police station.

Consequent upon the repossession, the respondent sued the appellant on 10 May 2002 for recovery of the consideration and the cost of accessories subsequent to the purchase. The appellant defended the suit contending that he had no knowledge that the motor vehicle had been stolen as the police had not charged anyone with its theft.

In the reserved judgment the learned Commissioner of Assize held:

> "I find that when the defendant sold the vehicle to the plaintiff he guaranteed good title. As it is, it is clear the defendant had no title to pass to the plaintiff. There was also an implied warranty that the plaintiff shall have and enjoy quite possession of the goods (motor vehicle). These are conditions given under the Sale of Goods Act.
>
> Evidence which is not controverted is that the purchaser (plaintiff) by being deprived of possession of the vehicle she is unable to enjoy the rights of ownership of the vehicle. She is unable to use the vehicle and therefore she is denied the right of owner. The price she paid for the vehicle has become without consideration and she is suffering loss of user (*sic*).
>
> I find therefore whether the vehicle was stolen or not is irrelevant. The fact is that the vehicle is detained by police and she cannot use it. And therefore these are reasons why the vehicle is in police custody and the plaintiff is deprived of quiet and peaceful enjoyment of the same."

The learned Commissioner of Assize then entered judgment for the respondent. Being aggrieved by that judgment the appellant has preferred this appeal, his main ground of appeal being that it was an error on the part of the trial

Court to hold that the motor vehicle had been stolen when there was no evidence to support that finding.

Mr *Kamundi* for the appellant has further argued that the learned Commissioner of Assize erred in not finding that the respondent had breached the contract by not going to collect the motor vehicle from the police station.

The evidence on record shows that the appellant was not in possession of the logbook or any other document to show his ownership of the motor vehicle at the time the sale agreement was executed. His ownership of the motor vehicle was therefore suspect after repossession by the police and it was the appellant's duty and not the respondent's to prove that he was its lawful owner. That he failed to do and thereby breached the contract.

The essence of the contract of sale is the transfer of the property in the goods sold; consequently, where the seller has no right to sell the goods, a fundamental condition has been broken and the buyer can recover the price from the seller because the consideration for its payment has totally failed. See section 14 of the Sale of Goods Act.

In the case of *Rawland v Dival* [1923] 2 KB 500, the plaintiff, a motor-car dealer, bought a car from seller for £334 and resold it to a customer for £400. The car was seized by the police because it was stolen and the plaintiff returned the £400 to his customer. The Court of Appeal held that the dealer was entitled to recover the £334 from the seller because the condition implied by section 12(1) was broken and there was a total failure of consideration although buyer had used the car for sometime. Section 12(1) of the English Sale of Goods Act of 1893, corresponds with section 14(*a*) of our Sale of Goods Act.

Clearly, the appellant's ownership over the motor vehicle was not beyond reproach and the appellant did not attempt to perfect it when the police seized it. In the circumstances, the appellant had no right title to the motor vehicle and could pass none to the buyer, the respondent herein, at the time of the contract.

In the circumstances, we think that the learned Commissioner of Assize cannot be faulted in her judgment. We see no merit in the appeal which we order dismissed with costs.

For the appellant:
Mr FK Kamundi instructed by *Kinyua Kamundi & Co*

For the respondent:
Information not available

Makorongo v Consigilio
[2005] 1 EA 247 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of ruling:	11 March 2004
Case Number:	6/03
Before:	Ramadhani, Munuo and Nsekela JJA
Sourced by:	LawAfrica
Summarised by:	M Kibanga

[1] Civil procedure – Notice of appeal – Notice of appeal signed on behalf of the Registrar – Whether notice of appeal proper – Rule 15 – Court of Appeal Rules.

[2] Statute law – Interpretation – Appeal filed – Subsequent amendment prohibiting institution of such appeal – Amendment affecting a substantive right – Effect of subsequent amendment on existing right – Section 5(2)(d) – Appellate Jurisdiction Act of 1979.

Editor's Summary

The appellant appealed to the Court of Appeal against the decision of the High Court in an appeal, made on 19 July 1999. While the appeal in the Court of Appeal was pending, Written Laws (Miscellaneous Amendments) Act 25 of 2002 came into force. Act 25 of 2002 amended by Appellate Jurisdiction Act of 1979 at section 5(2)(*d*) to state that "no appeal . . . shall lie against . . . preliminary or interlocutory decision or order has the effect of finally determining the criminal change or suit."

The order against which this appeal was made was of an interlocutory nature. The Court of Appeal *suo moto* invited the parties to address it on whether the appeal was a proper one in view of the amended section 5(2)(*d*) of the Appellate Jurisdiction Act.

The respondent's advocate contended that the appeal was a bad one. An issue arose as to the validity of a notice of appeal signed on behalf of the Registrar.

Held – The general rule is that unless there is a clear indication either from the subject matter or from the working of Parliament, that Act should not be given a retrospective construction. One of the rules of construction that a Court uses to ascertain the intention behind the legislation is that if the legislation affects substantive rights it will not be constituted to have retrospective operation, unless a clear intention to that effect is manifested; whereas if it affects procedure only, *prima facie* it operates retrospectively unless there is good reason to the contrary; *Municipality of Mombasa v Nyali Ltd* [1963] EA 371 followed, *Yew Bon Tew v Kendaraan Bas Mara* [1983] 1 AC 583 approved.

Act 25 of 2002 was not an amendment to Rules. The appellant's substantive right of appeal existed and had even been exercised by the time Act 25 of 2002 came into force. With regard to a notice of appeal signed on behalf of the Registrar or Registrar of the High Court, it was already settled in *21st Century Food and Packing Ltd v Tanzania Sugar Producers Association and others* [2005] 1 EA that a notice of appeal signed on behalf of the Registrar was a valid one.

The Court ordered the appeal to proceed to hearing.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Loitiame v Naftali civil appeal number 62 of 1999 (UR)

Municipality of Mombasa v Nyali Limited [1963] EA 371 – **F**

SGS Societe Generale De Surveillance SA v VIP Engineering and Marketing Limited [2002] 1 EA 265

Tanzania Revenue Authority v Al Naeem Enterprises Limited civil appeal number 8 of 2001 (UR)

India

Garikapati Veeraya v Subbiah Choudhry AIR 19

United Kingdom

Yew Bon Tew v Kendaraan Bas Mara [1983] 1 AC 553 – **APP**

Ruling

Ramadhani, Munuo and Nsekela JJA: This is an appeal against the decision of Kalegeya J in civil appeal number 105 of 1998. The Court *suo moto* invited the parties to address the Court on the effect on the appeal of section 5(2)(*d*) of the Appellate Jurisdiction Act, 1979 (the Act) as amended by the Written Laws (Miscellaneous Amendments) Act 25 of 2002 which now provides:

> "no appeal or application for revision shall lie against or be made in respect of any preliminary or interlocutory decision or order of the High Court unless such decision or order has the effect of finally determining the criminal charge or suit."

The appellant, Mr SS Makorongo appeared in person and was unrepresented. He did not have anything useful to contribute on this legal point. Mr *El-Maamry*, who advocated for the respondent, very briefly submitted that the decision of Kalegeya J did not finalise the suit and that no evidence had been adduced in the lower Courts. As such the appeal before the Court was premature in terms of section 5(2)(*d*) of the Act as amended by Act 25 of 2002.

The decision of the High Court (Kalegeya J) that is being appealed against was delivered on the 19 July 1999 and the appellant filed notice of appeal on the 26 July 1999. Act 25 of 2002 came into force on the 20 December 2002, the day it was published in the *Gazette*. In his decision, the learned Judge concluded as under:

> "The case to be heard and determined on merits before another magistrate."

It is clear to us that the appeal before the learned Judge was not finally determined and was remitted to the lower Court to be determined on the merits. The question which now arises is, did the amendment to section 5(2)(*d*) of the Act cover this appeal? Put differently, did the amendment have retrospective effect? The amendment came into force during the pendency of the appeal.

Section 10(2) of the Interpretation of Laws and General Clauses Act of 1972 Chapter 1 provides as follows:

> "Subject to the provisions of subsection (1) every Act shall come into operation on the date of its publication in the *Gazette* or, if it is provided either in such Act or any other written law that it shall come into operation on some other date, on that date."

Act 25 of 2002 came into force on 20 December 2002. Before that date the appellant had a right to appeal against such decisions of the High Court and the appellant had indeed exercised that right by filing the notice of appeal on 26 July 1999. This takes us to section 14(*c*) of Chapter 1 which provides:

> "14. Where an Act repeals any provision of another Act, then unless the contrary intention appears, the repeal shall not:

(*c*) affect any right, privilege, obligation or liability acquired, accrued, or incurred under the provision so repealed."

The general rule of law is that unless there is a clear indication either from the subject matter or from the wording of an Act of Parliament, that Act should not be given a retrospective construction. In the case of *Municipality of Mombasa v Nyali Limited* [1963] EA 371, Newbold JA had this to say at 374:

> "Whether or not legislation operates retrospectively depends on the intention of the enacting body as manifested by legislation. In seeking to ascertain the intention behind the legislation the Courts are guided by certain rules of construction. One of these rules is that if the legislation affects substantive rights it will not be construed to have retrospective operation unless a clear intention to that effect is manifested; whereas if it affects procedure only, *prima facie* it operates retrospectively unless there is good reason to the contrary. But in the last resort it is the intention behind the legislation which has to be ascertained and a rule of construction is only one of the factors to which regard must be had in order to ascertain that intention."

Some 20 years later, the Privy Council, speaking through Lord Brightman, in *Yew Bon Tew v Kendaraan Bas Mara* [1983] 1 AC 553 articulated this principle in the following terms at 558F-G:

> "Apart from the provisions of the interpretation statutes, there is at common law a *prima facie* rule of construction that a statute should not be interpreted retrospectively so as to impair an existing right or obligation unless that result is unavoidable on the language used. A statute is retrospective if it takes away or impairs a vested right acquired under existing laws, or creates a new obligation, or imposes a new duty, or attaches a new disability in regard to events already past. There is, however, said to be an exception in the case of a statute which is purely procedural, because no person has a vested right in any particular course of procedure, but only a right to prosecute or defend a suit according to the rules for the conduct of an action for the time being prescribed."

Appeals in civil proceedings to this Court are governed by section 5 of the Appellate Jurisdiction Act of 1979 and rules of Court regulating appeals to the Court are governed by the Tanzania Court of Appeal Rules of 1979 made under the Act. The appellant's right to appeal was in existence at the passing of Act 25 of 2002. It was not an amendment to a course of procedure for this would have entailed an amendment to the Court Rules. It did not alter the form of procedure. The amendment affected the appellant's substantive right to appeal which was vested in him when he instituted the suit. The question for our consideration and determination is whether or not section 5(2)(*d*) of the Act, as amended by Act 25 of 2002 takes away the vested right of appeal which the appellant had at the time of the institution of the suit. This vested right of appeal can be taken away only by a subsequent enactment if it so provides expressly or by necessary intendment and not otherwise. (See: *Garikapati Veeraya v Subbiah Choudhry* AIR 1957 SC 540 at 553). If Parliament intended to bar appeals from decisions of the High Court that did not finally determine the suit, there was an opportunity to do so when enacting the now amended section 5(2)(*d*). By virtue of Act 10 of 1999, subsection 2(*d*) prohibited appeals against any preliminary or interlocutory orders of the Commercial Division unless such decision or order had the effect of finally determining the suit. (See *SGS Societe Generale De Surveillance SA v VIP Engineering and Marketing Limited* [2002] 1 EA 265). Second, Act 25 of 2002 has amended about 16 different laws including the Appellate Jurisdiction Act of 1979. In the same Act however, section 331 of the Companies Ordinance has been amended so as to have retrospective effect. It provides as under:

> "The amendment of subsection (3) shall be read as one with the Written Laws (Miscellaneous Amendments) Act of 1998 and shall be deemed to have come into force on the 27 March 1998."

Act 25 of 2002 came into force on the 20 December 2002, but in the same Act the amendment to the Companies Ordinance has retrospective effect. This is a clear manifestation that the amendment to the Appellate Jurisdiction Act was not intended to have retrospective effect.

There is however another matter which has caused concern to us namely the validity of the notice of appeal which is to be found on page 132 of the record. In a number of cases decided by this Court including *Loitiame v Naftali*, civil appeal number 62 of 1999 and *Tanzania Revenue Authority v Al Naeem Enterprises Limited* civil appeal number 8 of 2001 (UR) we have consistently held that a notice of appeal which has been signed on behalf of the Registrar of the High Court offends rule 76(6) and Form D of the first Schedule to the Court Rules and is, therefore, invalid. Recently, a panel of this Court revisited this stand in *21st Century Food and Packinaging Ltd v Tanzanian Sugar Producers Association and others* civil application number 91 of 2001 and after taking into account rule 15 of the Court Rules as well which had not previously been subjected to close scrutiny, concluded, *inter alia*, as follows:

> "We find, therefore: one, rules 76 and 86 basically deal with how a notice of appeal and a memorandum of appeal, respectively, should be and what they should contain. Two, the lodging of a document is distinct from the endorsement of a document though the two are closely related. Three, the lodging of a notice of appeal is dealt with in rule 76(1) while that of a memorandum of appeal is the subject matter of rule 83(1). Four, the endorsement of documents that have been lodged under the respective rules is done under rule 15 by the Registrar or the Registrar of the High Court, as the case may be. So, any transgression against rule 15 is committed by those authorities and cannot be imputed on an advocate or an appellant.
>
> We therefore, are of the considered opinion that we ought to depart, and we so do, from all the previous decisions treating notices of appeal or memoranda of appeal as invalid because they were not signed by the Registrar or the Registrar of the High Court under rules 76 and 86. We do so because, we believe, that had rule 15 been cited to them, our learned brothers would have decided as we hereby do."

Admittedly, the notice of appeal dated 26 July 1999 was signed "for Registrar", but as explained above, this does not invalidate the notice of appeal.

In the result, the appeal is properly before the Court and should proceed on to hearing as soon as it is practicable. Costs to be in the cause.

For the appellant:
In person

For the respondent:
Mr El-Maamry

Matheka and another v Matheka
[2005] 1 EA 251 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	15 April 2005
Case Number:	304/02
Before:	Omolo, O'kubasu and Onyango Otieno JJA

Sourced by: LawAfrica

Summarised by: C Kanjama

[1] Succession – Revocation of grant – Material before Court at initial grant included the details of relationship of respondent – Respondent's cross-petition not considered and grant given to appellants – Court revokes grant of its own motion upon a subsequent application by respondent for an account – Whether the Court had properly exercised its discretion and power in revoking the grant – Sections 66 and 76 – Law of Succession Act (Chapter 160) – Rule 40(1) – Probate and Administration Rules.

Editor's Summary

The appellants (widow and daughter) were beneficiaries of the estate of the deceased. The respondent (son of the deceased) filed an objection asking to be made a co-administrator. The appellants obtained letters of administration after the trial Judge considered the priority of the widow to the grant. The appellants subsequently petitioned for confirmation of grant and the respondent filed an objection to the petition and a cross-application for the grant. He also took out an application praying for an account and for reasonable provision to himself as a dependant of the estate of the deceased.

The respondent's objection, his cross-application, application for detailed accounts and reasonable provision and protest for confirmation were all placed before a fresh judge for determination. The judge considered the rival arguments then made a ruling in which she, of her own motion, revoked the interim grant of letters of administration and ordered issue of a fresh grant to the appellants and the respondent as co-administrators. The appellants appealed, contending that the judge had improperly sat on appeal on a Court of concurrent jurisdiction, and that she had no jurisdiction to grant the orders made.

Held – Under the Law of Succession Act, the Court may revoke a grant, whether confirmed or not, either upon application by any interested party or by the Court of its own motion where the proceedings were defective, or the grant was obtained fraudulently or by means of mistake of fact or where the person who has obtained an interim grant has failed to discharge his duties, or the grant has become inoperative through subsequent circumstances. However, in this case, there was no evidence that the proceedings to obtain the grant were defective in substance nor that the decision was reached on account of a subsequent failure by the administrators to discharge their duties.

The trial Judge had properly applied the law in determining that the surviving spouse had the first order of preference in obtaining a grant of letters of administration.

Appeal allowed. Order for re-hearing of respondent's protest for inclusion and provision as a beneficiary/dependant of the deceased.

No cases referred to in judgment

Judgment

Omolo, O'kubasu and Onyango Otieno JJA: This is an appeal from the ruling of the superior Court (Aluoch J) delivered on 27 June 2002 in which the learned Judge of the superior Court revoked the grant of letter of administration intestate issued to Isabella Gichugu Matheka and Rita Mueni Matheka (the appellants herein) on 27 October 1999.

The background to this appeal may be briefly stated. Isabella Gichugu Matheka (first appellant) and Rita Mueni Ndinda Matheka (second appellant) applied for the grant of letters of administration to the estate of George Musau Matheka (the deceased) who died on 2 February 1990. The first appellant is a widow while the second appellant is the daughter of the deceased. The respondent (Erick Muthui Matheka) objected to the grant being made to the applicants on the ground that he (Eric) was a son of the deceased and for that reason he should be made a co-administrator. The respondent filed a cross petition for a grant. This matter came up for determination before Githinji J (as he then was) who having considered all that was argued before him stated as follows in his ruling delivered on 27 October 1999:

> "The Court has a formal discretion to decide to whom the grant should be given subject to the general guide in section 66 of the Law of Succession Act. It is not disputed that the first petitioner is the widow of the deceased. Under the general guide in section 66 of the Law of Succession Act a widow has priority over everybody else to get a grant.
>
> Even assuming that objector is a son of the deceased but not a child of the first petitioner that would not entitle him to a grant as a legal right."

Having allowed the petition and given the grant to the two appellants (petitioners in the superior Court) the learned Judge concluded his ruling thus:

> "Upon service of the application for confirmation of the grant the objector to file an affidavit of protest pursuant to rule 40(1) of Probate and Administration Rules and thereafter Court to determine the dispute on distribution which may emerge on the merit."

According to the Court records, the respondent lodged objection to the petition on 26 July 1990 and on 13 November 1990 he filed a "petition by way of cross application for a grant." The appellants petitioned for confirmation of the grant and the respondent filed an affidavit of protest to confirmation of the grant. It would appear that the respondent also took out a chamber summons application under rule 45(1) of the Probate and Administration Rules of the Laws of Succession Act in which he sought the following:

> "1. The administrators of the estate of George Musau Matheka do give and supply to this Honourable Court detailed and complete accounts since 1996 to date.
>
> 2. That such reasonable provision be now made (*sic*) the applicant/objector of the deceased namely Eric Muthui Matheka as a dependant of the deceased out of his estate as the Court thinks fit.
>
> 3. That the costs of this application be provided for."

It would appear from the record that the objection by the respondent, his cross-application, application for detailed accounts and reasonable provision and protest for confirmation were all placed before Aluoch J for consideration. The learned Judge considered all that was placed before her, the arguments in support of rival contentions and in the end delivered her ruling on 27 June 2002. In her ruling, she stated *inter alia*:

> "The totality of the evidence I have considered shows that the deceased was the father of Eric. It is on record that Eric has cross-petitioned for the grant to the deceased's estate. He has prayed that his name be included in the grant of letters of administration to the deceased's estate that is why he protested to confirmation of the grant which has the names of Isabella and her daughter only.
>
> Since I have found the deceased was Eric's father and in order to grant Eric's request I have decided out of my own motion under section 76 of the Succession Act

(Chapter 160) Laws of Kenya to revoke the grant of letters of administration intestate issued to Isabella Gichugu Matheka jointly with her daughter Rita Mueni Ndinda Matheka on 27 October 1999.

The order for the revocation of this grant of letters of administration should be served on the officer in charge of securities Barclays Bank Limited, East Nairobi Group of Branches Moi Avenue Business Centre PO Box 30116 Nairobi Kenya.

The order should also be served on any other bank from which the two petitioners might have been withdrawing money belonging to the deceased's estate.

I now direct that a new grant of letters of administration intestate to the estate of the late George Musau Matheka be issued to Isabella Gichugu Matheka jointly with Rita Mueni Matheka and Eric Muthui Matheka."

It was the above ruling by Aluoch J that provoked this appeal in which the appellants set out the following grounds of appeal:

"1. The learned Judge erred in law and fact in revoking the letters of administration given to the appellants on 27 October 1999 and issuing a new grant when there was no jurisdiction to do that under the proceedings which were before the Court. The application before Court was summons for provisions for a dependent by the respondent.

2. The learned Judge erred in law and fact in granting the orders it did which resulted in overturning the orders/ruling of the Court of 27 October 1999 (Honourable Mr Justice Githinji) which had concurrent jurisdiction thereby sitting on appeal of a decision of a fellow judge.

3. The learned Judge erred in law and fact in entertaining arguments and evidence leading to the revocation of the grant when dealing with a protest to confirmation of grant and an application for provision for a dependant which merely entitled the protestor to be included as dependant/beneficiary to the estate of the deceased.

4. The learned Judge erred in law and fact in considering extraneous matters and arriving at a wrong decision.

5. The learned Judge erred in law and fact in considering the cross-petition of the respondent which had been considered and disallowed by the Court by virtue of the decision of 27 October 1999 (Honourable Mr Justice Githinji) when the petition by the appellants and cross petition by the respondent were all dealt with.

6. The learned Judge erred in law and fact by misdirecting herself to the protest by the respondent to the confirmation of grant to the appellants by assuming jurisdiction of re-opening matters relating to the grant which had been determined on 27 October 1999 thus arriving at a wrong decision.

7. The learned Judge erred in law and fact in failing to consider the relevant facts and law thus arriving at a wrong decision."

Mr *K'Opere* the learned counsel for the appellants submitted that what was before Aluoch J was a protest to confirmation of the grant on the ground that the respondent had not been included as a beneficiary. It was Mr *K'Opere*'s contention that the grant had been given to the appellants by Githinji J (as he then was) and that the cross-petition had been disallowed. It was further argued that it was wrong for Aluoch J to have revoked the grant which had been given by Githinji J.

Finally, Mr *K'Opere* submitted that Aluoch J entertained extraneous matter by going back to what had been determined earlier by Githinji J. For those reasons Mr *K'Opere* asked us to set aside the orders of Aluoch J and then remit the matter to the High Court for hearing of the protest by the respondent.

Mr *Thangei*, the learned counsel for the respondent, was of the view that Aluoch J was right in revoking the grant since there had been material concealment of assets of the deceased by the appellants when they applied for the grant. Mr *Thangei* asked us to uphold Aluoch J's ruling and allow his client (the respondent) to take part in the administration of the estate of the deceased.

The main complaint in this appeal is that Aluoch J was wrong when she proceeded to revoke the grant which had been issued to the appellants. The learned Judge stated that she had decided on her own motion under section 76 of the Succession Act to revoke the grant of letters of administration intestate issued to the appellants. Section 76 of the Law of Succession Act (Chapter 160 Laws of Kenya) provides:

> "76. A grant of representation, whether or not confirmed, may at any time be revoked or annulled if the Court decided either on application by any interested party or of its own motion:
>
> (*a*) that the proceedings to obtain the grant were defective in substance;
>
> (*b*) that the grant was obtained fraudulently by the making of a false statement or by the concealment from the Court of something material to the case;
>
> (*c*) that the grant was obtained by means of an untrue allegation of a fact essential in point of law to justify the grant notwithstanding that the allegation was made in ignorance or inadvertently;
>
> (*d*) that the person to whom the grant was made has failed, after due notice and without reasonable cause either:
>
> (i) to apply for confirmation of the grant within one year from the date thereof, or such longer period as the Court has ordered or allowed; or
>
> (ii) to proceed diligently with the administration of the estate; or
>
> (iii) to produce to the Court, within the time prescribed, any such inventory or account of administration as is required by the provisions of paragraphs (*e*) and (*a*) of section 83 or has produced any such inventory or account which is false in any material particular; or
>
> (*e*) that the grant has become useless and inoperative through subsequent circumstances."

From the foregoing, it is clear that a grant may be revoked either by application by an interested party or on the Court's own motion. But even when revocation is by the Court upon its own motion, there must be evidence that the proceedings to obtain the grant were defective in substance, or that the grant was obtained fraudulently by the making of a false statement or by concealment of something material to the case, or that the grant was obtained by means of untrue allegation of facts essential in point of law or that the person named in the grant has failed to apply for confirmation or to proceed diligently with the administration of the estate. The grant may also be revoked if it can be shown to the Court that the person to whom the grant has been issued has failed to produce to the Court such inventory or account of administration as may be required.

Mr *Thangei* submitted that the grant was properly revoked on account of concealment of assets of the deceased. But what was the position before the learned Judge? The protest by the respondent was that he was the son of the deceased and hence a beneficiary. He, however, went further by insisting that he be made one of the administrators. We have carefully considered what was

before the learned Judge and it would appear that the respondent's main objection was that as he was a beneficiary as the son of the deceased with another woman he should have been included as an administrator. On the issue of grant of letters of administration, we would refer to section 66 of the Law of Succession Act which provides:

> "66. When a deceased has died intestate, the Court shall, save as otherwise expressly provided, have a final discretion as to the person or persons to whom a grant of letters of administration shall, in the best interests of all concerned, be made, but shall, without prejudice to that discretion, accept as a general guide the following order of preference:
>
> (*a*) surviving spouse or spouses, with or without association of other beneficiaries;
>
> (*b*) other beneficiaries entitled on intestacy, with priority according to their respective beneficial interests as provided by Part V;
>
> (*c*) the public trustee; and
>
> (*d*) creditors.
>
> Provided that, where there is partial intestacy, letters of administration in respect of the intestate estate shall be granted to any executor or executors who prove the will."

In view of the provisions of sections 66 and 76 of the Law of Succession Act and the facts of this case which do not appear to be in any dispute as relates to the status of the respondent *vis a vis* the deceased, we are satisfied that the learned Judge (Aluoch J) was in error when she proceeded to revoke the grant. We hasten to add that the learned Judge had the noble intention of protecting the interest of the respondent who, in her view, was a beneficiary of the deceased's estate, but that noble intention could not, in our view, be achieved by revoking the grant. All the matters upon which the respondent relied before Aluoch J for the revocation of the grant issued by Githinji J had been placed before the latter Judge and had been considered by him. Nothing new was brought before Aluoch J to warrant the revocation.

For the foregoing reasons, we allow this appeal and set aside the High Court order given on 27 June 2002 and remit the case for hearing in the superior Court as to the respondent's protest for inclusion and provision as a beneficiary/dependant of the deceased. We further order that the grant of letters of administration given on 27 October 1999 do proceed to confirmation showing the assets identities and shares of those beneficially entitled. Costs shall be borne by the estate of the deceased. These shall be our orders.

For the appellants:
Mr TO K'Opere instructed by *TO K'Opere & Co*

For the respondent:
Mr AN Thangei instructed by *Waruhiu K'owade & Ng'ang'a Adv*

Mbui v Mbui
[2005] 1 EA 256 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	10 December 2004
Case Number:	281/00
Before:	O'kubasu, Githinji and Waki JJA

Sourced by: LawAfrica

Summarised by: C Kanjama

[1] Customary law – Land – Whether customary law rights in land extinguished by registration – Concept of customary law trust.

[2] Land – Absolute proprietorship – Customary law rights – Whether extinguished by first registration – Sections 27, 28 and 30 – Registered Land Act (Chapter 300).

[3] Trust – Land – Customary law rights – Whether rights under customary law of occupation and possession can be imputed into registered land – Sections 27, 28 and 30 – Registered Land Act (Chapter 300).

Editor's Summary

The appellant was the registered owner of the subject property while the respondent was his eldest son. The respondent had previously filed suit to obtain an order for transfer of some portions of the subject property to him which suit had failed. Subsequently, the appellant filed suit seeking to have the respondent evicted from his property on the grounds that the respondent had threatened him and was a security risk. The respondent claimed that there was no evidence of any such threat. The trial Court held that no evidence of threat had been proved and declined to grant the orders.

The appellant then filed his first appeal to the superior Court. He argued that his absolute and indefeasible statutory rights as registered owner had not been considered, under which he was entitled to evict the respondent whose position was that of a licensee. The respondent argued that he had been on the subject property since his birth, and had made permanent developments thereon with the consent of the appellant. He argued that he was entitled under customary law to keep on residing on the land. The superior Court considered and dismissed the appeal, as a result of which a second appeal was filed.

Held – It is conceded that the rights of a registered proprietor of land are absolute and indefeasible and are only subject to the rights and encumbrances noted on the register and overriding interests set out in section 30 of the Registered Land Act. However, customary law rights may give rise to a trust, which would be subject to protection under the Act and would constitute an overriding interest recognisable under section 30 of the Act. *Marigi v Marigi and others* [1996] LLR 463 (CAK), *Esiroyo v Esiroyo* [1973] EA 388, *Obiero v Opiyo* [1972] EA 227 distinguished. Although peremptory language is used in the registration Act, there are built in qualifications for the protection of other persons. *Kiama v Mathunya* civil appeal number 42 of 1978 (UR), *Kanyi v Muthiora* [1984] KLR 712 followed; *Gathiba v Gathiba* [2001] 2 EA 342 approved.

In the case herein, the subject land was ancestral land which the appellant had inherited from his father. The respondent had been on the land since his birth and had occupied his portion since he built his house with the consent of the appellant. This land would include an aspect of inter-generational equity. Thus a trust arose from the possession and occupation of the land by the respondent which had the protection of sections 28 and 30(*g*) of the Act; this would be so unless there is an inquiry made which discloses no such rights.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Esiroyo v Esiroyo [1973] EA 388 – **D**

Gathiba v Gathiba [2001] 2 EA 342 – **APP**

Kanyi v Muthiora [1984] KLR 712 – **F**

Kiama v Mathunya and others civil appeal number 42 of 1978 (UR) – **F**

Marigi v Marigi and others [1996] LLR 463 (CAK) – **D**

Obiero v Opiyo and others [1972] EA 227 – **D**

Judgment

O'kubasu, Githinji and Waki JJA: This land dispute between father and son has been raging since 1993. The first salvo was fired by the son, Gerald Mutwiri Mbui (Gerald) when he sued his father in Meru Chief Magistrate's Court case number 870 of 1993 to stop him from alienating some two parcels of land and to force him to transfer portions of the land to him. Gerald did not succeed in that attempt but continued to occupy the land.

The father, Mbui Mukangu (Mbui) is the registered proprietor of parcel numbers Abothuguchi/Ruiga/1245 (plot 1245) and Abothuguci/Ruiga/214 (plot 214) measuring three acres and four and a half acres respectively. Both are held under the Registered Land Act (Chapter 300) Laws of Kenya. He resides on plot 1245 and so does Gerald. Gerald has also planted coffee on half acre of plot 214.

Three years after Gerald failed in this case (although he says it is pending appeal before the High Court, in Meru) Mbui instituted a case of his own – Meru Chief Magistrate's Court civil case number 13 of 1998 pleading that Gerald had been threatening to harm him and had provoked him by cutting down his banana plants. For that reason, he wanted a Court order evicting him from plot 1245. Those allegations were of course denied by Gerald who put his father to strict proof thereof. He also pleaded that his father was holding the land in trust for the whole family.

There are five sons in the family. Gerald was the eldest but his mother divorced Mbui in 1961. The second wife had one son but she was also divorced. The youngest wife, who was still living with Mbui on plot 1245, has three sons.

According to Mbui, plot 214 was ancestral land and he was not evicting Gerald therefrom. He was offering him the half acre he was cultivating. Plot 1245 was however acquired by him through purchase and he wanted Gerald out of it, despite Gerald having lived there with Mbui's consent and knowledge since his birth in 1956 and having made permanent developments thereon since 1979. Other than the bold statement about the purchase, no other evidence was offered. For his part, Gerald denied that plot 1245 was acquired through purchase and averred that it was ancestral land. He denied assaulting his father and attributed their acrimony to the youngest wife who wanted to have the land left for her three sons.

Only the two of them testified before the Meru Resident Magistrate, (P Okille Esq). The learned Magistrate found that the cause of action pleaded by Mbui was threat of violence by his son but no evidence was tendered to prove the allegation. As there was thus no basis for seeking the eviction of Gerald with all attendant grave consequences of that eviction, the suit was dismissed.

Dissatisfied with that finding, Mbui challenged it on appeal on four grounds. We reproduce them as it was argued before us that those grounds were ignored by the superior Court:

> "1. The learned trial Magistrate erred in law and fact in failing to appreciate that the appellant as the registered proprietor of land parcel number Abothugchi /Ruiga/1245 has unfettered rights and privileges to deal with or dispose of that land the way he wishes and nobody can urge, direct or order him to do anything about that against his will.
>
> 2. Though the respondent is the son of the appellant and has been living with the appellant on that his land (*sic*), the learned trial Magistrate erred in law and fact in failing to find that the respondent was just a licencee at will in the appellant's land and the appellant has a right to terminate that licence at will and without being required to establish the reasons for such termination.
>
> 3. Whereas there is indisputable evidence that the relations between the appellant and respondent became sour after the respondent failed in a bid to get the appellant share and transfer portions of his lands to the respondent, the learned trial Magistrate erred in law and fact in disbelieving appellant's evidence that since that failed bid the respondent has been provoking and threatening the appellant.
>
> 4. The learned trial Magistrate misdirected himself in upholding without proof that the respondent has done substantial development on the suit premises and went further to consider that appellant should have offered to compensate for the alleged development."

The Commissioner of Assize (Honourable Omwitsa), who heard the appeal agreed with the Court of first instant that there was no proof of the cause of action pleaded to warrant an order for eviction of Gerald from the family land. The learned Commissioner of Assize went further to consider two authorities cited by the appellant and held that they were distinguishable. The self-same authorities were cited in aid before us and we shall comment on them presently. Omwitsa (Commissioner of Assize) dismissed the appeal.

Mbui was still dissatisfied and therefore came before us. Being a second appeal, only matters of law can be raised. Although five grounds of appeal were laid out, only four were argued before us. That is:

> "1. The learned Commissioner of Assize erred in law in failing to consider and analyse each ground set out in the appellants (*sic*) memorandum of appeal and due to that failure he came to the wrong conclusions.
>
> 2. The learned Commissioner of Assize failed to consider that the appellant was the registered owner of the suit land and as such he was entitled to absolute ownership of that land together with all rights and privileges belonging thereto and due to that failure the learned Commissioner of Assize came to the wrong conclusion in his judgment.
>
> 3. The learned Commissioner of Assize erred in law in treating the respondent as (*sic*) an overriding interest on the appellant's piece of land and as a result of that failure he wrongly failed to order the respondent to be evicted from land reference Abothuguchi/Ruiga/1245.

4. The learned Commissioner of Assize erred in law and in fact in failing to hold that due to the bad blood between the appellant and the respondent both of them could not occupy the same land and in that regards, *(sic)* the respondent should be evicted from the suit land?"

Learned counsel Mr *Mwirigi*, who appeared for Mbui in the superior Court argued ground one on its own, grounds two and three together, made fleeting submissions on ground four which in our view relates to concurrent findings of fact made by the two Courts below. We cannot, of course, interfere with such findings unless there was a compelling reason to do so, such as the findings being so perverse that they are bad in law, which is not the case here.

For purposes of this appeal it is grounds two and three which raise fundamental issues of law, the determination of which will lay the matter to rest. The issue is this:

> "Do sections 27 and 28 of the Registered Land Act confer such rights on Mbui as will entitle him to evict his son, Gerald, from the occupation and possession of the land?"

In answer to that issue, Mr *Mwirigi* referred us to the two authorities he relied on before the superior Court and submitted that the answer was in the affirmative. Gerald, he submitted, can only claim an interest in the land through customary law but the application of that law was extinguished upon registration of the land. No duty of care was owed to Gerald by his father Mbui because he was a grown up and ought to look for his own land elsewhere. Alternatively he can only wait until the father dies and the claim under succession.

On the other hand, learned counsel for Gerald, Mr *Omayo* contended that there was no dispute and indeed there was a finding of fact that the two parcels of land were part of the ancestral or family land before Mbui was registered as a proprietor. As such he can only hold the land subject to a trust in favour of Gerald which entitled him to live on the land. Gerald was not claiming ownership of the land from his father but only the right to continue occupying it as he had always done with the father's consent and knowledge for years. There is no denial of the developments made by Gerald on the land. In his view the two authorities cited had no relevance and the superior Court was right to distinguish them.

We now turn to those authorities. The first one is a decision of this Court made in May 1997, Nyeri *Marigi v Marigi and others* [1996] LLR 463 (CAK). The three sons of Muriuki Mariga (the father) who had five wives and several other children sued him in the High Court seeking to compel him to equitably subdivide and allocate to his wives a parcel of land registered in his name under the Registered Land Act (Chapter 300). The sons feared that the father who was intending to subdivide the land, would do so in a manner that would disadvantage them. The father in his defence pleaded that as the registered proprietor he had the absolute and indefeasible right over the property and he could not be urged, directed or compelled to share the land in any particular manner. The suit however did not proceed to trial as the parties referred it to arbitration by consent and it was the award in favour of the sons which was being challenged before Ang'awa J who saw no reason to upset it. The father appealed and this Court examined the root cause of the dispute and found that there was no cause of action in the first place. The arbitral proceedings were declared a nullity *ab intio*. The Court made a finding that the claim of the sons

was based on a customary law right but held that such right was excluded under sections 27, 28 and 30 of the Registered Land Act. The Court stated:

> "We earlier set out the provisions of sections 27 and 28 of the Registered Land Act which in effect state that the rights of a registered proprietor of land registered under the Act are absolute and indefeasible and are only subject to rights and encumbrances noted on the register or overriding interests which are set out in section 30 of the Act. The evidence on record is silent on whether or not the respondents' Kikuyu customary law rights over the suit property are noted in the land register respecting the land. In absence of such evidence we may not properly infer or imply that they are. The only other aspect outstanding for consideration is whether the customary law rights, if they exist at all, are overriding rights or interests recognisable under that section. The issue was considered in the following two reported cases of *Obiero v Opiyo and others* [1972] EA 227 and *Esiroyo v Esiroyo and another* [1973] EA 388, and in both cases it was held that they are not. The Court in both cases was bound to come to that conclusion because of the clear language of section 30, above. Moreover, considering the provisions of section 3(2) of the Judicature Act which we partly reproduced above, customary law rights being subject to rights under a written law, the respondents' rights are clearly excluded by the clear language of sections 27 and 28 of the Registered Land Act."

And concluded:

> "The appellant as the registered owner of the suit property is still alive. His property is not yet available for sub-division and distribution among his wives and children except if he personally on his own free will decides to sub-divide and distribute it among them. He may not be urged, directed or ordered to do it against his own will."

The second case was *Esiroyo v Esiroyo and another* which also involved a father and his two sons. It has an uncanny similarity with this case because the father who was the registered owner of the land claimed that his two sons whom he sued for eviction from the land had had family rows and fights with him, hence his desire to exclude them from his land. The sons relied on Luhya customary law to lay their claim on the land which the Court found was ancestral land. Kneller J (as he then was) applied sections 28 and 30 of the Registered Land Act to hold that rights under customary law are extinguished upon registration of land under that Act and further that they are not among the interests listed in section 30 as over-riding interests.

For completeness we now reproduce the relevant sections under discussion before we consider their application to the case before us.

> "27. Subject to this Act:
>
> (*a*) The registration of a person as the proprietor of land shall vest in that person the absolute ownership of that land together with all rights and privileges belonging or appurtenant thereto.
>
> 28. The rights of a proprietor, whether acquired on first registration or whether acquired subsequently for valuable consideration or by an order of Court, shall not be liable to be defeated except as provided in this Act, and shall be held by the proprietor, together with all privileges and appurtenances belonging thereto, free from all other interests and claims whatsoever, but subject:
>
> (*a*) to the leases, charges and other encumbrances and to the conditions and restrictions, if any, shown in the register; and
>
> (*b*) unless the contrary is expressed in the register, to such liabilities, rights and interests as affected the same and are declared by section 30 not to require noting on the register:

Provided that nothing in this section shall be taken to relieve a proprietor from any duty or obligation to which he is subject as a trustee.

30. Unless the contrary is expressed in the register, all registered land shall be subject to such of the following over-riding interests as may for the time being subsist and affect the same, without their being noted on register:

(*g*) The rights of a person in possession or actual occupation of land to which he is entitled in right only of such possession or occupation, save where inquiry is made of such person and the rights are not disclosed;

Provided that the Registrar may direct registration of any of the liabilities, rights and interests herein before defined in such manner as he thinks fit."

It was the view of the superior Court (Omwitsa CA) that the two authorities were distinguishable, the *Muriuki Murigi* case on the basis that the claim was based on customary law which the Registered Land Act did not admit of. Furthermore there was no cause of action in that suit since the father could not be forced to distribute his land when he was still alive. The *Esiroyo* case because the sons had alternative land and they had forcefully moved in to occupy the other parcel of land registered in their father's name thus constituting themselves trespassers by their conduct.

We have anxiously considered this matter and have reached the conclusion that the appeal is not meritorious.

We have no quarrel with the *ratio decidendi* in the two cases as indeed they accord with clear language of the relevant sections of the law. The Court in the *Muriuki Murugi* case was right in reiterating that rights under customary law are subjected to rights under written law and are excluded under the clear language of sections 27 and 28. The statement of law in *Esiroyo*'s case has also received approval of this Court before, that customary law rights in land are extinguished upon registration of that land under the Registered Land Act. The very purpose of subjecting land, hitherto held under customary tenure, to the process of land consolidation under the Land Consolidation Act or the Land Adjudication Act and subsequently registering it under the Registered Land Act is *ipso facto* to change the land tenure system. The assumption is that all rights and interests of persons in the land subjected to such new system would have been ascertained and recorded before registration.

It is nevertheless realised that although peremptory language is used in the Registration Act, in sections 27 and 28 there are built-in qualifications for the protection of other persons. Those that are express are discernible in the proviso to section 28 and in section 30 of the Act. The qualifications have however received varying judicial interpretations. This Court for example in *Kiama v Mathunya and others* civil appeal number 42 of 1978 (UR) doubted that customary law rights were excluded from section 30 of the Act as overriding interests. In his usual flair and flamboyance, Madan JA referred to section 30(g) and stated:

"What meaning is to be given to section 30(*g*)? The rights under customary law may be argued to be extinguished by section 28 – Kneller J in *Esiroyo v Esiroyo* [1973] EA 388 at 390. It must refer to equitable rights, it cannot be otherwise, it has to be so to be sensibly interpretable. Over-riding interests which arise in right only of possession or actual occupation without legal title are equitable rights which are binding on the land, therefore on the registered owner of it. Under section 30(*g*) they possess legal sanctity without being noted on the register; they have achieved legal recognition in consequence of being written into statute; they are not subject to interference or disturbance such as by eviction save when inquiry is made and they are not disclosed.

> In this case the respondents were in possession and actual occupation of the land and they also cultivated it to the knowledge of the appellant. He made no inquiry, any inquiry by him would have been superfluous; he had himself lived on the land together with the respondents for a time and knew that they cultivated it.
>
> Over-riding interests which so exist or are so created are entitled to protection because they are equitable rights even if they have a customary law flavour or the concomitant aspect of cultivation, which is not listed in section 30. Equity always protects the just rights of the oppressed. Equity always prevents an injustice being perpetrated. Equity sanctifies the administration of justice. Cultivation of land is incidental and an appurtenance of an over-riding interest in right only of possession or actual occupation. There is nothing repugnant about the economic exploitation of land. That is what land is for."

The other members of the bench, Law and Potter JJA, did not use similar reasoning although they arrived at the same result. Potter JA in part stated:

> "The learned Judge held that the suit land was transferred to the appellant subject to the resulting trust in favour of the respondent. I think that was correct, not because of any fraud, but because the land was subject to an overriding interest created by the trust, under section 30(*g*) of the Land Registration Act (*sic*). The respondents are in actual occupation of the land."

That is not what Kneller J (as he then was) strictly meant in *Esiroyo*'s case or in agreeing with Bennet J in *Obiero v Opiyo* [1972] EA 227. But in 1984, Kneller JA joined Chesoni and Nyarangi Ag JJA in holding that:

> "The respondent had rights against the appellant stemming from possession and occupation of part of the land, which amounted to overriding interest not required to be noted on the register and the appellants proprietorship was subject to it, section 30(*g*)."

That was in *Kanyi v Muthiora* [1984] KLR 712. There the respondent was enforcing the rights of an unmarried daughter under Kikuyu customary law against her stepmother who had been registered as the absolute owner of the land after the death of her husband, the father of the respondent. As regards claims based on customary law the same Court held:

> "The registration of the land in the name of the appellant under the Registered Land Act (Chapter 300) did not extinguish the respondents rights under Kikuyu customary law and neither did it relieve the appellant of her duties or obligations under section 28 as trustee. The trustee referred to in section 28 of the Act could not be fairly interpreted and applied to exclude a trustee under customary law, if the Act had intended to exclude customary law rights it would have been clearly so stated."

We have also examined other authorities and we think it cannot be argued too strongly that the proper view of the qualification or proviso to section 28 is that trusts arising from customary law claims are not excluded in the proviso. Such claims may stem from the possession and occupation of part of the registered land which although strictly it may not be an overriding interest under section 30(*g*), it nevertheless gives rise to a trust which is capable of protection under the Act. After passionately and extensively analysing the concept of customary law trusts, Khamoni J in *Gathiba v Gathiba* [2001] 2 EA 342 at 368 stated:

> "The position as I see it is therefore as follows: Correctly and properly, the registration of land under the Registered Land Act extinguishes customary land rights and rights under customary law are not overriding interest under section 30 of the Registered Land Act. But since the same registration recognises trusts in general terms as is done in the proviso to section 28 and section 126(1) of the Registered Land Act without specifically excluding trusts originating from customary law and since African

> customary laws in Kenya, generally, have the concept or notion of a trust inherent in them where a person holding a piece of land in a fiduciary capacity under any of the customary laws has the piece of land registered in his name under the Registered Land Act with the relevant instrument of an acquisition, either describing him or not describing him by the fiduciary capacity, that registration signifies recognition, by the Registration Land Act of the consequent trust with the legal effect of transforming the trust from customary law to the provisions of the Registered Land Act because, according to the proviso to section 28 of the Registered Land Act such registration does not relieve a proprietor from any duty or obligation to which he is subject as a trustee."

We respectfully agree with that conclusion. Which brings us to the case before us.

It is significant, we think, that unlike the *Marigi* case (*supra*) where the father had his own land and could therefore do whatever he wished with it, the land registered in the name of Mbui was ancestral land and devolved to him in the death of his father. It was unregistered land held under custom but the tenure changed during the land consolidation process and subsequent registration under the Registered Land Act. It is a concept of intergenerational equity where the land is held by one generation for the benefit of succeeding generations. It is also significant that unlike the *Esiroyo* case, where the sons invaded the land occupied by the father, Gerald in this case, was in possession and occupation of the land with the consent and knowledge of Mbui since his birth in 1956. He has constructed a five-roomed permanent house and has planted coffee in the suit land. The respondent is not ready to compensate him for those permanent developments. We think the superior Court was right in distinguishing the authorities cited on that score. But more significantly, we think a trust arose from the possession and occupation of the land by Gerald which has the protection of sections 28 and 30(*g*) of the Act unless there is an inquiry made which discloses no such rights, which would be superfluous in this case.

It is for those reasons that we answer the issue posed earlier in the negative. We consequently find the appeal lacking in merits. It is hereby dismissed but each party will bear its own costs as it is a family matter.

For the appellant:
Mr S Mwirigi instructed by *S Mwirigi M'Inoti & Co*

For the respondent:
EP Omayo instructed by *Mbaabu Minoti & Co*

Messina and another v Stallion Insurance Co Ltd
[2005] 1 EA 264 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of ruling:	14 April 2005
Case Number:	9/05
Before:	Githinji JA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

[1] Appeal – Security for costs – Principles to be applied – Application for security for past costs – Subsisting order for stay of execution of decree – Impending hearing of the substantive appeal – Whether security for costs on appeal and for past costs ought to be made – Rules 104(1), 104(3) and 112(i)(b) – Court of Appeal Rules.

[2] Civil procedure – Res judicata – *Application for security for costs – Whether fresh application can be brought when circumstances change – Whether the fresh application is* res judicata.

[3] Civil procedure – Security for costs – Poverty of respondent – Whether a sufficient ground upon which Court will decline to make an order for security for costs – Whether there is a distinction between poverty of an individual and of a company – Whether the making of a winding-up order is prima facie *evidence of inability to pay debts – Section 401 – Companies Act (Chapter 486).*

Editor's Summary

The applicant obtained a money decree against the respondent. The respondent obtained orders of stay of execution and deposited insurance bonds amounting to the decretal sum. The applicant made an initial application for security for costs on the appeal which was rejected. One of the insurance bonds given as security for the decretal sum (inclusive of taxed costs in the superior Court) later lapsed after the bond company went into liquidation.

Subsequently, the respondent company was also put into liquidation. The appellant then made a fresh application for security for costs of the appeal, and for past costs. The issues arising for determination included the question of whether the fresh application was *res judicata* on account of the previous application, whether the applicant had proven that the respondent would be unable to pay the costs in the event of failing in the appeal, and whether the question of poverty of the respondent company was a relevant ground upon which an order for security would be declined. The Court also considered the fact that the appeal was listed for hearing within a few weeks of the application for security for costs, and whether the same would be derailed by an adverse order for security for costs.

Held – The appellate Court, or a judge, or a Registrar, may at any time in any case where he thinks fit, order further security for costs to be given. The burden lies on the applicant to show cause why an order for additional security should be made. It is not sufficient to merely aver that the security already deposited in Court by virtue of the Court of Appeal Rules is inadequate, or that costs in the action below have not been paid. The appeal Court's jurisdiction is unfettered, and it may be exercised at any time. *Ganji v Vassanjee* [1960] EA 315 followed.

The Court should only sparingly exercise its power to order security in respect of past costs, which include costs ordered to be paid in the Court below. Normally security is not ordered in the superior Court on the ground of poverty because a litigant should not be denied access to justice. However, after the decision of the trial Court, the appellate Court should consider whether the appellant should be permitted unconditionally to carry the litigation further. This principle of poverty would apply to a natural person. *Abdulla v Patel* [1962] EA 447, *Marco Tools and Explosives Ltd v Mamujee Brothers Ltd* [1988] KLR 730 followed.

The principle of poverty does not apply to a limited company. While the law rarely requires an individual plaintiff to give security for costs on the grounds of insolvency or poverty, the position is exactly reversed in the case of a company

under the Companies Act. The Court however still retains its complete discretion on whether to order security for costs, which may be exercised on pragmatic principles. *Keary Developments v Tarmac Construction* [1995] 3 All ER 534 considered.

The fresh application for security for costs was not *res judicata* because it had been made after substantial change in the circumstances obtaining, particularly the on-going liquidation of the respondent. The discretion of the appellate Court is exercised at any time depending on the circumstances obtaining at that particular time. *Kaura v Morgan* [1961] EA 462, *Keary Developments v Tarmac Construction* (*supra*) followed.

In the circumstances of this case, an order for security for past costs ought not be made as there is already a subsisting order of the superior Court granting stay of execution of the decree (inclusive of taxed costs). While the security provided under the said order is no longer sufficient to cover the decree and costs, in view of the impending hearing of the appeal herein, no order for any costs would be made.

Application dismissed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Abdulla v Patel [1962] EA 447 – **F**

Ganji v Vassanjee [1960] EA 315 – **F**

Gulf Engineering (East Africa) Limited v Kalgi [1976] KLR 277

Kaura v Morgan [1961] EA 462 – **F**

Marco Tools and Explosives Ltd v Mamujee Brothers Ltd [1988] KLR 730 – **F**

United Kingdom

Keary Developments Limited v Tarmac Construction Limited and another [1995] 3 All ER 534 – **C** and **F**

Pearson v Naydler [1977] 3 All ER 531

Sir Lindsay Parkirson and Company Limited v Triplan Limited [1973] 2 All ER 273

Ruling

Githinji JA: This is an application under rules 42(1) and 104(3) of the Court of Appeal Rules for four main orders thus:

> "1. . . .
>
> 2. The respondent/appellant do provide security for the payment of the applicant/respondents costs awarded in High Court civil case number 216 of 2000 in the sum of KShs775 265-00.
>
> 3. The respondent/appellant do provide security for the payment of the applicant/respondent's costs in civil appeal number 18 of 2001 in the sum of KShs2 000 000-00.

4. In default of provision of security as prayed in 2 and 3 above, the appeal does stand dismissed with costs.

5. Pending the provision of a security as prayed in 2 and 3 above the hearing of civil appeal number 18 of 2001 be stayed."

The application is brought on the main ground that the applicant is reasonably apprehensive that it may not recover its costs of the High Court proceedings and in the appeal as the superior Court made a winding-up order on 15 November 2001 to wind up the respondent on the ground that it was insolvent and/or incapable of paying its debts.

The application is supported by the affidavit of Captain Ginseppe Fedele, the country representative of the applicant. It is opposed on the grounds contained in the replying affidavit of Marshal T Osanya, the liquidator of the respondent. Marshal T Osanya (Osanya), deposes among other things that, a similar application, being civil application number Nai 229 of 2001 was dismissed by this Court (Kwach JA) on 15 August 2001; that the applicant is estopped from re-opening the matter again; that the applicant is guilty of inordinate delay in bringing the application; that the application is made for the sole purpose of obstructing the hearing of the appeal and that there are insurance bonds deposited as security whose value exceed the amount being claimed as costs.

The background facts as stated in the supporting affidavit and in the ruling dated 15 August 2001 in civil application number Nai 229 of 2001 (*supra*) are briefly as follows: In 1991 the applicant Ignazio Mssina and CSPA, sued the respondent in High Court civil case number 1524 of 1999 to recover KShs45 501 095-20 alleged to be due and payable under a guarantee given to the applicant by the respondent for the benefit of another company. The respondent did not enter appearance and a default judgment was entered on 1 October 1999 and a decree ensued. The costs of the suit were assessed at KShs775 265. The respondent thereafter filed an application to set aside the default judgment which application was dismissed by the superior Court on 16 May 2001. The respondent applied for stay of execution pending appeal. The superior Court allowed the application on terms that the respondent do provide security bonds in the sum of KShs22 000 000. The respondent in compliance with the order for provision of security furnished security bonds from four insurance companies as follows:

(*a*) Concord Insurance Company Limited – KShs5 000 000-00

(*b*) Invesco Insurance Company Limited – KShs3 000 000-00

(*c*) Lakester Insurance Company Limited – KShs10 000 000-00

(*d*) Intra Africa Assurance Company Limited – KShs3 500 000-00

The respondent filed civil appeal number 18 of 2001 on 30 January 2001 which appeal is fixed for hearing in this Court for 19 April 2005. On 4 September 2001 the Commissioner of Insurance acting pursuant to the provisions of Insurance Act (Chapter 487) filed a winding-up cause number 42 of 2000 in the superior Court seeking a winding-up order in respect of the respondent on the grounds, *inter alia*, that the company was insolvent; that it was unable to pay its debts; and that it was unable to meet the reasonable expectations of the policy holders. The respondent did not oppose the application and a winding-up order was made on 15 November 2001. Similarly Lakestar Insurance Company Limited which provided a bond for KShs10 000 000-00 has been wound up.

The application for security for costs is brought under rule 104(3) of the Court of Appeal Rules which provides:

> "The Court may at any time if it thinks fit direct that further security for costs be given and direct that security be given for the payment of past costs relating to the matters in question in the appeal."

On the institution of an appeal every appellant is by virtue of rule 104(1) required to deposit KShs2 000-00 in Court as security for the costs of the appeal unless the deposit of security has been waived by Court under rule 112(i)(*b*). Thus rule 104(3) empowers the Court to order additional security for costs of the appeal and also security for "past costs" relating to the matters in question in the appeal be provided. The forerunner of rule 104(3) is rule 60 of the Eastern Court of Appeal, 1954 Rules which provided:

> "The Court or a judge or a Registrar may at any time, in any case where it, or he thinks fit, order further security for costs to be given, and may order security to be given for the payment of past costs relating to the matters in question in the appeal."

The Court of Appeal for Eastern Africa (the predecessor of this Court) in construing that rule in the case of *Ganji v Vassanjee* [1960] EA 315 said in part at 317 from paragraph F-I:

> "Under rule 60, the burden lies on the applicant for an order for further security, as it normally lies on any applicant to a Court for any relief, to show cause why that relief should be granted, and that he cannot merely by averring that the security already deposited for costs of the appeal is inadequate, or that costs in the action below, ordered in his favour, have not been paid, impose any obligation upon the Court or judge or Registrar to grant his application.
>
> Under rule 60, the Court or judge or Registrar has a discretion to order further security 'in any case where it or he thinks fit.' This discretion is unfettered, subject only to the implied fetter upon all such discretions namely, that they should be exercised judicially. Again the words 'at any time' in rule 60 do not mean that a Registrar is precluded from taking into account any delay on the applicant's part in making his application as a factor to be placed in the scales whose tilt may determine whether or not he will exercise his discretion in the applicant's favour.
>
> They only mean that no amount of lateness in the lodging of an application shall in itself preclude the Registrar from granting the application . . ."

In *Abdulla v Patel* [1962] EA 447 the same Court while adopting that construction of rule 60 further construed the words "past costs" to include costs ordered to be paid in the Court below but hastened to say that the power to order security in respect of costs ordered to be paid in the Court below should be sparingly exercised.

In the *Abdulla* (*supra*) the Court said at 453 paragraph E:

> "In Kenya so far as we know (for the point was not mentioned in argument) security is not ordered in the Supreme Court on the ground for poverty. In the circumstances, it would appear something of an anomaly if they were ordered to be secured upon appeal though of course the principle to be applied is not the same. It is right that a litigant, however poor should be permitted to bring his proceedings without hinderance and have case decided. But when it has been decided by the Court set up by law for the purpose, other considerations entered into the question whether he should be permitted unconditionally to carry the matter further."

The *Abdulla* case (*supra*) was applied by this Court in *Marco Tools and Explosives Limited v Mamujee Brothers Limited* [1988] KLR 730 in the construction of the current rule 104(3) of the Court of Appeal Rules.

In my regretful view, the ambit of rule 104(3) and the principles which apply in application for further security for costs of appeal and past costs as against a natural person are correctly spelt out in the cases of *Ganji v Vassanjee*; *Abdulla v Patel*; *Marco Tools and Explosives Limited v Mamujee Brothers Limited* (all cited above) and do not require restatement or emphasis.

However, the law seems to treat a natural person and a limited company differently in relation to provision of security for costs against them as plaintiffs in an action. With a few exceptions, the law does not require an individual plaintiff to give security for costs on the grounds of insolvency or poverty. The policy of the law seems to be that the poverty of an individual plaintiff should not deny him access to justice to pursue a genuine claim in a Court of law. In contract, in the case of a limited company, an artificial creature, section 401 of the Companies Act requires them, without exception, as plaintiffs in a suit to give security for costs in the discretion of the Court. This fine distinction between individual plaintiffs and limited companies as plaintiffs is lucidly analysed by Megarry VC in *Pearson v Naydler* [1977] 3 All ER 531 at 535 paragraphs *b-g*.

Section 401 of the Companies Act provides:

> "Where a limited company is a plaintiff in any suit or other legal proceedings any judge having jurisdiction in the matter may if it appears by credible testimony that there is reason to believe the company will be unable to pay the costs of the defendant, if successful in his defence require sufficient security to be given for the costs and may stay the proceedings until the security is given."

But even where it is established or admitted that the plaintiff company would be unable to pay the costs of a defendant, if successful, the Court, nevertheless, has a complete discretion where to order security for cost; (see *Sir Lindsay Parkirson and Company Limited v Triplan Limited* [1973] 2 All ER 273; *Gulf Engineering (East Africa) Limited v Kalgi* [1976] KLR 277; *Keary Developments v Tarmac Construction* [1995] 3 All ER 534). The latter case (*Keary Developments Limited*) lays down the modern and pragmatic principles (though not exhaustive) which should guide the Court in exercising its discretion whether to order a plaintiff limited company, to provide security for costs to a defendant in a suit.

Are the provisions of section 401 of the Companies Act and the principles of law which have been involved by Courts relating to liability of limited companies as plaintiffs in a suit to provide security for costs of a defendant applicable in applications for security for costs in an appellant Court where a limited company is the appellant?

Section 401 of the Companies Act is the statute law governing the provision of security for costs where a limited company is a plaintiff. Although the language of section 401, seems to refer specifically to cases where the company is plaintiff in a suit, there is no good reason why the same law and the principles of law developed concerning provisions of security by limited companies should not apply to cases where a limited company is the appellant in an appeal and security for costs of the appeal is being sought against such company.

As I have pointed out before, the application is brought solely on the ground that an applicant is reasonably apprehensive that it may not recover its costs a winding-up order has been made against the respondent company. Osanya, the liquidator of the respondent company refers in the replying affidavit to the

previous application for security for costs made by the applicant which was dismissed by Kwach JA remarking in part:

> "It would be unjust to place additional financial burden on the respondent with the sole object of making it difficult or impossible for it to prosecute its appeal."

Osanya deposes that since the applicant did not challenge that decision the applicant is estopped from re-opening the matter again. In addition Mr *Mbigi*, learned counsel for the respondent submitted that nothing has really changed much since the dismissal of the previous application. With respect I do not agree with Mr *Mbigi*'s view. When the previous application was made, the respondent had been placed under statutory management by the Commissioner of Insurance under section 67 of the Insurance Act and had ceased trading.

This Court (Kwach JA) observed that the appointment of a statutory manager does not mean that the respondent is under liquidation. The situation has now changed because three months after the decision of the Court a winding-up order was made against the respondent. The fact that the respondent company is in liquidation is *prima facie* credible testimony that it will be unable to pay the applicant's costs of the appeal and past costs (if successful) unless evidence to the contrary is given.

The making of the winding-up order against the respondent company has drastically changed its legal status. The respondent company has in effect ceased to exist.

So, in the circumstances, the fact that the appellant had made a similar application being civil application number Nai 229 of 2001 which was dismissed, does not preclude the applicant from bringing another application for the discretion of the Court is exercised at any time according to the circumstances obtaining at the time of making the application and can be exercised again if circumstances materially change; (see *Kaura v Morgan* [1961] EA 462 and *Keary Developments Limited v Tarmac Construction Limited and another* [1995] 3 All ER 534).

Thus this application is competent and the Court has jurisdiction to entertain it. It is another matter whether in the circumstances of the case, the Court should exercise its discretion in favour of the applicant.

I should say at the outset that, in my view, this is not a proper case for directing that security for past costs be given for the reason that the superior Court has granted an order for stay of execution of the decree and the respondent company has given security in the form of bonds from insurance companies as security for the due performance of the decree. The decretal sum includes the taxed costs of the suit. The taxed costs in the superior Court has thus been secured. It would be improper to require the respondent to provide additional security for past costs.

It is true that the respondent provided security bonds for the sum of KShs21 500 000 and that Lakestar which provides a security bond of KShs10 000 000 is in liquidation. The valid security bonds (for a total sum of KShs11 500 000) are security for due performance of the decree in the superior Court and cannot be converted to security for costs in the appeal. In any case the decretal sum is far in excess of the value of the security bonds. It is not correct therefore, to say, as Mr *Mbigi* contends, that the security bonds are sufficient security for the applicant's costs of the appeal.

The respondent contends that this application has been filed close to the hearing date of the appeal with the sole purpose of obstructing the hearing of the appeal. The prospectus of the respondent's appeal is a relevant factor.

Although the respondent has not attempted to show that the appeal is meritorious, I have taken into account the fact that the respondent was a defendant in the suit and not the plaintiff and that the respondent is appealing against an order refusing to set aside an *ex parte* judgment for a very substantial amount.

The application was filed three years after the winding-up order was made. Mr *Karori* learned counsel for the applicant disclosed in the course of the hearing of the application that the winding-up order in law automatically stayed the proceeding but that an order has been made allowing the appeal to proceed at the instance of the applicant thereby paving the way for the filing the present application.

The orders made in respect of the appeal after the winding-up order was made have not been shown to the Court. The Court does not know the precise nature of those orders. I do not know if the applicant has obtained leave of the Court under section 228 of the Companies Act to bring this application. I also do not know if the liquidator has obtained the sanction of the Court under section 241 of the Companies Act to continue with the appeal and to appoint an advocate. But if it is the applicant who has facilitated the continuation of the appeal by obtaining the sanction of the Court, it is paradoxical that the applicant is seeking an order for the security for costs of the appeal which respondent is unlikely to raise and which would impede the prosecution of the appeal. The appeal is slated for hearing in a week's time.

In these reasons, I dismiss the application with costs to the respondent.

For the applicant:
Mr K Karori instructed by *Iseme, Kamau & Maema Adv*

For the respondent:
Mr DN Mbigi instructed by *Mbigi Njuguna & Co*

Minja v Tanzania Harbours Authority
[2005] 1 EA 271 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of ruling:	11 October 2004
Case Number:	107/00
Before:	Lubuva, Mroso and Nsekela JJA
Sourced by:	LawAfrica
Summarised by:	A Mwanzia

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[1] Court of Appeal – Judgment – Rectification of error – Circumstances upon which the Court will apply the slip rule – Rule 40 – Court of Appeal Rules of 1979.

Editor's Summary

The applicant was dismissed from employment by the respondent. At a certain stage after his dismissal, he applied to the High Court for the prerogative orders of *certiorari* and *mandamus*. He was unsuccessful in the application and sought to appeal against the decision of the High Court. He was late to set the appeal

process in motion. He therefore made an application to the High Court for extension of time within which to apply for leave to appeal to the Court of Appeal. The High Court dismissed the application.

The applicant thereafter filed a notice of motion before a single Judge of the Court of Appeal seeking extension of time to apply for leave to appeal. Unwittingly, the single Judge granted extension of time to appeal, which was not the subject of the application before him. The respondent filed a reference to the full Court in which it was successfully argued that first, since leave to appeal had not been granted it was not competent for the single Judge to grant extension of time to appeal. Second, that in any case, no sufficient grounds had been advanced for the delay to apply for leave to appeal.

The applicant thereafter filed an application by notice of motion under rule 40 of the Court of Appeal Rules to correct the ruling of the Court arguing that in allowing the reference, the full Court should have added the words: "the suit (*sic*) be remitted to the Court of a single Judge for a new retrial (*sic*)."

The applicant was not represented at the trial.

Held – Rule 40(1) of the Court Rules empowers the Court to make certain corrections in its judgment after it had been delivered. The corrections are limited in scope in order to avoid the *functus officio* principle. A judgment cannot be corrected under rule 40 by bringing into the judgment a new matter which does not appear naturally to have been in the contemplation of the Court when the judgment was being written.

The words "the suit (*sic*) be remitted to Court of a single Judge for a new retrial (*sic*)" or words to that effect, suggested by the applicant cannot properly be said to be.

A clerical or arithmetical omission or even to have been missed from the ruling accidentally or by a slip of the pen within the meaning of rule 40.

Application dismissed.

No cases referred to in ruling

Ruling

Mroso JA: This is an application by notice of motion under rule 40 of the Court of Appeal Rules of 1979 to correct a ruling of this Court which was given in civil reference number 4 of 1997. At the hearing of the application the applicant, a lay person, was unrepresented, but the respondent was represented by Mr Nasib *Mselem*, learned advocate from the Tanzania Legal Corporation.

The applicant was dismissed from employment by this former employer, the respondent. At a certain stage after his dismissal he applied to the High Court for the prerogative orders of *certiorari* and *mandamus*. He was unsuccessful in the application and, feeling aggrieved, he sought to appeal against the decision of the High Court. Apparently he was late to set the appeal process in motion. That being the case, he made application to the High Court for extension of time within which to apply for leave to appeal to the Court of Appeal. The High Court dismissed the application.

Undaunted, the applicant filed a notice of motion before a single Judge of this Court seeking extension of time to apply for leave to appeal. Unwittingly,

the single Judge granted extension of time to appeal, which was not the subject of the application before him. The respondent filed a reference to the full Court in which it was successfully argued that first, since leave to appeal had not been granted it was not competent for the single Judge to grant extension of time to appeal. Second that, in any case, no sufficient grounds had been advanced for the delay to apply for leave to appeal.

In allowing the reference this Court said:

> "With genuine respect, therefore, Mnzavas JA jumped the gun, as it were, when he proceeded to extend the time to appeal, which had not been asked for and which could not have been asked for in the notice of motion before him, before the hurdle the respondent had failed to jump before Bubeshi J had been successfully tackled. With respect again, we are of the view that the learned single Judge started on the wrong foot right from the word go when at the opening of his Ruling he said 'This is an application seeking leave to appeal to this Court . . .'
>
> The reference is accordingly allowed . . ."

The applicant now argues that the full Court in allowing the reference should have added the words "the suit (*sic*) be remitted to the Court of a single Judge for a new retrial (*sic*)."

As mentioned at the beginning of this ruling, the notice of motion has been filed under rule 40 of the Court Rules. The Rule reads as under:

> "40(1) A clerical or arithmetical mistake in any judgment of the Court or any error arising in it from an accidental slip or omission may at any time, whether before or after the judgment has been embodied in an order, be corrected by the Court, either of its own motion or on the application of any interested person so as to give effect to what the intention of the Court was when judgment was given.
>
> (2) An order of the Court may at any time be corrected by the Court, either of its own motion or on the application of any interested person if it does not correspond with the judgment it purports to embody or, whether judgment has been corrected under subrule (1) with the judgment as corrected."

It is appropriate now to consider whether that was a clerical or arithmetical mistake or an error arising from an accidental slip or omission in the ruling of this Court in the reference cited above, and whether the words which the applicant wants to be included in the ruling would cure such error or mistake.

Understandably, the applicant was unhelpful and he left it to the Court to explain the application of rule 40. Mr *Mselem* on his part explained that rule 40 comes into use where there is a mistake or error as listed in the rule or where an order of the Court does not conform with the judgment. He argued that the words which the applicant wants to be included in the ruling were not intended in the Court ruling. There was no such prayer before the Court or even an argument or submission to that effect. He suggests that what the applicant should have done after the ruling was to file a fresh application to the Court for consideration.

We are of the considered opinion that rule 40 of the Court Rules does not envisage what the applicant wants us to do. To begin with, the complaint which was in the reference to the Court was that the single Judge of the Court had mistakenly granted a prayer that was not made to him. That complaint was found to be justified, and this Court said so by allowing the reference. In doing so, the Court had finished with the business that was before it. As correctly pointed out by Mr *Mselem*, there was no argument or prayer before the Court

that in the event the Court found the reference to be meritorious it should order that the applicant (then respondent) should go back to a single Judge of the Court for his application for extension of time to apply for leave to appeal to be heard *de novo*. So, the Court could not volunteer to give what had not been asked for, lest it fell into the same error as the single Judge in giving a relief that had not been requested.

The more direct reason for rejecting the application is that rule 40(1) of the Court Rules is a provision which empowers the Court to make certain corrections in its judgment after it has been delivered. In order to avoid violating the *functus officio* principle the corrections are limited in scope. The Court can correct a clerical mistake such as where the word "from" instead of the intended word "for" had been written, or an arithmetical mistake such as the figure "108" instead of the intended figure "180" appearing in the judgment. It can also correct an error arising from an accidental, that is to say unintended, slip or omission. For example, if the Court intended to say "we allow the appeal" but by a slip of the pen wrote "we dismiss the appeal". The word "dismiss" was not intended and is wholly inconsistent with the reasoning in the judgment the Court says that the appeal has been allowed with costs but in the extracted order it is shown that the appeal was dismissed with costs, the order can subsequently be corrected so that it conforms with the judgment. A judgment cannot be corrected under rule 40 by bringing into the judgment a new matter which does not appear naturally to have been in the contemplation of the Court when the judgment was being written.

The words "the suit (*sic*) be remitted to Court of a single Judge for a new retrial (*sic*)" or words to that effect, suggested by the applicant cannot properly be said to be a clerical or arithmetical omission or even to have been missed from the ruling accidentally or by a slip of the pen within the meaning of rule 40. As mentioned earlier, their inclusion into the ruling would be a glaring new matter which was not intended by the Court.

It is for those reasons that we are constrained to dismiss the application. We take note that all along, except in the present proceedings, the applicant was getting legal aid, presumably because he is indigent. We, therefore, make no order for costs.

(Lubuva and Nsekela JJA concurred in the ruling of Mrosa JA.)

For the applicant:
Information not available

For the respondent:
Mr N Mselem instructed by *Tanzania Legal Corporation*

Misaki and another v Uganda
[2005] 1 EA 274 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	1 September 2004
Case Number:	18/03
Before:	Odoki CJ, Oder, Tsekooko, Karokora and Kanyeihamba JJSC
Sourced by:	LawAfrica
Summarised by:	A Mwanzia

[1] Crime – Aggravated robbery – Identification – Whether Court erred in accepting evidence of a single identifying witness – Alibi – Whether accused alibi credible – Sections 272 and 273 – Penal Code Act.

Editor's Summary

During the night of 30 September 1999 at Nakwanya Village in Mubende District, the appellants broke into the house of one Francis Kuteesa (the deceased) and demanded money from him, which his wife Janet Nantale (PW1) gave to them. When they ordered the deceased to lie down and he resisted, appellant No. 2 stabbed him with a knife killing him instantly. PW1 gave the attackers UShs500 000 but they demanded more money and she gave them an additional UShs300 000. By a combination of torch light which the robbers flashed at her and dim electric lights available in the house, PW1 was able to see both the attackers. The incident took one hour.

After the robbers had fled, PW1 reported the incident to neighbours and the local LC1 chairman. Consequently a chase was made of the robbers and they were apprehended at daybreak at Migina trading centre, about six miles from the scene of the robbery. They were moving along a cattle track, not the normal way, and their clothes were wet with morning dew. When asked for their identity, the appellants resisted and tried to attack the villagers using a stick.

They were apprehended and handed over to Busunju Police Station. Subsequently, they were indicted for the offence. At the trial each of the appellants set up an alibi, which the learned trial Judge rejected as false. He acted on the evidence of PW1 and circumstantial evidence which he believed to be true and convicted the appellants.

The appellants' appeal to the Court of Appeal was denied and they preferred a further appeal to the Supreme Court raising issues of identification, circumstantial evidence and alibi.

Held – The Court of Appeal had not erred in finding that PW1 had ample opportunity for observing the appellants and the quality of her identification was unassailable – *Abdulla Nabulere and others v Uganda* criminal appeal number 25 of 1978 followed.

The Court of Appeal had not erred in upholding the trial Judge's findings that appellant No. 1's alibi was false considering the prosecution's evidence.

Appeal dismissed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Abdulla Nabulere and others v Uganda criminal appeal number 25 of 1978 – **F**

Judgment

Odoki CJ, Oder, Tsekooko, Karokora and Kanyeihamba JJSC: This is a second appeal. The appellants, Kwijuka Misaki (A1) and Iga Jackson (A2) were jointly convicted by the High Court, at Mubende of the offence of aggravated robbery, contrary to sections 272 and 273(2) of the Penal Code Act, and sentenced to death.

Their appeals to the Court of Appeal were dismissed. We also dismissed their appeals to this Court for lack of merit, reserving our reasons for doing so, which we now proceed to give.

The facts as found by the two Courts below are briefly these: During the night of 30 September 1999 at Nakwanya Village in Mubende District, the appellants broke into the house of one Francis Kuteesa (hereinafter referred to as "the deceased") and demanded money from him, which his wife Janet Nantale (PW1) gave to them. When they ordered the deceased to lie down and he resisted, A2 stabbed him with a knife, killing him instantly. PW1 gave the attackers UShs500 000, but they demanded more money and she gave the attackers an additional UShs300 000. By a combination of torchlight which the robbers flashed at her and dim electric lights available in the house, PW1 was able to see both the attackers. The incident took one hour. After the robbers had fled, PW1 reported the incident to neighbours and the local LC1 Chairman. Consequently, a chase was made of the robbers and they were apprehended at daybreak at Migina trading centre, about six miles from the scene of the robbery. They were moving along a cattle track, not the normal way, and their clothes were wet with morning dew. On their way, they stopped at a shop for a drink of soda, and were asking their way around. Their pursuers included Kukunda Manuel (PW6), a cattle keeper and LC2 Chairman and Musoke Kazimiri (PW4) a special police constable and other villagers, who caught up with them. When their pursuers asked for their identity, A1 and A2 resisted. The latter had a stick and tried to beat off the villagers. The appellants were found to be in possession of bags, which contained clothes, some money and a cattle syringe in A2's bag. Both robbers attempted to run away. However, A1 was apprehended when he fell down but A2 managed to escape but was arrested later the same day. They were handed over to Busunju Police Station. Subsequently, they were indicted for the offence. At their trial each of the appellants set up an alibi, which the learned trial Judge rejected as false. He acted on the evidence of PW1 and circumstantial evidence which he believed to be true and convicted the appellants.

There was some confusion in designations of the appellants in the Courts below. At their trial, Kwijuka Misaki was accused number 1 (A1) and Iga Jackson accused number 2 (A2). In the Court of Appeal Iga Jackson was appellant number 1 and Kwijuka was appellant number 2. In this Court their positions were reversed from what they were in the Court of Appeal. It appears that for that reason, Mr Henry *Kunya* the learned counsel for Iga Jackson (A2) argued his appeal first before the learned counsel for Misaki Kwsijuka (A1) Ms Diana *Musoke* argued Kwijuka's appeal. Needless to say that such confusion is unhelpful to counsel and to the Courts in their efforts to follow the evidence and arguments in respect of each of the appellants. Courts, (and counsel when drawing up memoranda of appeals) should consistently adhere to the first numbering of the accused persons or the appellants, as the case may be.

A2's grounds of appeal as set out in his memorandum of appeal are that:

1. The learned Justices of Appeal erred in law and in fact in upholding the conviction and sentence of the appellant on the basis of unsatisfactory evidence of a single identifying witness, PW1.
2. The learned Justices of Appeal erred in law and in fact in upholding the conviction and sentence of the appellant on the basis of unreliable circumstantial evidence.

A1's grounds of appeal are that:

1. The Honourable Justices of Appeal erred in law and in fact when they relied on the uncorroborated evidence of a single identifying witness whereas the conditions for identification were not favourable.
2. The Honourable Justices of Appeal erred in law and in fact when they failed to consider the appellant's defence of alibi.

The respective first grounds of the appellants' memoranda of appeal are similar as they both complain against the Court's findings on identification. They also relate to evidence from the same prosecution witnesses. We shall therefore consider them together. This also necessarily involves consideration of the circumstantial evidence at the same time since such evidence is corroborative of evidence of identification, and is a subject of A2's complaint in his second ground of appeal. That leaves out the second ground of A1's appeal to be considered last.

Under the first ground of Iga's Jackson's appeal, his learned counsel, Mr Henry *Kunya*, submitted that PW1's evidence of identification of the appellants at the scene of crime was unsatisfactory, because, the assailants were strangers to her since she was seeing them for the first time. Moreover, lighting was poor. According to her own evidence, electricity light was dim, although it was on throughout the incident. In her statement to the police, she said the assailants also flashed torches, but she did not say so in her evidence.

Torchlight would have been unnecessary to the robbers if electricity was available. In her testimony she also described how the assailants were dressed, but in her police statement, she said that she could not say how they were dressed. Further in her testimony, she said that the incident lasted one hour, but this is missing from her police statement. Learned counsel contended that the inconsistencies between her evidence in Court and her statement to the police and the poor conditions for identification, made PW1's evidence unreliable. The Court of Appeal should not have upheld the trial Judge's acceptance of her evidence. It erred for doing so.

Under the second ground of appeal, Mr *Kunya* criticised the Court of Appeal's upholding of the trial Court's reliance on circumstantial evidence as having corroborated PW1's evidence of identification of A2. The learned counsel contended that the evidence that the appellant's were seen following a cattle track and being in clothes wet with dew did not irresistibly point to the appellants' guilt. Any other pair of villagers could have been seen following that track and in wet clothes at that time of the early morning. Although the time was 6:00am learned counsel contended that the appellants could have been innocently walking in the area where the prosecution witness said they saw them. After making the points about wet clothes and A2's movement in the area so early in the morning, Mr *Kunya* said that he was abandoning the

arguments, but he did not say that he conceded that these were pieces of circumstantial evidence, which implicated his client in the crime. Mr *Kunya* also criticised the trial Court's reliance on the evidence of a stick having been used by the appellants during the robbery and at the scene of their confrontation with villagers and the Court of Appeal's upholding of that finding. On those grounds Mr *Kunya* prayed that Iga Jackson's conviction be quashed and the sentence of death set aside.

Under A1's first ground of appeal, his learned counsel Ms Harriet Diana *Musoke*'s submission was similar to Mr *Kunya*'s submission in respect of A2's first ground of appeal. She submitted that the evidence of identification of A2 at the scene of crime, was from a single identifying witness only, namely PW1. As the appellant was a stranger to her and the quality of light was poor, she could not have properly identified the appellant. Conditions for identification were not favourable. Consequently, the first ground of appeal should succeed.

Mr Vincent *Okwanga*, Principal State Attorney, for the respondent, did not agree with the submissions of the learned counsel for the appellants. He contended that favourable conditions for identification of the appellants did exist. There was electric light throughout the attack; there was also light from a candle; the incident took a long time - one hour; and PW1 was not far from the attackers. The learned Principal State Attorney contended that these conditions enabled PW1 to observe and recognise the assailants, and that PW1's identification of her attackers were free from error. He therefore contended that the learned Justices of Appeal therefore correctly upheld the trial Court's finding that the appellants were properly identified at the scene of the crime. Regarding discrepancies between the evidence of PW1 and her previous statement to the police, the learned Principal State Attorney contended that the police officer who recorded the statement was not called to prove it against PW1. Consequently, the statement cannot be used to contradict her evidence. The inconsistencies were minor and should therefore be ignored.

Regarding circumstantial evidence, the learned Principal State Attorney contended that what implicated the appellants were that the robbery took place at about midnight; at 6:30am they were arrested in the area where they were strangers; their clothes were wet with morning dew; they drank soda in a shop where they asked for directions; they were walking along a cattle track instead of on normal paths; they were avoiding meeting other people; when challenged they at first resisted revealing their identity. Iga Jackson beat the villagers with a stick during their confrontation with the villagers; Iga Jackson ran away from the scene; and they had some money, which was found in their bags, which they could not explain in any other way. All these pieces of circumstantial evidence, the learned Principal State Attorney contended corroborated PW1's evidence of identification of the appellants at the scene of crime.

The learned Justices of Appeal re-appraised the evidence of PW1 and that of PW4 and PW6 and came to the same decision as the learned trial Judge as corroborating PW1's evidence of identification and reached their own conclusions in the following terms:

> "We think that PW1's evidence with that of PW6 and that PW4 was impeccable. We are satisfied that though she did not know the appellants before, the confrontation lasted for an hour long enough to enable her (*sic*) recognise them. They were talking to her, demanding money and threatening her to meet the same fate as her husband, whom the second appellant's had already stabbed to death if she did not

> lower her voice. Of course, it was only natural to feel scared under the circumstances even without the death of her husband, but considering the length of the time they had spent together moving around the house and to the shop, it would be impossible to talk to them without observing their faces. We, therefore, think that PW1 had ample opportunity of observing the appellants and the quality of her identification was unassailable – see *Abdulla Nabulere and others v Uganda* criminal appeal number 25 of 78. Her evidence in Court, which was on oath and was tested by cross-examination, was correctly preferred to her police statement, which was not on oath and was not properly tendered in evidence.
>
> Coupled with the foregoing is the corroborative evidence of PW4 and PW6 regarding their arrest. Their clothes were wet with morning dew. Their furtive movements along cattle attacks rather than on main paths was circumspect. A2 still had the stick PW1 had seen during the attack. This coupled with long-winded defences of alibi went to destroy their porous defences. We have no doubt that the learned Judge properly appraised the evidence."

In our view the Court of Appeal cannot be faulted in its re-appraisal of and conclusions on the evidence as shown by this passage of its judgment. In the circumstances, the first and second grounds of appeal of Iga Jackson (A2) and the first ground of appeal of Kwijuka Misaki (A1) must fail.

On the issue of alibi in the second ground of A1's appeal, his learned counsel submitted that A1 admitted that he was in Migina to see his brother and not in connection with the commission of this offence. He contended that this ground of appeal should therefore succeed. The learned Principal State Attorney for the respondent did not agree. He submitted that A1's alibi was disproved by the evidence of PW1, PW4 and PW6. He was arrested together with A2 disproving A1's alibi that he was going to the place of his uncle, one Magezi.

The learned trial Judge considered A1's alibi in detail and rejected it as false, because, A1 did not leave Kampala for Kiboga that morning, and, on his own admission, the circumstances of his arrest agreed with the evidence of PW4 and PW6. In the passage of the Court of Appeal's judgment to which we have just referred, that Court upheld the learned Judge's finding rejecting A1's alibi as false and, consequently, providing corroboration for the evidence of PW1, PW4 and PW6. In our opinion, the Court of Appeal was correct in doing so. A1's second ground of appeal must also fail.

In the result, the respective grounds of appeals of A2 and A1 must fail.

We are satisfied that there was ample evidence to support their conviction which the Court of Appeal rightly upheld.

For the forgoing reasons, we dismissed the appeals of both appellants.

For the first appellant:
Ms H Diana Musoke instructed by *Musoke & Co*

For the second appellant:
Mr H Kunya instructed by *Henry Kunya & Co*

For the respondent:
Mr Vincent Okwanga, Principal State Attorney

M'Mairanyi and others v Blue Shield Insurance Co Ltd
[2005] 1 EA 280 (CAK)

Division: Court of Appeal of Kenya at Nyeri

Date of judgment: 19 November 2004

Case Number: 101/00

Before: O'kubasu, Githinji and Waki JJA

Sourced by: LawAfrica

Summarised by: C Kanjama

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[1] Evidence – Burden of proof – Contents of third party accident insurance policy – Claimants seeking compensation from motor vehicle insurer – Insurer pleading reliance on contents of policy – Both parties failing to produce insurance policy – Where would burden of proof fall – Sections 107, 109 and 112 – Evidence Act (Chapter 80).

[2] Insurance – Third party motor vehicle insurance – Claim by voluntary passengers of a pick-up vehicle – Whether motor vehicle accident policy includes injury to voluntary passengers – Burden of proof of contents of insurance policy in declaratory suit – Sections 4, 5 and 10 – Motor Vehicle (Third Party) Insurance Act (Chapter 405).

Editor's Summary

The appellants were given a gratuitous lift by the owner of a pick-up motor vehicle in order to attend the funeral of a renowned politician in the area. The owner's wife drove the vehicle and had an accident while trying to avoid a pothole along the road. The appellants all suffered injury, as a result of which they filed suits for negligence and compensation by the owner of the vehicle. Various awards of damages were made and these were not satisfied by the motor vehicle owner.

The appellants subsequently filed a declaratory suit against the motor vehicle insurer, seeking to have the insurer made liable for the injury they suffered. They failed to produce the subject insurance policy during the evidence in chief. Neither did the insurer produce the insurance policy. The trial Judge considered the evidence and held that the appellants had the burden of proving that there was an insurance policy and that it included cover for injury to passengers. The suit was dismissed for failure to discharge this burden. The appellants now appealed.

During the appeal, the issues for determination were whether the third party motor vehicle insurance would statutorily cover the appellants, who were gratuitous passengers in a motor vehicle commercially used for transporting goods, and where the burden of proof of the contents of the insurance policy would fall. An issue was also raised regarding service of the statutory notice prior to the filing of the declaratory suit.

Held – Compulsory insurance is not required in relation to motor vehicle passengers, unless the passengers are carried for hire or reward of by any reason of or in pursuance of a contract of employment. *Albert v Motor Insurance Bureau* [1971] All ER 1345 adopted. The vehicles which carry passengers for hire or reward are classified under the Traffic Act as public service vehicles and include buses, *matatus* and taxi cabs. *Jahava v Provincial Insurance Co Ltd* High Court civil case number 2469 of 1990 (UR) approved. If an insured obtains a commercial

vehicle insurance policy then that changes the nature of his business to carriage of passengers for hire, then such change does not and cannot make the insurer liable to the passengers who are thereafter carried. *Corporate Insurance Co Ltd v Ofire* [1999] 2 EA followed; *Blueshield Insurance Co Ltd v M'Rimberia* [1997] LLR 569 (CAK) disapproved; *The New Great Insurance Co v Lilian Cross and another* [1966] EA 90 considered.

The issue in this case would therefore be whether the risk insured was or was not a third party risk within the meaning of the Act. The general proposition is that the burden of proof lies upon the party who invokes the aid of the law and substantially asserts the affirmative of the issue. However, any party who asserts must prove. In this case, the insurer had asserted that it would rely on the contents of the insurance policy, of which they had special knowledge and possession. The insurer may therefore attract against it the presumption of law that evidence that could but is not produced would if produced be prejudicial to the party who withholds it.

Since the appellants were not fare paying passengers and were being carried in a vehicle not ordinarily used to transport passengers for hire or reward, the insurer has no obligation to cover the appellants.

Appeal dismissed with no order as to costs.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Blueshield Insurance Co Ltd v M'Rimberia [1997] LLR 569 (CAK) – **D**

Corporate Insurance Co Ltd v Ofire [1999] 2 EA – **F**

Jahava v Provincial Insurance Company Limited High Court civil case number 2469 of 1990 (UR) – **APP**

The New Great Insurance Company of India Limited v Lilian Evelyn Cross and another [1966] EA 90 – **C**

United Kingdom

Albert v Motor Insurers Bureau [1971] All ER 1345 – **A**

Judgment

O'kubasu, Githinji and Waki JJA: The issue raised in this appeal is not novel. But it is of great public importance owing to the practice, so often noticed on public roads all over the Republic, of pickup motor vehicles of all descriptions ferrying passengers, whether fare-paying or gratuitous. In the unfortunate event of an accident causing injuries or death to the passengers or any of them, who should bear liability for compensation of such loss? Take this case.

On 5 December 1987 there was a grand wedding ceremony in the Timau home of the late Honourable JH Angaine, then a Minister in the Office of the

President and more popularly referred to as “the King of Meru”. One of his sons Mutuma Angaine, at the time the Town Clerk of Meru Municipal Council, was getting married. Invitation cards had been sent out far and wide and requests were made to some personalities who had motor vehicles to assist in ferrying invited guests to the wedding. One such request was made to Michael M’Rinyiru Mwirichia alias Michael Gitobu M’Rinyiru (Gitobu) who was a former Councillor in the Meru Municipal Council. He owned, amongst other vehicles, a Peugeot 404 pickup registration number KRE 071. He agreed to transport some 12 officials of KANU, most of them women, from Munithu sub-location, Meru, to Timau. But Gitobu was engaged elsewhere and so he authorised his wife, Martha Kagori (Martha) to drive the pickup. It was an open pickup with some wooden forms placed at the back where the passengers sat. They never reached Timau.

At a point on the Meru-Nanyuki road, Martha tried to avoid some potholes on the road but lost control of the pickup and it overturned. It spilled out its human cargo all over the place causing considerable injuries to all of them and killing one. Martha escaped with slight injuries. They were subsequently attended to medically and the deceased was buried.

All the injured persons and the personal representative of the deceased, later sued Gitobu and Martha to recover damages. They were the 12 plaintiffs in different cases (163 to 176) later consolidated and decided under one file, Meru High Court civil case number 163 of 1989 (hereinafter “the appellants”. At first Gitobu attempted to wriggle out of the suits by disclaiming personal liability, arguing that it was his insurers who should have been used. That objection was turned down and he instructed his own advocates who represented him at the trial. Martha was found liable for the accident to the extent of 85% while Gitobu, the owner of the vehicle, was found vicariously liable. Various awards in damages were made to each of the appellants making a total of KShs1 165 000 to be discounted by 15%. That was in 1992 when the issue of liability was decided by Oguk J and 1994 when the quantum of damages was assessed by Kuloba J. No issue arises out of these suits but the decrees were obviously not satisfied by the judgment-debtors.

Three years later on 16 August 1997, the appellants filed another suit but this time against Messrs Blueshield Insurance Company Limited (the insurer). It was Meru High Court civil case number 44 of 1997 and they sought a declaration that the insurer was liable in law to satisfy the decrees obtained earlier and an order compelling it to satisfy such decrees. Apart from pleading the fact of the accident and the litigation that led to the award of damages, the appellants made this central pleading in paragraph 3:

> “3. At all material times relevant to this suit the defendant was the statutory insurer of motor vehicle registration number KRE 071 a peugeot 404 pickup covered by an insurance policy number BS6/080/050907 and certificate of insurance number CC 824774 under which policy the defendant insured the said motor vehicle owner, one Michael M’Rinyiru Mwirichia alias Michael Gitobu M’Rinyiru and the driver or agent driving the motor vehicle in respect of death, damage or bodily injury to any person or vehicles as required by the provisions of the Insurance Act (*sic*) during the currency of the said policy.”

Reference to the Insurance Act which is (Chapter 487), Laws of Kenya is of course a misnomer as the object of that Act was to consolidate the law relating to insurance and to regulate the business of insurance. The relevant Act is “The

Insurance (Motor Vehicle Third Party Risks) Act" (Chapter 405), Laws of Kenya.

The insurer in response denied any knowledge of the accident or any litigation thereon let alone an award of damages which they were required under any law to pay. In respect of the specific pleading cited above they pleaded:

> "The defendant avers that the insurance cover extended to the insured Mr Michael M'Rinyiru Mwirichia was one that usually covers commercial vehicles for ferrying goods and not that (*sic*) covers passengers, whether fare-paying or non fare-paying as this was the cover that the said insured sought. The defendant shall rely on the terms of the policy at the hearing hereof."

The appellants felt that the defence was a sham and so they sought summary judgment under Order XXXV of the Civil Procedure Rules. They displayed a demand notice addressed to the insurer dated 23 September 1988, shortly before the filing of the original suits. It was addressed to them at "PO Box 62571, Nairobi" and was ostensibly sent "by registered post". There was another notice to the insurer dated 6 February 1997 directed at the same address, and sent by ordinary mail shortly before the filing of the declaratory suit. But the insurer denied receiving such notices and averred that the postal address used was not theirs. The insurer further asserted that the policy of insurance taken out by the insured in respect of the motor vehicle in question, was a commercial one that did not require the insurance of any passengers. The superior Court (Etyang J) agreed with the insurer's submissions and stated:

> "I find Mr Murithi's (counsel for the insurer) submission to be very persuasive. More particularly because according to him the policy in question insured a specific purpose that is the insured's commercial activities. The liability covered by the terms of the policy would seem to him to be related to the commercial activities of the insured. If, however, the insured wished to extend the terms of the liability to be covered, then he ought to have obtained a temporary cover to insure against the liability.
>
> That being the position of the respondent, then the central issue in this case is the terms of the policy in question that is the liability covered by the terms of the policy."

He concluded:

> "The applicants pleaded in the suit that the liability was covered by the terms of the policy and therefore covered (*sic*) under section 5(*b*) of (Chapter 405). The respondent has pleaded that it was a liability not covered. The issue at the trial would then become one of interpretation of that policy. It is, in my view, a triable issue."

The trial commenced one year after that ruling. The appellants called only one witness who merely related the events leading to the accident and the decree sought to be enforced. She knew nothing about the policy of insurance between the insurer and the insured judgment-debtor and she admitted as much. She nonetheless insisted that the insurer was served with notices before action and produced the two demand notices referred to earlier. She was not cross-examined on that assertion.

The insurer on the other hand called one witness. He said nothing about the policy of insurance and did not produce any copy of it. He continued to deny receipt of the notices and ownership by the insurer of the post office box number purportedly used in delivering them.

In assessing that scanty evidence the superior Court (Owitsa, Commissioner of Assize) held that the burden of proving that the insurance policy, admittedly issued by the insurer, extended to cover liability relating to the appellants rested with them but they did not discharge that burden. He declined to compel the

insurer to compensate the plaintiffs. He left undecided the issue, framed by the parties, whether the insurer was served with the statutory notice which is a prerequisite to the enforcement of any judgment against an insured. So much for the background.

Before us now is an appeal challenging the superior Court's decision on four grounds, namely:

> "1. The learned Commissioner of Assizes (*sic*) erred in law in admitting and relying on inadmissible evidence.
>
> 2. The learned Commissioner of Assize (*sic*) misdirected his mind on the burden of proof in civil matters.
>
> 3. Having correctly found that the accident vehicle was insured by the respondent and there was a policy in force at the time of the accident, the learned Commissioner of Assize (*sic*) erred in law and fact in failing to find that the appellants had proved their case on a balance of probability.
>
> 4. The learned Commissioner of Assizes (*sic*) erred in law in failing to consider the provisions of Insurance (Motor Vehicles Third Party Risks) Act, (Chapter 405) and the relevant case law."

Mr *Arithi*, learned counsel who appeared for the appellants, abandoned ground one and argued ground two on its own while combining grounds three and four. He submitted that the main issue for trial was the nature of the policy which both sides admitted was in existence. Only the insurer who had custody of it could produce and prove the contents, and it was wrong for the learned Commissioner of Assize to shift the burden of proof to the appellants. A positive assertion had been made by the insurer that the policy was purely commercial and did not cover passengers including the appellants. The maxim "He who asserts must prove," he submitted, is carried forward in the Evidence Act (Chapter 80) in sections 109 and 112 which provide:

> "109. The burden of proof as to any particular fact lies on the person who wishes the Court to believe in its existence, unless it is provided by any law that the proof of that fact shall lie on any particular person.
>
> 112. In civil proceedings, when any fact is especially within the knowledge of any party to those proceedings, the burden of proving or disproving that fact is upon him."

Secondly Mr *Arithi* submitted, there was no attempt at all to consider the provisions of Chapter 405 once it was established by the appellants that there was a policy of insurance in existence. Statutory notices underpinning the action were in evidence and they were not returned to the sender. It followed therefore that the insurer was liable under section 10 of Chapter 405 unless they can show, which they did not, that under that section they had obtained a declaration entitling them to avoid the policy.

In response, learned counsel for the insurer Mr *Mbigi* submitted that there was no admission of any existence of a statutory insurance cover. The insurer only referred to an insurance cover that was limited in scope. In that state of pleadings, it was for the appellants to prove their case that they were covered, which is a requirement of section 107 of the Evidence Act, that is:

> "107(1) Whoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts which he assets must prove that those facts exist.
>
> (2) When a person is bound to prove the existence of any fact it is said that the burden of proof lies on that person."

As read with section 108 (*supra*) the burden is squarely placed on the appellants but they called only one witness who said nothing about the policy. The insurer was under no obligation to assist them in proving their case. Mr *Mbigi* then referred to a number of authorities for the proposition that the insured was under no obligation to insure gratuitous passengers carried on his pickup and therefore the exception in sections 4 and 5 of Chapter 405 did not affect him. Insurers do not have to issue all-embracing insurance policies unless the insured negotiates risks beyond the compulsory ones and pays the necessary premiums. The insurer therefore had no reason to seek a declaration for the avoidance of the policy because there was no relevant cover in the first place. As for the notices Mr *Mbigi* submitted that there was no proof of service by production of delivery documents, response from the insured or proof of correct address. The appeal must therefore fail.

We have considered those submissions together with the authorities cited on both sides. Although the appeal turns on the two narrow legal issues relating to burden of proof and nature of the insurance policy, which we shall resolve presently, we feel obligated to express ourselves on the law relating to the relevant provisions of Chapter 405. There is no dearth of persuasive authorities in the interpretation of the Act, at any rate the historical part of it. Promulgated 58 years ago (1946) it was modelled closely to the British Road Traffic Act of 1930 which introduced compulsory insurance of third parties against injury by motor vehicles. The British Act was however amended in 1956 before a consolidating measure was enacted in 1960 in the Road Traffic Act of 1960. Owing to various other amendments to the British legislation and the introduction of extra-statutory machinery for the protection of third parties injured from the use of motor vehicles, that is "the Motor Insurer Bureau Agreement," subsequent decisions based on the British Act may be less persuasive authority.

The 1930 Act, by section 35(1), (section 201(1) of the 1960 Act) as did the Kenya Act, by section 4(1) made it unlawful for any person to use a motor vehicle on a road unless there was in force in relation to that user a policy of insurance against third party risks which complied with the requirements of the Act. The requirements are then stated in section 5 which we reproduce in full:

> "5. In order to comply with the requirements of section 4, the policy of insurance must be a policy which:
>
> (*a*) Is issued by a company which is required under the Insurance Act 1984 to carry on motor vehicle insurance business; and
>
> (*b*) Insures such person, persons or classes of persons as may be specified in the policy in respect of any liability which may be incurred by him or them in respect of the death of, or bodily injury to, any person caused by or arising out of the use of the vehicle on the road:
>
> Provided that a policy in terms of this section shall not be required to cover:
>
> (i) liability in respect of the death arising out of and in the course of his employment of a person in the employment of a person insured by the policy or of bodily injury sustained by such a person arising out of and in the course of his employment; or
>
> (ii) except in the case of a vehicle in which passengers are carried for hire or reward or by reason of or in pursuance of a contract of employment, liability in respect of the death of or bodily injury to persons

being carried in or upon or entering or getting on to or alighting from the vehicle at the time of the occurrence of the event out of which the claims arose; or

(iii) any contractual liability."

It is a section that is perhaps unhappily worded and which has over time generated differing judicial interpretations. On our part, we think the meaning conveyed is fairly plain. The latter part of proviso (ii) of the section makes it clear that compulsory insurance is not required in respect of risk to passengers. The first part however, which could well have been a separate provision, exempts "passengers carried for hire or reward or by any reason of or in pursuance of a contract of employment." That is to say, for that category of passengers it is compulsory. The historical reason for that distinction was stated by Lord Donovan in *Albert v Motor Insurers Bureau* [1971] All ER 1345 at 1352:

> "It would have been very understandable if the Legislature had singled out those engaged in the passenger carrying business and imposed such a liability on them by some separate and independent provision. They are, after all, engaged in the business for profit; the passenger usually has no knowledge about the state of the vehicle in which he embarks, or the reliability of the driver. In these circumstances it is reasonable to require the operators of such vehicles to insure the passengers, the more so as the premiums will be reflected in the fares.
>
> Neither the 1930 Act nor the 1960 Act (we may add, the Kenya Act) proceeds, however, in this direct way. The relevant part of each beings (*sic*) by compelling all users of motor vehicles to insure against liability to third parties in respect of death or bodily injury by or arising out of the use of a motor vehicle on the road. If each Act had stopped there it would have been compulsory to insure all passengers. But the next thing that each Act does is to provide that passengers need not be insured. It then enacts the opposite if the vehicle is one in which passengers are carried for hire or reward. The reasoning behind this legislative structure would seem to be this. Passengers, like the driver himself, can properly be left to look after themselves. After all, if the passenger elects to go by private transport he will know the driver, often have some idea as to the condition of the vehicle, and if he thinks that either presents a risk he need not run it. There is, therefore, no justification for imposing the additional burden on all private car owners to insure all potential passengers. But where public transport is concerned the position is different. The passenger must almost invariably take the vehicle and the driver as he finds them, and the same is true of the private hire vehicle if it is chauffeur driven: in these cases it is eminently reasonable that the operator of such vehicles should insure passengers, and this obligation is now expressed by the proviso."

The parenthesis is ours.

At least three local decisions were cited before us relating to pickup motor vehicles which were insured as private motor vehicles for the insured's social, domestic and pleasurable purposes or in connection with his business or profession only to be converted into Matatu for ferrying fare-paying passengers. In all the cases the issue was whether the injured parties who had obtained judgment against the insured could enforce the judgments against the insurer.

One was an undated and unreported decision of Githinji J (as he then was) in *Jahava v Provincial Insurance Company Limited* High Court civil case number 2469 of 1990 (UR). After analysing the provisions of sections 4, 5 and 10 of (Chapter 405), and other relevant authorities, the learned Judge came to the conclusion that there was no obligation upon the insurer to satisfy the decree obtained by the injured passenger. He stated:

> " As I have said, section 5 of the Act does not require the compulsory insurance of all passengers travelling in a motor vehicle except in the case of a vehicle in which passengers are carried for hire or reward or by reason of or in pursuance of a contract of employment.
>
> The vehicles which carry passengers for hire or reward are classified in the Traffic Act as public service vehicles and under section 95(1) of the Traffic Act they are required to be licensed as such. They included buses, *matatu*s and taxi cabs.
>
> To comply with section 4(1) of the Act the owner of the motor vehicle will obviously take a policy of insurance relevant to the intended uses of the motor vehicle. As section 5(*b*) of the Act provides, the policy does not have to cover every risk to everybody in respect of death or injury."

The second decision was made by this Court on 26 February 1999 in *Corporate Insurance Co Ltd v Ofire* [1999] 2 EA which was not cited or referred to in the decision of Githinji J (*supra*) probably because it was a latter decision, but which arrived at the same conclusion. The Court's view on the conversion of privately owned pickups into *matatu* vehicles carrying fare-paying passengers was stated categorically thus:

> "If an insured after obtaining an insurance cover for a commercial vehicle for use in connection with his business changed the nature of the vehicle to that of a *matatu* the nature of the policy remains that of a commercial vehicle policy and such change does not and cannot make the insurer liable to the passengers who are thereafter carried in the vehicle for reward (fare). If this were the case most insurers would decline to issue commercial vehicle policies."

And further:

> "The compulsory insurance cover for use of a vehicle on a road especially in regard to fare-paying passengers is required in respect of vehicles like buses and *matatu*s whose owners use it for hire or reward. But an owner of a vehicle who is not authorised to use his vehicle for carrying fare-paying passengers is not bound to insure the passengers and if he carries such passengers he does so at his own risk and in fact he commits an offence if he uses his vehicle for such purpose without relevant cover as provided for in section 4(2) of the Act."

Finally there was the decision of this Court, differently constituted, which came to a different decision on similar facts. It was either in time to the *Corporate Insurance Company Limited* case (*supra*) and the appellant was the same insurer as the respondent in this appeal. It was *Blueshield Insurance Co Ltd v M'Rimberia* [1997] LLR 569 (CAK). The Court stated correctly that:

> "Once statutory liability under section 5(*b*) is covered by the terms of the policy, which in the instant case was, and is not denied by the appellant, the insurer is obligated under section 10(1) of the Act to satisfy the judgment obtained against the insured and pay to the person entitled to the benefit of that judgment all sums payable thereunder with costs and interest, notwithstanding that the insurer may be entitled to avoid or cancel the policy *vis a vis* the insured or may have even avoided or cancelled."

But the point of departure in that decision, we think, is the statement of law that:

> "Under section 5(*b*)(ii) of the Act an insurance policy is not compulsorily required to cover a vehicle in which passenger (*sic*) are carried for hire."

The reasoning in both the *Corporate Insurance Company Limited* and the *Jahava* cases (*supra*) is of course the opposite: that it is not compulsory to insure persons being carried in, entering, getting on or alighting from the vehicle unless they are fare-paying passengers.

None of those three cases is binding on us and we are at liberty to adopt the reasoning that commends itself to us. We choose the reasoning in the latter two decisions. Which brings us to the appeal before us.

We are alive to the sentiments expressed by Newbold VP in *The New Great Insurance Company of India Limited v Lilian Evelyn Cross and another* [1966] EA 90 at 95, that:

> "The obvious intention of the Act as ascertained both from the preamble and from its provisions is to enable third parties who have received injury from the use of a motor vehicle on the road to recover compensation for the injury even if the person who inflicted it is not in a position to pay any compensation so awarded. It is against that background that each of the provisions of the Act must be interpreted."

We think however that for claimants to be successful, they have to bring themselves within the purview of the Act. Put another way, before reaching a conclusion as to whether the provisions of section 10(1) are applicable in any particular case, the decision has to be made whether the risk insured was or was not a third party risk within the meaning of sections 4 and 5(*b*) of the Act.

As a general proposition the burden of proof lies upon the party who invokes the aid of the law and substantially asserts the affirmative of the issue. That is the purport of section 107 of the Evidence Act. It is the evidential burden. But section 109 of the same Act recognises that the burden of proof as to any particular fact may be cast on the person who wishes the Court to believe in its existence. The superior Court, in dismissing the appellant's case, made a finding that the burden of proof lay on the appellants but they had failed to discharge it. It was also argued before us that there was no difficulty in the discharge of that burden since the appellants could have summoned the insured to produce the relevant evidence or resorted to the Civil Procedure provisions on discovery and inspections. We take the view that this may well have been desirable but it was not fatal to the appellants' case. The central issue pleaded was the existence and nature of the policy of insurance. Both parties knew, at any rate after the ruling of Etyang J (*supra*) that it would be a triable issue. At least the existence of some policy was resolved by admission that it was indeed there. But it was clearly the express pleading of the insurer that they would rely on that policy for its items. Unlike the appellants, they had special knowledge and possession of it as stipulated in section 112 of the Evidence Act. So one may ask why the insurer declined to produce the very document that would have resolved the issue with finality. An insurer who thus pleads and declines to prove the assertion may well attract against it the presumption of law that evidence that could, but is not produced, would, if produced, be prejudicial to the party who withholds it. We are persuaded by Mr *Arithi* on this ground of appeal that the learned Commissioner of Assize was in error in shifting the burden of proof to the appellants. Where does that leave us?

In our view it leaves us with the question still begging, whether the appellants' claim was one that fell under section 5(*b*) and therefore enforceable under section 10 of Chapter 405.

It is here that we revert to the finding of fact made by the trial Judge in High Court civil case number 163 of 1989 (Oguk J) that the appellants were not fare-paying passengers. It is a finding that was not challenged and therefore it is more probable than not that the appellants were carried in the pickup as an act of kindness on an isolated occasion and that the pickup was not a vehicle in which

passengers were normally or habitually carried for hire or reward. On that finding we are bound to make a consequential finding that there was no obligation under section 5(*b*) of Chapter 405 on the part of the insured to cover the appellants and by extension for the insurer to satisfy the decree obtained against the insured under section 10(1) of the Act. We do so.

Being so minded, we do not, like the learned Commissioner of Assize find it necessary to consider the issue relating to the service of statutory notices on the insurer.

We dismiss this appeal for the reasons stated. Costs are discretionary although generally they follow the event unless the Court, for good reason, decides otherwise. We think the appellants had a good reason to challenge the decision of the superior Court and have had at least one error of law sustained despite the overall loss of the appeal. The matter was also of public importance. The appellants will have to seek recompense from the judgment-debtors directly, while the insurer benefits from the clarification of the legal position held by it. We think in all the circumstances, each party should bear its own costs of this appeal. We so order.

For the appellants:
Mr Arithi

For the respondent:
Mr DN Mbigi instructed by *Mbigi Njuguna & Co*

Mugambi and another v Gitiru
[2005] 1 EA 289 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of ruling:	28 May 2004
Case Number:	138/02
Before:	Omolo, O'kubasu JJA and Ringera AGJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Damages – Quantum – Personal injury after negligence in motor vehicle accident – Fractures of the right and left femur – Whether trial Judge made proper assessment of quantum in view of cited authorities – Whether the practice of comparable awards in personal injury cases should be sustained.

Editor's Summary

The appeal herein was limited to the issue of whether the trial Judge had made a wrong and excessive award of damages in a personal injury case. The appellant argued that the award of KShs1 million was far above the comparable awards cited by both parties during the trial, and should therefore be reduced.

Held – In determining the quantum for physical injury, the Court ought to award a sum which can

be regarded as giving reasonable compensation. There must be an endeavour to secure some uniformity in the general method of approach. It is eminently desirable that so far as possible comparable injuries should be compensated by comparable awards. *H West and Son Ltd v Shephard* [1964] AC 326 adopted.

The appellate Court may disturb the quantum of damages awarded by the trial Court if satisfied that either the trial Judge took into account an irrelevant

factor or left out of account a relevant factor in assessing the damages, or that the amount awarded is so inordinately low or high as to represent a wholly erroneous estimate of the damage. In view of the fact that the award herein was substantially higher than all the cited authorities, the appellate Court would interfere and reduce the award by half.

Appeal allowed. Quantum of general damages reduced from KShs1 million to KShs500 000.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Ilanga v Manyoka [1961] EA 705

Kemfro Africa Limited v Lubia and another [1985] 1 KAR 727

Zein and another v Mutua [1994] LLR 353 (CAK)

United Kingdom

H West and Son Limited v Shephard [1964] AC 326 – **A**

Judgment

Omolo, O'kubasu JJA and Ringera AGJA: This is an appeal from the judgment of the superior Court (Mulwa J) in the High Court civil case number 99 of 2001 delivered at Meru on 20 March 2002. The appeal is basically on assessment of damages as the issue of liability was settled by consent at 85% and 15%.

The respondent herein (who was the plaintiff in the superior Court) was hit by a vehicle owned by the second appellant and driven by the first appellant as he walked along Meru-Maua road near Kwa Mugo. The respondent filed a suit claiming special and general damages from the two appellants alleging that the said accident was caused by the negligence of the first appellant for which the second appellant was vicariously liable. The accident took place on 2 November 2000 after which the respondent was admitted at Maua Methodist Hospital where he spent 20 days before being transferred to Meru General Hospital. Two medical reports were produced during the trial. Dr JW Barasa in his medical report dated 23 April 2001 stated *inter alia*:

> "The above-named 44 year old male was involved in a road traffic accident on 2 November 2000. He alleges that he was a pedestrian along Maua-Kangeta road when a fast moving vehicle hit him. Consequently, he sustained the following injuries:
>
> 1. Comminuted fracture of the left femur.
> 2. Comminuted fracture of the right femur.
>
> The subject received initial treatment at Maua Mission Hospital and later at Meru District Hospital.

The investigations carried out were:

1. X-Ray left femur – showed comminuted fracture of the left femur with marked displacement at the mid-shafts.
2. X-Ray of the right femur showed comminuted fracture of the mid-shaft of the right femur."

Dr Andrew Hicks in his medical report of 28 August 2001 stated *inter alia*:

> "Mr Gatiru stated that at 5:30pm on 2 November 2000 he was walking along the Maua Kangeta road when the driver of a lorry lost control of the vehicle and knocked him down. After the accident he was admitted to Maua Mission Hospital with the following injuries:
>
> 1. Shock and concussion. He said he did not remember anything for 48 hours.
> 2. Open fracture of his left femur a little below the midline.
> 3. Closed fracture of his right femur.
> 4. Other comparatively minor soft tissue injuries and lacerations which were cleaned, sewn up and medicines rubbed in locally.
>
> The fact that his right lower limb is shorter by two centimetres compared with the left aggravates his abnormal method of walking and hastens the onset of osteoarthritis in the areas affected."

Various authorities were cited to the learned Judge by counsel appearing for the parties and in the end the learned Judge in his judgment expressed himself thus:

> "I have looked at these authorities, as well as others from my sources, and the nature of the injuries sustained by the plaintiff, and find that an award of KShs1 000 000 as general damages for pain and suffering and loss of amenities would be the most appropriate. The total award to the plaintiff therefore will be:
>
> 1. General damages and loss of amenities KShs1 000 000 x 85/100 = KShs850 000
> 2. Special damages = KShs30 100.
>
> Total award = KShs880 100."

Being dissatisfied with that assessment of damages the appellants filed this appeal citing three grounds of appeal:

> "1. The award of KShs1 000 000 in general damages for pain and suffering was too excessive regard being had to the injuries sustained by the respondent and therefore erroneous.
> 2. The award of KShs30 100 in special damages was against the law as the same were not specifically pleaded, particularised and proved.
> 3. The learned Judge of the superior Court erred in failing to reduce the award in special damages by the agreed 15% plaintiff's contributory negligence."

Mr Kiautha *Arithi*, counsel for the appellants, submitted that the award of KShs1 000 000 was excessive in the circumstances of this case. He pointed out that in the authorities cited before the learned Judge by the respondent's counsel there was none in which the award for general damages was over KShs600 000. It was Mr *Arithi*'s contention that the figure of KShs1 000 000 was plucked from the air by the learned Judge. Mr *Arithi* urged us to reduce the award of KShs1 000 000 to KShs300 000.

Mr Kiogora *Arithi*, for the respondent, opposed the appeal stating that the respondent sustained very severe injuries and, in his view, the award of KShs1 000 000 was justified. He therefore urged us to dismiss this appeal.

We have considered the material placed before the learned Judge by way of medical reports and the legal submissions and we wish to state that in assessment of damages the general method of approach should be that comparable

injuries should as far as possible be compensated by comparable awards keeping in mind the level of awards in similar cases. In so saying, we adopt fully what was said by Lord Morris of Both-y-Gest in *H West and Son Limited v Shephard* [1964] AC 326 at 345:

> "But money cannot renew a physical frame that has been battered and shattered. All that judges and Courts can do is to award sums which must be regarded as giving reasonable compensation. In the process there must be the endeavour to secure some uniformity in the general method of approach. By common consent awards must be reasonable and must be assessed with moderation. Furthermore, it is eminently desirable that so far as possible comparable injuries should be compensated by comparable awards. When all this is said is (*sic*) still must be that amounts which are awarded are to a considerable extent conventional."

While we bear in mind the foregoing, we must still come to the question of whether this Court would be entitled to interfere with the assessment of general damages by the learned Judge. The general approach is that for this Court to interfere with an award of the superior Court it must be shown that a relevant factor was not taken into consideration or an irrelevant factor was taken into account, or that the trial Judge did not appreciate the importance of some material evidence or that the award is so inordinately low or high that some such like mistake must be assumed.

In their memorandum of appeal the appellants stated that the award of KShs1 000 000 is so excessive as to be erroneous. If this Court considers the award to be so excessive as to be erroneous then it would be entitled to interfere.

In the case of *Zein and another v Mutua* [1994] LLR 353 (CAK), this Court after referring to the cases of *Ilanga v Manyoka* [1961] EA 705 and *Kemfro Africa Limited v Lubia and another* [1985] 1 KAR 727 stated the pertinent law as follows:

> "The principles to be observed by an appellate Court in deciding whether it is justified in disturbing the quantum of damages awarded by a trial Court are well settled. The appeal Court must be satisfied either that the Judge, in assessing the damages, took into account an irrelevant factor, or left out of account a relevant one, or that the amount is so inordinately low or so inordinately high that it must be a wholly erroneous estimate of the damage."

In the present appeal we observe that counsel appearing before the learned Judge cited various cases of comparable injuries and comparable awards. Counsel for the appellants (defendants in the superior Court) brought up cases in which the awards were low while counsel for the respondent relied on cases in which higher awards were made. We have now considered all those authorities but it would appear that in the decided cases where similar injuries were sustained there was no authority in which the injured party was awarded more than KShs600 000. In this judgment the learned Judge stated that he had looked at the authorities cited "as well as others from any own sources (*sic*)." The problem here is that we do not have the benefit of these other sources, so as to be able to say whether they, indeed, supported the figure awarded. In our view the figure of KShs1 000 000 awarded as general damages is too high in the circumstances of this case. We must interfere and reduce it to the awards in comparable cases. In our own assessment the award of KShs500 000 would be fair and reasonable in view of the injuries sustained by the respondent.

As regards special damages, we are satisfied that there was sufficient evidence by way of receipts to support the award of KShs30 100.

Since liability had been agreed at 15% contributory negligence on the part of the respondent, this will be taken into account in computing the final award.

In view of the foregoing, the final award to the respondent will be as follows:

1.	General Damages KShs500 000 x 85/100	=	KShs425 000
2.	Special Damages KShs30 100 x 85/100	=	KShs25 585
	Total award	=	KShs450 585

As the appellants have succeeded to a considerable extent we order that they be awarded half the costs of this appeal.

For the appellants:
Mr Kiautha Arithi instructed by *Kiautha Arithi & Co*

For the respondent:
Mr Kiogora Arithi instructed by *Kiogora Arithi & Associates Adv*

Muiruri v Republic
[2005] 1 EA 293 (CAK)

Division:	Court of Appeal of Kenya at Nakuru
Date of judgment:	25 February 2005
Case Number:	161/03
Before:	Tunoi, Githinji JJA and Deverell AGJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Crime – Murder – Allegation of insanity at the time of the offence – Whether verdict of "guilty but insane" amounts to a conviction.

[2] Criminal procedure – Insanity – Plea postponed until medical report confirmed that appellant fit to plead – Appellant subsequently found to have committed the offending act while insane – Verdict of guilty but insane – Whether the verdict amounts to a conviction – Whether the said verdict is appealable – Sections 166(1) and 379(1) – Criminal Procedure Code.

Editor's Summary

The evidence against the appellant was that he had been asleep with his wife on the material day in the master bedroom. The daughter then heard screams coming from the bedroom. The appellant walked out of the bedroom and returned carrying a panga. Afterwards he left the house and the daughter found her mother lying on the floor bleeding. She was taken to hospital with assistance of two other persons, where she died two weeks later. The cause of death was found to have been head

injuries causing severe brain damage leading to cardio-vascular collapse. The appellant made a statement under inquiry which he neither repudiated nor retracted. He also gave an unsworn statement at the trial in which he stated that he discovered on waking up in the middle of the night that his wife had changed into a leopard. He wrestled with the animal and then hit her with his panga.

The medical report produced in evidence showed that the appellant suffered from a psychiatric illness some years back, and since then occasionally relapsed.

He suffered from bipolar affective (mood) disorder, which would have periods of remission and relapse. The trial Judge entered a verdict of "guilty but insane" and ordered that the appellant be kept in custody subject to the President's pleasure. The appellant appealed against the entry of the verdict on the basis of circumstantial evidence.

Held – In this case, the appellant had not been convicted of the offence of murder nor sentenced to death nor to imprisonment exceeding 12 months. Rather the Court made a special finding that the accused was guilty of the act charged but was insane when he did it. Such a finding is neither a conviction nor an acquittal. The Court ceases to have jurisdiction over the accused person after such a finding, and the detention at the President's pleasure is not punitive but preventive because it is detention for safe custody for an indefinite period. This finding is not therefore appealable. *Mwangi v Republic* [1982] KLR 120 followed.

Appeal struck out as incompetent.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Mwangi v Republic [1982] KLR 120 – **F**

Judgment

Tunoi, Githinji JJA and Deverell AGJA: The appellant, John Gakie Muiruri, was charged in the superior Court with the offence of murder contrary to section 203 as read with section 204 of the Penal Code (Chapter 63). The particulars of the charge stated, among other things, that he murdered his wife, Salome Gakie on 15 November 2000.

The appellant was taken before SC Ondeyo J for plea on 8 November 2001. The learned Judge perused the medical examination report of the appellant and found that the appellant suffered from mental illness, auditory and visual hallucinations, disillusionment and dementia and that he was not fit to plead. The learned Judge quite properly postponed the taking of the plea until it was confirmed by a doctor that he was fit to plead. Subsequently, by a medical report dated 13 February 2002, Dr AT Feksi, a consultant psychiatrist at provincial General Hospital Nakuru, confirmed that the appellant was fit to plead. The plea was taken on 15 February 2002 when the appellant pleaded not guilty.

Diana Wanjiku Gakie (PW1) a daughter of the appellant, aged 13 years at the time gave evidence at the trial. According to her evidence, the appellant and his deceased wife were asleep in the master bedroom on the material day while Diana Wanjiku was asleep in a separate bedroom. Diana then heard screams from the master bedroom. When she went there she saw the appellant coming into the house from outside. The appellant then went out again. He returned to the master bedroom carrying a panga. The appellant put on his shoes and left the house. Diana went into the master bedroom. She found her mother, the

deceased, lying on the floor. She had cut wounds on the head and was bleeding. Diana called Mary Wairimu Muiruri, (PW3), her grandmother who lived in the neighbourhood. Daniel Gathui Wambugu, (PW2), also a neighbour went to the house. Both found the deceased lying on the floor in the bedroom bleeding. Her voice was very faint. She was taken to Nyahururu hospital where she died two weeks later. Dr Gakunga who did the postmortem found that the deceased had multiple deep-cut wounds in the head and concluded that the cause of death was due to cardio-vascular collapse due to severe brain damage due to head injuries.

The appellant made an unsworn statement at the trial in which he stated, amongst other things, that after he discovered that his wife had changed into an animal, they fought after which he went to call the police. He had on 11 December 2001 made a statement under inquiry to Chief Inspector Maurice Musonye in which he stated in part:

> "I recall on 16 November, 2000. I was in my house together with my wife sleeping. My children were also sleeping in another room in the same house sleeping (*sic*). When I was sleeping I woke up and lit the lamp as I wanted to go out to help myself.
>
> That was the time I saw my wife had changed to a leopard starting from her stomach to head. I called her and when she woke up she got hold of me very tight she overpowered me and I took the panga which was just next to me and I hit her three times and she fell down, she was still a leopard.
>
> I left and ran to Karandu Patrol Base and reported that I have (*sic*) killed a leopard by hitting it with a panga."

That statement was neither repudiated nor retracted.

The appellant called Dr AT Feksi – a consultant psychiatrist as a witness who said that he started treating the appellant on 31 October 2001. His medical report dated 13 February 2002 states in part:

> "John suffered from a psychiatric illness some four years ago. He was treated in Nyahururu District Hospital and recovered. However, two years after this episode he relapsed. This time he heard threatening voices at night and experienced illusions and hallucinations. He never abused drugs neither (*sic*) alcohol. These illusions were expressed on the fateful night when he perceived his wife as appearing in the form of an animal. He suffers from recurrent disorder of mood in the form of bipolar affective disorder. This illness goes into periods of remission and relapses. At the moment he is in a remission . . ."

The three assessors at the trial gave a unanimous verdict of guilty but insane. The trial Judge, Visram J agreed with the verdict and found the appellant guilty but insane. He ordered that the appellant be kept in custody subject to President's pleasure.

The appellant appeals to this Court from that verdict. There are four supplementary grounds of appeal thus:

1. That the learned Judge erred in law in finding that the appellant had committed the offence on the basis of circumstantial evidence.
2. That the learned Judge erred in law in treating circumstantial evidence as direct evidence.
3. That the learned Judge erred in reaching a conclusion which was not supported by any evidence.
4. That the learned Judge erred in law by disregarding the provisions of section 12 of the Penal Code and proceeded to find the accused capable of murder.

It is clear from this appeal that the appellant believes that he was convicted for the offence of murder and a sentence indeed passed. He is asking this Court to quash the conviction and discharge him from custody.

This appeal is made pursuant to section 379(1) of the Criminal Procedure Code which provides:

> "A person convicted on a trial held by the High Court and sentenced to death, or to imprisonment for a term exceeding 12 months, or to a fine exceeding two thousand shillings, may appeal to the Court of Appeal:
>
> (*a*) against the conviction, on grounds of law of fact, or mixed law or fact;
>
> (*b*) with the leave of the Court of Appeal against sentence unless, the sentence is one fixed by law."

In this case, the appellant was not convicted on the offence of murder or sentenced to death or to imprisonment exceeding 12 months. Rather, the superior Court was satisfied that the appellant did the act charged but was insane at the time he did it as not to be responsible for his act as provided by section 166(1) of the Criminal Procedure Code and pursuant to that section, made a special finding that the accused was guilty of the act charged but was insane when he did it.

In the case of *Mwangi v Republic* [1982] KLR 120 which both counsel did not regrettably cite to us, the question whether an appeal lies to this Court from a special finding under section 166(1) of the Criminal Procedure Code by the High Court was raised and comprehensively considered by this Court. This Court firmly held at 126 paragraph 30:

> "Accordingly, in our judgment no appeal to the Court of Appeal from the High Court lies under section 379 of the Criminal Procedure Code in respect of a special finding under section 166 of the code and a special finding is not a conviction, but is an acquittal."

The special finding under section 166(1) of the code is followed by a report of the case by the Court for an order of the President and thereafter the Court ceases to exercise any jurisdiction over the accused person. The subsequent orders of the President regarding the further detention, supervision, treatment and discharge of an accused person will depend on considerations of ensuring the safety and welfare of the accused person and the public. (See sections 166(3)-166(7) of the Criminal Procedure Code). That is why this Court in *Mwangi v Republic* (*supra*) said at 125 paragraph 35:

> "In our view the presidential order for the detention of a person in respect of whom a special finding is made is not punitive but is preventive and that is because it is detention for safe custody for an indefinite period and not imprisonment for a fixed term."

It follows from the foregoing that the special finding being neither a conviction nor a sentence of imprisonment for a fixed term, is not appeallable under section 379 of the Criminal Code and this appeal is incompetent.

We accordingly order that this appeal be struck out as incompetent.

For the appellant:
Information not available

For the respondent:
Attorney-General

Mukulu v Republic
[2005] 1 EA 297 (CAK)

Division: Court of Appeal of Kenya at Mombasa

Date of judgment:	28 January 2004
Case Number:	51/03
Before:	Omolo, Githinji JJA and Onyango Otieno AGJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Criminal procedure – Assessors – Failure of one assessor to attend part of the trial – Subsequent opinion given by the assessor – Whether procedural lapse amounted to a mistrial – Proper order to be made.

Editor's Summary

The appellant was charged with an offence of murder. Most of the trial took place with three assessors. However, one assessor failed to attend as the trial drew to its close and the Court ordered that the case continue with the two assessors present. Subsequently the third assessor returned and gave his opinion on the case. The appellant was convicted and appealed, arguing that the failure of the assessor to attend one of the trial sessions amounted to a procedural lapse vitiating the conviction.

Held – Once an assessor in a murder case is dropped from the proceedings for whatever reason, he may not be allowed back to the trial. The re-admission of the dropped assessor in this case was a grievous error making the entire trial a mistrial. The Court was not inclined to order a retrial because it had been difficult to trace witnesses even for the first trial, and the accused had already spent several years in prison.

Appeal allowed. Conviction quashed and sentence set aside.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Kungu v Republic criminal appeal number 68 of 1994

Judgment

Omolo, Githinji JJA and Onyango Otieno AGJA: The appellant in this appeal, Abdullahi Abdalla Mukulu was charged with the offence of murder contrary to section 203 as read with 204 of the Penal Code. The particulars of the charge were that on the night of 4 October 1997 at Kingdewe Village Kingdewe, (Shirazi location) in Kwale district within Coast Province, jointly with others not before the Court murdered Salim Hamisi Mwakombo. He pleaded not guilty but after a full hearing, he was found guilty, convicted and sentenced to death. He filed this appeal before us.

We have considered the grounds of appeal, which included grounds in the supplementary memorandum of appeal filed on 15 January 2004. We have

considered the judgment and the entire record. We find two aspects of this appeal disturbing. First is that the trial was conducted with the aid of assessors as is provided for under section 262 of the Criminal Procedure Code, but the record does not however state whether the summary to the assessors was read or not although we note that the assessors gave their opinion on the same day the judgment was delivered. It is not clear as to whether the learned Judge did read the summary to the assessors. We observe in the original file that there are some handwritten notes suggesting that the same summary was drafted but the same documents are not typed nor were they signed and they do not indicate that they were read to the assessors. The second aspect we find disturbing is that the record shows that on 25 September 2002, the third assessor was absent and the Court dropped him and ordered the trial to continue with two assessors present, thus excluding the third assessor. She stated as follows:

> "Third assessor last time informed the Court that he is now residing in Taita. Far from Mombasa. He has not now arrived. He may not turn up today. There are difficulties in obtaining the attendance of assessors. This case is almost completed and if we wait for the third assessor, there will be considerable delay and it is not certain that the remaining assessors will not fail to attend. In the circumstances, I order that the trial continues with two assessors present."

The trial then continued with two assessors and the record shows that submissions were made by the learned defence counsel as well as by the learned Principal State counsel in the presence of the two assessors. However on 13 November 2002 the record shows that the hearing proceeded with three assessors present and indeed on 20 November 2002, all the three assessors including the one who had been dropped gave their opinions to the Court. In our mind, this was not proper. Once one assessor had been dropped, he could not be allowed back to take part in the trial. This Court made that position clear in the case of *Kungu v Republic* criminal appeal number 68 of 1994 at Nakuru where the Court stated as follows:

> "Before every trial opens in the High Court, the Judge must select three assessors and at the beginning of every such trial the assessors must be three. But if in the course of a trial, as it does happen that one assessor might, for some good cause, be unable to attend he may absent himself as Robert Ombachi did in this case on 22 June 1992. If that happens and the Judge decides to proceed with the remaining two assessors, that as we said earlier is permitted under section 298(1) of the Code. However, once the Judge has taken the decision to proceed with two remaining assessors, the one who absented himself, whatever may be his or her reason for being absent, must not be allowed back to the trial. The same section 298(1) requires that an assessor must attend throughout the trial."

This Court continued in that judgment and stated that as the Judge in that case had decided that she would proceed with the trial with two remaining assessors then she ought not to have allowed the third assessor who had been absent to take any further part in the proceedings and in so doing the learned Judge in that case made "a grievous error which she ought not to have made." We feel the same in this case. The learned Judge having decided to continue with two assessors should not have allowed the third assessor back into the case as she did and in doing so she made a grievous error.

The sum total of all the above is that the entire trial was a mistrial. We quash the conviction and set the sentence aside.

The next matter to consider is whether to order a retrial or not. Mr *Gumo* is not pressing for a retrial. Mr *Mulongo* submits that the offence took place on

4 October 1997 and the appellant was arrested on 24 August 1998. He has been in prison for close to five years. Further he states that it took a long time to get witnesses to appear before the superior Court to give evidence, and it will be difficult to get witnesses to give evidence if a retrial is ordered. We have considered the record. It is true that the appellant has been in prison for almost four and a half years. The record shows that it was difficult to trace witnesses to give evidence in the superior Court. In fact the post mortem report (exhibition 1) and dental assessment report (exhibition 2) had to be produced by consent of both prosecution and defence because Doctor Wangombe and Doctor Al-Ammry who were to produce them respectively could not be available in Court although both were summoned to appear in Court to give evidence. We have also considered the evidence that was adduced in superior Court and upon which the appellant was convicted. We are not satisfied that a retrial would achieve any useful purpose. We agree with the learned counsel for the appellant that this is not a suitable case for an order of retrial.

The appellant is released and set free forthwith unless otherwise lawfully held. Judgment accordingly.

For the appellant:
Mr Gumo

For the respondent:
Mr Mulongo

Mulangwa v Osman
[2005] 1 EA 299 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of ruling:	25 August 2004
Case Number:	3/04
Before:	Tsekooko JSC
Sourced by:	LawAfrica
Summarised by:	A Mwanzia

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[1] Advocate – Costs – Bill of costs – Advocate taking over conduct of matter from another – Whether advocate may draw a bill of costs inclusive of costs of previous advocate – Procedure to be adopted – Paragraph 16(1) and (2) – Schedule 3 – Supreme Court Rules (Uganda).

Editor's Summary

The applicant had won a civil suit against the respondent in the High Court. The respondent unsuccessfully appealed to the Supreme Court. The applicant had filed a cross-appeal which was also dismissed. The applicant was awarded costs of the High Court and for the appeal whereas the respondent was awarded costs for the cross-appeal. Thereafter Mr Muwayire *Nakana*, counsel representing the appellant died before lodging his bill of costs for taxation. The appellant appointed *Messrs Musoke and Company Advocates* who took over and only drew up a bill of costs for taxation

in respect of the unsuccessful cross-appeal. In drawing the bill, *Musoke and Company Advocates* included therein costs which should have been claimed by Mr Muwayire *Nakana* (the original advocate).

When the bill came before the taxing officer, counsel for the applicant raised a preliminary objection to the effect that by virtue of paragraph 16(1) of the provisions set out in the third Schedule to the Rules of the Supreme Court, *Musoke and Company Advocates* should not have lumped together in the same bill their costs and those costs due to Mr Muwayire *Nakana*. The preliminary objection was overruled and the applicant made a reference to a single Judge under rule 105(1) of the Supreme Court Rules.

Held – Subparagraph (1) and (3) of paragraph 2 of the third Schedule to the Supreme Court Rules when read together prohibit an advocate who has not done any work from lodging a bill of costs in which he claims costs for work not done by him. A bill of costs is a factual statement of services rendered and disbursements made and, if any of the facts alleged in the bill are shown to be untrue, the relevant item in the bill must be taxed off. *Bhatt v Singh* [1962] EA 103 followed.

The items which should have been claimed by the previous advocate must be listed separately on a separate bill and be made an annexure to the bill of the current advocate.

Application allowed, order of taxing officer set aside.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Bhatt v Singh [1962] EA 103 – **F**

United Kingdom

Polak v Marchioness of Winchester [1956] 1 WLR 818

Re a Solicitor [1943] 1 All ER 592

Ruling

Tsekooko JSC: This is a reference to me as a single Judge, from the order of the Registrar of this Court in his capacity as taxing officer. The taxing officer overruled an objection by Mr *Tibaijuka*, counsel for the appellant, regarding the form of the bill of costs presented by *Musoke and Company Advocates*, current advocate on behalf of the respondent after a change of advocates.

This matter first came up for hearing on 20 July 2004. Because Ms *Musoke*, the respondent's counsel, who had presented the said bill of costs had withdrawn from the matter, I adjourned the hearing to 27 July 2004, to enable the respondent who was known to be in Kampala to be served personally. He was duly served.

On 27 July 2004, he appeared in person and unsuccessfully sought adjournment. I was not satisfied with the reasons upon which adjournment was sought. My reasons for refusing the adjournment appear on the record.

I should set out the background. The applicant, as plaintiff, won a civil suit against the respondent in the High Court. The respondent unsuccessfully appealed to this Court in civil appeal number 38 of 1995. The present applicant, as respondent in that appeal, had filed a cross-appeal. He was unsuccessful in that cross-appeal. In the appeal the present applicant was awarded the costs of the appeal and costs of the trial Court. At the same time the present respondent as respondent to the cross-appeal was awarded costs. Thereafter, Mr Muwayire-*Nakana*, counsel who had been representing the appellant in the appeal, died apparently before lodging his bill of costs in respect of the unsuccessful cross appeal. In December 2003, *Musoke and Company Advocates*, took over and only drew up and lodged in the registry of this Court a bill of costs for taxation in respect of the unsuccessful cross-appeal. However in drawing that bill, *Musoke and Company Advocates*, included therein costs which should have been claimed by Mr Muwayire *Nakana*, the original advocate who had, as stated earlier, represented the respondent as a defendant in the suit and the appellant on the subsequent appeal to this Court.

When the bill came before the taxing officer for taxation on 12 January 2004, Mr *Tibaijuka*, counsel for the present applicant, raised a preliminary objection to the effect that by virtue of paragraph 16(10) of the provisions set out in the third Schedule to the Rules of this Court, *Musoke and Company Advocates*, who appeared on the record from 15 December 2003 and only for purposes of processing taxation should not have lumped together in the same bill their costs and those costs due to Muwayire *Nyakana*, the erstwhile advocates. Learned counsel contended that the bill of costs as presented contravened the said paragraph 16(1) and (2) (*supra*) and for her to claim the costs was wrong in principle.

Ms *Musoke*, for the respondent, before the taxing officer, opposed Mr *Tibaijuka*'s objection contending that under paragraph 16(2) (*supra*), the bill should be taxed in the ordinary way and that the bill as presented was in proper form in as much as paragraph 16(2) does not provide a format in which the erstwhile advocates' separate items of costs should look like.

The taxation officer overruled Mr *Tibaijuka* and upheld Ms *Musoke*'s contentions. It is from that holding of the taxing officer that the applicant made this reference under rule 105(1) of the Rules of this Court.

The reference is based on three grounds:

Mr *Tibaijuka* first argued ground three separately before he argued the first and the second grounds together. The third ground reads:

> "The learned Registrar misdirected himself about the extent of the applicant's objection, and wrongly assumed that what was objected to were only items two, three and four of the respondent's bill of costs."

It is the contention of counsel, that the learned taxing officer misunderstood counsel's objection because, whereas he, as the applicant's counsel, contended that only items five, six and 10 of the bill were properly included on the same bill of costs, and that the rest of the items should not have been included on the same bill of costs, the taxing officer in his ruling implied that Mr *Tibaijuka* had objected to only items two, three and four, whereas in fact the objection went beyond these three items. Learned counsel also criticised the taxation officer for his failure to appreciate that Ms *Musoke* had virtually conceded to the objection.

Regarding this last contention, the record of the proceedings before the taxing officer supports Mr *Tibaijuka*'s contention. For at 11 of the record, Ms *Musoke* is recorded to have submitted that:

> "Rule 16(1) provides that if there is a change of advocates, the bill of the first advocate may be annexed to that of the current advocate and the total be showed as disbursements. Items two, three and four are under disbursements. Those are items referred to first advocate. But it (annexure) has to be shown as disbursements with regard to item one, the fee provided is money paid by the appellant to the advocate."

For the sake of clarity I reproduce the bill which was presented this way:

Applicant's bill of costs

Item	Date	Particulars	Amount (UShs)	Amount Taxed Off
1.	1995	Instruction fees to oppose a cross-appeal involving a complicated contract of sale of land, demand for specific performance and compensation	10 000 000	
2.	23 May 1996	Disbursements: Transport costs for advocate from Kampala to Mengo in personal car hearing and arguing the cross-appeal	20 000	
3.	--	Transport costs for advocate from Mengo Court to Kampala in personal car	20 000	
4.	31 October 1996	Transport costs for advocate to and from Kampala to Mengo in personal car to receive judgment	30 000	
5.	10 December 2003	Transport costs for advocate to and from Kampala to Mengo to file bill of costs	50 000	
6.	10 December 2003	Court fees for filing bills of costs	9 000	
7.	--	Commissioner's fees for swearing affidavit of service	2 000	
8.	--	Court fees for filing the same	1 500	
9.	--	Transport costs for advocate in personal car to file same	50 000	

10.	19 December 2003	Transport costs for advocate in personal car for taxation hearing	50 000	
11.	--	Court fees for certificate of taxation	6 000	
		Total	10 238 500	

It is trite that a bill of costs is a factual statement of services rendered and disbursements made and, if any of the facts alleged in the bill are shown to be untrue, for example, if it is shown that a particular service charged for has not been rendered or that a particular disbursement has not in fact been made, the relevant item in the bill must be taxed off: see *Bhatt v Singh* [1962] EA 103 at 104.

When sub-paragraphs (1) and (3) of paragraph 2 of the third Schedule to our rules are read together, they in effect prohibit an advocate who has not done any work from lodging a bill of costs in which he or she claims costs for work not done by him or her. For clarity I will quote the relevant provisions. The provisions state:

> "2(1) Where costs are to be taxed, the advocate for the party to whom costs were awarded shall lodge his or her bill with the taxing officer.
>
> (3) A bill of costs may not be lodged by an advocate who is not on record."

The question pertinent to the matter before me is whether an advocate should appear on the record merely to lodge a bill of costs claiming costs for service that he or she never rendered?

In this regard it is instructive to reflect on what paragraph 16 of the third Schedule to our Rules states. It states:

> "16(1) If there has been a change of advocates, the bill of cost of the first advocate may be annexed to that of the current advocate and the total shown as disbursement.
>
> (2) The bill shall be taxed in the ordinary way, the current advocate being heard on it, but the taxing officer may require the first advocate to attend."

I have perused the record of the substantive appeal (in which I participated) and civil application number 38 of 1995 which I heard and settled the order of the judgment of the Court in the Appeal. I have studied the record of this application. It is clear from the said records that Ms *Musoke* did not appear on the record as an advocate for the respondent until 15 December 2003 when she only lodged the bill of costs now in dispute. Indeed Ms *Musoke* does not appear to, nor could she, contest this. Yet her bill of costs which she lodged and which appear above includes claims for services rendered in 1995.

For instance, the first item claimed on the bill states:

> "Instruction fees to oppose a cross-appeal involving a complicated contract of sale of land, demand for specific performance and compensation."

Clearly that item along with the claims for the year 1996 under items two, three, four (*supra*) which relate to disbursements were due to the erstwhile advocate and are definitely caught by the provisions of paragraph 16 of the third Schedule.

The objection raised by Mr *Tibaijuka* is similar to an objection raised 40 years ago against a similar bill of costs drawn in the same fashion in the case of *Bhatt v Singh* (*supra*) where the taxing officer had upheld an objection similar to that raised here. In that case, the taxing officer accepted the objection and disallowed the bill *in toto*, because, as in this case, the only work done by the current advocates there was to draw up an order and lodge the bill of costs. A reference was made to a single Judge of the East African Court of Appeal. Sir Alastair Forbes, VP, heard the reference and affirmed the decision of the taxing officer. Because of the relevance of that decision I reproduce it in *extensio*. In

his ruling the learned Vice-President referred to an earlier ruling in another reference by a different Judge of Appeal, Sir Newnham of the same Court who had stated that:

> "A bill of costs is a factual statement of services rendered and disbursements made and, if any of the facts alleged in the bill are shown to be untrue, for example if it is shown that a particular service charged for has not been rendered or that a particular disbursement has not in fact been made, the relevant item in the bill will be taxed off. The commonest example of this in England is probably the inclusion in the bill of counsel's fees which had not been paid when the bill was presented: for example *In Re taxation of costs: In Re a Solicitor* [1943] 1 All ER 592 and *Polak v Marchioness of Winchester* [1956] 1 WLR 818. Now, if the bill before me is judged by that standard it should probably be taxed at Ushs nil for it is not a true representation of the facts. It purports to be an account of services rendered to the appellants and disbursements made on their account by Messrs Shah and *Gautama* and makes no mention of Mr Nazareth. I have no doubt that it was a genuine and well-meant attempt to meet the peculiar circumstances resulting from Mr Nazareth's having taken ill: it is nevertheless, an inaccurate bill."

Thereafter Sir Alastair Forbes agreed with these principles and stated:

> "On the principles applied by Sir Newnham it seems to me that the bill in the instant case is no more an accurate bill than that which Sir Newnham was considering. It purports, on the fact (*sic*) of it, to be an account of services rendered to the appellants, of disbursements made on their account, and of instructions given to counsel on their account, by Mandla and Company. It is not a true factual statement; and on the principles stated by Sir Newnham, by which as I have said, I am bound, I think that the taxing officer was right to tax the bill at Ushsnil, no application to amend having been made to him.
>
> The question in issue is purely a matter of form. The respondents were awarded their costs and should, I think, be given the opportunity of recovering them by being allowed to file a bill in proper form. The form appropriate appears to be adequately prescribed by practice note number 7 of 1956."

The note referred to by Sir Alastair Forbes, VP, spelt out at least two important points:

First, no one but the advocate on the record for the time being can lodge or tax a bill.

Second, if the advocates have been changed during the proceedings, the bill of the first advocate may be annexed to that of the current advocate and its total shown as a disbursement. It may be shown as "by anticipation," if unpaid. It will be taxed in the ordinary way, the current advocate being heard on it.

Although the taxing officer described this procedure as mere technicality, those two points constitute the present paragraph 16 of the third Schedule to our Rules and I personally think that they are based on the need to prevent a successor advocate from reaping where he or she never sowed, a practice which Mr *Tibaijuka* says is rampant in High Court.

I think that Mr *Tibaijuka* was justified in his objection to the bill. The learned taxing officer overruled Mr *Tibaijuka*'s objection on the basis that paragraph 16 does not set out the form of how the bills should look. With respect, I think that the provision is clear. The items which should have been claimed by the previous advocate must be listed separately on a separate bill and be made an annexure to the bill of the current advocate. The current advocate should explain to the taxing officer what costs are due to him or her and those due to previous advocate.

In that way the bill presented for taxation would be stating the true position. It is not just a question of form curable under article 126(2)(*e*) of the Constitution as stated by the learned taxing officer. The bill as presented indeed purports to show that Ms *Musoke* had been herself instructed in 1995 to oppose the cross-appeal and was therefore entitled to claim UShs10 000 000 as instruction fees. Of course that is fundamentally and absolutely false and it must not be encouraged.

Further Mr *Tibaijuka* justifiably criticised the taxing officer when the latter appeared to imply that counsel did not object to the first item in the bill.

Therefore ground three must succeed. This really disposes of this reference. I find no need to discuss the remaining two grounds.

Consequently I allow this application. I set aside the order of the taxing officer. I uphold the objections raised before the taxing officer by Mr *Tibaijuka*.

I order that the respondent may lodge his own bill of costs claiming any costs due to him or if he wishes to engage an advocate that advocate may amend the bill now filed or file two separate bills of costs namely one for the current advocate and the other for Messrs Muwayire *Nanaka*, the previous advocate. The latter is to be annexed to the former as stipulated by paragraph 16(2) of the third Schedule. The applicant in this reference will have the costs of this reference in any event.

For the appellant:
Mr Tibaijuka

For the respondent:
Ms HD Musoke instructed by *Musoke and Co*

Mumias Sugar Co Ltd v Freight Forwarders (K) Ltd
[2005] 1 EA 305 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	18 March 2005
Case Number:	297/03
Before:	O'kubasu, Waki JJA and Deverell AGJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Land – Lease – Sublease repudiated by subtenant prior to entry into possession – Whether valid sublease – Action for payment of rent – Whether action for payment of rent constitutes specific performance – Whether rent will be payable if sublease has subsequently become incapable of performance – Section 3 – Law of Contract Act (Chapter 23).

Editor's Summary

The respondent was the lessee of a goods shed which it wished to sub-let to the appellant. The parties

entered into negotiation as a result of which the respondent accepted the appellant’s counter offer and begun preparation of the lease.

However, upon inspection of the premises, the appellant insisted on provision of water, electricity and drainage facilities. The agreement broke down and the appellant returned the keys of the premises to the respondent.

The respondent eventually filed suit seeking specific performance of the sublease and an award of four months rent and lease preparation costs due in advance of occupation. The appellant argued that there was no executed sublease capable of performance. The trial Judge ruled in favour of the respondent and the appellant appealed. It was argued that specific performance was not possible as the respondent had already surrendered its lease to the landlord, and that in absence of specific performance no rent payment could be ordered.

Held – Whereas a contract to enter into a lease or sublease must be in writing to be enforceable, it suffices if the contract is contained in correspondence exchanged between the parties signed by authorised employees of the lessor and the lessee. It is therefore not necessary in such a case to consider whether there was part performance of the lease. In this case and on the basis of the evidence, the existence of a contract to sublease had been proved.

The agreement herein was not a sublease, but a contract to sublease. It could no longer be specifically performed as the tenant had surrendered the lease back to the landlord. *Rogan Kemper v Lord Grosvenor (No. 2)* [1977] KLR 123 followed; *Walsh v Lonsdale* [1882] 21 ChD 9 applied. Thus, the covenant to pay rent would only be enforceable if on the date of filing suit the contract to lease was still capable of specific performance. *Ariff v Jadinath Majumdar* [1930] 58 Cal 1235 adopted.

Appeal allowed in part.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Rogan-Kamper v Lord Grosvenor (No. 2) [1977] KLR 123 – **F**

United Kingdom

Ariff v Jadinath Majumdar [1930] 58 Cal 1235 – **A**

Walsh v Lonsdale [1882] 21 ChD 9 – **AP**

Judgment

O'kubasu, Waki JJA and Deverell AGJA: This is a first appeal from the judgment of the superior Court Hayanga J (as he then was) delivered in Mombasa on 14 October 2003.

The case arose out of negotiations which took place between Freight Forwarders (K) Limited, the plaintiff in the superior Court who is the respondent in this appeal, and Mumias Sugar Company Limited which was the defendant in the superior Court and is the appellant in the appeal.

The respondent was the lessee of goods shed number five (hereinafter "the goods shed") in Nairobi which it wished to sublease to a suitable tenant. The appellant needed storage space in Nairobi and expressed an interest in leasing the goods shed from the respondent.

Negotiations took place as to the rent and as to the precise terms of the proposed sublease. These negotiations took place during the period from 7 May 1999 to 26 May 1999.

It was the respondent's case in the superior Court that the negotiations crystallised into a binding contract to sublease the goods shed for five years and one month from 1 June 1999 at an annual rent of KShs10 173 600 for the first two years and KShs11 304 000 for next three years and one month.

The superior Court found in the respondent's favour as to the existence of the alleged binding contract and granted prayer one in the plaint giving judgment for the respondent (plaintiff) for KShs3 461 200.

This was made up of the following three items:

> "KShs70 000 being pleaded as all costs in respect of the preparation of the sublease including advocates costs, stamp duty and registration charges.
>
> KShs2 543 400 being arrears of rent for the months of June, July and August 1999 due quarterly in advance.
>
> KShs847 800 as security for payment of monies which may from time to time become owing."

However, the superior Court declined to grant the prayer for specific performance of the sublease.

The appellant is aggrieved by this judgment and maintains that no binding contract or sublease exists with the result that the appellant was within its rights when it decided not to proceed with the sublease which decision was communicated to the respondent by letter dated 30 June 1999. The reason for the decision not to sublease the premises was stated to be that the appellant had discovered, during a visit on 8 June 1999 to the goods shed by its sales and marketing manager, that there was no electricity, no water facilities and no WC on the premises, all of which were claimed to be essential facilities for any operational goods shed.

There was no evidence either way as to whether the premises had ever been inspected prior to 8 June 1999. But it would be surprising if the appellant had entered into detailed negotiations before looking at the premises.

An attempt was made at a meeting on 11 June 1999 to resolve the issue but nothing came of this and the respondent told the appellant that the appellant would have to take the goods shed as it was. This was not acceptable to the appellant who then returned the keys and stated that it was left with no choice but to withdraw its offer to sublease the goods shed. The appellant claimed that the delivery of the keys by the respondent to the appellant was purely for the purpose of enabling the appellant to inspect the premises and did not amount to the taking of possession by the appellant as asserted by the respondent.

It is not necessary for us to recite the contents of all the correspondence comprising the negotiations between the appellant and the advocate acting for the respondent. It is clear from the correspondence, which began with the sending of a draft sublease by the respondent to the appellant, that it ended with

final agreement by the two parties as to the wording of all the clauses in the proposed sublease (many of which had been amended during the process of negotiation).

A letter dated 24 May 1999 was the final letter from the appellant proposing changes to the wording of the sublease. This correspondence as to the precise wording of the sublease terminated with the letter from the respondent's advocate to the appellant dated 26 May 1999. This read:

> "I refer to your faxed letter dated 24 May 1999 and write to inform you that your comments stated therein have been accepted by my client and the same have been incorporated in the above mentioned sublease.
>
> Please confirm by return that I may now proceed to prepare the final engrossments of the sublease and send the same to yourselves for execution."

There was no reply from the appellant to the letter dated 26 May 1999. On 28 May 1999 the respondent's advocate wrote to the appellant sending three engrossments of the sublease for execution by the appellant and requesting a cheque for KShs3 391 200 being quarterly rent in advance plus the security referred to above and another cheque for stamp duty, disbursements, legal fees and VAT.

We carefully studied the correspondence between the parties adduced in evidence and have come to the conclusion that it is sufficient to prove the existence of a binding contract between the parties to enter into a sublease in the terms of the draft sublease, amended as agreed in the correspondence.

It was pleaded by the appellant in paragraph 3(*b*) of the defence that the appellant/defendant did not accept the lease or sublease on the terms proposed by the plaintiff. We are satisfied that the letter dated 24 May 1999 constituted a counter-offer by the appellant to accept the sublease amended in accordance with the stipulations in that letter and we are further satisfied that the letter dated 26 May 1999 from the respondent to the appellant constituted an acceptance of that counter-offer with the result that a contract to execute the sublease binding on the appellant and the respondent came into existence. We have noticed that exhibit 9 (a draft of the proposed sublease) the date of which is not clear from the record does not include the amendment to clause 5(*e*) agreed to by both parties in the exchange of letters cited above and the appellant would have been able to insist on this being reflected in the engrossed sublease.

Furthermore, the appellant made his submissions in the superior Court in writing and nowhere in those submissions did he identify any particular clause which was included in exhibit 9 being the final version of the sublease as to which the appellant still objected.

At this stage it is necessary to examine the manner in which the case was pleaded by the parties. The relevant paragraphs of the plaint for the present purposes after the description of the parties read as follows:

> "3. By an agreement between the plaintiff and the defendant, the plaintiffs subleased to the defendant a goods shed number five near the Nairobi Railway ("the leased premises) for a term of five years and one month from 1 June 1999 under the terms and conditions as set out in the sublease.
>
> 4. Pursuant to the sublease the defendant agreed to pay to the plaintiff a deposit equivalent to one month's rent amounting to KShs847 800 which amount was

to remain with the plaintiffs as security for payment of moneys which may from time to time be owing from the defendant to the plaintiff for the due performance and observance of the covenants and conditions in the sublease.

5. The plaintiffs avers and contends that the defendant has failed to pay rent of KShs2 543 400 for the months of June, July and August 1999 which is the rent to be paid quarterly in advance as provided in the sublease.

6. It was further agreed and provided in the sublease that the defendant was to be responsible for all costs in respect of the preparation of the sublease including advocates' costs, stamp duty and registration charges, advocates' costs in this transaction amount to KShs70 000.

7. The plaintiff's claim against the defendant is for the sum of KShs3 461 200 being the amount due and owing by the defendant to the plaintiff in respect of outstanding rent, deposit and cost of preparing the sublease.

8. Pursuant to the sublease the defendant took possession of the leased premises on 1 June 1999.

9. The defendant in breach of the said sublease has to date refused and/or neglected to execute the sublease as agreed between the plaintiff and the defendant and further the defendant in breach of the sublease vacated the leased premises on 30 June 1999 after occupying it for a month.

10. By reason of the matters aforesaid the plaintiff claims specific performance of the said sublease.

11. In the alternative the plaintiff claims general damages.

12. This Honourable Court has jurisdiction to try this case.

Reasons wherefore the plaintiff prays for judgment against the defendant for:

(*a*) KShs3 461 200 as per paragraphs 4, 5, 6 and 7 hereinabove;

(*b*) Specific performance of the sublease as per paragraphs 8, 9 and 10 hereinabove;

(*c*) In the alternative, general damages as per paragraph 11;

(*d*) Interest of *(sic)* of 9(*a*) and (*c*) at Court rates until payment in full; and

(*e*) Any other further relief this Honourable Court deems fit to grant.

Dated at Mombasa this 2 March 2000

Amina H Amarshi

Advocate for the plaintiff."

It is clear from the above that the plaintiff's pleaded case is that there was already a sublease in existence. The plaintiff/respondent was not pleading that there was an agreement to enter into a sublease which agreement entitled the plaintiff to specific performance of the defendant's obligation to enter into a sublease.

The defendant's answer to this claim in its defence was to plead as follows:

"1. Save as hereinafter expressly admitted the defendant denies each and every allegation contained in the plaint as though the same were set out and traversed seriatim.

2. The defendant admits the descriptive parts of paragaphs 1 and 2 of the plaint save that her address for service for the purposes hereof shall be care of EK Owinyi advocates . . . Kakamega.

3. The defendant avers that the plaint does not disclose any or any reasonable cause of action against her (*sic*) and the plaintiff's claim, if any, is misconceived in that:

(*a*) There is no executed lease or sublease between the plaintiff and the defendant.

(*b*) There is no lease or binding lease or sublease between the plaintiff and the defendant or transfer to the defendant in terms of section 53A and section 105 of the Transfer of Property Act 1882 in that the defendant did not accept the lease or sublease on the terms proposed by the plaintiff and the plaintiff is debarred from enforcing any rights against the defendant.

(*c*) The purported lease or sublease being a registrable instrument was not registered as required under section 107 of the Transfer of Property Act 1882 and is therefore of no legal consequence.

(*d*) The suit premises lacked or at the material time lacked water, electricity and other conveniences such as waste conveniences and are therefore untenantable.

(*e*) The alleged lease or such lease is unenforceable in view of the provisions of the Law of Contract Amendment Act 21 of 1990.

4. Paragraphs 3, 4, 5, 6 and 7 of the plaint are not admitted and the defendant specifically denies that any or the alleged agreement was concluded between the plaintiff and the defendant or that the defendant agreed to pay one months rent deposit in the sum of KShs847 800 or that the defendant was obliged or failed to pay rent for June July and August 1999 amounting to KShs2 543 400 or costs for the preparation of any or the alleged sublease amounting to KShs70 000 or the sum of KShs3 461 200 as alleged or at all and the plaintiff is put to strict proof thereof.

5. The defendant denies that it took possession of the suit premises on 1 June 1999 as alleged or at all and the plaintiff is put to strict proof thereof.

6. The defendant admits that she (*sic*) did not execute the lease or the sublease as the terms and condition thereof were not acceptable to her.

7. In the premises, the defendant denies that the plaintiff is entitled to specific performance of any or the alleged lease or sublease and the plaintiff is put to strict proof thereof.

8. It is the defendant's contention that general damages are not available to the plaintiff as the plaintiff's claim, if any, which is denied is premised on breach of contract.

9. Further it is the defendant's contention that this Honourable Court lacks jurisdiction to entertain the plaintiff's claim as the defendant's registered office is at Mumias near Kakamega and the suit premises in Nairobi both places without the jurisdiction of this Honourable Court.

Wherefore the defendant prays that the plaintiff's suit be dismissed with costs.

Dated at Mombasa this 8 April 2000.

EK Owinyi

Advocates for the defendant."

In our view this pleading raises points of defence which are logically responsive to the plaint as drafted.

If the plaint had been drafted on the basis that the claim was for specific performance of a binding contract, contained in correspondence, to enter into a sublease then the reference to sections 53A, 105 and 107 of the Transfer of Property Act of 1882 would not be relevant as those sections deal with the transfer or lease itself in contradistinction to a contract to enter into such a lease.

It is now necessary to consider the authorities and statute law cited by the parties insofar as they are relevant to the case as pleaded.

The appellant sought to rely on the Law of Contract Act (Chapter 23) in its un-amended form since the amendments were not in force in June 1999 which then read as follows:

> "No suit shall be brought upon a contract for the disposition of an interest in land unless the agreement upon which the suit is founded, or some memorandum or note thereof, is in writing and is signed by the party to be charged or by some person authorised by him to sign it.
>
> Provided that such a suit shall not be prevented by reason only of the absence of writing, where an intending purchaser or lessee who has performed or is willing to perform his part of a contract . . .
>
> (i) has in part performance of the contract taken possession of the property or any part thereof; or
>
> (ii) being already in possession, continues in possession in part performance of the contract and has done some other act in furtherance of the contract."

The submission of learned counsel for the appellant (Mr JMN *Maende*) in this respect was that no one signed the sublease. The respondent cannot blame the appellant's counsel for harping on the sublease since it is the pleaded case of the respondent that there was a sublease in existence rather than a mere contract to enter into a sublease.

We consider that a contract to enter into a lease or sublease contained in correspondence between the parties consisting of letters signed by authorised employees of companies being the intended lessor and lessee is not prevented from being the basis of a suit by subsection (3) of the Laws of Contract Act (Chapter 23). Such correspondence is a sufficient memorandum. Therefore it is not necessary in such circumstances to rely upon the proviso to that subsection and it is not necessary to make a finding as to whether there was part performance arising from the appellant having possession of the keys to the premises allegedly for the purpose of inspection only.

Having found that there was a valid enforceable contract to enter into a sublease but that there was no sublease in existence as pleaded by the respondent we now need to consider what orders we should make.

Given the passage of time and the evidence from the respondent's witness in the superior Court that the respondent has surrendered its lease back to its landlord, Kenya Railways, it is clearly not possible now to make any order for specific performance of the contract to enter into a sublease.

The monetary awards by the superior Court totalled KShs3 461 200 made up as follows:

(i)	One months' rent deposit	847 800
(ii)	Quarterly rent (June/July/August)	2 543 400
(iii)	Advocate's costs	70 000
	Total	3 461 200.

The first amount was pleaded in paragraph 4 of the plaint to be one month's rent which amount was to remain with the plaintiff as security for payment of monies which may from time to time be owing from the defendant to the plaintiff as security for the due performance and observation of the sublease. Since the sublease never came into existence and there was no order for specific performance by the superior Court and, since no particulars have been given of

any amount covered by the security we do not consider that there is any basis upon which the security can now be properly claimed by the respondent. The claim for the security amount of KShs847 800 is dismissed.

The second amount of KShs2 543 400 claimed by the respondent was an advance payment of three months rent totalling that sum which the appellant had agreed to pay on 1 June 1999 as one of the terms of the contract to enter into the sublease.

The claim for quarterly rent raises the issue as to whether or not payment of rent agreed as part of a contract to enter into a sublease can be enforced despite the sublease not having come into existence by execution by the parties or resulting from an order for specific performance followed by registration.

In case of *Rogan-Kamper v Lord Grosvenor (No. 2)* [1977] KLR 123 this Court (Wambuzi P, Mustafa JA and Platt J as he then was) was dealing with a situation in which the landlord's plaint averred that:

> "(*a*) There was an agreement in writing dated 29 September 1976 by which the landlord agreed to grant the tenant a lease for five years and one month;
>
> (*b*) that after entering into possession, the tenant despite being tendered a draft lease, failed to approve or execute it;
>
> (*c*) that it was an express term of the draft lease that the landlord was at liberty to terminate the tenancy and re-enter into possession if rent or any part thereof was in arrears for 14 days; and
>
> (*d*) since April 1970 the tenant had failed to pay the agreed rent and that 'by virtue of the aforesaid breach of the express or implied term of the lease' the landlord gave notice to quit. Mustafa JA commented that 'It seems that the landlord was claiming possession and arrears of rent on the basis of the draft lease which neither party had executed'."

Mustafa JA then quoted a passage from Law VP in the earlier appeal (No. 1) arising from the same case reading as follows:

> "The use of the word 'lease' (in the plaint) . . . seems to me unfortunate and confusing. There never was an executed lease, dated 29 September 1969. The trial Judge, unfortunately fell into the same error, and held as follows: 'in any case, this is a case of an unregistered lease.' With respect, it is not. There never was a lease in existence, capable of registration. The question arises, whether such an agreement is valid and enforceable by either party although not registered. This contract could have been ordered to be specifically performed by either party. The tenant must be deemed to hold under the same terms as if a lease had been granted, and he cannot complain of the exercise by the landlord of the same rights as the landlord would have had if a lease had been granted: See the judgment of Jessel MR in *Walsh v Lonsdale* [1882] 21 ChD 9."

The above comments as to the use of the word "lease" seem to us equally applicable to the use of the words "sublease" in the plaint in the case now before us and we reiterate that we are not dealing with a case in which an executed sublease exists, we are dealing with a case in which we have found that a binding contract to enter into a lease does exist of which contract the superior Court declined to order specific performance.

There was no cross appeal by the respondent against the refusal of the superior Court to order specific performance. This is not surprising since the time the appeal was filed, and indeed by the time the case came up for hearing in the superior Court, the respondent had no wish, or indeed power, to force the

appellant into performance given that by that time it appears from the appellant's evidence that the respondent had surrendered its lease back to its landlord, the Kenya Railways.

What effect if any does this have on the respondent's right to enforce the provisions for payment of the three months rent in advance amounting to KShs2 543 400?

In *Rogan-Kamper v Lord Grosvenor (No. 2)* [1977] KLR 123 at 128 Mustafa JA quotes the following passage from the decision of the Privy Council in the Indian case of *Ariff v Jadinath Majumdar* [1930] 58 Cal 1235:

> "Their Lordships themselves are in agreement with the High Court in the view that *Walsh v Lonsdale* has no application to this case, owing to the fact that the respondent's right to enforce the contract had been barred long before the commencement of the present suit. The respondent was not in a position to obtain specific performance of the agreement for a lease from the same Court and at the same time as the relief claimed in this section. Had he been so entitled the position would be very different, for then the respondent could claim to have executed in his favour by the appellant an instrument in writing which he could have duly registered, the appellant's ejectment action being stayed in the meantime. In these circumstances the respondent would obtain complete protection, but consistent with and not in violation of the provisions of the Indian statute."

In the case before us there was no question of the right to seek an order for specific performance of the contract to enter into the sublease being time barred but, as we have seen, an order for specific performance had become impossible to grant by the time the witness for the respondent gave his evidence before the superior Court.

Platt J in *Rogan-Kamper v Lord Grosvenor (No. 2)* [1977] KLR 123 at 135 expressed his conclusion in the following terms:

> "The agreement, though executory as far as the intended lease is concerned, may be used in proper circumstances to support a suit for specific performance; and according to *Souza Figueiredo*'s case the convenant to pay rent contained in the agreement may be linked at (*sic*) as a contractual stipulation. But it seems to me that the other terms of the agreement relating to the future lease can only be relied upon in connection with specific performance. That is the extent of the contract operating *inter partes*.
>
> The difficulty which arose in this case stems originally from the terms of the plaint."

Platt J, while being of the view that the covenant to pay rent in a contract to enter into a lease may be looked at, does not expressly state that it can be enforced.

In the case before us the first three months rent in advance was stipulated in the contract to enter into the sublease to be due for payment on 1 June 1999. On that date the contract was capable of being specifically performed by both parties if so ordered.

We consider, and so find, that the relevant date on which the contract must be proved to be capable of specific performance in order to satisfy the conditions set by *Ariff v Jadinath Majumdar* (*supra*) is the date when the suit claiming the rent is filed and not the date upon which the amount claimed under a convenant in the contract to pay rent first became due (which in this case was 1 June 1999).

Whether the contract was capable of being specifically performed on the date of filing of the plaint namely the 2 March 2000 is not known since there was

no evidence adduced by the respondent as to when the respondent's lease was surrendered back to its landlord, the Kenya Railways. We consider that the burden of proof as to this fact was upon the respondent as was the burden of proving that the contract was capable of specific performance at the date of filing the plaint. The respondent failed to discharge that burden.

The result is that the superior Court was wrong in ordering the appellant to pay the sum of KShs2 543 400 to the respondent.

The third amount of KShs70 000 was pleaded to be the costs of the preparation of the sublease including advocates cost, stamp duty and registration charges. While the terms of the sublease were negotiated and agreed and engrossed the sublease was never finally signed, registered or stamped. We find the sum of KShs50 000 to be reasonable and would allow the appeal to that extent.

In the result the appeal is allowed to the extent stated above and the judgment of the superior Court is hereby set aside. There will be substituted for that judgment, judgment for the plaintiff for the sum of KShs50 000 together with costs with interest thereon at Court rates from the date of the lower Court's judgment. We further order the respondent to pay three quarters of the appellant's costs of the appeal in the superior Court.

For the appellant:
Mr JMN Maende

For the respondent:
Information not available

Munga v Republic
[2005] 1 EA 314 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	20 May 2004
Case Number:	1069/98
Before:	Lesiit J and Ochieng AGJ
Sourced by:	LawAfrica
Summarised by:	A Mwanzia

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[1] Evidence – Identification – Single witness – Recognition – Complainant identifying accused by prior recognition – Whether identification safe – Whether testimony of single witness sufficient – Robbery with violence – Section 296(2) – Penal Code (Chapter 63).

Editor's Summary

The appellant was convicted by the trial Court on charges of robbery with violence contrary to section 296(2) of the Penal Code and was sentenced to death. The prosecution case was that the appellant was in a group of four people who had accosted the complainant (PW1), asked for money before assaulting the complainant and robbing him.

The complainant testified that he knew the appellant was a Maasai and knew where the appellant used to work before the attack. The appellant did not deny being a Maasai and also did not deny that he worked at the bar named by the complainant.

The appellant appealed to the High Court. It was contended on his behalf that the trial Court ought to have warned itself of the danger of relying on the evidence of the complainant alone, that such an identification could have been mistaken as the complainant did not give the appellant's description to the first person in authority, to whom the report was made. Further, it was contended that the identification was under very difficult circumstances as the attack was sudden, the complainant was beaten, stabbed with a knife and hit in the left eye.

Held – The appellant was properly identified and the circumstances of the identification were safe given that the identification was by recognition. A fact may be proved by the testimony of a single witness but the rule does not lessen the need for testing with the greatest care the evidence of a single witness in respect of identifying especially when the conditions favouring a correct identification were difficult. *Kipruto and others v Republic* number 140 of 1987 and *Karani v Republic* [1985] KLR 290 followed.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Karani v Republic [1985] K R 290 – **F**

Kipruto and others v Republic number 140 of 1987 – **F**

Judgment

Lesiit J and Ochieng AGJ: The appellant was convicted by the trial Court on charges of robbery with violence, which offence is contrary to the provisions of section 296(2) of the Penal Code. Following his conviction, the appellant was sentenced to death, as that is the only sentence prescribed by law, as a penalty for the offence in respect to which he had been convicted.

Being dissatisfied with the conviction and sentence, the appellant preferred an appeal. His main ground of appeal was that the learned trial Magistrate erred in law and in fact by accepting the identification by a single witness. The appellant submitted that the trial Court ought to have warned itself about the danger of relying on the evidence of the complainant alone. It was contended that such an identification could have been mistaken, as the complainant did not give the appellant's description to the first person in authority, to whom the report of the offence had been made. Recounting the evidence on record, the appellant said that as the complainant had been accosted by four men, whose attack was sudden; who then disappeared from the scene before the complainant recovered, the identification could easily have been mistaken. It is contended that the alleged identification was under very difficult circumstances, as the attack was sudden, the complainant was beaten, stabbed with a knife and hit in the left eye.

The appellant also takes issue with the place at which the complainant first reported the offence. He notes that it was not at the police station, as by the time when he (the appellant) was taken to the said police station, PW2 merely

re-arrested him. By his submission, the appellant to be implying that unless the complainant testified about the authority to which he first reported the offence, and also demonstrated that he had described the appellant to the said authority, the identification of the appellant would be deemed faulty. Section 165 of the Evidence Act was thrown into the mix, at that stage. If we understood the appellant correctly, he was implying that there was inconsistency on the evidence of the complainant, PW1. However, we are unable to find the alleged inconsistency from the evidence on record, especially touching on the identification of the appellant. In our considered view, the absence of precise information as to whom the offence was first reported can only be said to have made it impossible for the appellant or the Court to test the veracity of the complainant's testimony in Court. However, the absence of such evidence cannot, in our view, lead to a conclusion that there was some perceived inconsistency. The evidence of the complainant on the issue of identification cannot have been inconsistent with some evidence that was not adduced in Court.

As regards the allegation that the complainant did not describe the appellant at all, the record shows that the complainant said he knew the complainant was a Maasai. Of course, the appellant is correct to say that there are many Maasais. However, it must be noted that the complainant expressly said that he not only knew the appellant before the incident; he even knew where the appellant used to work.

It is significant that in his defence, the appellant did not deny being a Maasai. He also did not deny that he worked at the bar named by the complainant. Had the appellant as much as denied either of those two aspects of the evidence by PW1, there would have been need to corroborate the evidence.

But when it is borne in mind that the complainant knew the appellant before the incident; and that the attack occurred in a place that was lit; and because the four attackers first demanded money before they launched the said attack, we are satisfied that the complainant had sufficient opportunity to properly identify the appellant.

In his defence, the appellant gave an unsworn statement. He said that he had left his house to go to work on 15 August 1997. He saw two people who came ahead of him and arrested him. He says that he was taken to the Chief's Office, and later to Muthaiga police station. At the police station, he was charged.

In *Samson Kipruto and others v Republic* number 140 of 1987, Nyarangi, Platt and Gachuhi JJA held:

> "In fact in this case it was identification by recognition which does not require an identification parade. An identification parade is not essential in cases of recognition, but it may be where the previous association is slight and the chances of recognition difficult."

After evaluating the evidence by the complainant, considering that he knew the appellant before this attack and even knew where he worked, we are satisfied that the appellant was properly identified and that the circumstances of identification were safe given that the identification was by recognition. The learned trial Magistrate was right to reject the appellant's defence in the circumstances. In *Karani v Republic* 1985 KR 290 Nyarangi, Platt and Gachuhi JA held:

> "A fact may be proved by the testimony of a single witness but this rule does not lessen the need for testing with the greatest care the evidence of a single witness in respect of identity especially when it is known that the conditions favouring a correct identification were difficult."

We have tested the complainant's evidence and do find that even though it was the case of identity by a single witness, we find that the conditions of identity were good for positive identification. And also due to the fact that the complainant knew the appellant before, we are satisfied that identification was safe.

The record shows that the offence was committed on 15 August 1997. PW1 testified that the appellant was arrested on 16 August 1997. His evidence was corroborated by PW2, the Administration Police Constable, John Kamau. Having watched the witnesses testify at the trial and observing their demeanour, the learned trial Magistrate believed the testimony of the prosecution witnesses. On our part, having re-evaluated the evidence, we find no reason in law or fact, to disagree with the learned trial Magistrate.

This appeal is therefore dismissed. We uphold both conviction and sentence.

For the appellant:
Information not available

For the respondent:
Attorney-General

Musiara Ltd v Ntimama
[2005] 1 EA 317 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of ruling:	18 November 2004
Case Number:	271/03
Before:	Tunoi, O'kubasu JJA and Onyango Otieno AGJA
Sourced by:	HA Ongicho
Summarised by:	C Kanjama

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[1] Appeal – Jurisdiction – Bias – Whether Court of Appeal has jurisdiction to vary a decision of a superior Court in an interlocutory application for orders of stay before the intended appeal is lodged – Whether Court of Appeal can recall and revise or set aside its own order – Whether a claim of bias may found an application to re-open an order by the appellate Court – Rule 5(2)(b) – Court of Appeal Rules.

[2] Appeal – Recall of order – Bias – Claim of bias against one of the Court of Appeal judges – Court of Appeal judge had disclosed his relationship with one party and obtained waiver from the applicant – Whether applicant could properly request re-opening of the case – Whether the Court of Appeal Rules allow for a Court of Appeal judgment/ruling to be recalled.

Editor's Summary

The applicant lodged an application in the Court of Appeal for a declaration that a prior order of the appellate Court was null and void, and for an order recalling or varying the said order. The applicant

argued that the said order had been made without jurisdiction as the Court of Appeal had no power under rule 5(2)(*b*) of the Rules to reverse or vary a decision of the superior Court in an interlocutory application for orders of stay before the intended appeal is lodged, let alone heard. The applicant further asserted that a superior Court decision can only be reversed after determination of an appeal, that the appellate

ruling was made in excess of jurisdiction because the respondent was granted orders he had not sought, and finally that one of the judges was disqualified from making the impugned decision because of the appearance of bias.

At the hearing of the said application, a preliminary objection was taken by the respondent to the effect that there was no jurisdiction for the Court of Appeal to entertain such an application, and that a decision by the Court of Appeal was final and cannot be reconsidered by another bench of the same Court. Further, it was argued that the previous professional relationship between the presiding judge in the impugned bench and one of the parties had been disclosed and waived by the applicant at the time of the hearing.

The Court noted that the previous bench had considered the arguability of the appeal in respect of the removal of the respondent from his position as non-executive director and chairman of the appellant. On determining that such appeal was indeed arguable, the Court proceeded to make orders to prevent the appeal being rendered nugatory, including reinstatement of the respondent to his position in the appellant company, and retaining the *status quo* in relation to control of some contested shop business but with the requirement that accounts be supplied quarterly to the respondent, who was a 40% shareholder of the appellant.

Held – The previous decision of the appellate Court had been properly based upon the principles applicable to motions or applications under rule 5(2)(*b*) of the Court of Appeal Rules, which empower the Court in the exercise of its original jurisdiction pending appeal to order a stay of execution, an injunction or a stay of any further proceedings. The decision of the Court in that respect was interlocutory and did not bind the Court hearing the appeal in its determination, or the superior Court when exercising its jurisdiction in hearing the suit.

The Court of Appeal has always refused invitations to review, vary or rescind its own decisions except so as to give effect to its intention at the time the decision was made. To depart from this rule would be a most dangerous course in that it would be open to all and sundry to challenge the correctness of the decisions of this Court on the basis of fresh arguments brought up long after the judgment or decision was delivered or made. It matters not whether the judgment or ruling has been perfected or not. *Lakhamishi Bros Ltd v Rajah and Sons* [1966] EA 313, *Somani's v Shirinkhanu (No. 2)* [1971] EA 79 followed.

The only exception when the Court of Appeal would revisit its decision is where the applicant has been wrongly deprived of the opportunity of presenting his argument on any particular point, which might lead to the proceedings being held to be null and void. This Court has no inherent power to do that which is prohibited by law. It is the final Court on the land, and where an issue has been determined, that decision should definitively determine the issue as between the litigating parties. *Ladd v Marshal* [1954] 3 All ER 145 followed.

In respect of the exceptional case, the Court of Appeal has a residual jurisdiction to reopen an appeal which it had already determined in order to avoid real injustice. The Court had implicit powers to do that which was necessary to achieve the dual objectives of an appellate Court, namely to correct wrong decisions so as to ensure justice between the litigants, and to ensure public confidence in the administration of justice. These powers were necessary for the Court to enforce its rules of practice, suppress any abuse of its process and

defeat any attempted thwarting of its process. A significant injustice must have occurred for which there was no alternative effective remedy. That was not the position in the current case. *Taylor and another v Lawrence and another* [2002] 2 All ER 353 adopted; *R v Bow Street Metropolitan Stipendiary Magistrate ex parte Pinochet Ugarte (No. 2)* [1999] 1 All ER 577 approved.

Under the Constitution, persons are accorded the right to a fair trial by an independent and impartial Court. If bias is established, there has been breach of natural justice. In such a case, the Court of Appeal may be justified in taking the exceptional course of reopening proceedings which had already been determined. However, in this particular case, the previous professional relationship between a judge in the former bench and one of the parties, coupled with the prior disclosure by the judge and unequivocal waiver by the applicant, would not lead to an appearance of bias. *Porter v Magil* [2002] 1 All ER 465 approved.

Preliminary objection sustained. Application struck out with costs.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Githunguri v Jimba Credit Corporation Limited [1988] LLR 286 (CAK)

Lakhamshi Brothers Ltd v Raja and Sons [1996] EA 313 – **F**

Lempaka v Ntimama and another election petition number 33 of 1993

Rafiki Enterprises Ltd v Kingsway Tyres and Automart Ltd [1996] LLR 501 (CAK)

Rithibo v Nyingi [1984] KLR 505

Somani's v Shirinkhanu (No. 2) [1971] EA 19 – **F**

United Kingdom

Ladd v Marshal [1954] 3 All ER 145 – **F**

Locabail Limited v Bayfield Properties Limited and another [2002] 1 All ER 63

Porter v Magil [2002] 1 All ER 465 – **APP**

Republic v Bow Street Metropolitan Stipendiary Magistrate ex parte Pinochet Ugate (No. 2) [1999] 1 All ER 577 – **APP**

Taylor and another v Lawrence and another [2002] 2 All ER 353 – **A**

Ruling

Tunoi, O'kubasu JJA and Onyango Otieno AGJA: By this motion expressed to be brought under rules 1(2), 56(2) and 42(1) of the Rules of the Court (the Rules), the applicant Musiara Limited prays for orders for:

1. Declaration that the ruling or order made by this Honourable Court on 3 October 2003 in civil application number 228 of 2003 (UR112 of 2003) is null and void and/or invalid.
2. That the said invalid ruling or order be recalled and cancelled.

3. Alternatively that the said ruling and order in civil application number Nairobi 228 of 2003 (UR) (112 of 2003) made on 3 October 2003 be rescinded.

The basis upon which the application is brought is; firstly, that the ruling complained of was made without jurisdiction, as this Court has no power under rule 5(2) of the Rules to reverse or vary a decision of the superior Court in an interlocutory application for orders to stay before the intended appeal is lodged let alone heard; secondly, that the power to reverse or vary a decision of the superior Court can only be exercised on the determination of an appeal under rule 31 of the Rules and in the present case the appeal has yet to be filed; thirdly, that the said ruling and order was made in excess of jurisdiction as this Honourable Court granted the respondent herein reliefs or orders which had not been applied for in the said application or in the superior Court and which orders could not be granted under the provisions of rule 5(2)(*b*) of the Rules; fourthly and finally, that this Court failed to observe the rules of natural justice in making the said decision in that the presiding Judge, Honourable Mr Justice AB Shah JA, was disqualified by law from adjudicating on the said application by reason of his intimate relationship with the respondent herein, having previously acted as the advocate for the respondent including personally representing the respondent in *Lempaka v Ntimama and another* election petition number 33 of 1993 and that due to the said bias there was miscarriage of justice which resulted in the respondent being granted orders or reliefs that are invalid or a nullity, and consequently, the said decision effectively reversed or varied the superior Court's ruling and to compound matters further the decision awarded the respondent judgment in the main suit before trial.

The appellant further complains that Honourable Ole Ntimama and the presiding Judge, Honourable Mr Justice AB Shah JA perverted or obstructed the course of justice by failing to disclose their relationship and conflict of interest to the Court so as to gain and/or give undue advantage to the respondent in the determination of the application.

The applicant avers that the decision is otherwise a total perversion or miscarriage of justice as it renders it completely unnecessary for the respondent to lodge the intended appeal or prosecute the counterclaim:

(i) Since the decision has already awarded judgment to the respondent on his counterclaim long before the trial takes place.

(ii) The decision being a Court of Appeal decision obstructs or bars the High Court from determining the said relief in the counterclaim and in particular whether the respondent is still a director or chairman of the company.

(iii) The decision gives the respondent relief that he did not ask for in his application and cannot possibly get even if the appeal succeeds.

(iv) The decision is a gross abuse of the appellate process and jurisdiction as an application for a temporary order in an intended appeal has been used to defeat the ends of justice by awarding the respondent judgment in the suit and thereby obstructing the proper determination of issues pleaded in the suit.

When the application came up for hearing it was preceded by a preliminary objection by Mr *Oraro*, counsel for the respondent, notice whereof had been duly given, asking that the application be struck out as the Court has no jurisdiction to entertain it. Mr *Oraro* submitted, in the main, that the only

jurisdiction the Court of Appeal has is to hear appeals from the High Court and the powers conferred upon it are clearly set out in the Appellate Jurisdiction Act (Chapter 9) and that by dint of section 3(2) thereof it is clear that this Court does not have original jurisdiction. Mr *Oraro* contended therefore, that in the circumstances decisions made by a bench of this Court cannot be reconsidered by another bench of the same Court. Relying on the decision of *Rafiki Enterprises Ltd v Kingsway Tyres and Automart Ltd* [1996] LLR 501 (CAK), Mr *Oraro* argued that similarly, the inherent powers conferred by rule 1(3) of the Rules can only be exercised within and in the course of hearing an appeal. He submitted that rules 35 and 56 of the Rules did not help the applicant at all since there was admittedly no accidental slip or omission on the part of the bench which made the decision complained of. He referred us to the decisions of this Court and of its predecessors – *Githunguri v Jimba Credit Corporation Limited* [1988] LLR 286 (CAK), *Rithibo v Nyingi* [1984] KLR 505 and *Lakhamshi Brothers Ltd v Raja and Sons* [1996] EA 313.

The question of the disqualification of Shah JA presiding in the application seems to have been raised before the matter was heard. It is stated by Mr *Oraro* and deponed to in his affidavit made on 14 October 2003, and that of the respondent himself that Shah JA informed counsel that he had in the past had a professional relationship with the respondent and asked whether either party had any objection to his presiding over the case. Mr *Oyatsi*, counsel for the applicant, stated that he had no objection but the Court directed him to consult the applicant and was granted 30 minutes to do so. When the Court resumed he returned and confirmed that the applicant had no objection to Shah JA presiding and being a member of the bench. Mr *Oraro* underpinning his submissions on *Locabail Ltd v Bayfield Properties Ltd and another* [2002] 1 All ER 63 contended that as there was appropriate disclosure by the Judge and as the applicant raised no objection to the Judge hearing the case, the applicant cannot subsequently complain that the matter disclosed or gave rise to a real danger of bias.

Mr *Gautama*, for the applicant, in resisting the preliminary objection, submitted that one of the first and highest duties of all Courts, from the lowest Court which entertains jurisdiction over the matters up to the highest Court which finally disposes of the case, is to take care that the act of the Court does not occasion injury to any of the litigants. He referred to *Mulla's Commentary on the Civil Procedure Code* (12ed) Volume II at 456. He argued that since injustice had been occasioned to the applicant, this Court has residual jurisdiction to correct what is wrong.

Mr *Guatama* further argued that because of the past relationship between Shah JA and the respondent, the Judge was automatically disqualified from hearing or continuing to hear the application and any decision he reached would be set aside. He thought that the applicant had no right to waive the right of the Judge to disqualify himself.

In High Court civil case number 171 of 2003, the applicant sought, *inter alia*, injunctions to restrain the respondent from interfering with the applicant's business premises in Maasai Mara Game Reserve or Nairobi or elsewhere save by invitation of the applicant to attend the meetings of the members of the applicant company. The applicant also sought a mandatory injunction to

compel the respondent to return to the applicant its shops, and also a declaration to the effect that the respondent had renounced or repudiated his contract of membership in the applicant company by his acts.

Simultaneously with the filing of the plaint the applicant sought temporary injunctions and a mandatory injunction more or less in terms of the prayers in the plaint. At first the applicant obtained such reliefs on an *ex parte* basis. Eventually, on 31 July 2003, Mwera J granted the prayers sought whose effects were virtually to shut out the respondent from participating in the running and management of the applicant. The respondent being dissatisfied with the orders made applied to this Court under rule 5(2)(*b*) of the Rules for stay orders pending the hearing and determination of his intended appeal.

In its ruling dated 3 October 2003, this Court differently constituted stated:

> "We are not called upon at this stage, and indeed it would be wrong if we decided the issues now. We have to decide if the intended appeal is an arguable one. It is arguable at least to the extent that the removal of the applicant from the two positions he held could have been in contravention of the provisions of the Companies Act (Chapter 486), Laws of Kenya (the Act). Were the provisions of section 140 of the Act complied with? Was the notice of the proposed resolution given by the correct entity and was the applicant removed after due timeous notice? We are unable to say that these issues are not arguable."

As regards the shops the Court held:

> "We have considerable anxiety as regards the shops. We cannot say for certain who was the owner/occupant of the shops. For the last seven months the shops are run by the company of which the applicant is a non-executive chairman and director and 40% shareholder. We would not at this stage wish to disturb the *status quo* now existing. We order however that the accounts in relation to shop business to be supplied to the applicant's advocates quarterly beginning 1 December 2003. We take this particular attitude in regard to shops as matter of abundant caution knowing that the applicant as an individual is the largest shareholder in the company."

The Court then reinstated the respondent as non-executive chairman and director of the applicant company.

It is manifestly clear from the above ruling that the decision of the Court was based on the principles applicable to motions or applications under rule 5(2)(*b*) of the Rules which empowers the Court in the exercise of its original jurisdiction pending appeal to order a stay of any further proceedings. It must follow, therefore, that any decision of the Court in that respect is interlocutory and does not necessarily bind the Court hearing the appeal in its determination, or, the superior Court when exercising its jurisdiction on hearing the suit. Moreover, the Court stated clearly in the ruling that it was only concerned with whether there was an arguable appeal and if it would be rendered nugatory in the event of success. With respect, we think that the suggestion by Mr *Gautama* that this Court in its ruling gave "judgment" which binds the superior Court is erroneous and without any basis in law.

Mr *Gautama* further submitted that a ruling could be recalled, varied and rescinded provided that the orders have not been perfected. He argued, therefore, that we had jurisdiction to entertain the application which the applicant had lodged. We reiterate that the Court has always refused invitations to review, vary or rescind its own decisions except so as to give effect to its intention at the time the decision was made for to depart from this rule would

be a most dangerous course in that it would open the doors to all and sundry to challenge the correctness of the decisions of this Court on the basis of arguments thought of long after the judgment or decision was delivered or made. It matters not whether the judgment or ruling has been perfected or not. See *Lakhamshi Brothers Ltd v Rajah and Sons* [1996] EA 313 and *Somani's v Shirinkhanu (No. 2)* [1971] EA 19. The only exception, of course, is where the applicant has been wrongly deprived of the opportunity of presenting his argument on any particular point, which might lead to the proceedings being held to be null and void, a consideration which, has presented itself in the latter authority, but, is absent in the matter now before us.

Is rule 35(1) of the Rules of any assistance to the applicant? We do not think so because, with respect, no clerical or arithmetical mistake in the decision or any error arising therein from accidental slip or omission has been shown to us to justify correction of the ruling.

Though we agree with Mr *Gautama* that it is the duty of the Court to see that no injustice is occasioned to a litigant, at the same time we reiterate that it is to be remembered that a Court has no inherent power to do that which is prohibited by law. Thus, a Court has no power after the judgment or the ruling is signed to alter or add to it, as to do so would be in direct contravention of the provisions of Order XX, rule 3 of the Civil Procedure Rules.

At the moment this Court is the final Court on the land. Where an issue has been determined by a decision of the Court, that decision should definitively determine the issue as between those who were party to the litigation. The reason for this general approach is that public policy demands that the outcome of litigation should be final and that litigation should not unnecessarily be prolonged. This is the reason why limits have been placed on the rights of citizens to open or reopen disputes. The law also recognises that any determination of disputable fact may be imperfect well knowing that humans err. In *Ladd v Marshal* [1954] 3 All ER 145 Lord Wilberforce said:

> "But there are cases where the certainty of justice prevails over the possibility of truth (I do not say that this is such a case), and these are cases where the law insists on finality. For a policy of closure to be compatible with justice, it must be attended with safeguards: so the law allows appeals, so the law, exceptionally, allows appeals out of time: so the law still more exceptionally allow judgments to be attacked on the ground of fraud: so limitation period may, exceptionally be extended. But these are exceptions to a general rule of high public importance and as all the cases show, they are reserved for rare and limited cases, where the facts justifying them can be strictly proved."

At the trial of a boundary dispute in *Taylor and another v Lawrence and another* [2002] 2 All ER 353 the Judge informed the parties that he had been a client of the claimants' solicitors but that it had been many years since he had instructed them. Nobody objected to his continuing to hear the trial. After judgment was given for the claimants, the defendants appealed on the ground, *inter alia*, that there was an appearance of bias because of the Judge's relationship with the claimants' solicitors. Before the hearing of the appeal, it was disclosed to the defendants that the Judge and his wife had used the services of the solicitors to amend their will the night before he had delivered judgment. The appeal was dismissed in January 2001. Subsequently, the defendants learned that the Judge had not paid for the services of the solicitors. The defendants applied to reopen

the appeal on the basis that the Judge had received a financial benefit from the solicitors which he had failed to disclose, and that the earlier appeal had been dismissed in ignorance of that fact. On the application, the Court of Appeal considered (i) whether it had power to reopen an appeal after it had given a final judgment and that judgment had been drawn up, and (ii) the circumstances that were capable of giving rise to the possibility of bias on the part of a judge.

The Court of Appeal held that it had a residual jurisdiction to reopen an appeal which it had already determined in order to avoid real injustice in exceptional circumstances. The Court had implicit powers to do that which was necessary to achieve the dual objectives of an appellate Court, namely to correct wrong decisions so as to ensure justice between the litigants involved, and to ensure public confidence in the administration of justice, not only by remedying wrong decisions, but also by clarifying and developing the law setting precedents. A Court had to have such powers in order to enforce its rules of practice, suppress any abuses of its process and defeat any attempted thwarting of its process. The residual jurisdiction to reopen appeals was linked to a discretion which enabled the Court of Appeal to confine its use to the cases in which it was appropriate for the jurisdiction to be exercised. There was a tension between a Court having such a residual jurisdiction and the need to have finality in litigation, such that it was necessary to have a procedure which would ensure that proceedings would only be reopened when there was a real requirement for that to happen. The need to maintain confidence in the administration of justice made it imperative that there should be a remedy in a case where bias had been established and that might justify the Court of Appeal in taking the exceptional course of reopening proceedings which it had already heard and determined. It should, however, be clearly established that a significant injustice had probably occurred and that there was no alternative effective remedy. The effect of reopening the appeal on others and the extent to which the complaining party was the author of his own misfortune would also be relevant considerations.

In our view, this is the correct approach for this Court to take into consideration whether it should recall, review or rescind its decision once judgment or ruling had been given. However, in the matter now before us, the applicant had not satisfied us that this is an appropriate case for such a residual jurisdiction to be exercised or that the ruling complained of was obtained by fraud or that there was no other remedy available to it. We hold, therefore, that the applicant has failed to meet the test laid down in the *Taylor* case (*supra*).

The present application raises the question of whether the Court of Appeal has jurisdiction to reopen an appeal (or indeed an application) if an appearance of bias can be demonstrated on the part of one of the members of the Bench that had determined the appeal. We think it does. The House of Lords held so in *Republic v Bow Street Metropolitan Stipendiary Magistrate ex parte Pinochet Ugate (No. 2)* [1999] 1 All ER 577.

Under section 77 of the Constitution, persons are accorded the right to a fair trial by an independent and impartial Court established by law. If bias is indeed established, there has been breach of natural justice. The need to maintain confidence in the administration of justice makes it imperative that there should be a remedy. The need for an effective remedy in such a case may justify this Court in taking the exceptional course of reopening proceedings which it had already

heard and determined. Of course we hasten to add that this jurisdiction should be exercised with utmost care knowing that this is the final Court in Kenya at the moment. The Court should do so only after it has first ascertained all the circumstances which have a bearing on the suggestion that the Judge was biased. It must then ask whether those circumstances would lead a fair-minded and informed observer to conclude that there was a real possibility, or a real danger, (the two being the same), that the Court was biased. See the speech of Lord Hope of Craighead in *Porter v Magil* [2002] 1 All ER 465.

In our view, the past relationship between Shah JA and the respondent cannot be regarded by a fair minded and informed observer as raising a possibility of bias nor was it capable of affecting the approach and the decision of the learned Judge. Moreover, full disclosure was made before the motion was called to hearing and the applicant unequivocally stated that it had no objection to the learned Judge presiding over the proceedings. It is instructive to note that the complaint was only resurrected after the applicant lost.

In the result, we sustain the preliminary objection. The application lodged in this Court on 6 October 2003 is hereby ordered struck out with costs.

For the applicant:
Mr S Gautama instructed by *Satish Gautama Adv*

For the respondent:
Mr Oraro

Mutunga v Republic
[2005] 1 EA 325 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	20 May 2005
Case Number:	175/01
Before:	Tunoi, O'kubasu and Waki JJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Children – Evidence – Principles to consider.

[2] Crime – Murder – Manslaughter – Evidence of children of tender years – Whether evidence of accused police officer who shot dead the deceased should have been considered.

[3] Evidence – Children – Principles to consider in assessing evidence of a child of tender years – Section 124 – Evidence Act (Chapter 80) – Section 19(1) – Oaths and Statutory Declarations Act (Chapter 15).

Editor's Summary

The appellant was a police officer who was convicted of murder. The prosecution evidence against him was tendered by three young boys, who would do casual work in the market and sleep nearby. The three boys and the deceased, one of their colleagues, had just watched a video until midnight when they were accosted by two police officers. Two of the boys ran away and two remained. The appellant shot one of the remaining boys, who died from the injury. The issue before the trial Court was the circumstances in which the appellant shot the deceased. The appellant contended that the killing had been

accidental and not intentional because he had not been familiar with the gun he used that night. However, prosecution evidence showed that the appellant had previously handled such a gun.

On appeal, the Court considered the propriety of reliance upon evidence of a child of tender years. For only one of the three young witnesses did the trial Court record disclose an observation by the Judge that the boy understood the nature of an oath.

Held – Evidence of a child of tender years, except in the case of a sexual offence, must be corroborated by other material evidence. Further, where a child of tender years tenders evidence in Court, the Court must first assure itself that the child understands the nature of an oath before administering an oath, otherwise the evidence should be received unsworn if the child understands the duty to tell the truth. *Nyasani s/o Gichana v Republic* [1958] EA 190, *Kibangeny Arap Kolil v Republic* [1959] EA 92, *Oloo s/o Gali v Republic* [1960] EA, *Kinyua v R* [2004] 1 KLR 256 followed.

Since there was a failure to strictly comply with the evidentiary requirements, the appellant's version of what took place should have been given due consideration. *Muhidini s/o Asumani v Republic* [1962] EA 383 followed. This would result in the Court giving the appellant the benefit of doubt and reducing his conviction from murder to manslaughter.

Cases referred in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Kibangeny Arap Kolil v Republic [1959] EA 92 – **F**

Kinyua v Republic [2004] 1 KLR 256 – **F**

Muhidini s/o Asumani v Republic [1962] EA 383 – **F**

Nyasani s/o Gichana v Republic [1958] EA 190 – **F**

Okeno v Republic [1972] EA 32

Oloo s/o Gal v Republic [1960] EA – **F**

Judgment

Tunoi, O'kubasu and Waki JJA: The appellant, John Wambua Mutunga, was convicted of murder by the superior Court (Juma J) on 24 July 2001 and sentenced to death. The particulars of the offence were that on 25 June 1998 at Mukuyu market in Muranga District of the Central Province the appellant murdered Peter Machaaga Gatimu.

The case against the appellant was mainly based on the evidence of three witnesses; Stephen Mwangi (PW3), John Hungu (PW7) and Patrick Njuguna (PW10). These were young boys who were with the deceased Peter Machaaga Gatimu when the incident took place. The three boys stated before the trial Court that they were staying at Mukuyu market where they used to do casual work, cleaning shops and butcheries. They used to sleep outside the shops at the market. According to the evidence of these young boys it was on the evening of 24 June 1998 when the group went to the video shop to watch a football match. The match ended at about midnight and they went to where

they used to sleep outside the shops. While outside the two shops (Father Gitonga's shop and Dicks Enterprises), two police officers appeared. Stephen Mwangi (PW3), Patrick Njuguna (PW10) and Dennis Karanja (not a witness) ran away leaving behind John Irungu (PW7) and the deceased. One of the police officers had a gun and he is the one who shot the deceased in the head. As a result of this incident Police Constable Jane Ndungu (PW11) accompanied by Police Constable Kanja to the scene where they found the body of the deceased. Postmortem examination on the body of the deceased was conducted by Dr Paul Mbalu (PW9) who formed the opinion that the deceased died of head injury consistent with gunshot. The appellant was arrested and charged with murder.

When put to his defence the appellant admitted killing the deceased. It was the appellant's defence that the killing was accidental as he was not familiar with the gun that he had that night.

From the evidence on record there can be no dispute that the deceased died as a result of a gunshot during the early hours of 25 June 1998 when he was outside some shops at Mukuyu market. It is also not in dispute that it was the appellant who shot the deceased. The appellant was a police officer on duty when this incident took place. The issue before the trial Court was under what circumstances the appellant shot the deceased. As already indicated the case against the appellant was based mainly on the evidence of the three boys (PW3, PW7 and PW10) who were with the deceased. The three boys gave their own version as to what happened while the appellant gave his own version. The learned Judge of the superior Court appreciated this fact when in the course of his judgment he stated as follows:

> "The accused in his evidence admitted killing the deceased. The issue for determination is whether the killing was intentional or accidental. The accused has contended that it was accidental because he was not familiar with the gun he had that night. It was only the second time he was ever handling that type of gun. The prosecution contends that the killing was intentional and relies on the evidence of the eye witnesses."

The learned Judge dealt with other aspects of the case like attempted cover up of the offence by some of the police officers, what the assessors stated to him and finally came to the conclusion that the appellant was guilty as charged and hence convicted him of murder. In convicting the appellant the learned Judge stated:

> "The accused was telling a lie when he said that he had only handled the type of gun once before that eventful night. The Arms Movement Register that was produced in evidence shows that the accused had been issued with SHE machine gun on various occasions before the day of the shooting. He even used one after the shooting.
>
> I agree with the assessors that the accused is guilty of murder. He deliberately shot Peter Machaaga Gatimu without good cause. I find him guilty as charged and I convict him accordingly."

When this appeal came up for hearing before us on 16 May 2005, Mr Wanjohi *Mburu*, the learned counsel for the appellant confined himself to two grounds of appeal in his supplementary memorandum of appeal. The two grounds were essentially to the effect that the learned Judge erred in law in convicting the appellant of murder while there was no proof of malice aforethought and secondly, the learned Judge erred in law in failing to accord the appellant the benefit of doubt in view of inconsistent evidence tendered by the prosecution.

This being a first appeal to this Court, we are duty bound to review the evidence and re-evaluate the same so that we may come to our own conclusion and decide whether the evidence on record supports the conviction of the appellant, but as we do so we must give allowance to the fact that we have neither seen nor heard the witnesses – see *Okeno v Republic* [1972] EA 32.

From the recorded evidence the incident of shooting took place during the early hours of 25 June 1998 at Mukuyu market in Muranga District. There was evidence from two night watchmen John Gichuiri Warui (PW1) and Andrew Kabena Wiganjo (PW2) who were guarding vehicles at that market to the effect that shortly after 12:30am, two people had appeared flashing torches and when PW1 asked them what they wanted they beckoned him to draw nearer. PW1 decided to blow his whistle and the two men ran into a maize plantation. As a result of this whistle blowing by PW1 the appellant and his colleague who were at a nearby road block came to answer the distress call. The two police officers then informed PW1 that should the thieves come again he should not blow the whistle but call them. It was immediately after this incident that the appellant and his colleague confronted the young boys ending up in the shooting of the deceased.

As already stated earlier the evidence against the appellant was based on the testimony of three young boys – PW3, PW1 and PW10. According to Waiganjo (PW2) he heard gunshots and then saw street boys running towards him. Anthony Joseph Mwangi (PW4) the owner of Dicks Enterprises testified to the effect that street boys used to sleep on the verandah of his shop. It is to be remembered that the young boys had told the trial Court that they were sleeping on the verandah of Dicks Enterprises shop. Dr Paul Mbalu (PW9) who conducted a postmortem examination on the body of the deceased testified the deceased was about 14 years old. Taking the evidence of these witnesses (PW2, PW3, PW4, PW7 and PW10) together what emerges is that there was a confrontation between the two police officers (the appellant and his colleague) and the street boys. The record shows that Patrick Njuguna (PW10) was aged 15 years. Indeed the learned Judge made the following observation when taking his evidence:

> "Court: Patrick understands the nature of the oath and is intelligent enough to be sworn. Both counsels agree."

That was recorded in respect of Patrick Njuguna (PW10). But nothing special is recorded in respect of Stephen Mwangi (PW3) and John Irungu (PW7) who were with PW10 and the deceased. From the record of the trial Court the three eye-witnesses (PW3, PW7 and PW10) were street boys and although nothing specific was said about their respective ages what emerges is that these were young children. Section 124 of Evidence Act (Chapter 80) Laws of Kenya provides:

> "Notwithstanding the provisions of section 19 of the Oaths and Statutory Declaration Act, where the evidence of a child of tender years is admitted in accordance with that section on behalf of the prosecution in proceedings against any person for an offence the accused shall not be liable to be convicted on such evidence unless it is corroborated by other material evidence in support thereof implicating him.
>
> Provided that where in a criminal case involving a sexual offence the only evidence is that of a child of tender years who is an alleged victim of the offence, the Court shall receive the evidence of the child and proceed to convict the accused person, if, for reasons to be recorded in the proceedings the Court is satisfied that the child is telling the truth."

The proviso to section 124 of the Evidence Act is a recent amendment inserted by section 103 of the Criminal Law (Amendment) Act of 2003 which relates to sexual offences. Needless to say, this appeal does not relate to a sexual offence.

The basic statutory proviso relating to the evidence of children of tender years is to be found in section 19(1) of the Oaths and Statutory Declarations Act (Chapter 15) Laws of Kenya, which says:

> "19(1) Where, in any proceedings before any Court or person having by law or consent of parties authority to receive evidence, any child of tender years called as a witness does not, in the opinion of the Court, or such person as aforesaid, understand the nature of an oath, his evidence may be received, though not given upon oath, if, in the opinion of the Court, or such person as aforesaid, he is possessed of sufficient intelligent (*sic*) to justify the reception of the evidence, and understands the duty of speaking the truth, and his evidence in any proceedings against any person for any offence, though not given on oath, but otherwise taken and reduced in writing in accordance with the provisions of section 233 of the Criminal Procedure Code, shall be deemed to be a deposition within the meaning of that section."

The former Court of Appeal for Eastern Africa, had occasion to deal with the section in a number of cases the most outstanding ones being:

(*a*) *Nyasani s/o Gichana v Republic* [1958] EA 190.

(*b*) *Kibangeny Arap Kolil v Republic* [1959] EA 92.

(*c*) *Oloo s/o Gal v Republic* [1960] EA.

In *Nyasani s/o Gichana v Republic* (*supra*) this is what the Court said after quoting verbatim section 19(1) of the Oaths and Statutory Declarations Act:

> "It is clearly the duty of the Court under that section to ascertain, first whether a child tendered as witness understands the nature of an oath, and if the finding of this question is in the negative, to satisfy itself that the child is possessed of sufficient intelligence to justify the reception of the evidence and understands the duty of speaking the truth."

In the case of *Kibangeny Arap Kolil v Republic* (*supra*) this is what the Court said after quoting earlier English decisions:

> "In the present case the learned trial Judge, so far as appears from the record, made no such investigation before affirming either of the two boys witness (*sic*). Such an investigation need not be a lengthy one, but it must be made and, when made, the trial Judge ought to record it.
>
> The investigation should precede the swearing and the evidence and should be directed to the particular question whether the child understands the nature of an oath rather than to the question of his general intelligence."

The passages we have quoted from *Nyasani s/o Gichana* (*supra*) and *Kibangeny Arap Kolil* (*supra*) deal with procedure which a trial Court should follow when receiving evidence of a child of tender years. This procedure was emphasised in the recent decision of this Court in *Kinyua v Republic* [2004] 1 KLR 256 at 265 where this Court said:

> "There are two steps to be borne in mind. The first step is for the Court to ascertain whether the child understands the nature of an oath. An investigation to this effect must be done by the Court immediately the child – witness appears in Court. The investigation need not be a long one but it has to be done and has to be directed to the particular question whether the child understands the nature of an oath. If the answer to this question is in the affirmative, then, the Court proceeds to swear or affirm the child and to take his or her evidence upon oath. On the other hand, if the child – witness does not understand the nature of an oath, he or she is not necessarily

> disqualified from giving evidence. The second step then follows. The Court may still receive his evidence if the Court is satisfied, upon investigation, that he is possessed of sufficient intelligence and understands the duty of speaking the truth. Again investigation in this respect need not be a long one but it must be done and when done, it must appear on record. Some basic but elementary questions may be asked of the child to assess the level of his intelligence and whether he understands the duty of speaking the truth or otherwise. Where the Court is so satisfied, then, the Court will proceed to record unsworn evidence from the child – witness."

We now turn to the record before us. While a feeble attempt was made to ascertain the capability of Patrick Njuguna (PW10) the record is silent in respect of the other two boys – Stephen Mwangi (PW3) and John Irungu (PW7). That was an error on the part of the trial Court. The submissions of Mr *Mburu* for the appellant must have been based on the fact that the trial Judge failed to follow the proper procedure in recording the evidence of the young boys. He relied on the decision of the predecessor of the Court in *Muhidini s/o Asumani v Republic* [1962] EA 383 in which it was held, *inter alia*:

> "(i) The trial Judge ought to have recorded his investigation into the question whether the evidence of Robert should have been received on oath or affirmation, or unsworn. In pursuance of section 152(3) of the Criminal Procedure Code.
>
> (iii) The trial Judge had failed to direct either the assessors or himself on the risk of acting on the uncorroborated evidence of a child even though such evidence was on oath."

In view of the foregoing it is our considered opinion that the appellant's version of what took place ought to have been given due consideration since the only other material version was that of the young boys whose evidence was not received in strict compliance with statutory provision.

Before we conclude this judgment we wish to comment on what appears to have been prejudicial remarks by the prosecutor in his opening remarks. According to the record the trial of the appellant commenced on 28 June 2000, when one Mr *Oluoch* who appeared for the State addressed the trial Court as follows:

> "Accused police officer at time (*sic*). Deceased a street boys going home when accused shot the deceased. No reason to shoot deceased who was 14 years. It was one am sticks (2) of cigarettes and miraa. Accused had homicidal tendencies. Attempts to cover up the offence incriminating exhibits planted at scene to raise defence of self defence."

The above was stated in the presence of the assessors. This was clearly prejudicial to the appellant as it would appear that the assessors were being told that the appellant was a man of homicidal tendencies. We considered the entire record but nowhere did we find any evidence to show that the appellant was a man of homicidal tendencies. We think, those opening remarks must have influenced the assessors in their verdict. No wonder each returned a verdict of guilty.

Having so said, we must bring this judgment to its conclusion. We have now considered the evidence before the trial Court and having evaluated the same find that as the version by the appellant was not given due consideration the same ought to have been considered as against the only eyewitness account of the young boys. Having regard to what we have said about the reception of the evidence of the young boys and as the appellant admitted shooting the deceased

accidentally the trial Court should have given the appellant the benefit of doubt by finding him guilty of manslaughter as clearly there was no credible evidence on which to convict the appellant on a charge of murder.

In view of the foregoing, we allow this appeal, quash the conviction and set aside the sentence of death passed on the appellant. We find the appellant guilty of manslaughter contrary to section 202 as read with section 205 of the Penal Code and convict him accordingly. Taking into account all the circumstances of the case we sentence the appellant to 10 years' imprisonment and order that the sentence should run from the date he was convicted of murder by the High Court that is from 24 July 2001. It is so ordered.

For the appellant:
Mr Wanjohi Mburu instructed by *Mathenge & Muchemi Adv*

For the respondent:
Mr Oluoch instructed by Attorney-General

National Cereal and Produce Board v Dubai Bank Kenya Ltd
[2005] 1 EA 331 (CCK)

Division:	Milimani Commercial Courts of Kenya at Nairobi
Date of ruling:	23 May 2005
Case Number:	32/05
Before:	Emukule J
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Civil procedure – Amended plaint – Failure to endorse rule or order under which amendment was made – Whether this failure amounts to a fatal defect – Whether amended plaint would be struck out.

Editor's Summary

An issue arose whether an amended plaint must contain an endorsement of the rule or order under which the amendment was made and whether failure to contain such an endorsement was a fatal defect. In a string of rulings, the High Court had held that such failure would constitute a fatal defect. The applicant sought to amend his amended plaint after discovering that it had omitted the required endorsement.

Held – Under the Civil Procedure Rules, an amended pleading shall be endorsed with the date of the amendment and either the date of the order allowing the amendment or if no order has been made the number of the rule in pursuance of which the amendment was made. Such failure has previously been held, upon applications to strike out, to be fatal to the amended plaint. *Mutuku and others v United Insurance Ltd* [2002] 1 KLR 251; *Stockman Rozen Kenya Ltd v Da Gama Rose Group Ltd* [2002] 1

KLR 572; *Giro Commercial Bank Ltd v Sam Nyamweya* High Court civil case number 1391 of 2000 considered, distinguished and disapproved.

However, in this case the applicant was filing an application to amend his plaint. Once an irregularity is discovered in an application, the proper procedure is for the offending party to seize the opportunity to apply for amendment

once the irregularity has been pointed out. *Agip Kenya Limited v Komu* [2000] LLR 917 (HCK) followed. The irregularity of failure to endorse the order or the rule allowing amendment is not fundamental nor does it in any way prejudice the defendant. *Eastern Bakery v Castelino* [1958] EA 461; *DT Dobie v Muchina* [1982] KLR 1 followed and applied.

Amendment allowed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Agip Kenya Limited v Komu [2000] LLR 917 (HCK) – **F**

DT Dobie and Company Kenya Limited v Muchina [1982] KLR 1 – **F** and **AP**

Eastern Bakery v Castelion [1958] EA 461 – **F** and **AP**

Giro Commercial Bank Limited v Sam Nyamweya civil case number 1391 of 2000 – **C, D** and **DA**

Mutuku and three others v United Insurance Company Limited [2002] 1 KLR 251 – **C, D** and **DA**

Stockman Rozen Kenya Limited v Da Gama Rose Group of Companies Limited [2002]1 KLR 572 – **C, D** and **DA**

United Kingdom

Macfoy v United African Limited [1961] 2 All ER 1169

Ruling

Emukule J: By an application dated 2 April 2005, the plaintiff herein seeks to re-amend its plaint in the manner set out in the draft re-amended. Plaint annexed to the supporting affidavit of Nyawara Otieno Joshua and the grounds set out in the application.

By his affidavit, Nyawara Otieno Joshua sworn on 3 March 2005, learned counsel for the plaintiff depones that he inadvertently omitted to comply with the dictates of Order VIA, rule 7(1) which requires the applicant to endorse on the plaint the rule under which the amendment was made in the amended plaint. Counsel depones that this was an error on the part of the advocate, and that counsel should be given leave to effect the amendment to bring the amended plaint within the compliance of the rules by way of a re-amended plaint.

Mr *Kiplangat*, learned counsel for the defendant objected to the application to the amendment, and filed both grounds of opposition dated 14 May 2005 as well as raised a preliminary objection dated 18 April 2005. I ruled that the preliminary objection be argued together with the grounds of opposition. The defendant's objection and grounds of opposition are based upon what interpretation should be conferred upon the provision of Order VIA, rule 7(1) and (2) of the Civil Procedure Rules. The said rules require that every pleading and other documents amended under this order shall be endorsed with the date of

the amendment and either the date of the order allowing the amendment or, if no order has been made, the number of the rule in pursuance of which the amendment was made (7(1)), and all amendments shall be shown by striking out in red ink all deleted words, in such manner as to leave them legible, and by underlining in red ink all added words.

Learned counsel for the defendant submitted that these provisions are mandatory in nature, and failure to comply with them renders the amended plaint herein incurably defective and an incurable defect is incapable of being cured even by amendment. Counsel relied upon the cases of *Mutuku and three others v United Insurance Company Limited* [2002] 1 KLR 251 (a decision of Mwera J), *Stockman Rozen Kenya Limited v Da Gama Rose Group of Companies Limited* [2002]1 KLR 572, *Macfoy v United African Limited* [1961] 2 All ER 1169 and the unreported case of *Giro Commercial Bank Limited v Sam Nyamweya* (High Court civil case number 1391 of 2000) all of which cases held that failure by the plaintiff to endorse on the amended plaint the number of the rule in pursuance of which the amendment was made, was fatal and the amended plaint would be struck out. The other point to note about those cases is that they were decided upon pursuant to applications to strike out.

The current application is different. The defendant seeks to strike out the plaintiff's application to amend that amended plaint which the plaintiff or as in this case the plaintiff's advocate quickly discovered was non-compliant with the provision of Order VIA, rule 7(1). Should the defendant be allowed to have the plaintiff's entire suit struck out even when the plaintiff acknowledges an inadvertent omission which it sets to correct? The defendant's counsel says that the plaintiff's amendment should not be allowed because it would prejudice the defendant whose defence was predicated upon that omission. I do not think so. Firstly the defendant has an opportunity to amend his defence, because that would be his vested right once an order is made allowing amendment of the plaint.

Secondly, there are other reasons for allowing an amendment such as the one sought by the plaintiff. I think counsel and the Courts are too much pre-occupied with technicalities of procedure, and we have elevated some of these rules to a level where they have become mistresses and no longer handmaidens of justice. We are no longer ruling on the substance of justice, but on mere technicalities of procedure which often even the most experienced of counsel tend to overlook, and quite often inadvertently.

Indeed I would endorse and myself agree with the view expressed by my brother Visram J in *Agip Kenya Limited v Komu* [2000] LLR 917 (HCK), that once an irregularity is discovered in an application the proper procedure is for the offending party to seize the opportunity to apply for amendment once the irregularity has been pointed out, or as in case, the plaintiff has itself through its advocate realised the omission and the irregularity. The irregularity herein is not in my view fundamental nor does it in any way prejudice the defendant.

A long line of authorities stretching from the case of *Eastern Bakery v Castelion* [1958] EA 461, provide that amendments to pleadings sought before the hearing should be freely allowed if they can be made without injustice to the other side, and there is no injustice if the other side can be compensated by costs to the case of *DT Dobie and Company Kenya Limited v Muchina* [1982] KLR 1, where it was held *inter alia* in obiter (per Madan JA):

> ". . . the Court should aim at sustaining rather than terminating a suit. A suit should only be struck out if it is so weak that it is beyond redemption and incurable by amendment. As long as a suit can be injected with life by amendment, it could not be struck out."

Adverting therefore to the application at hand, the operative provisions is not rule 7(1), but rule 5(1) which empowers the Court either for the purpose of determining the real question in controversy between the parties or of any defect or error in any proceedings, either of its own motion or on application of any party to order any document to be amended in such a manner as it directs and on such terms as to costs or otherwise as are just.

The amendment sought here is not to bring out any question in controversy between the parties, but rather to correct a mechanistic defect brought about by the requirement or rule 7(1) of Order VIA. There can be no prejudice upon the defendant for allowing such an amendment.

In the circumstances therefore, I dismiss the defendant's preliminary objection dated and filed on 18 April 2005. I grant the plaintiff's application dated 2 March 2005 in terms of prayer one, but the plaintiff shall pay the defendant's costs occasioned by the said application. It is so ordered. The plaintiff will also pay the necessary Court filing fees.

For the plaintiff:
Information not available

For the defendant:
Mr Kiplangat

Ndiritu v Ropkoi and another
[2005] 1 EA 334 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	10 December 2004
Case Number:	345/00
Before:	O'kubasu, Githinji and Waki JJA
Sourced by:	HA Ongicho
Summarised by:	C Kanjama

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[1] Evidence – Burden of proof – Evidentiary burden to prove alleged facts – Conflict of eye-witness testimony as to the road accident – Evidence of traffic police not called by either side – Whether defendant can escape finding of contributory negligence on account of plaintiff's burden of proof – Whether on basis of sketchy evidence of both sides Court can make independent findings of fact – Sections 107(1), 109 and 112 – Evidence Act (Chapter 80).

[2] Tort – Negligence – Road accident – Fatal injury – Evidence of both parties insufficient – Collision – Whether trial Judge was right to dismiss the entire claim – Whether on re-consideration of the evidence the appellant would be entitled to a portion of the claim for contributory negligence.

Editor's Summary

The appellant filed suit on behalf of the estate of the deceased, who died in a road collision with the second respondent's vehicle driven by the first respondent. The deceased had been riding a motorcycle at the time of the accident.

The appellant called one eye-witness of the accident, who was travelling as a passenger in a vehicle just behind the respondent's vehicle. The respondents called a co-driver of the first respondent. The appellant's evidence was that the respondent's lorry was occupying the middle of the road as it negotiated a bend at the time of the collision. The respondent's evidence was that the appellant's motorcycle hit the back wheel of the lorry as it was completing an overtaking manoeuvre.

The trial Judge disbelieved the appellant's evidence and preferred the respondent's evidence. He therefore dismissed the claim, but proceeded to make an assessment of the quantum that would have been payable had the appellant succeeded. The appellant was aggrieved and filed this appeal.

Held – A first appellate Court is not bound by the findings of fact made by the trial Court and is under a duty to re-evaluate the evidence and reach its own conclusions. The appellate Court should however be slow to differ with the trial Judge and should only do so with caution. *Peters v Sunday Post Ltd* [1958] EA 424 followed. The Court will however interfere where the findings of fact are based on no evidence, or on a misapprehension of evidence, or where it is shown that the judge acted on wrong principles in arriving at the finding he did. *Mwangi and another v Wambugu* [1983] 2 KCA 100 followed.

In this case, the trial Judge was entitled to believe the evidence of one eye-witness as he did; however, he did not state why he did not believe the other witness. He did not evaluate the other evidence other than simply reproducing it. Both parties did not sufficiently prove their case due to failure to call traffic police evidence which was available. The burden of proof was with the plaintiff to discharge the burden of proof. There was however also the evidential burden cast upon both parties to prove any particular fact which they desired the Court to believe in its existence.

From the evidence on record, the Court would conclude that both parties were liable for contributory negligence at the ratio 50/50. They each failed to exercise the reasonable degree of care and skill reasonably expected of a person who drives a vehicle on a public highway.

Appeal allowed. Liability apportioned at 50% and quantum of damages assessed by trial Court applied.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Mwangi and another v Wambugu [1983] 2 KCA 100 – **F**

Peters v Sunday Post Limited [1958] EA 424 – **F**

Judgment

O'kubasu, Githinji and Waki JJA: This is a first appeal from the judgment of Juma J delivered at Nyeri on 9 October 2000 in a road traffic accident case

in which a heavy duty lorry collided with a motorcycle, killing the motorcyclist. The widow of the motorcyclist sued the driver and owner of the lorry for damages but the suit was dismissed, hence this appeal.

George Ndiritu Kariamburi (hereinafter "the deceased") a 34 year old, was employed by Messrs Kenya Power and Lighting Company Limited as a meter reader in Nyeri area and was assigned a motorcycle for that purpose. He lived with his wife and two children at Mweiga. On 16 March 1998 at about 5:30pm the deceased was heading to Mweiga from Nyeri direction and was going uphill in a section of the road that has blind corners. At the same time, three motor vehicles were negotiating the same corner to go downhill from the opposite direction, Mweiga towards Nyeri. One was a matatu vehicle, followed by a heavy duty lorry carrying camping equipment and 11 people on board. It was m/v registration KZF 213 owned by Messrs Four by Four Safaris Company Limited (hereinafter "the defendant") and driven by its authorised driver Joseph Kiprono Ropkoi, who died before the suit was heard. Seated in the cabin with the driver and another person was Mose Kenyatta Chogo (Mose) an employee of the defendant who was the only witness called on behalf of the defendant. Behind the defendant's lorry and negotiating the same corner was another lorry, a canter in which Geoffrey Iya Mwangi (Geoffrey) a matatu conductor was travelling as a passenger. He testified for the plaintiff and is the one who walked from the scene to inform the family of the deceased, whom he knew.

Although the police were informed about the accident and arrived at the scene at 11:00pm there was no evidence tendered from the police or any sketch plan produced to show the nature of the road and the point of impact. The driver of the lorry was however not prosecuted. The only eye-witness account therefore came from the two witnesses who were travelling in the same direction when the accident occurred.

It was the recollection of Geoffrey that the three vehicles were in the following order as they negotiated the corner to go downhill towards Nyeri – the matatu was ahead and had cleared the corner and started descending; the defendant's lorry was right in the middle of the road as it did so; the canter in which he sat in front was right behind the defendant's lorry. They were all travelling at a moderate speed. At that point he saw a motorcyclist in the opposite direction uphill. The motorcycle hit the rear wheels of the defendant's lorry and the cyclist was thrown on the road. He died instantly. He wore no helmet. Behind the motorcycle, but at a distance, were other vehicles going uphill.

From where he sat in the defendant's lorry Mose had his own observations. They were negotiating this corner which was the third along that road. Ahead of them on the other side of the road were a lorry and a matatu going uphill approaching the corner. Suddenly he saw a motorcycle with its headlights on overtaking those vehicles. Their driver Kiprono swerved to the left but then he heard a sudden bang at the rear of the lorry. The driver moved to the side of the road and they came out only to find a dead man and a motorcycle on the road. There was no damage to their lorry since the motorcyclist collided with the rear tyre. He could not recall seeing any other vehicles ahead or behind them shortly before the accident although, unlike Geoffrey, he recalls seeing a bunch of miraa and wrapped meat which he said the deceased had. He also smelt alcohol on the deceased.

That is all the evidence the learned Judge of the superior Court had to choose from to decide on liability for the accident. The only other evidence came from the widow of the deceased who had filed the suit and was mainly directed at assessment of damages once liability was determined. The Judge chose Mose's version of the story because "he impressed me as a truthful witness," and because:

> "He was clear in his mind that the lorry in which he was travelling in was on its side of the road. It was heavy and because of the several corners, it was going at a slow speed. The fact that the place has many corners is not disputed. He also testified that another lorry followed by a matatu was travelling from the opposite side and thus their driver had to keep to his side of the road. The other vehicles were travelling uphill as they must have been travelling at a slow speed and that is why the motorcyclist tried to overtake them."

He found the deceased was travelling at a high speed and failed to keep a proper look out, thus causing his own death. The Judge declined to apportion negligence despite readiness of counsel for the defendants entertaining such a possibility in his submissions and proposing a contribution of 30% on the part of the defendant. He proceeded to assess damages, as he was bound to, in the event that the plaintiff had succeeded in her claim as follows:

(*a*)	Loss of expectation of life	KShs100 000
(*b*)	Damages under the Fatal Accident Act	KShs2 081 376
(*c*)	Police abstract	KShs100
	Total	KShs2 181 476

That assessment is not challenged.

As a first appellate Court we are not bound by the findings of fact made by the superior Court and we are under a duty to re-evaluate such evidence and reach our own conclusions. We should however be slow to differ with the trial Judge and the caution is always appropriate as O'Connor P stated in *Peters v Sunday Post Limited* [1958] EA 424 at 429:

> "It is a strong thing for an appellate Court to differ from the finding on a question of fact, of a judge who tried the case and who has had the advantage of seeing and hearing the witness."

This Court will however interfere where the finding is based on no evidence, or on a misapprehension of the evidence or the Judge is shown demonstrably to have acted on wrong principles in reaching the finding he did. See *Mwangi and another v Wambugu* [1983] 2 KCA 100.

We have carefully examined the evidence on record from the two eye-witnesses but are not satisfied that the learned Judge made a balanced view of it. He did, as he was entitled to believe the evidence of one of them but he did not state why he could not believe the other eye-witness. Indeed he did not refer to that evidence at all other than simply reproducing it. It was the evidence of Geoffrey that the defendant's lorry which was ahead of him and was negotiating a corner to go downhill was occupying the middle of the road shortly before the collision occurred. Mose appeared to lend credence to that evidence when he says the driver of the defendant's lorry moved it to this left but there was still a collision with the rear of the lorry. Mose could not see the rear of the lorry as he was seated in the front cabin. Geoffrey who was behind them was in a better position to see the rear of the lorry occupying the middle of the road. Geoffrey said the other vehicles following the motorcycle were at a

distance while Mose said the motorcyclist was sandwiched between the two lorries as the collision occurred since he could not fully overtake the lorry and move back to his lane. The probability is that Geoffrey was right otherwise the other lorry would have run over the motorcyclist soon after the collision. Both witnesses agree that the motorcyclist was going uphill while the defendant's lorry was about to go downhill. We think the speed of the motorcycle was exaggerated while that of the lorry was minimised without clear evidence. Mose did not testify on the point of impact. Geoffrey said it was in the middle of the road. We think both parties did themselves disservice by failing to call traffic police evidence which no one said was impossible to obtain. That way the point of impact would have been easily verified from the sketch and measurements taken on the road. It would have confirmed whether as Geoffrey stated the defendant's lorry was in the middle of the road or on the side of the road as claimed by Mose. It would have verified the story by Mose which no one else saw that the deceased smelt of alcohol and had miraa with him. In short, it would have corroborated the two stories one way or the other for the Court to weigh the balance fairly.

It was submitted by Mr *Mburu*, learned counsel for the respondents that the onus was on the appellant to prove her case and it never shifted to the respondent. We agree with that proposition.

As a general proposition the legal burden of proof lies upon the party who invokes the aid of the law and substantially asserts the affirmative of the issue. That is the purport of section 107(1) of the Evidence Act (Chapter 80), which provides:

> "107(1) Whoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts must prove that those facts exist."

There is however the evidential burden that is cast upon any party of proving any particular fact which he desires the Court to believe in its existence. That is captured in sections 109 and 112 of the Act, thus:

> "109. The burden of proof as to any particular fact lies on the person who wishes the Court to believe in its existence, unless it is provided by any law that the proof of that fact shall lie on any particular person.
>
> 112. In civil proceedings, when any fact is especially within the knowledge of any party to those proceedings, the burden of proving or disproving that fact is upon him."

The two sections carry forward the often repeated evidential adage "he who asserts must prove."

We have looked at the pleadings on the both sides in this matter. The plaintiff asserted that the accident was solely caused by the negligence of the defendant's driver and gave particulars of such negligence which the defendants denied. The defendant also asserted that the accident was solely caused by the negligence of the motorcyclist and gave particulars of contributory negligence. Issue were subsequently joined on such pleadings. In the event each party was under a duty to prove their own assertions but they did not do a good job of it.

We have considered the submissions of both counsel, the authorities cited before us and we are persuaded by Mr *Mwangi* learned counsel for the appellant that we must interfere with the judgment of the superior Court. There is no doubt that an accident occurred between two vehicles on the Nyeri-Mweiga

road at the time stated by the two witnesses. In our assessment of the scanty evidence on record however both the lorry driver and the motorcyclist failed to exercise a degree of care and skill reasonably expected of a person driving a vehicle on a public highway. They were in our view equally to blame. We therefore apportion liability for the accident at 50/50.

It follows from that finding that the damages awarded which have not been challenged on appeal shall be apportioned in similar proportion. For the avoidance of doubt the damages were assessed at KShs2 181 476. The appellant is entitled to 50% of that figure which is KShs1 090 738 for which judgment is accordingly entered with interest thereon at Court rates from the date of judgment in the lower Court. The appeal is allowed to that extent. Each party will bear its own costs here and in Court below.

For the appellant:
Mr Mwangi

For the respondent:
Mr Mburu

Pattni v Ali and others
[2005] 1 EA 339 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of ruling:	4 March 2005
Case Number:	354/04
Before:	Tunoi, Githinji and Waki JJA
Sourced by:	LawAfrica
Summarised by:	E Ongoya

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[1] Civil procedure – Affidavit – Of party's advocate – Whether advocate can swear affidavit on behalf of a client.

[2] Civil procedure – Affidavit – Striking out affidavit – On ground that it is oppressive – What constitutes oppressive depositions – Order XVIII, rule 6 – Civil Procedure Rules.

Editor's Summary

The applicant filed an application under rule 5(2)(*c*) of the Court of Appeal Rules seeking an order of stay of judgment and proceedings pending the hearing and determination of an intended appeal when the application came up for hearing, the applicant took preliminary objections to the respondent's replying affidavit which was sworn by the respondent's advocate on record. The basis of the objection was that certain paragraphs in the affidavit were scandalous, irrelevant and oppressive and that the whole affidavit was also bad for being sworn by the advocate who was not a party to the proceedings. The respondent's case on the preliminary objections was that there was nothing in the rules of Court which prohibited an advocate from swearing an affidavit in his client's cause.

Held – Under Order XVIII, rule 3(1) of the Civil Procedure Rules, it is not permitted that a statement may be deponed to as being a fact when the source of that knowledge is information. *(Kenya Horticultural Exporters [1977] Limited v Papt* [1986] KLR 706 adopted).

There is no obligation on the deponent of an affidavit to distinguish what he swears to on knowledge and what on information and belief. The Court would itself examine the affidavit and determine from a clear reading of it, which averments emanate from what source. (*Standard Goods v Harakchand Mathu and Company* [1950] 17 EACA 99 disapproved; *Nandala v Father Lyding* [1963] EA 706 applied).

Where an affidavit contains averments of apparent importance in the proceedings but which transgress the requirements of Order XVIII, rule 3(1) of the Civil Procedure Rules, and in regard to which leave of Court has not been obtained, the retention of such averments in the affidavits contrary to the expressive within the meaning of rule 6 of Order XVIII (*Mayers and another v Akira Ranch Limited* [1974] EA 169 adopted).

There is no prohibition against an advocate who of his own knowledge can prove some facts to state them in an affidavit on behalf of his client. (*Kenya Horticultural Exporters [1977] Limited v Papt* [1986] KLR 706 followed).

Objection partly upheld.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Camille v Merali [1966] EA 411

Kenya Horticultural Exporters [1977] Ltd v Pape [1986] KLR 706 – **A** and **F**

Mayers and another v Akira Ranch Limited [1974] EA 169 – **A**

Nandala v Father Lyding [1963] EA 706 – **AP**

Standard Goods v Harackchand Nathu and Company [1950] 17 EACA 99 – **DA**

Ruling

Tunoi, Githinji and Waki JJA: There is an application before this Court filed under rule 5(2)(*b*) of our Rules, which came up for hearing on 8 February 2005. The application seeks an order of stay of the judgment of Honourable Mr Justice Mohammed Ibrahim delivered on 3 December 2004 and all proceedings in High Court civil case (Milimani Commercial Courts) number 418 of 1998 pending the hearing and determining of an intended appeal by the applicant.

Before it was heard however, learned counsel for the applicant, Mr Wambua *Kilonzo* raised preliminary objections relating to an affidavit in reply filed by the advocates on record for the respondents. This he can do orally under Order XVIII, rule 8 Civil Procedure Rules as with section 3 of the Appellate Jurisdiction Act (Chapter 9). We heard arguments of counsel on those objections and this ruling is therefore limited to those proceedings.

It is unnecessary, we think, for purposes of this ruling, to relate at length the history of this protracted dispute between the parties which in this application is covered in two Volumes running into 1050 pages. Suffice it to say that the applicant and the respondents have for the last seven years or so locked horns in legal and factual battles over the ownership of some duty free shops in this country. The parties are scattered in various parts of the world - the applicant is

resident in Kenya; the first respondent is resident in Dubai, in the United Arab Emirates; the second respondent (a limited liability company) is registered in Panama, and the third respondent (a limited liability company) is registered in the Isle of Man, United Kingdom. It would also appear that the same advocates, have been on record for the parties throughout: Messrs *Mugambi Imanyara and Company* for the applicant and Messrs *DP Kinyanjui and Company* for the respondents. They are all based in Kenya and have instructed Mr Wambua *Kilonzo* (hereinafter *Kilonzo*) and Honourable Paul Kibugi *Muite* (hereinafter *Muite*), respectively, as lead counsel.

Kilonzo is not happy with the affidavit in reply sworn on 31 January 2005 by *Muite*. It contains eight main paragraphs and nine subparagraphs. It is not the form of the affidavit he objects to. That would be curable under Order XVIII, rule 7 of the Civil Procedure Rules. It is the contents in the various paragraphs and sub-paragraphs that *Kilonzo* says are scandalous, irrelevant and oppressive. That would at once attract the censure of striking out under Order XVIII, rule 6 Civil Procedure Rules. The whole affidavit is also sworn by the advocate who is not a party to the proceedings as envisaged under rule 50(1) of this Court's Rules; that is to say, the "person served with a notice of motion." "Advocate" is defined under rule 2 and therefore under rule 25 he only has audience of the Court to argue his client's matter. *Muite* could only appear in that capacity. The whole affidavit was therefore for rejection. It was also for rejection because *Muite* could only swear to facts which he is able of his own knowledge to prove. Instead all he states are matters of hearsay. There was no explanation, *Kilonzo* submitted, as to why the first respondent or any representative of the other two respondents could not swear and file the replying affidavit even outside the jurisdiction of this Court. As it is, *Muite*, the advocate, had exposed himself to the provisions of Order XVIII, rule 2 which empowers the Court to order the attendance of any deponent for cross-examination. To illustrate and buttress his submissions, *Kilonzo* singled out the following paragraphs and sub-paragraphs of the affidavit and supplied the emphasis on his objections as underlined:

> "4. That in considering this stay application, I pray that this Honourable Court bears in mind the following history of High Court civil case number 418 of 1998.
>
> (*a*) The applicant, Kamlesh Mansukhlal Damji Pattni (hereinafter referred to as "KP") filed High Court civil case number 418 of 1998 in February of that year. On the same day that the plaint was filed, KP took out an *ex parte* chamber summons in which he sought the appointment of a receiver in respect of the defendants US$27 million investment in Kenya; the *duty free* complexes at Jomo Kenyatta International Airport, Nairobi and Moi International Airport, Mombasa. *Lady Justice Owuor granted the order prayed on the same day. With the stroke of a pen, the defendants were dispossessed of their said investment. Today, seven years later the defendants are still dispossessed of their said investment*.
>
> (*b*) In the said suit, KP claimed that six years previously, he had purchased all the shares in the third defendant from the first and second defendants. *It is incredible that a purchaser would part with the not inconsiderable sum of US$13,5 million which KP claims to have paid of (sic) the shares and then leave the business in the hands of the person from whom it was purchased to run it for his own account for six years*.

(*c*) In 1991/93, there was in force in Kenya a strict exchange control regime. The defendants were foreign investors who brought in hard currency and *it is unbelievable that they would accept the alleged purchase price of US$13,5 million in local currency as alleged by KP*.

(*d*) Nasir Abrahim Ali has consistently asserted that the sale document was a crude forgery. Investigations by the CID so found and forgery charges were laid against KP and his lawyer Bernard *Kalove*. *The forgery case was stopped by the orders of Lady Justice Aluoch under the then* Chief Justice *Chesoni*.

(*e*) *One of the terms of reference in the ongoing Goldenberg commission of inquiry set up by the President is to investigate the impact the Goldenberg affair has had in the administration of justice in Kenya and whether the Judiciary facilitated the expropriation of the defendants' investment as part of the cover up of the Goldenberg affair*.

(*f*) On the 14 November 2003, the High Court of Justice in the Isle of Man, United Kingdom, the country of the third defendant's incorporation delivered a judgment in which it held that in private international law, shares are REM. Accordingly only the country of the company's incorporation has jurisdiction to adjudicate a dispute regarding sale of such shares. The rationale for this principle of law in private international law is obvious: the register is kept in the companies registry of the country of incorporation. It is the company law of that country which governs the sale, transfer etc of the shares and other matters like annual returns. *A purchaser of shares of a foreign company would normally retain lawyers in the country of incorporation to ensure compliance with the country's laws and transfer of shares in the companies registry of that country and the issuance of fresh share certificates in the name of the purchaser. It is yet another oddity that KP would part with US$13,5 million without professional services of lawyers of the country of "WDF's" incorporation. In the alleged sale documentation, KP's lawyer in the US$13,5 million transaction is said to have been Bernard Kalove. At that time, Bernard Kalove was a junior employee in the firm of Wetangula and Company Advocates. He was not even an associate leave alone a partner in the firm. Mr Moses Wetangula has denied that his firm was ever instructed to handle the transaction. If indeed Bernard Kalove handled the transaction as alleged he must have been moonlighting. Again, it is incredible that any purchaser in this huge commercial transaction would engage a junior moonlighting lawyer to handle it. The High Court of Justice in the Isle of Man therefore held that the Kenya Courts did not have jurisdiction to adjudicate on share sale dispute and the judgment of the Honourable Mr Justice Mbaluto of 25 September was consequently a nullity. KP applied for a stay which was refused. The Court of Appeal of the Isle of Man dismissed KP's appeal as it did an application for stay. KP has now filed yet another appeal to the Privy Council*.

(*i*) KP immediately filed an application for stay in two huge Volumes in this Honourable Court. KP was insisting in his stay application that the constitutional reference be sent to the Chief Justice. When the stay application came up for arguments before this Honourable Court, KP withdrew the same. With a sigh of relief, the defendants expected that their application for review would now at long last be heard. When the defendants review application came up for hearing in the superior Court, KP confronted them with yet another application this time asking the Honourable Mr Justice Ibrahim to review his refusal to refer the constitutional reference to the Chief Justice. This application too was dismissed, whereupon KP again came to this Court with yet another stay application. It is important for this Honourable Court to note that in KP's earlier stay application, his argument was that if a stay was not granted the Honourable

Mr Justice Ibrahim would proceed to hear the constitutional reference alone. In the second stay application, it is the same point that was canvassed before this Honourable Court. I crave leave of this Court to refer this Court to its ruling on this second application, PK Tunoi JA, EM Githinji JA and JW Onyango Otieno Ag JA, delivered on 23 April 2004. The Court specifically held at 8 that in the public interest and to ensure certainty and uniformity in the procedure and Court this issue (that is as to whether there is any legal requirement or practice that a constitutional reference of necessity should be referred to the Chief Justice) was a matter that should be ventilated by his Honourable Court. KP has now filed a substantive appeal. If successful and as held by this Court in ruling, the hearing of the constitutional application by the Honourable Mr Justice Ibrahim will be set aside. By parity of reasoning, the hearing of the review application will be set aside in the event that any appeal succeeds; but it cannot be argued that the appeal will be rendered nugatory by the hearing of the review application.

It is also important for this Honourable Court to note that the issue of referring the matter to the Chief Justice cannot now be pursued by way of appeal since the appeal was never filed within time; yet two thirds of the contents of the present stay application relate to the very same issue of refusal by the lower Court to send the matter to the Chief Justice. This is no longer a live issue and to continue to persist with it is in my view abuse of the Court process. In my view, KP is now limited to appealing against the substantive ruling of the superior Court dismissing his constitutional reference.

7. That, I pray that in considering this stay application, the Court takes into account the fact that the defendants have been deprived of their investment for seven years and it is in the interests of justice that the review application be heard without any further delay. *The conduct of the applicant demonstrates that the real objective of all these plethora of applications is to filibuster and obstruct and delay the hearing of the defendants' review application for as long as possible while he continues being in possession of the defendants' investment.*

8. That I make this affidavit in response to the application herein the facts disposed to *being true and within my knowledge save wherein otherwise stated*." (emphasis supplied)

Kilonzo submitted that the underlined portions were contentions of law and not factual; argumentative, scandalous, irrelevant, expressions of opinions and beliefs of counsel; oppressive and at times the language used is injudicious. He called for striking out of the entire affidavit or a major portion of it.

Muite was characteristically firm in his protestations against those objections. There was nothing in the rules of this Court, he submitted, which prohibits an advocate from swearing an affidavit in his clients' cause. Rule 43 of the Court of Appeal Rules requires the applicant or "some other person or persons having knowledge of the facts" to swear an affidavit in support of an application. The making of the affidavit is not limited to the applicant. By parity of reasoning, persons other than the respondent can swear the affidavit in reply. Everything he stated in the affidavit was true and within his knowledge and he challenged *Kilonzo* to put him in the witness-box to test it in cross-examination. We understood *Muite* to intend that he would be prepared to stand down as counsel to become a witness for purposes of cross-examination since he cannot execute both roles simultaneously without embarrassment.

Muite further submitted that his main object was to show a chronology of deliberate efforts made in this matter for the last seven years to frustrate the

respondents from recovering their business enterprise. The objections should therefore be rejected to pave the way for hearing of the main application and the prosecution of the respondents' application before the superior Court.

We have anxiously considered the rival submissions of both counsel and have come to the conclusion that Mr *Kilonzo*'s objections are not entirely without merit. The affidavit of *Muite* is rather unusual and tends towards prolixity. Shorn of the heading "affidavit," it may well pass for a summary of submissions made from the bar. Nevertheless want of form, as we have stated above, is curable.

Neither counsel cited any authorities on what a valid affidavit ought to be, or to put it another way, what a defective affidavit is, and the consequences attendant thereto. But the Courts have, times without number, grappled with objections made on affidavits and kept a delicate balance between adherence to technical propriety and dispensation of substantial justice. We shall refer to one or two of those authorities presently.

The starting point, we think, is the legislation on affidavit evidence which underscores the obvious position in law that it is sworn testimony on matters of fact. Since 1969 (by Act 10 of 1969) the provisions of the Evidence Act have been applied to affidavits and therefore the rules of admissibility and relevancy apply. Hearsay evidence is for exclusion. So are legal opinions. Section 2(2) of the Act however provides:

> "Subject to the provisions of any other Act or *any rules of Court*, this Act shall apply to affidavits presented to any Court."(emphasis added)

Which brings us to Order XVIII of the Civil Procedure Rules and to rule 3(1) thereof which emphasises the primacy of the best evidence rule, thus:

> "Affidavits shall be confined to such facts as the deponent is able of his own knowledge to prove."

The proviso to that Rule which relates to interlocutory applications does not detract from that provision. In other words, it is not permitted anywhere that a statement may be deponed to as being a fact when the source of that knowledge is information. What is permitted is that if a matter is deposed to on belief and the ground of that belief is information from a third party, that information is admitted, provided its source is specified. The proviso states:

> "Provided that in interlocutory proceedings or by leave of the Court, an affidavit may contain statements of information and belief showing the sources and grounds thereof."

This Court put it even more succinctly in *Kenya Horticultural Exporters [1977] Ltd v Pape* [1986] KLR 706 when it held:

> "Order XVIII, rule 3(1) of the Civil Procedure Rules is not to be understood to provide that an affidavit in interlocutory proceedings may be sworn by a deponent who is unable of his own knowledge to prove facts, or that such an affidavit may be confined entirely to statements of information and belief even if the sources and grounds are shown. The words 'may contain' suggest that the main body of such an affidavit has to be confined to facts which the deponent is able of his own knowledge to prove."

It is common ground that the proceedings that were before the superior Court in this matter were interlocutory in that the orders sought would not decide the rights of the parties but were meant to keep matters in *status quo* pending such determination. It is the proviso to rule 3(1) that therefore applies. We are aware

of the strictures of the *ratio decidendi* in *Standard Goods v Harackchand Nathu and Company* [1950] 17 EACA 99, and other cases that followed it thereafter up to 1963, requiring that affidavits made on information should not be acted upon by any Court unless, firstly, the sources of the information are specified, and secondly, if it is not stated in the affidavit what is deponed to from the deponents' own observation and from what information. Both these requirements the deponent had to state expressly or the entire affidavit was for rejection. From 1963 onwards however, equitable principles were entertained in considering such affidavits and Courts were looking at the substantive, rather than the formal contents of an affidavit. Without doubting the requirement of the *Standard Goods* case that averments sworn on information must disclose the source of information, the Courts henceforth said there was no obligation on the deponent to distinguish what he swears to on knowledge and what on information and belief. The Court would itself examine the affidavit and determine from a clear reading of it, which averments emanate from what source. Only the offending portions would then be rejected. That was the clear trend introduced in *Nandala v Father Lyding* [1963] EA 706 which was approved and applied by the predecessor of this Court in *Camille v Merali* [1966] EA 411.

In line with those principles we have examined the affidavit sworn by *Muite* and are satisfied that the bulk of the facts deposed to are derived from personal knowledge acquired by him in the last seven years of existence of the suit. At any rate much of the information is before us in Court records. The underlined portions in the paragraphs, which *Kilonzo* takes issue with however, are, we agree with him, fraught with argumentative propositions and expressions of opinion. It would be oppressive to allow such matters to masquerade as factual depositions. Order XVIII, rule 6 donates the power to strike out scandalous, irrelevant or oppressive matter. The three characteristics are to be read disjunctively, and as Harris J stated, and we agree, in *Mayers and another v Akira Ranch Limited* [1974] EA 169:

> "Where an affidavit contains averments of apparent importance in the proceedings but which transgress the requirements of Order XVIII, rule 3(1) and in regard to which the leave of Court under the proviso to that subrule has not been obtained, the retention of such averments in the affidavits contrary to the expressed wishes of the opposing party would be oppressive within the meaning or rule 6 of the order."

Accordingly we hereby uphold the objections raised and strike out the portions of the affidavit sworn on 31 January 2005 by Paul Kibugi Mute, which in this ruling are underlined in paragraphs 4(*a*), 9(*b*), (*c*), (*d*), (*e*), (*f*), (*i*) and 7. It would of course be another matter if the matters struck out were put forward as submissions of counsel in the course of his address to the Court. But we say nothing about any objections they might attract at that level.

It only remains for us to consider whether the remaining parts of the affidavit are for rejection on the ground that it was the advocate and not the party who made them. *Muite* concedes it is desirable that the parties themselves should make affidavits in support of their claims or in reply. He takes refuge however in the lack of any express caveat against advocates making affidavits on behalf of their clients. He further invokes special circumstances in this case where his clients are scattered in different parts of the world and the distinct possibility

that in seeking them out to draw up and make affidavits outside the jurisdiction of this Court, it would cause even further delay and therefore injustice in the determination of the matter.

Muite is of course right in his concession that advocates should not swear affidavits on behalf of their clients when their clients are readily available to do so. It accords with the spirit of the best evidence rule and, in view of the provisions of Order XVIII, rule 2, with common sense. It would otherwise be embarrassing to apply those provisions to an advocate who may have to relinquish his role as one, to become a witness. There is otherwise no express prohibition against an advocate who of his own knowledge can prove some facts, to state them in an affidavit on behalf of his client. So too an advocate who cannot readily find his client but has information the sources of which he can disclose and state the grounds for believing the information. On both counts we do not find *Muite*'s remaining affidavit offensive. As we stated earlier he is possessed of the facts stated therein and secondly he has explained, and we believe him in the circumstances of this case, that his clients were not readily available. The affidavit in reply in *Kenya Horticultural Exporters Limited* case (*supra*) was sworn by the advocate. It was however not struck out for that reason, but because the advocate could not prove all the statements of information and belief that he had stated even if he was to be cross-examined on them.

We do not strike out the remaining parts of the replying affidavit of *Muite*. The main application may now be set down for hearing. Costs in the application.

For the applicant:
Mr M Imanyara instructed by *Mugambi Imanyara & Co*

For the respondents:
Mr DP Kinyanjui instructed by *DP Kinyanjui & Co*

Republic v Commissioner of Income Tax *ex parte* SDV Transami (K) Ltd
[2005] 1 EA 346 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	6 May 2005
Case Number:	212/04
Before:	Ojwang J
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Judicial review – Locus standi – *Application brought by aggrieved taxpayer in respect of withholding tax – Whether only aggrieved payee had* locus standi – *Whether judicial review application could be brought without recourse to tax dispute procedures.*

[2] Tax – Income tax – Withholding tax payments – Agency and royalty fees – Applicant failed to deduct withholding tax from non-resident payments – Failure noted during tax audit – Whether judicial review application amounted to circumvention of the dispute resolution procedures in the Income Tax Act – Whether payments to an independent contractor could be deemed agency fees for

taxation purposes – Whether payments for use of information on a website could be deemed royalty fees for taxation purposes.

Editor's Summary

The Commissioner of Income Tax undertook a tax audit of the *ex parte* applicant's (SDV) tax affairs. SDV was thereafter charged with tax plus a penalty on account of failure to deduct withholding tax in respect of payments made to two non-resident companies. The Commissioner of Income Tax argued that SDV was an agent of UPS and ought to have deducted tax for the agency fees it paid. Further, that SDV paid SITA fees for use of its computer software, which software constituted a scientific formula for which payment amounted to a royalty eligible to withholding tax at 20%.

In response, SDV argued that its agreement with UPS clearly indicated that both parties were independent contractors and that no agency would be implied. SDV merely carried UPS parcels within the country to their final destination, but the delivery contract remained between UPS and their consignees. Further, while SDV paid SITA fees to log onto its website and obtain information on the movement of containers, SDV did not use any software of SITA and therefore no royalties were payable.

SDV therefore instituted a judicial review application seeking to quash the decision of the Commissioner of Income Tax. SDV claimed that the dispute resolution procedure in the Act only applied to the payee and that the payer was left with no alternative but to proceed to Court to enforce its rights. The Commissioner on its part argued that SDV had no *locus standi* to bring the suit since only the payee and not the payer of withholding tax was entitled to bring objection proceedings.

Held – The aggrieved taxpayer had every right to seek judicial review intervention as it did, since the taxpayer was questioning the exercise of a public power by a public body.

Royalty fees are a payment made to the creator of an industrial or artistic work or design which bears a certain "capital" quality that will serve intellectual, reproduction of entertainment purposes. The payments made by the applicant to a third party to access information from its website did not constitute royalties for the purpose of the Income Tax Act.

Agency fees as well as contractual fees could be "management or professional fee" for the purpose of the Income Tax Act. However, the Commissioner had made a demand for payment of agency fees, and not contractual fees. Agency is a fiduciary relationship which exists between two persons, one of whom expressly or impliedly consents that the other should act on his behalf. In this case, the applicant and non-resident company had kept separate their consignment agreements with third parties and hence no agency relationship could be implied. The tax assessments for withholding tax would therefore be quashed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Republic v Commissioner of Co-operative Development and another ex parte David Mwangi and others High Court miscellaneous civil case number 805 of 1990

Republic v Kenya Revenue Authority, ex parte Aberdare Freight Services and two others miscellaneous civil application number 946 of 2004

Judgment

Ojwang J:

I *The application and the depositions*

This judicial review application was brought by virtue of Order LIII, rule 3 of the Civil Procedure Rules. The application for leave, which came by chamber summons of 26 February 2004 was certified urgent and granted by Mr Justice Lenaola on the same date and leave was to operate as a stay of the order of the Commissioner of Income Tax dated 17 February 2004 until the determination of the substantive application, or until further orders of the Court.

The originating motion, dated and filed on 10 March 2004 carried two prayers:

"(*a*) That, an order of *certiorari* do remove into the High Court for purposes of being quashed the decision and order of the Commissioner of Income Tax dated 17 February 2004 whereby he has invoked the provisions of section 35(6) of the Income Tax Act to recover withholding tax which is allegedly payable by SDV Transami (Kenya) Limited;

(*b*) That, the respondent be made to bear the costs of the proceedings."

The premise of the application is expressed in 11 different grounds. These are as follows:

(i) The applicant has a contract with UPS Forwarding Inc, to perform certain services required by the applicant, in relation to the transportation of small packages throughout the world.

(ii) The said contract states that UPS is an independent contractor and that there is no agency relationship between UPS and the applicant.

(iii) The respondent is holding the applicant liable for failing to retain withholding tax while there is no agency relationship between the applicant and UPS.

(iv) The respondent has no legal basis to demand withholding tax, as there is no agency relationship between the applicant and UPS.

(v) The respondent has no legal basis for invoking the provisions of section 35(6) of the Income Tax Act, as the section is not applicable to the contract between the applicant and UPS.

(vi) The applicant, not being a "payee" in terms of rule 7(1) and (2) of the Income Tax (Withholding Tax) Rules, cannot raise an objection to the impugned order by virtue of rule (2).

(vii) The applicant has a contract with a company known as SITA in Dublin, whereby the applicant accessed information from SITA pertaining to movement of containers.

(viii) SITA obtains such information from shipping lines all over the world, and the applicant would access the information for free.

(ix) The respondent has claimed that the payment made to SITA by the applicant was subject to withholding tax under section 35 of the Income Tax Act as the applicant was paying a royalty.

(x) The respondent has no jurisdiction to invoke the provisions of section 35(6) of the Income Tax Act, as the payment to SITA does not translate to royalty as defined in section 2 of the Income Tax Act.

(xi) The respondent is likely to levy distress against the applicant and attach its bank accounts, thereby occasioning the applicant irreparable loss and damage.

The above grounds also appear in the statement made under Order L, rule 2 and filed with the aforementioned chamber summons of 26 February 2004. Filed with the chamber summons and the statement was the verifying affidavit of John Gerin Msafari sworn on 25 February 2004 which the applicant also calls in aid.

The deponent states that the respondent seeks to recover withholding tax from the applicant on the basis of payments made by the applicant to (i) UPS, and (ii) SITA. He avers that the applicant's contract with UPS has the express term that at all times, the applicant and UPS will operate as independent contractors, and that no agency relationship has been created. He depones that the respondent is alleging there was an agency relationship and that, on that account, payments made to UPS were subject to withholding tax.

The deponent avers further that the applicant had entered into a contract with SITA to access its website to obtain information on container movements. It is deponed that the respondent has been claiming that the payments to SITA constitute a royalty, for the reason that software is scientific formula and so the payments were royalty and on this account subject to withholding tax. The deponent avers that on the contrary, the applicant did not at any time have access to the software that SITA utilised to compile the information used by the applicant, nor did it buy the software or sell it to anyone else – thus payments to SITA cannot be defined as royalty or royalties. It is deposed that the Commissioner of Income Tax has advised the applicant that the applicant if it wants to raise an objection, can only do so in accordance with rule 7(1) of the Income Tax (Withholding Tax) Rules. The deponent avers that the applicant stands to suffer irreparable harm should the respondent proceed to recover the amount claimed to be owed by the applicant.

The respondent's replying affidavit dated 25 May 2004 was filed on 26 May 2004. The deponent, David Mugo Mwangi is a Principal Revenue Officer at the large taxpayer's office, the office under which the applicant's tax matters are processed, in the administration of the Income Tax Act. He avers that he has been appointed under and in accordance with section 122 of the Income Tax Act (Chapter 470), an Act administered by the Kenya Revenue Authority Act (Chapter 469). He depones that he is seized of the facts pertaining to the dispute, and has been duly authorised to make the affidavit on behalf of the respondent.

The deponent avers that the applicant had in 2002 been selected for audit for the years of income 1999, 2000 and 2001, in connection with the implementation of withholding tax procedures. He states that such mode of selection is a normal tool of tax administration, and it entails officers scrutinising taxpayers' records to ascertain their correctness with regard to tax liability. The audit of the applicant was completed on 9 May 2002 and on 10 May 2002 a demand letter for tax was sent to the applicant. It is deponed that during the audit, it was discovered that the applicant had made certain payments to non-resident persons – SITA (1999 and 2000), and UPS (2000 and 2001).

The deponent avers that the payment to SITA was for the use of SITA's communication network to access information on container movement; and

the respondent treated this as payment of royalty subject to withholding tax, under section 35(1)*(b)* of the Income Tax Act.

The respondent had also found that the payment made by the applicant to UPS was for delivery of letters and packages in destinations outside Kenya, in fulfillment of a contract entered into between the applicant and UPS, and any fee payable thereon was agency fees which is subject to withholding tax under section 35(1)*(a)* of the Income Tax Act.

The deponent averred that the respondent is bound by statute to recover withholding tax from a payer who fails to deduct it as required under section 35(6) of the Income Tax Act. He further deponed that the tax demanded from the applicant was due, and had been computed in accordance with the provisions of the Income Tax Act.

The deponent also averred that a dispute such as the instant one should have been resolved by the procedure of dispute-resolution provided for under the Income Tax Act and the withholding tax rules made there under.

II. *Agency and liability to taxation under the Income Tax Act (Chapter 470): Submissions for the applicant*

Learned counsel, Ms Malik made submissions based on the Income Tax (Withholding Tax) Rules, 2001 (Legal Notice number 100 of 2001). Rule 6 provides:

> "Upon making a payment and deducting withholding tax in any month, the person making the payment shall furnish the payee with a certificate showing the gross amount paid, the total tax deducted and such other particulars as the Commissioner may require."

Rule 7(1) then provides:

> "If a person to whom payment is made under paragraph 6 is aggrieved by reason of the nature of a payment and the rate of withholding tax applied and is unable to reach an agreement with the payer:
>
> (*a*) The payer may inform the payee of his rights under this rule and shall, at the request of the payee, furnish him with a written statement showing the manner in which the payer calculated the tax deducted;
>
> (*b*) The payee may give a notice of objection in writing to the Commissioner . . .
>
> The 'payee' is defined (rule 2) as a person who receives income from a payer after deduction of withholding tax; 'payer' is defined as "a person who deducts withholding tax for the purposes of these Rules."

From those provisions, Ms *Malik* observed that it is the payee who raises objections if he is minded so to do. Counsel further remarked that the Commissioner of Income Tax wanted Transami to deduct from the payments it had made to both UPS and SITA; and so in that case, Transami would be payer; and the payee would be SITA and UPS. By rule 7, only the payee may make objections and not the payer.

In David Mugo Mwangi's replying affidavit (paragraph 18) it had been stated that the present application was improper as a motion before this Court:

> ". . . I am advised by counsel on record for the respondent which advice I verily believe to be true, that this application is meant to circumvent the procedure for dispute resolution provided for under the Income Tax Act and the withholding tax rules made thereunder."

Ms *Malik* submitted, and in my view, correctly, that the applicant as payer, did not qualify to resort to the said dispute resolution procedure under the Income

Tax Act and the withholding tax rules. I am in agreement with learned counsel that, for that reason, this judicial review application is properly brought, and was in the circumstances the only avenue open to the applicants.

There is a relevant persuasive authority in this regard, *Republic v The Commissioner of Co-operative Development and another ex parte David Mwangi and others* High Court miscellaneous civil case number 805 of 1990. In that decision Bosire and Tank JJ held as follows:

> "*Certiorari* is an order which issues from the High Court directing the removal from an inferior tribunal of authority and bringing it before itself for quashing a decision or order of that tribunal made in excess of or without jurisdiction. Two conditions must, however, be satisfied before such an order can issue. Firstly, that the tribunal must have legal authority to determine questions affecting the rights of subjects. Secondly, it must be duty-bound to act judicially. The existence of a right of appeal or alternative remedy like review will not preclude an applicant from seeking this remedy . . ."

Annexed to the verifying affidavit of John Gerin Msafari dated 25 February 2004 are the decisions of the respondent sought to be quashed. These decisions are conveyed in a letter the relevant parts of which may be quoted:

> ". . . I wish to clarify that at no time have we ever offered to treat the payments by SDV Transami to UPS as contractual fees [except so as -]
>
> (*a*) To bring this unending protracted correspondence to an end by conceding to your argument that your client is an independent contractor.
>
> (*b*) To demonstrate to you that even if your client was an independent contractor. . . payments to UPS were still subject to withholding tax.
>
> However, our stand is, as it has always been, that payments made to UPS by Transami constitute agency fees subject to withholding tax under section 35(1)*(a)*.
>
> UPS as a non-resident person does not have a permanent establishment in Kenya. The contract for the transportation of parcels and documents, for a customer in Kenya, is signed by Transami and not by UPS.
>
> It is therefore not true that UPS transports the parcels and documents on behalf of the consignor in Kenya as there is no contract between the consignor and UPS. The fact of the matter is that a contract is entered into between Transami and the consignor.
>
> Since Transami has no capacity to deliver the parcels and documents outside Kenya, it enters into a second contract with UPS where UPS delivers the parcel or document on behalf of Transami in consideration for a fee.
>
> The consignor in Kenya does not pay any fee to UPS since he has no contract with UPS. The fee is paid to Transami since the contract is between the consignor and Transami.
>
> If UPS was delivering parcels and documents on behalf of the consignor, then UPS would invoice the consignor and not Transami.
>
> If there exists a contract between the consignor in Kenya and UPS, then this contract could only have been signed by Transami on behalf of UPS. This is the case for the existence of an agency relationship between Transami and UPS."

With regard to Transami's relationship with SITA, the Commissioner had thus decided:

> "Computer software is in fact a scientific (formula) and payment for its use constitutes a royalty. The applicable rate of withholding tax is 20% and not 15%."

The Commissioner then concluded his order in respect of UPS and SITA as follows:

> "Having exhausted all discussions on the above two issues, I have invoked the provisions of section 35(6) of the Income Tax Act. An objection to this decision may only be raised by the payee in accordance with rule 7(1) (of the) Income Tax (Withholding Tax) Rules."

Ms *Malik* conceded that under section 35(1) of the Income Tax Act, the Commissioner of Income Tax is entitled to be paid withholding tax for management of professional fees – and agency fees falls within the definition of management or professional fees. By section 2 of the Act, agency fees are fees paid to the person for acting on behalf of a person or government; and this excludes payment made by an agent on behalf of a principal when such payments are recoverable. Learned counsel considered the crucial issue in this matter to be that at all times, the relationship between the applicant and UPS was that of independent contractors. She stated that Transami only transports documents and letters on land; and where a small package crossed the seas, the consignor will hand over to Transami. It will be understood that Transami will only take the package as far as the customs desk at the Jomo Kenyatta International Airport in Nairobi; and from that moment UPS will take over responsibility and liability for the package, and will take it to its final destination. The consignor, counsel submitted, dealt directly with UPS on the basis that UPS would transport the package to final destination, and the consignor was invoiced by UPS and not by Transami. The waybill would be a UPS waybill filled out by the consignor.

Ms *Malik* submitted that the contract between UPS and Transami is not an agency contract. The said contract is annexed to verifying affidavit of John Gerin Msafari dated 25 February 2004, and it bears the heading "Services Agreement (Import and Export)." The purpose of the contract is stated in the introductory part as follows:

> "Whereas:
>
> (*a*) UPS desires that Contractor, as an independent contractor, perform services required by UPS in its transportation of small packages in Kenya (hereinafter referred to as 'operating area') and Contractor is willing to do so, on the terms hereafter set forth, and in particular according to the Operating Plan set forth; and
>
> (*b*) Contractor desires that UPS, as a worldwide freight forwarder, perform services required by Contractor in its transportation of small packages throughout the world, and UPS is willing to do so, on the terms hereinafter set forth."

The obligations of the contractor are thus defined:

> "Contractor shall perform the services requested by UPS in the transportation of small packages in the operating (*sic*) are, including customs clearance, sorting, delivery and pick-up . . ."

The agreement provides (paragraph 7) for the independence of the parties:

> "Nothing in this agreement shall be deemed to constitute a partnership, agency, or employment relationship between UPS and Contractor. Neither UPS nor Contractor shall have any authority to bind or to contract in the name of the other, or any of their respective affiliates, in any way."

From the foregoing terms of the contract, learned counsel submitted that it was not at all an agency agreement. The waybill was always signed by the consignor and was in the name of UPS and not Transami. Paragraph 9 of the waybill showed, counsel submitted, that liability was directly between UPS and the consignor – and it was trite law that an agent is not liable to a third party.

Hence, if UPS failed to deliver at the final destination, then the consignor, counsel submitted, was at all times aware that UPS would transport the parcel on the terms and conditions set out in the waybill. Counsel further supported her argument by invoking the content of the invoice, annexed to the said affidavit of John Gerin Msafari. This invoice shows that once the consignor gave instructions, the invoice was issued by UPS – an independent contractor and a service provider; and payment is not made to Transami. In these circumstances, UPS could not be Transami's agent or vice versa. It was clear to the consignor, counsel remarked, that as soon as the parcel got to the airport, UPS took over the responsibility.

Counsel submitted that in an agency relationship, the agent must have the power to affect the legal relations of the principal; but in the present instance Transami did not have that power.

Ms *Malik* drew the Court's attention to a work, *The Law of Agency*, appearing in *Bowstead on Agency*, in *The Common Law Library Series (No. 7)* (15ed) the author FMB Reynolds writes:

> "Agency is the fiduciary relationship which exists between two persons, one of whom expressly or impliedly consents that the other should act on his behalf, and the other of whom similarly consents so to act or so acts. The one on whose behalf the act or acts are to be done is called the principal. The one who is to act is the agent. Any person other than the principal and the agent may be referred to as a third party."

The author then describes the fundamental nature of agency by agreement (paragraph 2):

> "The mature law recognises that a person need not always do things that change his legal relations himself: he may utilise the services of another to change them, or to do something during the course of which they may be changed. Thus where one person, the principal, requests or authorises another, the agent, to act on his behalf, and the other agrees or does so, the law recognises that the agent has power to affect the principal's legal position by acts which, though performed by the agent, are to be treated in certain respects as if they were acts of the principal."

Learned counsel drew on another passage in the same Volume, on the relationship between agent and independent contractor (paragraph 18):

> "The dichotomy of servant (or employee) and independent contractor stems from the law of tort: a person is more readily liable for the torts of his servants than for those of his independent contractors. The difference turns on the degree of control exercised. A servant has been defined as a 'person employed by another to do work for him on terms that he, the servant, is to be under the control and directions of his employer in respect of the manner in which his work is to be done' (Salmond and Heuston, *Torts* (18ed), paragraph 429. An independent contractor has been defined as 'one who undertakes to produce a given result, but so that in the actual execution of the work he is not under the orders or control of the person for whom he does it, and may use his discretion in things not specified beforehand' (Pollock *Torts* (15ed), paragraph 63). Much space has been devoted in books to considering the relationship between these figures and the agent. It is submitted that the controversy is somewhat sterile. Some employees have agency powers . . ."

Although counsel has used the foregoing passage to illustrate the difference between the agent and the independent contractor, its essential point, I think, is that one can become an agent even though the original script did not say so: the character of what is done – ie, whether the doer is changing the legal relationship of the other person – is what will determine whether or not there exists a relationship of principal and agent. Therefore, although the author

relied upon was in the first place concerned with the question whether a servant or employee can for certain purposes be treated as an agent, this scenario may be extended; so that we are now legitimately concerned with the question whether UPS, notwithstanding its independent contractor status provided for in the contract, was not also capable of affecting the legal position of Transami, and on that account, of being properly treated as an agent. I will revert to this point later and, no doubt, it is a point that will be vital in resolving the issues in dispute herein.

Ms *Malik* submitted that UPS has a discretion as to how it will get the parcel to the ultimate destination; and UPS incurs liability directly to the consignor, as shown in the waybill. Counsel further submitted that Transami was not liable for any tort as may be attributed to UPS. She relied on *Halsbury's Laws of England* (4ed) (1973) Volume 1, paragraph 817:

> "As a general rule, a principal is responsible for all acts of his agent within the authority of the agent, whether the responsibility is contractual of tortuous. Similarly the principal will be bound by many dispositions of property made by the agent. In some exceptional instances, a principal may be criminally liable even where he does not himself take part in, authorise or connive at the act or default of the agent."

Ms *Malik* submitted that Transami would not share in any such liabilities, where they fall upon UPS; and hence there was no agency relationship.

Learned counsel was then concerned with the possible inference from her submission that all transactions between Transami and UPS are not taxable. She submitted that such transactions would be taxed, under the terms of section 9(1) of the Income Tax Act. By that provisions, it is the air transport operator itself that would withhold taxes on any profits made by UPS, and pay over the Government of Kenya. Counsel submitted that Transami's role in that respect was merely one of taking the parcel to the airport; and thereafter UPS contracts an airline to carry the parcel to the final destination: so it is for the airline in question to withhold any tax on the profits made by UPS, and pay the same to the Commissioner of Income Tax. If, for instance, UPS contracts Kenya Airways to convey the parcel abroad, then it is for Kenya Airways to withhold the tax and then remit to the Commissioner of Income Tax. In effect, then, learned counsel submitted, the transaction between Transami and UPS is already attracting tax: and in this regard the Court was invited to take judicial notice that Kenya Airways pays various taxes to the Commissioner of Income Tax.

III. *Royalties and liability to taxation under the Income Tax Act (Chapter 470): further submissions for the applicant*

Ms Malik stated that SITA is a company which the applicant had contracted to facilitate access to information on the movement of containers. SITA would track the movement of containers, and put its information on website, to which its customers then linked up. Transami was just one of the many customers of SITA, using the SITA website upon payment of certain charges. The charge was only for accessing the website information; it was for dial-up connection. It is deponed by John Gerin Msafari in the verifying affidavit that "the applicant did not at any time have access to the software that SITA utilised to compile the information used by the applicant nor did it buy the software or sell it to anyone else;" and on this basis learned counsel submitted that the payments made by the applicant to SITA in its invoices has not mentioned the word "royalty," as no royalty, it was submitted, was payable.

This runs counter to the claim by the Commissioner of Income Tax, that computer software was a scientific formula, and thus the payments made by the applicant amounted to royalties and were accordingly subject to the withholding tax rules.

"Royalty" as defined in section 2(1) of the Income Tax Act, is a payment made in consideration for the right to use the copyright of a literary or scientific work. Counsel submitted that what the applicant was paying to SITA was only a charge for accessing information which had already been lodged on the website. Counsel argued that, whereas the Commissioner of Income Tax was charging tax in respect of computer software which he treated as a scientific formula, the applicant was not using software to produce some desired result; the applicant was not using SITA to produce some process or thing; all the applicant was doing was clicking to SITA and finding information regarding the movement of containers. The applicant, counsel argued, was not paying for the use of software; indeed no software at all was being used; the applicant was only accessing information printed on the screen. Payment for such information, Ms *Malik* submitted, could not be royalty for software. No formula, such as a patent, was being used to produce anything and, counsel submitted, there was no formula to be used.

To demonstrate the point that accessing information (as the applicant was doing) could not be compared with using a formula to produce something (which the Commissioner of Income Tax was claiming), counsel cited from the *Concise Oxford Dictionary for Current English* (9ed) at 533; it thus defines formula:

> "1. Chem. A set of chemical symbols showing the constituents of a substance and their relative proportions.
>
> 2. Math. A mathematical rule expressed in symbols.
>
> 3. (*a*) A fixed form of words, especially one used on social or ceremonial occasions.
>
> (*b*) a rule unintelligently or slavishly followed; an established or conventional usage.
>
> (*c*) A form of words embodying or enabling agreement, resolution of a dispute, etc.
>
> 4. (*a*) A list of ingredients; a recipe . . ."

The same dictionary defines "royalty" as follows (at 1203):

> ". . . a sum paid to a patentee for the use of a patent or to an author etc for each copy of a book etc sold or for each public performance of a work . . ."

Learned counsel made the submission, in every respect meritorious, in my view, that "royalty" as defined, refers to some device, formula or contraption which the user applies to make something else, and in return for the advantage, the user must pay the original creator of the capital asset. So if the applicant had been repaying the ingenuity of a capital asset in that manner, then the applicant would have been paying royalties, which would then be subject to withholding tax. But in the present instance, SITA had created nothing; it had merely gathered information by ordinary process, and lodged the same on its website for general use by anyone who paid a certain charge.

IV. *Challenging the respondent's replying affidavit*

As already noted, the replying affidavit of 25 May 2004 is sworn by one David Mugo Mwangi. The advocate whose name is endorsed as having drawn and

filed the said replying affidavit is DO *Ontweka*. Learned counsel for the applicant challenged the validity of that endorsement; for DO *Ontweka* only came on record on 28 August 2004 – ie three months after the replying affidavit was sworn and filed. Ms *Malik* submitted that the name of DO *Ontweka*, advocate was being invoked in vain in the endorsement at the end of the affidavit; and that, consequently, the said affidavit is incompetent and ought to be struck out.

Counsel, on this point, raises an important point of law. I did not hear Mr *Ontweka*, who turned up to represent the respondent, deny the factual statement that he only came on record some three months after the replying affidavit had been filed, and yet his name was still endorsed as the one who drew and filed the affidavit. First of all there is clearly a factual falsehood shown on the face of the replying affidavit that should be held to vitiate the validity of the same. Secondly, if the said endorsement of the name of Mr *Ontweka* on the replying affidavit is invalid, then the affidavit is liable to be rejected for lacking endorsement, as required under sections 34 and 35 of the Advocates Act (Chapter 16) for a document filed for the purpose of being used in legal proceedings.

On those grounds I could very well have struck out the affidavit sworn on behalf of the respondent. Indeed the points noted above, which reveal the serious defect in that affidavit, justify a strong deprecation of such a document being tendered by a party to legal proceedings.

I have, however, laid the greatest significance on the fact that this is a judicial review matter which raises fundamental questions of law, on the basis of which, primarily, I should decide on the prayers made by the applicant. For this reason alone I will decline to strike out the respondent's defective affidavit.

Ms *Malik* remarked that the lengthy correspondence attached to the respondent's affidavit, showed that the dispute has been pending for some two years. She wondered why the respondent had not moved to have the matter settled earlier as there had been the conviction on the part of the Commissioner of Income Tax, that withholding tax was truly payable by the applicant. By a letter of 10 May 2002 (annexed to the replying affidavit) several heads of tax claim had been raised against the applicant; but subsequently these various heads were reduced to just two. The Income Tax Commissioner's letter sought to be quashed also proceeds, counsel submitted, on a misunderstanding of pertinent facts regarding the relationship between the applicant on one side, and UPS on the other side. It is claimed by the Commissioner that UPS does not sign contracts with customers in Kenya and that UPS was answerable to the applicant. Yet it is clear from the waybill that the contract is, in fact, between the consignor and UPS and not between the consignor and the applicant; and the invoice is from UPS and not from the applicant. From this misunderstanding of fact, counsel submitted, it was clear that the respondent was imposing tax on the wrong premise.

Another annexure to the replying affidavit is a letter from the Commissioner of Income Tax (dated 4 September 2003) which itself is attached to "notes of telephone conversation" held between Mr GM Obbayi, Senior Deputy Commissioner of Income Tax and John Msafari of the applicant organisation. These notes record (under item two):

> "Obbayi told Msafari that he may agree with him (Msafari) that the payments made UPS Worldwide by Transami may not be agency fees . . ."

They further record:

> "To Obbayi's interpretation, Mr Msafari was told, it (*sic*) this is what happens on the ground which is confirmed by the service agreement between the two parties it follows that Transami and UPS have entered into a contract for delivering packages in and out of Kenya, for which UPS pays Transami for inward-bound packages; and Transami pays UPS for outward-bound packages. The payment made by either party to the other is contractual fees. UPS being a non-resident company and Transami being a resident company, any payment made by the resident company to the non-resident company as contractual fee is subject to withholding tax at the non-resident rate . . ."

Ms *Malik* submitted that in the notes of telephone conversation above-set-out, the Commissioner of Income Tax shows equivocation; he says the payments to the applicant "may not be agency fees," and then he invokes some other head called "contractual fees." The decision sought to be quashed speaks of "agency fees." Counsel contended that the Commissioner is unclear in his mind, yet he later imposes withholding tax, on the basis of "agency fees."

Learned counsel further questioned the Commissioner's decision in the light of the following passage in the said telephone conversation notes prepared and signed by Mr GM Obbayi (and annexed to the replying affidavit):

> "Mr Msafari appeared convinced but requested that . . . (as) they do not have recourse to appeal to the Local Committee against Principal Tax (they can only appeal against penalties) as the matter involves withholding tax, they may consider appealing direct to Court. The reason for this will be mainly to make our laws dynamic as they appear static especially in relation to natural justice as taxpayers should have a right to be heard. Obbayi agreed with him that in order to develop our case law, he would appreciate (it) if they proceeded to appeal direct to the High Court as he (Obbayi) expects that the judgment would be the interest of both parties because it has disturbed Obbayi that the law does not provide for an appeal against Principal Tax, to the Local Committee, especially . . . when it comes to a matter of interpretation. The Commissioner who is not supposed to be a dictator could at times be wrong in this interpretation . . . and could bang any figure on a taxpayer, yet that taxpayer does not have recourse to appeal."

Learned counsel perceived the communication excerpted above as an acknowledgment on the part of the Commissioner of Income Tax that he was indeed not at all certain whether his own imposition of withholding tax against the applicant was right in law. This would suggest, counsel submitted, that the tax collector had been placed under duty to collect tax even when he was not sure of the legal basis for exacting the tax charge. Counsel submitted that it was wrong in principle and also oppressive to the taxpayer then dared, "take it to Court."

V. *Submissions for the respondent*

Learned counsel Mr *Ontweka*, restated the respondent's claim that the applicant had paid certain fees on agency and as royalties, and for these, the Commissioner of Income Tax was justifiable, and demanding withholding tax. The justification, as counsel submitted, was that any person who pays a non-resident person from moneys earned in Kenya was to retain withholding tax and pay it over to the Commissioner. He stated the respondent's position as based on section 35(6) of the Income Tax Act (Chapter 470); and that the applicant was making payment to a non-resident, and so was required to deduct withholding tax; the applicant did not; and therefore the Commissioner now required that the applicant pay the amount the applicant failed to retain as withholding tax.

Mr *Ontweka* argued that the applicant had no *locus standi* before the Court (which is curious, given the Income Tax Commissioner's position that the dispute should be brought before the Court). He maintained that by rule 7(1) of the Income Tax (Withholding Tax) Rules, 2001 the payee was required to lodge an appeal once withholding tax is deducted by the payer; and that such timeous lodgment of an appeal by the payee would be the condition for the applicant (the taxpayer) to have audience before the Court. Learned counsel contended that the applicant had no right to come before the Court before the payees (namely UPS and SITA) had raised their complaint.

Unfortunately Mr *Ontweka* did not explain the basis in law of such an interpretation of the position of the applicant (the payer) before the Court. I have with great respect, been unable to appreciate the cogency of the argument, especially as it runs in diametric opposition to the trite practices under judicialism – that he who has a grievance against another, on a matter of legal character, has the perfect freedom to invoke the jurisdiction of the Court. The applicant comes to Court because the Commissioner of Income Tax demands that it make substantial payments of tax which it believes it has no legal duty to do; but counsel for the respondent maintains that:

> "The payee is the one who he heard, namely SITA and UPS; only the payee has audience, not the payer (the applicant); since SITA and UPS have raised no objection, the applicant should not be heard."

Counsel then maintained that this is not a suitable matter for judicial review – as it carries issues of merits, and so oral evidence would need to be taken. Again, with much respect, there is something esoteric about the submission by counsel. I have been unable to see in these proceedings any crucial matter which is in such controversy that proof for it would require anything more than the depositions. Essentially, the questions involved in this matter are questions of law, and the relevant facts are so straightforward as not to require proof by oral evidence.

Mr *Ontweka* contended that a decision to quash the order of the Commissioner of Income Tax would be inappropriate, because there would be no proper direction that can be issued to the Commissioner, who has a "duty of collecting tax." Counsel wondered whether the Commissioner would be hindered in tax collection, if a quashing order were issued.

Counsel contended that the applicant should not be treated as an independent contractor, because there was an agency relationship between it and UPS. In counsel's words:

> "a customer in Kenya cannot walk into a place called UPS, to deliver a parcel, and no party can get such service (presumably the service provided by the applicant) without a consideration."

The argument here, obviously, is that UPS is getting a certain special service from the applicant. But that, I think, would entail that UPS is the one to pay to the applicant for the special service. The essence of the claim here, however, is that it is the applicant who should withhold some of the monies being paid out to UPS. So, who is the agent? And how do "agency fees'"operate? Mr *Ontweka* should have elaborated this point adequately, for it is critical to such legal basis as might exist for the intended tax charge.

As already noted, the waybill shows that the contractual obligation is between UPS and the consignor (and not the applicant). But learned counsel has

challenged this perception of the waybill. He contended that the waybill was addressed to nobody, though there was no information on record regarding the "proper form" of waybills. Counsel did not contend that this particular waybill was in any manner unusual or that the applicant had in any way denatured it serve the applicant's own cause.

Mr *Ontweka* then made submissions on the nature of the export invoices. He noted that the export aspect of these invoices expressly mentioned the name of the applicant. He contested the validity of paragraph 7 of the agreement between the applicant and UPS – which stated that nothing in the contract shall constitute an agency relationship. In counsel's words, "no party can enter into an agreement with the sole purpose of ousting the provisions of a statute." Without much illustration, counsel contended that the said agreement is "not consistent with the Income Tax Act (Chapter 470) which has a different purpose and design."

Learned counsel prayed for the exercise of the Court's discretion to deny the applicant's prayer for orders of *certiorari*. To support this prayer, Mr *Ontweka* cited the High Court decision in *Republic v Kenya Revenue Authority, ex parte Aberdare Freight Services and two others* miscellaneous civil application number 946 of 2004. Mr Justice Nyamu in that matter observed:

> ". . . It must not be forgotten that the Court has a discretion in giving or granting judicial review order. In the circumstance described herein, I find myself unable to exercise that discretion in favour of an applicant who has contributed greatly in adding to the confusion in having the duty-free quota equitably and fairly managed by the relevant authorities."

Mr *Ontweka* contended that if orders of *certiorari* were granted, the Commissioner of Income Tax would have become subject to estoppels, in the discharge of his statutory duties in the collection of income tax. He urged that the application be dismissed for want of compliance with section 35(6) of the Income Tax Act (Chapter 470) and with rule 7(1) of the Income Tax (Withholding Tax) Rules 2001.

VI. *Applicant's response*

Learned counsel, Ms *Malik* restated the applicant's position as being that of a payer; and observed that there was no provision under rule 7(1) regarding the applicant's (ie payer's) right of recourse – where it was convinced withholding tax was not payable. The Act did not state what the payer must do; and therefore, counsel submitted, judicial review was the only recourse open to the payer. Counsel relied on *Halsbury's Law of England* (4ed) (2001), Volume 1(1) paragraph 67:

> "Exhaustion of alternative remedies. The Courts in their discretion will not normally make the remedy of judicial review available where there is an alternative remedy by way of appeal or where some other body has exclusive jurisdiction in respect of the dispute. However, judicial review may be granted where the alternative statutory remedy is 'nowhere near so convenient, beneficial and effectual or where there is no other equally effective and convenient remedy.' This is particularly so where the decision in question is liable to be upset as a matter of law because it is clearly made without jurisdiction or in consequence of an error of law."

Ms *Malik* submitted that judicial review was appropriate in the instant matter, and that alternative recourse being suggested by the respondent was not beneficial, convenient or effectual to the applicant. She contended that it was unlawful for statutory bodies to act in excess of jurisdiction, or to act where they have

no jurisdiction. She submitted that it would amount to abuse of power of the Commissioner of Income Tax who could make a tax demand any time, and upon anyone without jurisdiction. Ms *Malik* contended that the Commissioner was in the habit of expecting payment of tax as soon as a demand was made, and the aggrieved person would raise a complainant only afterwards; and in her view, this makes tax demands punitive in nature.

Learned counsel submitted that the respondent had been unable to explain how the relationship between UPS and the applicant was an agency relationship; nor how payment by the applicant to SITA constituted a royalty.

VII. *Analysis and orders*

Most judicial review proceedings tend to be straightforward matters of public law. The instant one is not in that category. It firstly deals with taxation principles – and this, broadly, may be categorised as public law. Secondly, it is concerned with private law questions founded in contract and the law of agency. It is essential to resolve law issues, as an entry point into questions relating to the exercise of powers for imposing tax charges. Have those public powers been properly exercised? Whether or not they have been duly exercised is the main consideration in the grant or refusal of the applicant's prayers for orders of certiorari to issue.

(a) *Judicial review as a recourse*

Under the Income Tax (Withholding Tax) Rules, an appeal procedure exists whereby the payee (ie the non-resident organisation) may raise a complaint regarding the amount of withholding tax retained by the payer and remitted to the Commissioner of Income Tax. Although counsel for the respondent maintained that this administrative appeal procedure was the only resource open to the applicant, it is clear that the procedure is open to the payee but not to the payer – such as the applicant. Counsel for the respondent also contended that the applicant would have no locus standi before this Court unless first the payee had exhausted the administrative appeal procedure. No authority was cited for this proposition, and no logical argument was attached to it. If that submission were to be accepted, it would mean that the applicant would have been denied a recourse for redress of grievances. That it not a tenable position; for any person aggrieved against another, on a matter bearing legal consequence, must have recourse to the Court. Therefore I do not accept the respondent's position, and hold that the applicant had every right to seek judicial intervention as it did.

What the applicant is questioning is the exercise of a public power, by a public body; and on this account judicial review is eminently an appropriate recourse.

(*b*) *The SITA question: Does access to website constitutes application of a scientific formula and must attract royalty tax?*

It is my understanding that a royalty is a payment made to the creator of an industrial or artistic work or design or contraption which bears a certain "capital" quality and which will serve intellectual or reproduction or entertainment purposes it is for the clear benefits flowing from such works, that their authors or creators are paid royalties. By virtue of the Income Tax Act (Chapter 470), section 35(6), where a Kenya-based person makes such payments to a non-resident person, he is required to retain withholding tax, and to remit the same to the Commissioner of Income Tax.

Does this state of the law capture the payments made by the applicant to SITA, so that the applicant may log onto SITA's website and access information lodged thereon, regarding the movement of containers worldwide? I do not think so and, with respect, I would consider the Commissioner of Income Tax wrong in point of law, in treating payment for mere access to neutral information as payment for a regenerative scientific formula. Payment of such a kind cannot constitute royalties; and therefore it is wrong in law to require that the applicant should make deductions of withholding tax, when it pays for such website information if the Commissioner of Income Tax would consider it appropriate that payments made for such information be the subject of withholding tax, he would, I think, have to wait for the enactment of legislation bringing the same within the scope of such tax. As of now, I would hold that the Commissioner had misapplied the law, and on this account the applicant is justifiably aggrieved.

(*c*) *Agency fees?*

The Commissioner of Income Tax maintains:

> ". . . our stand is, as it has always been, that payments made to UPS by Transami (the applicant) constitute agency fees subject to withholding tax under section 35(1)(*a*) (of the Income Tax Act)."

The relevant provision of the law thus reads:

> "(1) A person shall, upon payment of an amount to a non-resident person not having a permanent establishment in Kenya in respect of:
>
> (*a*) a management or professional fee . . . which is chargeable to tax, deduct there from tax at the appropriate non-resident rate."

While there was no dispute as to whether "agency fees" falls within the category of "management or professional fee," learned counsel for the applicant has disputed the Commissioner's claim that the applicant did pay out any agency fee at all, in respect of which withholding tax should have been deducted. The recorded communications between the Commissioner and the applicant clearly show that the respondent lacks a clear mind on whether or not "agency fees" are payable by the applicant. The Commissioner took the decision not to apply the term "agency fees" to such payments as the applicant made to UPS; he preferred "contractual fees" instead. Yet the tax demand made (by the Commissioner's letter of 17 February 2004) is made on the basis that there exists a contradiction? Section 2 of the Income Tax Act thus defines "management or professional fees":

> "A payment made to a person, other than a payment made to an employee by his employer as consideration for managerial, technical or consultancy services however calculated."

This, I think would cover contractual fees; and therefore if payments by the applicant to UPS are treated as contractual fees, then they will also be management or professional fees, and will thus be liable to withholding tax under section 35(1)(*a*) of the Income Tax Act (Chapter 470). It is, of course, confounding that the Commissioner should communicate with the taxpayer using the terms "agency fees" and "contractual fees" interchangeably; it creates confusion and may, indeed, be typified as a misunderstanding of the law and a possible ground for seeking quashing orders against decisions taken by the Commissioner.

Since what the Commissioner is demanding from the applicant is withholding tax in respect of agency fees, I have to determine whether, indeed, the agency relationship exists in the instant matter.

By the terms of the contract between UPS and the applicant, UPS is an independent contractor, and no agency relationship exists. FMB Reynolds in *Bowstead on Agency* (15ed) paragraph 1 states that:

> "Agency is the fiduciary relationship which exists between two persons, one of whom expressly or impliedly consents that the other should act on his behalf, and the other of whom similarly consents so to act or so acts. The one on whose behalf the act or acts are to be done is called the principal. The one who is to act is the agent. Any person other than the principal and the agent may be referred to as a third party."

Now, between Transami and UPS, who would be principal and who would be agent? It is most important that the Commissioner of Income Tax should be clear on this question, and if he is not, then he will not be invoking the agency relationship according to law. The Commissioner is not clear on the facts. He says in the letter of 17 February 2004:

> "The consignor in Kenya does not pay any fees to UPS since he has no contract with UPS. The fee is paid to Transami since the contract is between the consignor and Transami."

In line with that statement, learned counsel for the respondent did submit:

> "a customer in Kenya cannot walk into a place called UPS, to deliver a parcel."

But counsel for the applicant produced depositions with supporting annexures, showing that the consignor is invoiced by UPS and not by Transami; that the waybill is a UPS waybill and not that of Transami; that UPS could not be regarded as the agent of Transami, because it had no power to affect the legal position of Transami; that any liabilities arising were to be settled between UPS and the consignor only; the contract between UPS and Transami provided for the independence of each party – with neither having the power to contract in the name of the other. Such are, quite clearly attributes of a contract between independent parties, neither of which can rightly be said to be agent of the other.

I have to draw the conclusion, in these circumstances, that "agency fees" as such are, under the Income Tax Act (Chapter 470), inapplicable as between UPS and Transami; and any withholding tax such as may be applicable in respect of payments by Transami to UPS must be categorised under a heading other than "agency fees."

It may well be that there is a heading under which the Commissioner of Income Tax may demand tax charges broadly failing in that category, but it must be expressly stated to be under a different name consistent with the Act. In the Commissioner's present demand, he has not achieved the clarity required, and consequently has caused confusion and anxiety to the applicant, and this amounts to a misapplication of the discretions entrusted to the Commissioner by law.

(*d*) *Orders*

The purpose of judicial review is to uplift the quality of public decision making, and thereby ensure for the citizen civilised governance, by holding the public authority to the limit defined by law. I have found in these proceedings that the Commissioner of Income Tax is exercising far-reaching tax-levying powers in a rather haphazard manner which is not in accordance with the law.

While the law entrusts tax-collection powers to the Commissioner, and it is indeed in the public interest that he should discharge that mandate, he must not apply methods that are random and wanting in regularity, with the result that unequal and oppressive conduct results.

I therefore, hereby, issue an order of *certiorari*, to remove into the High Court for purposes of being quashed the decision and order of Commissioner of Income Tax dated 17 February 2004 whereby he has invoked the provisions of section 35(6) of the Income Tax (Chapter 470) to recover withholding tax, on the basis of alleged agency relations and of royalty payments in respect of SDV Transami (Kenya) Limited in its dealings with UPS and SITA.

The respondent shall pay the costs of these proceedings.

Orders accordingly.

For the applicant:
Ms N Malik instructed by Kaplan & Statton Adv

For the respondent:
Mr DO Ontweka instructed by Kenya Revenue Authority

Rono v Rono and another
[2005] 1 EA 363 (CAK)

Division:	Court of Appeal of Kenya at Eldoret
Date of judgment:	29 April 2005
Case Number:	66/02
Before:	Omolo, O'kubasu and Waki JJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Constitution – Fundamental rights – Discrimination on grounds of sex – Whether customary law of patrilineal succession of land discriminatory – Section 82 – Constitution of Kenya.

[2] International law – Customary international law and ratified treaties – Whether relevant in interpretation of statutory law – Whether African customary law on succession would be interpreted in light of customary international law prohibiting sex discrimination.

[3] Succession – Distribution of land – Relevance of customary law – Factors to be taken into account in distributing agricultural land between widows, sons and daughters of the deceased – Section 3 – Judicature Act (Chapter 8) – Sections 27, 29, 32, 33 and 40 – Law of Succession Act (Chapter 160).

Editor's Summary

The deceased died intestate leaving two wives, three sons and two daughters from the first house and four daughters from the second house. The parties agreed on the distribution of all the assets of the

deceased except for his 192 acre freehold land. The first house suggested that each widow and daughter get 14 acres while each son gets 22 acres. The second house proposed that each house gets 96 acres.

The superior Court considered the customary law of the deceased wherein succession was patrilineal with equal allocation to each house but daughters

receiving no share of inheritance. The Court also considered statutory law in which distribution was done to dependants and division to houses according to number of units adding the widow as an additional unit. The trial Judge did her own independent distribution in which she gave each daughter an equal share of five acres, each son an equal share of 30 acres and the two widows 20 and 50 acres respectively. The share was to account for the fact that daughters were likely to marry, and that the widow with four daughters would get a bigger share since she had no son with a big share.

The second house appealed, arguing that there was no statutory basis for awarding differential shares to daughters and sons without a special inquiry. In response, it was argued that agricultural land was exempt from the statutory directions on distribution and was subject to the customary law of the deceased.

Held – Customary law is applicable in Kenya only insofar as it is not repugnant to justice and morality and not inconsistent with any written law. Discrimination on grounds of sex is prohibited in the Constitution, but with a proviso excluding laws relating to adoption, marriage, divorce, burial and succession. International customary law may however be relevant in determining what constitutes discrimination, including the fact that Kenya has ratified even though not adopted numerous international instruments prescribing elimination of discrimination against women. *Longwe v International Hotels* [1993] 4 LRC 221 adopted.

Customary law is excluded from application in statutory succession except where there is an express provision allowing its application. The Act does allow customary law to be applied in respect of agricultural land and crops thereon, but only in such areas as the Minister by notice in the *Gazette* may specify. The Minister did publish a list of various districts but the domicile of the deceased was not included. Hence the law applicable to the distribution of the agricultural land was statutory law.

Under statutory law, the superior Court has discretion to take into account fairness in determining the distribution to dependants. This discretion must be exercised on sound factual and legal basis. The possibility of girls marrying is only one factor that may be considered. Equal treatment of the children by the deceased was another factor. However, in intestate succession, there was no principle of law that the houses of the deceased, or the children/beneficiaries, must inherit equally.

Appeal allowed. Court makes independent distribution of 30 acres to each widow and 14,4 acres to each child of the deceased.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Longwe v International Hotels [1993] 4 LRC 221 – **A**

Judgment

Waki J: This is a succession matter relating to the estate of Stephen Rono Rongoei Cherono, who died intestate on 15 July 1988 at the age of 64. He was

a farmer in Uasin Gishu. At the time of his death he left a sizeable number of properties, both movable and immovable. He was also survived by two wives and nine children (six daughters and three sons). In probate and administration cause number 40 of 1988, the High Court in Eldoret granted letters of administration to the two widows and the eldest son without objection from other members of the family. Disputes however soon arose about the distribution of the assets and liabilities of the distribution by the Court. Ultimately on 12 June 1997, Nambuye J delivered her judgment (dated 5 May 1997) determining the distribution. The second widow however, together with her children was dissatisfied with that judgment and so preferred an appeal to this Court.

Undisputed facts

From the record and findings of the superior Court, the following facts are common ground:

1. The deceased had two wives, Jane Toroitich Rono (hereinafter "Jane") the first widow, and Mary Toroitich Rono (hereinafter "Mary"), the second widow.
2. The deceased had three sons and two daughters with Jane:
   (i) William Malakwen Rono (William).
   (ii) Samwel Bet Rono.
   (iii) John Toroitich Rono.
   (iv) Mary Kipsiro (Chebii) Rono.
   (v) Lina Chepkemoi Rono.
3. Mary Kipsiro (Chebii) Rono, the eldest daughter, aged 42 years at the time of hearing in 1994, was married but divorced her husband and returned home with four children of the marriage.
4. Lina Rono, the second born daughter aged 40 in 1994, was unmarried but staying in a loose cohabitation with a man and had two children.
5. The deceased had four daughters with Mary:
   (i) Rose Cheruiyot Rono (Rose).
   (ii) Cherotich Rono.
   (iii) Grace Rono.
   (iv) Joan Jepkemboi (Kipkemboi) Rono.
6. Rose, aged 32 years in 1994 was married under custom (though no dowry was paid) and had four children.
7. Cherotich aged 30 in 1994 was unmarried with no children.
8. Grace aged 29 in 1994 was unmarried but a single parent of one child.
9. Joan Jepkemboi aged 20 years in 1994 was unmarried with no children.
10. The following assets were left unencumbered and available for distribution:
    (*a*) Land: 192 acres of freehold, land registration number 9249 comprising approximately 303 acres, farmhouse on land registration number 9249 and three quarters of an acre of undeveloped commercial plot number 117, Iten Township.
    (*b*) Vehicles and machinery: Motor vehicle registration number KTX 951, Toyota Hilux, Ford tractor registration number KLV 349, posho mill complete with a lister engine, water tank, mill and five stores, fodder chopper, Maize Sheller and tractor plough.

(*c*) Household furniture and effects: four beds, two wardrobes, book shelf, two dining tables and six dining chairs, four stools, coffee table in the shape of map of Africa, two chest drawers, three pressure lamps, two hurricane lamps, sewing table, typewriter, record player, wall clock, milk separator, fixed washing basins, two lamp stands, water tank boiler, milk cans, one National radio, wall safe.

11. The following liabilities were left unsettled by the deceased:

(i) Hospital bill KShs220 884-50

(ii) AFC loan KShs31 366-70

(iii) Iten County Council rates KShs5 518-10

(iv) Income tax KShs103 760-00

(v) Settlement Fund Trustees Loan (unknown)

12. The deceased belonged to the Keiyo sub-tribe of the Kalenjin Community.

13. The deceased lived with his two wives and children in one farmhouse and treated all of them equally.

The dispute

The dispute was highlighted in the viva voce evidence of William supported by Jane, representing the first house, and by Rose, supported by Mary, representing the second house.

Both houses were agreed on the distribution relating to the Iten township plot, the Toyota vehicle, the tractor and its implements, the posho mill together with water tank and stores, the fodder-chopper and all the household furniture and effects except six items of minor significance. The major bone of contention related to the distribution of the 192 acres of land and the liabilities of the estate.

The proposal put forward by the first house in respect of the land was that the first house would share 108 acres; 22 acres going to the three sons and 14 acres each, to Jane and her two daughters. The second house would share 70 acres; all five of them, including Mary getting 14 acres each. The remaining 14 acres would comprise: 11 acres for a market where each member of the family would be entitled to one acre; two acres for a communal cattle dip, and one acre for the farm house where all members of the family were entitled to reside. The rationale for giving a bigger share to the first house and to the male children was because the land was bought and improvements were made, before the second house came into existence, and because the girls of the family had an option of getting married and leaving the home. At all events, according to Keiyo traditions, girls have no right to inheritance of their father’s estate.

The second house saw plain discrimination in that proposal and proposed a 50/50 share of the land, each house receiving 96 acres and deciding what to do with it. Nothing would be set aside for communal use except a cattle dip and the farmhouse which would be occupied by all but remain as part of the half share for each house. There was no evidence, they contended, that the first house worked harder on the land than the second house and in any event the deceased treated and educated them all equally without discriminating between boys and girls in his lifetime. He had even given one of the sons of the first house, (Samwel) to the second house where there were no sons.

As for liabilities, the first house proposed that they settle the Aga Khan Hospital bill in the sum of KShs264 525 while the second house settles the other

bills relating to AFC, income tax, Lands Office and County Councils, all totaling to KShs203 271-95. That would be in the ratio of 60:40. On the other hand, the second house proposed an equal liability payment of all debts at the ratio of 50/50.

The High Court decision

In arriving at what it called "its own independent distribution," the superior Court considered both customary and statutory laws on succession. It made a finding that the deceased was Marakwet, although the evidence was that he was Keiyo. The Elgeyo subtribe (also referred to as Keiyo) are listed in the same chapter as the "Marakwet" and the "Tugen" in Cotran's Restatement of African Law Volume 2, which the superior Court referred to for the proposition that the pattern of inheritance was patrilineal, and that in polygamous households distribution was by reference to the house of each wife irrespective of the number of children in it. Daughters receive no share of inheritance. The superior Court also referred to the Law of Succession Act (Chapter 160) sections 27, 28, 40(1) and (2) relating to distribution to dependants and division to houses according to the number of units, adding the widow as an additional unit. In the end, the learned Judge took into consideration the wishes of the parties and of written law that the girls getting married and inheriting further property from their own families would give them an unfair advantage over the other family members. She held:

> "The situation prevailing here is rather peculiar though not uncommon in that one house has sons while another has only daughters. Statute law recognises both sexes to be legible for inheritance. I also note that it is on record that the deceased treated his children equally. It follows that all the daughters will get equal shares and all the sons will get equal shares. However due to the fact that daughters have an option to marry the daughters will not get equal shares to boys. As for the widows if they were to get equal shares then the second widow will be disadvantaged as she does not have sons. Her share should be slightly more than that of the first widow whose sons will have bigger shares than daughters of the second house."

The distribution of the land thus ended up as follows:

(*a*)	Widows	
	Jane	20 acres
	Mary Rono	50 acres
	Total	70 acres
(*b*)	Daughters	
	Lina Rono	5 acres
	Mary Chebii	5 acres
	Cherutich Rono	5 acres
	Grace Rono	5 acres
	Chepkemboi Rono	5 acres
	Rose Rono	5 acres
	Total	30 acres
(*c*)	Sons	
	William Rono	30 acres
	Samuel Rono	30 acres
	John Rono	30 acres
	Total	92 acres

The liabilities were distributed as follows:

First house

(*a*)	Hospital bill	KShs110 442-25
(*b*)	AFC Loan	KShs15 683-35
(*c*)	Iten County Council	KShs2 889-00
(*d*)	Wareng County Council Rates	KShs1 759-05
(*e*)	Income tax	KShs51 880-00
	Total	KShs182 653-65

Second house

(*a*)	Hospital bill	KShs110 442-25
(*b*)	AFC Loan	KShs15 683-35
(*c*)	Iten County Council Rates	KShs2 889-00
(*d*)	Wareng County Council Rates	KShs1 759-05
(*e*)	Income tax	KShs51 880-00
	Total	KShs182 653-65

The other orders made by the superior Court are contained in the decree issued on 21 March 2002 and are not challenged save for the omission to provide that half share of plot number 117, Iten Township would go to the second widow, Mary Rono, which omission is conceded in this appeal.

The appeal and submission of counsel

The decree of the superior Court challenged by Mary on 11 grounds but it is unnecessary to reproduce them since one ground was abandoned and the rest were condensed into three and were ably argued as such by learned counsel for the appellant, Mr P *Gicheru*.

The main ground was that the superior Court erred in taking into consideration the Marakwet customary law or any customary law, since the estate that fell for consideration was governed by the Law of Succession Act (Chapter 160) Laws of Kenya. Section 3(2) of that Act defines “child” without any discrimination on account of sex. The Constitution of Kenya also in section 82 outlaws discrimination on grounds, *inter alia*, of sex. Mr *Gicheru* thus submitted that section 40 of the Succession Act should have been applied in which case all the children and the widows would have been considered as units, entitling them to equal distribution of land. It was erroneous therefore to entertain the consideration that the girls would have unfair advantage due to the possibility of their future marriage. On the evidence the girls in both houses were advanced in age in 1994 and were still unmarried or divorced 10 years later when this appeal was argued. The speculation that they would marry had therefore no basis. As there was no special inquiry made to determine whether any of the heirs deserved more land than the others, there was no basis for discriminating against the girls. It did not matter, he submitted, that the appellant received 50 acres, which is 30 acres more than her co-widow. Such distribution would still be contrary to the law and the purpose of the appeal was to enforce compliance with the law of succession.

For his part, learned counsel for the respondents, Mr PKK *Birech* submitted on this issue that the superior Court Judge had a discretion to distribute the estate and she cannot be faulted. She considered and discarded the application of customary law. She then applied sections 27, 28 and 40 of the Succession Act. He conceded that the Act catered for all children including unmarried

daughters but referred to section 33 of the Act which exempts the application of the Act to agricultural land and livestock and subjects distribution of such property on intestacy to the law or custom applicable to the deceased's community or tribe. The superior Court was justified therefore in considering customary law and giving only nominal acreage of the land to the girls.

The second ground of appeal, was readily conceded, was that there was no mention in the judgment or decree about the remaining half share of plot number 117 in Iten Township after the superior Court distributed one half of it to the first widow, Jane. It was submitted and accepted, that the remaining half share should go to the appellant, Mary.

Finally on the third ground of appeal on distribution of liabilities, Mr *Gicheru* submitted that it was inequitable for the learned Judge, having dished out a large portion of the immovable property to the first house, to order payment of the sizeable liabilities on equal basis. The distribution of the liabilities should be proportionate to the distribution of assets. For his part Mr *Birech* saw nothing wrong with ordering the girls to pay up the liabilities since they had shared in the assets of the estate.

The law

Tha manner in which Courts apply the law in this country is spelt out in section 3 of the Judicature Act (Chapter 8) Laws of Kenya. The application of African customary laws takes pride of place in section 3(2) but it is circumscribed thus:

> ". . . so far as it is applicable and is not repugnant to justice and morality or inconsistent with any written law . . ."

The Constitution, which takes hierarchical primacy in the mode of exercise of jurisdiction, outlaws any law that is discriminatory in itself or in effect. That is section 82(1). In section 82(3), it defines discrimination as follows:

> ". . . affording different treatment to different persons attributable wholly or mainly to their respective descriptions by race, tribe, place of origin or residence or other local connexion, political opinions, colour, creed, or sex whereby persons of one such description are subjected to disabilities or restrictions to which persons of another such description are not made subject or are accorded privileges or advantages which are not accorded to persons of another such description."

That provision has not always been the same with regard to discrimination on grounds of sex; "or sex" was inserted in a relatively recent constitutional amendment by Act 9 of 1997. In the same section however, the protection is taken away by provisions in section 82(4) which allow discriminatory laws, thus:

> "Subsection (1) shall not apply to any law so far as the law makes provision:
>
> (*a*) . . .
>
> (*b*) With respect to adoption, marriage, divorce, burial, devolution of property on death or other matters of personal law;
>
> (*c*) For the application in the case of members of a particular race or tribe of customary law with respect to that matter which is applicable in the case of other persons; or
>
> (*d*) Whereby persons of a description mentioned in subsection (3) may be subjected to a disability or restriction or may be accorded a privilege or advantage which,

> having regard to its nature and to special circumstances pertaining to those persons or to persons for any other description, is reasonably justifiable in a democratic society."

Is international law relevant for consideration in this matter? As a member of the international community, Kenya subscribes to international customary laws and had ratified various international covenants and treaties. In particular, it subscribes to the international Bill of Rights, which is the Universal Declaration of Human Rights (1948) and two international human rights covenants: the Covenant on Economic, Social and Cultural Rights and the Covenant on Civil and Political Rights (both adopted by the United Nations General Assembly in 1966). In 1984 it also ratified, without reservations, the Convention on the Elimination of All Forms of Discrimination Against Women, in short "CEDAW." Article 1 thereof defines discrimination against women as:

> "Any distinction, exclusion or restriction made on the basis of sex which has the effect or purpose of impairing or nullifying the recognition, enjoyment or exercise by women irrespective of their marital status, on a basis of equality of men and women, of human rights and fundamental freedoms in the political, economic, social, cultural, civil or any other field."

In the African context, Kenya subscribes to the African Charter of Human and Peoples' Rights, otherwise known as the Banjul Charter (1981), which it ratified in 1992 without reservations. In article 18, the Charter enjoins member states, *inter alia*, to:

> ". . . ensure the elimination of every discrimination against women and also ensure the protection of rights of the woman and the child as stipulated in international declarations and conventions."

It is in the context of those international laws that the 1997 amendment to section 82 of the Constitution becomes understandable. The country was moving in tandem with emerging global culture, particularly on gender issues. There has of course, for a long time, been raging debates in our jurisprudence about the application of international laws within our domestic context. Of the two theories on when international law should apply, Kenya subscribes to the common law view that international law is only part of domestic law where it has been specifically incorporated. In civil law jurisdictions, the adoption theory is that international law is automatically part of domestic law except where it is in conflict with domestic law. However, the current thinking on the common law theory is that both international customary law and treaty law can be applied by State Courts where there is no conflict with existing State law, even in the absence of implementing legislation. Principle 7 of the Bangalore Principles on the Domestic Application of International Human Rights Norms states:

> "It is within the proper nature of the judicial process and well established functions for national Courts to have regard to international obligations which a country undertakes – whether or not they have been incorporated into domestic law – for the purpose of removing ambiguity or uncertainty from national constitutions, legislation of or the common law."

That principle, amongst others, has been reaffirmed, amplified, reinforced, and confirmed in various other international fora as reflecting the university of human rights inherent in men and women. In *Longwe v International Hotels* [1993] 4 LRC 221, Musumali J stated:

> ". . . ratification of such (instruments) by a nation State without reservations is a clear testimony of the willingness by the State to be bound by the provisions of such (instruments).

> Since there is that willingness, if an issue comes before this Court which would not be covered by local legislation but would be covered by such international (instrument), I would take judicial notice of that Treaty Convention in my resolution of the dispute."

A clear pointer to the currency of that thinking in this country is in the draft Constitution where it is proposed that the Laws of Kenya comprise, amongst others:

> "Customary international law and international agreements applicable to Kenya."

I have gone at some length into international law provisions to underscore the view I take in this matter that the central issue relating to discrimination which this appeal raises, cannot be fully addressed by reference to domestic legislation alone. The relevant international laws which Kenya has ratified, will also inform my decision.

Conclusion

The deceased in this matter died in 1988, while the Succession Act which was enacted in 1972, became operational by Legal Notice number 93 of 1981, published on 23 June 1981. I must therefore hold, as the Act so directs, that the estate of the deceased falls for consideration under the Act. Section 2(1) provides:

> "2(1) Except as otherwise expressly provided in the Act or any other written law, the provisions of this Act shall constitute the law of Kenya in respect of, and shall have universal application to, all cases of intestate or testamentary succession to the estate of deceased persons dying after the commencement of this Act and to the administration of estates of those persons."

The application of customary law, whether Marakwet, Keiyo or otherwise, is expressly excluded unless the Act itself make provisions for agricultural land and crops thereon or livestock where the law or custom applicable to the deceased's community or tribe should apply. But the application of the law or custom is only limited to "such areas as the Minister may by Notice in the *Gazette* specify." By Legal Notice number 94 of 1981, made on 23 June 1981, the Minister specified the various districts in which those provisions are not applicable. The list does not include Uasin Gishu district within which the deceased was domicile. So that, the law applicable in the distribution of the agricultural land in issue in this matter is also written law. Does the Act provide for the manner of distribution? Partly yes.

The superior Court was of the view that section 27 of the Act donates unfettered discretion to the Court in the sharing of the estate considering the definition of "dependant" in section 29 to include the "wife and the children of the deceased." It is in exercise of that discretion that the learned Judge disregarded consideration of the sharing proposed by the parties altogether and made her "own independent distribution." It was also pursuant to that discretion that she based her decision to allocate minimal shares to the daughters on the basis that they would get married.

While I do not doubt the discretion donated by the Act in matters where dependents seek a fair distribution of the deceased's net estate I think the discretion, like all discretions exercised by Courts, must be made judicially or put it another way, on sound legal and factual basis. The possibility that girls in any particular family may be married is only one factor among others that may be considered in exercising the Court's discretion. It is not a determining factor. In this particular case however, I find no firm factual basis for making a finding that the daughters

would be married. As shown by the undisputed facts above, all except one were unmarried or divorced in 1994 and were advanced in age. Eleven years later when this appeal was heard, there was no evidence that the situation had changed. It is also an undisputed fact that the deceased treated all his children equally and never discriminated between them on account of sex. It is a factor in my view that was not sufficiently considered although it resonates with the noble notions enunciated in our Constitution and international laws. The respondents themselves clearly recognised and honoured the wishes of the deceased when they proposed to give 14 acres of the land to each daughter of the deceased. I find no justification for the superior Court whittling that proposal down to five acres to each daughter. More importantly, section 40 of the Act which applies to the estate makes provisions for distribution of the net estate to the "house according to the number of children in each house, but also adding my wife surviving the deceased as an additional unit to the number of children." A "house" in a polygamous setting defined in section 3 of the Act as a "family unit comprising a wife . . . and the children of that wife." There is no discrimination of such children on account of their sex.

I think, in the circumstances of this case there is considerable force in the argument by Mr *Gicheru* that the estate of the deceased ought to have been distributed more equitably taking into account all relevant factors and the available legal provisions. I now take all that into account, and come to the conclusion that the distribution of the land, which is the issue falling for determination, must be set aside and substituted with an order that the net estate of 192 acres of land be shared out as follows:

(*a*) Two acres for the farm house now commonly occupied by all members of the family to be held in trust by the joint administrators of the estate.

(*b*) 30 acres to the first widow, Jane Toroitich Rono.

(*c*) 30 acres to the second widow, Mary Toroitich Rono.

(*d*) 14,44 acres to each of the nine children of the deceased.

As for the liabilities, they should in reality have been paid off by the estate as a whole before distribution of the net intestate estate. The superior Court however found it fit to distribute the liabilities equally between the two houses, and the only challenge on appeal was that the distribution of the land should have been similarly treated. As I have interfered with the distribution of the land, I find no further basis for disturbing the order by the superior Court in respect of liabilities.

In the result, I would allow the appeal to the extent stated above. A fresh decree would issue accordingly. As this is a family matter, each party shall bear its own costs.

Omolo JA: I had the advantage of reading in draft form the judgment prepared by Waki JA, and while I broadly agree with that judgment, I nevertheless wish to point out that I do not understand the learned Judge to be laying down any principle of law that the Law of Succession Act (Chapter 160) of the Laws of Kenya, lays down as a requirement that heirs of a deceased person must inherit equal portions of the estate where such a deceased dies intestate and that a Judge has no discretion but to apply the principle of equality as was submitted before us by Mr *Gicheru*. I can find no such provision in the Act. Section 40(1) of the Act provides that:

> "Where an intestate has married more that once under any system of law permitting polygamy, his personal and household effects and the residue of the net intestate estate shall, in the first instance, be divided among the houses *according to the number of children in each house*, but also adding any wife surviving him as an addition unit to the number of children." (emphasis added)

My understanding of that section is that while the net intestate estate is to be distributed according to houses, each house being treated as a unit, yet the Judge doing the distribution still has a discretion to take into account or consider the number of children in each house. If Parliament had intended that there must be equality between houses, there would have been no need to provide in the section that the number of children in each house be taken into account.

Nor do I see any provision in the Act that each child must receive the same or equal portion. That would clearly work an injustice particularly in case of a young child who is still to be maintained, educated and generally seen through life. If such a child, whether a girl or a boy, were to get an equal inheritance with another who is already working and for whom no school fees and things like that were to be provided, such equality would work an injustice and for my part, I am satisfied the Act does not provide for that kind of equality.

What I understand Waki JA, to be saying is that in the circumstances of this particular case, there was no reasonable factual basis for drawing a distinction between the sons on the one hand and the daughters on the other hand. Subject to what I have said herein, I agree with the judgment of Waki JA and the orders proposed by him. Those orders shall be the order of the Court.

O'Kubasu JA concurs in the judgments of Waki and Omolo JJA.

For the appellant:
Mr P Gicheru instructed by *Kalya & Co*

For the respondents:
Mr PKK Birech instructed by *Birech Ruto & Co*

Standard Chartered Bank Ltd and another v Abok and another
[2005] 1 EA 373 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of ruling:	22 April 2005
Case Number:	265/04
Before:	Omolo, Tunoi, and Onyango Otieno JJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Appeal – Extension of time – Application initially filed in the superior Court and dismissed – Subsequent application filed in the appellate Court – Whether applicant entitled to seek further extension – Section 7 – Appellate Jurisdiction Act (Chapter 9) – Rule 4 – Court of Appeal Rules.

Editor’s Summary

The issue in this application was whether a party intending to appeal to the Court of Appeal who seeks an enlargement of time for that purpose can

concurrently seek recourse in the superior Court and upon failure apply afresh to the Court of Appeal.

Held – The purpose of section 7 of the Appellate Jurisdiction Act and rule 4 of the Court of Appeal Rules is the same, namely extension of time to lodge an appeal to the Court of Appeal. The applicant has a choice of which forum to go to. However, a party who chooses to seek extension of time for lodging an appeal in the superior Court cannot simply ignore those orders and file a further application to the Court of Appeal. If he seeks a review of the superior Court's decision, he can only move to the Court of Appeal by obtaining leave. *Kigi and others v Mwaura and another* [1997] LLR 603 (CAK) followed.

Case referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Kigi and others v Mwaura and another [1997] LLR 603 (CAK) – **F**

Ruling

Omolo, Tunoi and Onyango Otieno JJA: The simple point that the learned single Judge of this Court was called upon to decide and which he decided in his ruling of 3 December 2004, which ruling is now the subject of the reference before us, is whether a party intending to appeal to the Court and who seeks an enlargement of time for that purpose, can concurrently use the provision of section 7 of the Appellate Jurisdiction Act, Chapter 9 and rule 4 of the Court's Rules made pursuant to section 5 of the same Act. Section 7 of the Act provides:

> "the High Court may extend time for giving notice of intention to appeal from a judgment of High Court or for making an application for leave to appeal for a certificate that the case is fit for appeal, notwithstanding that the time for giving such notice or making such appeal may have already expired."

We are concerned with extension of time to give a notice of intention to appeal. The judgment the applicants intend to appeal against was delivered by the High Court at Kisumu on 9 July 2004. It appears that the applicant's counsel were not present at the delivery of the judgment, and when they became aware of the judgment, time for giving the notice of intention to appeal had long gone by.

The applicants then called in aid the provision of section 7 of the Act and they asked the High Court at Kisumu to extend time for them. Warsame J heard their plea but rejected on 19 October 2004. The applicants sought and obtained leave to appeal from Warsame J but appear to have simply ignored the decision and the leave granted and instead invoked the provisions of rule 4 of the Court Rules, that rule provides:

> "the Court may, on such terms as it thinks just, by order extend the time limited by these rules or any decision of the Court, or of a superior Court, for the doing of any act authorised or required by these rules, whether before or after the doing of the act, and reference in these rules to any such time shall be construed as a reference to that time as extended."

The purpose of section 7 of the Act and rule 4 of the Rules is basically the same – the enlargement of time within which to do something authorised or required by the Act or the Rules to be done within a specific period. The legal position is that a party minded to seek an enlargement of time can use either of the two provisions. The Court of Appeal does not have registries all over Kenya and so under section 7 of the Act, a party can ask the High Court to enlarge time for him and High Court has the jurisdiction to hear the application and either accept it or reject it. This is what the applicants chose to do; they were entitled to go before Warsame J and that learned Judge had jurisdiction to hear and determine the application. He rejected the application and according to Mr *Kuloba* for the applicants, they were entitled to simply ignore the orders of Warsame J and come to this Court under rule 4. The learned single Judge who heard the application under rule 4 in effect held that the matter having been heard and determined by a Court which had the jurisdiction to hear and determine it, there was nothing further for him to hear and determine. He could not simply ignore the orders made by Warsame J and the matter was not and could not have been before him by way of appeal. It was not a reference to him because there is no provision for making a reference to the Court from a decision made by the High Court under section 7 that there is no provision similar to that in rule 54. So that whether one calls it lack of jurisdiction or whether one designates the matter as being *res judicata*, there was really nothing for the learned single Judge to hear and decide, the matter having been lawfully heard and determined by Warsame J. The only way the applicants could have challenged the decision of Warsame J was by way of appeal. It was mischievous, indeed an abuse of the process of the Court to simply ignore the decision of Warsame J lawfully made by him pursuant to section 7 of the Act. A party who seeks to have time extended for him must choose whether to follow the provision of section 7 of the Act or rule 4. If he opts for section 7 of the Act, then he can only come to this Court by way of an appeal. As Shah JA (as he then was) correctly pointed out:

> "Let us assume that the High Court orders extension of time. The respondent in the High Court then can only appeal against that decision with leave. Such leave may be refused. The respondent then has to come to this Court for such leave. On a hearing before a single Judge in this Court the aggrieved party's remedy simply is to invoke the provision of rule 54 of the Rules. I can imagine a situation whereby this Court will become bogged down by such appeals as I have just referred to…" See *Kigi and others v Mwaura and another* [1997] LLR 603 (CAK).

The concern of Shah JA can be illustrated in this reference. Suppose Standard Chartered Bank Limited and Wafula Nabutola, the applicants herein, had been successful before Warsame J and Peter Oguko Abok and Petronila Akech, the respondents were dissatisfied with the decision of Warsame J, the only way which would be open to them to challenge the decision would be to seek leave and if leave was granted to lodge an appeal. They, ie respondents could not refer the decision of Warsame J to a bench of this Court because as we have said, section 7 of the Act does not provide for such a defence. So that in case of the respondent, they are left only with the process of appeal.

Mr *Kuloba* contends that in the case of the applicants, they can simply ignore the decision of the High Court made pursuant to section 7 and invoke the provisions of rule 4. The learned single Judge rejected that proposition. With

respect we agree with him, and that being the only issue which was raised before us in the reference, itself must fail. We order that the reference be and is hereby dismissed with costs to the respondent.

For the applicants:
Mr Kuloba

For the respondents:
Information not available

Standard Ltd v Gekonga and others
[2005] 1 EA 376 (CAK)

Division:	Court of Appeal of Kenya at Nakuru
Date of ruling:	25 February 2005
Case Number:	131/04
Before:	Githinji JA
Sourced by:	LawAfrica
Summarised by:	E Ongoya

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[1] Civil procedure – Application for extension of time to file appeal – Discretion of Court – Factors to consider in exercising Court's discretion – Rule 4 – Court of Appeal Rules.

[2] Civil procedure – High Court – Relating to appeals from judgment of the High Court – Whether High Court can extend time for the filing of an application in Court of Appeal for extension of time to lodge appeal – Section 7 – Appellate Jurisdiction Act (Chapter 9).

Editor's Summary

On 11 July 2003, the Superior Court awarded a total of KShs2 600 000 to the respondent as damages for libel. It is against the judgment awarding these damages that the applicant sought orders, under rule 4 of the Court of Appeal Rules, for extension of the time limited for lodging a notice of appeal and a record of appeal. The affidavits in support of the application revealed that the applicant had only taken two steps to lodge a competent appeal since the judgment was delivered. The first action was when a pupil in the applicant's advocates' office travelled to Nakuru on 24 July 2005 to file a notice of appeal but did not succeed because the judgment was read in Nairobi and the file was still in Nakuru. The second action was when the applicant filed an application in the superior Court under section 7 of the Appellate Jurisdiction Act (Chapter 9, Laws of Kenya) for the extension of time for lodging a notice of appeal. To the latter application, the superior Court ordered that by consent the applicant to lodge an application in the Court of Appeal, for extension of time to file the appeal out of time within 45 days. The respondent opposed the application on the grounds that the applicant did not attempt to file the notice of appeal in Nairobi or to have the file returned to High Court Nakuru for lodging the notice of appeal was filed in the High Court 151 days from the date of judgment and was prompted by a threat of execution; that no reason had been given for the delay of 151 days which was inordinate and that the application was filed 40 days after the consent order of the High Court.

Held – Before the Court of Appeal can exercise its unfettered discretion to extend time in favour of an applicant, the applicant is required to satisfy the Court, *inter alia*, that; there is merit in the appeal, the extension of time will not cause undue prejudice to the respondent, and, delay has not been inordinate (*Wasike v Swara* [1984] KLR 591; *Mutiso v Mwangi* [1999] 2 EA adopted).

The High Court has jurisdiction under section 7 of the Appellate Jurisdiction Act to extend the time for giving notice of intention to appeal from the judgment of the High Court or for making an application from leave to appeal or for a certificate that the case is fit for appeal. The High Court has no jurisdiction under the section to extend time for the filing of an application in the Court of Appeal to lodge a notice of appeal.

The assessment of damages by a trial Court is an exercise of discretion and the appellant Court will not normally interfere with such exercise of discretion unless the Judge has either acted on wrong principles or awarded so excessive or so inordinately low damages or taken into consideration irrelevant matters and in the result arrived at the wrong decision (*Butler v Butler* [1984] KLR 225 followed).

Application dismissed.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Butler v Butler [1984] KLR 225 – **F**

Mutiso v Mwangi [1999] 2 EA – **A**

Wasike v Swara [1984] KLR 591 – **A**

Ruling

Githinji JA: The applicant prays under rule 4 of the Court of Appeal Rules for an order that the time limited for lodging a notice of appeal and a record of appeal against the judgment of the superior Court dated 11 July 2003, be extended.

On 2 December 1997, Mong'are Gekong'a (respondent) and Omari Momanyi (deceased) both advocates of High Court of Kenya trading as Gekonga Momanyi advocates filed a suit in the superior Court against the applicant, The Standard Limited, claiming damages for libel. The superior Court however dismissed the entire suit after trial.

Omari Momanyi died shortly thereafter. The respondent filed civil appeal number 233 of 2000 in this Court against the dismissal of the suit. This Court ultimately allowed the appeal on 18 October 2002, set aside the order dismissing the suit and entered judgment on liability in favour of the respondent with a further order that the suit be remitted to superior Court for assessment of damages. Subsequently on 11 July 2003 the superior Court awarded a total of KShs2 600 000 to the respondent as damages for libel. The applicant intends to appeal against that award.

Before the Court can exercise its unfettered discretion to extend time in favour of the applicant, the applicant is required to satisfy the Court, *inter alia*, that:

(*a*) There is merit in the appeal.

(*b*) That the extension of time will not cause undue prejudice to the respondent.

(*c*) The delay has not been inordinate.

(See *Wasike v Swara* [1984] KLR 591, *Mutiso v Mwangi* [1999] 2 EA).

The application is supported by two affidavits – one sworn by David *Majanja*, advocate, and the second one by Geoffrey Imende, a pupil in the firm of Messrs *Mohammed Muigai Advocates*, the applicant's advocates. The affidavit shows that the applicant has taken only two steps to lodge a competent appeal since the judgment was delivered.

The first action is when Geoffrey Imende travelled to Nakuru on 24 July 2005 (Mr *Majanja* refers to 25 July 2003), to file a notice of appeal but he did not succeed because the judgment was read in Nairobi and the file was still in Nairobi. The second action is when the applicant filed an application in the superior Court under section 7 of the Appellate Jurisdiction Act (Chapter 9) for the extension of time for lodging a notice of appeal; that the application is not annexed but an order made by Kimaru J by consent on 25 March 2004, is annexed. It reads:

"2. That the applicant to lodge an application in the Court of Appeal for extension of time to file the appeal out of time within 45 days from today's date."

The applicant's counsel deposes that the present application was filed within the 45 days.

The application is opposed. The respondent's counsel deposes *inter alia* that the applicant did not attempt to file the notice of appeal in Nairobi or have the file returned to High Court Nakuru for lodging the notice of appeal; that, the application for the extension of time for filing the notice of appeal was filed in the High Court 151 days from the date of judgment and was prompted by a threat of execution; that no reason has been given for the delay of the 151 days which delay is inordinate and that the present application was filed 40 days after the consent order of the High Court dated 23 March 2004.

I have considered the perspective affidavits and oral submissions. The judgment (award) that the applicant intends to appeal against was given on 11 July 2003. The 14 days prescribed for filing a notice of appeal expired on 25 July 2003. Even if an abortive attempt was made on 24 July 2003 to file a notice of appeal in Nairobi the applicant was taking action when the time limited for the filing of the notice of appeal was expiring or about to expire.

There was no attempt made to file the notice of appeal in Nairobi. Thereafter, the applicant did not file an application for extension of time to file the notice of appeal until on 10 December 2003 when the application was filed in the superior Court. That was five months from the date the judgment was given. The applicant has made no effort to explain that delay of five months. In the absence of any explanation, it cannot be said that the delay is excusable.

The application which was filed in the superior Court for extension of time for the lodging of the notice of appeal has not been annexed. It seems that the

application was filed in the suit because the order extracted bears the suit number.

The order which was made by consent extending the time for filing an application for extension of time to lodge a notice of appeal in this Court was made within jurisdiction and is of no consequence. I say so because section 7 of the Appellate Jurisdiction Act gives the High Court power to extend the time for giving notice of intention to appeal from the judgment of the High Court or for making an application for leave to appeal or for a certificate that the case is fit for appeal. Thus the High Court had power to extend time for giving the notice of appeal. The High Court did not extend time for giving the notice of appeal but instead extended time for the filing of an application in this Court to lodge a notice of appeal. The High Court has no such power. The applicant did not require leave to appeal from the judgment of the superior Court given on 11 July 2003. It cannot be said, therefore, that by making the order, the superior Court was giving leave to appeal. The present application was filed on 3 May 2004 – almost 10 months from the date of the judgment. In the circumstances, I am not satisfied that the applicant has demonstrated that there is a serious intention to appeal against the award. Further, I am satisfied that there has been an inordinate and inexcusable delay in filing this application.

On the question of the merits of the intended appeal, Mr *Majanja* merely depones in paragraph 14 of his affidavit that he verily believes that the applicant has an appeal which raises triable issues. He did not identify the trial issues which should be ventilated in the appeal.

The applicant intends to appeal against the award of damages by the superior Court. It is trite law that the assessment of damages by a trial Court is an exercise of discretion and that the appellate Court will not normally interfere with such exercise of discretion unless the Judge has either acted on wrong principles or awarded so excessive or so inordinarily low damages or has taken into consideration irrelevant matters or failed to take into consideration relevant matters and in the result arrived at the wrong decision (see *Butler v Butler* [1984] KLR 225).

The applicant does not say why it is aggrieved by the award or attempt to show that there are grounds on which the appellate Court can interfere with the award. Indeed, the applicant did not even file a draft memorandum of appeal. Thus, the applicant has not shown that the intended appeal is not frivolous.

Lastly, the applicant has not shown that the respondent will not be unduly prejudiced if the application is allowed. The respondent contended that he will be prejudiced if the application is allowed because the decretal sum already has been paid to the respondent. I agree.

For those reasons, the application has no merit. It is dismissed with costs to the respondent.

For the applicant:
Mr D Majanja instructed by *Mohammed Muigai Adv*

For the respondents:
Information not available

Taro v Republic
[2005] 1 EA 380 (CAK)

Division: Court of Appeal of Kenya at Nakuru

Date of judgment: 25 February 2005

Case Number:	52/96
Before:	Tunoi, Githinji JJA and Deverell AGJA
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Appeal – Dismissal for non-attendance – Whether an appellant in custody must attend the hearing of the appeal – Whether a criminal appeal may be dismissed for non-attendance by counsel – Section 354 – Criminal Procedure Code (Chapter 75).

[2] Criminal procedure – Appeal – Dismissed for non-attendance by counsel – Whether appeal may be heard in the absence of the appellant – Proper course for the appellate Court to follow in the absence of the appellant and his counsel – Section 354 – Criminal Procedure Code (Chapter 75).

Editor's Summary

The appellant was convicted of two counts of defilement and causing grievous harm. He appealed to the superior Court. The Court record showed that when the appeal came for hearing, only the State counsel attended. The Court therefore dismissed the appeal for non-attendance by counsel. The appellant appealed, effectively seeking to argue the grounds of his first appeal.

The Court considered the propriety of the procedure followed and the orders made by the first appellate Court.

Held – On a criminal appeal to the superior Court, the appellant or his advocate may address the Court in support of the grounds set out in the petition. The appellant who is in custody is however not always required nor entitled to be present at the hearing of the criminal appeal. He is entitled to be present if he desires to attend, unless the appeal is on a ground involving a question of law only, in which case leave of the Court must first be sought. The right to be present is also subject to the appellant paying transport charges, unless he is exempted by the Court from so doing. Thus an appeal may be heard in the superior Court even in the absence of the appellant.

Where the appellant and/or his advocate fail to attend the hearing of the appeal, the only recourse of the Court is to either adjourn the appeal to another day or hear the appeal in the appellant's absence. There is no provision allowing for dismissal of appeal for non-attendance. Since the superior Court wrongly dismissed the appeal, the further appeal to the Court of Appeal would be allowed and the case remitted for rehearing of the appeal to the superior Court.

No cases referred to in this judgment

Judgment

Tunoi, Githinji JJA and Deverell AGJA: The appellant was charged in the Principle Magistrate's Court, Kericho, with two offences namely:

1. Defilement of a girl contrary to section 145(1) of the Penal Code.
2. Grievous harm contrary to section 134 of the Penal Code.

The complainant in both counts was Jane Odhiambo Otieno. The appellant pleaded guilty to both charges on 15 March 1993 and was sentenced to 14 years' imprisonment with 20 strokes of the cane on the first count and to 10 years' imprisonment and five strokes of the cane on the second count. The sentences on both counts were ordered to run consecutively.

He appealed to the superior Court against the sentence on the ground that the sentence was harsh; harmful and likely to adversely affect his social life. The appeal came for hearing before the superior Court (Rimita J) on 27 April 1994. The appellant's counsel did not attend but the State counsel attended. The learned Judge made the following order:

> "*Court*
>
> I fixed the appeal in presence of both the advocates for the appellant and the State counsel. The State counsel is present. The appellant's advocate is absent. I will dismiss the appeal. Appeal is dismissed."

What is this appeal about?

The notice of appeal in this appeal was filed in March 1996. It shows that the appeal is against the decision of the High Court at Nakuru (Rimita J) dated 27 April 1994 dismissing the appeal. However, by the memorandum of appeal dated 9 March 2004, the appellant is directly appealing to this Court against the sentence imposed by the trial Magistrate.

The second ground of appeal for instance, which is the main ground of appeal states thus:

> "That I implore this Honourable Court to consider consolidating the two counts and the sentences of the same to run concurrently as the counts refers (*sic*) to the same complainant."

It is the notice of appeal which institutes a criminal appeal in this Court and not the memorandum of appeal (see rule 58(1) of the Court of Appeal Rules).

The notice of appeal is therefore the authoritative document on what the appeal is about. Furthermore, the appeal was not heard by the superior Court on the merits. Although the applicant has not stated the grounds on which he is appealing against the order of the superior Court, legally and logically this appeal is strictly against the order dismissing the appeal for non-attendance and we will confine ourselves only to that aspect.

As we have observed above, the appeal was dismissed by the superior Court merely because the appellant's counsel did not attend the hearing of the appeal. It was submitted in this Court that the appellant attended the hearing of the appeal. The proceedings of the superior Court of 27 April 1994 do not show otherwise.

Section 354 of Criminal Procedure Code prescribes the powers of the High Court and the procedure to be observed at the hearing of the first appeal in the superior Court. By section 354(1), at the hearing of the appeal, the appellant or his advocate may address the Court in support of the grounds set out in the petition. The appellant who is in custody is not, however, always required or entitled to be present at the hearing of the criminal appeal. He is entitled to be

present if he desires it except where the appeal is on some ground involving a question of law alone in which case leave of the High Court to attend has to be sought (see section 354(4)).

Furthermore, the right of an appellant who is in custody to be present at the hearing of the appeal is subject to his paying transport charges except where he is exempted by Court from paying such charges (see section 354(5)).

It follows that a criminal appeal should be heard in the superior Court even in the absence of the appellant. The Criminal Procedure Code does not provide for dismissal of a criminal appeal for non-attendance either by the appellant or his advocate.

It seems that where the appellant's advocate fails to attend the hearing or the appellant fails to attend when required to do so, the only option the superior Court has is either to adjourn the appeal to another day or to hear the appeal in the absence of the appellant or the counsel.

The superior Court obviously erred in law when it dismissed the appeal for non-attendance by the appellant's counsel.

For those reasons the appeal is allowed. The order of the superior Court dated 27 April 1994 dismissing the appellant's appeal is set aside and the appellant's criminal appeal number 111 of 1993 is restored on the register.

We order that the appeal be heard according to the law on priority basis.

For the appellant:
Information not available

For the respondent:
Information not available

Wendy v IL Ngwesi Co Ltd and another
[2005] 1 EA 382 (HCK)

Division:	High Court of Kenya at Nairobi
Date of ruling:	25 February 2005
Case Number:	513/03
Before:	Ojwang J
Sourced by:	LawAfrica
Summarised by:	C Kanjama

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[1] Civil procedure – Discovery – Application by plaintiff for discovery and for inspection of specified documents – Whether an order for discovery should be made – Whether relevance or admissibility of documents must first be established prior to an order of inspection – Whether an order for inspection can be made in respect of documents not referred to in the pleadings.

Editor's Summary

The plaintiff had been attacked by an elephant at a game ranch when she went jogging. After close of pleadings, she filed her list of documents and requested to inspect certain specified documents in the possession of the defendants that would help to ascertain whether the defendants were in occupational control of the ranch in question, inclusive of financial statements and certain policies of

insurance. The defendants failed to respond or file their list of documents and the plaintiff eventually applied for an order of discovery and an order for inspection.

The plaintiff argued that the documents required were necessary to determine the question of occupational control of the game ranch, which was a relevant issue in a claim under the Occupier's Liability Act. The relevance and admissibility of the said documents would only be determined after disclosure and inspection.

In response, the defendants argued that the said documents were of no relevance in determining the question of occupation of the game ranch. They further argued that the plaintiff had failed to file a notice regarding documents required for inspection, and that therefore the said application was premature.

The Court considered the rival submissions.

Held – The plaintiff's claim is legitimately founded on occupier's liability and she needs to establish occupation and control of the premises where the injury did take place. The documents required would be relevant for the purpose of shedding light on the matter in controversy. As the documents required for inspection were not referred to in the pleadings, no formal notice under Order X, rule 15 Civil Procedure Rules needed to be given. *Khawanja v Versee* (citation not given) considered.

The non-rendering of discovery by the defendants within the time required by the Rules (one month) had the effect of causing inordinate delay to the hearing of the main suit.

Application succeeds. The defendants ordered to make discovery and avail required documents for inspection.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Khawanja v Versee – **C**

United Kingdom

Wheat v E Lacon and Co Ltd [1966] AC 552

Ruling

Ojwang J: The plaintiff's application was made by notice of motion dated 8 September 2003 filed on 9 September 2003. It was brought under Order X, rules 11A, 17(2) and 18 of the Civil Procedure Rules, and section 3A of the Civil Procedure Act (Chapter 21). The applicant's prayers were set out as follows:

(*a*) That, the first, second and third defendants be ordered to make discovery, by filing and serving upon the plaintiff a list of documents relating to any matter in question in suit herein which are or may have been in their possession and power.

(*b*) That, the first and second defendants be ordered to furnish and/or allow the plaintiff's advocates to inspect and make copies of the public indemnity insurance policies held by the first and second defendants for the years 2000, 2001, 2002 and 2003.

(*c*) That, the first and second defendants be ordered to allow the plaintiff to inspect the first and second defendants' audited accounts for 1996, 1997, 1998, 1999, 2000, 2001 and 2002.

(*d*) That costs be provided for.

The general grounds stated in support of the application are, firstly, that the first, second and third defendants have failed to make discovery within the stipulated time as required by Order X, rule 11A(1) of the Civil Procedure Rules. Secondly, it is stated that discovery under Order X, rule 11A(1) is a mandatory requirement in all High Court proceedings. And lastly it is stated that the documents in respect of which discovery and inspection is sought are relevant to the matters in question and necessary for the Court to dispose fairly of the suit.

Evidence to support the plaintiff's application is filed in the depositions of Sheetal Kapila, dated 8 September 2003. The deponent is from the firm of advocates with the conduct of the instant matter on behalf of the plaintiff, and she avers that after the plaintiff filed suit on 29 May 2003 and the defendants filed their defences on 20 June 2003 the pleadings closed on 4 July 2003. On that date the plaintiff filed her list of documents, pursuant to Order X, rule 11A of Civil Procedure Rules, serving the same upon the defendants immediately. On that same date, 4 July 2003 the deponent wrote to the defendants' advocates requesting specific discovery and inspection of the audited accounts of the first and second defendants for 1996, 1997, 1998, 1999, 2000, 2001 and 2002. The deponent wrote a further letter to the defendants' advocates, on 21 July 2003 requesting specific discovery and inspection of the public insurance indemnity policies held by the first and second defendants for 2000, 2001, 2002 and 2003. It is averred that the defendants have to date, not filed their respective lists of documents as required by Order X, rule 11A of the Civil Procedure Rules aforesaid. Furthermore, the defendants have failed to provide the plaintiff with the documents in respect of which specific discovery had been sought. The deponent states that she verily believes the documents the subject of the instant application, to be material to the issue of the second defendant's occupational control of the first defendant, and will enable the Court to properly determine all the issues pertaining to this suit and to dispose of the suit fairly. The deponent expresses his belief that the defendants are, in the circumstances, obliged to make discovery of the documents the subject of the instant application, and the plaintiff is entitled to inspect the same. The deponent believes the said documents to be in the possession and power of the first and second defendants.

The three defendants/respondents responded to the application and the supporting evidence by filling, on 10 November 2003 a detailed statement of grounds of opposition (dated 6 November 2003). Among other things, the defendant contended:

(i) That, there is no reference to the audited accounts or the public indemnity insurance policies of the first and second defendants in the pleadings – and so there is no basis for seeking inspection of the same;

(ii) That the accounts and policies sought are not at all material to the fair and just disposal of the suit which is founded on the Occupier's Liability Act (Chapter 34);

(iii) That discovery as sought is premature or unnecessary, because the defendants are not the proper parties from whom compensation can be claimed for injury caused by a wild animal.

Adjournments for various reasons made it not possible to hear the instant matter on 10 November 2003, 11 February 2004, 8 March 2004 and 31 March 2004; but it was possible to hear counsel on 17 May 2004 and 20 January 2005, on both occasions the plaintiff was represented by Mr *Shah*, while the defendants were represented by Mr *Mwenesi*.

Mr *Shah* stated that the defendants were linked to a community project which incorporated the management of game ranch and the running of a lodge; and at the said premises, the plaintiff who was a resident had been attacked by an elephant when she went out jogging. Liability for the harm done to the plaintiff was being canvassed within the framework of the Occupiers Liability Act (Chapter 34), and in that behalf, it became relevant how the operations and the premises of the first defendant were managed. Counsel submitted that the defendants had not made discovery of relevant documents within one month as required under the rules of civil procedure, after a formal request for the same had been made by the plaintiff. The plaintiff's case is that the second and third defendants were in occupation and control of the first defendant at the time the plaintiff suffered the said injury – a fact which should make the defendants jointly and severally liable.

This basis of liability applied to the instant case was reinforced with a reference to *Street on Torts* (10ed) by Margaret Brazier and John Murphy. Who is an occupier? This point is discussed by the learned authors at 304 of their works:

> "The first precondition of a defendant's liability under the Occupiers' Liability Act of 1957 is that he be an occupier of the premises on which the plaintiff's loss occurs. The 1957 Act supplies no statutory definition of occupier but instead states that those who would be treated as occupiers at common law should be treated likewise for the purposes of the Act."

This leads the learned authors directly to the common law notion of the occupier. And they draw (at 304) from the House of Lords decision in *Wheat v E Lacon and Co Ltd* [1966] AC 552:

> "The defendants owned a public house of which Mr R was their manager. Mr R and his wife were allowed by agreement to live in the upper floor, access to which was by a door separate from the licensed premises. Mrs R was allowed to take paying guests on the upper floor. An accident was sustained by a paying guests on the staircase leading to the upper floor. It was held that although the plaintiff was injured in the private area of the premises, the defendant (along with Mr and Mrs R) were still liable. They had retained enough residuary control over that part of the premises to be treated as occupiers."

The relevance of the common law principle to the plaintiff's situation in the instant case, quite obviously, is that the plaintiff and her lawyers would like to ascertain whether, at the *locus in cuo* where the plaintiff was injured by the elephant, the defendants had "retained enough residuary control," so that they

may be treated as occupiers. This purpose of the plaintiff cannot but be, as learned counsel contends, entirely legitimate in the professional canvassing of the case in hand. Now such a conclusion for the purpose of the instant application, must lead to the inference that if the plaintiff requests discovery of documents which shed light on the vital question alluded to this paragraph, the relevance of such documents cannot very well be doubted.

Learned counsel, Mr *Shah* submitted that the plaintiff quite properly required documentation on the defendant's account and their insurance practices – because these will establish that the second and third defendants were in fact in occupation and control of the first defendant's premises at all material times.

On the importance of discovery and inspection for all material documents, counsel referred the Court to another learned work, *Mulla's Code of Civil Procedure* (16ed) by Solil Paul and Anupam Srivastava. The learned authors thus state at 2136:

> "The documents sought to be discovered need not be admissible in evidence in the inquiry or the proceedings. It is sufficient if the documents would be relevant for the purpose of throwing light on the matter in controversy. Every document which will throw light on the case is a document relating to a matter in dispute in the proceedings. In other words, a document may be inadmissible in evidence yet it may contain information which may directly or indirectly enable the party seeking discovery whether to advance his case or damage his adversary's case or which may lead to a trial [or] inquiry which may have either of these two consequences."

Mr *Shah* submitted that, as it was being contended by the plaintiff that the second and third defendants were in occupation and control of the first defendant, financial documents would be one way of establishing the true position, and hence the need for the plaintiff to see the relevant documents of accounts.

On the contention in the defendants grounds of opposition, that the documents sought by the plaintiff were not relevant, learned counsel submitted that the relevance of the documents cannot be determined until they have been disclosed to and inspected by the plaintiff. Counsel further submitted, and I believe, correctly, that whether the said documents would be admissible, had no relevance to this stage of discovery and inspection.

On the objection raised by the defendants', that the plaintiff had not given notice regarding documents for inspection, in accordance with Order X, rule 15, counsel submitted that the said rule deals only with documents referred to in pleadings or affidavits, which is not the case with the documents the subject of the instant application. To support this contention, counsel invoked the High Court's decision in *Khawanja v Versee*. In that case the Honourable Mr Justice Waki (as he then was) remarked as follows:

> "It seems to me that the defendant is not resisting the inspection of documents on substantive grounds but on technical ones. That is the failure on the plaintiff's part to serve notice . . . Reliance for the objection is that rule 15 was not complied with but the rule refers to production of documents referred to in the pleadings or affidavit. The rule would thus be irrelevant in the matter.
>
> The only rule that refers to documents other than those referred to in pleadings, particulars of affidavits is rule 17(2) which has been invoked in this matter. For inspection of such documents, it would appear, no prescribed notice is provided for. It is admitted that a request was made for such inspection and in my findings that was sufficient in the absence of any invitation by the defendant to the plaintiff to carry out such inspection."

Learned counsel relied on *Khawanja* case to support his submission that "this is a clear and straightforward case for ordering inspection of the documents sought." He further remarked:

> "There is evidence that these documents will be material in determining the issues in the proceedings, especially the question of occupational control."

For the defendants, learned counsel, Mr *Mwenesi* contended that there is no absolute time limit within which parties are required to file documents. He promised: "We shall put in our documents; we will make discovery. We haven't refused." He considered in the circumstances, that the first prayer in the application was premature, unnecessary and should be dismissed.

Counsel, however, went on to dispute Mr *Shah*'s perception of "occupation and control" in relation to the plaintiff's position. He disputed the claim that the plaintiff had been a lawful visitor at the said lodge, such as to place any occupational obligations at all upon the defendants, in relation to her. Counsel maintained that it would be important for the plaintiff's counsel to show in detail how the second and third defendants could possibly have been in occupation and control of the first defendant and that in the absence of this, the plaintiff would not be entitled to inspect the documents the subject of the instant application. Counsel contended that "the Court cannot order inspection unless it knows how this will help in the trial process."

Mr *Mwenesi* submitted that the plaintiff had not shown that the documents in question were in the possession and power of the defendants, nor shown how such documents would save on costs, not indicated how these documents would be necessary for the disposal of the case.

Learned counsel disputed the applicability to the instant application of the High Court decision on *Khawanja*; because that ruling points out that "the order for inspection was made because the defendant had referred to the documents in his own list of documents." Counsel contended that such was not the case here, though I have not, with respect, seen any emphasis by the learned Judge, in that case, on the face of documents. I think the learned Judge was making a more general point of law, and I am also, with respect, in agreement with the principle which he enunciated.

Since learned counsel had already made the promise that the defendants would give discovery of documents as sought by the plaintiff, I was unable, with respect to see the purpose of his submissions on substantive matter in issue such as whether or not the second and third defendants were in control of the first defendant; whether the plaintiff was entitled to inspect the document sought; whether the plaintiff must seek redress only against the governmental wildlife authorities, and not against those with occupation and control at the *locus in cuo*.

In his reply learned counsel Mr *Shah* recalled the tenor and effect of Order X, rule 11(*a*)(i) that, notwithstanding the content of Order XI, within one month after suit closes, every party is to make discovery of documents. He submitted that the defendants had been in breach of that provision, as it was already one and a half years since pleadings closed, and yet the defendants had not given discovery and notwithstanding express requests by the plaintiff. The consequence has been, counsel submitted, that the trial process has been unduly delayed.

Mr *Shah* submitted that the documents the subject of the instant application were relevant to the fair determination of the matter in contention. He submitted that the question of occupation and control of the premises of the first defendant had been pleaded, and the documents sought to be inspected were relevant to the process of establishing occupation and control and this would assist in a fair determination of the case.

From the content of the plaintiff's application, from the grounds whereupon it is premised, from the depositions, and from the submission of counsel, I have formed the clear impression that the applicant has a claim of merit. For the proof of her case which is quite legitimately founded on occupier's liability, she needs to establish occupation and control of the premises where the injury did take place. Therefore all documentation which goes to show occupation and control is eminently relevant. This should have been listed and availed to the plaintiff, upon request; and the non-rendering of discovery, which, with respect, offended the law of procedure, has had the effect of causing inordinate delay in the hearing of the main suit. This has been harmful to the plaintiff, as well as to the judicial process which as a result, could not dispose of the matter with dispatch.

I will therefore, make the following orders:

"1. Within 21 days from the date hereof, the first, second and third defendants shall make discovery by filing and serving upon the plaintiff a list of documents relating to any matter in question in the suit herein which are or may have been in their possession or power.

2. Within 21 days of the date hereof, the first and second defendants shall allow the plaintiff to inspect the first and second defendants' audited accounts for the years 1996, 1997, 1998, 1999, 2000, 2001 and 2002.

3. Within 21 days from the date hereof, the first and second defendants shall furnish and/or allow the plaintiff's advocates to inspect and make copies of the public indemnity insurance policies held by the first and second defendants for the years 2000, 2001, 2002 and 2003.

4. The costs of this application shall be borne by the defendants in any event."

Orders accordingly.

For the applicant:
Mr CR Shah instructed by *Kapila Anjarwalla & Khanna Adv*

For the respondents:
Mr SM Mwenesi instructed by *S Musalia Mwenesi Adv*